

THE GUJARAT POLICE MANUAL

1975

(Containing the Rules under the Bombay Police Act, XXII of 1951, the Bombay Police (Extension and Amendment) Act, XXXIV of 1959 and other Departmental Regulations)

VOL. III -POWERS AND DUTIES

(First Edition)



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CHAPTER I
GENERAL DUTIES OF THE POLICE
SECTION I.-DUTIES OF THE POLICE IN GENERAL

1. Execution of Orders and Processes.- (1) It shall be the duty of every Police Officer, promptly to serve every summons and obey and execute every warrant or other order lawfully issued to him by competent authority, and to endeavour by all lawful means to give effect to the lawful commands of his superior.

(Section 64 (a) of the Bombay Police Act.1951.)

(2) (a) The service of all summonses issued by Courts is to be carried out in accordance with procedure laid down in Sections 61 to 68 of the Criminal Procedure Code. Warrants of arrest and search will be executed in accordance with Section 70 to 80 and Section 91 to 101 respectively of the Criminal Procedure Code.

(b) When a Magistrate issues a warrant for the arrest of any person (subject to the provisions of Section 71 of the Criminal Procedure Code) to a Sub-Inspector or Head Constable this officer sometimes directs the Constable to whom he endorses the warrant for execution under section 74 of the Code, to bring the person before him in order that he may himself take the bail-bond and securities This practice is objectionable as it puts a to accept bail and if the accused person is arrested in his own village, he might easily be able to furnish bail. If on the other hand, he is taken in custody to the head quarters of the Sub-Inspector or Head Constable where he probably knows no one, he cannot obtain sureties. The Constable executing warrants should, in the matter of taking securities and releasing accused persons from custody as far as possible, consult and seek assistance and advice from village officers.

(I. G.'s No.7(6739) of 13th March 1950)

(c) When a warrant of arrest has to be executed against a person undergoing a sentence or awaiting trial in a criminal jail at a place outside the territorial limits of the State of Gujarat, the powers of the Government of the State in which such place is situated under section 3 of the Transfer of Prisoner Act. 1950 (29 of 1950), should be invoked through the proper channel to secure the removal of the person to a jail in the state of Gujarat.

(3) The rules laid down for observance by the Police in executing a warrant for the levy of fine issued by a court will be found in Appendix II.

(4) It is not legal to recover magisterial fines, when paid in cash, by instalments

(G. R., J. D., No. 3735, dated 15th May 1912).

(5) All legal orders issued by a Court, such as orders under Section 456, Criminal Procedure Code for restoration of immovable property, should be executed by the Police. Obstruction to the Police in execution of such an order would be punishable under Section 186 Indian Penal Code.

(G. R., H. D., No. 167/4, dated 4th April 1938).

2. prevention and investigation of crime.- By far the most important of the duties of a police officer is to obtain, to the best of his ability, intelligence concerning the commission of cognizable offence or designs to commit such offences, and to lay such information to take such other steps, consistent with law and with the orders of his superiors as shall be calculated to bring offenders to justice or to prevent the commission of to prevent the commission of offences.

Detailed rules in this connection will be found in chapters II to VII.

3. Prevntion of public Nuisances.- In addition to general provisions of chapter XIV of Indian penal code, several other enactments e.g. section 33 or 38 of the Bombay police Act, contain provision for penalising public nuisances, and every police officer is under an obligation to make his best efforts to prevent the commission of such nuisance.

(section 64 of the Bombay police Act, 1951)

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Chapter I

4. Arrest- Whenever a police Officer is empowered by law to arrest a person and there is sufficient reason for exercising that power, he must arrest such person. Arrest are to be made in the manner laid down in section 46-53 of the Criminal procedure code, and detailed rules on the subject of arrest will be found in Chapter IV.

(Section 64 of the Bombay police , Act , 1951).

5. Assistance to another police Officer.- Every police Officer is bound to aid another police Officer, when called on by the latter or in case of need in the discharge of his duty, in such ways as would be lawful and reasonable on the part of police Officer aided.

(Section 64 of the Bombay police, Act , 1951).

6. Co-operation between police of Adjacent Territories in the matter of pursuing cases of abducted persons.- (1) Every police officer must tender full co-operation and give all assistance necessary to the police of adjacent territory , whenever they seek his help in the matter of pursuing cases of abducted person across their own borders into territories beyond their jurisdiction and must treat such cases on a par with serious crime.

(G. E, H. D., No, SPL S.ID. III/900/9679, dated 22nd April 1949).

(2) Co-operation between neighbouring police stations and Districts for prevention and detection of crime - When dacoities, serious robberies, house-breakings etc. take place in the jurisdiction of a Police Station, that Police Station should promptly apprise its neighbouring Police Station of such occurrence. If any special measure in regard to such serious offence (e.g. the appointment of a special officer to deal with them) are taken in a district, information about them should be given to the Superintendent of Police of neighbouring district. Border conferences should be arranged at frequent intervals (vide rule 8)

(I. G.'s No. 29(2-B) dated 11th August 1949)

(3) Co-operation between Local Police and Criminal Investigation Department officers.- Criminal Investigation Department officers should not estrange the sympath and assumptions. Investigation by Criminal. Investigation Department work. Strained relations among officers are not conducive to efficiency and discipline as they more often than not result in making allegations and counter allegations against each other. The Police officers should see that at no place in their charge such an unsatisfactory state exists even for a while.

(I. G. P., Cir. Memo No.7823 of 2nd May 1955.)

7. Co-operation between the Railway and District Police in the Investigation of Crime.-

(1) In cases in which the assistance of the District Police is considered necessary, a copy of the information of the offence will be sent by the officer-in-charge of the Railway Police Station to the District Police Station concerned with a request for assistance, on receipt of assistance or, if engaged, depute a subordinate to render such assistance. The receipt of the information and a note of the steps taken to assist the Railway Police will be entered in the Station diary.

(2) Similar procedure will be observed, when the attendance and co-operation of the Railways Police is required by the officer-in-charge of a District Police Station.

(3) All ranks of the District and Railway Police and the Village Police will render mutual assistance to each other in the execution of their duty when called upon to do so.

(4) Railway Police officers will invariably ask for the co-operation of the District Police in the following cases when registered by them-

(a) When a serious theft has occurred from a goods wagon or shed.

(b) When series of theft has occurred or is occurring from goods wagons or sheds of property entrusted to the railways as carriers, or of railway material carriage-fixing etc. from station yards and carriages.

As a rule such property is disposed of within the district, and the District Police officers can materially assist in keeping a look-out for it and tracing the receivers.

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General Duties of the Police

(5) Whenever the frequency of thefts renders such a course desirable the Superintendent of the District and the Superintendent or Railway Police will meet and concert measures for the detection and prevention of the same.

(6) The District Police shall give immediate information to the Railway Police of property attached or offender arrested by them in Railway cases and hand over such property and offenders to the Railway Police, similarly, the Railway Police shall give immediate information of arrests in District cases and hand over property and offenders to the District Police.

(G. L., H. D. No. RDM 1074-III-C, dated 27th March 1975).

8. Conferences of Police Officers. (I) Conferences of Police Officers to discuss questions relating to Police administration should be held periodically. Such conferences are either (a) intra-State or (b) inter-State.

(2) The intra-State conference will be held annually on dates to be fixed by the Inspector-General of Police ordinarily during the period devoted to the Inter District Athletic Competition.

(3) Officers of the Indian Police Service are permitted to attend the intra-State conference so far as the exigencies of Police work may permit.

(4) If the Inspector-General of Police considers that an inter-State conference should be held, he will apply to the Government for sanction. As a general rule, the Inspector-General of Police, and the Deputy Inspector-General of Police, Criminal Investigation Department will attend such conferences but if the Inspector-General considers that the presence of any other officer would be useful, he may direct him to attend.

(5) Superintendents of Police should furnish in advance information of all inter-District and inter-State conferences to the Inspector-General, the Range Deputy Inspector-General concerned and the Deputy Inspector-General, Criminal Investigation Department with a copy of the agenda and should also communicate in due course the results of each conference:

(6) (a) There should be a proper co-ordination between the Home Guards and the Police in districts and for this purpose, a co-ordination meeting of the Superintendents of Police, the District Commandant of Home Guards and the Chairman of the Prohibition Sub-Committee of the District Development Board should be held once in every month.

(I. G. P.'s Cir. Memo. No. G/7439, dated 18th January 1958).

(b) While dealing with social and honorary workers, such as members of Home Guard Organization or Prohibition Committees etc., Police Officers should remember that they are doing voluntary work and as such a better liaison between them and the Police should be ensured.

(I. G.'s Memo. No. 6123, dated 2nd/July/1955).

9. Co-operation between the Railway Police and Railway Officials.-(1) In matters of station discipline and public convenience, which do not affect the duties laid on the Police by the Criminal Procedure Code, and the Police Act, the station master's authority must be supreme so far as the local Police are concerned, provided that no attempt is made to treat the Policemen as Traffic Department employees to the prejudice of their proper duties. At the same time, it must be clearly understood that the Railway Police are responsible to Government and not to the railway authorities for the proper execution of their duties; and for the performance of these duties, it is absolutely necessary that there should be co-operation between them and the railway officials.

(2) It is only by the cordial co-operation of the Police and railway officials that any Police system can be successful, and the General Manager of the Railway will do all in his power to ensure such co-operation from his subordinates.

(3) When there is a likelihood of a strike arising, it will be to the interest of both the Railway and the Police that a joint conference of Railway and Police Officers be held to discuss measures to ensure co-operation and to prevent misunderstanding and confusion.

(4) Whenever any Government Officer has any cause of complaint against a Railway Jun'd official for any action done by him in the course of his duty as a Railway official, he should first represent his case to the senior officers of the Railway Administration before have recourse to a court of law.

(G. Rs. H. D. No. 1160, dated 31st January 1921 and 8371, dated 27th August 1921). ction 403,

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10. Co-operation between Railway Protection Force and Government Railway Police.- In order to have better co-operation and co-ordination between Government Railway Police and Railway Protection Force working, the following instructions should be followed by the Police officers:-

(1) A copy of statements A, A-1 and B of the Monthly Crime Review should be given to the Railway Protection Force, if they send any requisition.

(2) Periodical meetings of Railway Police and Railway Protection Force officers at appropriate levels should be arranged.

(3) The Railway Protection Force Officers should be invited to attend the Police Conference when police matters of relevancy to Railways are to be discussed.

(4) The Police Officers should attend Crime Conferences held by the officers of the Railway Protection Force when special invitation is sent to them.

(5) The Railway Protection Force Officers should be requested to co-operate and do their part in having access to railway records or to railway officials when the Railway Police find difficulties in doing so.

(6) The Railway Administration, viz., Security Officer or the Divisional Assistant Security Officer of Railway Protection Force should be informed about the facts of important cases and of any other interesting features, which would help them in improving services.

(I. G. P.'s Cir. Memo. Nos. GJ5972, dated 14th November 1958 and G/5912, dated 13th June 1958).

11. Assistance to disabled persons.-(1) When a Police Officer finds any disabled, or helpless person in the street, he must give him necessary assistance, including first aid in accordance with Rule 141.

(2) If a person is found lying drunk on the road or is due to any reason, in a state of insensibility, a Police Officer should move him into the shade, get cold water, and endeavour to restore him to his senses, prevent persons crowding round or annoying him and, if possible, remove him to the nearest hospital at once. If he has any ornaments or money on his person, they should be taken charge of and accounted for to his superior officers. If the person appears to be insane or to

(Section 66 (a) of the Bombay Police Act, 1951).

(Section 66 (b) and (c) of Bombay Police Act, 1951).

(Section 66 (f) and (g) of the Bombay Police Act, 1951).

(G. C. Reconstruction Department, No. 571, dated 12th October, 1946 D I. G.'s No. 5050, dated 17th December 1953). '

14-18 General Duties of the Police

(I. G.'s No. 42 (5455), dated 26th October 1949).

(1. G.'s S. Q. No. 72 (7803), dated 8th March 1955).

(1. G.'s No.2, dated 24th January 1942).

(Section 67 of Bombay Police Act).

17. Duties of the Police in the matter of enforcing regulations in connection with Epidemic Diseases.-(1) (a) The Magistrate of the District is to be informed by the Police of any indication of an approaching or existing outbreak of cholera. He will issue the necessary directions under Section 43 of the Bombay Police Act. In addition to such reports, the Police may be useful in preventing or reducing the spread of the disease by attention to sanitary directions from the nearest Medical Officer.

(b) Whenever any temporary regulations for the prevention of the outbreak or the spread of cholera in any local area are promulgated by Government under Section 2 of the Epidemic Diseases Act (III of 1897), it is the duty of all Police Officers and Police Patel's of that area to assist the controlling officer appointed under the regulations in carrying out the provisions of those regulations.

(2) Similarly, whenever any rules or orders have been made under Section 43 of the Bombay Police Act for preventing the outbreak or spread of plague, yellow fever or any other epidemic disease, the enforcement of the rules or orders is the duty of Police.

(G. L. H. D. No. RPM.1974-III-C, dated 27th March 1975).

18. Enforcement of Police regulations for preventing breach of peace.-(1) Whenever any notifications or orders have been made under Sections 37 or 39 of the Bombay Police Act by the Commissioner of Police/Superintendent of Police/Magistrate for the prevention of a breach of the peace etc. or under Section 55 of the Act for the dispersal of dangerous gangs, the enforcement of the notifications or orders is the duty of the Police.

(2) Instructions on the proper use of these provisions will be found in Chapter III.

(G. L., H. D. No. RPM-1074-III-C, dated 7th March 1975).

19. Stray cattle and unclaimed property.-(1) The Police must take charge of stray Cattle found in streets and arrange to put them in the cattle pound in accordance with the provisions of Sections 91 and 118 of the Bombay Police Act, as the case may be.

(G.C., H. D., No. 1180/5, dated 9th May 1949).

(2) (a) It is also the duty of the Police to take charge of unclaimed property found or made over to them and to dispose of it according to Sections 82 to 87 of the Bombay Police Act.

(b) For the rights and liabilities of a finder of goods, reference should be made to Sections 71, 168 and 169 of the Indian Contract Act and explanation (2) to Section 403, Indian Penal Code.

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(c) The finder of unclaimed property is entitled to the possession of his find against any one except the true owner section 82 of the Bombay Police Act is limited in the application to property found by the Police or made over to the Police by the finder of his own accord and not under requisition of the police.

(d) For the disposal as unclaimed property found on dead bodies, or carcasses of animals found and of hides of animals killed, in railway limits, reference should be made to Rule 224,

Note:-Unclaimed articles and amount of money sent to the Police by the State Transport authorities are in the nature of muddamal and it will not be proper to pass receipts in form Gen. 113-e for the money received in this connection. The proper procedure is to take over such property on muddamal Register and to issue muddamal Receipts.

(I. G.'s Cir.Memo.6535: dated 29th March 1956).

20. Hydrophobia and stray Dogs.-(1) The officer-in-charge of a Police Station Should report to the Superintendent all cases in which human beings or animals have died hydrophobia within his Jurisdiction, so that the Superintendent of Police can decide to take further action in the matter with the department concerned or to take action himself under section 44 of the Bombay Police Act.1951.

(2) The Commissioner of Police/Superintendent of police is empowered to issue a notice for destroying stray dogs under section 44 of the Bombay Police Act. In the same manner, the Chief Officer of a Municipality is also empowered under section 190 of the Gujarat Municipalities Act. 1963, and to take further, action for killing and removing the stray dogs, Similar provision exists for taking necessary action in such cases by the concerned Panchayat vide Section 88, Schedule I(O) of the Gujarat Panchayats Act. 1961. In the same way, under the Bombay Municipal Corporation Act. 1949 Section 66(24), the Corporation is invested with powers to destroy stray or ownerless, dogs. The Commissioner of Police/Superintendent of Police should render necessary police assistance for destroying stray dogs, to any Corporation or Municipality or Panchayat whenever such assistance called for.

(I. G.'s Cir. No, G/1727/73/2950 dated 7th August 1973).

(3) Under Section 119 of the Cantonment Act. II of.1924, it is the duty of the Cantonment authorities to carry out the destruction of diseased and unclaimed dogs in Cantonments but it would tend to obviate complaints on the part of the public, if the, destruction of dogs by Cantonment agency were carried out with the previous knowledge of the civil authorities and with such assistance as they are able to afford, as for example, by deputing an intelligent Constable to accompany those employed in this connection by the cantonment authority.

(G. O., J.D. No. 4929. dated 10th July 1913).

(4) The killing of dogs under Section 44 should, as far as possible, be assigned to intelligent Constables, whose religious feelings and prejudices will not be offended by it. When poisoning is resorted to, they should see that the uneaten poisoned food is not left over on the road. Strychnine powder should never be administered loose or scattered on meat. It should be made up into a pill or small ball with flour paste mixed with a little jiggery or some other flavouring to make it acceptable. The Police should however, where practicable, catch the dogs before poisoning them.

(G. R. J. D., No. 2754. dated 26th April 1902).

(5) When a dog is detained under Sub-Section (3) of Section 44, a memorandum of the cost incurred in keeping the dog for three days or until claimed by the owner should be presented to the owner claimed the dog or sent to him with a demand for payment, after three days. Should he fail in the last case to pay within seven days, intimation of the claim should be sent to the Collector for recovery as an arrear of land revenue. If the owner remains untraced, the dog may be sold or destroyed as laid down in Section 44(3) of the Bombay Police Act. .

(6) The intimation about a dog having been taken possession of by the Police, to be given to the owner of the dog under Sub-Section (2) of Section 44 of the Act, should be in Form No. MM-41.

21. Duties under special or local laws. -Besides the duties referred to above, there are certain other duties imposed upon the Police by various special or local laws. Those under some of the most important ones have been referred to in Chapter VIII.

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22-25

General Duties of the Police

SECTION II.-DUTIES OF POLICE OFFICERS OF DIFFERENT RANKS.

22. Duties of the Inspector-General of Police. The Inspector-General of Police is responsible for the direction and supervision of the whole Police force in the State. It is, therefore his duty to decide or to advise Government on all the larger problems especially those of general policy connected with personnel, their training and equipment, supplies and stores, financial, provision required for the maintenance of the force and the powers and duties of the various grades of officers, to make rules and orders for the guidance of officers on all such matters and to keep in touch by frequent inspections with the requirements of efficiency all matters relating to maintenance of law and order and the prevention and detection of crime.

(I. G.'s No. 77, dated 23rd-June-1926).

23. Duties of the Commissioner of Police. The Commissioner of Police shall exercise such powers, perform such functions and duties and shall have such responsibilities and authority as are provided by or under the Bombay Police Act, 1951, or as may otherwise be directed by the State Government by general or special order:

Provided that the State Government may ask that any of the powers, functions, duties, responsibilities or authority exercisable or to be performed or discharged by the Commissioner shall be exercised, performed or discharged subject to the control of the Inspector General.

(Section 7 of the" Bombay Police Act, 1951).

24. Duties of Deputy Inspector-General of Police.-(I) The Deputy Inspector-General is supposed to perform such of the duties of the Inspector General of Police as may from time to time be delegated to him either by the Government or by the Inspector-General of Police.

(2) It is the duty of each Deputy Inspector-General to maintain, by frequent personal inspection, the efficiency and discipline of the Police force under his charge, to be in close touch with the Superintendents of Police of his, range and ready to assist or control them, to establish uniformity of procedure, harmonious co-operation between districts and between the Police and the Executive magistracy and to superintend carefully the prevention, registration, investigation and detection of crime occurring within his jurisdiction. He is responsible for ensuring, that all necessary measures are taken by the Police for the prevention and detection of crime occurring within his jurisdiction. He is also responsible for ensuring that all necessary measures are taken by the Police for the prevention and detection of crime in his range, and particularly that adequate arrangements are made for dealing with any unusual outbreak of crime, that the investigation of serious cases is properly supervised and that Gazetted Officers play an adequate part in this work. He shall seek rather to encourage, instruct and advise the Superintendents of Police than to find fault and shall be careful not to supersede them their proper function or to interfere unduly in their relations to wards their subordinates.

(3) The Deputy Inspector-General shall pay special attention to the training of Assistant and Deputy Superintendents of Police serving within his range.

(4) The Deputy Inspector-General is responsible for the maintenance of the strictest discipline amongst officers and men. He shall be kept promptly apprised of all serious cases of misconduct among officers and men occurring in his range, and he is responsible for guiding and directing the efforts of Superintendents in dealing with such cases, for scrutinising their reports and for making personal enquiries in case where the exigencies of the matter so demand.

(5) As regards the duties of the Range Deputy Inspector-General in the matter of inspections, reference should be made to Rule 572,

(I G.'S No.77 and 94, dated 23rd June 1926 and 7th July 1926).

25. Duties of Superintendent of police. (I) The Superintendent of Police should consider it a part of his duty, as far as possible, to give the Sub-Divisional Officers the benefit of his personal guidance and instruction, whenever necessary.

(2) As the Chief Police Officer of the district, the primary duties of the Superintendent of Police are to keep the force under his control properly trained, efficient and contented and to ensure by constant supervision that prevention, investigation and detection of crime in his district are properly and efficiently dealt with by the Police force under his command. He must, therefore, get to know all officers and men serving under him

and see that they are properly trained. He must enforce discipline and redress grievances if any, and encourage men who are promising and weed out those who are of no use to the department. At the same time he must move freely among the people ascertain their needs generally and must constantly be in touch both with his subordinates and with the public. He should pay surprise visits to his Police Stations at irregular intervals and check up whether officers and men are alert.

(3) It follows that he should be free to tour the whole of his district systematically and regularly, and it is essential that he should inspect every Police Station and Outpost in his district once a year and also that he should halt at these places sufficiently long to enable him to get a thorough grasp of local conditions and crime and a full knowledge of his subordinates' work.

(4) The Superintendent of Police must deal with crime as whole, studying the criminal problems of his district rather than visiting spasmodically scenes offences, a duty which more properly falls upon the Sub-Divisional- Officer. The Superintendent of Police must, however, visit the scenes of really serious offences where organized crime is indicated or organized gangs are at work, as well as offences which affect markedly the general peace and quiet of the district.

(5) Superintendents of Police shall treat the Deputy Inspector-General confidentially and frankly, give him all assistance in making his inspection and inquiries and consult him confidentially in all their difficulties and about all their shortcomings in the Police work of their districts.

(G. R. H. D. No. 6169, dated 5th May 1925).

(6) Every Superintendent of Police should visit sick Policemen in hospital regularly once a week at least. It is extremely desirable that every Policeman should feel that his superior officer takes an interest in his welfare and such visits are calculated to ensure greater attention being paid to the men. Further, this practice enables the Superintendent to deal promptly with cases in which for any reason the disbursement of a sick Policeman's pay has been delayed.

(I. G.'s No. 7820-B, dated 5th/8th June 1916).

(7) If in charge of Railway Police, the Superintendent of Police will obey the instructions of the General Manager, and appeal to the Inspector-General of Police afterwards, if appeal be in his opinion necessary. He will also attend, so far as he can, to the requisitions of the Divisional or District Traffic Officers, but may at his discretion decline them and refer them to the General Manager.

26. Duties of the Deputy Commissioners of Police.-Each Deputy Commissioner of Police will perform such duties and functions as are allotted to him by the Commissioner of Police or the Inspector-General of Police. He should give the Superintendents of Police and other staff under him, guidance and instructions, whenever necessary. He is responsible for the general supervision of the staff under him. He should enforce discipline and redress the grievances of the staff under him. He should pay surprise visits to the Police Stations at intervals and check up whether officers and men are alert. The Deputy Commissioner of Police incharge of crime should ensure by constant supervision that the prevention, investigation and detection of crime in his jurisdiction are properly and efficiently dealt with by the Police Stations under his command. He should deal with crime as a whole, studying the criminal problems of his zone. He should also visit scene of serious offences reported in his jurisdiction as directed by the Commissioner of Police from time to time.

(G. L., H. D. No. RPM-1074-11I-C, dated 27th March 1975).

27. Duties of Sub-Divisional Police Officers.-(I) An Assistant or Deputy Superintendent of Police in charge of a sub-division will be responsible for all crime work in his charge, and will visit all scenes of serious offences as laid down in Rules 134, 135 and 136 and also under Standing Orders issued from time to time. Under the general orders of the Superintendent of Police, he will be responsible for the efficiency and discipline of the officers and men in his division and will hold detailed inspections of Police Stations and Out- posts in his charge at regular intervals at least once a year.

(2) In addition to the above, Sub-Divisional Officers will be responsible for the inspection of public conveyances plying for hire in their charges, inspection of explosives arms and ammunition shops, taking musketry practices, etc., and the many other duties that fall to the lot of Sub-Divisional Officer in the ordinary course of his work.

(3) Sub-Rule (6) of Rule 25 in the matter of visiting sick Police-men in hospitals applies also in the case of Sub-Divisional Officer.

(G. R. H. D. No. 6169, dated 5th May 1925),

28. Duties of the Superintendent of Police in the Commissionerate.-Each Superintendent of Police in the Commissionerate will perform such duties and functions as are assigned to him by the Commissioner of Police or any other superiors. He should give guidance and instructions whenever necessary to the members of the staff under him and will be responsible for the general supervision over them. He should pay visits to Police Stations, perform night rounds, visit serious offences, etc., as directed through a general or special order by any of his superiors. The Superintendent of Police in charge of a division should ensure by constant supervision that the prevention, investigation and detection of crimes are properly and efficiently dealt with by the Police Stations under his command. He should deal with crime as a whole studying the criminal problems of his division. He will visit Police Stations for all's well every day, except on Sundays and holidays. He will also take surprise night rounds often in his division with a view to seeing that all officers and men are alert on night rounds. The Superintendents of Police will submit their weekly diaries to their respective Deputy Commissioners of Police and the Commissioner of Police.

(G. L., H. D. No. RPM-I074-III-C, dated 7th March 1975).

29. Duties of Circle Police inspector.- The Circle Police Inspector is usually an officer who has risen to the position he holds owing to his ability to deal with crime and criminals. He should, therefore, be employed practically entirely on crime work and the supervision of bad characters and gangs in the Circle. He would thus supply a much needed check in supervising and coordinating the crime work of the different Police Stations in his circle. Among other things, his main functions shall be as follows:-

- (1) Visitation of offences.-He shall visit:-
 - (i) Murders, Attempts and culpable homicides which are undetected, and take up such cases for personal investigation.
 - (ii) Dacoities. (He shall take up undetected dacoity cases for personal investigation)
 - (iii) Highway robberies between sun-set and sun-rise.
 - (iv) Train robberies both passengers and goods trains.
 - (v) Robberies and attempted robberies in which any offender uses or carries and fire-arm.
 - (vi) All House-breaking and thefts involving property valued at Rs. 3000/- or more.
 - (vii) All thefts involving property valued at Rs. 10,000 and more.
 - (viii) Temple thefts, of Rs. 1000/- or more or where idol is stolen.
 - (ix) Telephone and telegraph wire thefts.
 - (x) Theft of steel keys etc. on railway lines.
 - (xi) Greasing of rails.
 - (xii) Tampering with rails.
 - (xiii) Offences falling under Section 101, 126 of the Indian Railway Act, involving loss of persons or property..
 - (xiv) All riots. He shall send special report within seven days stating whether the offence could have been averted by proper preventive action, whether the police had any inkling of the motive of such an offence either by way of applications or non-cognizable complaints and whether the dispute was well known and could have come to the notice of the P.S.I. or Beat or Out-post staff during their village visitation.
 - (xv) Any other organised or sensational crime or as directed by the Superintendent of Police/Sub-Divisional Police Officer.

Note.-He shall countersign case diaries of cases visited by him

(2) Checking of patrolling parties.(i) He should carry out surprise checking of town, road. Village group patrolling and special patrolling parties once in a fortnight and see that patrolling is effectively done.

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(ii) He shall arrange proper patrolling where the crime has gone up, shall visit and camp in the affected areas, ascertain the criminals who are responsible and form a definite line to be adopted both for prevention and detection of crime in future by enforcing effective surveillance.

(3) *Study of daily reports for detection and prevention of crime:* In order to keep himself acquitted with the incidence of crime in the Police Stations of his circle, the Circle Police Inspector should properly scrutinise the daily reports received by him from the Police Stations as per rule 242 and watch the crime situation. If property crime has increased in any Police Station or offences of a particular type of crime have occurred, he should immediately visit and camp in the affected area on his own, contact affected and other persons to collect information and personally supervise and guide the investigation and make efforts to detect the new and old undetected offences and see that intensive preventive actions are taken both by him and the Police Station staff.

(4) *Inspection of Police Stations.*-He will carry out inspection of Police Stations in his circle as per rule 582 of Police Manual Volume III.

(5) *Preventive action.*-He shall study the crime records and undertake proceedings under sections 55. 56. 57 Bombay Police Act and 110 Criminal Procedure Code.

(6) *Prohibition pockets-raid of :-* He shall study prohibition offences, see the map and personally organise raids in prohibition pockets of important distillers and boot-leggers and personally detect quality cases.

(7) *Co-ordination.*-He shall ensure co-operation between the officers of bordering Police Stations by frequent meetings, impress on them that crime cannot be adequately dealt with without such cooperation. He shall see that lists of criminals-both active and suspected and absconders are sent to the bordering police stations and that similar information has been obtained from bordering Police Stations.

(8) Enquiries including departmental proceedings.

(9) *Personal investigation.*-He should personally investigate cases entrusted to him by the Superintendent of Police or the Sub-Divisional Police Officer. It should be borne in mind that the Circle Police Inspector may be entrusted with the investigation of cases which are important and complicated or the cases which have attracted public attention or in which there are allegations against the Police Sub-Inspector or cases which have been given wide publicity in the newspapers. '

[I. G. p's S. O. No. 22 (G./1909/CPI/ 3218,) dated 6th September, 1974]

30. *Duties of Inspector of Police in the Commissionerate.* -Inspector of Police in the Commissionerate, in charge of a Police Station, is responsible for the general supervision and discipline of the officers and men attached to his Police Station. He is also responsible for the crime in the jurisdiction of his Police Station and to see that the crime is properly reported, registered and investigated. He should take up investigation of important cases and cases which his superior officers order him to take up. He is also responsible for the guidance to the officers and men under his charge. Each Inspector of Police will submit his weekly diary to his respective Superintendent of Police and the Deputy Commissioner of Police and will perform such duties and functions as directed through a general or special order by any of his superiors.

(G. L., H. D. No. RPM-1074-III-C, dated 27th March 1975)

31. Duties of Home Inspectors.-(I) The Home Inspector is the Office Superintendent of the Superintendent of Police's office. As the services of the Sub-Divisional Police officers are utilized for crime work and the visiting of all scenes of serious offences in their charges. it is essential that the headquarters town and the actual Police Headquarters as well as the Head Police office should be under a responsible officer to deal with any sudden emergency that may arise and to see that the work is properly done in the absence of the Superintendent of Police. To meet this essential need, an officer of Inspector's rank appointed as Home Inspector. His presence at headquarters will admit of the Superintend or-Police and all the Sub-Divisional Officers, if necessary being absent at the same time from headquarters. Ordinarily, the Home Inspector will be selected from the executive force and the training that he will get when in charge of current duties at headquarters will broaden his out-look and be of considerable use to him later. if selected, for a Sub-Divisional Officer's post.

(2) The Home Inspector will hold the appointment for a maximum period of three, years.

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(3) **The duties of the Home Inspector will be:-**

(a) To open the Superintendent of Police's post.
(b) To supervise the work in the Superintendent's correspondence and accounts branches.

- (c) To dispose of routine correspondence and miscellaneous work.
(d) To supervise the work of the town and Headquarter Police during the absence of the Superintendent of Police and the Sub-Divisional officer,
(e) To hold proceedings on articles of clothing and accoutrements etc., received from contractors, in the absence of the Superintendent of Police and the Sub-Divisional Officer from headquarters,
(f) To pay a preliminary visit to the scenes of serious or important crimes occurring within easy reach of headquarters, pending the visit of a superior Gazetted Officer,
(g) To check and initial account papers, and especially travelling allowance bills (after the actual movements have been verified by the Sub-Divisional Officers),

(G. R., H. D., No. 6169 dated 5th May 1925)

(h) To sign all vouchers as Personal Assistant to the Superintendent of Police (and not as as "Home Inspector of Police" or "for Superintendent of Police")

(I. G.'s No. 21, dated 17th October, 1927)

(i) To operate on the personal ledger accounts. Opened at the District Treasury by the Superintendent of Police.

(G. R., H. D. No. 441/3, dated 16th April 1932)

(j) To hold kit inspection of Headquarters men.

(G. R., H. D., No. MIS-1067/2717-C, dated 30th July, 1970)

(k) To hold Orderly Room of Headquarter men.

(G. R., H. D. No. MIS/1071/3452-B, dated 11th October 1971)

32. Duties of Assistant Public Prosecutors :- (1) It is the duty of an Assistant Public Prosecutor to study all cases and conduct the prosecution in Magisterial Courts (vide Rule 252) in accordance with the orders of the Superintendent of Police. The Superintendent or the Sub-Divisional Police Officer may, however, transfer a case from one Assistant Public Prosecutor to another if he considers it desirable to do so.

(Rules 50 and 51 of High Court Cir. Order and H. D. letter No. 3650-C, dated 24th September 1923)

(2) (a) Assistant Public Prosecutors shall also study cases referred to them by the investigating officers before they are sent up to the court and give necessary guidance as laid down in Rule 233.

(b) In cases classed as "B", the Sub-Divisional Officer is expected to pass his own orders after obtaining the opinions of the Sub-Inspector and/or the Circle Inspector whether an application should be made to the Magistrate concerned to lodge a complaint under Section 211, Indian Penal Code.

(I. G.'s No. 13, dated 17th April 1939:and No. G/1927/72/11083 dated 10th January 1972)

(3) The Senior Assistant Public Prosecutor in each district will be responsible for supervision over the work of other Assistant Public Prosecutors in the district and for giving them guidance in all cases of difficulty.

(4) Assistant Public Prosecutors may be allowed to conduct non-police Government cases only when the Superintendents of Police find that the Assistant Public Prosecutors can do so without detriment to their legitimate duties. Specific permission of the Superintendent of Police concerned should be obtained before the Assistant Public Prosecutor is allowed to take up a non-Police Government case. Cases under Section 211 Indian Penal Code, count as non-Police cases. '

(G. R., H. D. No. SPP 4858/81687-VII. dated 23rd March 1959)

(5) The departments which utilise the services of Assistant Public Prosecutors in non-Police cases will sanction and direct the payment of fees to the Assistant Public prosecutors out of the funds under their own administrative control at the rates prescribed by Government Payment. Payments on account of such cases should, however, only be made by the department or office concerned.

(G.R., H. D. No. 5892/6-II, dated 10th June 1954 and 12th July, 1955)

33. **Duties of Sub- Inspectors:** (1) Sub-Inspectors are responsible in their charges for the prevention and detection of crime, and for seeing that the orders of their superiors are carried out and the discipline of the Police under them is properly maintained. They should make themselves thoroughly acquainted with their charges and see that all the Police under them are present on duty and efficient. They will also keep all their superior officers informed of the probability that comes to their knowledge of any crime or occurrence likely to affect the public peace taking place, suggesting such precautionary measures as they may consider it advisable to take. They will, whenever necessary, correspond directly with the Police authorities of neighbouring Police Stations and act in concert with them in apprehending offenders escaping from or into their charges and generally take steps to prevent or detect crime. In the event of an Inspector personally taking up the investigation of a particular case, they will act under his orders; but in other cases they will act independently, subject to his general direction and advice. This, however, will not absolve them from their responsibilities mentioned above and in all cases they will act at once, without waiting for orders, unless the cases are such that the Police cannot proceed without instructions from a Magistrate.

(2) They will inspect periodically, in such manner as the Superintendent or Sub-Divisional Officer may direct, all the Police in their charge, report any negligence, misconduct or disobedience of orders, absence without leave or casualties among the members of the force and generally keep the Superintendent or Sub-Divisional Officer well informed on all matters connected with the efficiency of the Police arrangements in their own Police Stations. It is open to them to report also any difficulties they may experience owing to the influx of criminals from outside their station limits or the lack of co-operation from other Police Stations or districts.

(3) Sub-Inspectors should inspect the Outposts in their charge at least once a month and at such times should give their men at the Outposts instructions in their duties.

(4) They should visit the villages under their Police Stations, examine the Police Visit Books and Muster Rolls and bring up-to-date the registers relating to crime in the villages, keeping in view the provisions contained in Rule 81.

(5) They should take every opportunity of collecting information of the current events within their charges and should have an intimate knowledge of the people around them more especially of the bad and suspected characters, and see that their subordinates take every opportunity of acquiring minute local information.

(I. G.'s No. 3835-A, dated 12th March 1909)

(6) Railway Sub-Inspectors have similar duties to those which they would perform in the District Police. They must be especially careful that the utmost cordiality is maintained between members of the Railway and District Police, and that every possible assistance is rendered by the former to the latter, whenever called for.

34. **Duties of Sub-Inspectors of Police in the Commissionerate.**- The main duty of Sub-Inspectors in the Commissionerate is to work in a Police Station or chowky. They will be responsible for proper investigation of all types of crimes registered at their respective Police Stations and

entrusted to them for investigation. They will also be responsible for the prevention of offences and to obtain intelligence concerning the commission of cognizable offences or designs to commit such offences and to lay such information before their superiors and to take such other steps consistent with law and the orders of his superiors. They will perform patrol duty, night round duty, attend parade and such other duties and functions as will be assigned to them by any of their superiors.

(G. L., H.D., No. RPM-1074-II-C, dated 27th March 1975)

35. Duties of Second Sub-Inspector (I) the services of second Sub-Inspectors should be utilized in the investigation of crime and unnatural death, in taking drill. Inspection and so forth. The senior Sub-Inspector should depute the Second Sub-Inspectors to investigate the simpler and easier cases of reported crime and unnatural deaths and as they gain experience, depute them to investigate more important cases. They should be

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Required to deal completely with cases handed over to them for investigation but should be encouraged to seek advice and difficulties and doubts, and till they gain some experience, the senior Sub-Inspector should take them round and show them how inspections are carried out.

(2) Experienced Sub-Inspectors and all Inspectors should be required to put second Sub-Inspectors in the way of securing experience and also to advise, help and train inexperienced Sub-Inspectors from the School.

(3) The second Sub-Inspector is an assistant to the senior Sub-Inspector. He must try to gain experience and the in-charge Sub-Inspector must use him in such a way that he may be a help to him in the more important cases and relieve him of those that are unimportant and of all pure routine. Thus the senior Sub-Inspector will have more time for important cases and work, while the less experienced officer will be in the way of gaining practical experience, first in the less important work and minor cases and, as he goes on, in the more important duties and more difficult cases.

(1. G. No. 3835-A, dated 12th March 1909)

36. **Duties of Head Constables.**-(I) (a) Head Constables are subject to the orders of the Sub-Inspectors placed over them, and to those of the superior officers of the Police Force. They are entitled to the obedience of all Police subordinate to them within the limits of the charge that may be assigned to them.

(b) They must report to their Sub-Inspectors all crime within their charges and any probability that a cognizable offence is about to be committed, but must not wait for orders before proceeding to make the necessary inquiries for the discovery and apprehension of offenders.

(c) In the prevention of crime and in maintaining order they will obey such orders as their superior officers may give them.

(d) In the case of a sudden or suspicious death, a Head Constable or, if a Head Constable be not present, a Constable will prevent the burning, burying or exposure (as, among the paises) of the corpse, until he may receive the orders of the Sub-Inspector or other superior officer.

(e) When in charge of particular posts or beats of villages. Head Constables will act in all Police matters in concert with the heads of the Village Police.

(f) They will be held responsible for bringing to the immediate notice of their superior others all neglect of duty on the part of the subordinate Police and also of the village Police, and any disobedience of orders or other misbehaviour on their part.

(g) Head Constables are the assistants of the Sub-Inspector and should assist him in drilling and instructing the men and in patrolling the posts frequently. Any negligence should be reported to the Sub-Inspector, and praiseworthy actions performed by the men brought to his notice.

(I. Go's No. 5706, dated 24th June 1901)

(2) Head Constables of the Railway Police have the same duties as those in the District Police. When in charge of railway stations, they will act in all Police matters in concert with, the station master except, of course, such as are contrary to law.

37. Duties of the .Police Armourers and Assistant Armourers. (I) (a) Repairs to, and maintenance of various types of Police firearms.

(b) Maintenance of Armourer's tools.

- (c) Repairs to and maintenance of Government Bicycles.
- (d) Maintenance of Electrical and Mechanical Engineering Regulations (E. M. E. Rs.).
(G. L. H, D., No. P.L.F. 1359/45107-V, dated 20th November 1959)
- (2) Armourers should inspect quarterly all firearms at Head Quarters and at out stations twice in a year. They should also maintain record of their inspections and produce it before the Assistant Inspector of Armourers during his annual inspection. -
(G. L. H.. D., No. PLF. 1359/45107-V, dated 20th November 1959)
- (3) The services of the Armourers should be utilized exclusively for the proper maintenance of arms and under no Circumstance should they be employed on any other jobs.
(1. G.' S. Cuir. No. (K)/3210-V, dated 7th January 1958)

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38. **Duties of Constables.**-(I) Constables will perform such Police duties as they may be ordered by Head Constables and their Superior officers to perform for the prevention and detection of crime, the maintenance of order, the apprehension of offenders on the warrants of Magistrates when such are required by the Criminal procedure Code, or without them in cases in which the police may arrest without warrant, the serving of summonses or other magisterial processes, the escorting and guarding of prisoners, treasure or private or public property of which they may be placed in charge, and the exercise generally of such powers as are conferred on police officers by the Bombay Police Act XXII of 1951.

(2) On the Occurrence of any crime for which the Police may arrest without warrant. Constables should at once act Without Waiting for orders, if necessary in concert With the village Police, and It on duty on a railway, with the railway officials, and should make an immediate report and where practicable in writing, for the information of the nearest Superior Police Officer.

(3) It will also be the duty of Constables, in cases of fire or on any other occasion of danger, to assist and take every precaution in their power to secure the public safety.

(4) Routine patrol duty will not be carried out by Constables. A Constable is not to be used for rambling round to pick up information by chance in villages. When he is used for any duty coming in the sphere of a beat man, his instructions must be specific e.g.:-

"To

Constable A. B.

You are hereby informed that 'F' was last heard of as being at village 'X'. Proceed there and report.-

- (a) If he is still there;
- (b) If so, how he earns his livelihood; and
- (c) If he is not there, where he has gone."

(Para 20 of I. G.'s Cir. 1'.0. 41, dated 4th December 1948.)

(5) It is not the duty of Railway Police Constables to act as ticketnippers, to the prejudice of their legitimate duties of maintaining order, detecting crime and protecting persons and property; nor is it the duty of a Police Constable, Railway or District, to recover at railway stations or elsewhere, on behalf of the Railway administration, excess fare from passengers.

(G. R. J.. D. No. 438, dated 17th January 1902 and I. G.'s No. 4621, dated 1st April 1913)

39. Duty passes for Head Constables and Constables.-(I) Head Constables and Constables both in Districts and on Railways leaving their Stations on duty should be provided with a pass in

form P. M. 105. It is, however, not necessary to issue a pass to sick men sent to the hospital, or to men sent on ordinary investigation of crime, going on leave etc.

(2) Passes are for issue to armed as well as unarmed Head Constables and Constables, when detailed on duties beyond the limits of their Police Stations.

(3) Duties that ordinarily call for the issue of these passes are:-

(a) In the case of armed men:-

(i) Escort of treasure and accused persons, and

(ii) Any special duty, and

(b) In the case of unarmed men:-

(i) Conveyance of express messages, correspondence or Government money, when; permissible under standing orders.

(ii) Journeys to convey attached property to Courts,

(iii) Conveyance of clothing or any other stores to the headquarters of a district.

(iv) Journey in connection with any departmental enquiry,

(v) Journey to appear at an examination, and

(vi) Journey on any special duty.

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(4) Passes should be issued even though patrol books are carried by the men. Since passes serve as a better check than patrol books against loitering and unduly making use of the duty for personal convenience.

(5) Pass-books should be maintained at Headquarters and at all Police Stations. They will not be maintained at Outposts".

(I. G.'s No. 799-D, dated 16th January 1913)

SECTION III : GENERAL PRINCIPLES REGARDING PERFORMANCE OF DUTY.

40. **Superiors competent to perform duties of subordinates.**-(I) Under Section 97 of the Bombay Police Act. 1951, a superior officer of Police may take up, whenever justice will be furthered by it, any duty assigned to his subordinate. This enables a Superintendent or an Assistant or Deputy Superintendent in any case especially requiring it, to take up the duty of a Station Officer or to assign it to another competent officer. An Inspector may, of his own accord or by order of higher authority, take charge of the work of detection in any particular crime, and carry out any enquiry or execute any warrant entrusted to a subordinate officer. The Sub-Inspector of the Police Station in which it may have been committed shall act as his subordinate and all the Police of the Station shall obey his orders.

(2) Section 97 of the Bombay Police Act. 1951, explains Section 36 of the Criminal Procedure Code. Under the former section, a Superintendent, or an Assistant or Deputy Superintendent can order a Sub-Inspector of Police to send up a case to a Magistrate, even when the Sub-Inspector has satisfied himself and come to the conclusion that there exists no case which can be so sent up.

(3) The words "by his own action" in Section 97 of the Bombay Police Act authorise the superior officer to exercise the powers provided for in the Section even by correspondence and from a distance, as it is not legally necessary that he should take local and personal action.

41. Investigations by ordinary Police in the spheres of special branches of the Police.

(1) Any kind of work for which special branches of the Police exist, e.g. Prohibition staff, Anti-Gambling Squads, the Anti-Corruption Bureau, or the Criminal Investigation Department, does not cease to be a part of the ordinary Policemen's duty, just because special staff " has been appointed to give special attention to that work,

(2) Every Police Inspector and Sub-Inspector must realise that the work in question is a part of his duties, and if he does not carry out his duty by getting the necessary information and

working it up and by helping the special staff in that work, he and his subordinates will be held responsible for neglect of duty. He should in turn, see that his subordinates realise this position.

42. ***Duty of the Unarmed Police to Supervise armed Police.***-(I) The armed Police are, in effect, the instruments of the unarmed Police organisation, and it is the duty of the latter, in non-technical matters affecting administration, to see that the armed Police perform their duties with due commonsense and diligence. It is essential that this should be clearly impressed on all unarmed Head Constables. It will not be open to an unarmed Head Constable in charge of an Outpost, for an instance, to maintain that he is not responsible for the alertness of an armed party on duty in his area.

(I. G.'s No, 11, dated 17th September 1943)

(2) In order to prevent men of Special parties going remiss at their posts, it is imperative that these parties should be regularly checked and relief invariably provided.

(I. G.'s Cir. No. G/1909/1446, dated 30th March 1973)-

43. Responsibility for preventing railway accidents --(I) While responsibility for , preventing accidents at level crossing and elsewhere on the railway rests with the railway servants, Railway Police Officers should, whenever any inquiry discloses the existence of a danger to the public, take steps to bring the fact prominently to the notice of the station master, or higher authority concerned,

(I, G.'s No, 11, ~dated 8th March 1929)

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(2) One of the measures that may appropriately be taken for the protection of the railway, track within the State is to make a systematic attempt to impress on the inhabitants of the villages in the vicinity of the railway lines, that they are responsible for safeguarding the railway track in their areas. The followings steps should be taken in this regard.

(i) District Magistrates should instruct the Block Development Officers and Officers of local bodies to educate the residents of villages on these lines.

(ii) District Magistrates should also give this matter their pointed attention during tours and instruct Deputy Collectors, Mamlatdars and Village officers to impress on villagers their responsibility in this regard.

(iii) The Commissioner of Information and Tourism, should issue some posters and conduct propaganda on the subject.

(G.C., H. D., (Spl.), No. SB/RSM-1357, dated 23rd June 1959)

CHAPTER-II
MAINTENANCE OF ORDER

44. ***District Magistrate's Responsibility*** : The District Magistrate is responsible for the peace of his district, and he should report any serious interruption of it to Government. A copy of every such report should be sent to the Inspector-General of Police.

(G. R. J. D. No. 6577, dt. 27th September 1900 and G.L. H. D. No. 87/3-I, dated 30th June 1954)

45. ***Prompt reports to Government relating to riots.***-(I) In order that Government may have the fullest and earliest intimation of the occurrence of any serious riots, District Magistrates should immediately report any such occurrence within their districts by telegram to the Government of Gujarat, Home Department (Special), and in doing so, should give information, as far as possible, on the following points:-

- (i) The origin or cause of the riot.
- (ii) The persons or class of persons who began it.
- (iii) The course of the riot.
- (iv) How it terminated or was suppressed.
- (v) If suppressed by force, by what force and how; and if resort was had to fire-arms for its suppression, what cartridges were used; and particularly whether the orders of Government against the use of blank cartridges were observed.
- (vi) If military force was used, how many soldiers of the Indian Army were called out and whether to disperse the rioters or to arrest and confine any of them or to maintain order after the riot.

(vii) The condition of the place and the feeling of the population on the termination of the riot, whether further disturbances are expected and whether adequate precautions have been taken.

(viii) The number of killed and wounded.

(G. C., J. D., No. 8423, dated 4th December 1895)

(2) While submitting report as above on main incidents, reports on connected or ancillary incidents should also be furnished. As an example, if a person arrested in a riot happens to sustain injury due to whatever reasons while in Police custody, report on the circumstances under which the injury was sustained, action taken if any, and likely repercussions of the incident, if any, should also be furnished.

(I. G. P.'s Cir. No. G/1909/1609 dated 30th October, 1972)

46. **Special reports of important events.**-(I) (a) All matters of the kind specified below should be immediately reported to Government in the Home Department by "priority" signal or telegram:-

(i) Riots which involve a serious breach of the public peace. (In reporting, the instructions issued in the preceding Rule should be closely followed).

(ii) All collisions between Foreigners of all classes and Indians, including shooting accidents but excluding alleged assault of any kind regarding which there is no confirmation and assaults of a positively insignificant character.

(iii) Outrages which have a political aspect, including any act of violence or attempted violence directed against persons in authority or connected in any way with factious associations or class agitation.

(iv) Every serious encounter with dacoits in which the Police or other persons in authority are wounded or killed, even though the case is being dealt with by the ordinary Police force and does not indicate any likelihood of any dangerous outbreak of crime.

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(v) All other events which have a political or administrative importance, such as strikes.

(b) All wireless messages or telegrams about any agitations, riots, communal disturbance, Police firings, cane charges, Gheraos, students unrest, etc., addressed to HOMSEC, should also be repeated to the Minister (Home) and the Deputy Minister (Home).

(G. L., H. D. (Spl), No. SB. I/PO1. 1068, dated 23rd September 1968)

(c) Whenever any offence is likely to attract attention of the press/public, all relevant details should invariably be furnished as precisely as possible in a signal so that fairly correct idea of the available facts can be gathered by the Inspector-General of Police. When the motive for the commission of any offence is not known at the time of the despatch of such a signal, the same should be intimated by a further signal as soon as it is disclosed.

(I. G.'s Cir. No. G/1909/73/1659, dated 24th April, 1973)

(2) The preliminary signal/telegraphic report should invariably be followed by a further report by post, supplementing or correcting the former, as fuller information becomes available. If all details have been sent in the telegraphic report or signal, it is not necessary to follow it up by a postal report.

(3) In cases which come under the head of "Outrages which have a political aspect", the local civil officer should, even when no military officer, soldier or follower is concerned, send an intimation of the occurrence to the Officer Commanding the station, if troops are stationed there, or to the General Officer Commanding the district if no troops are so stationed, even though the co-operation of the military authorities is not required. The detailed report addressed to Government upon any such occurrence need not be communicated by the local civil officer to the local military authorities, unless the co-operation of the latter is sought.

(4) The duty of sending reports under sub-rule (1), except para (c), devolves on the District Magistrates, who as being generally responsible for the peace and well-being of their districts, are or should be at once placed in possession of information of such occurrences.

(5) Any occurrences of the nature specified above should be reported at once to the District Magistrate, who will be the ordinary channel for conveying the information to Government; but in urgent cases and when the District Magistrate cannot at once be communicated, with, officers must use their discretion as to reporting direct to Government in the Home Department, endorsing copies to the concerned Deputy Inspector-General and the Inspector-General of Police.

(G. Rs., J. D., No. 4810, dated 13th July, 1898 and 2159 dated 23rd March 1899, G. R., G. D., No. 1987 dated 9th May 1899, G. Rs., H. D. No. 4403, dated 25th June, 1900; 6123 dated 7th September, 1900; 223, dated 10th January; 1901; 1594, dated 11th March 1901; 48, dated 4th January 1902 and I. G.'s No. 2334-A, dated 7th February 1920 and G/1927/72/1188, dated 28th September 1972)

(6) (i) As long as the disorder or the likelihood of it persists, Superintendents of Police should send to the District Magistrate a daily report regarding matters mentioned in Sub-rule (1) above. Copies of such reports should be despatched simultaneously to the Inspector-General of Police, the Range Deputy Inspector-General of Police, the Deputy Inspector-General of Police, Criminal Investigation Department (Intelligence) and the Superintendents of Police of neighbouring districts and railways and with regard to incidents mentioned in clause (iii) of sub-rule (1) to the Officer Commanding the station where troops are stationed or to the General Officer Commanding the district when there are no troops so stationed. Copies of important reports should be endorsed direct to the Secretary to the Government of Gujarat, Home Department, and in case of doubt as to its importance, an additional copy should be endorsed to the Inspector-General of Police, who will forward it to Government, if necessary.

(I. G.'s No. 2355 dated 29th April 1947, and 20th May 1948, No.6 dated 20th February 1930 and No. 2355 dated 6th September, 1946 and 29th April 1947)

(ii) In order, however, to keep Government promptly informed of the situation in districts and to avoid unnecessary duplication of work, Superintendents of police should consult their District Magistrates and if they consent, address direct to the Secretary to the Government of Gujarat, Home Department, and to other officers mentioned above copies of their daily reports to the District Magistrates. If the District Magistrate or other officers have any remarks to make on the Superintendent's reports they may do so by a separate reference to Government and send copies thereof to all concerned. Superintendent of Railway Police should address the report direct to the Secretary to Government, Home Department, and send copies to the Inspector-General, the Deputy Inspector-General, Criminal Investigation Department (Crime and Railways) and the Range Deputy Inspector-General concerned.

(I. G.'s No. 2355 dated 20th May 1948)

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(7) The orders in sub-rules (1) to (6) above do not relieve Superintendent of Police of the responsibility of reporting by telegram or wireless such occurrences of the kind as require the immediate attention of higher authority.

(8) It is as important to report the imminence of riots, strikes or other forms of disorder as their actual occurrence. .

(9) As regards calamities such as an earthquake, flood, fire, frost, etc., the Village Talati-cum-mantri should submit his report regarding such a calamity simultaneously to the Mamlatdar, the Deputy Collector and the Collector immediately after it occurs. In villages in which there is no Talati-cum-mantri or from which the Talati-cum-Mantri is absent on the date of occurrence of the calamity the Police Patel of the village should submit the report regarding the calamity in the same way as the Talati-cum-Mantri. If the calamity occurs in a city, the local Sub-Inspector of Police in the

city should submit the report regarding its occurrence to the Mamlatdar and the Collector simultaneously.

(I. G. 's No. 8787-A dated 26th June 1916 and A. C. dated 12th May 1921 and G.C., P. & S.D., No. 2266/34, dated 6th February 1941).

(10) If there is a doubt as to which of two officers should report an incident, both should send such information as may be available, in order that the risk of delay may be avoided. For instance, if the Magistrate of a district where troops are stationed should receive intelligence of an affray in which they were concerned even beyond the limits of his jurisdiction, he should acquaint Government without loss of time with the facts as brought to his knowledge, though the responsibility of the local authority for compliance with the standing orders will not be affected thereby.

(G. C., H. D. No. 924-29-Confl., dated 25th January 1921).

47. **Strikes and lockouts.**-(I) All District Magistrates, the Commissioner of Police, Ahmedabad City and the Superintendent of Police, Western Railway, Baroda, should submit to the Secretary to Government, Education and Labour Department, Sachivalaya, Gandhi-nagar, a report in Form No.1 of Appendix I (with a separate report for each strike or lockout) immediately on the occurrence of the strike or lockout within their respective jurisdiction.

(2) Wherever the situation is likely to become serious, the District Magistrate concerned or the Commissioner of Police, Ahmedabad City, should send a report to the Minister of Labour, Government of Gujarat, as also Secretary to Government, Education and Labour Department, Gandhinagar, by telegram.

(3) The Commissioner of Police, Ahmedabad City, should send daily reports to the Minister of Labour direct in case of every strike/lockout in his jurisdiction and during the pendency of the strike/lockout. Post copies of these reports should be sent to the Secretary to Government, Education and Labour Department, unless the case falls under sub-rule (2) in which case telegraphic reports should be sent to him.

(4) Similar reports should be sent about any apprehended or threatened strike/lockout affecting 100 or more workers.

An apprehended strike means a situation in which the Government authority, the employers or the employees' organisation in an industrial area has reason to believe that a strike would, in all probability, materialise. A threatened strike means a situation in which the employees either through their organisation or acting by themselves, make their intention to go on strike known to the appropriate authority either by giving a notice of strike or by oral intimation.

(5) The reports mentioned in sub-rules (1) and (4) above, should be sent confidentially and should be followed by subsequent daily reports showing the trend of events until the strike or lockout is ended. The end of every strike or lockout other than one involving less than ten workers should be communicated by telegram.

(6) Copies of the report sent to the Secretary, Education and Labour Department in the prescribed form, should be sent to the Minister of Labour with the least possible delay and also to : -

The Secretary to Government, Home Department (Special).

The Commissioner of Labour.

The Deputy Commissioner of Labour. C/o Office of the Commissioner of Labour.

The concerned Assistant Commissioner Labour, Ahmedabad/Baroda/Surat/Rajkot/Bhavnagar (in whose jurisdiction the strike / lockout has occurred).

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(7) Copies of reports of strikes/lockouts in respect of organised industries in public or private sector should also be sent to the Industries Commissioner.

(8) Copies of reports of strikes and lockouts which involve 1000 or more workmen may be sent direct to the Secretary to the Government of India. Ministry of Labour Employment and Rehabilitation, New Delhi, and the Director, Labour Bureau Simla, in the prescribed form. Information by telegram may be sent to the Government of India in cases where intervention by the Government of India may be possible or necessary.

(9) In case of a railway strike the Superintendent of Police, Western Railway. Shoul send a copy of his report also to the Inspector-General of Police, Gujarat State.

(G.C., E. & L. D. No. IDA-1070/C/287-JH, dated November 1972).

(10) All Superintendents of Police should report at once to the District Magistrate any occurrence of the nature specified above. The District Magistrate will be the ordinary channel for conveying the information to Government; but in urgent cases and when the District Magistrate cannot at once be communicated with Superintendents of Police must use their discretion as to reporting to Government direct.

(11) A copy of the report submitted by the Superintendent of Police to the District Magistrate should be despatched immediately to the Inspector-General of Police the Range, Deputy Inspector-General of Police and the Deputy Inspector-General of Police Criminal Investigation Department (Intelligence).

48. Reports regarding hunger-strikes of prisoners: (I) Information regarding prisoners (including under-trial prisoners) and detunes, whether political or otherwise, going on hanger strike, should be communicated to Government by District Magistrates or Superintendents of police immediately by wireless.

(G. C., H. D., No. S/90-C, 3484, dated 18th August 1948).

(2) Refusal to take food or "congee" or other nourishment by prisoners (including under-trials and detunes) for less than 24 hours should not be treated as hunger strike and in such cases no report need be sent to Government. If, however the prisoners continue to refuse to take food etc., after 24 hours, such refusal should be treated as hunger-strike and the usual reports should be sent to Government immediately by wireless.

(G. L., H. D., No. S/90/C-3765-C, dated 29th September 1952).

49. Police action during industrial unrest : The following orders should be followed by the District Police on the occurrence of trouble among the labouring classes which tends to or lay eventuate in a strike:-

(1) As a general rule, trouble among the labouring classes is due to economic causes and when a strike actually occurs, it is the primary duty of the Police to preserve law and order and not to interfere in or arbitrate on the economic issues which may be involved.

(2) In particular, it is the duty of the Police. (a) to prevent breaches of the peace. (b) to secure the safety of property, (c) to secure the safety of non-strikers; (d) to deal with any cognizable cases of which they may obtain information and (e) to obtain information on the points referred to in Sub Rule (5) below.

(3) With a view to carry out the first three of these objects the Sub-Inspector or, if the city is in charge of an Inspector or Sub-Divisional Officer that officer shall give the earliest possible warning to his Superintendent of the likelihood of a strike in his charge and the earliest possible intimation of its occurrence, should it eventuate. The report should supply details of the number of men affected, the causes of the strike and the extent of disorder anticipated. The Superintendent will then take such steps, as may be necessary to secure the objects set forth in clauses (a). (b) and (c) of Sub-Rule (2) above. Should the Police of the district be insufficient to cope with the situation, the Superintend should apply to the Inspector-General for drafts from other district or, in emergency, direct to the Superintendent of the nearest district Headquarters for assistance.

(4) With reference to clause (c) of Sub-Rule (2) above. it is to be remembered that peaceful picketing to prevent by persuasion, as distinct from force or intimidation to non-strikers from resuming work. is not an offence, unless the persons prevented from their work are public servants within the legal definition of the words.

(5) With reference to clause (e) of Sub-Rule (2) above it is the duty of the Police to ascertain the political issues which may underlie or possibly dominate the economic causes of the strike. Information on the following points should be carefully collected:-

- (a) The names of any instigators of the strike not directly interested in its avoid economic objects.
- (b) The extent to which such instigation is responsible for the strike.
- (c) Communication and concert of action with the leaders of other strikes.
- (d) The fullest possible information regarding the direct and indirect causes of strikes that may be avowedly political.
- (e) The existence of literature inciting to strike.
- (f) The probable local political effects of the strike.
- (g) The numbers of strikers and the classes to which they belong.

(G. L., H. D. SD 62, Dated 14 January 1921.)

(6) On the occurrence and during the continuance of a strike, the Superintendent of Police will submit to the District Magistrate daily a report on all developments, containing all available information on the foregoing points. Copies of the report should be sent to the Inspector-General of Police, the Deputy Inspector-General of Police, Criminal Investigation Department (Intelligence) and the Range Deputy Inspector-General of Police.

(G. L., H. D. No. SD 62, dated 14th January, 1921 and I. G.'s No. 2334-A, dated 27th February 1920).

50. **Police action during railway strike and other eventualities on railway.** : Schemes for different occasions including strikes have been incorporated in the (i) Police Railway Security Scheme. (ii) Western Railway (Strike Scheme) and (iii) Police Railway Strike Scheme, which are being revised and brought up to date from time to time. All Police Officers should get themselves conversant with all the instructions contained in these schemes so far as their limits are concerned and should be ready to face any eventualities likely to occur in any part of the Western Railway without loss of time.

51. **Maintenance of law-order during general Elections.** : It is necessary to make sure that all candidates are able to hold their Election meetings peacefully. Necessary Police arrangements should be made to ensure that Election meetings are not broken up by mischievous and rowdy elements and those who indulge in the mischief should be tactfully but firmly segregated and advised not to cause further disturbance under pain of being proceeded against the relevant Sections of Bombay Police Act. Indian Penal Code, and / or the Representation of the People Act. 1951. If there is likelihood of parties, which do not hope to get much support, trying their best to create disturbances before the Election, It should be for the Police force to make sure that they do not succeed in this. It should be seen that the minorities which may be harassed in the exercise of their freedom of vote are given full protection. It is necessary to make thorough arrangements for peaceful voting on the day of General Elections. The Commissioner of Police and the Superintendents of Police should contact the Returning Officers in their areas and obtain information of the places where polling booths are to be erected, and then decide what Police arrangements are necessary. All shouting of slogans in or near the polling booths should be prohibited. It should be seen that each person is able to vote as he likes and he is not interfered with in any way by persons working for any of the candidates or parties. The Police have the power to search voters to make sure that they do not take away the voting paper with them, and this power should be used in suitable cases, as it is one of the commonest election mal-practices to take away the voting paper and to sell it to representatives of the candidates. A few judicious searches of persons leaving the polling booths should set the matter right.

(G. C. L., H. D. NO.SD.1053. dated 20th November 1957 and G. C., H. D. No.SBI/RAF-1057, dated 14th December 1957).

52. **Instructions for the guidance of officers in regard to communal disputes about processions on public roads or at public places.** : (1) The public have a right to pass in procession with music along public roads and places. This right is, however subject to the known rights of any community or individuals and to the exigencies of law and order.

(2) When the respective rights of the parties concerned are the subject of a judgment of a competent Court or of an award of a recorded compromise, these should be strictly respected and enforced. In the absence of such clearly defined rights, the practice prevailing over a number of years should be upheld any orders regularly passed by authorities over a period of over seven years should

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not be departed from in such cases, except where there is clear and unambiguous evidence of a contrary practice in the past. In regard to religious processions like Moharrum, Ganapati, Dasara, Rath-yatra, etc., unless any requirements of decrees of legal order are to be complied with, they should try and adhere, as far as possible, to the customs with regard to routes, etc., and not make any departure except with the previous sanction of Government.

(3) Where the record of the past gives no certain guide or where it is necessary to regulate a new procession, in order to respect the sentiment of Muslims, no music or loud noise should be permitted in front of a mosque and for about 45 meters on either side of it only during prayer time. Such prohibition is not necessary with respect to Hindu temples, because Hindu sentiment does not require it.

(4) The fundamental need is to see that the rights and long-standing practices clearly recognizable are allowed to be exercised without being affected by any threats of force or intimidation. All communities must be clearly made aware of this position and should be given no impression that anything could be gained from officers, by insistence or by the show of force, or that the officers are siding with any particular party on the merits of a dispute. Officers should refrain from any conduct which may possibly be construed as a departure from this policy. Thus officers should not discuss the merits of a dispute with the parties, either separately or jointly, with a view to arriving at a settlement thereof. There is, however, no objection to making all parties aware that any settlement or compromise arrived at by themselves would be respected.

(5) If it is apprehended that the enforcement of the approved practice, with respect to any procession will lead to a breach of the peace, it is the duty of the officers concerned to take adequate precautionary measures.

(6) Such precautionary measures would include action on the following lines:--

- (a) The responsibilities of leaders on both sides in the matter of the maintenance of law and order should be stressed at a preliminary stage.
- (b) Any newspapers carrying on communal propaganda should be warned against indulging in any action likely to lead to further disagreements between the communities; if it becomes necessary, orders may be passed against them in this matter under Section 144, Criminal Procedure Code.
- (c) If the situation makes it necessary, sufficient additional Police may be requisitioned from the Inspector-General of Police.
- (d) Before the situation becomes serious, persons likely to commit a breach of the peace should be arrested, if necessary. Care should, however, be taken that leaders of communities or aspirants for leadership are not converted into martyrs by having been arrested. After the procession has passed and the immediate trouble is over, the arrested persons should be released.
- (e) If at any time it is found that mosques or temples are used for harbouring *goondas* or storing stones or brickbats, a search should be made preferably with the assistance of Muslim or Hindu Policemen, as the case may be, and persons suspected of an intention to create a breach of the peace should be arrested.
- (f) The Superintendent of Police should maintain a list of religious and other places enroute of a procession where miscreants are likely to gather and have a watch on these places some days before a procession is to pass. This will help in preventing any trouble.

(I. G.'s Cir. No. G/1909/COM/72/1527, dated 20th October, 1972).

- (g) The men posted at such religious places enroute should remain there till the procession passes peacefully. This will prevent anyone from the religious places attack-ing the procession and then locking the door from inside.

(I. G.'s Cir. No. G/1909/1734, dated 14th November 1972).

(7) No orders should, however, be passed without the prior sanction of Government if they have the effect of encroaching on the approved rights of any party.

(8) Prosecutions should not as a rule be filed except for offences involving violence.

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Maintenance of Order

(9) When procession, either religious or others, are taken out, the precisionists sometimes indulge in shouting objectionable anti-Hindu, anti-Muslim, pro-Pak or such other slogans which might inflame communal passions and create a serious law and order problem. In such cases, the Commissioner of Police / Superintendent of Police should immediately send a detailed report to the Government and should immediately consider prosecution under section 153-A Indian Penal Code of the persons responsible for the slogans.

(G. C., H. D. (Spl.) No. SB. I/COM/1569/10866 dated 3rd February 1970).

53. **Preventive measures in case of threatened communal trouble.**-(I) (a) It should be impressed upon those entrusted with the task of maintaining law and order that there should be no sense of complacency anywhere and that utmost vigilance should be continued so far as communal incidents are concerned. It should be ensured that the sources of intelligence should always be kept on the alert. All officers concerned should pay personal attention to even the smallest incident of a communal nature that may come to their notice or reported to them, so that timely action could be taken to scotch the trouble effectively at the very beginning. In respect of communal activities or actual communal disturbances, there should be no hesitation to take the most stringent action necessary, from the very beginning, and to take recourse to the powers provided under the law. It is imperative that the authorities concerned should eschew any tendency towards slackness at the very early stages of developing tension or trouble and they should take adequate preventive measures at the earliest stage instead of waiting for an actual flare up.

(b) Timely and adequate notice should be taken of any intemperate and inflammatory public utterances as well as writings which foment communal disorder or promote tension and communal disharmony and prompt action according to law should be taken, wherever necessary.

(G. C., H. D., (Spl.), No. SB. I/COM. 1069/1070 dated 20th December 1969).

(2) (i) The system of intelligence should be built up and improved so that (a) the activities of individuals directed to acerbating communal feeling should be watched and when necessary, appropriate action taken and (b) information is received in time in respect of even minor incidents, meetings likely to lead to breaches of the peace, etc.

(ii) Immediate enquiry should be made by a responsible officer even in respect of minor incidents having a communal aspect so that precautionary measures can be adopted and suitable action taken against any mischievous elements.

(iii) Special vigilance should be exercised in respect of villages or towns having a communal history or where in the recent past, incidents have taken place.

(iv) Protection should be afforded to communities which may be the subject of harassment or boycott. Efforts should be made to compose differences between the communities, and Peace Committees established, if necessary.

(v) Prompt and impartial investigation should be made and the wrong-doers brought to book quickly. This will help to restore confidence in the minority community if it happens to be aggrieved party.

(G. C., H. & C.S.D. (Spl.), No. SB. I/FIR. 1061/C-7475 dated 15th April, 1963).

(vi) The Government has issued instructions to all the Field Officers under various Government Departments, Panchayats and also other social and cultural organizations that, they should once contact the nearest Police Station Officer whenever they notice any signs of communal trouble brewing or tension etc., which in their view are likely to develop into a major communal incident and give all the available information that they have. All the Police Officers should, therefore, remain in close contact with such Field Officers or social workers and utilise them for securing information and intelligence about communal tension.

(G. Ls. H. D. (Spl.), No. SB. I/COM. 1067/9409 dated 28th November 1967).

(3) It is not necessary to invoke the provisions contained in Section 4 of the Arms Act, 1959, as there is already adequate provision in Section 37 of the Bombay Police Act, 1951, for

imposing a ban on carrying of arms, lethal weapons, sticks, lathis, or any other article, which may be capable of being used for causing physical violence etc., as and when found necessary by the local authorities, as a preventive measure, However, the provisions contained in Section 4 of the Arms Act, 1959, should be kept in mind by the local authorities and they should move Government for issuing a notification under this section for imposition of licensing restrictions for acquisition, possession or carrying of arms other than fire-arms, if the circumstances so demand and only when it is felt that use of Section 37 of the Bombay Police Act, would not be effective. .

(G.. C. L., H. D. (Spl.), No. SB. I/COM/1069/12054, dated 29th December 1969).

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(4) There should be no hesitation in arresting *goondas* at the earliest apprehension of a disturbance of communal nature or otherwise as a measure of preventive action. It is essential that the list of *goondas*, who are either themselves communal-minded and are, therefore, likely to incite communal passions, or are not themselves communal-minded but are, however, prone to take advantage of any communal trouble for their own nefarious purposes like looting property, molesting women, taking their private revenge, spreading terror among neighbours with a view to extorting money etc., is kept upto-date and is revised every six months. The Superintendents of Police / Commissioner of Police should see that this list is kept upto-date.

(G. C., H. D. (Spl.), No. S.B.I./COM 1069/12055 dated 15th December, 1969).

(5) Over and above the list of Goondas, another list of persons of extremist political workers and communalists who do not necessarily come under the category of conventional "Goondas" because of the lack of previous convictions and other requirements, but who are likely to instigate and incite people against members of the other community or likely to exploit incidents between two communities should also be prepared for action, should any communal trouble break out. It is really this class of persons, who pose a greater threat during communal trouble. Though they themselves largely remain in the background, they play a mischievous and dangerous part in inciting in others rabid communal frenzy, as such agitations gather momentum. This list should be prepared with utmost care, scrutiny and in consultation with the District Magistrate and Superintendent of Police/Commissioner of Police.

.(G. C., H. D. (Sp1.), No. SB. 1/COM/1070/7023 dated 4th July, 1970).

(6) (a) All officers should impress on their subordinates the necessity to choose the proper type of people to assist the Police in easing all communal tensions and specifically to avoid known bad elements even if they proffer their good offices. .

(I. G., D.O. No. G/1909/2190, dated 8th October, 1971),

(b) The Police should have a list of respectable and reliable citizens and the local Police should be in touch with them occasionally so that when the need arises, the assistance of such people can be availed of for restoration of peace or prevention of riots or maintenance of harmony between the communities.

(G. C., H. D. (Sp1), No. S.B. III/COM. 1072/5060 dated 6th February 1973).

(7) Whenever the atmosphere is vitiated by communal writings and speeches, prompt and adequate action should be taken against those responsible, so as to nip the mischief in the bud. Sections 153-A, 295 and 295-A of the Indian Penal Code and the Preventive Sections of the Code of Criminal Procedure can be invoked to deal with those responsible for prompting communal hatred and the Maintenance of Internal Security Act can also be used in appropriate cases. Half-yearly reports of the action taken, if any as herein stated should be submitted to the Government through the District Magistrate.

(G. L., H. D. (Spl), No. S.B. I/HMR/1057-1, dated 19th January 1957 and G.C., H. D.(Spl.), No. SB. I.P./35 dated 10th September 1959).

(8) (a) Whenever there is an occasion to proceed against an editor or a manager of a newspaper for offences committed by him in his capacity as the editor or the manager of the paper. Government orders should be obtained immediately before proceeding against him, except in communal matters as specified hereunder.

(G. C.. G. A. D. (Home), No. MIS.1060-N, dated 2nd August 1960).

(b) A close watch should be maintained on the writings in the newspapers, periodicals, magazines, etc., and if any publication is found indulging in writings promoting enmity between different sections of the people, necessary action should be taken under section 153-A or 295-A of the Indian Penal Code. The powers under section 196 of the Criminal Procedure Code have been delegated to all the District Magistrates/ Commissioner of Police, in order to make it possible for them to take prompt action in the matter.

(c) ***The District Magistrates/the Commissioner of Police*** should see that whenever communal and provocative speeches are made, suitable warning should be issued to the person(s) concerned. Whenever may be his political status, that strict action will be taken according to law and that Government would not tolerate such activities. If the warning has no desired effect, action according to law should be taken. Whenever such warnings are issued, a report should be made to Government immediately. .

(O. C., H. D., (Spl.), No. SB. I/COM/1068/2677 dated 28th June 1968).

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Maintenance of Order

(d) The activities of communal bodies and their fanatical leaders should be kept continuously under close watch and whenever any objectionable and actionable activities come to notice, the fact should be reported to Government and action according to law should be taken against them, if their activities are likely to endanger communal harmony.

(I. G. C., H. D. (Spl), No. S.B.I/COM/1068/4688 (ii) dated 28th August 1968).

(9) (a) All officers should carefully scrutinise the writings in the newspapers in order to find out whether they publish (i) exaggerated news and alarming head lines about communal disturbances at any place in India or Pakistan, (ii) views likely to arouse communal passion and feelings of enmity and hatred between different classes, or (iii) deliberate and malicious writings intended to outrage the religious feelings of any class of citizens.

(b) Whenever any such objectionable matter is noticed in any paper or periodical they should take appropriate measures as under:-

(i) The editors and publishers concerned should be called by the Commissioner of Police/District Magistrate and explained the harmful consequences which such "slanted" news or views are likely to lead to, to persuade them, with all the force at their command, to see reason, and to advise them to refrain from publishing anything likely to provoke the religious animosities of any community and thereby disturb public peace. This should be done immediately any objectionable writing comes to notice;

(ii) In cases where persuasion fails, the desirability of taking action, under the Maintenance of Internal Security Act or the Indian Penal Code, may be considered;

(iii) A watch should be maintained on leaflets, pamphlets or booklets in which the writers indulge in communal writings of an inflammatory nature.

(c) Another source of communal hatred which has to be guarded against is the inciting or alarming speeches that may be delivered by some political or religious leaders. Such speeches have a very dangerous potentiality. Whenever information is received that such a gathering or meeting is likely to be held either of Hindus or Muslims, the Commissioner of Police /District Magistrate should call the leading persons who are likely to make speeches and advise them to exercise restraint in their speeches and make the speakers realise the likely adverse reaction if they choose to indulge in unrestrained utterances.

(G. C., H. & C. S. D. (Spl), No. SB. I/COM.1164/586 dated 15th April 1964).

(d) If any news or views in the press are considered objectionable and are required to be brought to the notice of the Press Council for action as visualised under the Press Council Act, 1965, the full details of such objectionable news and views should be furnished to the Government in the Home Department:

(G. L., H.D. No. BAP. 1467/3Q-A, dated 21st March 1967).

(10) It is necessary to keep close watch on the writings in the newspapers and on public speeches. It is equally necessary to prevent particularly the misuse of wall-boards and posters for this purpose. The District Magistrates and the Commissioner of Police, Ahmedabad City have been authorised to take action under section 153-A and 295-A of the Indian Penal Code against those who promote or attempt to promote communal disharmony by their writings or by their speeches and

that it is not necessary to obtain prior approval of Government, except in the case of following newspapers:-

- (1) Times of India (Ahmedabad)
- (2) Indian Express (Ahmedabad)
- (3) Western Times (Ahmedabad)
- (4) Jansatta (Ahmedabad & Rajkot)
- (5) Sandesh (Ahmedabad)
- (6) Gujarat Samachar (Ahmedabad)
- (7) Prabhat (Ahmedabad)
- (8) Lok Satta (Baroda)
- (9) Phoolchhab (Rajkot)
- (10) Gujarat Mitra (Surat)

(G. C., H. D. (Spl), No. SR. J/COM/.1070/6172 dated 14th July 1970)

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(11) All officers should keep in mind that the Police are not partisans in any such affairs and their sole aim should be to ease tensions and not to create them or try to take punitive action themselves. Even when events are forced on them and they have to act, they should act with decorum, decency and without hurting the religious susceptibilities of various communities, e.g, if a temple or a mosque is to be entered, one has to take off one's shoes; while inside a mosque, one has to cover his head, etc. and when religious gatherings meet in contravention of any law or local rules, it is always better to wait for the gathering to end before considering action. All officers should impress upon their subordinates the need for tact in dealing with such situations and to do nothing themselves which would rightly or wrongly incense the feelings of the people.

(I. G.'s Cir. No. G/1909/2189 dated 8th October, 1971).

54. **Integration Committees and Moholla, Committees.-(I)** Integration Committees.

(a) Permanent integration Committee or "Ekta Samiti" should be constituted at the District level in each district and also in important cities such as Ahmedabad, Baroda, Surat, Rajkot, etc.

(b) (i) Composition in Districts.-The District Magistrate should be the Convenor of the District level Integration Committee. The Superintendent of Police, the District Development Officer and the District Educational Inspector should be other official member the non-official membership should consist of the respective Members of Parliament! Legislature and about ten other public spirited persons representing different sections of the population. The total strength of the committee should normally be 25. However, wherever found necessary and expedient, the District Magistrate may raise the membership upto 30.

(ii) Composition in Ahmedabad City.- The composition of the committee for Ahmedabad City shall be as under:-

- | | |
|--|------------------|
| (1) Mayor | Chairman. |
| (2) Deputy Mayor | Vice-Chairman. |
| (3) Municipal Commissioner | Member. |
| (4) Commissioner of Police | Member. |
| (5) Commandant-General Home Guards | Member. |
| (6) Deputy Commissioner of Police,
Headquarters. | Member Secretary |
| (7) President, Mill Owners' Association. | Member. |
| (8) President, Gujarat Chamber of
Commerce and Industries. | Member |
| (9) President, Ahmedabad Textile Labour Association. | Member |
| (10) Prominent citizens (including Members of Parliament &
Members of Legislative Assembly.) Educationists, | |

social workers and leaders of political parties to be selected by the Commissioner of Police in consultation with the Mayor.

(G. C., H. D. (spl.), No.SB. III/COM. 4072/5616, dated 2nd January 1973).

(iii) Similar Committee should also be constituted for important cities and places like Surat, Baroda, Godhra, Palanpur, Amreli, Petlad, Rajkot and Veraval. If such Committees are considered necessary at any other places or towns the District Magistrate is free to constitute them keeping in view the communal history of that place.

In the cities, the Mayor or the President of the Municipality should be the Chairman of the Committee. The District Magistrate and the Superintendent of Police should be the members of this Committee. Public spirited persons representing various sections of the population including Commerce, Industry and Labour shall be other members of this Committee. Members should be selected in such a way as to represent 3.11 important localities of the town. The strength of the Committee may vary from 20 in the smaller cities to about 40 in the case of Ahmedabad City. The composition suggested in respect of the Committee for Ahmedabad City may serve as model for other city Committees.

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(iv) The term of appointment of the non-official members should be of two years or till the Committee is reconstituted whichever is earlier.

(v) Where District level Peace Committees on ad hoc basis have already been constituted, they should be abolished and their place should be taken by the new permanent district level Integration Committees. This holds good also in respect of Ahmedabad and other important cities and places where Integration Committees or Ekta Samities are to be constituted on a permanent basis.

(vi) The Convenor or the Chairman of the Committee should see that the Committee meets regularly and performs the tasks envisaged for it. The Committee should meet at least once in a quarter. The secretariat services for the District Committee will be provided by the office of the District Magistrate and for the City Committees by the Municipal Commissioner or the Chief Officer of the Municipality, as the case may be.

(vii) A copy of the order constituting these Committees should be sent to the Government. Copies of the minutes of all the meeting of these Committees, whenever held, should also be sent to the Government soon after the meetings are held.

(G.C., H. D. (Spl.), No. S.B.III/COM.4070/449, dated 25th June 1971).

(c) (i) Functions.-These committees should continuously work for communal harmony, and should go into the factors responsible for the creation of tensions and should associate their work with other voluntary organisations like the Gandhi Peace Foundation and help the District administration in maintaining harmony between different castes and groups. Their functions should also include the holding of advance consultation with leaders of religious groups to ensure peaceful celebration of festivals and other religious observances of different communities and should endeavour to promote joint participation by all communities in the festivals and other religious observances.

(ii) In those districts and areas which are communally sensitive, a list of festivals should be prepared and preparations made in advance by the District Committees and Mohalla Committees for joint celebrations in a peaceful and harmonious atmosphere.

(iii) It would be desirable if the members of the District Committees make it convenient to meet the members of the Mohalla Committees occasionally and thus be in touch with the local situation and trends.

(G.C. H. D. No. S.B. 111/Com/470/449-II dated 30th December 1972).

(d) The members of the District/City Integration Committees should be issued badges by the District Magistrates/Commissioner of Police. The badges should be, as prescribed by the Government, on a piece of coloured cloth and should be kept with the District Magistrates/

Commissioner of Police to be distributed to the members when the need arises. The District Magistrates/Commissioner of Police should take adequate precautions against fictitious badges being made by some people. The expenditure on preparing the badges should be met by the District Magistrates / Commissioner of Police from their own grants.

(G. Cs.. H. D.. No. SB. III/COM-4070/449-II dated 30th December 1972).

(2) The formation of Moholla Committees is very useful especially for areas which have substantially mixed population and the existence of such committees may result localisation of quarrels that may arise between members of the communities which otherwise have a tendency to spread. Immediate steps should therefore be taken to constitute Mohollas Committees for Mohollas in important towns which have a substantially mixed population. The functions of these committees would be to see that conditions are not created which will disrupt the harmony of the residents of that Mohollas and to see that no large scale failure of social and communal harmony occurs. The persons selected for these committees should be respectable men who wield influence on the members of their community and whose advice would be listened to and acted upon by the residents of the Moholla. These Committees should not be large unwieldy bodies but may consist of not more than five persons depending upon the size of the population or the Moholla. Members of several Moholla Committees in a town or city may also meet occasionally to discuss problems common to them. These Committees may also seek guidance from the local Peace Committee wherever it is constituted. Such Moholla Committees should particularly be constituted in places where friction between the two communities had occurred in the past. The list of places for which such Moholla Committees have been constituted should be maintained by the officer concerned in the Police Station and the list should be revised from time to time.

(G. C., H. D. (Spl), No. SB. III/COI/ 1071/2113, dated 10th June 1971).

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Chapter 11

55. Measures to be taken during communal disturbances.-(I) Measure to Prevent communal disturbances.-(1) The Superintendents of police and weir suburbanite officers should be exercise maximum vigilance against We possibility of communal violence in any part Within their jurisdiction all possible measures should be taken with a firm hand to flip the trouble in the bud as soon as it occurs any where, both by the police as well as by we district/ sub-divisional /Taluka Magistrates.

(ii) The Police should open fire at the stage where it would be justified. It is emphasised that when resort to tiring becomes essential, the filling should be as effective and purposeful as possible.

(iii) The provisions of the Maintenance of Internal Security Act and the powers of arrest under other laws should be fully and promptly utilised against trouble makers and instigations.

(iv) In order that the Police may be free and able to meet the situation effectively whenever any communal trouble breaks out the services of Home Guards should be uul1sed for the routine functions of the Police such as traffic duties, etc.

(v) Arrangements should be made with the local Home Guards officers in such a way that the Home Guards can be mobilised at short notice whenever necessary.

(vi) The Government officials at all levels should take strong, determined and effective action against communal trouble without hesitation or fear. Any such bonatide action of any official will have the full support of Government.

(vii) The District Magistrate will be requested to advise discreetly ail newspaper managements in their Districts to retrain from publishing any sensational news about communal incidents, which are likely to have adverse repercussions. For newspaper of Ahmedabad City, necessary action will be taken through the Commissioner and Tourism.

(G. C., H. & C. S. D. (Spl), No. SR. I/COM. 1162./586 dated 24th March 1964).

(2) (i) While dealing with communal disturbance, the safety of life and property of every person in the country must be ensured at all costs and as such, there must be no hesitation on the part of the police to open tire effectively on and breaking up riotous mobs or on those intent on indulging ill acts of violence. All police officers down to the rank of Police Sub-Inspector should be

made to understand this clearly that while dealing with any communal disturbance any failure or hesitation to take such action will be punished as a grave dereliction of duty.

(ii) In dealing with communal disturbances the degree of restraint prescribed in the foregoing rule should be dispensed with and as stated above, there should be no hesitation or failure on the part of the Magistracy and the Police to resort to firing, provided the haring is legally justifiable and is necessary for controlling immediately the likely disturbances of a communal nature. In a disturbed communal situation, there is need for the Magistracy and the Police to act with a sense of greater urgency and decisiveness in dealing with unlawful assemblies that might attempt to attack the persons or properties of the members of the minority community and. Therefore, a decision to resort to firing, where necessary, should be taken at the highest available level, i.e., the senior Police Officer / Magistrate present on the spot should decide the stage at which fire should be opened. after due and proper consideration whether the situation would legally justify firing. Firing should be resorted to only after a sufficient and clear warning is given to the unlawful or the riotous gathering, which should be ordered to disperse or desist from committing unlawful acts. It should be ensured that the firing is strictly controlled and effective but not excessive.

(iii) The District Magistrate and the local Executive Magistrate should be kept informed of any trouble brewing so that they should, on receipt of such information, give their immediate personal attention to the matter and proceed to the spot as soon as possible, if the situation seems likely to develop so as to require the use of force.

(G. C., H. & C. S.D. (Spl.),_No. S.B. I/.COM-1164/586_dated_3rd April 1964)

(3) (a) Whenever there is a communal riot or a disturbance or an affray, the Commissioner of Information. Tourism, Ahmedabad, or the District Information give their concerned should invariably arrange to issue press notes at the end of every day in consolation with Commissioner of Police or the District Magistrate or the Superintendent of, Police the case may be, in order to give correct facts about the riot etc., and about the action taken by the authorities and to contradict all rumours or exaggerated press reports with the least possible delay, informing the public of the correct position. Press conferences, whenever necessary should be held explain the events that take place and the action taken by the authorities as this would also prove very useful in combating rumours and minimising unfounded reports that may float among the public.

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(b) A Committee consisting of the Range Deputy Inspector-General of Police, the concerned District Magistrate and the superintendent of police, and in the case of Ahmedabad City, the commissioner of police and one or two senior Deputy commissioner of police, should analyse all the major incidents or communal disturbances, riots and attrays, regardless of police haring which may take place their respective jurisdiction, and this committee should submit a secret analytical report to the Inspector-General of police, with a copy to Government for information. The Inspector-General of police will issue general directions as and when found necessary in the light of the experience gained as a result of evaluation of such reports. The Deputy Inspector-General of police, Criminal Investigation Department (Intelligence), should howere, continue to make analytical report of the incidents of police tiring as hithertofore.

(G. C., H. D. (Spl), No. SB.I-FIR.1567, dateo 15th May 1968).

(4) The need for maintaining communications is all the more necessary in times of emergency like major disturbances to law and order. The Commissioner of police / District Magistrates should, therefore, see that adequate protection is provided to the Post and Telegraphs employees and installations during disturbances so that the channels of communications remain open.

(G. c., H. D. (Spl), No. SB. I/COM. 1068/5332 dated.. 20th June 1968).

(5) Cases of officers and men who render prompt and valuable services m preventing or dealing with communal riots should be reported to Government, if their services are required to be recognised in any form. The form of such recognition should be recommended by the District Magistrate and the Superintendent of Police or the Commissioner of Police or the Inspector-General of Police, as the case may be, whenever considered necessary.

(G. C., H. D. (Spl), N\). SB. I/POL/1968/6994 dated 24th October, 1968.)

(6) (a) Whenever communal disturbances break out, prosecutions launched against the culprits involved in such disturbances should be pursued promptly and effectively so as to get the trouble-makers convicted as quickly as possible. The Assistant Public Prosecutors or other Police officials conducting such cases should always press for the imposition of maximum possible punishment on such trouble-makers when convicted by courts. The Police should also make all endeavours to unearth the conspiracy, if any, which might have been the cause of the communal riot, so as to break it up and recover arms or ammunition if secretly collected by such conspirators in furtherance of their intention to cause riots.

(G. C., H. & C. S.D. (Spl), No. SB. I/COM. 1164/586 dated 2200 May 1964).

(b) Criminal cases filed in connection with the incidents of communal disturbances, agitations, strikes, etc. should be withdrawn only after obtaining the permission of the Government.

(G. C., H. D. (Spl.), No. S.B.I/COM.1164/5368 dated 28th February 1966).

(7) In order to enable the Government to have a full appreciation of the communal incidents, the following details should be given immediately while reporting communal incidents: -

- (i) Number of persons killed or injured (community-wise break-up to be given).
- (ii) Number of Police officers killed or injured.
- (iii) Details of loss or damage to property.
- (iv) The community which gave provocation first or resorted to violence first.
- (v) Whether there was any pre-planning on the part of the Hindus or the Muslims and whether any organisations were behind it.
- (vi) Description of the incident.
- (vii) Steps taken by the Police.

(G. L., H. & C.S.D. (Spl.), No. SB. I/P.1/5739, dated 12th October, 1963).

(8) Quarterly returns of communal incidents should be sent in form No.2 in Appendix I, so as to reach the Government by the third week of the month succeeding each quarter. '

(G. L., H. D. (Spl), No. SB. I/COM/1068/9947, dated 25th October, 1968).

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Chapter -II

56. **Assaults on Police.**-(1) The tendency on the part of the public to take law into their own hands should be deprecated and put down firmly. It is necessary to create an atmosphere in favour of necessity of maintaining law and order. Courts should be urged to pass deterrent sentences against the accused of such cases. The convictions meted out to the culprits in such cases should be given wide and effective publicity, with a view to deterring people from the acts of assault on Policemen.

(2) (i) On receipt of a complaint of assault the officer-in-charge of a Police Station; should send the injured person to the nearest Medical Officer and get him examined by the Medical Officer. Before taking final decision on the question whether the offence is or is not cognizable. Hasty decisions to treat the cases as non-cognizable based only on the contents in the information received. Without obtaining medical opinion about the nature of the injuries inflicted should be strongly discouraged.

(ii) The Officer-in-charge of the Police Station, However, should immediately register offences without waiting for medical reports if he finds that prima facie a cognizable offence has been made out.

(I. G's Cir. Memo. No, 6892, dated 24th November, 1952: No. 6892-1, dated 21st April 1953 and

57. **Requisitioning of troops for queuing disturbances.**-(1) The maintenance of Law and Order is the function of the civil authority and as far as possible, this should be done with the aid of the resources available and with the reinforcements that can be obtained from the armed Police the Central Reserve Police and Border Security Force. It is not desirable to use the troops too frequently and too long as it would adversely affect their operational training and tend to undermine their morale. Unless the civil authority has reasons to believe that the situation would be beyond the control of the Police and other forces like the Border Security Force and Central Reserve Police available to them, calling in troops would not be justified.

(2) The civil officer calling for the aid of troops in quelling a riot should do so in Form No.3 in Appendix I. He is not authorized to interfere in any way with the formation or details of the force. the military officer being held responsible for the success of the operations to be undertaken; and it is for the latter and for him alone to judge in what manner the troops can effect the object which the civil officer has indicated, and to direct the force ill the execution of the service in which it is engaged.,

(G. R., J. D., No. 7237, dated 30th October. 1894)

(3) In cases in which military aid is thus requisitioned. the General Officer Commanding the Division should always be informed at the earliest possible moment of the objects and wishes of the civil authorities.

(G. R J. D.. No. 3224 dated 26th July. 1899).

(4) The civil authority when asking for military aid to quell disturbances etc., will indicate to the Divisional Headquarters the nature of the duties which are likely to be required: and the place at which the aid is required, But should make no suggestion as regards th strength and composition of the force.

(G. O., J. D., No 7550 dated 27th November 1917).

(5) Even when the troops have been requisitioned for the suppression of disturbances, the control of the measures remains with the civil authority. It does not imply abrogation or temporary suspension of Civil Authority. When the troops are called in to maintain law and order or for the prevention of the breach of peace, the local Police officers and the Police force do not also come under the orders of the Officer Commanding the troops.

(6) For the latest orders issued by the Government of India, explaining the circum-stances in which military assistance may be requisitioned in aid of the civil power and the manner in which it should be employed, Superintendents should refer to the "Instructions on aid to the Civil Authorities by the Armed Forces, 1970", circulated to them by the Government'

(7) Members of the Indian Territorial Force should not be called out for the dispersal of unlawful assemblies, where regular troops are available on the spot in sufficient numbers.

In the absence or insufficiency of the latter, there is nothing to divest a Magistrate of responsibility for utilizing the services of members of that force under Section 130 of the Criminal Procedure Code. A Commissioned Officer of such a force, unlike a Commissioned Officer of regular troops cannot however in the absence of a Magistrate, take the initiative on his own authority under Section 131 of the Code. For any act done in good faith under 1 Section 130, members of that force are amply protected by Section 132. Criminal Procedur Code.

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Maintenance of Order

58. **Principles to be observed in opposing troops or armed Police to hostile mobs.-**

(1) It should be accepted as a cardinal principle that troops or armed Police engaged in the suppression of disorder should in no circumstances be brought into such close contact with a hostile mob which greatly out numbers them as to lead to the risk of their being committed to hand-to-hand struggle. Apart from the danger of their being rushed or deprived of their arms, it is impossible in such circumstances to exercise adequate fire-control and the effect of fire at such close quarters is, therefore, likely to be unnecessarily severe.

(2) Troops Or armed Police should not, if it can be avoided, be employed at a cordon to hold up a mob; this duty should be performed, whenever possible by unarmed Police or, when circumstances demand it, by a barricade. The troops or armed Police should be employed as a reserve and should be so located as to admit of the safe withdrawal of the unarmed Police, should firing become necessary, before extreme measures are adopted.

(3) The direct opposition of a large and hostile mob to a body of troops or armed Police, with no intervening cordon, is strategically unsound, because the advance of the mob must lead either to the opening of fire before it may be absolutely necessary, or in the alternative, to the withdrawal of the armed force.

(4) To ensure that due regard is paid to these principles, Magistrates who play, in accordance with the provisions of Chapter X of the Code of Criminal Procedure, have to require an unlawful assembly to be dispersed by force, should act throughout in close consultation with the military commander, or with the Police officer commanding the armed Police, should no troops be present.

(G. C., Confl., H. D., No. 3170/2, dated 15th September, 1930).

(5) In order that a Magistrate accompanying troops during disturbances may be marked out as such, he will wear on the right arm above the elbow a distinctive arm band 10 cms wide and red in colour with the letter "M" on it in blue about 6-1/2 cms high.

(G.E., H. D. (poll) No. S.D., 1923, dated 9th August 1937).

59. **Type of ammunition to be used for Law and Order duties.**- The Government have for the present decided that so long as .410 muskets are available, they should be used for normal law and order duties by the Police force. When .410 muskets are not available, the Police may use .303 rifles with ball ammunition pending clearance of modified ammunition by the Government of India.

(I. G.'sCr. No. F/190/70/63, dated 14th December, 1970 and G. L. H. D. NO..IAA.

1068-4038-C, dated 17th July, 1974).

60. **Use of fire arms in dispersing an unlawful Assembly.**--(I) When armed Police are employed for the maintenance of order, they will be drawn up in strict military formation, each body being under the direct command and control of a responsible officer, ordinarily of or above the rank of Head Constable. Armed Police shall, in no circumstances, save as hereinafter provided, be posted in such manner as to preclude the responsible officer from exercising direct control over every individual in the squad or platoon under his command.

If circumstances demand that armed Police should be employed on duties ordinarily performed by the unarmed Police, they should parade with batons or lathis and without arms or side-arms, or be required to pile arms in a suitable plate; in the latter event a guard will be detailed and a sentry or sentries posted over the arms in the usual manner..

(G. R., H. D.No. 1082-2, dated 17th March 1927.)

(2) With a view to dispelling an unfortunate impression in the public mind that the Police have a tendency to open fire rather readily and to ensure that the Police force acts with a good deal of self restraint, the following guiding principles should be frequently and constantly emphasised, observed and explained to the subordinate police officers.

(i) In dealing with unlawful assemblies, the Police Force should exercise the greatest self-restraint even at the cost of some suffering to them. To minimise 'the danger of serious injuries to policemen at the hands of the members of such unlawful assemblies they should be supplied with fibre glass/steel helmets as far as practicable:

(ii) Firing should be resorted to only when it is unavoidable in the gravest danger and as a last resort when no other lesser means would be effective. Firing should be avoided as far as possible even in cases where the police are legally justified in doing so;

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(iii) (a) Tear smoke should ordinarily be used before a cane charge unless the direction of the wind or/and the character and mood of the mob suggest that the tear smoke would be ineffective and the cane charge would be the only way to disperse a mob without recourse to firing. The reasons for preferably using tear smoke are that it causes no permanent injury and can be very effective if used in adequate quantity.

(G. L., H. D. (Spl), No. SB. /I/MIS.1164/9542, dated.9th June 1969).

(b) Tear gas should not be fired into closed rooms etc. because of the possible health hazards. Tear gas shells should not be fired in such areas, particularly congested areas, where it is likely to enter ill-ventilated dwellings and remain for a long time without scope for dispersal.

(G. R., H. D., No. SB. I/MIS/1164j9542, dated 2nd June 1971).

(c) The advantages of using tear gas have been mentioned in details on page 37 of the Gujarati booklet-"Methods of Training in Crowd Control and Dispersal, 1968." "It should be ensured for this purpose that the Police are in possession of adequate and fresh stock of tear gas and that it can be made available at short notice at any place in the State. A situation should not be allowed to arise in which due to shortage of tear gas, the application of greater force than would otherwise have been necessary had to be employed;

(iv) All possible measures should be taken to ensure that situations are controlled right from the beginning and are not allowed to develop and get out of hand. The need to take anticipatory preventive action requires to be emphasised and should be clearly understood. If proper attention is given to such timely preventive steps, a good deal of subsequent trouble may be avoided. The Police Officers should be given proper training for such preventive action which might consist of

- (a) Breaking up of an assembly in initial stages,
- (b) Show of force in early stages, and
- (c) Arrest of goondas leaders and trouble makers.

The senior officer present has to judge the effect of each one of such steps in the situation before him; and he should bear in mind, and continuously consider the various aspects involved.

(v) When firing becomes inevitable the aim should be kept low, so as to avoid fatal casualties as far as possible and it should be directed towards the most threatening part of the crowd. It should be borne in mind that the object of firing is not to kill any one but to incapacitate temporarily. The aim should never be at the body or the head, but it should always be low at the legs. Necessary training in this aspect should be imparted to Policemen;

(vi) (a) Before actual firing is resorted to, the Magistrate or the Police Officer concerned should give sufficient and clear warning to the rioters over loud-speaker fitted to police vehicles, etc. Where loud-speaker arrangements cannot be made, hand mega-phones should be employed for giving such warnings. The rioters should also be warned that no blanks will be used and that the firing will be effective. The officer should reasonably satisfy himself that his warning was heard and understood but went unheeded before he orders firing.

(b) It is necessary to give three warnings in sequence invariably on such occasions before force is used. These three warnings are flashing of the banner, oral warning through Dictaphone or megaphone as the case may be and finally the sounding of the bugle. It is necessary that this sequence should invariably be followed and as far as practicable before the police resort to firing to disperse an unlawful assembly. The officer in charge of the riot squad or the firing squad as the case may be must properly check the battery operated megaphone which the sound may be carrying so that there is no last minute hitch in regard to administering of these three warnings..

(I.G.'s Cir. No. G/1909-dated 13th February 1969).

(vii) (a) Firing should always be effective. No blank shots should be used.

(b) Whether firing in the air should be resorted to or not in any situation should be based on the decision of the senior most Police Officer present on the spot who will judge the circumstances, the nature and temper of the mob the place and other relevant considerations. Firing in the air should not, however, be resorted to in crowded localities or residential areas, where innocent persons are likely to be affected by such firing.

(G.L.H. D. No. SB.I/FIR-1075. dated 12th May 1975).

(viii) Even in the face of gravest emergency, the fact that firing should be well controlled and kept at the minimum cannot be over emphasised. Magistrates and police officers who order firing should therefore also indicate the number of rounds which should be fired at any particular time;

(ix) Normally, the State Reserve Policemen, even without fire-arms should not be employed while dealing with unarmed crowds. Only ordinary armed policemen should be employed;

(G. C., H. & C. S.D.(Spl) No. SB.I/FIR/1061/C-7475, dated 15th April, 1963).

(3) When a Magistrate directs the Police to disperse a mob under section 129 of the Criminal Procedure Code, it will be for the Magistrate to decide the kind and degree of force to be used for dispersing the unlawful assembly. The Police Officers present can always offer advice to him in the matter, but the Police will be acting under the Magistrate's orders so far as dispersal of the unlawful assembly is concerned.

(G. C., H. D. (Spl) No. SB. I/LAQ/1073/708, dated 10th February 1973 and I. G.'s Cu. No. G/642/1603, dated 12th April, 1973).

(4) The Superintendent of Police should send a report to the District Magistrate immediately after an incident of Police firing takes place in his jurisdiction and the District Magistrate will, in turn, send a report to Government immediately. Both the initial immediate intimation and the subsequent detailed reports together with statistical information in the prescribed proforma (Form No.4 in Appendix-I) should be sent to Government only by the District Magistrate. If the District Magistrate is by any chance out of Station or absent for any reason, the Superintendent of Police should send the initial report to Government regarding incident of Police firing, if any, taking place during the District Magistrate's absence. If the District Magistrate is likely to be absent for a long time, the detailed report should also be sent to Government by the Superintendent of Police. The Superintendent of Police's detailed report to the District Magistrate should include information on the following points:-

(i) Whether any cases have been instituted by the Police in connection with the firing and if so, details as to the sections under which the prosecutions have been instituted.

(ii) Whether any complaints have been registered against the Police and whether cases have gone to Court, if so, details regarding the sections under which the prosecutions have been launched;

(iii) Whether complaints and cross-complaints have been registered by the party against the other and, if so, whether cases have gone to court (with details)

(iv) Whether in deciding any of the cases referred to at (i), (ii) and (iii) above the court has made any pronouncement on the justification or otherwise of the Police Firing and, if so, the details thereof.

The Commissioner of Police, Ahmedabad City, should, however, send all such to Government direct.

(G. L., H. D. (Spl) No. SB. I/FIR. 1966/2522-VIII, dated 3rd November 1966).

61. **Institution of Magisterial enquiry.**-(1) In the following circumstances, a magisterial enquiry should invariably be held regardless of whether the firing resulted in injury or loss of life :-

(i) In self-defence against riotous mobs trying to rescue gamblers, illicit distillers other offenders arrested by the Police;

(ii) In self-defence against riotous strikers;

(iii) To disperse riotous mobs. -

(2) It is not necessary to hold a magisterial enquiry in the following circumstance if the firing does not result in injury to any person or in loss of life:

(i) In self-defence against dacoits, railway wagon looters etc., who attack the Police;

(ii) In self-defence during prohibition raids against illicit distillers who attack the Police;

(iii) In self-defence against drunken hooligans brandishing daggers;

(iv) To apprehend dacoits, highway robbers, absconders, etc.

Chapter II

But even in such cases an enquiry should. however. be held if the firing results in injury to any person or in loss of life.

(G. C., H. D., No. SB I/FIR-1057, dated 23rd July, 1957)

(3) In cases of Police firing under the orders of Magistrate no magisterial enquiry should be held unless Government specially orders one after looking to the circumstances of the case.

(G. C., H. D. (Spl), No. SB. I/FIR/2471/9833, dated 18th November, 1971).

(4) (a) The Deputy Inspector-General of Police, Criminal Investigation Department (Intelligence) should. assess and analyse the reasons and the circumstances leading up to the culmination of events in which firing had to be resorted to the areas-rural or urban-in which it had to be resorted to and whether it occurred in connection either with any sudden and unpremeditated incident or in consequence of any organised agitation or movement. Such an analytical study will prove valuable in drawing useful lessons and. therefore; such a study should be undertaken in respect of every incident of firing against mobs or even a small number of persons and also during operations such as those against dacoits, gangs, absconders, prohibition offenders. etc., and the Deputy Inspector General of Police, Criminal Investigation Departmental (Intelligence) should furnish Government with his views in each case.

(b) To enable the Deputy Inspector General of Police, Criminal Investigation Department (Intelligence), to undertake an analytical study of each case of Police firing, the District Magistrates should endorse to the Deputy Inspector-General of Police, Criminal Investigation Department. (Intelligence), copies of the reports of magisterial inquiries where-ever they are held in pursuance of the standing instructions.

(G. C., C. & S. D. (Spl), No. SB. I/FIR-1061/C-7475 dated 15th April 1963).

62. **Medical aid during riots and disturbances.**- Officers concerned with measures for dealing with civil disturbances should bear in mind the obligation which rests on them to do the best they can to provide medical aid for persons injured on such occasion's and when necessary to convey them to hospitals as quickly as possible.

(G. R., H. D., No. 8108/2, dated 10th October 1930).

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63. Record of Crime and Criminal: (1) In order to deal effectively with crime, it is necessary to have a continuous record of the criminal history of individuals and localities. The Government of Gujarat, Home Department, under No. PEQ-1067-4429-C, dated 4-5-1973 have accorded sanction to the standardised forms and registers and accordingly each police station shall maintain the following records :

- (1) Village statistics (Village crime Note Book, Part I)
- (b) Village crime Register (Village Crime Note Book, Part II)
- (c) Register of persons involved in crime (Village crime, Note Book, Part III)
- (d) Register of suspects visiting village (Village, crime Note Book, Part III-A)
- (e) Confidential notes on village (Village Crime Note Book, Part IV)
- (f) Village conviction Register (Village Crime Note Book, Part V)
- (g) Register of history sheets of the village (Village Crime Note Book, Part VI)
- (h) Index of history sheets and personal files (Serial order part I and Alphabetical order Part II)
- (i) Police station conviction Register.

(2) Register at S. Nos (a) to (g) should contain information for each village so that fresh book (registers) can be added subsequently whenever it is necessary. Registers at serial number (h) (Index of history sheets and personal files) (i) (Conviction Register) should contain information for the police station.

(3) All the registers mentioned in sub-Rule (1) will be treated and marked as confidential so as to give them the status of "privileged document" All correspondence in connection with History sheets should be treated in the same way as other confidential document, i.e., the police station officer should himself attend to it and note its despatch in a confidential register. The Inspector through whom the correspondence passes should also deal with the papers as confidential. All entries in Notes on crime in village shall be made by the Inspector or sub-Inspector in charge of the police station in his own handwriting, Entries in "History sheets" should be written up by the Inspector or Sub-Inspector himself or at his dictation by the writer Head constable or constable and must in either case be signed by the officer himself. While those in other records may be made by subordinate police officers under the direction of the Inspector or Sub-Inspector, who will invariably initial them.

64. Village statistics: The form of this register is self-explanatory and calls for no special instruction.

65. Village crime register part II and village conviction register Part V : (1) (a) The village crime Register part II shall be maintained in form No. PM. 102 (B).

(b) Village conviction Register Part V shall be maintained in form No. PM. 102(E).

(2) In the village crime Register and the village conviction Register, information should be entered only in respect of those offences which are enumerated in Appendix V. whether the offences were reported direct to the police or were referred to the police by Magistrates under section 202, criminal procedure Code, and whether true or false.

(3) When a man is convicted in taluka or district in which he does not reside, the particulars of his convictions should be communicated to the taluka or district of which the man is a resident, for entry in the village conviction Register. The entry in the register should show, below the date of conviction in column 5, the class and location of the convicting court.

(G.R. J.D. No 6141, dated 17th November 1906.)

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(4) The entries in the Village Conviction Register (Part V) should be made as per instructions given in the foot-note. When the person is reconvicted a fresh entry should bear the same serial number as the previous conviction and the number of conviction should be entered below it in the form of a fraction, viz. 16/3, signifies the third conviction of the person originally entered at Serial number 16. The Serial number allotted to a convict should be a permanent-one. In the remarks column of each re-conviction entry, should be entered references to the number, offence and page of entry of previous conviction, viz. when the re-conviction of a person having six previous convictions is made, the entry in column, 10 should be "379 1/3 457-3 and 6/ 3 and 9:

110 Cr. P.C. 2 and 4 and XI 5/8 " The first figure refers to the nature of offence the number should
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Number to the serial number if conviction and the denominator to the page register.

66. **Register of persons involved in crime (village crime note book, Part III)** (1) The register should be maintained in form No. P.M. 102 (C) (T).

(2) Entire regarding all cognizable cases under chapter XVII of the Indian penal Code in which strong suspicion rests on any resident of the village, whether the case occurs in the village or not shall be made. A separate entry shall be made for each suspect and one separate serial number should be allotted to each.

67. **Confidential note on the village (village crime note book, Part IV).**-(I) TM register shall be written in form No. P.M. 102 (D)-e.

(2) The register shall contain the following information in respect of the village:-

(i) Notes regarding influential individuals residing in or connected with the village-who habitually abet or share in the proceeds of crime or shelter criminals.

(ii) Special types of lawlessness or crime to which inhabitants of the village are addicted.

(iii) Notes on gangs with cross reference in the books of other villages to which members of the same gang belong and particulars of the associates and methods of such gangs.

(iv) Notes on personal, land, communal and other feuds which are liable to cause-breach of peace or to affect evidence in investigation.

(v) Notes on fairs and similar occasions requiring the special attention of the officer in charge of the Police Station.

(vi) Notes on individuals which supplement and facilitate reference to history sheets, viz. lists of habitual railway thieves, cattle thieves, etc. with the localities they chiefly operate in, lists of criminals of other villages or jurisdictions who commit crime in the village.

(vii) A list of convicts released' prematurely.

(viii) A list of respectable inhabitants of the village who have migrated to colony areas and who can provide important information regarding proclaimed offenders and absconders.

(3) Detailed remarks as to what should be written are given in the remarks in the form

68. **History Sheets.**-(I) History sheets will be opened for all persons whose names are in the index of history sheets and personal files.

(2) History-sheets of individuals will be numbered according to the numbers of index of history sheets and personal files.

(3) In the case of persons convicted' History Sheets must be opened, the time of conviction and not left until the convict is released from jail, when the details of his crime have been forgotten. A copy of the individual's finger impressions should also be attached to the sheet.

(4) In order that the release of such a person may not pass unnoticed in a case in which order have been given for his History Sheet to be opened, the Superintendent of Police will instruct his Chief Operator to inform the jail authorities that the release of the convict and his proposed residence should be reported to the Superintendent of Police as a matter of course before his release..

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(5) On the date of release of the convict, inquiries should be made at the proposed place of residence as intimated by the jail authorities and the result entered in the sheet. Further entries should be made from time to time as to his means of livelihood, his associates etc., details being given of any subsequent Crime in which he is convicted or suspected. If any information favourable to an individual whose name has been entered in a History sheet is obtained, it should also be duly recorded.

(6) (a) As regards movements an 'A' roll (as per Rule 72 should be invariably used when a surveiltee leaves his residence and his destination is known or suspected, and the result of enquiries thus instituted should be entered in the History Sheet. If a surveiltee passes out of sight for more than one month, his absence should be reported in the Gujarat Police Gazette and his finger impression slip should be sent to the Finger Print Bureau and District M.O.B. for note there as absence. If a surveiltee leaves his village and is not traced on in 'A' roll, on his reappearance he should be asked to give an account of his movements!, and after verification a note should be made in his History Sheet.

(b) When "A" rolls which have been sent to various likely places of the history sheeters visits, are returned with the reports that the history sheetee is not traced, the Police Station Officer in addition to publication in the District and Gujarat Police Gazette, issue a Hue and Cry Notice (in Form No. SPL. IGP.1 34. eg). The history sheetee is an active criminal and as such the Police Station Officer should be vigilant to trace the movements of the history sheeters. He should continue diligent enquiries to trace him till he is traced or his whereabouts are ascertained.

(I. G.P.'s Cir. No. 7209, dated 26th October 1956.)

(7) The Superintendent of Police, the Assistant or the Deputy Superintendent of Police incharge of a Division and the Circle Police Inspectors should scrutinise the history sheets whenever they visit the Police Station to see that they are properly written up and are not unnecessarily kept open.

(I. G. P.'s Cir. No. G/1.946, dated 30th September 1970.)

(8) When an individual whose history sheet has been opened dies, orders to destroy his history sheet and to remove his name from the index of history sheets and the personal file register should at once be obtained by the Inspector / Sub-Inspector incharge of the Police Station concerned. While reporting, the Inspector/Sub-Inspector should invariably enclose the certificate regarding the death of the individual.

(9) (a) When a person in respect of whom a History Sheet is maintained goes permanently to reside in another State, the officer-in-charge of the Police Station concerned will send the History Sheet to his Superintendent of Police. The latter will then forward the sheet with an English translation thereof to the Superintendent of Police of the other State for necessary action. Likewise, when the history-sheetee goes to reside in the limits of another Police Station or other district, the Police Station Officer should send his history-sheet to the Superintendent of Police who will forward the same to the concerned Police Station Officer or the Superintendent of Police of the concerned district as the case may be.

(b) If a person in respect of whom History Sheet is maintained is known to have migrated to a Province in Pakistan, the History Sheet, should be forwarded through proper channel to the

Government of that Province for further action. Similar records of bad characters who are known to have come over to India should be obtained from the Provincial Governments concerned of Pakistan, through proper channel.

(I. G.'s No. 6485, dated 13th January 1950 and 6th November 1950).

(10) In the case of criminals residing in one district and active in other district, history of their crime should be first entered in the history sheets of the Police Station of which they are residents and copies of such history-sheets should be sent to the Police Station where they are active.

(G. L., G.A.D., No. MIS-3661/6800-L, dated 29th November 1961.)

69. Register of suspects visiting village (village crime note book, Part III-A).--(1) The register should be maintained in Form No. P.M. 102 (C) (T).

(2) Entries in respect of the suspected visitors to the village shall be made in the register as given in the form. Entries regarding receipt of "A" rolls and information sheet should be made in column No.6 and if the same is not received, the Inspector/Sub-Inspector shall send "B" roll and for that, an entry shall be made in column No.7. The register shall therefore serve the purpose of index of receipt of "A" rolls and "B" rolls in respect of persons visiting the village. .

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70. Register of history sheets of the village (village crime note book, Part VI).-(I). The register of history-sheets of the village should be maintained in Form .No. P.M. 102(1).

(2) The register shall contain the entries regarding the movements. Criminal activities and other important information useful to the Police in respect of individual history sheet. of the village with cross reference of his association with other history-sheets. Criminal and residents of village or other villages.

71. Index to history-sheets and personal files.-(I) the register will be kept in two-parts. In the first part names of all history sheeters will be entered chronologically date-wise whereas in the second part the names of history sheeters will be entered alphabetically. Thus, the persons having aliases will appear under each alphabet of his name but the serial number of the history sheet will be the same. Copies of the registers will be kept in. the offices of the Superintendents of Police and the Sub-Divisional Police Officers. Police Station-wise.

(2) (i) Surveillance may for most practical purposes be defined as consisting of one or more of the following measures:-

(a) Secret picketing of the house or approaches of the houses of suspects;

(b) Through periodical enquiries by officers not below the rank of Sub-Inspector into reputed habits, associations income expenses and occupations;

(c) The reporting by constables and Patels of movements and absences from home;

(d) the verification of movements and absences by means of inquiry slips; and

(e) the collection and record on a history sheet of all information bearing on conduct..

(Govt. H.D., No. BPM.1063/42822-C, dated 18th April 1967.)

(f) Police should have photographs of all surveillees and each Police Station should display photographs of surveillees residing within their jurisdiction. Each Police Station should send copies of such photographs to the adjacent Police Station(s). The Policemen on surveillance duty in a Police Station should identify surveillees of all adjacent Police Stations and their own.

(g) Photographs of inter-district criminals should be supplied by the State Criminal Investigation Department (Crime) to all districts where the criminals are known to-operate.

(ii) All inspecting officers at the time of inspection of the Police Stations and Local. Crime Branch offices should see that copies of photographs of criminals are maintained.

(I. G. P.'s Cir. No. G/1927/72/14545, dated 24th April 1972.)

(3) The names of all persons required to notify residence under Section 356, Criminal Procedure Code and Bombay Habitual Offender's Act, 1959 of convicts released conditionally or granted furlough under Section 432, Criminal Procedure Code, and of other ~ whose surveillance the Superintendent of Police considers necessary for the prevention or detection of crime will be placed on the Register. It is not intended otherwise to fetter the discretion of Superintendents as to the types of persons who should find their way on to the Registers. It is, however, suggested, purely as

guide, that persons convicted of house-breaking, robbery or directory committed in a professional manner, well-known receivers whether convicted or not, approvers in property cases, coiners, note counterfeiters, professional railway thieves, and persons bound over under Section 110 Criminal Procedure Code are persons surveillance over whom would be profitable.

(4) The Inspector-General of Prisons will report to the Inspector-General of Police or the Commissioner of Police, as the case may be, each case of a juvenile convict released from prison who has been taught a trade and for whom employments has secured. The Police authorities concerned should then arrange to leave such juveniles free from all surveillance. except in the following cases: -

(i) Juveniles who are known to have been brought up in an atmosphere of crime or to have commonly practised theft or other offences.

(ii) Juveniles who after release go to reside amongst and consort with, people who habitually commit offences.

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The surveillance (over juveniles referred to in clauses (i) and (ii) above should be exercised unobtrusively and through the agency of police Officers of rank not inferior to that of Sub-Inspector.

(G. R., J. D. No. 4890, date 27th August 1909.)

(5) Boys discharged from a Borstal School remain under the supervision of a Probation Officer or other authority, and it is very undesirable that such boys as long as they continue to earn an honest living should be interfered with by the Police or be made to think that they are in any way under Police surveillance. The Police should refrain from interfering with such boys unless they revert to crime. Any information required in connection with any particular boy should be obtained from the Governor of the Borstal School, concerned and not by questioning the boy himself.

(I. G.'s No.1, dated 5th January 1934).

(6) The order placing a convict under surveillance and for opening his History Sheet shall be issued by the Superintendent of Police or Sub-Divisional Officer of the district in .t& which he is convicted at the time of his conviction, and an entry shall at the same time be made in the Index to History Sheets and Personal Files. If the convict is a resident of another district the history of the crime shall be prepared in the district of conviction and forwarded to the district of residence through the Superintendent of Police.

(7) No one should be placed under formal surveillance until his name has been entered in the register. The following suggestions are offered as a guide:-

(i) The importance of keeping an eye on men addicted to house braking cannot be too strongly stressed. Such persons should receive the most careful attention.

(ii) The importance of other criminals and the difficulty of their surveillance will vary considerably in each district.

(iii) Minimum number of persons should be brought under surveillance, proper care being exercised while passing the order of bringing persons under surveillance.

(iv) Besides the prevention of Crime, the aim of the Police should be to reform the criminal. They should endeavour to obtain steady employment for the surveillees.

(I. G.'s Cir. Memo. No.G/2994, dated 24th March 1959 and Govt. H.D. No. BPM-1063/42822-C, dated 18th April 1967.)

(8) An Index to History Sheets and Personal files should be maintained at Outposts, containing true extracts from the Station register of all such persons residing within the limits of the Outposts, to enable the men of the Outposts. Within their respective beats of villages. to know who the bad characters are over whom they are expected to keep a watch. Whenever any fresh entry or alteration (such for instance. as the removal of a name) is made in the Station register, it should be communicated at once to the Outpost concerned. Similarly, the Station Officer should supply Patels of villages under the Police Station with the names of surveillees residing in the respective village to enable the Patel to keep a watch on the persons and report their movements.

(9) When any surveillee is found absent from the village, the Superintendent of Police - should immediately report to other districts where the person has previously been convicted that there is a likelihood of his having gone there. For other instructions, reference may be made to sub-rule (6) of rule 68 regarding history sheets. All active/important criminals should be checked at least once in a month, less active once in three months and those on personal files (dormant files) should be checked once in a year for collecting information - about the criminal activities, design and movements including creating new associations with other persons of criminal tendency. The entries in the history-sheet shall be made mainly on these lines to give the correct picture regarding the criminals.

(10) No hard and fast rule can be laid down as regards period for which names should be kept on the Register. It is, however, suggested that the names of persons required - to notify residents under Section 356, Criminal Procedure Code. Bombay Habitual Offender's Act, 1959 and convicts released conditionally under Section 432, Criminal Procedure Code., Should be retained on the register for the period specified in the order of the Court or 'Magistrate issuing it. After that period the names should be removed from or continued on the resister at the discretion of the Superintendent of Police or the Sub-Divisional Officer. In the case of convicted persons names should be retained on the register after the expiry of the imprisonment for a period which should not ordinarily be more than two years, after

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which the names should be taken on the personal (dormant) file. If for a period of five years the person does not come to adverse notice, his name may be struck off from various files and no routine enquiry about him need be made. In case of others, names should be retained as long as the Superintendent of Police or the Sub-Divisional Police Officer considers surveillance over them necessary.

(I.G.'s Cir. Memo. No. G/2994, dated 24th March 1959),

(11) In order to ensure that surveillance is exercised only over persons the knowledge of whose movements will assist in the prevention and detection of crime, the Superintendent of Police or the Sub-Divisional Officer should, when he inspects a Police Station, verify the entries in the register, removing there from, after consultation with the officer-in-charge of the Police Station, the Police Patel or the officer-in-charge of the Outpost, the name of any person whose conduct, he considers safely admits of it.

***(G. R., H. D. No. 2241/2-I, dated 15th December 1930 and I. G.'s No. 2994-A-III, dated .
8th September 1943).***

72. **Enquiry Rolls Form 'A' and Enquiry Rolls Form 'B'.**-(I) To keep an effective check on bad characters, it is necessary that their movements should be followed and their conduct watched when away from as well as when at their homes. To secure this, the forms of Enquiry Rolls A and B (Forms Nos. P. M. IO2-G and P. M. 102-H) should be freely used. Form 'A' rolls should invariably be used in connection with persons under surveillance. Form 'B' rolls should be used in the case of strangers suspected of being criminals and, should invariably be issued when a stranger whose criminal history is not known is suspected of or arrested in connection with an offence. Both time

and labour would often be saved, if Form 'B' rolls took the place of the correspondence which generally occurs when enquiries otherwise made.

(2) When a bad character, whose name is entered in the Register of Index to History Sheet, leaves his home, it will be the duty of the head of the village immediately to inform the officer-in-charge of the Police Station of the departure of such person 'and his alleged' destination, if known.

(3) The officer-in-charge of the Police Station shall at once fill in Enquiry Roll Form 'A', and forward it by the quickest possible means, whether by hand or by post, to the officer-in-charge of the Police Station within which is situated the place to which the bad character is alleged or believed to have gone. If the destination of the bad character is not known, a copy of the roll should be sent to every Police Station to which there is any likelihood of his having gone.

(4) A Police officer who receives the roll shall at once acknowledge receipt of it and shall immediately take steps to ascertain whether the bad character has arrived within the limit of his jurisdiction. If the bad character is found, the Police Officer shall note the date and hour of his arrival, the name of the person with whom he is staying, and the names of any persons with whom he associates, and he shall arrange to have his activities watched in the same way as if he were a registered bad character of his own Station. If he has not been traced on the expiry of one week from the receipt of the roll, the officer receiving the roll shall return it, with a statement to that effect on the back of it, to the Police Station of issue.

(5) When the bad character leaves the limits of the Station for his home or elsewhere, the officer-in-charge shall forward the roll to the officer-in-charge of the Police Station to which the bad character has gone, noting on the back of it all the information regarding the individual's movements which was collected while he was residing within the limits of the Station. If the bad character goes to a Police Station other than that in which he is registered, the officer-in-charge of the latter should be informed of the fact.

(6) If the Police Patel of a village hears of the advent of a suspicious stranger in the village, it will be his duty to question the person regarding his antecedents and residence, and to send to the Police Station, with as little delay as possible, all the information obtained by him.

(7) On receipt of such information, it shall be the duty of the officer-in-charge of the Police Station to send Enquiry Roll Form 'B' with the utmost possible despatch Police Station within the limits of which the stranger alleges that he resides.

(8) On receiving such a roll, the officer-in-charge of the Police Station shall at once return it with complete information regarding the individual in question, if he is a resident of that Station, while if he is not a resident, the roll should be returned with a statement to that effect. In that case the officer who issued the roll must take all possible steps to discover the identity of the stranger.

(G. R. H. D., No. 2241/2-I, dated 15th December 1930)

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(9) The police Station officers should send Enquiry Rolls Form 'B' of all Sim Rakhas who are residents of other Police Station limits engaged at the villages for the protection of crop. The Superintendents of Police, the Sub-Divisional Police officers, and the Circle Police Inspectors during their inspection of Police Station, should be whether Rolls are filled in correctly and whether Rolls have been sent for all 'Sim Rakhas' and if any negligence is noticed, should take appropriate action and see that Rolls of all Sim Rakhas are invariably filled in and sent correctly.

(I. G. P.'s No. G/ 1901/1658, dated 24th April 1973.)

(10) Whenever enquiry roll is sent outside the State, or to a district, the language of which is different from that of the district from which the roll is sent the details should always be filled in English and the correspondence pertaining to enquiry roll should also be in English.

(G. R. J. D. No. 1819, dated 30th March, 1906. and I. G. P.'s No. G/1909/1658, dated 24th April 1973.)

73. Police Station Conviction Register.- The Police Station Conviction Register will contain a complete record of all convictions of persons in cognizable cases reported direct to the Police or referred to the Police under Section 202, Criminal Procedure Code. in the Police Station limits and of persons residing in the Police Station limits though convicted elsewhere. Convictions under Sections 119 and 120. Indian Railways Act (IX of 1890), need not be entered in the Conviction Registers of Railway Police Stations. Special attention should be paid to column 7 of the register which furnishes

an inspecting officer with a means of checking whether the necessary communication has been made to Police Stations concerned.

(G. R., H. D., No. 2214/2-I, dated 15th December 1930 and I. G's No. 2994-A-III, dated 27th July 1938.)

74. **Known Criminals Register.**-(I) The Known Criminals Register will be classified register of criminals known to be active or likely to revert to crime. but of whom all are not sufficiently important to find a place in the Register of Index to History Sheet.

(2) The register should be kept for the following classes:-

- I. House-breakers.
- II. Thieves.
- III. Robbers.
- IV. Dacoits.
- V. Miscellaneous.

When, However, it is found desirable to subject other forms of crime to special study in any particular district, additional classes should be opened in the register as for example, receiving stolen property. Cheating making or uttering false coins or notes Mischief etc.

(3) (a) All persons having one conviction for house-breaking, robbery or dacoity, receiving stolen property coining and note-counterfeiting or theft from a railway passenger person bound over under Section 110 Criminal Procedure Code. Persons who are registered as habitual offenders under Section 3 of the Bombay Habitual Offender's Act. 1959 and persons having three convictions for theft will come automatically on this register of known criminals of the Police Station of which they are residents (this is not necessarily the place of birth) and of the Police Station in which they are convicted. Persons with less than three convictions for theft may be entered in the register, if the circumstances of the particular case merit such treatment. Entries should be made at the time of conviction on any of these persons being subsequently convicted for any of the above-mentioned offences a fresh entry shall be made in the Known Criminals Register of the Police Station or residence and of the Police Station where the new conviction occurs. a reference being made in the remarks column to any previous entry of the same individual by quoting the class and serial number of that entry.

(b) In addition to this, it will be open to the Superintendent of Police or the Sub-Divisional Officer to add to this register the names of persons known to have committed these or other offences, whether they have been convicted or not.

As soon as a man is arrested, a decision should be taken by the Sub-Divisional Police Officer about including the name of arrested person in 'Known Criminal Register' and if in doubt, the Sub-Divisional Police Officer should keep it pending till the disposal and give orders.

(I. G. P.'s No. SB/89/XI/485, dated 9th March 1972 and No. G/1927/72/31760, dated 1st April 1972:)

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(4) In order that this register may remain a useful record of active or probably active criminals of the police station, care should be taken to see that entries are not made unnecessarily. Similarly the names of those criminals should be removed from the register who are not known to have been concerned in an offence for live years from the date of their last release from jail, or the date of entry in the register, whichever is more recent.

(G. R., H. D. No. 2241/2-I, dated 15th December, 1930.),

75. **Maintenance of separate registers for prohibition offences :** {a) In order that registers of police stations may not become bulky and in order to facilitate easy reference to the prohibition criminals, the following separate registers for the prohibition criminals shall be maintained at the police station :

- (i) Conviction Register for prohibition offenders.
- (ii) Surveillance registers for prohibition offenders.
- (iii) Known criminal register for prohibition offenders.

(b) In the conviction register of prohibition offences, the names of all the prohibition offenders who have been convicted only should be entered.

(c) Known criminal register and surveillance register for prohibition offenders will be maintained in respect of the persons convicted for offences under the Prohibition Act mentioned below:-

(i) Distillers and possessors of implements, stills etc., for manufacture of liquor.

(Convicts under Section 65 (b) and (f) of breach of Sections 12 (a) and 13 (b) respectively of the Act.)

(ii) Sellers of liquors or intoxicating drugs. (Convicts under Section 65 (c) for breach of Section 12 (d) and Section 14 (d) respectively of the Act.)

(iii) Smugglers (Importers and Exporters) of liquor and intoxicating drugs. (Convicts under Section 65 (a) for breaches of Section 12 (c) and 14 (a) of the Act.)

(iv) Persons whose bonds are taken under Section 91 of the Bombay Prohibition Act for abstaining from commission of offences under that Act.

(v) Persons externed under Section 57 (b) of the Bombay Police Act after being convicted under the Bombay Prohibition Act.

(I. G.'s Cir. No. 4199 dated 2nd January 1954. and 4199 dated 25th August 1954.)

76. **Checking of Village Crime Records.**-(I) The object of maintaining the crime records mentioned in Sub-Rule (1) of Rule 63 is to enable the Police to exercise an effective supervision over criminals and bad characters addicted to crime. It is, therefore necessary that they should be carefully entered up and verified from time to time. The Superintendent, the Sub-Divisional Officer and the Sub-Inspector should at the time of their inspection, compare the entries in the Outpost, the Station and the District registers and see that they are correct.

(2) Should the Superintendents of Police or Sub-Divisional Officer find it possible to muster persons under Police surveillance, he should test to what extent the Constable or Head Constable in whose beat they reside is acquainted with them, not from the register as the entries therein can soon be learnt by heart but by calling out any person indiscriminately from those assembled and asking the Constable or Head Constable who the person is and what he knows about him. It should be noted, however, that a Superintendent of Police or Sub-Divisional Officer has no legal authority to muster such persons, though, if the person under surveillance is willing to appear, it may be to his advantage' to do so, since he can personally make any representation he may have to make regarding the removal of his name, and the inspecting officer can better gauge whether he is a fit persons have his name Removed.

(I. G.'s No..10681, dated 23rd October 1899 and No. 44, dated 16th April 1926.)

77. **Prisoners released on condition of Police Surveillance or on Furlough.**-(I) When a long term prisoner is released permanently on condition of Police surveillance, the minimum period for which the condition of Police surveillance is imposed is three years and the maximum 10 years or even for life, according to the merits of each case. Superintendents of, Police should bear this in mind when making recommendations for the conditional premature release of long term prisoners. A uniform period of five days within which they must report

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themselves to the Police has been fixed in the case of convicts, who are to be released on condition of Police surveillance. Copies of the conditions of release will be sent along with the Government. Resolutions sanctioning the conditional release of the prisoner to the Superintendent of Police in whose jurisdiction the convict is to reside as well as to the Superintendent of the district in which the jail is situated.

(G. L., H. D., No. 8228-C, dated 1st May 1926 and I. G.'s No. 60, dated 11th May 1926)-

(2) When a prisoner is released on furlough, the jail authorities will send, in advance as far as practicable, a copy of the release report to the Superintendent of Police of the district in which the prisoner wants to spend the period of the furlough.

(I. G. of Prison's No. 26962, dated 1st September 1950 and I.G.'s File No.826.)

78. **Persons ordered to notify residence.**—Rules made under Section 356(5) Criminal Procedure Code, in connection with persons ordered under Section 356(1), to notify their residence, change of residence or absence from residence will be found in Appendix VI.

79. **Identification of old offenders.**— To afford the Police the opportunity of recognizing old offenders, the Superintendent of the jail shall permit a Police officer deputed in Commissionerate area by the Commissioner of Police and elsewhere by the Superintendent of Police, on a day preceding the weekly parade of prisoners, to have access, in the prison office, to the admission register and release diary. From these the Police officer will prepare lists of prisoners admitted during the preceding week, of prisoners who will be discharged in the following week, and of any unidentified prisoners still under Police enquiry, whom the Police may have to inspect on parade. The prisoners found in these lists will be paraded at the weekly parade separately from others and the Police not exceeding twenty in number selected by the Commissioner of Police or the Superintendent of Police will be permitted to inspect all those prisoners under the conduct of the jailor or the Deputy Jailor. They will not be permitted to hold any communication with a prisoner except such as is necessary for the purpose of identification. The Superintendents will inform the Commissioner of Police or the Superintendent of Police, as the case may be, on what day the weekly parade of prisoners will be held and at what hour the Police Officer can have access to the Prison office. Only prisoners convicted under Chapters XII, XVI, XVII and XVIII of the Indian Penal Code of offences punishable with three years, or attempts at offences under Sections 328 to 369 persons bound over under Section 109 or 110 of the Criminal Procedure Code, and under-trial prisoners need be paraded for the inspection of the Police. Female prisoners shall not be paraded for the inspection of the Police.

(G. R., J. D., No. 7683, dated 14th November 1900 and G. R., H. P" No. 304-315, dated 12th November 1914.)

80. **Identification of Habitual Offenders.**—(1). A record is to be kept in each jail for the identification of every prisoner, known or reasonably supposed to belong to the class of habitual offenders.

(2) (a) On the 20th of each month, a return in Jail Form No. 82 of habitual offenders and convicts sentenced to imprisonment for one year and over, who are to be released in the month following, should be forwarded by the officers in charge of prisons direct to the Superintendents of Police of the place of release and of the place of destination and to the Superintendents of Railway Police, in addition, in the case of criminals on railways.

(G. L., H. D., No. 3242-D, dated 26th February 1923.)

(b) Superintendents of Prisons will intimate the release of the following prisoners only:

(i) Habitual offenders.

(ii) Prisoners sentenced to one year or more for an offence: ---

(a) Under Chapter VI, Indian Penal Code (of offences against the State),

(b) Under Chapter XII, Indian Penal Code (of offences relating to coin and Government stamps),

(c) Under Chapter XVIII, Indian Penal Code (of offence .inst9"properly), or

(d) Under the Arms Act. ,.

(I.G.'s No. 59, dated 1st September 1927 and G.R.,H.D., No.1345/4, dated 19th November 1940.)

(3) Every facility should be given to every Policeman who may be deputed by the Police authorities to attend the jail daily for the purpose of taking the descriptions etc. of all released prisoners. ,

81. **Village visitation by Sub-Inspector.**—(I) Every Sub-Inspector in charge of a rural Police Station should make at least eight to ten halts for village patrolling only (excluding halts required for investigation) in a month in his jurisdiction outside his headquarters, he touring should be

systematic, and ordinarily not more than two villages a day should be visited. Time should be spent in a village, full enquiries made and the Sub-Inspector should instruct the Patel and leave with the feeling that he has got to know all that is worth knowing of village affairs. Every village should be visited at least once a year and the more important ones oftener.

(2) Villages should be divided into 'A' (i.e. the more important ones), 'B' (i.e. villages of lesser importance) and 'C' (i.e. deserted villages being entirely excluded from consideration). Villages which show an indication of getting communal virus should also be considered as important villages and should be classified as 'A'.

The Circle Police Inspectors and Sub-Divisional Police Officers should scrutinise the village Crime Note Books of villages in a Police Station at least once every year to make suggestions for the revision of their classification from the communal angle and other angles such suggestions should be submitted to the Superintendent of Police by the first week of November every year so that the Superintendent of Police by the end of November can scrutinise the reports and issue orders for revision of the classification of the villages upgrading them or downgrading them, as the case may be.

The above classification should be taken into account for preparing the village visitation programme of the Police Sub-Inspectors and the Beat Duty Head Constables for the coming year. The Sub-Divisional Police Officers should ensure that the revised classification is brought out into the programme and village visitations are done accordingly so that the villages with communal disposition remain distinct on the programme, the villages indicating communal disposition should be entered with red ink and other villages should be entered in blue ink. Every month when the Sub-Divisional Police Officer scrutinises the performance of the Police Sub-Inspectors/Inspectors in respect of village visitations and of the Beat Duty Head Constables in respect of beat patrolling, he should make it a point to that all the villages with communal disposition which needed to be covered in the monthly village visitations and beat patrolling have been visited.

The 'A' villages should be visited twice a year and 'B' at least once a year. The Police sub-Inspector should calculate on this basis the total number of visits he may have to pay in the course of the year and distribute the number evenly over the whole year. If in any one month owing to crime, inspection etc. or inaccessibility of villages due to heavy rain, visitation falls below the required standard, the arrears should be made up in the following month by increased activity in touring. In this way, systematic inspection of villages spread over the whole year would be made and work would be done thoroughly and without any sort of rush in the last few months of the year.

(Govt. H. D., No. BPM. 1072-VI3-1048-S, dated 8th June, 1972).

(3) The Sub-Inspector should chalk out a tour programme for each month in the programme of the year and submit copies thereof to the Superintendent of Police and the Sub divisional Police Officer. The Reader will note on the programme the dates of visits paid as mentioned in the Sub-Inspector's diaries and check from time to time and put up before is Sub-Divisional Police Officer for action against the Sub-Inspector who has not attended to tour programme.

(I. G. P.'s No. 40 dated 4th December 1948).

82. **Village patrolling.**: Village patrolling should be carried out uniformly in all districts on the following lines:-

(1) All villages under a Police Station including those under the Outposts. if any, will be divided into three classes, viz :-

Class A: (important villages),

Class B: (unimportant villages), and .

Class C: (deserted villages).

They should be grouped into suitable beats, each beat including in it villages of all the three classes. Each beat will, for the purposes of patrolling, be allotted Constable, who will visit and camp at each 'A' class village at least once a class village once in three months and 'c' class villages being visited only once in six

Months. Where no Head Constable is available, a senior Constable will be in charge of a beat. The camp at an A village may extend to more than one day according to its importance. If a village has several hamlets under it, the camp should be at the village and the hamlets should be visited not more than four on anyone day, "from that village. The hamlets may also be classed like villages for the purpose of visitation. The visits should be sufficiently long and thorough and mere flying visit of a formal nature should be strictly avoided.

- (2) Every patrol Policeman should ordinarily camp for 15 days in a month in his beat, and should spend five days in transit and the remaining ten days at the Police Station or Outpost, as the case may be.
- (3) During visits and camps a patrol Policeman must make inquiries with persons of classes, e.g., Patels, the well-to-do and the poor, hotel-keepers, agriculturists etc. and must try to collect information about the following matters:-
 - (a) The advent of strangers in fields, temples, mosques churches, Dharmashalas etc, and particularly persons moving about as sadhus, gosavis and sanyasis, as they may be expert professional criminals like Beuriahhs, Budducks, Minas etc.
 - (b) The conduct of habitual criminals and persons under surveillance and those recently released from jail.
 - (c) The existence of factions or ill feeling in respect of lands, temples, processions, festivals. Women, religious or communal disputes or the occurrence of stone throwing etc., likely to give rise to riots or other crew or false complaints.
 - (d) The delivering of lectures, holding of meetings and other similar occurrences of a political nature or otherwise, including village gossips.
 - (e) The general health and sanitation of the village, including the existence of stray dogs.
 - (f) The movements of criminal wandering gangs.
 - (g) The occurrence of any recent offences, suspicious deaths or serious accidents that might have remained unreported.
 - (h) Reported offences which have remained undetected, with a view to obtaining a clue to their detection.
 - (i) Recent births and deaths as noted in the Birth and Death Register to see whether the entries in the register correspond with village rumours, etc.
 - (j) Generally any matter of interest from the Police point of view.
 - (k) Whether any unscrupulous individual or a sect is out to commit heinous crime of human sacrifice and if so, take steps to prevent it. Particular attention should be paid to Adivasi and Backward Tribal areas where, on account of superstition and ignorance, information may be available of any such plans. The Sub-Inspector in-charge of Police Station and Head Constable in-charge of Out-post Beat should be on the look out and to scotch effectively any such move by any unscrupulous individual or a sect.

(I. G. P.'s No. G/1909, dated 30th December .1968)

- (4) The patrol Policeman must also see that the Police Patel has with him a copy of the booklet entitled "Instructions for the guidance of Police Patels the First information Report book and the Wandering Gang Register, and repeatedly mistrust him III the method of writing up of the book and the register with the help of the instructions contained in the booklet.
- (5) In addition to the names of history-sheeters under surveillance (vide Rules 68 and 71) the names of habitual offenders brought under the operation of the Habitual Offender's Act, 1959, will be supplied to all Outposts Head Constables or their respective outposts and to all Police Patels for their respective villages. This information will be useful to patrol Policemen under Outposts for the preparation of the statements prescribed in Sub-Rule (7) below. Patrol Policemen in charge of beats directly under the police station will obtain similar information

Chapter III

from the records of the Police Station. It will be the duty of each patrol Policeman to make inquiries as to whether the bad characters in the village are at their place of abode and as to their conduct and repute and whether any new ones have arrived at the village, and to communicate immediately to the Police Station the details required for the issue of an enquiry Roll Form 'A' or 'B', as the case may be. This does not absolve the Police Patel from the duty imposed upon him in this behalf under Sub-Rules (2) and (7) of Rule 72.

(6) The Head Constables in charge of Outposts should maintain in respect of all the villages under the Outposts, "Notes on Crime in Villages" (Village Crime Note book-Part IV) and make their own entries from time to time. The Sub-Inspector at the time of his monthly inspections should check these and the patrol books of the patrol Police and take such notes as he deems fit for making entries in the "Notes on Crime in Villages" of the Police Station. He should also enquire from his patrol Police regarding bad characters with a view to writing up History Sheets effectively and for despatching enquiry Rolls Form 'A' and 'B'. The Outposts Police should be informed the fresh entries made by the Sub-Inspector in the History Sheets but they need not be given copies of the entries in the "Police Station Village Crime Note Books-Part IV".

(7) In order to provide the patrol Policeman with a handy means of knowing the names of bad characters and the undetected crime pertaining to his beat, made also to provide the inspection officer with an easy means for checking the Patel's signatures and for seeing that the patrol Policeman has made inquiries about undetected crime and men under surveillance, statements in Form No.6 in Appendix I in respect of 'A' and 'B' villages in his beat must be kept at the beginning of his patrol book, a mere list of C villages being also kept with them.

(8) A patrol Policeman will be held responsible for any offence occurring in his beat and he should report every such offence at once and proceed to the spot for enquiry, collecting information (not recording separate statements except dying declarations, unless he is Head Constable who has received orders to investigate under Section 157 Criminal Procedure Code preventing disappearance of evidence, arresting offenders and taking all such prompt measures as will lead to the detection of the offence and the arrest and successful prosecution of the offender. Patrol Police should note where there is excessive number of stray dogs and then take measures to destroy them. Where actions are likely to lead to an immediate out-break he should report at once to the Sub-Inspector. If gangs have arrived they should be watched and, if with no means of livelihood, brought to the notice of the Sub-Inspector.

(I. G.'s No. 41, dated 4th December 1948.)

(9) When a patrol Policeman comes across strangers particularly persons moving about as sadhus, gosas, sanyasis, etc., he should make active enquiries about the antecedent of such strangers found in temples, mosques, churches etc., and in suitable cases reach their effects, as they may be expert professional criminals moving in disguise.

(10) Before leaving a village it is the duty of the patrol Policeman to write up the village Visit Book and also his own patrol book, in which he should enter the substance of all information or complaints received and action taken thereon, all acts done and all facts observed in his official capacity. The entries must not be confined to information about cognizable crime but must cover the whole field of work, which the Police officer, as much, has to attend to. The signature of the Police Patel must be obtained below the entry, so that the signature may begin in the column for details and end up in the column provided for signature, thereby rendering any interpolations impossible. If the Patel is illiterate, a responsible man's signature should be taken on his behalf. The Patel should be required to read the entry before signing it. If he cannot read, the person who signs for him should be required to read out the entry to him.

(11) (a) The inspection of patrol books will be restricted to Jamadars and senior officers and it would be the Sub-Inspector's business to see that patrol books are checked either by himself or by the Jamadar or the Police Inspector, either at the outpost or at the Police Station twice monthly, e.g., when the Sub-Inspector goes for inspection and when the patrol Policeman comes for his pay, for evidence or some other reason. After inspection, the inspecting officer should invariably write- "inspected-All facts noted are receiving attention" and also any other remarks he has to make or instruction he has to give.

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(b) This does not mean that this' important duty is to be delegated to Jamadars; it simply means that on rare occasions when the Sub-Inspector finds it impossible to check all patrol books fortnightly (e.g., he might be 10 days in the Sessions Court), then and then only as a temporary expedient is he permitted to direct the Jamadar or the Second Sub-Inspector to inspect the books on his behalf for that particular occasion. The Jamadar or the second Sub-Inspector must of course bring anything worth remarking about at once to the Sub-Inspector's notice. The Jamadar and the Second Sub-Inspector may inspect the patrol books frequently in addition to the fortnightly inspection of the Sub-Inspector. The Sub-Inspector is primarily responsible for peace and order in his charge. He, therefore, must see for himself the, remarks of his patrolling Police so as to be in a position to instruct and correct them in the performance of their duty and also promptly to take preventive measures in regard to crime and criminals. He cannot delegate this important duty to subordinates.

(12) It will be the duty of the Sub-Inspectors to see that patrols are intelligently carried out according to the foregoing instructions and that Outpost Head Constables both understand and perform their duties accordingly. When the Sub-Inspector visits the Outposts and on all other occasions, he should check patrol books, examine village Visit Books, correct defects and most important of all, give specific instructions to patrol men regarding the directions in which inquiries should be made and regarding the information that is required.

(13) All Sub-Inspectors and Police Inspectors, when they pass through villages, should invariably instruct Patels in their duties as laid down in the "Instructions for the guidance of Police Patels" and also by enquiries check the visits of patrol Police and see that they are no longer nominal but real, useful visits carried out with intelligence and thoroughness.

(1. G.'s No. 41, dated 4th December 1948.)

(14) (a) The Circle Police Inspectors during their visits to villages whether for investigation, enquiry or other purposes, should make enquiries with the residents of the village to make sure that no offence has been burked and should submit report to the Sub-Divisional Police Officers and the Superintendents of Police showing the villages so visited and the results of enquiries made by them. The Sub-Divisional Police Officers and the Superintendents of Police should during village visitation make sure that the Circle Police Inspectors had in fact acted accordingly.

(1. G.'s No. G/642/dated 29th April 1964).

(b) The Superintendents of Police should send special reports every month giving details to the Inspector General of Police about action taken by them regarding sub- rule (14)(a) and also by the Sub-Divisional Police Officers and the Circle Police Inspectors to their Superintendents of Police.

(1. G. p's No. G/642, dated 13th October 1964).

(15) Although the Police may seek the assistance of private citizens in extra-ordinary circumstances when there are wide spread disturbances etc., as police alone are not table to c~ with the situation, such assistance of private persons holding licence for ~e arms for night patrolling in. the village- should not be requisitioned for normal times, for controlling ordinary crimes.

(Govt. Home Deptt. (spl.) No. SBI/FIR/1967/8428, dated 21st February 1968.)

83. Town patrolling (1) It is not possible to lay down any definite system for ptrolling in towns and cities by day and during night. The system must be devised by the officer on the spot in consideration of the number of men available, the seasonal conditions, nature and incidence of normal crime, special outbreaks of crime in particular localities, habits of the inhabitants and similar factors of local nature. The principle to be remembered is that the men detailed for patrolling must be under the supervision of higher officers d that no fruitful results can be expected from any patrolling done in a routine manner, king an element of surprise about it, and this can be achieved only if higher officer exercise personal check on the movements of subordinates. No system of night rounds can satisfactorily carried out, unless the men are detailed in batches of two or more. Whether, "Flying Squad" system under which a certain number of different squads are detailed

patrolling in a particular area on each day by orders made from day to day, or the "Beat" tern. Under which a certain number of men attached to the respective sections or chowkies a town or city carry out patrolling in their respective areas for a specified period of time, would suit a particular town must be judged by the officers concerned in consideration of past experience in relation to local conditions.

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Chapter I

(2) Secret watching of criminals and employment of intelligent Policemen in plain clothes in addition to the ordinary staff in uniform should be attempted and encouraged as far as circumstances permit,

(3) (a) Policemen on duty in a town should move on their beats, keeping their eyes and ears open to what is going on around them. They should observe all persons of suspicious appearance carrying bundles etc. They should keep an eye on brothels, Dharmashalas and the houses of suspected or known receivers of stolen property, and on the resort of thieves, gamblers and other bad characters, noting those who enter such places. They should be well acquainted with every street and gully, and should pay particular attention to uninhabited or broken down houses and buildings. As regards strangers they should act in the manner indicated in Sub-Rule (9) of Rule 82 above.

(b) Patrolling duty and plain clothed duty men should be out on the streets especially in a town where apprehension of communal trouble lingers and mixed localities and collect information and report even minor scuffles, assaults etc., to the superior officers.

(I. G. P.'s No. G/1909/1814, dated 20th November 1972).

(4) Policemen on duty in a town by night should move about cautiously and quietly in the shadow of buildings as much as possible and observe without being seen. They should vary their rounds and return at times over the same ground, so that thieves may not count on being secure after they have watched them pass. They should be especially alert towards dawn, when thieves may be returning with booty and take note of all persons moving about at unusual hours, so that they may recognise them again.

(5) In order to prevent the occurrence of thefts in the Courts of District and Subordinate Judges, where valuable property has sometimes to be kept, the Police on night rounds should visit, at least once every night, isolated Court buildings within their jurisdiction and Subordinate Judges, when they have to accept valuable property or a large sum of money too late to be sent to the treasury or sub-treasury for safe custody during the night should inform the senior Police officer in the station and request him to order special attention to be paid to the court buildings that night by the Police on night rounds.

(I. G.'s No. 48, dated 29th November-1930 and G. R. R., Do, No. 4336/2, dated 13th February 1931.)

(6) In places where cash transactions are conducted through banks, no armed Police guards are usually engaged at treasuries or sub-treasuries for guarding treasury strong rooms, which at such places are guarded by unarmed revenue peons or watchmen. In such cases the Treasury and Sub-treasury Officers should inform the senior Police officer in the station and request him to order special attention to be paid to the treasury strong rooms by the Police on night rounds, if in their opinion such a watch is necessary.

(G. Rs., R. D., No. 3146/45, dated 24th December 1947 and 10th July 1948.)

(7) The special guards in jails over prisoners condemned to death should be visited at night twice a month by Police officers not lower in rank than a Sub-Inspector or a senior Head Constable. Visits should not be paid on fixed days or at fixed hours, but varied so that such guards may not know when a visit may be expected.

(I. G.'s No. 9383-C, dated 22nd June 1909.)

(8) (a) The duty of performing night rounds belongs properly' to Assistant and Deputy Superintendents of Police, Inspectors and Sub-Inspectors. The Superintendent of Police should occasionally check this work and that of the patrolling Head Constables and Constables, by doing rounds himself. It is, however, not necessary that the Superintendent of Police should do this regularly every week as a matter of routine. Assistant and Deputy Superintendents of Police are expected to take night rounds regularly every week.

(I. G.'s No. 10018-, dated 21st August 1919.)

(b) The Sub-Divisional Police Officers, the Circle Police Inspectors and Sub-Inspectors, during night rounds, should visit Police Stations and Chowkies, make necessary entries in 'Station diary' or 'Chowky Visit Book', as the case may be, as well as, in the note books of Policemen they come across and checked during night round. They should make entries in their weekly diary relating to night rounds showing the chowkies and Police Stations visited on a particular night, the areas in which policemen on' night rounds were checked, the name~ of Policemen as well as a brief mention of the defects or defaults if any, noticed by them.

(I. G. P.'s No. G/642, dated 10th April, 1964.)

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(c) When a night round man is not found present in his beat or sector allotted to him for night round, the chuckling officer should arrange to keep a watch at the place of such police-man's duty and go to the residence of police-man concerned and ensure that he has not gone home to sleep.

(I. G. P.'s No. G/642, dated 13th May 1964.)

(9) Superintendents of Police will give special attention to the important duty of night rounds in headquarters towns and when on tour in the more important towns in the districts. They will also see that their Assistants. Deputies, Inspectors and Sub-Inspectors do not neglect their work in this direction but that the night patrols and Head Constables and constables on other town duties are kept up to the mark, especially on dark nights, by visits t irregular intervals from superior officers of all grades.

(I.. G.'s No. 15858-A, dated 31st october, 1908.)

(10) (a) The Superintendent of Police will depute Constables who have special local knowledge of the bad characters of their Police Stations to the railway stations in the district. Where provision for this purpose has been made in the strength of the district.

(b) In order to prevent crime against person and property at way-side railway Stations i nd in order to afford protection to railway staff. Night beats should be deputed from the local Police Stations and efforts should be made to form resistance groups from amongst railway employees in the affected areas.

(I. G. P.'s No. G/1927/71, dated 2nd November 1971).

(11) District Police are entitled when on duty, to appear and to remain on the duty, to appear and to remain on the platforms of railway stations. A station master has no power to order the removal of a District I Police Constable who may be there on duty.

(12) A Policeman sent on duty in private clothes to railway station platforms to watch suspected characters moving by trains should have a written order (a general order, not a fresh one every day) from his Inspector or Sub-Inspector as the case may be, and should produce it and his Sanad, if required by the Station Master.

(13) The duties of the Constable will be :-

(i) To be present at the station for arrival and departure of all passenger trains;

(ii) To watch the arrival and departure of passengers;

(iii) at stations where there are Railway Police, to report to the Railway Police officer particulars of any known or suspected bad characters booking from his station in order that such officer may warn by telegram the station of destination and through the Railway Police there, the District Police.

(iv) at stations where there are Railway Police, to telegraph such particulars of any the next Railway Police Station to which the train is proceeding, so that similar action may be taken;

(v) To report to the travelling Constable (that is. the plain clothes Policeman travelling with the train), if any similar particulars, in order that the travelling Constable may warn the station of destination and. through the Railway Police there the District Police (the travelling Constable will enter the name of the Police Officer and the information given in his note book);

(vi) in the case of a District Police Constable to receive any communication from the 'Railway Police and travelling Constable if any, for report to his Police Station and if any suspected persons alight, to send immediate information through the village Police or otherwise to the officer-in-charge of the District Police station. .

(14) Sub-Rules (10) to (13) apply mutatis mutandis in the case of a Policeman on duty at a steamer port.

(15) All information secured by men on patrol duty in towns must be noted by them in their note books which must be checked by officers.

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Chapter III

84. **Road Patrolling:** (1) Patrol duty on country roads should ordinarily be entrusted to armed constable.

(2) Whenever possible, the services of village Police may be used for the purpose.

(3) Policemen on road patrol should observe all passengers and vehicles, take special note of persons and suspicious appearance and ascertain all particulars about wandering gangs met or seen near the road (where they came from and where they are going) and report what they learn to the officer-in-charge of the Police Station or to their Head Constable.

(4) During days of scarcity, the following precautions should be taken.

(i) All patrolling between villages (especially on important thoroughfares) should be done at night instead of by day.

(ii) On all roads along which there is much traffic, cart men and travellers should be advised at the various halting places to do their stages in company and to keep together as much as possible so as to be more or less of a protection to one another.

(iii) On Bazaar days in towns and villages, the people attending the bazaar from out villages should be advised to get home before dark and, if they are likely, to be benighted, to stay in the bazaar village till next morning, if possible, and in any case to keep together as much as possible, when returning to their villages.

(I. G.'s No. 3849, dated 14th May 1906.)

85. **Special Patrol.**-(1) The special patrol is generally established to guard against the actual raids in certain suspected localities. Ordinarily this duty should be performed by Unarmed Police; but if matters are beyond control, Armed Police may be utilised. The special patrol should never be split up, but should be kept compact and should receive definite orders regarding the object for which it is detailed, and about the villages to be visited and camped. [Practical Notes: Page 118, para (5).]

(2) With a view to keeping the teleprinter and telegraph circuits in perfect good condition, special Police patrols should be arranged on the Budget (Central Government) Day in the sections where copper wire thefts are prevalent.

(I. G.'s Cir. Memo. No. G/4746-II, dated 26th February, 1959.)

86. **Supervision of patrolling and giving details of special parties in monthly crime review.**-(1) Details regarding village patrolling, town patrolling, road patrolling and special patrols have been given in foregoing Rules. In order to obtain effective results, the primary need is the supervision of these patrolling by the Sub-Inspectors, the Circle Police Inspectors, the Sub-Divisional Police Officers and the Superintendents of Police. In order that patrolling duty men remain active during their duty, the superior officers should arrange surprise checking of patrol duty men and see that they

perform their duties properly and do not while away time either in sleeping or sitting in interior villages or sitting at hotels or cinema houses etc. The Sub-Inspectors of Police, the Circle Police Inspectors, the Sub-Divisional Police Officers and the Superintendents of Police should arrange surprise checking of patrol duty men and take appropriate action, if anyone is found negligent in duty.

(2) The Superintendents of Police should attach a detailed note with their monthly crime review showing the dates of posting of special parties and reasons for posting of the same.

(I.G. P. 's No. G/642, dated 25th May 1964.)

87. Precautions to be taken when walking in Railway Lines.-(I) Police officers should exercise the utmost care, especially at night, when walking in the railway line. The officer in charge of a Police party should realize that it is his duty to see that the following precautions are taken for the safety of his men: - .

(i) Lamps with red slides should be carried, if possible and necessary.

(ii) Enquiries should be made from the preceding and advance stations regarding the trains which are expected in either direction.

(iii) The station masters should be asked to tell engine-drivers to be on the look out.

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(iv) The officer in charge of the Police party proceeding on the railway line should keep his men well together and on the alert and, as far as possible, to the side of the line.

(v) When crossing a railway bridge, where there is no proper foot-path, men should be sent in batches and a system of signals should be arranged. A reliable officer should be kept in the rear. .

(G. L., H. D., No. 4770-D, dated 19th November 1923.)

(2) (a) No person under the age of 20 years will be employed on the protection of the railway line on the occasion of the President's journey by train.

(b) Villagers employed on such duties will invariably be warned not to lie or sleep on or walk along the track or between the rails.

(G. R. H D., No. 4477/3, dated 2nd March 1934.)

88. Travelling Police Guard on Night Passenger Trains.- The primary object of sending police guards with night passenger trains is to protect the persons and property of passengers the guards should, therefore, strictly carry out the detailed instructions given to them as to how they are to work, what they are to look for, what they are to do when successful in marking down a suspect and other important matters likely to make for efficiency. Above all, no effort should be spared to prevent the system degenerating into a mechanically and perfunctorily performed duty.

In this connection the following points might receive attention:

(i) A single Constable on a train is virtually useless; therefore two or more should be detailed, if possible.

(ii) In order to make the available staff as effective as possible, resort should be had to any variation in the mode of employing such guards as is likely to introduce an element of surprise and thereby non-plus the habitual railway thief on the look-out for possible Police interference with his plans. For instance, the guard might some times in uniform and sometimes in plain clothes, or part of it in uniform and part in Mufti; the same guards should not always be posted to the same trains; where all trains cannot be guarded, the train selected should be varied; the distance the guard accompanies the train, the points of joining and leaving the train etc., should likewise be changed from time to time; one member of the guard might ostentatiously leave the train at a station en route and his place be unobtrusively taken by another.

(iii) Intelligent men with an aptitude for this kind of work should as far as possible be selected and good work done by them promptly and suitably rewarded.

(iv) When trains cross State boundaries relieving stations for Police guards should be fixed where there is a Railway Police Station or Outpost. It will be the duty the senior Police officer of the Railway Police Station or Outpost present on duty to sign the note books of both guards in token of the train having been regularly placed up to, and taken over from, that place.

(G. L., H. D., No. 6578/3-D, dated 27th May 1936.)

89. Importance of checking of patrol books and note books by superior officers.-(i) Patrol books and note books should, if properly maintained and carefully examined afford the Superintendent or Sub-Divisional Officer a most valuable means of checking the work of Head Constables and Constables and judging their fitness for promotion.

(2) When occurrences come to notice in villages, if Superintendents of Police Sub-Divisional Officers, Inspectors and Sub-Inspectors make a practice of sending for the patrol books of the Head Constable or Constable concerned, they can see if that officer has been performing his duties satisfactorily or otherwise. Another check is to compare during inspection the entries patrol books with those in the various registers usually kept by Police Patel's, such as the visit book, Suryel1lance register, Register of Convictions, register of wandering gangs and register of arrivals and departures. When patrolling officers find that their books are systematically checked and an interest taken in their work, they are likely, to show greater keenness and thoroughness, especially when they find that misleading or incorrect entries or perfunctory work is likely to render them liable to punishment.

(3) To establish an efficient system of patrol, it is essential in the first place that clear standing orders should be issued by the Superintended or Sub-Divisional Officer laying down: the manner in which patrolling is to be done in villages as well as in towns and the nature of information to be collected and entered in their patrol books or note books by the patrolling officers.

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But no system however good and complete it may be, is ever likely to bear good results unless the work done by the men is constantly and systematically watched and checked by the Inspector and Sub-Inspector and the books and men thoroughly examined by Superintendents or Sub-Divisional Officers when on their tour of inspection and at other times as often as possible.

(I. G.'s No. 10681, dated 23rd October 1899)

(4) Whenever Police Officers go out on duty, no matter what rank or grade they may be they must keep pencils and Note Books with them.

(I. G.'s Cir. Memo. No. 527, dated 5th July 1955.)

90. Exchange of information regarding bad characters between Railway and District Police.-(i) To help the Railway Police in tracing the whereabouts of suspected persons residing in the districts, the Superintendent of Police or the Sub-Divisional Officer should direct his Sub-Inspectors, when called on by officers of the Railway Police, to supply direct lists of convicted persons living in their jurisdictions.

(I. G.'s No. 6984-A, dated 26th July, 1901).

(2) Each Railway Police Station will be furnished by the officer-in-charge of the District Police Station concerned with a list of all bad characters residing in his charge that are likely to make use of the railway in the course or for the purpose of committing crime. This list will contain the names of persons of this description who are entered on the district of Register of Index to History Sheets and will unless there are reasons for omission include those who have been previously convicted of railway crime.

(3) In order to differentiate between ordinary and railway crime, Officer-in-charge of District Police Stations should make a distinguishing mark against each conviction for rail-way crime in the Village Conviction Register. Officers-in-charge of Railway Police Stations will report as occasion arises, to the officers-in-charge of District Police Stations the names of persons resident in their jurisdiction who

are strongly suspected of railway crime. These names will be added to the list mentioned in the foregoing Sub-Rule. Officers-in-charge of Railway Police Stations and District Police Stations will arrange to keep these lists in agreement and up-to-date. The Railway Superintendent of Police will communicate to the Superintendent of Police of the District the names of such person's resident in the district and convicted or strongly suspected of railway crime as, in his opinion, should be placed on the district Register of Index to History Sheets. The Superintendent of Police on receiving the report of the Railway Superintendent will issue such orders as he considers necessary to the officers-in-charge of the District Police Stations. Officers-in-charge of Railway Police Stations should keep duplicate copies of History Sheets of persons suspected of committing railway Crime which have been opened by the District Police.

(4) As regards the Commissionerate area, the Commissioner of Police will cause the 'Railway Police to be furnished with lists of those persons only who are likely to use the 'railways in the course or for the purpose of committing crime.

(5) The Railway Police should take steps to make themselves familiar with bad characters such as those mentioned in the preceding Sub-Rule. For this purpose Railway Police-men should be sent to the neighbouring District Police Stations, the officer-in-charge of which should render them every possible assistance. The deputation of Railway Policemen to Commissionerate area for a similar purpose is left to the discretion of the Inspector-General of Police, and the Commissioner of Police will give every facility to men, if deputed by the Railway Police.

(G.R., H. D., No, 568, dated 22nd October 1923 and G. R., H. D., No.2525, dated 2nd May 1910.)

91. Bad characters lost sight of.-(I) Whenever Superintendents of Police or Sub-Divisional Officers on examining the Register of Index to History Sheets or on mustering the Sayrevillees if possible, at the inspector of Police Stations and outposts [vide Sub-Rule (9) of Rule 71] ascertain that any such person or persons are absent and their whereabouts can-not be traced the particulars of such persons should invariably reported at the time to the Deputy Inspector-General of Police, Criminal Investigation department (Crime & Rail-ways) Ahmedabad in the prescribed standard form for notification in the Police Gazette. A watch should be kept on the names so published, and if any of the persons have returned to their villages or are traced or arrested. their names should be reported to the Deputy Inspector-General of Police Criminal Investigation Department (Crime and Railway), Ahmedabad for removal from the list of missing suspects.

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(2) (a) Superintendents of Police and Sub-Divisional officers should pay particular attention to tracing the whereabouts of the bad characters of their districts and impress on all officers-in-charge of Police Stations that enquiry regarding every bad character who has passed out of sight is not to be relaxed, until it is definitely and finally ascertained what has become of the individual. They must be warned that this is an important part of their duty and that any neglect on their part will render them liable to serious consequences.

(b) Detailed instructions regarding steps to be taken are given in rules regarding Enquiry Form (Rule 72) and Index to History Sheets (Rule 68).

(3) When an accused person is arrested whose name and antecedents are not known, the list in the Police Gazette should be carefully scanned with a view to seeing if he could be traced there from.

(I. Go's No. 220, dated 8th January, 1900, 2381, dated 20th February 1900, 7596, dated 27th June 1900, 13886, dated 5th December 1900, 3635, dated 2nd May 1901 and 7048-A, dated 30th August 1905.)

(4) A consolidated list of bad characters reported missing and absent during the previous year will be published in the Police Gazette at the beginning of every year. This list will be filed with the Police Gazette of the year to which it belongs and will be corrected in red ink from time to time, as absentees are reported as traced, dead, etc.

(G. M. J. D., No. 2565, dated 20th May 1904)

(5) To facilitate enquiries into the whereabouts of persons wanted by the Police, each Superintendent of Police will be supplied by the Manager, Government Central Press, with a sufficient number of copies of the Police Gazette to enable him to supply them to subordinate officers in his district.

(G. R., J. D. No. 4913, dated 30th July, 1901)

92. **Wondering gangs.**-(I) Special surveillance must be kept over all wandering communities such as Bhamptas, Berads, Budduks, Bavris, Nats, Chharas, Vagris, Daffers, Madaris, Rhatores, Lamanis, Wanjaras. Kaikadis, Kunjars. Minas. Sonnerias etc. Whenever suspicious persons from such communities are found at or near a village, the Police Patel will inform the Police Station or Outpost in the local limits of which his village is situated. It is essential for the Police to keep a constant watch at all railway stations, Dharmashalas and landing places, noting particularly any strange of suspicious persons who may arrive, making every possible enquiry about them.

(2) When such persons are reasonably suspected of criminal practices or causes alarm or danger, a complaint should be laid before the Magistrate of the District or of the Sub Division, with a view to measures being taken under Section 55 of the Bombay Police Act.

(3) (a) Whenever it is reported to the Superintendent of Police or the Sub-Divisional Officer that suspicious characters or wandering gangs have left or are about to leave his district for another, immediate information should be sent by him to the Superintendent of Police of the district to which the persons referred to may proceed. Officers-in-charge of Police Station should be instructed to communicate direct, in the same way, with officers of neighboring districts. In serious cases information may also be sent to the District Magistrate or the Sub-Divisional Magistrate of the neighboring district with a view to his actual under Section 55 of the Bombay Police Act.

(G. O., P. D., No. 7138, dated 8th December 1914)

(b) Bavri gang generally camp near Railway Stations and commit offences by employing the methods of "Rumali", or "Bar-bending" Bavris are known to have been using a "Drill" for opening doors and a "Gyan" for bending iron bars of doors or windows. The members of the gang generally disguise themselves as mendicants and roam about in the localities selecting suitable places of attack. They commit offence and distribute booty among all members of the gang equally. Irretentive of the fact whether any member was present at the time of the commission of the offence or not. They are hard criminal and often turn violent when confronted.

The Commissioner of Police, Superintendents of Police should be vigilant against the activities of the gangs of Bavris by taking prompt action under section 55 of Bombay Police Act and other provisions mentioned in chapter VIII of Criminal Procedure Code.

(I.G. P.'s No. G/1909/68, dated 30th August 1963)

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(4) The issue of good character certificates to gangs emigrating from the district in the State of Gujarat is forbidden.

(G. R., J. D., No. 8023, dated 2nd December 1915)

(5) Details of such gang and its members shall be entered in gang Register maintained in form No. P.M. 127 eg.

93. Action against Gangs of Foreigners.-(I) The States on the frontier of India are responsible that foreign vagrants and gypsy gangs are not allowed to pass into India.

(2) In any State where such a gang commits any depredation, no effort should be spared in bringing the chief offenders to justice for specific crimes, or treating them, as the law allows under Chapter VIII of the Criminal Procedure Code.

(3) On no account should such gangs be passed on under Police or other guards into other districts or States; but if deportation is deemed necessary, it should be carried out at once under the Foreigners Act, XXXI of 1946 (vide Rule 307) full lists and descriptive rolls. of the deported persons with finger impression slips of the leaders being prepared and for-warded to the Government of the State concerned on the frontier of India.

(G. O., J. D., No 7434, dated 3rd November, 1900 and G. O., J. D.; No, 5242, dated 2nd October 1903.)

(4) The Police should hand over the deportee to the Railway Police with his detailed, description in writing and full particulars of the reason for surveillance and should forward, to the Inspector-General of Police of the Frontier State a detailed description of the deportee. Railway Police should send word ahead to the station at which the deportee is to be passed, on to the Police of another State to ensure continuity of surveillance. This communication should also include a detailed description of the deportee. The formal communication received from the local Police should be passed on to the Police of the next State with the deportee, and the signature of the Police Officer to whom he is passed on under surveillance: should be taken on a copy thereof.

(G. R., P. D., No.3, dated 3rd January 1917.)

(5) Care should be taken to see that the statement of the persons to be deported claiming that he is a native of a particular foreign country should be supported by other satisfactory corroborative evidence. The mere statement that he is a native of such a country will not be considered as sufficient.

(G. C., P and S. D., No. 43/1112, dated 9th November 1933.)

(6) The finger impressions of all Pathans against whom an order is passed or who are i deported under Act XXXI of 1946 should, if possible, be taken and forwarded-

(a) Through the proper channel to the Finger Print Bureau of the State in which the persons are alleged or suspected to reside,

(b) to the Finger Print Bureau concerned, and

(c) to the Bureau or Bureaux of the State to which their operations are believed to extend.

(I. G.'s No. 6388, dated 4th August 1905 and G.R., H D., No. 2513-A, dated 28th March 1923.)

(7) On no account should safe conduct passes or licenses to carry arms be granted to" gangs of this type or to any members of such gang, and if arms or ammunition are found in their possession, they should be at once disarmed in accordance with the provisions of the Arms Act.

(G. R., J. D., No. 3770, dated 28th June 1979 and G.,O., H. D., No... 11851, dated 16th December 1920.)

94. Steps of procedure to be followed by the Police against wandering gangs of Foreigners.- (I) It will be the duty of the Police Patel to give immediate information to the officer-in-charge of the Police Station and to the nearest police Outpost on the arrival within the limits of his village,. of a wandering gang e.g. Heratis or Baluchis (Iranis), that make exactions from villagers and commit depredations.

(2) (a) Upon receipt of such information the officer-in-charge will at once, make a report to the Superintendent of Police and the nearest Magistrate, and will at once proceed to the spot where the gang is encamped. Should any members of the gang be armed with. out a licence, they should be disarmed in accordance with the provisions of the Arms Act.

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(b) The intentions of the gang should be ascertained, as soon as possible, from its headman. If they are making for their own or some foreign country, to which, in the opinion of the magistrate of the district, there is no objection to there being allowed to repair, the said Magistrate should take measures to induce the headmen to journey by such route, as will ensure their encamping only at villages large enough to supply their wants.

(c) If it appears necessary to the Magistrate of the District, he should report the names of the principal members of the gang to Government with a view to obtain written orders of the (Government of India under Section 3, Foreigners Act, XXXI of 1946, directing them to remove themselves from India by such route as that Government thinks best.

(d) Pending receipt of the order of Government on such a reference, the District Magistrate of each district through which the gang proceeds must act as in clause (b) above.

(e) In every case the Magistrate of each district on the route to be taken by the gang should be informed, as early as possible, by the Magistrate of the adjoining district of the probable date on which the gang will enter his district and of the arrangements or orders which have been made concerning it.

(G. O., J. D., No. 7434, dated 3rd November, 1900 and 5242, dated 2nd October, 1902.)

(3) The following instructions should be followed by the officers-in-charge of Police Stations as a first step towards deportation of gangs that give troubles:-

(a) Keep the gang within jurisdiction if possible at the Police Station or Outpost till orders are received from the Superintendent of Police or the Sub-Divisional Officer of its disposal.

(b) Submit to the Superintendent of Police or the Sub-Divisional Officer concerned an immediate report stating:-

(i) The strength of the gang,

(ii) The name, age and description of each member, and

(iii) Clear evidence of foreign origin; e.g., place of birth or residence, names of relatives there etc.

(c) Submit to the Superintendent of Police or the Sub-Divisional Police Officer, as soon after the first report as possible:-

(i) a list of previous convictions as ascertained from the Finger Print Bureau.

(ii) evidence as to other crime committed or annoyance caused, by the gang within the month, or at its last two or three halting places, and

(iii) if the gang becomes unmanageable before orders are received from the Superintendent of Police as to its disposal, arrest its leaders under Section 41(2) and prosecute them under Chapter VIII, Criminal Procedure Code.

(4) On receipt of the report under clause (b) of Sub-Rule (3) above, the District Magistrate should be asked to move the Government of India through the State Government to order the gang to remove itself forthwith from India by sea from the port of Bombay under Section 3 of the Foreigners Act. If the gang is likely to be unruly or to endeavour to clear off into the nearest foreign jurisdiction pending the receipt of the orders of Government, the District Magistrate should at the same time be asked to issue warrants of arrest against the adult male members of the gang under clause (g) of Sub-Section (2) of Section 3 of the Foreigners Act XXXI of 1946.

(5) The best method to tackle the gangs is for the District Magistrates, Superintendents of Police of the District and Railway Superintendents of Police to make full and vigorous use of Section 55 of the Bombay Police Act and break them up rather than hunt them from place to place. A sufficiently large number of armed Police with a Sub Inspector in charge should be dispatched by Superintendents of Police to make contact with any large gang found entering their jurisdictions and the Police should remain with the gang while evidence required for proceeding under the aforesaid Section is being collected and until orders made there under are duly carried out.

(G. C., H. D., No. 7325/4, dated 4th July, 1947.)

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(6) If the gang habitually commits thefts, or robberies, any or all of its members may be prosecuted under Section 401 of the Indian Penal Code. If the gang-

(a) graze its cattle on the crops in the neighbourhood of its camp, and intimidate and assaults the owners of the fields when interfered with (Sections 426, 427, 447, 352 and 323, Indian Penal Code and Section 161, 162, 163 and 164 of Gujarat Panchayat Act.)

(b) steals or seizes by force sheep belonging to villagers or shepherds (Sections 31 and 392, Indian Penal Code.)

(c) enters villages on the pretence of selling precious stones (the stones being generally false) and steals anything it can lay its hands on-their women especially are great pilferers-{Sections 379 and 380, Indian Penal Code).

(d) enters small villages and forces or intimidates the inhabitants to give it money, food etc. (Sections 384, Indian Penal Code), and

(e) drives away ponies or cattle grazing at the sides of the road with the cattle of the gang (Sections 379 and 403, Indian Penal Code),

every endeavour should be made to bring the offenders to justice. Should, however, it be found impossible to establish the identity of the guilty parties, the headman or Jamadar of the gang should be called upon to deliver up the offenders. Should he fail to do so, he together with the other headmen of the gang, should be arrested under Section 41(2) of the Criminal Procedure Code and proceeded against under Chapter VIII *ibid*.

(G. R., J. D. No. 495, dated 25th January 1883.)

(7) The last named measures may be taken against all or any of the members of the gang at any time, if they commit, or show a probable intention of committing a breach of the peace or any offence.

(8) Large gangs of foreigners should be prohibited from wandering about this State. Whenever the gang exceeds fifty, including women and children, two or three of the leaders should be deported, provided they refuse to break up into smaller bands, or else steps should be taken for dispersing them under Section 55 of the Bombay Police Act.

(9) The duty laid on a District Magistrate by Section 55 of the Bombay Police Act is not fulfilled by merely passing on a trouble-some gang to a neighboring district. He should take measures for dispersing it, whenever in number and combination are a source of danger or alarm to the peaceable community.

95. Deportation of undesirable Foreigners on expiry of imprisonment.-(1) Superintendents of Jails should always give ample previous notice to the Police officer concerned of the date and hour of the intended release of foreigners, against whom an order of deportation under the Foreigners Act XXXI of 1946 has been issued, so that suitable arrangements may be made for sending them out of India under Police surveillance. :

(G. R., P. D., No. 4349, dated 22nd July 1913.) .-

(2) When an undesirable foreigner is convicted and sentenced to imprisonment and it is considered desirable that he should be deported on the expiry of his term of imprisonment, an application for his deportation should be submitted to Government. If Government consider that the foreigner should be deported, they will issue at once an order under Section 3 of the Foreigners Act XXXI of 1946, without waiting for his release. This order should be kept with the papers concerning the convict and will remain in the prison, wherever the foreigner is undergoing his sentence. When the time for the foreigner's release approaches, the jail authorities should communicate the date of release to the local Superintendent of Police who should then make the necessary arrangements to take him over on release and serve the order of deportation, a copy of the order being handed over to the foreigner.

The Superintendent of Police who serves the order of deportation should give timely intimation of the departure of the foreigner to the representative concerned. In India, should submit a report to Government of the service of the order and should forward to Government with the report the duplicate copy of the order with service duly endorsed thereon. He should also forward the photograph and fingerprints of the foreigner to the officer on whose recommendation the order of deportation has been issued to enable him to publish the necessary information in the Police Gazette.

(G. R., P. D. No.S.43/616, dated 11th April 1928.)

Preventive Action

(3) Photographs of political deportees should, however, not be submitted unless order is received in that behalf from the Criminal Investigation Department.

(I. G.'s No. 52, dated 18th November 1933 and G.. C., P and S.D.. No. 9843, dated 10th October 1933.)

96. Externment of bullies.-(I) (a) when action under Section 56 of the Bombay Police Act is to be taken for the externment of bullies. (i) the Police should record evidence to show that the externee is by his movements or activities causing danger or harm to person or property or is about to commit an offence involving force or violence etc., and (ii) the externment proceedings should state that witnesses are not willing to come forward in public to depose against the externee. Unless both these conditions are fulfilled by the proceedings, the case does not fall within the purview of Section 56 of the Bombay Police Act.

(G~ L. H. D. No. 3065/5-3512-H, dated 8th October 1958.) '

(b) The Police officers authorized under Section S9 (1) or Section 55. Bombay Police Act as the case may be, by the externing authority should submit their reports within one month and the externing authority should pass orders thereafter within a week.

(G. C. H. D. No. SB-II/EXT/4058/21337, dated 8th October 1958.)

(2) The Commissioner of Police/Superintendents of Police should personally attend to the complaints received by them from the members of the public and watch the crime situation in the districts closely. Where the antisocial elements get away with acquittal or light punishment they should take strong measures to control them and resort to preventive action or externment in deserving cases.

(I. G. P.'s Cir. No. G/1926, dated 4th July 1963.)

(3) The supervisory Police officers should be able to ascertain independently whether there are undesirable or objectionable persons in the limits of Police Stations who are in habit of being intimate with the Police and then remove their contacts with the Police by careful supervision and visits to the Police Stations, Outposts. Patrol beats, etc. The supervisory police officers should make it a special point to weed out this menace by intelligent handling and developing intelligence about activities of goondas at the Police Stations, Out-posts and patrol beats level. The Commissioner of Police / Superintendents of Police should pay surprise visits to the Police Station. Out Posts and patrol beats so as to weed out the bad characters from having contacts with the Police impairing the image of the Police in the public eye.

(I. G. P.'s Cir. No. G/1927/CIB/66, dated 17th February, 1967.)

(4) The Commissioner of Police/Superintendents of Police shall see that the dossiers and the lists of goondas are maintained properly at the Police Stations, and the Crime Branch. The Police Research Centre in the office of the Deputy Inspector-General of Police. Criminal Investigation Department (Crime and Railways), Ahmedabad and the Local Crime Branch at districts should deal with the problem of goondas and collection of information and maintenance of statistics of the activities of goondas. The Commissioner of Police/ Superintendents of Police should furnish particulars of dossiers of goondas maintained by them to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railway) to enable the Police Research Centre to be helpful in dealing effectively in, curbing goonda menace in the State. The dossier shall be maintained in Form No.7 Appendix I.

G. G. P's Cirs. No.I G/1927/CIB/64, dated 17th February 1967 and G/1927/CIB/64, dated 12th April, 1967.)

(5) (a) The Deputy Commissioner of Police in the Commissionerate area and else-where the Sub-Divisional Magistrate shall send quarterly statements in the prescribed forms to the Commissioner of Police/ District Magistrate on the 10th of the following month with a View to see whether the externment proceedings are disposed of expeditiously or unnecessarily delayed. The Commissioner of Police/District Magistrate in turn shall send the information in the prescribed form to the Government, before 20th of that month.

(Govt. H. D. (Spl.), No. SB. I. EXT. 1067 dated 2nd May 1967 and No. SB. I. EXT. 1068/501 dated 15th April, 1968.)

(b) All Inspecting Officers including the Circle Police Inspectors must specifically check the lists of goondas etc. during the inspections of the Police Stations and ensure that the dossiers and lists are maintained up-to-date.

(1.G. P.'s No. G/1927/CIB/69 dated 21st November, 1969.)

(c) Whenever the Police start proceedings under the Criminal Procedure Code or of externment against any member of the Home Guard, necessary information in that connection should be sent to the Commandant General, Home Guards and the District Commandant, Home Guards, concerned.

(I. G. P.'s Cir, No. G/1947 dated 31st March. 1971).

(6) The Commissioner of Police, in Commissionerate area and the District Magistrate, the Sub-Divisional Magistrate or the Superintendent of Police specially empowered by the Government in the district may extern the members of gang, or body, or persons, or immigrants or persons convicted, as the case may be, from any local area, or any such area and district or part thereof, whether contiguous thereto or not.

(Section 63-AA of Bombay Police Act.)

(7) Certain non-cognizable cases must be attended to by the Police themselves with the Magistrate's permission instead of preferring complaints to the Magistrates in cases of complaints of harassment by bullies. Police should also consider action under Chapter VIII of the Criminal Procedure Code or externment or detention in proper cases.

(I. G.'s No. 6297, dated 6th January 1948.)

97. Police Register transfer system.-(I) It is desirable to arrange for the release in the districts in which prisoners have, or have established, their domicile, such prisoners as are likely to revert to crime. In order to arrange for such release advantage can be taken of the powers of the Inspector-General of Prisons under Section 29(2) of the Prisoners Act, 1900, to transfer prisoners from one prison to another. This is done under system known as the P. R. T. (Police Register Transfer) system.

(2) (a) The Police Register Transfer system should be applied only in the cases of persons against whom either of the following orders has been made and is in force:-

(i) Order to notify residence under Section 356 of the Code of Criminal Procedure, 1973. .

(ii) Order of restriction under the provisions of the Bombay Habitual Offenders Act.

(b) The P. R. T. System is not applicable to juvenile offenders released from the Industrial Schools and the Borstal Schools.

(G. R., H. D., No. 134.5/4, dated 25th March 1942.)

(3) When an officer-in-charge of a Police Station receives an order of conviction in respect of a person coming within the category mentioned in Sub-Rule (2) (a) he will report the case to the Superintendent of Police, through the Sub-Divisional Police Officer, together 'with particulars in Form P. M. 131. The Superintendent will then send a P. R. T. Slip in Form A (P. M. 134) to the jail. Details of previous convictions should not be entered on the slip, as these convictions are already noted in the warrants sent to Superintendents of Jails. On receipt of this slip, the Jail authorities will attach it to the prisoner's committal warrant, and make a note in the jail register that he is to be transferred prior to release to the jailor sub-jail of the district of his domicile. These arrangements hold good for criminals of this State as well as for those of other States. It will be necessary to make careful and thorough enquiries as to the criminals' correct place and district of domicile. When the local Police are unable to ascertain correctly the domicile of such a criminal, the case should be referred to the Criminal Investigation Department (Crime) for orders.

(4) By district of domicile is meant the district which the prisoner has chosen to make 'his permanent place of abode, as evidenced by the locality of a series of convictions or by any other circumstances, such as the possession in it of land or other property or the pursuit of any permanent occupation. The district of domicile may also be the district of origin. but is not necessarily so. Failing any evidence of permanent domicile, district of domicile shall be construed to mean the district of origin, or, failing knowledge of this, the place where the prisoner was arrested.

(5) Besides sending the P. R. T. Slip (Form A) to the jail authorities, the Superintendent of Police will send a copy thereof to the Superintendent of Police of the district in which the convict is domiciled (if the district of conviction is not the same), and so furnish: the latter officer with information about one of his district bad characters, whose disappearance might not otherwise have been known.

(6) Form B (P. M. Form 135) is the intimation of impending release to be sent by the Inspector-General of Prisons to the Superintendent of Police of the district of release. This also will be sent with the P. R. T. Slip (Form A) to the jail and kept there with the prisoner's committal warrant. Both forms A and B will be attached by the Superintendent of the Jail to the nominal roll which he is required to send to the Inspector-General of Prisons for sanction prior to the transfer of a prisoner. Form B will be detached in the office of the Inspector-General of Prisons and forwarded to the Superintendent of Police concerned when he sanctioned nominal roll is returned by him to the transferring jail. This will ensure due notice being received by the Superintendent of Police of the impending release of a prisoner.

(7) When a P. R. T. prisoner is released before the anticipated dates either on payment of fine or furnishing security or on appeal, immediate intimation should be sent by the jail authorities to the Police of the district to which the prisoner was to have been transferred mentioning the reasons for the premature release.

(8) The number of the P. R. T. Slip (Form A) should be noted in the remarks column of the entry relating to the offence for which the person was convicted, in the Crime Register: of the Police Station as well as that of the Sub-Divisional Officer.

(9) There is no objection to sending Police Register transfer prisoners, transferred to-prisons outside the State, in private clothes and without fetters to jails in other States. But handcuffs will be necessary and Police relieving parties should have their own handcuffs, so that the relieved party can keep their handcuffs, ropes, etc. Thus there will be nothing to return from the destination, and no extra expenditure to the Jail Department. The escort parties must be on their guard against escapes.

(10) (a) In Commissionerate area the prevention of Crime Branch will arrange to get transferred such prisoners undergoing imprisonment in outside jails to a jail in Commissionerate area before their release.

(b) The Commissioner of Police/Superintendents of Police should check during their inspections whether the officers incharge of Police Stations have sent the case in form PM. 131 to him and if not the same should be got done and necessary action for negligence in addition be taken. They should also check up in their offices whether the cases referred to in form PM. 131 are promptly attended to and whether P.R.T. slips in form, A (PM. 134) have been sent to the jails. Police Register System is a very important system for prevention of crime as it enables the Police to know the present whereabouts of the criminals and as such, the Police should take full advantage of it. To this end, all the supervising officers, during their inspections of Police Stations, should see that the officers incharge of the Police Stations invariably send particulars of the criminals referred to in sub-rule (2) above in form PM. 131. Severe action should be taken for any negligence shown in this regard.

98. Prevention of Breaches of the Peace.-(I) The majority of riots and other disturbances of, the peace take place in connection with disputes regarding processions, festivals, fairs, right of way and other easements and similar matters. In order to prevent such breaches, the following steps should be taken according to the circumstances of each

(i) A Police Station Officer must always keep in touch with the information recorded in his records relating to crime in villages and acquaint himself with the occasions on which a breach of the peace is likely to take place.

(ii) When a probable disturbance is within sight, he should visit the place in question and try to ascertain the condition of public feeling by getting into touch with influential party and non-party man.

(iii) The village Police and patrol Policemen should be instructed to keep a vigilant watch on meetings held, handbills distributed and rumours set afloat, very often by outside agitators.

(iv) If the circumstances demand such action, the District Magistrate should be moved to issue a proclamation under Section 37 of the Bombay Police Act, prohibiting the delivering of

speeches, holding of meetings etc. at the place in question. Action may also be suitably taken under Section 108, Criminal Procedure Code (vide Sub-Rule (3) of Rule 99) against persons who may be delivering Inflammatory speeches or indulging in similar activities.

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(v) Higher officers, especially in the Gazetted ranks, should interpose by contacting the influential leaders of parties and even by distributing leaflets containing advice and warning, and should try to avert trouble with their assistance (vide Section 149, Criminal Procedure Code).

(vi) If the prospects of averting trouble are encouraging, steps should be taken to - concentrate sufficiently large Police strength in the vicinity of the scene where a breach of the peace is anticipated, as a mere show of strength is sometimes likely to be sufficient to avoid untoward developments. For this purpose all available strength of the Police force, especially armed men of the district, should be concentrated at the place. If necessary, the district strength may be augmented by reinforcement obtained from other districts through the Inspector-General of Police under Section 28 (1) of the Bombay Police Act. The Commissioner, the Superintendent of Police or any Magistrate specially -empowered in this behalf by State Government, may if necessary, appoint special Police under Section 21 of Bombay Police Act, 1951.

(vii) If the breach of the peace is likely to arise out of a dispute in connection with any procession etc. steps should be taken to invoke the powers of the District Magistrate under Section 39 of the Bombay Police Act. The District Magistrate may also be requested to issue orders under Section 40 of the Act, temporarily closing or taking possession of buildings or places likely to be used as shelters by miscreants intend upon throwing missiles or making an attack.

(viii) In the case of a procession in dispute, superior Police officers should make supplementary orders for regulating the procession under Section 36 and 67 of the Bombay Police Act. If time permits, proceedings may be started against the ring-leaders under Section 107, Criminal Procedure Code (vide Sub-Rule (2) of Rule 99) and in case of the cause of the trouble is a dispute in connection with any land, temple or other immoveable property, under Section 145 of the Criminal Procedure Code.

(ix) If none of these steps proves or is likely to prove effective, the Magistrate concerned may, as a last resort, be requested to issue orders under Section 144 of the Criminal Procedure Code, temporarily prohibiting persons from doing certain acts, even if they are perfectly lawful.

(x) Higher supervisory officers, such as the Sub-Divisional Officer and the Superintendent of Police, should invariably be present on the scene of the apprehended trouble and should not leave the matter to be dealt with by subordinates.

(xi) If anti-social elements in Cities and factions in villages continue to commit {offences with the result that incidence of murder, stabbing etc. are likely to be on the increase, then strenuous efforts should be made to control such anti-social activities by taking more stringent action under Chapter and externment Proceedings.

(I.G's No. 7355, dated 12th May 1955.)

(2) For the successful prosecution of cases filed for breach of an order made under Section 37(1) and 37(3) of the Bombay Police Act, the Police officers should in addition lead evidence on the following points:-

(i) evidence of promulgation of the notification through loudspeakers, affixing copies of such notifications at permanent places in the areas and publication in newspapers;

(ii) evidence of sufficient notice given to the public to enable the court to know that ample opportunity was given to the public to know about the notification; and

(iii) evidence of circumstances under which such notification was issued by the authorities.

(I.G. P.'s Cir. No. G/1927/69 dated 17th November, 1969.)

99. Proceedings under Chapter VIII of the Criminal Procedure Code.-(I) Section 106, Criminal Procedure Code.-Security for keeping the peace can be demanded by a trying Magistrate from an accused person convicted of an offence involving a breach of the peace, in addition to the sentence passed for it. All that the Police have to do is to suggest to the Magistrate the necessity of taking action under that section. The Sessions Judge or the Court of a Magistrate of the First Class may order a person to execute a bond for keeping peace while convicting a person in the following categories the offences:-

(a) Offences punishable under Chapter VIII of the Indian Penal Code other than an offence punishable under Section 153 A or 153 B or 154,

(b) offences which consist of or include assault or using criminal force or committing mischief,

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(c) Offences of criminal intimidation, and

(d) any other offence which causes or was intended or known to be likely to cause a breach of the peace.

(2) (a) Section 107 Criminal Procedure Code.-According to Section 107 of the Criminal Procedure Code, when an executive Magistrate receives information that any person is likely to commit a breach of the peace or disturb the public tranquility or do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquility he may require such person to show cause why he should not be ordered to execute a bond for keeping peace etc. not exceeding one year. According to the Section, only an executive Magistrate is empowered.

(b) Proceedings under Section 107 are an effective means for preventing a breach of the peace or a disturbance of public tranquility, which is reasonably apprehended in connection with religious processions, festivals fairs elections or any political movement. It is not always essential in every case that there need be two parties fighting against each other It must, however be clear that a breach of the peace is imminent unless averted by proceedings under the section.

(c) Before starting proceedings under this section the Police should collect evidence oral or documentary, of persons (including Police officers) acquainted with the circumstances of the case, regarding-

(i) The specific occasion on which the breach of the peace is anticipated. -

(ii) The existence of a cause, quarrel or other circumstances, which is likely to lead to the breach and the period of its duration.

(iii) the declarations of the parties indicating their determination to carry out or to prevent certain things in connection With the subject-matter of the quarrel.

(iv) The strength and the following of the party or parties; and

(v) Attempts made for conciliation. With their results etc.

(d) It is not necessary to record elaborate statements of witnesses' short notes being sufficient. The provisions of Section 162 Criminal Procedure Code do not apply to any statements or notes made in connection with such an enquiry. In fact the inquiry is not governed by any of the provisions of Chapter XIV of the Criminal Procedure Code.

(e) The proceedings should be initiated by a Police officer lodging personally or sending by post to the Magistrate having jurisdiction information in writing specifying the name with full address of the person from whom security is sought to be demanded, the occasion on which the breach of the peace is apprehended, and the circumstances calculated to lead to the same and praying for security being demanded. The period and the nature of the security may also be suggested. The names with addresses of witnesses to be examined in the case should be mentioned in the information. Proceedings under this section can be taken before the Executive Magistrate when either the place where the breach of peace is apprehended is a person within his jurisdiction who is likely to commit breach of peace in: the areas outside his jurisdiction.

(f) The Magistrate will then issue process for the attendance before him of the person to be proceeded against. If it is desired to have, the person immediately arrested to prevent any imminent breach of the peace. a request may be made to the Magistrate for the issue of a warrant of arrest. The Magistrate dealing with the case will issue a preliminary order under Section 111, Criminal Procedure Code, calling on the person to show because why he should not be ordered to furnish

security specified in the order. The Magistrate will then record evidence tendered by the Police and also by the person proceeded against and make such final order as he deems fit in the light of the evidence recorded. If, pending the completion of an inquiry, it appears necessary to take immediate steps to prevent a breach of the peace or the commission of an offence the Magistrate should be requested to take interim security from the person.

(g) Care should be taken to see that action under this section taken against the party who is about to play an aggressive part calculated to lead to a breach of the peace and not against a person who is acting within his rights, though a breach of peace may be apprehended as a result of the activities of a person or persons who may feel aggrieved by the lawful exercise of such rights. In some exceptional cases it may be difficult to decide who is acting beyond his rights; in some other cases it may be desirable on account of some peculiar circumstances to proceed against both the parties, but these would certainly be rare. .

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(h) Orders under Section 107 may be passed upon the plea and consent of the person proceeded against without recording evidence as the procedure to be adopted is that of a summons case.

(i) Against two contending parties two separate proceedings should be instituted as persons proceeded against in both cannot be said to be associated with one another.

(j) In proceedings against opposite parties (factions) persons proceeded against in the one may be cited as witnesses against the other and vice versa.

(3) Section 108, Criminal Procedure Code.-(i) When a Judicial Magistrate of the First Class receives an information that there is within his local jurisdiction any person who within or without such jurisdiction (i) either orally or in writing or in any other manner intentionally disseminates or attempts or abets dissemination of (a) any matter the publication of which is punishable under Sections 124 A. 153 A. 153 B or 295 A of the Indian Penal Code, or (b) any matter concerning a judge acting or purporting to act in the discharge of his duties amounting to criminal intimidation or defamation (ii) makes, produces, publishes or keeps for sale imports exports, conveys, sells. lets to hire, distributes, publicly exhibits or in any manner puts into circulation any obscene matter (Section 292 I.P.C.) require such persons to show cause why he should not be ordered to execute a bond for his

good behavior No proceeding shall be taken under this Section against the editor, proprietor, printer or publisher of any publication registered under and edited, printed and published in conformity with the rules laid down in the Press and Registration of Books Act, 1867 except by the order or under the authority of the State Government or some officer .empowered by the State Government.

(ii) Proceedings for security for good behavior under this Section are generally taken against (a) Political agitators disseminating seditious matter by making speeches or distributing pamphlets handbills, etc., or matter which is calculated to promote racial hatred between different communities; (b) editors printers, publishers etc. of newspapers or other books, disseminating such matter.

(iii) The Police should collect evidence of speeches delivered or pamphlets distributed etc. and note in their reports persons at the meetings at which the speeches were delivered or those to whom the pamphlets were distributed. It is immaterial whether the objectionable activities of the person proceeded against took place within or without the jurisdiction of the Magistrate before whom the information is lodged. All that is necessary is that the person must be within the Magistrate's jurisdiction at the time when the information is lodged.

(4) Section 109 and 110, Criminal Procedure Code.-Proceedings under Sections 109 and 110, Criminal Procedure Code, are among the most useful means at the disposal of the Police for checking and controlling crime and should be resorted to in suitable cases. According to Section 109 of Criminal Procedure Code, when a Judicial Magistrate of the First Class receives information that there is within his local jurisdiction a person taking precautions to conceal his presence and that he

is doing so with a view to commit a cognizable offence, the Magistrate may issue Show Cause Notice. In the Criminal Procedure Code there is now no provision for no ostensible means of subsistence and, who cannot give satisfactory account of himself, which means that action can now be taken only against a person who conceals his presence with a view to commit cognizable offence only. Therefore, the evidence on the following points will be useful in proceeding under Section 109, Criminal Procedure Code:-

(i) The person proceeded against was found by a Policeman or any other person at an unusual time and in suspicious circumstances at a place where he had no business to go or remain at the time.

(ii) His movements costume or disguise indicated an attempt to conceal his presence or identity at the time and place.

(iii) When questioned, he gave a false name and residence.

(iv) His conduct e. g., an attempt to run away, was highly suspicious.

(v) He was making an attempt or exhibited conduct suggesting that his object was to commit an offence.

(vi) Letters or documents had passed between him and any other person suggesting that the concealment was for the commission of an offence.

(vii) He was in possession of implements of house-breaking, bunches of keys or master keys etc.

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(5) Section 110 Criminal Procedure Code.-When a Judicial Magistrate of the First Class receives information that any person.-

(a) is by habit a robber, house-breaker, thief or forger, or

(b) is by habit a receiver of stolen property, knowing the same to be stolen, or

(c) Habitually protects or harbours thieves or aids in concealment or disposal of stolen property, or

(d) habitually commits, attempts or abets the commission of offences of kidnapping, abduction, extortion, cheating or mischief or any offence punishable under Chapter XII of the Indian Penal Code or Section 489-A, 489B, 489C, 489D of the Indian Penal Code, or

(e) Habitually commits attempts or abets commission of offence involving breach of the peace, or

(f) Habitually commits attempts or abets commission of offence under:-

(i) (a) The Drugs and Cosmetic Act, 1940.

(b) The Foreign Exchange Regulation Act, 1947.

(c) The Employees Provident Fund Act. 1952.

(d) The Prevention of Food Adulteration Act, 1954.

(e) The Essential Commodities Act. 1955.

(f) The Untouchability (Offences) Act. 1955.

(g) The Customs Act, 1962, or

(ii) Any offence punishable under any other law providing for the prevention of hoarding or profiteering or of adulteration of food or drugs or of corruption, or

(g) is so desperate and dangerous as to render his being at large without security hazardous to the Community.

Such Magistrate may issue a notice under section 111 of code and take further action.

Provisions under clause (i) (a) to (f) and (ii) are new provisions added to the original section 110 of the old Criminal Procedure Code.

For the proceedings under Section 110 Criminal Procedure Code evidence should be collected as follows:-

(a) A Police Station Officer should prepare the ground well before starting proceedings under this section. It is desirable to prepare a History Sheet of a bad character to be proceeded against, taking care to note therein from time to time the reports against his character. Patrol Policemen should also inquire and note in their patrol books everything they learn against the individual so that the entries may later be useful in a -proceeding under the section.

(b) In addition to the material collected, as above the following types of evidence will be highly useful:-

(i) Evidence of previous convictions in respect of offences of a similar nature.

(ii) Evidence of person who testify to their having seen the person committing an offence or to their suspecting him to have committed it, in view of his presence at or near the scene or movement from or to it etc., though the statements of such persons may be uncorroborated and insufficient to sustain a prosecution in respect of that offence.

(iii) Evidence regarding the bad repute of the person 'Proceeded against the respectable witnesses who owing to their residence in the locality or otherwise, have means for knowing it.

(iv) Evidence of the unaccountable absence of the person proceeded against, especially at night time.

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(v) Evidence of his association with other bad characters, receivers or disposers of stolen property.

(c) As regards provisions (i) (a) to (g) and (ii), appropriate evidence to fit in the necessary clauses should be collected, viz. so far as, the Customs Act is concerned evidence should be collected that the person is a smuggler, his associations with smugglers, his visits, etc.

(6) If the person to be proceeded against under Section 109 or 110 is covered by section 41(2) Criminal Procedure Code, he may be arrested by a Police Station Officer and produced before a Magistrate. In other cases the Magistrate will issue process for his attendance after information has been lodged against him. The procedure regarding the collection of evidence by the Police and the lodging of information and the inquiry to be made by the Magistrate will be substantially the same as outlined in above Sub-Rule.

(7) The following hints should be carefully observed in taking proceeding under section 109 and 110, Criminal Procedure Code:-

(i) It is inappropriate to proceed against a person simply because a prosecution against him has failed.

(ii) A person who is already undergoing imprisonment ought not to be proceeded against as, while in jail, he is incapable of committing any offence.

(iii) Proceedings under both the Sections cannot be taken against one and the same individual at one and the same time.

(iv) Two or more persons may be jointly proceeded against under Section 110, if there is evidence to prove their association in their criminal activities.

(v) The statement of a witness examined in proceedings under Section 110, Criminal Procedure Code, deposing to the commission by the person proceeded against of a certain offence does not amount to a first information of a cognizable offence and it is not necessary to register the offence.

(vi) Proceedings under Section 110 should be initiated by lodging information as soon as possible after the inquiry into the character of the person has been furnished. as the absence of evidence of any offence committed by him in the meanwhile indicates that there is no necessity to demand security from him.

(vi) Mere evidence of previous conviction unassisted by evidence of reversion to crime on the part of the person proceeded against after under going his last sentence will not be sufficient to support a demand for security.

(viii) The mere fulfillment of the terms of these provisions (Sections 109 and 110. Criminal Procedure Code) is not enough and before making a final order under Section 117 Criminal Procedure Code, the Magistrate must find it proved to be necessary for maintaining good behavior that the person in respect of whom the inquiry is made should furnish security, the elements required to establish such a necessity varying in individual cases.

(8) Instructions regarding Institution of Chapter Proceedings against individuals.-- To avoid indiscriminate and injudicious use of Chapter Proceedings as also the delay in the disposal thereof, the following instructions should be scrupulously followed by Police officers :-

(i) Chapter Proceedings should not be filed unless there is a real need

(ii) Even when there is a need, both the parties need not be indiscriminately proceeded against without any attempt being made by the Police to ascertain as to which is the offending party and which is the party acting within its rights;

(iii) The Chapter proceedings should not be so much delayed as to defeat their real purpose and to constitute a harassment to the parties. To avoid this the Police officers should on their part assist the Magistrate in the speedy disposal of the chapter proceedings and eliminate delays attributable to causes such as non-service of summonses on parties and witnesses and non-attendance of Police officers in Courts.

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(iv) Institution and sometimes even the threat of institution of chapter proceedings constitutes useful preventive weapon in the take of maintenance of law and order, and it is not the intention of the superior Police authorities to impose any fetters on the powers of Police to use this weapon for its intended purpose.

(I. G.'s Cir. No. 7490, dated 12th January 1956; G. R. H. D. CDR 1553/93216-N, dated 6th January 1956; I. G.'s No. G/8275, dated 15th March 1958 and G. C., H. D. No. C. II. 1357/C-5511-VIIly dated 21st February 1958.)

(9) The Commissioner of Police/Superintendents of Police should instruct their subordinates that proper ingredients of Sections 107. 109 and 110 of Criminal Procedure Code should be incorporated in filing cases under these Sections.

(I. G. P.'s Cir. No. G/1927/67, dated 26th December. 1967.)

(10) As instructed above, it is not desirable to file chapter cases against both the parties in a routine way but chapter case should be filed against a person or party who is aggressor / aggressive.

(I. G. P.'s Cir. No. G/1927/70, dated 22nd September 1970.)

(11) (i) The Commissioner of Police/Superintendents of Police should see that the subordinates continue to take interest in chapter cases till decided in the court.

(I. G. P.'s Cir. No. G/1909, dated 26th December, 1963.)

(ii) The Commissioner of Police / Superintendents of Police should instruct all Police officers to tighten up Police vigilance at the time of hearings of such cases and should see that no untoward incident takes place on the day of hearing when parties having gathered there are face to face.

(I. G. P.'s Cir. No. G/1909, dated 16th September, 1971.)

(12) (i) Police parties are being posted on account of the disputes because of Panchayat elections or land problem between two groups. The parties are continued for a longer period because of continuance of rivalry and likelihood of breach of peace even after filing chapter cases against both the parties. In such cases, the Commissioner of Police / Superintendents of Police should check up such disputes and send proposals, if any, for posting of additional Police at the cost of the two parties through the District Magistrate.

(I. G. P.'s Cir. No. G/1909 dated 16-9-1971.)

(ii) Whenever the breach of peace is imminent and the opponent or the party is arrested under Section 151, Criminal Procedure Code, the Police should see that interim bonds are taken under Section 116(3) of the Criminal Procedure Code for the prevention of breach of peace or disturbance.

(13) The Commissioner of Police/Superintendents of Police should impress upon the Police officers that they should invariably attend the court and give evidence and that cases should not be prolonged only for their absence and take appropriate action if it is known that Police officers have remained absent without valid reasons.

(G. C., G. A. D., No. C. II. 1061/N. dated 6th October, 1961).

100. Powers to alter functions allocated to judicial Magistrates.-According to the Criminal Procedure Code, a Judicial Magistrate can try cases under Sections 108, 109 and 110 Criminal Procedure Code. However according to Section 478 of the Criminal Procedure Code, if the State Legislature by a resolution so requires, the State Government may after consultation with the High Court by a notification direct that references under Sections 108, 109 and 110 of the Criminal Procedure Code to a Judicial Magistrate of the first class shall be construed as references to an executive magistrate.

101. Production of persons arrested by Police under section 41(2) or 151 Criminal Procedure Code.-An arrest under Section 41(2) or 151 of the Criminal Procedure Code is for a preventive purpose. A person so arrested under Section 57 of the Criminal Procedure Code is to be produced before a Magistrate within 24 hours. The Police Officer, effecting such arrest, is required to report to the concerned Magistrate under Section 58 of the Criminal Procedure Code in the prescribed form. The report should also be accompanied by a statement giving reasons for the arrest such as the information about the details of designs to commit a cognizable offence together with a recommendation for further action. If action under Chapter VIII of the Criminal Procedure Code is proposed to be taken, that should be done promptly before the expiry of the period of 24 hours.

(G. C., H. D., No. PRO-2358-90669, dated 14th April 1959 and G. C., H. D.

No. PRO-2365-90669, -Dated 7th February 1963.)

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102. Preventive action in case of disputes over immovable property, such as land disputes etc.-(1) (a) Section 144, Criminal Procedure Code.-Proceedings under Section 144, Criminal Procedure Code can be taken when there is urgent necessity to prevent nuisance or apprehended danger. The order can be addressed to the public or to a particular individual. Orders to the public can be passed directing any person to abstain from certain acts etc. if it is considered necessary to prevent disturbances of public tranquility, riot or affray. In case of emergency, ex-parte orders can be passed. The order can be rescinded or altered on the application of the aggrieved person or suo motto. In case applications are received from aggrieved persons, they should be given early opportunity to show cause against the order. Orders passed under this section remain in force for two months. The orders can extend to public places or streets or to private places. While passing orders under Section 144, it is not necessary to consider the legal rights or established customs of the persons concerned.

(b) Under this Section, any executive magistrate, other than District Magistrate or the Sub-Divisional Magistrate, could be specially empowered by the State Government alone to act under the provision. The proviso to sub-section 4 of Section 144 of the Criminal Procedure Code, is more specific. The provision fixes an outside limit of six months for which the State Government may

continue the order, which means that this period of six months may be further period, i.e., in addition to two months to the original order issued by the Magistrate.

(2) Section 145 Criminal Procedure Code.-Proceedings to be taken under this section when disputes concerning land or water etc., are likely to cause breach of peace (expression land or water includes buildings, markets, crops or other produce of lands, unserved form the land, and the rents or profits of any such property). The object of the section is to maintain statuesque i.e., party in possession to retain possession of until legally evicted after enquiry as to possession and the order made by the Magistrate forbids all disturbances of such possession until such eviction (prohibitory orders only made), The order made does not go to the root of the evil, the civil rights of the parties being left un-touched by the enquiry made by Magistrate, Proceedings under this section are lengthy and are not suited to cases of emergency and imminent danger. These proceedings are not a bar to proceedings under Section 107, Criminal Procedure Code.

103. Orders under Bombay Regulation XII of 1827.-(1) When a person is committed to prison in default of security under Chapter VIII, Criminal Procedure Code, a Magistrate should endorse his previous convictions on the warrant of commitment.

(G.R., J. D., No. 666, dated 1st February 1911.)

(2) Superintendent of Police may, in suitable cases, make proposals to the District Magistrate to exercise his powers under clause (2) of Section 27 of Bombay Regulation XII of 1827, to adopt precautionary measures of a preventive but more lenient nature against a person who has been ordered to suffer imprisonment in default of security.

(1. G.'s No. 8299, dated 14th September 1898.)

104. Measures for prevention and suppression of corruption.-(1) Superintendents should submit six-monthly reports of cases of corruption on the part of any person under their control direct to the Inspector-General of Police (with copies to the Range Deputy Inspector-General) so as to reach him by the 5th January and 5th July, giving concise details of each case dealt with during the preceding half year and accompanied by a statement in Form No.8 in Appendix I. If there be no cases of corruption to report, a formal report to that effect should be submitted in due time. The Inspector-General will submit six-monthly statements to Government by the 15th January and 15th July, showing the numbers of such cases which have occurred during the past half year and the results of the inquiries. Cases in which inquiries are pending should not be included in these statements.

(1. G.'s No. 5229-XIII, dated 18th December, 1946)

(2) Every opportunity should be taken to impress upon the students and Head Constables under training at the Police Training Schools and on officers and men, particularly recruits under training, in the districts that corrupt practices must cease.

(3) Wide publicity should be given to the punishments inflicted on Policemen found guilty of corruption, whether in a judicial or in departmental proceeding.

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(4) All Heads of Offices will prepare a six-monthly statement, in January and June every year, showing the action taken against Government servants for corrupt practices so far as their respective offices are concerned, without, however, mentioning the names of the Government servants against whom the action was taken, and circulate the same to the members of the staff in their respective offices.

(G. C., P. and S. D., No. 1581/34, dated 28th September 1948)

(5) A consolidated statement of cases of corruption will be prepared and published by the Commissioner of Information and Tourism in the form of a press note and Heads of Departments will publish summaries of relevant extracts from the press note in their respective departmental journals.

(C. M. P. and S.D., No. 1581/34-D, dated 17th August 1946)

(6) With a view to obviating the opportunities of acceptance of illegal gratifications in cases of offering bail, the Superintendent of Police and the Sub-Divisional Police Officers, while inspecting Police Stations under their charge, should make it a point to examine a few cases of refusal of bail by the Police and find out, if necessary by personal enquiry with the persons concerned, whether the refusal of bail was or was not justified.

Similarly in the matter of recommending licences, the inspecting officers mentioned, above should take necessary measures to reduce delay in disposal of references pertaining to recommendations for grant of licences and see that the cases are not unnecessarily delayed.

(I. G.'s Cir. Memo No. G/34, dated 21st August 1958.)

105. Appointment and powers of Police Officers as special executive Magistrates.- (1) Under Sub-section (1) of Section 20 of the Code of Criminal Procedure, 1973 (II of 1974), the Government have appointed (1) the Commissioner of Police, (2) all Deputy Commissioners of Police and (3) all Superintendents of Police, Ahmedabad, as executive Magistrates in metropolitan area of the City of Ahmedabad and have conferred upon them all the powers of Executive Magistrates (other than a District Magistrate) under the said Code in relation to the said metropolitan area.

(G; N., L. D., No. GR/500/CRC/I074/I/D, (dated 1st April 1974.)

(2) Under sub-Section (1) of Section 20 of the Code of Criminal Procedure, 1973 (II of 1974), the State Government have appointed the Commissioner of Police, all Deputy Commissioners of Police and all Superintendents of Police, Ahmedabad, as executive Magistrates in the district of Ahmedabad and have especially empowered them to exercise powers under Section 144 of the said Code.

(G. N., L. D., No. GK/506/CRC/I071/1/D, dated 1st April 1974.)

(3) The Commissioner of Police should endorse a copy of any order passed by him to the Chief Metropolitan Magistrate, Ahmedabad. Likewise, the Deputy Commissioners of Police and the Superintendents of Police should endorse copies of such orders to the Commissioner of Police as well as the Chief Metropolitan Magistrate.

(I. G. p's No. GJ1927/GR/62 dated 2nd July, 1965).

106. Free use of telegrams by the Police in matters relating to crime.-(1) With view to facilitate the detention of crime, the following Police Officers of the District and the Railway Police have been authorized to send "Special Police" telegrams viz:-

1. Inspector-General of Police.
2. Commissioner of Police.
3. Deputy Inspector-General of Police
4. Director. Anti-Corruption Bureau
5. Superintendents of Police.
6. Assistant Inspector-General of Police.
7. Principals. Police Training Schools
8. Deputy Commissioners of Police
9. Assistant Superintendents of Police.
10. Deputy Superintendents of Police
11. Inspectors of Police.
12. Sub-Inspectors of Police.
13. Head Constables.
14. Constables.

(G. R. H. D. No. MSC-I054/C-1125-D, dated 22nd June, 1956 & App. 8 of the P. & T. Vol.

XI. Part-III, 1969)

(2) In order to distinguish them from other messages, the senders will mark them "Special Police". These words will be signalled free in the service instructions.

(3) Special Police Telegrams will be charged for at double the rates for Express Telegrams and will take precedence over all telegrams except (i) Immediate (ii) Immediate Railway Service. (iii) Storm signal and (iv) Foreign State telegram.

(4) Police Officers authorized to send Special Police telegrams should see that concession is availed of in reference to important crime only.

(5) Special Police telegrams may be despatched during the hours the telegraph offices are closed for traffic, by the payment of extra fees at the rate of one rupee and fifty paise for each of the offices which may have to handle the telegrams during their closed hours:

Provided that, when more than one telegram is presented at the same time by or on behalf of the same sender, a late fee calculated at the rate of one rupee and fifty paise for "each batch of 5 telegrams or less, in respect of each closed office shall be payable.

(6) The concession regarding the precedence in transmission of Special Police telegram has been extended to the case of railway telegraph offices as well.

(G. R. P. W. D. No.T-9345, dated 20th August 1914 and Rule 16 (2) of P. & T. Man. Vol.I and 11-1969)

(7) Officers-in-charge of Police Stations should, where possible, send telegraphic reports to the Superintendent of Police and the Sub-Divisional Officer of the occurrence of any of the offences mentioned in Sub-Rule (1) of Rule 134, and the Superintendent of Police and the Sub-Divisional Officer should take action on receipt of such telegraphic information and not wait for a report by post or any other channel.

(I. G.'s No. 9209-B, dated 4th August 1919 and 2408, dated 6th October 1947)

(8) Sub-Inspectors and Inspectors should be encouraged to use the telegraph freely in connection with detection and pursuit of crime and criminals and for communicating important information. Conciseness in terms consistent with clearness should be insisted -on to secure economy.

(G. R., J. D. No. 1672, dated 18th March 1907, 2851 dated 28th May 1908 and I.G.'s No. 7206, dated 22nd June 1908)

(9) In cases of motor accidents involving loss of life, intimation should be sent to the Sub Divisional Officer/Circle Police Inspector at once by telegram and/ or by special report.

(I. G.'s No 39, dated 13th November 1948 and G/1909/73/2043 dated 30th May 1973.)

(10) Information regarding any occurrence endangering human life, Government servants or Government property should be despatched by the railway official concerned forthwith to the Superintendent of Police and, if possible, to the nearest Police Station, even in circumstances where the informant is unable to tender payment for its transmission by the Railway Telegraph. Where transmission by the Railway Control Telephone is likely to be the quicker method, the local railway officials should utilize it, if necessary, for the purpose.

(I G's No.3, dated 5th February 1941)

(11) Telegrams regarding the escape of prisoners, if sent as ordinary. are delayed and in a majority of cases prove useless. Such telegrams should, therefore, be classed either as "Special Police" or as "Express."

(I. G.'s No.3, dated 5th February 1941)

107. Stoppage of Railway trains at non-stop stations and detachment of a Railway carriage in a case of serious crime.-(I) In special and urgent cases, trains will be stopped at a station at which they are not booked to stop, on receipt of requisition in writing from a Magistrate or a Police Officer of not below Gazetted rank.

(G. R., H. D. No. 1443/3, dated 27th August 1932)

(2) In the event of the occurrence of murder or other serious crime in a running train, immediate steps should be taken to prevent the disappearance of evidence in the shape of finger prints, blood stains and other marks which might lead to the crime being brought home to the culprit. For this purpose the carriage or compartment concerned should be emptied of passengers and sealed as soon as possible by the first Police officer receiving information of the occurrence. In the event of no Police officer being available within a reasonable period, similar steps should be taken by the guard of the train. The Police officer or the guard should then arrange for the carriage to be detached at the first station at which arrangements could be made to replace it. At the same time instructions should be issued for the carriage to be sent by the first available train to the Railway Police Station having jurisdiction to investigate the offence.

108. Identity of Police Officers proceeding outside jurisdiction. -All Police officers proceeding on duty outside their jurisdiction to a place where they are personally not known to the local Police and requiring the latter's assistance and co-operation should take with them their Sanads or other evidence of identity for production if required. Local Police officers should require Police officers unknown to them to produce their Sanads or other trustworthy evidence of identity before they give such officers any information or assistance.

(I. G.'s No. 15815-A, dated 21st November 1913)

109. Investigation in military lines.-(I) So far as circumstances permit, Police officers should confidentially give previous notice to the officer Commanding, Adjutant or Orderly Officer of a regiment, when any investigation, search or arrest is contemplated within military lines, and they should wear their uniform, when engaged on such occasions. In order to avoid the risk of unfortunate incidents, it is desirable that the assistance of the Officer Commanding the unit should be sought before military lines are entered by the Police.

(G. R., H. D., No. 5120/3, dated 3rd August 1934)

(2) The services of soldiers are never to be used by the Police without the full knowledge and consent of their Commanding Officers. To "observe" a sepoy whose conduct is suspicious is clearly within the duty of the Police, but to treat with him for his employment without the knowledge of his Commanding Officer, in the detection of crime designed by his comrades or others is improper. When there are suspicious circumstances against sepoys the Superintendent of Police should privately and confidentially place all the facts before the Commanding Officer.

110. Treatment of certain offences for Police purposes.- (1) Section 36, 67, 68, 69 and 131 of the Bombay Police Act, read together, empower the Police. while regulating traffic in the streets, to prevent the infraction of any rule or order made under the Act or any other law in force for observances by the public in or near the streets (e.g. any rules or orders made under the Bombay Public Conveyances Act, 1920. or the Indian Motor Vehicles Act, 1939) and to exercise their discretionary power of giving only a warning instead of launching a prosecution in the case of infractions of such rules or orders as are in the nature of traffic rules and so are meant for observance by the public in or near the streets. If Police officers make reasonable use of these powers they will be able to enforce the law effectively but with fewer prosecutions and much time and trouble- of both the Police and public will be saved. Any Police Officer, who either warns an individual to desist from offending against any rule or temporarily restrains an individual failing to comply with his direction under Section 69, should note the name and address of the offender with the date and nature of his offence in his note book or diary. This will be useful for administrative purposes, e.g., as evidence against counter-complaints against the officer of either harassment or partiality.

(2) In dealing with certain classes of non-cognizable cases (i.e. those falling under Sections 117, 119, 131, 134, 137, 139, 140 and 144 of the Bombay Police Act) the Police instead of prosecuting may issue with advantage a written warning to the offender. informing him that they have evidence that he committed a breach of the law in circumstances which are specified (vide Section 151 of the Bombay Police Act.), The use of these written warnings is an effective deterrent to offenders and has the advantage of limiting prosecutions to cases in which the infraction is serious and/or the offence has been repeated after a warning.

(3) It is open to Superintendents of Police to issue such subsidiary instructions as, may be necessary to suit local conditions for the purpose of putting into effect the procedure described in Sub-Rules (1) and (2).

(I G's No 1, dated 11th January 1940)

(4) Under Sections 70. 71. 72 and 79, a Police officer can arrest without warrant any person who commits an offence punishable under Section 135 or 141 by contravening an order made under Section 37 or 55 respectively of the Bombay Police Act or an offence punishable under Section 122 or 133 of the Act. These offences should therefore, be treated as cognizable for all purposes and provisions of Chapter XII of the Criminal Procedure Code will apply to them.

(I G.'s No. 11 (5024). dated 4111 May 1950)

(5) Offences under Sections 4 and 5 of the Prevention of, Gambling Act. IV of 1887 are non-cognizable and should be treated accordingly.

(I.G.'s No. 3403, dated 8th December 1941 & No. 0/5122, dated 1st October, 1960)

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(6) Offences under the Public Conveyances Act, VII of 1920 and Section 118 of the Bombay Police Act, 1951 are cognizable. They should not be entered in the Cognizable Crime Register, Part VI with a view to lessen the scriptory work. They should however be entered in a separate register with suitable columns maintained for the purpose. The totals of these offences should be taken in class VI of the Crime Review for purposes of statistics.

(I G,'s Cir. No. G/34 (32) dated 22nd November, 1960)

SECTION II.-CASES REFERRED TO POLICE BY MAGISTRATES

111. Complaints referred to Police by Magistrates.-(1) When a complaint is made to a Magistrate under Section 200 of the Criminal Procedure Code, he must examine the complainant and the witnesses present if any, on oath. The Magistrate examining the complainant on oath must necessarily take down his statement in writing. This applies equally whether the complaint is of a cognizable or of a non-cognizable offence. It is not open to the Magistrate, without following this procedure, to send the complaint to the Police, asking them to treat it as information and to deal with it, as such a course would be a dangerous evasion of the law on the part of the Magistrate.

(2) If, after examining the complainant, the Magistrate has no doubt as to the truth or falsehood of the complaint, he must be guided by the procedure laid down in Chapters XV and XVI of the Criminal Procedure Code. If, on the other hand, the Magistrate has any "doubt as aforesaid, he may send it to the Police for investigation under Section 202. But before doing so, he must record his reasons for following this course. The Sessions Judge, will see that all Magistrates subordinate to him are aware of their duties in the matter of verification of complaints and recording reasons for ordering investigation by the Police. If, however, a Magistrate fails to record reasons, the Police officer concerned should not return the complaint to the Magistrate on the ground that no reasons have been recorded, but should carry out the judicial orders of the Magistrate, leaving it to the aggrieved party to move judicially in the matter. Sessions Judge, will see that subordinate Magistrates do not refer cases unnecessarily to the Police for investigation under Section 202 and that they do not permit investigations to be unduly delayed. Superintendents of Police and Sub-Divisional Officers should arrange to get intimation from Sub-Inspectors of Police of cases "Sent to them by Magistrates for investigation, if they need such intimation.

**(G. R., J. D. No. 4025, dated 21st June 1902 and G.R.H.D. No. 2998/5, dated 3rd July 1948,
G. R. J. D. No. 5101, dated 9th September, 1910 and G. R. H. D. No. 7578,
dated 21st September, 1925.)**

(3) When an investigation is ordered by a Magistrate under Section 202 of the criminal Procedure Code, the ultimate responsibility rests with him and not with the Police; so that reports called for under that section should be sent by the investigating officer direct to the Magistrate. It is open to the Magistrate ordering the investigation to direct that the report shall be submitted within a specified time and it rests with him to grant an extension of time in any particular case.

(G. R. J, D., No. 5101, dated 9th September 1910)

(4) In a case referred to the Police by a Magistrate under Section 202 they can make an investigation and exercise the powers, except that of arrest, which they possess in cases reported direct to them. After investigation, however, they can only make the report contemplated by Section 202 of the Criminal Procedure Code and cannot exercise the powers of arresting the accused and of submitting a charge sheet against him under Chapter XII of the Code. Even if the offence complained of is a cognizable one, the discretion rests with the Magistrate of issuing a warrant, when the law allows immediate arrest. In the absence of such a warrant, the Police should not arrest, except in cases of attempted or probable evasion or when a warrant of arrest cannot be obtained in time to prevent escape.

(G.R., H. D., No. 6218/3, dated 1st October 1935 and G.R., J. D. No.3, dated 3rd January, 1889)

(5) Where the Police report the complaint as false but the Magistrate disagrees with his view, it is not open to the Magistrate to order the Police to register it as a Police case and to bring the accused before him as if in a Police case. .

(G. R., J. D., No. 5096, dated 25th September 1891)

112. Cases referred to Police by Magistrates otherwise than on complaint.- When a Magistrate acts not upon a complaint but upon information received by him under clause (c) of Sub-Section (1) of Section 190, Criminal Procedure Code, it will be open to him to

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send the case to the Police for investigation under Section 155(2) or 156(3) of the Code according as it is non-cognizable or cognizable. The Police can then exercise all the powers, of investigation under Chapter XII of the Code, including the power to prefer a charge sheet against the accused, provided that where the offence is non-cognizable, the Police shall not arrest the accused, without a warrant.

(G. R. H. D. No. 6218/3, dated 1st October 1935)

SECTION III.- INFORMATION AND REGISTRATION OF OFFENCES

113. First information of a cognizable offence.-(I) Section 154 of the Criminal Procedure Code requires that every information of the commission of a cognizable offence, when given to the officer in charge of a Police Station, should, if given orally, be reduced to writing by the officer himself or under his supervision. It is not necessary that the information must be given necessarily by the person aggrieved by the commission of the offence. "Information" as contemplated by the Section is not the same thing as a "complaint" as defined in Section 2(d) of the Criminal Procedure Code. It follows that as soon as information is given, it should be recorded at once without waiting for the appearance of the aggrieved party. It also follows that once the Police machinery has been set in motion by the giving of information, there can be no withdrawal by the aggrieved party. Further, it is not necessary that the information must be given by a person having first hand information of the commission of the offence, so long as the person giving it undertakes responsibilities entailed by giving it.

(2) (a) When a person gives information to a village Police Patel, the latter sends his report about the information to the Police Station. In such cases, this report will be treated as first information for the purposes of the law.

Note:- As far as possible Police Patel should be instructed to bring the complainants to the Police Station for proper recording of the First Information Report.

(I. G.'s No. 369, dated 3rd July 1923)

(b) In many cases the Police Patel's do not mention the names of the accused persons, in the vardi report for some reason or the other, even though the names of the accused persons are a common knowledge of the people residing in the vicinity of the scene of offence. This failure on the part of the Police Patel's, leads the Court to disbelieve the witnesses. Therefore, Circle Police Inspectors and Police Sub-Inspectors should direct the Police Patel's to give names of the accused persons in vardi reports if their names are known.

(I. G.'s No. G/8315, date 12th March 1959)

(3) Every Outpost in a district will be supplied annually with one or more blank -books according to its requirements, the pages of which should be divided into two foils. The Head Constable or other officer in charge of the Outpost should enter therein all occurrences reported to him e.g. offences both cognizable and non-cognizable, and all other information which, it is necessary, should be communicated promptly to the Police Station. The foil on the right hand side should be cut and sent to the Police Station to which that Outpost is subordinate. When, however, any report, oral or written, of a cognizable offence is made to the officer in charge of the Outpost, he should merely enter the name of the person who brings the information, the name of the aggrieved person, if known, the nature of the offence, the names of the offenders, if known, and the time and date of receipt on both the foils of the blank and send one foil dully completed to the Police Station for further action. If the aggrieved person himself appears at, the .Outpost, he should, if willing, be directed to proceed forthwith to the Police Station. The fact that he is so willing or foils should be

recorded on both the foils. The officer in charge of the Outpost will then, proceed according to provisions laid down in Section 64 of the Bombay Police Act.

(I. G.'s No. 39, dated 27th September 1933 and 60, dated 20th December 1933)

Note.-First Information Report in one case is admissible in the counter cases.

(4) When information of such a cognizable offence is given direct to the Police Station, the name of the complainant, the nature of the Offence the names of offenders if known, and the date of receipt should be communicated on plain paper to the Outpost concerned for pasting it at its appropriate date in the blank book kept there. After pasting it in the blank book a remark should be made by the Outpost officer to the effect that the complainant had gone direct to the Police Station for giving information of the offence.

(I.G.'s No. 6289, dated 10th July 1901 and 3267,-A, dated 12th March 1915.)

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(5) As a first information can legally be recorded only by the officer in charge of a Police Station, the foil sent by the officer in charge of the Outpost to the Police Station under Sub-Rule (3) above will be treated as mere intimation that an offence has been committed and it will then be for the officer in charge of the Police Station, acting on such intimation, to contact the person who wishes to give first information and record his information for the purposes of Section 154 of the Criminal Procedure Code.

(6) Section 154 further contemplates that the person giving first information should be personally present before the officer in charge of the Police Station. Where therefore information is sent to the Police Station by a letter or through a verbal message by a servant or by telegraph or telephone it is for the Police Station Officer to judge, on the facts of each individual case whether the information is genuine and to treat it accordingly. If he thinks that the information so received is reliable he need not refuse to act upon it but may for the purpose of fulfilling the requirements of the law record the information is given either by himself or by any of his subordinate, Similarly information received through anonymous or pseudonymous communications or from rumours or the personal knowledge of the Police Station Officer or any other Policeman may in appropriate cases be treated as first information and acted upon after recording it in the same manner.

(7) In those cases in which information of a cognizable offence has not been given by any person to a Police Station Officer but that officer himself either suspects commission of an offence or has actually witnessed commission thereof, though it is not obligatory on his part to record the first information under Section 154, Criminal Procedure Code, it is always desirable that a Police Station Officer even in such cases should record the first information, though it may be a formal one, so that the information should afford an accused person a protection from any exaggeration which might subsequently be made in the evidence against him.

(I.G.'s Cir. Memo. No. 2400, dated 25th August 1954)

(8) First information of an offence as recorded at the Police Station is relevant and admissible in evidence under Section 8 of the Evidence Act. The information given by the offender himself should be recorded as a First Information Report. It should be left to the discretion of Courts to decide the admissibility or otherwise of any particular portion of this First Information Report. When First Information Report is given by accused himself it can be proved by taking evidence of the person who recorded the same.

In cases where complainant in a murder case dies, the prosecution should impress upon the court to treat the First Information Report as dying declaration.

(I. G.'s Cir. NOs. G/2162-III, date 29th July 1959 and 30th July 1959 and No G/1909/14384 dated 24th April 1972)

(9) In the absence from the Police Station House of a Sub-Inspector of Police (in some cases Inspector) in charge of the Police Station the senior Head Constable present there is responsible for recording the first information. When, however, the presence of the Sub-Inspector at the Police Station can be obtained in a few minutes and is considered desirable in view of the seriousness of the case reported, the Head Constable may obtain it by sending intimation to the Sub-Inspector at once, so that the Sub-Inspector may be able to record the first information himself.

(10) In cases in which the first information is recorded by the Head Constable in charge intimation should at once be sent to the Sub-Inspector, wherever he may be. It rests with the Sub-Inspector subsequently to verify the information and record any supplementary statement of the informant, as may appear necessary. It should however, be remembered that such a supplementary statement which a Sub-Inspector may record cannot be considered as part of the first information which is recorded under Section 154 of the Criminal Procedure Code.

(11) When a Sub-Inspector or Inspector in charge of a Police Station is on tour within the limits of his Police Station, he carries with him his powers as an officer in charge of the Police Station. If, therefore, he receives information of a cognizable offence while on tour, he should not direct the informant to go to the Police Station but should record it himself according to Section 154 of the Criminal Procedure Code and transmit it to the Police Station for further action and should meanwhile proceed with the investigation of the offence.

(G.L., H. D. No.196/4-D, dated 25th November 1938 and I. G.'s No. 47, dated 17th December 1938)

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(12) It is always advisable before recording first information to warn the informant against giving false or exaggerated information and also to give him an opportunity to think coolly what he wishes to say. If the information through whatever channel received, does not disclose a cognizable offence but indicates the necessity for further enquiry the Police Station Officer should note the information in the station diary and proceed to the place concerned; and if after inquiry he is satisfied that the facts disclose a cognizable offence, he should deal with it according to law.

114. Recording of first information.-(I) If the informant appears and gives information orally it should be taken down verbatim on the reverse side of the left hand foil of the first available blank form in the First Information Book maintained at the Police Station (Standard Form No. C.P.C. 14) If the space on one form is insufficient for recording the information in full it should be continued in the same manner on the reverse side of the next form and so on until the information has been completely taken down. After the information has been recorded in full it should be authenticated by the signature or thumb impression of the informant. If the information is given in writing it should be re-written in the First Information Book as aforesaid and got signed by the informant.

(2) The next stage is to fill in the columns in the First Information Book and transcribe the complete first information on the corresponding right hand foils of the Book. The portion authenticated by the informant, should be retained in the Police Station and the other despatched to the Magistrate as the first information report required by Section 157 of the Criminal Procedure Code (vide Rule 126 below) Should additional copies of the information be required for the case papers of the Police investigation or to be sent to an Outpost these should be made on plain paper. If there is any delay in the receipt of the first information report by the Police Station Officer at the Police Station. the Chowkidar or messenger bringing such report should be examined as a witness and his explanation for delay should be brought on record. For this purpose an attempt should be made to bring on record the correct distance between the Police Station and the village and the time ordinarily required for covering that distance on foot. If for any reason the Chowkidar is not available for giving evidence, the fact should be brought out in the evidence of the Investigating Officer.

**(G. R., J. D. No. 6642, dated 19th December 1905 I. G.'s No. 19497-C, dated 12th December, 1914,
G. R., H. D. No. 6169, dated 5th May 1925 and I, G.'s Cir. Memo. No. G/34, dated 2nd May 1959)**

(3) A copy of the first information as recorded in the First Information Report Book should be given to the informant as soon as it is recorded, except when it is received in writing. No fees should be charged for this copy. This procedure should also be followed where the information is first recorded by a Police Patel and passed on to the Police Station.

(4) The Commissioner of Police/Superintendents of Police, during their visits to Police Stations, either for the purpose of inspection or for any other purpose, should enquire that the

complaints given at the Police Station in regard to cognizable offences are invariably written down in the F.I.R. book, No attempt should be made by the subordinate Police officers to burk registration of cognizable offences.

(I. G.'s Cir. No. G/1909/dated 5th December 1968)

(5) While recording the complaints in the First Information Report the Police officers should assess the value of the property at the present rates, in cases where gold or silver ornaments are concerned for the purpose of treating the offence as a serious crime or otherwise.

(I. G.'s Cir. No. G/36 dated 11th August 1960)

(6) When an aggrieved person visits a Police Station and narrates facts which constitute a cognizable offence, but expresses a desire not to give a complaint, even then the officer who heard this information should register the offence describing the manner in which he received the information and proceed with further investigation.

(I. G.'s No. G/34/39 dated 30th November 1960,)

115. Kidnapping, abduction or missing persons cases.-(I) Reports about kidnap-ping or missing persons should be registered by the Police freely and promptly. Cases, which appear prima facie to be of kidnapping or abduction, should not be recorded as missing person reports.

(2) The correct age of the victim is a very important factor in such cases, and it is necessary that the same should be determined in the early stages of the investigation. In this connection, it should be noted that a radiological examination could not furnish definite evidence on this point. It is therefore necessary that all possible documentary and reliable oral evidence should be led to establish the age of the victim.

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(3) In cases of rape, kidnapping, abduction, child-marriage, juvenile delinquency, etc., conclusive proof of age is material. In such cases, the investigating officers must collect the following evidence:-

- (i) Copy of entry of the birth date of the person concerned made in the Register of birth.
- (ii) Identity and name of the person referred to in the above entry should be ascertained through the evidence of the parents / guardians.
- (iii) In case of more than one child, the birth certificates, names and identity of all should be proved.
- (iv) Vaccination certificate should be obtained and its contents must be proved
- (v) Entry from the school birth register supported by original admission form signed by the parents/guardians of the person concerned.
- (vi) In cases of Christians, an entry from the Baptism register should be connected and proved.
- (vii) Ossification test by the Medical Officer should be got done and original X-Ray plate should be obtained and person who took X-Ray should be examined.

(I. G.'s Cir. No. 1927/Age/69, dated 24th June, 1969)

(4) A careful enquiry into the antecedents and connections of persons involved in past cases of kidnapping or immoral traffic etc. and their helpers might help to determine whether any gang or racket exists.

(5) In view of the possibility of a crime having been committed, the anguish caused to the parents of the missing children and the likelihood of a public scare being created by wild rumours, the Police should give a missing person report the same value as a regular case.

(6) A register with the following columns should be maintained for recording missing person reports and other relevant information: -

- (i) Name and complete local and permanent address of the complainant, his relationship with the missing person.
- (ii) Name, alias, parentage, address, occupation and age of the missing person.
- (iii) Complete descriptive roll, including physical peculiarities and distinct identification marks of the victim.
- (iv) Date, time and place where the victim was last seen and the name(s) and address(es) of the person(s) by whom seen. Description of the circumstances preceding the disappearance, particularly whether there was any family quarrel or the missing person had been chided.

(v) Name and address of school/college or particulars of place of work and other places regularly visited by the missing person.

(vi) A description of the personal habits of the missing person, his educational and vocational qualifications and the details of his special aptitude / skill, plans and ambitions. The language spoken by him In case of an adolescent, the fact whether he/she was excessively fond of the cinema should also be noted.

(vii) The domestic and vocational background of the victim, particularly whether he was nervous or worried and whether he was having difficulties of any kind at the time of disappearance.

(viii) Names, address and identifying particulars of regular associates, close friends and relatives of the missing person, and their antecedents, whether any of these persons is also known to be missing.

(ix) Whether the missing person had any cash or valuables with him (and the value thereof) at the time of disappearance.

(x) Whether the missing person had remained absent previously without informing the family friends. Full details of such previous incidents and previous history of delinquency, if any.

(xi) Medical history of the missing person with particular reference to drug addiction, if any.

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(xii) Reasons for delay, if any, in reporting the matter to Police Brief account of the efforts made by the complainant or others to trace the missing person before approaching the Police. It is possible that in a number of cases the complainant or others may have made efforts to trace the missing person before approaching the Police. It is possible that in a number of cases the complainant may not be able to furnish information on all the above points at the time of lodging the report. In such cases the remaining information should be collected through appropriate enquiries as quickly as possible.

(7) Where there is reason to suspect that disappearance is involuntary or where the victim is physically or mentally afflicted or a child has not been traced for a long time, the-enquiries should be pursued with full vigour by assigning an officer exclusively for the case.

(8) Where the missing person is feeble-minded and can be exploited for begging etc. the Police must carefully check and eliminate the possibility of such victimization.

(9) The behavior of the Police towards the complainants of such cases should be sympathetic and courteous. They should keep in touch with the complainants during the pendency of the investigation/enquiry so that the latter do not remain unenlightened and dissatisfied about the progress of the investigation / enquiry.

(10) The above instructions should serve as guidelines to improve the investigation, follow up and results in courts as also to discourage the tardiness usually noticed in registering such offences and substituting the same by a "જાણીતો જોડો" entry in the Station Diary.

(I. G.'s Cir. No. G/1921/71, dated 30th April 1971.)

(11) Every report of the person being missing shall be entered in the relevant register- and then in the station diary. The circumstances connected with the disappearance must be elicited after careful and thorough enquiry and if a reasonable suspicion exists that a cognizable offence has been committed, it should be registered at once. Whenever a child is reported missing enquiries must be continued until the child is found or his disappearance is accounted for. In checking gangs of Sadhus, Bairagis, Iranis or other tribes known to kidnap children careful enquiries should be made with a view to ascertaining that the children found with the members of the gang belong to them. It is not the duty of a Police Officer to assist in searching for run-away wives or in compelling the return of

any adult. person who has left his home or village voluntarily. Care should be taken not to effect arrest unless adequate evidence is available against the accused.

(I. G. 's No. G/8315, dated 5th October, 1960)

116. Registration of cognizable offences.-(I) All cognizable offences reported must be registered in the Cognizable Crime Register (P. M. 227) known as "Khetian Inspection Register" by the officer in charge of the Police Station even if treated under section 157(1)(b) of the Criminal Procedure Code.

(G. R. H, D. No. 1575/2, dated 1st September 1937)

(2) There should be two separate Crime Registers maintained, one for Indian Penal Code (Classes I to V) offences and the other for Class VI offences in the offices of the Sub-Divisional Police Officers and in Police Station offices which ordinarily register 200 or more offences per year. Other Police Stations should have only one register.

(I. G,'s No. 26, dated 19th December 1946)

(3) Complaints referred to the Police for enquiry under Section, 156.or 202, Criminal Procedure Code should not be entered in the Sub-Divisional Officer's Crime Register, but they should be entered in the Police Station Crime Register under an 'M' number at the end.

(G. R. J. D. No. 4086, dated 14th July 1911 and No. 7244, dated 19th December 1911)

(4) Cases enquired into under Section 174 Criminal Procedure Code, should be entered into Crime Register, in a separate portion of the Register reserved for this purpose. This portion should be further divided into two parts i.e. for (a) accidental deaths and (b) Other unnatural deaths. In case there is a slightest suspicion of foul play, offence should be registered.

(5) Late registration of an offence is as good as non-registration of an offence and should not be encouraged.

(I. G.'s Cir. No. G/1909 dated 3rd July, 1971)

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117. Instructions for writing of the cognizable crime register.-(1) The entries in the cognizable crime register known as "Khetian Inspection Register" (maintained in Form No. PM 227 e.g.) should be made in accordance with the instructions contained therein. The following subsidiary instructions should also be followed:

(i) Column No. 3.-Modus Operandi should be written in red ink.

(ii) Column No. 12.-This column should show a remark as to whether the Magistrate has been requested to file the complaint.

(iii) Column No. 18.-A mention about the order under Section 250, Criminal Procedure Code, passed by the Magistrate, should be made.

(iv) Column No. 25.-The following information should be written in the column.

(a) Extention granted by S.D.P.O.

(b) Remand obtained under Section 167 of the Criminal Procedure Code.

(c) Whether action has been taken to transfer the accused by a system known P.R.T. or whether the accused has been classified as a habitual offender.

(d) If the bail bond has been cancelled the same should be mentioned.

(v) As regards property stolen and recovered, the property as given by the complainant as per the current market rates should be written and for property recovered, the valuation of the panch should be taken as correct. Property involved in cases classified as 'B' or 'C' and in cases in which investigation is refused under Section 157, Criminal Procedure Code, on the ground of the case being of a civil nature should be struck off when summaries of final orders are received and should not be taken into account for statistical purpose.

(I. G. P.'s Cir. No. G/36, dated 11th August 1960)

Note:- When the entries in the cognizable crime register are made by a Police Station Officer during the absence of the Sub-Inspector/Police Inspector in charge of Police Station, these entries should be initialled by the latter when he next attends the police Station.

(I. G. P.'s Cir. No. 66 (4867) dated 25th September, 1954)

(2) The Sub-Divisional Officers will maintain similar Crime Registers for each Police Station in their charge, in which entries will be made by them on the basis of details contained in the case diaries received from time to time. The most important duty entrusted to a Sub-Divisional Police Officer is the control and supervision of crime in his Sub-Division. The Crime Registers maintained in his office are the only record which keep the Sub-Divisional Officer informed of the progress done by the Police Station Officers in the investigation of crime in his Sub-Division. If he does not write them up regularly from day to day, he will not be in touch with crime and will not be able to know how many offences are reported in his Sub-Division how they are investigated and the progress made in each case. It is, therefore, essential that these Registers should be maintained properly.

Superintendents of Police should impress upon the Sub-Divisional Police Officers and particularly the Probationary Assistant/Deputy Superintendents of Police serving under them, the importance of maintaining Crime Registers up to date. They should also check the Registers in their offices periodically and bring to the notice of the Inspector-General of Police the cases of negligence on the part of the Sub-Divisional Police Officers in writing up these Registers. Deputy Inspector-General of Police should also pay special attention to this matter during inspections. In order to facilitate the Deputy Inspectors-General of Police to check the Crime Register and understand the facts of important cases, the Sub-Divisional Police Officers while writing the Divisional Crime Register should make notes, in the remarks column of the Register. This will make matters easy for inspecting officers.

(I.G.'s Cir. No. 4847 dated 21st July 1959, S.O. Cir. No. 19 and S.O. Cir. 24 dated 21st December 1960)

(3) The Crime Registers will be separately maintained for the following types of offences: -

- (i) Class I to V types of cognizable offences of the Indian Penal Code,
- (ii) Class VI type of offences under State and Central Acts.
- (iii) for all offences falling under the Bombay Prohibition Act, 1949 and
- (iv) for all offences under the Bombay Police Act, 1951.

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(4) Section 118 of the Bombay Police Act, is cognizable but offences under this. Section should not be entered in the cognizable crime register Part VI but in a separate register meant for offences falling under the Bombay Police Act. However, the totals of these offences should be taken under Class VI of the Crime Register for the purpose of statistics.

(I.G.'s Cir. No. G/34 (32), dated 22nd November, 1960 and G/34 (65) dated 15th February, 1965)

(5) (a) Serious Crime Register should be maintained by all Sub-Divisional Police Officers and Superintendents of Police in the Commissionerate area of all the offences visited by them in the 'D' statement form of the crime review. In addition, they should mention full facts of each case in details in these forms up to the final disposal or the decision of the case in the court.

(b) The Superintendents of Police should maintain the Serious Crime Register in the normal crime register form and write the same personally from day to day and get themselves acquainted with full facts of each case personally.

(I. G.'s Cir. No. G/351/(G)/36, dated 29th February, 1961)

(6) (a) The Sub-Divisional Police Officers and the Superintendents of Police in the Commissionerate area should write day to day in their own hand the work done by them in connection with the visitation and/or investigation of each serious crime in the register maintained by them. In cases which are only visited and not personally investigated by them, important developments and particulars of investigation gathered from the case diaries, after they leave the scene of offence, should be shown in the Serious Crime Register. The reasons for acquittal of a case

or for not sending it up for trial should also be discussed in brief in this register. Strictures if any, and answers to them, should also be shown therein.

(b) When an officer gets transferred from one district to another, he should keep in touch with the investigation of the serious crimes visited by him in the previous district and make necessary notes in the Serious Crime Register. This register is a personal register of the officer concerned and will be taken by him wherever he goes.

(I. G.'s Circulars No. G/351 (G/36) 64, dated 29th April, 1964, No. G/351 (G/36)/G/1909, dated 15th September, 1971 and No. G/351 (G/36)/G/1909/289, dated 1st July, 1972)

(7) The Sub-Divisional Police Officers are personally responsible to supervise crime in their sub-divisions even though the Reader Police Sub-Inspectors write the crime register in respect of Prohibition cases. They will have to scrutinise these registers regularly to ensure that the Readers are regularly writing the registers and that proper instructions are put up to the Sub-Divisional Police Officers, wherever necessary.

(I.G.'s Cir. No. G/642, dated 25th October, 1971)

(8) The category of an offence should be changed to the head under which it has ended in conviction. When the category is changed, a note should be recorded in the Crime Register to furnish the reasons for such a change. As an illustration, in an offence primarily registered as robbery, the court after considering the evidence may frame charge under the section of 'hurt' or 'theft'. In such cases, it is wrong to continue to classify the offence as robbery as it is established during trial that the offence was of 'hurt' or 'theft' as the case may be. It is for this reason that the classification should be duly changed.

(I. G.'s Cir. No. G/642, dated 3rd December, 1971).

118. Definition of Railway limits and the limits of a station yard for the purposes of registration of offences.-(1) "Railway limits" may be defined as the area owned or legally occupied by a Railway Administration for the purposes of the rail-road and the carriage of goods and passengers, and covers every place or building used for those purposes. A road over or under a railway is not usually railway property and, unless it is so, the Police duties arising on it are generally to be discharged by the District Police.

(G.R., J. D. No. 478, dated 23rd January 1891 and J.D. Letter No. 3455, dated 28th May, 1902)

(2) The expression "limits of a station yard" means all traffic and premises included in railway limits within the distant signals.

(3) Should any doubt arise as to the precise limits of a railway or station yard, the question should be settled by the Superintendent of the Railway Police and the Superintendent of the District Police concerned and in case of Commissionerate area, the Commissioner-of Police, under the orders of the Inspector-General of Police.

(G. R., J.D. No. 1100, dated 24th February 1910),

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(4) As a general working rule, it may be taken, unless in the circumstances of any particular case there is something repugnant to it, that in the mofussil the Railway Police exercise jurisdiction over all lands and buildings defined in Section 3(4) (a) of the Indian Railway Act, 1890, unless the latter are so grouped or situated outside the station yard, as the expression is generally understood, as to make it advisable, for better supervision, to combine them with land in District Police Jurisdiction.

(I.G.'s No. 11532-A, dated 8th July, 1914 and 6755-A, dated 7th June, 1920)

119. Registration and investigation of offences committed on railways.-(1) All cognizable offences committed against person or property (except those occurring in running passenger trains and offences under the Indian Railways Act, 1890) and all cases of mischief caused to telegraph posts or wires or of wire-theft, committed on Railway lines, in which the scene of the offence is outside the limits of a station yard, shall be registered and investigated by the District Police. Flag stations should be regarded as "open line", not as "limits of a station yard" and offences occurring there should be dealt with by the District Police, Reports of such cases shall be made in the first instance at the

Railway or District Police Station whichever is nearest to the scene of occurrence. The provisions of Railway Stores Unlawful Possession Act, 1966, should be fully and freely used to check the thefts of Railway property.

(I. G.'s Cir. Memo. No. G/1125-II, dated 16th June, 1958)

(2) All cognizable offences against person or property occurring in running goods trains between distant signals shall be registered and investigated by the District Police, if (a) there be reasonable and adequate grounds for concluding that they have been committed by, or with the assistance of persons assembled for the purpose on the railway line or the adjoining land, and (b) the scene of offence is approximately known. In the case of running goods train, offences, information should in the first instance, always be sent to the nearest Railway Police Station.

(3) The following examples of how cases should be registered are given for guidance:-

(i) A goods train on arriving at a station is found to have some wagon doors open. The guard reports that he has seen thieves attacking the train between two stations or at some more definite spot. The case should be registered by the District Police.

(ii) In the same circumstances the guard is unable to say whether the attack was made between two particular stations. The place being indefinite, the case should be registered by the Railway Police.

(iii) Some bags of grain are found on the side of the line at a particular spot. On enquiry it is ascertained that a shortage has been reported from a running goods train on arrival at an adjoining station. Here the scene of offence is approximately fixed and the offence should be registered by the District Police.

(iv) A guard reports that he has seen bags being thrown from the train and a crowd of persons assembled at a certain spot. The case should be registered by the District Police.

(v) A wagon arrives at a station with doors open. The guard says he has seen persons assembled on the line, but he is unable to say whether they attacked of the train. The case should be registered by the Railway Police.

(vi) A wagon leaves station A in good condition. On arrival at B, several stations further on, it is noticed that the doors of the wagon are open. The guard of the train is unable to say how or where it was opened. The case should be registered by the Railway Police.

(I. G.'s No. 41, dated 14th November 1930)

(4) All thefts from running goods trains except those falling within sub-Rule (2) above shall be registered at the Railway Police Station within the jurisdiction of which the theft was discovered. Cases in which it is doubtful whether they are covered by Sub-Rule (1) or (2) above will be registered by the Railway Police. In both these cases, information should be given to the Railway Police.

(5) There should be no discrimination between thefts committed by railway servants and thefts committed by others. The mere shortage of goods from wagons with missing or damaged seals is not sufficient to register an offence of theft, unless there are reasonable grounds for believing that a theft of the goods has taken place. The onus of showing that there are reasonable grounds for believing that such an offence has been committed rests on the railway authority making the complaint.

(G. R., H. D., No. 331, dated 10th September 1924)

(6) In cases covered by Sub-Rules (1) and (2) in which the report is first made at the Railway Police Station, the information will at once be recorded, and the officer in charge of the Station, having sent a copy of the information to the District Police Station concerned will at once take up the investigation and proceed with it until the District Police Officer within whose jurisdiction the offence was committed arrives on the spot. He shall then make over the case to the latter. On receipt of the copy of the report from the Railway Police Station, the officer in charge of the District Police Station shall register the offence and at once proceed to the spot to take up the enquiry.

(7) In cases in which the report is first made to the District Police Station the officer in charge of such Station shall at once send a copy of the information to the Railway Police Station concerned. Such information will be at once recorded in the Station diary.

120. Procedure when jurisdiction doubtful.-In cases occurring in districts traversed by railways in which it is not possible at once to fix the Police jurisdiction within which an offence has been actually committed the following shall be the procedure for the registration and investigation of offences:-

(1) A cognizable offence shall be registered and investigated by the Police to whom it is first reported as having been committed.

(2) If, during the course of the investigation, the Police to whom information has been given see reason to suppose that the offence reported was committed in another jurisdiction, they shall send a copy of all the information which may be with them to the Police within whose jurisdiction the offence is believed to have been committed. The latter Police shall thereupon also register the offence and investigate it, as if the complaint had been originally made to them.

(3) When the case has been detected, it shall be retained in the register of the Police Station within the jurisdiction of which the offence is proved to have been committed and information of this shall be given to other Police Station interested in the case, which may then strike the case off its register.

(4) If the case remains undetected at the end of the year, it shall continue not only in the register of the Police who first registered it, but also in that of the Police of the other jurisdiction concerned who shall also show it as an undetected case in Statement A' attached to the Annual Police Administration Report.

(G. R., J. D. No. 4641, dated 27th August, 1903)

(5) (a) In order to avoid tossing of investigation papers between the Railway and the District Police on the excuse of doubtful jurisdiction, no case registered by the railway should be transferred without the sanction and knowledge of the Sub-Divisional Police Officer concerned. The investigation should, on no account, be stopped even if the jurisdiction is doubtful. The case papers should not be sent to the Sub-Divisional Police Officer when a particular case is to be transferred but only a note on the same-should be sent to him and investigation continued till the matter is finally decided.

(b) In the same way, no district should transfer a case to the railway without the permission of the Superintendent of Police or the Sub-Divisional Police Officer concerned. Pending receipt of such permission, the investigation should be continued vigorously.

(I. G.'s Cir. No. G/351 (43)/1960, dated 16th December, 1960.)

(6) Whenever there is any doubt or conflict of opinion as to whether an offence has occurred in Railway or District limits or whether the Railway or District Police should deal with the case to finality, the matter should be referred to the Inspector-General of Police for orders.

(I.G.'S No. 6459 A, dated 5th May, 1911)

(7) The Police of different districts and the Railway Police are expected to extend the most complete co-operation, and exchange the most cordial assistance between them in the investigation of crime, and Superintendents will be held responsible if they fail to do all in their power to secure this object.

(8) When the case is one of an inter-State nature, the Superintendent of Police should forward the papers to the Inspector-General of Police, who will decide the question of jurisdiction after consultation with the Inspector General of Police of the State concerned.

(G. L., H. D., No. 87/3-1, dated 30th June, 1934)

121. Offences committed by prisoners inside jails.-(1) In respect of offences committed by prisoners which are punishable both under the Indian Penal Code or Section 44 of the Prison Act or any other

criminal law and under the Jail Manual rules, it shall be discretionary with the Superintendent of Prison either to use his own power of punishment as set fourth in the Jail Manual or prosecute the offender before a court of Magistrate provided that in the case of the following offences, a prosecution shall be initiated, viz:-

(i) rioting: -punishable under Section 147, 148 and 152, Indian Penal Code.

(ii) escapes: -(Punishable under Sections 222, 223 and 224 Indian Penal Code).

(iii) offences against the human body : -murder (punishable under Sections 302 and 303, Indian Penal Code), causing death by rash or negligent act (Section 304-A, Indian Penal Code) attempt to commit suicide (Section 309 Indian Penal Code), voluntarily causing grievous hurt (Sections 325 and 326, Indian Penal Code), and

(iv) any offence triable exclusively by the Court of Sessions.

(2) It is clear that in a murder case, the investigation should be entrusted to the Police but it may well happen that in escapes or riot offences in which prosecution must be initiated, the most fitting investigating officer is the Superintendent of the Prison There are no hard and fast rules on the subject and the Superintendent of the Prison uses his discretion in such cases. That discretion will naturally lead him to invoke the aid of the Police to investigate the more important offences.

(Rules 1314 and 1315 of the Bombay jail Manual, 1955)

122. Registration of non-cognizable offences.-(1) All non-cognizable offences reported to, or by the Police, should be entered in the Non-cognizable Crime Register (in Form No. 68 P.M.) prescribed by Section 155, Criminal Procedure Code.

(I. G.'s No. 54, dated 24th October 1923)

(2) Columns 4 to 7 of the register are to be written only when a non-cognizable case is referred by the Magistrate to the Police for investigation and an investigation is Made.

Form 123 P.M. is merely a convenient form for making a complaint as defined by Section 2(d), Criminal Procedure Code to a Magistrate in non-cognizable cases, and should be used accordingly.

(I. G.'s No. 54, dated 23rd October, 1923)

(3) Non-cognizable cases referred to the Police by Magistrate for investigation under Section 202 of the Criminal Procedure Code should be entered at the end of the Police Station "Non-cognizable Crime Register" under an "M" number in the same way as cognizable cases referred by Magistrates are entered in the Cognizable Crime Register. In such cases, column 2 of the Non-cognizable Crime Register should be left blank and an entry made in the remarks column to the effect that the complaint has been received for investigation from the Magistrate of the first or the second class, as the case may be.

(I. G.'s No. 1091-C, dated 20th January 1913 and 13919-C, dated 13th October 1913)

123. Power of investigation of cognizable offences.-(1) Under Section 156 of the Criminal Procedure Code, an officer in charge of a Police Station can investigate every cognizable case, which a Court having jurisdiction over the area under the Police Station would have territorial jurisdiction to enquire into or try under Chapter XIII of the Criminal Procedure Code. However for the sake of convenience, every Police Station wi1l ordinarily confine its investigations to cognizable offences committed within the limits of the Police Station. When, therefore, any person gives to an officer in charge of a Police Station information of a cognizable offence committed outside such limits., the officer should record it on plain paper and arrange to send it immediately to the Police Station in the limits of which the offence seems to have been committed and simultaneously instruct the informant to go to that Police Station, a note about the receipt of the information being made in the station diary.

(2) Under the provisions of Section 156(2) of the Criminal Procedure Code, any Police Officer receiving information of a cognizable offence, can legally and rightfully start investigation even though the place of offence may not turn out to be within jurisdiction. Such provision has been made in law with the intention that as soon as a complaint is received investigation and further legal action can be taken without delay. If during investigation the place of offence is found to be outside the jurisdiction of the officer who received the

complaint first, he will still be legally able to continue further action with regard to the complaint and at the same time send information to the Police Station within whose limits the offence is found to have been committed. It will, therefore, be not proper for an officer who received the complaint first to delay taking further action on the complaint on the ground that the place of offence is not within his jurisdiction or outside his jurisdiction. It is imperative that till the officer within whose jurisdiction the offence is found to have been committed takes up the investigation, the officer who received the information first will continue the investigation and take all necessary action regarding the complaint. Excuse of jurisdiction should not be made the reason to neglect to take prompt action, which, if not taken, will jeopardize the detection of the case.

(I. G.'s Cir. No. G/1909/72/1948, dated 2nd December 1972.)

124. Discretion to refuse investigation.-(1) Section 157 (1) (b) Criminal Procedure Code, allows the officer in charge of a Police Station who receives information of the commission of a cognizable offence to use his discretion to abstain from investigating such information, if it appears to him that there is no sufficient ground for investigation. It should be noted that the discretion and the responsibility for the proper exercise of it lie with the officer in charge of the Police Station.

(2) This discretion should ordinarily be exercised in the following cases:-

(a) Complaints or information of altogether unimportant offences which are reasonably believed not to be work of professional or habitual criminals or to form part of series of organized crimes, and which from the surrounding circumstances plainly from the first show no hope of detection or proving a charge against anyone.

(b) Frivolous, vexatious, mistaken, or manifestly untrue complaints or information regarding alleged offences, trivial in themselves but magnified for the occasion.

(c) Trivial cases coming within the purview of Section 95, Indian Penal Code, e.g., petty thefts of agricultural produce, fruit, foodstuff etc., in which there is no clue to the preparatory or trace of the property-which again is not capable of being satisfactorily identified-and it is obvious that successful investigation is practically hopeless.

(d) Cases which, from an examination of the complaint are obviously of the nature of civil disputes, as where the complainant is apparently seeking advantage of a petty or technical offence to bringing into a Criminal Court a matter, such as a question of right, sale or possession, which ought to be decided by a civil Court.

(e) Unimportant offences in which the injured person does not desire an investigation (In such cases, however, investigation should be undertaken, if the offence appears or is suspected to be the work of a professional or a habitual criminal or the officer receiving the complaint considers an investigation desirable in the public interests).

(f) Assault (simple hurt) cases with other charges such as theft added, when the truth of the latter appears to be extremely doubtful.

(g) All cases of unclaimed contraband under the Bombay Prohibition Act, 1949 where it is impossible to trace the culprits need not be registered. The contraband country liquor, wash, implements etc. should be destroyed and quantity so destroyed should be entered in the station Diary.

The Sub-Divisional Police Officers through their Readers should make entries of cases referred to above in their Crime Registers (in the part reserved for cases of unclaimed contraband) on the basis of the entries in the General Diaries.

(I. G.'s Cir. No. G/5429, dated 26th July 1958 and 3rd October 1958, and No G/1947 18259, dated 26th May 1972)

(3) Officers in charge of Police Stations should clearly understand that nothing in the above sub-rules justifies or permits shelving or refusal to accept complaints of cognizable offences. All such complaints must be received, registered, in the manner laid down in Section 154, Criminal Procedure Code and disposed of according to law. Where the officer in charge of Police Station sees no sufficient ground for investigation, he should not be backward in the exercise of the discretion allowed to him by law to abstain from investigating but full reasons for refusal to investigate must invariably be recorded (vide Sub-section(2) of Section 157, Criminal Procedure Code) in the first information reports sent to Magistrates under Section 157(1), Criminal Procedure Code (vide Rule 126 below), and be repeated in the Police Station diaries relating to such complaints.

(4) Superintendents and Sub-Divisional Officers during their tours of inspection should make a point of satisfying themselves that officers in charge of Police Stations have intelligently grasped the purport and principles underlying the above Sub-Rules. They should keep a watchful eye on their working and, by constant and effective supervision, while encouraging the exercise of a wise discretion under Section 157(1) (b) of the Criminal Procedure Code, check any tendency to negligence and laziness, such as might result in refusal to investigate for improper reasons or on inadequate grounds, or in concealment or burking of complaints of cognizable offences.

(G. R., J. D. No. 5542, dated 1st October 1909 and I. G.'s No. 58 dated 10th May 1926)

(5) Whenever investigation has been refused under Section 157(1) (b) Criminal Procedure Code, the first information report must be sent through the Superintendent or the Sub Divisional Officer who has, under Section 97, Bombay Police Act, power to direct the investigation of such cases without the orders of a Magistrate. A separate order to that effect should be issued to the Police Station Officer concerned and the first information report passed on to the Magistrate with the intimation that investigation has been ordered in the case. On receipt of such orders, the Police Station Officer should note against the particular case, in the "remarks" column of the Cognizable Crime Register, the number and date of the order of the Sub-Divisional Police Officer ordering the investigation.

(I. G.'s No. 12431, dated 21st October 1919)

125. Power to investigate non-cognizable offences.-(I) If for any special reason the police want to investigate a non-cognizable offence, they must obtain the consent of a competent Magistrate, and may then exercise all the powers of investigation of a cognizable offence except the power of arrest.

(2) An incident, howsoever minor or small, between persons of two different communities or of two different political parties or of two different groups on unfriendly terms, should not be left unattended by the local Police, if such an incident is likely to lead to grave repercussion or riots. Even if such an incident is of a non-cognizable nature, permission of the competent Magistrate should be immediately obtained and investigation together with other follow-up action should be invariably taken.

(I. G.'s Cir. No. G/1909 dated 5th June 1972.)

(3) For the powers of the Police in the matter of investigation of non-cognizable offences referred to them by Magistrate, reference should be made to Rule 111 and 112. 126.

126. First information Report.-(1) As required by Section 157 (1) Criminal Procedure Code, the first information report has to be sent to the Magistrate before the investigating officer proceeds to investigate the facts and circumstances of the case. Ordinarily this report will take the form of a copy of the first information recorded in the First Information Book (vide Rule 114) and will be sent direct to the Magistrate, the object being that he must have early information and be in a position to act, if necessary, under Section 159, Criminal Procedure Code. When, however, a case comes under clause (b) of the proviso to Section 157(1) Criminal Procedure Code, the instructions in Sub-Rule (5) of Rule 124 should be followed. Also where an officer in charge of Police Station proceeds to investigate an offence, whether the same has been registered under Section 154, Criminal Procedure Code or not, Section 157 of the Code requires him to make a report in writing of the offence to a Magistrate having power to take cognizance of the same.

(I. G. 's Cir. Memo. No. 2400, dated, 25th August 1954)

(2) It sometimes happens that the First Information Report is not promptly posted to the Magistrate by the Police Stations and sometimes the Magistrate's office is closed on account of some holiday or curfew or some other reasons which results in late delivery of the First Information Reports. In case of the copy of First Information Report bearing later date of receipt, it is alleged by the defence that the First Information report was fabricated later and antedated. Such an argument in the context of above mentioned circumstances carries weight in the Courts and adversely affects the prosecution. With a view to avoiding such defects in dispatching the First Information Reports to the Magistrates, the Police Station concerned should post on the same day copies of the First

Information Reports in serious offences to the Magistrates under a certificate of posting, The certificates of posting of First Information Reports can be produced in the Court to explain the late receipt of copy of the First Information Report by the Magistrate concerned. Where it is not possible to take certificates of posting, a mention to that effect should be made in the case diary specifying clearly the reasons for delay. At the time of giving evidence, this

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fact should be brought to the notice of the Court. Where there are no post offices or where such facilities for obtaining certificates are not available a mention about that fact should be made in the general diary stating clearly the reasons for delay.

(I. G.'s Cir. Memo No. G/151, dated, 4th September 1955, 8th August 1959 and G/1909/860 dated 31st August 1972)

(3) For the purposes of Section 158 of the Criminal Procedure Code, the superior officer of Police appointed by the State Government is the officer in charge of the District or Railway i.e., the Superintendent of Police, or the officer in charge of the sub-division in which the offence has occurred.

(G. R., J. D., No. 6642, dated 19th December 1905, I.G. 's No. 19497-C, dated 12th December 1914, and G. R. H. D. No. 6169, dated 5th May 1925)

SECTION IV.-SPECIAL REPORTS

127. Serious Crime and events of importance.-(I) The District Magistrate should be kept fully and promptly informed of every event of importance. Ordinarily such events will find their place in the monthly review of crime of the Superintendents of Police. On rare and extraordinary occasions, it may be desirable to omit mention in the review; but in such cases the Superintendent should communicate demi-officially and confidentially with the District Magistrate.

(2) Serious crime of an unusual nature such as organized dacoities, mail robberies, serious riots, professional poisoning, cases in which Police are charged with serious offences or cases in which persons have died while in their custody shall be promptly reported by Superintendents of Police to the Magistrate of the District who may require reports etc. under Section 18, Bombay Police Act, 1951.

(3) In case of any grave and serious incident, involving law and order or loss of life or serious injuries to persons, a report by wireless signal or telegram or other means should be sent to the Inspector-General of Police, within six hours of its occurrence. In case of very grave incident, wireless mobile should be called on the spot and further details reported at least twice a day. In case of doubt, the Superintendent of Police should consult the Deputy Inspector-General concerned.

(I. G. 's Cir. No. G/36 dated 22nd July, 1960)

(4) Whenever a member of the Police Force is badly injured or stabbed, or any incident takes place attracting wide public interest, the Superintendent of Police should inform the Inspector-General of Police by wireless signal or other quickest possible means. In such reports, mention should always be made of the failure, mistake or omission on the part of , the Police which led to such an assault or directly or indirectly contributed to it and also suggest steps that could or should have been taken to avoid such an assault.

(I. G.'s Cir. No. G/34 dated 13th September 1960 and No. G/1911 dated 5th September 1964)

(5) Superintendents of Police should send an immediate report to the District Magistrate concerned giving details regarding seizure of foreign exchange by the Police.

(I. G.'s Cir. No. G/1909 dated 18th June 1970)

128. Serious explosions.-Superintendents of Police should remember that District Magistrates are required to report by telegram direct to the Chief Controller of Explosives as also to Government all cases of serious explosions in which, in their opinion, the services of the Chief Controller are required in connection with any investigation or enquiry. The same procedure is to be followed in all cases where serious conflagrations caused by explosives, petroleum or other dangerous goods occur. Superintendents must, therefore, submit very promptly full reports about such events to their District Magistrates. For detailed instructions refer to Rule 301.

(G. Rs. G. D. No. 3115, dated 4th June 1901, 5289, dated 26th September 1905 and G.E.H.D. (Special) No. SB. II/HSM 2658, dated, 13th January, 1958).

129. Forgery of currency notes.-(1) The Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) Will publish weekly in the Gujarat , Police Gazette, Part II, under the heading "Forged Notes" such of the new and old series of forget notes, as in his opinion, require special enquiries.

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Investigation of Crime

(2) Superintendents of Police should cause enquiries to be made only in the following cases:

(a) The appearance of notes of the series specially noted in the Gujarat Police Gazette, Part II as requiring special enquiries.

(b) All other appearances in which there are obvious chances of immediate detection.

(3) The offence shall be registered and investigation made every time a counterfeit note is seized or recovered.

(Govt., H. D. endst. No. C-II/1395-C-2047-VIII, dated 19th October 1959.)

(4) As soon as a forged currency note comes to the notice of a Superintendent of Police or a Sub-Divisional Police Officer from any source other than the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railways) an immediate report should be sent in duplicate addressed to the Currency Officer, Bombay through the Deputy Inspector-General, with the following particulars:-

- (a) Number of pieces presented or seized.
- (b) Serial number.
- (c) General number.
- (d) Circle.
- (e) Date.
- (f) Denomination (viz., Rs. 100; 20; 10; 5; 2 and 1).
- (g) Place of appearance.
- (h) Date of appearance.
- (i) Remarks-Process-made, hand-made, altered, etc.

(5) In cases where no enquiries are made, the forged notes should be forwarded with the reports sent in accordance with Sub-Rule (4). In other cases, after the completion of the enquiries the forged notes, if any, should be forwarded with a full report, in duplicate, addressed to the Currency Officer, Bombay, through the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railways). One copy of the report will be retained in the Deputy Inspector-General's Office, and the other forwarded to the Currency Officer, Bombay, with the notes, if any.

(6) Action according to Sub-Rules (8) and (9) below should be taken where necessary.

(I. G.s No. 10, dated 6th February 1926)

(7) Ordinarily warnings are not to be issued to the public in respect of forged notes. But when it is generally known that a large number of forgeries of certain notes are in existence it is desirable to inform the public definitely by means of a communiqué. But when this course is necessary, Superintendents of Police should obtain the previous approval of the Controller of Currency by making a report to the Deputy Controller of Currency, through the Deputy Inspector-General, Criminal Investigation Department, (Crime and Railways).

(G. R., F. D., No. 42/94, dated 26th, August 1925.)

(8) When any person is arrested for forging or uttering forged Government currency notes, an early opportunity should be taken:-

(a) to furnish the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) with a brief history of the person and of the case in which he was arrested; and

(b) to photograph the person in two positions-full face and profile such photos being one-tenth of life size.

(9) As the photos will be required for distribution to the several Finger Print Bureaux, the officer in charge, Finger Print Bureau concerned, should, in each case, be addressed as to the number of unmounted copies that will be required, and these when printed should be forwarded to him for distribution.

(I. G.'s No. 6656, dated 13th July 1904)

(10) No charge will ordinarily be made by the Master, Security Printing, India, for giving expert assistance to the Police, in connection with any criminal prosecution. In any case, however, where the Master, Security Printing India, considers that his free services are being abused he will bring the matter to the notice of the Government of India.

(G. R., F. D., No. 2532/33, dated 8th April 1937)

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(11) The following are some of the points that may be kept in view in holding enquiries about the forged notes:-

(a) All fresh recoveries should be examined to see if similar notes have come to notice before also. The Master India Security Press, Nasik, to whom such counterfeit currency notes are referred for expert examination should also be asked to keep this point in mind to line up each case with any similar notes that have been referred to him before. This information would enable the authorities concerned to examine cases in relation to each other and see if any conclusions can be drawn from similarities in them regarding the identity of persons who could have put them into circulation.

(b) Very careful enquiries should be made to trace the origin of such counterfeit notes. Organization of better intelligence amongst smugglers would help not only to prevent illicit trade across the border, but might also enable to trace the origin of forged currency notes. All suspects connected with the circulation of notes should be put through sustained interrogation as a part of a more determined effort to get to the bottom of this racket.

(c) Since the type of crime is such that it is necessary to arrange Inter-District- co- ordination of enquiries it is suggested that the investigation of all such cases should be done under the control of the State Criminal Investigation Department (Crime).

(12) Whenever any forged note of Rs.100 denomination comes into the hands of Police it should immediately be forwarded to the Currency Officer, Bombay with a report detailing the name and address of the tenderer(s) and the circumstances in which the note was received. There would appear to be no objection to the Police conducting such investigation as they deem necessary pending receipt of the report from the Nasik Press and the instructions from the Intelligence Bureau, but the note should not be held up for this purpose and should invariably be sent to the Currency Officer, Bombay without delay for examination by the Nasik Press.

(13) The Superintendents of Police should impress upon his subordinates the importance of the safe custody of forged notes entrusted to them for the purpose of investigation and also warn them that if any forged notes are lost while in their custody full value of such notes will be recovered from them as fine. Particular care should be taken of those currency notes sent by the Reserve Bank of India to Police Officer for investigation.

(I. G.s Cir. No. G/1927/64 dated 14th December 1964.)

(14) For detailed instructions on forged currency notes refer to Appendix VII (B)

130. Counterfeit coining.-(1) Exceptionally well executed counterfeit coins received at railway stations and all counterfeit coins and implements received by treasuries from Courts and other sources should be forwarded by the Railway Administrations and treasuries to the Mint for examination, through the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railways).

(G. R., F. D., No. 2469, dated 24th July 1912)

(2) Where there are two or more specimens of a coin of the same die or of similar moulds the above agencies may keep one, informing the Mint Master of the fact. If there is only one

specimen and any of the above agencies considers that it should be retained, in the local Criminal Investigation Department (Crime) under its control, the coin should be sent to the Mint for examination with the intimation that it is needed by the Police. The Mint will then return it to the sending agency after examination.

(3) Copies of the statements of counterfeit coins received at railway stations submitted by railways to the mints, should be sent to the above agencies.

(4) Local station masters and other railway officials should be directed to give the earliest possible information to the Police of the tender of any counterfeit coin.

(5) The railway authorities should co-operate in the detection and suppression of false coining by instructing their station officials to keep a note and report the number of false coins offered and rejected at each station, week by week or month by month. This information could be passed on to the Police and would enable them to take special measures with the aid of detective or otherwise at any stations where they might be called for.

(G. Rs., F. D., No. 1833 dated 9th May 1901 and 2469 dated 24th July 1912)

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(6) Courts in the mofussil should transmit to treasuries coins coming before them under Sections 452, 457 and 458 of the Criminal Procedure Code, together with a short description of the case and any implements such as dies and moulds which may have been found, for being sent by the treasuries to the Mint through the Deputy Inspector-General of Police Criminal Investigation Department. (Crime and Railways) As in the case of counterfeit, so in that of implements, the forwarding agency should when necessary, intimate, at the time of forwarding these to the Mint for inspection that they are required by the Police and the Mint will thereupon return them after inspection.

(7) The Deputy Inspector-General of Police. Criminal Investigation Department (Crime and Railways) should send a quarterly return in respect of counterfeit coins to the Mint Master Bombay with copies to Government and the Inspector-General of Police.

(8) For detailed instructions on counterfeit coins, refer to Appendix VII (A).

131. Disposal of articles used in forgery and coining cases.-(I) All samples obtained by the Police of counterfeit coins, forged notes and articles or implements used in counterfeiting cheating or gambling should be sent to the Deputy Inspector-General of Police Criminal Investigation Department (Crime and Railways) for inspection and retention, if necessary, in the interests of criminal investigation.

(G. R., J. D., No. 8159 dated 4th December 1900 and G. R., F. D.. No. 2469 dated 24th July, 1912.)

In the case of counterfeit coins and the implements used in making them the provisions of Rule 130 relating to their examination by the Mint should be held to apply.

(2) The disposal of implements used in the manufacture of forged notes is a matter for the decision of the Court which tries the case. Where the exhibits are ordered to be delivered to the Police for destruction, the Police should, if they consider that any particular exhibits are of special interest and should be preserved make them over to the Criminal Investigation Department (Crime) for this purpose In other cases they should themselves arrange for the destruction of the implements and not send them to the currency offices or mints for destruction.

(3) The following of the articles produced as exhibits in cases of forgery of currency notes should be sent to the Deputy Inspector-General of Police Criminal Investigation Department (Crime and Railways) for preservation:-

(1) Dies. (2) Engraving instruments. (3) Litho stones. (4) Engraving blocks. (5) Cameras. (6) Printing frames, (7) Printing and numbering machines or instruments, (8) Metal block. (9) Water marked paper, (10) Instruments for water marking.

(G. R. H. D., No. 1352-2, dated 22nd January 1927, and I. G. 's No. 17, dated 5th March 1927).

132. Accidents to motor drivers and cleaners.-(I) All Superintendents of Police (District and Railways) and Commissioner of Police should invariably report to the Commissioner for Workmen's Compensation, Labor Courts, any motor accident occurring in their respective jurisdictions involving death or injury to a driver or cleaner of any motor vehicle.

(2) The details required by the Commissioner regarding all such accidents are:-

(a) Place of accident (road or street village or town, taluka and district, etc.)

(b) Date and time of accident.

(c) Number and general description of motor vehicle or vehicles involved.

(d) Full name and address of the driver or cleaner injured and in case of death, of his relatives.

(e) Name and address of the employer of the driver or cleaner.

(f) Nature of injury, i.e., fatal, serious or minor. .

(g) Brief details of the accident and proposed action (if any) by the police.

(h) Whether the employer of the driver or cleaner was insured in respect of Workmen's Compensation; if so, the name and address of the insurance company.

(I. G's No. 15, dated 4th May 1936)

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(3) Claims for compensation in respect of accidents involving the death or bodily injury to persons, arising out of the motor vehicles, are to be filed with the Motor Accidents Claims Tribunal constituted by the Government under Section 110-A of the Motor Vehicles Act, 1939.

It is necessary that such claims are filed by the department whenever a policeman is concerned, The Superintendents of Police / Commandants / Principals / Commissioner of Police should therefore take prompt action whenever a policeman dies due to the negligence of a driver driving a public carrier. Such claims should be preferred within a time limit of six months in accordance with Section 110-A of the Motor Vehicles Act.

(I. G. 's Cir. No. C/306/05266 dated 10th February 1972.)

133. Supply of copies of police records in cases of motor accidents to Insurance Companies and private parties.-(I) Requests made by Insurance Companies, Life Insurance Corporation of India and other private persons etc., for the supply of extracts from Police records concerning motor accidents. etc on payment of the fees at a flat rate of Rs.15 /- in each case together with the cost of stationery used for copies, should not be refused. The term police records' is not limited to case or inquiry papers but includes all entries in authorised Police registers and files.

(I. G. 's C.M. No. 4808 dated 22nd March 1951, No. G/1909, dated, 29th August 1964 and G.M., H. D., No. BPM-1069-3087-C, dated 2nd April 1969)

(2) The above procedure should be made applicable when State Transport authorities ask for copies of Police records concerning accidents in which State Transport vehicles are involved. If State Transport authorities are not agreeable to pay the copying fees, they should be requested to arrange to make out copies by sending their own men to the Police Station concerned. Similar procedure should be followed if the copies of the Police record are required by the Employees State Insurance Corporation.

(I. G's C. M. No. G/8129, dated 29th April 1959)

(3) Whenever a request for supply of copies of Police records including Panchnamas, in cases of accidents due to electric shock, is made by the Chief Engineer of the Gujarat State Electricity board or his representative, the same should be supplied free of cost. This provision is specially made for enabling the Chief Engineer of the Gujarat State Electricity Board to study the cases of such

accidents and to consider taking such steps as would be necessary to prevent recurrence of such accidents in future.

(I. G. 's Cir. No. G/1927/66, dated 25th April 1967 and 10th September 1970.)

(4) Post-mortem report is considered to be a confidential document under the Bombay Medical Code. As such, its copy cannot be supplied to any person by the Police Department. Whenever an application is received demanding a copy of post-mortem report, the applicant should be requested to approach the Health Department for obtaining the said copy directly.

(I. G.'s Cir. No. G/1927/73/1825, dated 7th May 1973)

134. Serious crime and incidents.-(I) The Police Station Officer will invariably send to his Circle Police Inspector, Sub-Divisional Officer.' and to his Superintendent, a special report by telegram (vide Rule 106), or any other quickest means, as soon as he registers any of the following serious offences:

(i) All cases of murder (including attempts).

(ii) Culpable homicide.

(iii) Dacoity.

(iv) Train robbery and Highway robbery between sunset and sunrise.

(v) Robberies and attempted robberies in which any offender uses or carries a fire-arm.

(vi) House-breaking with theft involving property valued at Rs. 5,000 or more.

(vii) Serious riots.

(viii) Any case in which a Police Officer or State Reserve Police Force Officer is accused of an offence or is involved in an offence provided a complaint has been actually registered.

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(ix) Serious motor accidents, whether fatal or serious, in which whether an offence has been registered or not, and wherein the injured dies on the spot or in the hospital or dies after any number of hours (a special report by wireless signal or telegram or other means without delay being sent to Sub-Divisional Police Officers who should visit all such incidents without fail).

(x) (a) Greasing of rails.

(b) Looting of Goods or Passengers trains.

(c) Tampering with the rails.

(d) Offences that fall within Sections 101 and 126 of the Indian Railways Act involving loss of persons or property.

(xi) All suicide cases by women (married) between the ages of 15 to 30 years if suicide occurs while the female is staying with her in-laws.

(2) A carbon copy of the special report should be sent by the Police Station Officer to the District Magistrate by post on the same day, if possible, and in any case not later than the following day because the District Magistrate is to be kept fully and promptly informed of every event of importance. In the case of the Railway Police, the copy should be sent to the District Magistrate having jurisdiction over the place of occurrence.

(3) In case of serious offences in the Commissionerate area, the information should be given to the Superintendent of Division concerned (and to the Control Room) who will pass on the information to the superior officers.

(I. G. 's C.M. No. G/2904-II, dated 11th July 1958, No G/36, dated 19th September 1960, 24th November 1960, G. L., H. D. No. DYS/1068/1152-B, dated 9th May 1969, I. G. P.'s No G/642, dated 16th May 1969 and G/1909/2043, dated 30th May 1973)

SECTION V: - VISITATION OF SERIOUS CRIME-

135. Investigation by superior officers.-(1) In addition to difficult cases which obviously require the presence on the spot of the Superintendent or the Sub-Divisional Police Officer, many prosecutions fail, because the person arrested admits his guilt on arrest and the Police, satisfied with the confession, make no effort to secure other proof. On being brought before a Magistrate, the accused retracts or explains away his admission and, in the absence of other proof, a conviction is not obtained. (2) A Sub-Divisional Police Officer present at the spot would not attach undue weight to a confession, but would obtain all available evidence to make the prosecution case as complete as possible independently of it. A confession may lead to such evidence but should not be accepted as a substitute for it. Sub-Divisional Police Officers should state in their reviews or diaries as the case may be, whether they have or they have not visited the scene of each serious crime, and in the latter event, they should give very explicit reasons for the omission.

(3) (a) Cases mentioned in Rule 134(1) are serious crimes. Other cases may be so or not according to circumstances, and Sub-Divisional Police Officers are expected to proceed to enquire into such cases at once on receiving the report.

(b) In serious railway accidents and in cases of tampering with railway tracks resulting in derailment with or without serious consequences, the Superintendent of Police should also visit the scene in addition to the Sub-Divisional Police Officer. In cases of serious accidents, the Superintendents of Police concerned should also visit the scenes of offences immediately with adequate police force to give relief to the injured and needy passengers.

G.R., J.D., No. 3895, dated 9th June 1899, 3423, dated 30th May 1901, G. R., H. D. No. 6169 dated 5th May 1925, G. L., H. D., No. 0/8840, dated 3rd October 1938, I. G. 's No. 46, dated 12th December 1938 and 10, dated 20th March 1939 and I. G. 's C. M. No. G/2904-II, dated 11th July 1958.-)

(4) Visitation of the scene of offence is not necessary in a case of infanticide in which an illegitimate child is alleged to have been murdered by its mother, particularly when the mother has been traced. Visitation is, however, absolutely necessary in a case in which a child likely to interfere with inheritance has been murdered or in which a paramour has murdered a child to avoid maintenance charges.

(G.R., H.D. No. 2155/4 dated 24th June 1939)

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(5) (i) Superintendents of Police and Sub-Divisional Police Officers should identify themselves with the Police enquiry in such serious cases as they are able to visit. Though not as a rule in a position to take up the threads of an investigation, they may under the provisions of Section 36, Criminal Procedure Code, assume the position of investigating officers, whenever the occasion warrants the step. Their presence during an investigation should be brought out in the papers of the case, whenever possible, either by signing panchnamas or by recording statements of witnesses in the case or in any other suitable manner, so that it may at least form a guarantee for the regularity of such periods of investigation as come under their personal inspection and control. They should also, when visiting the scene, personally go through the case papers, case diaries and panchnamas already pre-pared, question the persons concerned and verify their statements. In order to show that they have done so, they must always initial case papers, case diaries, Panchnamas, etc. and attest the statements of witnesses with their dated signatures. Before an officer leaves a scene of offence involving dacoities, etc., he must arrive at some definite conclusion and give instructions to his subordinates. A mere statement in his Weekly Diary e.g., 'Gave necessary instructions to the Sub-Inspector' will not be enough. The officer must definitely state what instructions he has given to his Sub-Inspectors.

(G. R., J. D., No. 7373, dated 18th November 1901, I. G. 's No. 33, dated 23rd October 1948 and 28 (2408) dated 11th August 1949.)

(ii) All Superior Officers who visit scenes of serious crime should, before they leave the scenes of serious offences, initial the charge sheet made in their presence and should approve it. In cases where investigation remains to be completed, draft charge sheet should be got prepared and initialled. It will be the responsibility of the superior officers to see that this is properly done. They should invariably mention in the 'D' statement and crime reports about initialling of charge sheet or draft charge sheet

(I. G. P' s. No. G/642, dated 1st July 1963)

(6) Every directly recruited Assistant and Deputy Superintendent of Police, provided he is not officiating as a Superintendent of Police, will, unless specially exempted by the Inspector-General of Police, investigate every year personally, assisted by a Sub-Inspector or Inspector, at least six important cases, i.e. cases which have to appear in his diary, whether occurring at the headquarters station or outside, preparing and signing all diaries and documents pertaining to those cases and generally attending to them up-to completion in all their stages including the proceedings in Court. Preparation of important documents, questioning of suspects etc., should not be left to the subordinates. Personal investigation has no meaning if he asks his subordinates to do important things. Such practice defeats the very purpose of personal investigation by the Sub-Divisional Police Officer. Every such officer should send a quarterly return of cases investigated to the respective Range Deputy Inspector General of Police through the Superintendent of Police, in form No.9 in Appendix I, during the second week of January, April, July and October every year. The number of such investigations made and the results obtained should be noted by Superintendents of Police, with

their remarks on the work done, in Form No 10 in Appendix I, in the annual reports.

(G. R., J. D. No. 104, dated 6th January 1902, I. G. 's C. M. No. G/12, dated 14th October 1958 and G. L., H. D. No. MIS-1072-1633-B, dated 10th April 1972).

(7) It is the duty of a Superintendent or a Sub-Divisional Police Officer to assist any case visited by him by putting himself down as a witness and so to strengthen the prosecution evidence, when such a course is necessary. Some discretion must be left to officers in this respect but failure to exercise this discretion properly will merit severe notice.

(I. G. 's No. 59, dated 6th November 1937)

(8) Cases of assaults on the Police by Military. Naval or Air Force personnel must be investigated personally either by the Superintendent of Police or the Sub-Divisional Police Officer.

(I. G. 's S. O. C. No. 61, dated 4th August 1954)

(9) In the event of any case involving human sacrifice, having been committed or reported, within their jurisdiction, the Superintendent of Police or the Commissioner of Police, as the case may be, should promptly visit the scene offence, take up the case for personal investigation, ensure all steps towards proper apprehension of the accused and to probe deeper into the causes which would explain the commission of such an offence.

(I. G. 's Cir. No. G/1909 dated 30th December 1968.)

136. Object and importance of visitation by superior officers.-(I) The object of a visit by a Superintendent of Police or a Sub-Divisional Police Officer to the scene of an offence should be personally:-

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(a) to ascertain the facts of the case as far as possible from complainant Witnesses and other sources of information.

(b) to ascertain what investigation the Police on the spot have made.

(c) to assist and generally to direct the investigation and to see that it is being correctly and vigorously prosecuted by suitable officers.

(d) to prevent irregularities on the part of the subordinate Police and to encourage and guide them in their enquiries. And

(e) when an important confession has been made to ascertain by enquiry and, If convenient by inspection of and conversation with the accused that no compulsion or inducement has been used by the Police and that the confession is voluntary.

(2) In the interest of the detection and prevention of serious crime in a District or on a Railway and of Police efficiency generally, this personal enquiry into crime by the superintendent of Police or the Sub-Divisional Police Officer is a most important duty. A mere formal flying visit to the

scene of an offence with a halt there of a few hours only, cannot, in difficult and undetected cases be expected to be productive of any appreciable results towards the detection of the case, and affords no sufficient guarantee that the subordinate Police will proceed with their investigation regularly and correctly. The presence however during the investigation of the Superintendent of Police or the Sub-Divisional Police Officer for a reasonable time, the encouragement he can give to his subordinates, his supervision over their enquiries and the part he can himself play in the investigation would, of course, go far towards ensuring proper investigation and a successful issue. Circumstances, of course, alter cases, and while in some cases a prolonged stay is desirable, in others it is not called for or perhaps possible. No hard and fast rule can be laid down. Superintendents and Sub-Divisional Officers must of course, use their discretion in the matter, bearing in mind that close and successful personal enquiry, and supervision of the enquiry into a few important, difficult or undetected serious offences is preferable to flying visits, productive of no particular result, to the scene of many. The full details on the part played by them in the investigation and the results of their visits to the scenes should be entered day by day in their weekly diaries.

(3) By associating himself more closely with the subordinate Police in their enquiries and by throwing himself into the work of really and personally investigating and supervising the investigation of as many cases serious and otherwise, as possible, a Superintendent or Sub Divisional Police Officer can do much to improve the tone, morals and efficiency of the force and to encourage and control them. There is no better way of acquiring useful information about all a Police Officer should know in his charge, or of getting to know his men.

(4) On receipt of the information about the commission of serious offence, the Superintendents of Police or the Sub-Divisional Police Officers should immediately proceed to the scene of offences and in any case they should leave for the scene of offence within maximum two hours of receipt of the special report. On reaching the scene of offence, they should stay at the scene till all the investigation is complete. They should inspect the scene, question all the panchas and witnesses verify panchnamas and statements at the scene of offence and can leave the scene only after all local work is completed even permission given to send articles for chemical examination a draft charge sheet prepared and initialled. In the case of undetected offences, they should not close visitation till all local clues are exhausted. In the offences of murders and attempts, they should spend at least 48 hours on the crime and not less than five nights in other property offences.

(I. G. 's Cir. No. G/642/273, dated 29th June 1972.)

(5) Superintendents and Sub-Divisional Officers should note that-

(i) absence on casual leave is not a valid excuse for not visiting a scene of a serious offence, the proper course being to return at once or before proceeding on leave, to arrange for another officer to visit such a scene.

(ii) visits made late are as good as no visits.

(iii) offences which are only technically serious and obviously unimportant need not be visited

(iv) visits made for two or three odd hours at night are a source of inconvenience and irritation to subordinates and the parties concerned and must 'be avoided, and that

(v) detailed timings of journeys and mileage in connection with visitation of crime must be shown in the crime review.

**G. R., J. D. No. 4197, dated 1st July 1901 I. G. 's No. 7716, dated 14th August 1901 and
G. R., H.D. No. 6169 dated 5th May 1925, I.G. 's No. 2408 dated 9th September 1943.)**

(6) The Sub-Divisional Police Officer from one district should not be asked to go for the visitation of a serious offence in another district nor should the Deputy Inspector-General of Police concerned encourage such requests unless he has justifiable reasons to accede to the same. If the Superintendent of Police and other supervising officers happen to be busy, all simultaneously, in the supervision of investigation, the officer who first becomes free from the supervision, would immediately go for the supervision of the investigation which is waiting to be supervision. In any case, if neither the Sub-Divisional Officer nor the Superintendent of Police is available, for prompt

supervision for the time being, at least a Police Inspector should be sent immediately for the supervision till the Superintendent of Police or the Sub-Divisional Police Officer comes on the spot.

(I. G's Cir. No. G/642/70, dated 7th September 1970.)

(7) Circle Police Inspectors should visit all cases as mentioned in rule 29.

137. Investigation to be impartial and local.-(1) Police enquiries should always be impartial. It is the duty of the Police to do all they can to find out the truth. An investigating officer is to aim at discovering the actual facts and arresting the real offender. He ought not prematurely to commit himself to any view of the facts for or against any person. He should consider carefully any evidence tendered to him on behalf of an accused person. He should not make up his mind on any point hastily, but keep, as far as possible, an open mind to be influenced by evidence only.

(G. R. J. D. No. 6642, dated 19th December 1905)

(2) Except when the information is given against any person by name and the case is not of a serious nature, the Police Station Officer must, as required by Section 157(1) of the Criminal Procedure Code, always proceed to the scene of offence and make investigation on the spot, especially when offence has taken place in a rural tract, though in towns the investigation may be conducted at the Police Station House. An investigation made on the spot enables the investigating officer to discover important clues, to find out persons who are likely to throw light on the facts and circumstances of the case, and generally to form an acquaintance with the habits and customs of the people concerned, which is highly useful in the investigation of crime.

(G. R. J. D. No. 6642, dated 19th December 1905)

(3) Superintendents of Police or Sub-Divisional officers on examining Police Station records, should carefully note in how many cases the Police have sent for the complainants and in how many cases the Police have, instead of sending for the complainants, proceeded to the spot and made the necessary enquiries. The date of receiving the complaint and the date of enquiry on the spot should be noted.

(G. R., J. D. No. 6642, dated 19th December 1905)

138. Inspection of the scene of an offence.- (1) The following suggestions may useful in an inspection of the scene of an offence for the investigating officer:-

(A) As soon as the crime is reported:-

(i) He should first consider the facts of the case thoroughly and should consult the Police Station Crime Record, such as Village Crime Note Books, Conviction Register of known criminals, etc.

(ii) He must select suitable assistants who would be useful to him in his investigation work.

(iii) He should provide himself with instruments and apparatus, e.g., a measuring C tape, a pair of scales, magnifying glass, an electric torch material required for casting of foot prints, etc. likely to be required in the inspection. (Scene of Crime Box wherever available should always be carried by the investigating officer)

(iv) He should procure the presence of ponchos and also of Experts whose assistance is likely to be required for a thorough inspection.

(v) He should proceed promptly without wasting any time, as delay means lot of valuable clues.

(B) On the arrival at the scene of crime:-

(i) He should exclude from the scene all superfluous persons, who are likely hamper a correct inspection.

(ii) He should adopt some suitable method of Inspection, so that no part of scene should remain uninspected.

(iii) He should attempt to secure the presence of witnesses who are important from the point of view of investigation, such as, the person who first made the report, etc.

(iv) He should make notes of all important points observed by him and by panch, as they come to the notice in the course of the inspection, such as abnormal features, weather conditions, etc.

(v) He should arrange, as far as possible, in some important cases, to take photographs and keep a complete data of the photographs in the case diary, showing date, time, nature of light used, camera position, identity of photographer, etc. for letting in evidence in Court.

(vi) He should make a very careful survey of the scene and look for finger prints, foot prints and other clues such as foreign objects left by culprits, etc.

(vii) He should draw dimensional sketch of the scene as far as possible to scale where the circumstances of the case so require. For detailed instructions refer to Appendix VIII.

(viii) In out-door scenes of crimes he should look for clues over a wider area considering the approach and departure of criminals to and from the scene. The possibility of tracing foot prints, if any, should also be borne in mind. Search should be made in a systematic manner, taking care to see that no portion is over-looked.

(ix) The scientific evidence may be collected from glass pieces, strips of paint, blood, hairs, clothes and fibres, soiled dust, debris and grease, tyre and skid marks etc. It has always to be kept in mind that control samples must invariably be collected. It is essential requirement of all examinations in the Laboratory. For the purpose of comparison, samples must be taken from the correct places according to the circumstances of each case, i.e. sample of superficial layer to be taken very near the actual scene for comparison. Deeper layer may have different composition. In case of hairs, control samples must be collected from the relevant part of the body according to the circumstances of the case as the hairs from different parts of body differ.

(x) Finally, he should draw on the spot a panchnama mentioning all important and relevant points observed and articles or documents etc. which might have been taken possession of by him from the scene.

(xi) For an exhaustive list of things to look for at the time of inspection of the scenes of offences of various types, refer to Appendix IX.

(Bombay Police Gazette, Part II (Crime), dated 11th September 1958)

(2) All house-breakings, by rumali or Kham-Nakab, bagli or Gimlet and window bar wrenching or bending methods should be visited by the Police station Sub-Inspector himself rather than by a Head Constable or other subordinate.

139. Preservation of the scenes of crimes.-(I) In order that people may trained and educated in preserving the scenes of crimes, it is necessary that lectures should be given to the people in general whenever an opportunity occurs. Such lectures can be illustrated with slides, postures or films.

(I. G. 's Cir., No. G/1927/68, dated 16th September 1968.)

(2) Suitable talks on the subject may be broadcasted in regional language over the All India Radio.

(3) Police exhibition should be held on all suitable occasions at the State capital and other centers so that efforts in this direction are maintained to make the public aware of the fact that they must not interfere with exhibits at the places of occurrence of criminal offences. A separate stall could be opened in the Indian Science Congress dealing with forensic science material.

(I. G. 's Cir. No. G/1927/IB/68, dated 16th September 1968.)

(4) A list of permanent exhibits which are available the Central Forensic Science Laboratory, Calcutta Central Detective Training School, Calcutta; Central Finger Print Bureau, Calcutta; Government Examiner of questioned Documents Calcutta and Serologist, Calcutta, is given in Appendix X. Whenever required for placing in Police stalls at the All India Exhibition organised in the State, the Commandant Central Forensic Institute, Calcutta, should be informed well ahead in writing.

(I.G. 's Cir. No. G/1927/IB/69, dated 7th August 1969 and No. G/1927/1B/71, dated 9th June 1971).

140. Requisition of Police Dog Squad.-(I) Police Dog Squads have been stationed at various Centres in the State. The orders about the location of the Centres and the areas to be covered by such centres, will be issued by the Inspector General of Police, from time to time.

(2) The Dog squads may be utilised for serious crimes only, such as murders, dacoities, robberies with arms, highway robberies and big house-breaking & thefts wherein property involved is more than Rs. 5,000/- and where there is no tangible clue to commence the investigation. However, at the places where the Dogs Squads are stationed, they may be utilised locally even for smaller offences.

(3) The services of dogs should not be utilised for detection of illicit liquor cases as the smell of liquor is not distinctive. Such a smell is found even in medicines as well as in fermented foods.

(4) The services of the Police Dog Squad can be utilised in the detection of thefts of copper wire from telegraph lines, provided proper planning is done and implemented under the supervision of a responsible officer. Where the offence is already detected or there is ample evidence in the case, the Police Dog Squad need not be called.

(5) Considering the climatic conditions in Gujarat State, the scene is likely to prevail for about 48 hours at the scene of offence or on the articles handled by the offenders. It would, therefore, be necessary to requisition the Police Dog Squad within 48 hours of the offence, as far as possible and to take care that no outsider touches any of the articles lying at the scene of the offence nor disturb them in any other manner.

(6) A wireless signal calling for the Police Dog Squad should also indicate the nature of crime, scene of offence and the nearest Police Station so that the Squad could be sent on receipt of the requisition if not already engaged in any other work of crime detection.

(7) The Commissioner of Police, Ahmedabad City, and the Superintendents of Police under whom the Police Dogs are placed, should send monthly reports to the Inspector General of Police giving all occasions when the services of Police Dog Squad were requisitioned illustrated by results achieved in such cases.

(8) A mention in the monthly crime review in part 'c' at the end should always be made regarding any requisition received for the Police Dog Squad and the results achieved. Detailed instructions about requisitioning of the service of Police Dog Squad are contained in Appendix XI.

(I. G. 's Cir. No. G/1955, dated 10th July 1967 and 17th July 1971.)

141. First aid to the injured.-(1) In the event of a person being dangerously wounded, the primary duty of the Police officer who first arrives on the scene is (while noting the position and nature of the wounds) to take immediate steps to send for the nearest available medical aid and send the wounded persons without loss of time to the nearest hospital or dispensary for treatment. Even when the injury is not dangerous, the nearest available Doctor may be called on to prepare the injured for transportation to a hospital. This should be done before entering on the formalities of a panchnama, etc. as the delay thereby incurred might cause serious risk to the life of the person so wounded.

(G. L., H. & C.S.D., No Mis-2860/453-C, dated 4th July 1963)

(2) Serious wounds should be meddled with as little as possible. Free bleeding should be checked by a firm pad of folded cloth tied on with a bandage. If the blood be spurting out or flowing very freely, a tight bandage may also be tied round the limb above the wound; but this must only be used when the bleeding cannot be otherwise controlled.

(3) Dirt or other foreign matter may be washed away from wounds with very clean water; but this should only be done, if early medical treatment cannot be obtained or for other special reasons. Fresh coagulated blood forms the best covering for a wound till skilled medical assistance is available.

(4) Wounds should be covered with a perfectly clean cloth, and in every instance great care should be taken to shake or jolt the wounded person as little as possible while carrying him, and this should be borne in mind in cases of both wounds and serious fractures.

(5) Medical attendance should not be forced on wounded persons against their wishes.

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(6) The Ambulance vans stationed at Civil Hospitals. Cottage Hospitals and Government dispensaries should be rushed immediately to the place of accident whenever an intimation is received about an accident on a road irrespective of jurisdiction with First Aid out-fit. If the party which receives the information has no van or is out of order it should contact the nearest of the Police Stations or Government hospitals as the case may be for van. The Commissioner of Police all Superintendents of Police and the commandants State Reserve Police Force Groups should spare as far as possible the Police motor vehicles in their charge to convey the medical officer with necessary equipment to the places of road accidents and to bring the injured to the hospitals for further treatment. The cost of petrol etc. spent on the Police motor vehicles for the above purpose should be borne by the Police Department.

(I. G. 's C.M., No. 7970, dated 31st August 1956)

142. Medical treatment of wounded persons by Government Medical Officers.-

(1) Police officers should when there is no danger to the life of the injured and after first aid has been given procure the services of local medical officers in Government employ in preference to those of private practitioners for the treatment of wounded persons. They should in no case take medico-legal cases to dispensaries in charge of compounders, except for such minor first aid treatment as the compounders are able to give.

(I. G. 's No.8 (3410), dated 9th April 1949, and G.L.H. & C.S.D. No. MIS-2860/253-C (i)
dated 4th July 1963.)

(2) No Police officer shall require any medical officer to leave his duties in order to attend upon a wounded person unless in cases in which the latter cannot without imminent danger to life be conveyed to a hospital or dispensary. It is within the discretion of the medical officer to refuse compliance with the summons if he considers that he cannot absent himself from his hospital or dispensary without serious interference with his regular duties. He should however comply with such summons, whenever possible, and when unable to do so should state his reason in writing.

(3) Only some very unusual circumstances would justify the Police in calling a Sub- Assistant Surgeon away from his dispensary to any distance which would compel him to be absent for more than an hour or so.

(4) The expenditure on account of conveyance of patients in medico-legal cases should be borne by the Police Department. However it should not exceed the limit prescribed for each district.

(G. R., H. D., No. CVA-1658/71252-V, dated 6th May 1959.)

143. Medical certificates.-When called upon medical officers immediately after examination, will supply the Police, as far as possible, with certificates regarding case of injury brought to hospitals and dispensaries.

(S.G. 's Circular No. 4402 dated 6th June 1904)

144. Post mortem Examination when necessary.-(I) In any case under investigation, in which a person has met with his death, the Police Station Officer or a Police officer not lower than a Sub-Inspector is empowered by Section 174(3), Criminal Procedure Code, to send the body to the nearest Civil Surgeon or other qualified medical man for post-mortem examination: -

(i) if there is doubt as to the cause of death or

(ii) in cases where bodies are found in a well, tank, lake, river, etc. to decide whether the death was homicidal, suicidal or accidental,

(iii) if there is no such doubt the Police officer thinks it expedient to do so e.g. in order to procure expert medical evidence as to :-

(a) the period of time that might have elapsed since death;

(b) the personal identity of the deceased

(c) whether the deceased in a case of infanticide was born dead or alive, or

(d) whether the death was due to the accident, then a prosecution is intended in case of motor accident.

Note:-No examination will ordinarily be necessary in cases of motor car or other accidents where no prosecution is intended and there is clear evidence of the cause of death.

(G. L., G. A. D, No. C. II. 2259-L, dated 30th December 1960 and I. G. P.'s No. No. G/1940 dated 11th February 1961.)

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(2) It is for the Police Officer to decide whether the post-mortem examination should be performed or not and it may defeat the ends of justice, therefore, if a medical officer performs a postmortem examination before he has all the information the Police can supply him with. It is necessary, therefore, that the Police should send the medical officer a written authority for the performance of a post-mortem examination in a medico-legal case and in that letter should be stated the medico-legal aspects of the case and any points to which the Police officer wishes special attention to be given.

(3) Sub-rules (1) and (2) apply even where a person who was examined and treated in hospital dies in hospital or elsewhere.

(I. G. 's No.7 dated 26th February 1940 and G. L. ,H.D., No. C-II-1458/60021- VIII, dated 22nd August 1958.)

145. Procedure regarding post-mortem and other medico-legal Examination.-

(1) Every medical officer of Government of rank not lower than a Subordinate Medical Service Officer, being in charge of Civil Station or of a Government or Government-aided dispensary is a "qualified medical man" within the meaning of Section 174 (3) of the Criminal Procedure Code; Post-mortem and medico-legal work should under no circumstances be entrusted to Ayurvedic and Unani subsidised medical practitioners.

(I. G. 's No. 3410, dated 17th November 1944)

(2) Immediately on receipt of a corpse or of any article for medico-legal examination from any Magistrate, Police officer (District or Railway) or other authorized person, a medical officer should grant a receipt for the corpse or article received. The receipt should be in the following form:-

Receipt for article sent for medico-legal examination.

Stations

Date :

from (Name)

Received at

(Rank)

(Number of Police Constable)

(Residence)

the following articles for medico-legal examination

.....

Name

(Rule 1-3 of C. M. Code.)

(3) (a) In all cases where external wounds on a body sent for post-mortem examination differ greatly from those described in the panchnama accompanying the body and in all cases where no marks are visible at all, though marks are described in the panchnama, medical officers should communicate with a Magistrate and ask him hold a panchnama under Section 176 of the Criminal Procedure Code. .

(S. G. 's Cir. No. D/3009, dated 28th October 1914.)

(b) where it is necessary to hold a second panchnama as laid down above, the Police who bring the body should be asked to send for the Magistrate. It is not necessary to depute a dispensary servant for the purpose.

(S. G. 's Memo. No. D/245, dated 23rd February 1915.)

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(4) (a) When, in performing a post-mortem examination in a medico-legal case, a medical officer finds any foreign body (bullet, buck shot, small shot, fragments of iron, stone or other substance), this should be extracted and preserved for production as evidence in Court. The exact position where the foreign body is found should be carefully noted in the post-mortem notes and the foreign body itself should be preserved in a sealed bottle or otherwise.

(b) The foreign body should be shown to the Police for inspection when required, but as the medical officer has to swear to its identity in Court, it should not pass out of his charge until he gives evidence before the Court.

(S. G.'s Cir. No. D/188, dated 21st January 1920)

(5) All medical officers (Civil Surgeons, and Assistant and Sub-Assistant Surgeons) making post-mortem examination at head-quarters are required to record the result of the examination on Form C. M. No. 67 and to send a full copy of that form filled in by them to the Police Station concerned by the hand of the Police Constable who brings the body to them for examinations, as required under Rule 750 of the Bombay Medical Code.

(Cir. No. MCE/4467/C, dated 16th September 1970 of Director of Health & Medical Services)

(6) A copy of the paragraph stating the medical officer's opinion as to the cause of death should be simultaneously sent to the Superintendent of Police.

(S. G. 's No. 8899, dated 15th September 1906 and I. G. 's No. 8229, dated 29th September 1906)

(7) The Police officer who takes the dead body to the hospital should accordingly be directed to wait till he gets the examination certificate.

(8) The making of a post-mortem examination for medico-legal reasons admits of no avoidable delay, and it is the duty of medical officers to give this work precedence over all other work which is not absolutely urgent.

(I. G. 's No. 2807, dated 28th March 1895. and S. G. 's Cir. No. 16677, dated 22nd December 1900)

(9) Copies of post-mortem notes shall be supplied to the accused by the Magistrate as required by Section 207, Criminal Procedure Code.

(10) Police officer accompanying a corpse sent for post-mortem examination should not be present in the mortuary during time of the autopsy but should, after the autopsy is over, be shown the corpse again for identification, should they desire to see it.

(G. R., J. D., No. 3906, dated 28th May 1913.)

(11) The prohibition in Sub-Rule (10) does not apply to the case of re-examination of corpse for verification of facts after exhumation under Section 176, Criminal Procedure Code. Such re-examination of corpse generally takes place as the result of doubt being cast on the correctness of the conclusions arrived at, at the original examination. It is clearly in the interest of justice that the Police enquiry officer should be present at the re-examination in such cases.

(G. R., H. D. No. 1487/3, dated 29th April 1933.)

(12) When a dead body is sent for post-mortem examination by the Police so late that it is necessary to defer the examination till the next day and if there is no mortuary, the Police must arrange to guard till the medical officer is ready to begin his examination. If there is a mortuary, no guard should be supplied by the Police.

(I. G. 's No, 8193, dated 16th June 1916)

(13) Under the Bombay Medical Code, the Post-mortem examination report is considered as a confidential document and copy of the same cannot be supplied by the Police Department. Post-mortem examination notes and medical certificates are the documents belonging to the Health and Medical Department. Whenever any person asks for a copy of the same, he should be directed to contact the Health and Medical Department.

(I.G 's Cir. No. G/1927/73/1825 dated 7th May 1973)

(14) In respect of requisitions for post-mortem examination by the Medical Officer, the following paragraphs of the Bombay Civil Code, Part I, should be borne in mind:-

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"736. Police to send dead bodies to the nearest Hospital or dispensary.-It is ordinarily the duty of the Police to take a dead body to the nearest dispensary provided with the requisite accommodation where a medical officer with the proper instruments and appliances is to be found. Magistrates and Superintendents are required to arrange that medical officers are not summoned from their dispensaries except when it is impossible or for special reasons undesirable to send a corpse to a dispensary."

"737. Should a medical officer consider that he has reasonable ground for complaint on any occasion that the Police have called upon him to perform a post-mortem examination where they ought to have called on some other medical officer, he can bring the matter to the notice of his superior for such departmental action as the latter may deem necessary.

(I. G. 's C. M., No. 3410-II, dated 2nd March 1954)

146. Things to be looked for in cases of suspected poisoning.-(1) In investigating a case of suspected poisoning, the investigating officer should examine the surrounding, clothing, surface of the body and its natural orifices. In the surroundings may be found the vomits excreta, remnants of food or vessels, in which the poison is suspected to have been powdered, dissolved or stored before administration, e.g., bottles, cups, tumblers, pestle and mortar hypodermic syringe, needles, household grinding stone, pill or powder boxes and pieces of paper or covering with which the medicine is dispensed. There may also be found suspected drugs in the form of medicine, pills powders etc and also rat-poison, weed-killer, disinfectant etc. On the bed sheets and other clothing's or surface of the body, there may be stains of vomit or urine or faeces or the poison itself, or there may be wounds through which the poison might have been introduced or injected. In the mouth may be present poisonous materials or signs of its having been taken. There may be a peculiar odour at the month. The Investigating Officer should secure any portion of the food, drink or medicine which may be suspected to contain poison and, if there has been vomiting the vomited matter, if possible for the purposes of the examination.

(2) The Investigating Officer should also enquire about the medical history of the victim such as previous illness and the treatment taken e.g. medicine drugs etc.

(3) (a) During the post-mortem examination urine liver kidney alimentary canal and other organs or tissues through which the poison is suspected to have been administered or excreted or in which it is suspected to have been stored should be preserved.

(b) Blood from the heart should be preserved if coal gas is suspected. Hairs and nails should be preserved if arsenic is suspected and brain should be preserved in cases of respiratory failure where drug is suspected.

(4) In cases in which the corpse has been cremated, ashes and bones should, if possible, be secured from the scene of cremation. as in cases of poisoning by arsenic. The poison may be detected in them.

(B. P. G., Part II Crime, dated 11th September 1958)

147. Examination of viscera and other articles by the Chemical Analyser.-(1) (a) After having made a post-mortem examination in case of suspected poisoning, the medical officer should report the

results thereof to the Police and on receipt of an order from a Magistrate or from a Superintendent of Police or Sub-Divisional Police Officer but not before, forward the viscera etc. of the deceased to the Chemical Analyser to Government for examination. In cases where no death has occurred but it is suspected that poison has been administered the medical officer should similarly report the case to the Police and on receipt of an order from a Magistrate, Superintendent of Police or Sub-Divisional Police Officer, forward the vomited matter or the contents removed from the stomach of the affected individual or other matters requiring analysis, to the Chemical Analyser to Government.

(b) Microscopic examination of hairs can show whether the hairs are human or not and also serves to identify the hairs of individuals. e.g., hairs of the deceased being found on the person of the accused or vice versa in a case of murder Similarly microscopic examination of cloth rope paper ink sealing wax ashes dust etc. may be useful for the detection of crime An investigating officer should take care whenever necessary, to have all such articles sent to the Chemical Analyser for such examination.

(c) When any investigation is undertaken of a serious explosion or conflagration caused by petroleum or other dangerous substance, articles seized, which require examination, should be sent to the Chemical Analyser to Government, who will carry out the analysis free of charge.

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(2) (a) Bottles containing the viscera or any other medico-legal exhibits, which may have to be sent to the Chemical Analyser, should be sealed by the medical officer concerned and sent to the officer-in-charge of the nearest Police Station (under intimation to the officer at whose instance the examination was conducted) for sealing and safe custody with the nearest Police guard until the order of the Magistrate, Superintendent of Police or the Sub-Divisional Police Officer is made known.

(b) The Commissioner of Police/Superintendent of Police concerned should see there is no delay in sending viscera after the post-mortem examining is done.

(I. G. 's Cir. No.G/1947 dated 23rd November 1968)

(c) In urgent cases, the Commissioner of Police / Superintendent of Police concerned should instruct the Sub-Divisional Police Officer to send Demi-official letter addressed by name to the Chemical Analyser, Government of Gujarat, at least three weeks in advance of the anticipated date of framing charges against the accused or the date of hearing in judicial trial with a short note showing the nature of urgency. This will help the Chemical Analyser to attend to important and urgent cases.

(I. G. 's Cir. No. G/1947 dated 22nd June 1965)

(d) In cases in which the Government servants are involved, the Chemical Analyser should be informed under a Demi-Official letter addressed personally by name to avoid delay in giving his opinion. On the top of this Demi-Official letter "Urgent-Government Servant Involved" should be written and underlined with red ink. These instructions should be scrupulously observed in all cases in which the Government servants are involved.

(I. G. 's Cir. No. G/1927/CBI/70 dated 22nd February 1971)

(3) The Police Investigator, though not a scientist, should have some knowledge about the analytical work done in the Forensic Science Laboratory and he must possess a good knowledge of the current procedure for collecting relevant material and dispatching the same to the laboratory with all helpful information, for utilizing well the scientific aid available to him. For detailed instructions regarding scientific aids to investigation refer to Appendix XII.

148. Chemical Analyser to be referred to only in cases of urgent necessity.-(I) Substances ought not to be sent to the Chemical Analyser for analysis, when there is neither a reasonable suspicion that poison has been used, nor anything in the post-mortem examination of the bodies leading to such a supposition. Magistrates should limit their references to that officer to cases of urgent necessity in which the local medical officer cannot give the information required. Civil Surgeons and Superintendents of Police are to remember that the duty of making a reference to the Chemical

Analysed and of requiring that officer to make a report which will be admissible under Section 293 of the Criminal Procedure Code is one which lies within the province of the Magistrate conducting the enquiry for which information on the character of the suspected substance is required. Such a reference should ordinarily not be made by them directly.

(2) But to avoid failure of justice by delay, Superintendents of Police are given discretionary power to forward any suspicious substances to the Chemical Analyser, at the same time giving him such necessary information as will enable him to form an opinion as to their nature.

(G. Rs., J. D., No. 7290, dated 14th December 1878 and No. 639, dated 3rd February 1879)

(3) For the type of work that is undertaken in the Forensic Science Laboratory, refer to Appendix XIII.

(I. G. 's No. 6162-II, dated 17th August 1955)

149. Information regarding the case concerned to be supplied to the Chemical Analyser by a Magistrate or Police Officer.-(1) Magistrates, Superintendents of Police and Sub- Divisional Police Officers, on instructing medical officers to forward articles for analysis to the Chemical Analyser to Government should at the same time address the latter officer in English, quoting the number and date of their order to the medical officer, and should furnish the Chemical Analyser with a brief summary in English of the history of the case, including a reference to the sections concerned of the Indian Penal Code, especially in, "blood and semen" cases.

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(2) The principal points on which Magistrates etc. should furnish information to the Chemical Analyser in cases of suspected poisoning are as follows:-

(a) What interval was there between the last eating or drinking and the first appearance of symptoms of poisoning".

(b) What interval was there between the last eating or drinking and death (if this occurred)

(c) What were the first symptoms?

(d) Were any of the following symptoms present, and if so, which:-

(i) Vomiting and purging,

(ii) Deep sleep,

(iii) Tingling of the skin and throat,

(iv) Convulsions or twitching of muscles,

(v) Delirium and clutching at imaginary objects.

(e) Were any other symptoms noticed?

(f) Did any other persons partake of the suspected food or drink and did they also suffer from similar or other symptoms or poisoning?

(3) Any other information available, likely to prove serviceable as a guide to the class of poison administered, should at the same time be furnished.

(4) Any articles in the possession of the Police of which an analysis may be required may at the same time be forwarded to the Chemical Analyser, strong rectified spirit of wine being added to such as are likely to undergo rapid decomposition.

(5) In forwarding such articles, the precautions laid down in Rules 151, 152 for the guidance of medical officers should be attended to.

(6) Whenever any question as to the quantity of poison present in the substances sent to the Chemical Analyser for examination is likely to be of importance in a criminal case. Magistrates and Superintendents of Police should ask for a quantitative analysis in sending such substances to the Chemical Analyser.

(7) When a quantitative analysis is required, early intimation should be given to the Chemical Analyser, and in the absence of a request to that effect, it should be understood that only a qualitative analysis will be made.

(8) In respect to human viscera, the Chemical Analyser to Government will make a quantitative as well as qualitative analysis and communicate the result in each case.

150. Packing etc. of articles to be sent to the Chemical Analyser.-(1) All articles for analysis are, as a rule, to be packed and forwarded by the medical officer, and this duty does not devolve upon the Police authorities. It is only on very rare occasions, such as when the medical officer is not within a convenient distance or when delay in transmission of articles is likely to hasten decomposition that the Police should send them direct. The Police are not supplied with the necessary bottles and rectified spirits, and have not the requisite knowledge for carrying out the work.

(G. R., No. 3121, dated 18th May 1882)

(2) For detailed instructions refer to Appendix XIV.

151. Procedure to be followed by a Medical Officer in sending articles to the Chemical Analyser.-(I) When on receipt of the necessary order, a medical officer forwards articles to the Chemical Analyser for examination, he should address at the same time a letter to the Chemical Analyser, advising their dispatch This letter should contain:-

(a) an impression of the seal used in closing the bottles and a description thereof, (b) a list of the articles forwarded and a statement as to how the articles have been forwarded.

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(c) the name and address of the officer from whom the order has been received to forward the articles and the number and date of such order,

(d) detailed account of the post-mortem appearance observed in Form C. M. 67.

(e) a reference to the Sections concerned of the Indian Penal Code, especially in "blood and semen" cases, and

(f) if he has seen the case during life, an account of the symptoms observed and a statement of the treatment, if any, adopted.

(I.G. 's No. 2063-B, dated 21st February 1920.)

(2) The medical officer forwarding the viscera should furnish a copy of the letter referred to in Sub-Rule (I), to the Superintendent of Police or the Sub-Divisional Police Officer who issued the order to forward the articles to the Chemical Analyser.

(G. Rs., J. D. No. 71, dated 11th January 1892 and No. 4006, dated 8th November 1893 and No. 3268, dated 6th August 1895.)

(3) (a) The minimum quantity of samples of the following articles is required to be sent for thorough analysis by the Chemical Analyser :-

(i) *Liquor samples.*-(a) For determination of percentage of alcohol alone 115 gramme of sample.

(b) For determination of medicinal and toilet ingredients-roughly 450 gramme of the sample.

(ii) *Opium samples.*-5 gramme would be reasonable quantity for estimation of morphine percentage.

(iii) *Ganja, Bhang and Charas*.- Percentage of determination of the active principle of these products is not feasible. An opinion on the presence or otherwise of such elements in specimen is possible to be drawn even if a small quantity of one gramme of sample is sent.

(b) While sending samples, all the Police Officers should note to make mention of the quantity of the sample with the forwarding letter.

(I. G. 's Cirs. No. G/1947/64 dated 29th July 1964 end 23rd January 1965)

152. Mode of Despatching articles to the Chemical Analyser.-(I) Medical officers should acknowledge the receipt of the articles sent to them by the Police for transmission to the Chemical Analyser to Government and should state in the receipt whether or not the seals were intact. When despatching the articles to the Chemical Analyser, the labels originally attached by the Police should be used again on the bottles or other receptacles in which such articles are sent; and in the letter to the Chemical Analyser the medical officers should quote the number given to the articles by the Police. The Chemical Analyser should, in describing the articles in the certificate, refer to the Police number and the distinguishing label.

(G. R., J. D., No. 8955, dated 27th September 1920 and G. R., H. D., No. 1561, dated 29th April 1922)

(2) When parcels are sent by post, the medical officer will send them direct. When a special messenger is required, he will send them through the Station Sub-Inspector, who will arrange for the special messengers. Civil Surgeons requiring special messengers for this purpose should obtain them direct from the Superintendent of Police, or, during that officer's absence from the officer-in-charge of the Police Head-Quarters. Parcels should be sent by post. or rail or by special messenger, whichever is cheaper, discretion being always reserved to the medical officer to send a special messenger, when he considers necessary. Blood stained articles, which are to be sent to the Forensic Science Laboratory for examination should be sent immediately with the sanction of the Sub-Divisional Police Officer or the Superintendent of Police.

(I. G. 's Cir. Memo., No. 151-II, dated 9th September 1955.)

(3) Detailed instructions for sending the articles to the Director of Forensic Science Laboratory and the Chemical Analyser to Government Will be found in Appendix XV.

(G. C., H. D., No. FSL-1458/63052-V, dated 1st July 1958.)

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153. Examination by Chemical Analyser of specimens other than Medico-legal Exhibits.-(1) It is one of the duties of the Chemical Analyser to Government to examine and report on specimens (other than medico-legal exhibits) sent to him by Superintendents of Police in connection with cognizable criminal cases.

(G. R., G., D., No. 7221, dated 25th March 1941)

(2) Superintendents of Police should, however, use discretion in sending specimens to Chemical Analyser for analysis in case of commercial frauds. In such cases, where the "" prosecution will be mainly for the benefit of the complainant. Superintendents of Police are authorized to require the deposit of the Chemical Analyser's fees by the complainant before agreeing to send samples for analysis. Superintendents of Police should pay the fees to the Chemical Analyser, who should dispose of them according to rules.

(G.L., H.D., No 3994/4-D, dated 15th April 1941)

(3) No charges will be levied for services rendered by the Chemical Analyser to Government in respect of Special Police Establishment cases.

(G. L., H. D., No. 6494/6-D. dated 25th March 1954)

154. Intimation to the Chemical Analyser to return articles.-When forwarding cases to the Chemical Analyser to Government, it should invariably be stated whether any of the articles sent for examination are required to be returned.

(G. R., G. D., No. 2190, dated 19th March 1914)

155. Chemical Analyser's Report.- The Chemical Analyser should send his report on the articles forwarded to him for examination to the medical officer or the Police officer concerned who forwarded them to him. The medical officer or the Police officer concerned on receipt of the report

should make a note of it and then transmit it. to the Superintendent of Police or the Sub-Divisional Police Officer by whose order the articles were forwarded to the Chemical Analyser. The Superintendent of Police or the Sub-Divisional Police Officer will then take the necessary steps for the production of the report at any magisterial enquiry that may thereafter be held.

(G. R., J. D., No. 71, dated 11th January 1892, No. 4006, dated 8th November 1893 and No. 3268, dated 6th August 1895.)

156. Chemical Analyser's report in prohibition cases.-(1) Police officers require an immediate certificate from the Chemical Analyser in doubtful prohibition cases, and in particular, when the accused is in custody and a complaint has been lodged in the Court, they should communicate the urgency of the cases to the Chemical Analyser and give him a definite time by which they require such certificate from him.

157. Examination of animals or carcasses by veterinary officers.-(1) It is part of the ordinary duties of all veterinary officers in charge of Government or Government-aided veterinary dispensaries to conduct, at the instance of a Magistrate or a Police officer not below the rank of a Police Station Officer, medico-legal or post-mortem examinations, to report on any animals or carcasses sent to them for the purpose at the dispensaries and to retain notes in a form prescribed by the Director of Animal Husbandry.

(2) The opinion of medical officers should not be sought by Magistrates in the case of live animals with respect to which there is a complaint of cruelty, except in very special cases and never when the services of a veterinary officer are available. In such very special case, a fee of Rs. 2 should be paid to the medical officer.

(G. R., G. D., No. 6363, dated 25th September 1912 and G. R., R. D., No. 7225, dated 5th July 1915)

(3) All viscera of cattle which the Police desire to submit to the Chemical Analyser for further examination, should be sent to the Civil Surgeon of the District or the nearest Sub-ordinate Medical Service Officer to be packed and forwarded. In Places where there is a civil veterinary graduate, this duty devolves on him.

(G. Rs., G. D., No. 3182, dated 20th December 1880 and No. 3581, dated 8th October 1886 and G. R., G. D., No. 6434, dated 16th December 1909)

158. Symptoms in cases of cattle poisoning.- The following is a brief description of the symptoms likely to be observed in different cases of cattle poisoning:-

(1) Arsenic or other irritant mineral poisons

The animal evinces, soon or almost immediately after the poison is given, violent abdominal pain, trembles, writhes, rolls about in agony, groans, foams at the mouth and dies speedily. In more protracted cases, from less poison being given or from its being absorbed more slowly, the abdomen swells, acute diarrhoea or dysentery supervenes, great thirst prevails and death ensues from exhaustion.

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Rinderpest, hoven and dysentery are the diseases the symptoms of which most nearly resemble those of arsenical poisoning. The following are the most obvious distinguishing marks :-

(a) In rinderpest, there is trembling with nervous or spasmodic twitches, but accompanied at first by dullness instead of agony. The access of the disease is by comparison gradual; for irritant poison produces violent symptoms suddenly.

(b) In hoven distension of the abdomen precedes and causes pain, in poisoning b) arsenic, pain precedes distension and is also more acute, violent and agonizing.

(c) In acute dysentery, violent, bloody, slimy purging is the prominent symptom, abdominal pain is subsidiary. In arsenical poisoning, pain is the chief and primary symptom; purging may come afterwards.

(2) Aconite

The most characteristic symptoms are trembling, nausea, eructations, retchings, causing discharge of mucus, partial convulsions early inability to stand, paralysis stupor, slow pulse and breathing coma and death.

(3) Nux Vomica

Nux vomica in poisonous doses causes spasms of the voluntary muscles and all the symptoms of acute tetanus, such as jaws fixed, the haws projected over the eyes, ears erect, body rigid and often contorted, tail extended and quivering, death being caused by suffocation from the diaphragm and oilier muscles of respiration being affected, or by the beating of the heart being stopped by spasmodic contraction. ; Tetanus might be mistaken for this form of poisoning, but it is a rare disease amongst homed cattle. It is hardly ever caused in them except by wounds and is never so sudden and violent in its attack how so rapidly fatal as the poison of nux vomica.

159. Examination by Medical Expert in certain cases.-In order to procure expert evidence, the investigating officer should send to a Government medical officer any person, with that person's consent, for examination by such officer, in cases in which the question is as to-

- (i) the age of the person,
- (ii) the personal identity of the person,
- (iii) whether the person is unsound in mind, or
- (iv) the signs and effects on the body of that person due to criminal violence sexual offence, infanticide or concealment or birth, criminal abortion, etc. :

160 Examination by an Anatomical Expert.-Cases with reference to questions ~s to the sex and the age at death of persons whose bones are found, should be referred to the' Professors of Anatomy at the nearest Medical Colleges.

(G. L. H. D. No SB. II-FSL-1075-391, dated, 24th March 1975)

161. Examination by Finger Print Expert.-(I) Latent prints found at scenes of crime often play an important part in the detection of crime and the investigating officers should make the best use of them. The Experts attached to the Finger Print Bureau have been equipped with the necessary developing kit and are detailed to visit scenes of crime at the request of Police officers. Though they are more easily available at places of their Head- Quarters there is no objection for the Police at other places to ask for their services in important crimes. Local Crime Branch Sub-Inspectors and Head Constables from some districts are also trained in the art of developing prints and their services can be made use of in smaller crimes where it would be expensive to call Expert from the Bureau.

(2) The latent impressions of even slight touches of the hands and fingers are left on all smooth and polished surfaces such as of glass articles, metal vessels, Chinawares, wooden furniture, tin boxes etc. which are not generally visible to the naked eye. It is the duty of Investigating Officers to make a careful survey of all such articles which are suspected to have been bandied by the culprits during the commission of the crime and to ensure., that all such articles which are likely to yield latent finger prints are properly protected against any further handling, as such handling and exposure to rain and sun will almost

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certainly destroy the original prints or result in other prints being superimposed over them thus rendering them unreadable. Similarly bloodstained, greasy or dirty fingers often leave chance impressions which are visible to the naked eye, on the articles found at the scene of crime. When this is done their examination and treatment for the development of the chance prints should be left to the trained Police personnel or the Expert from the Finger Print Bureau. If the presence of latent finger prints on any article is suspected they should be developed by:-

(i) Dusting the surface with universal powder (grey in colour) where all glass articles (transparent), window panes, metal, polished wooden and where other articles of dark colour are involved.

(ii) In the case of prints found on paper, Chinaware and other articles of white colour black brushable powder or ivory black powder should be used. All portable articles bearing chance prints should be very carefully handled and packed, due care being taken to protect the chance prints and

sent to the regional Finger Print Bureau for examination and further action. The finger impression slips of the investigating officer 01 any other innocent persons who might have handled the articles in question, together with the finger impression slips of the inmates and suspects should also accompany the articles sent for examination. When it is impossible to send the articles to the Finger Print Bureau an Expert from the Bureau should be summoned to examine them on the spot.

(3) Any palm prints found or suspected to be on any object should be treated in the same way as finger prints and subjected to examination by a finger print expert.

(4) Instructions on the subject of foot-prints will be found in Appendix XVI.

(5) The local Special Police Establishments should not be charged for the supply of the opinions by the Finger Print Bureau and the State Examiner of Questioned Documents of the State Criminal Investigation Department and photographic copies of the document etc. in cases dealt with by them.

(I. G.'s C. M., No.8 (7094), dated 6th February 1951 and G. L., H. D., No. 6494-6-D, dated 25th March 1954.)

162. Examination of weapons, bullets etc. connected with accidents or crime.- (a) In respect of all service bombs and shells recovered by the Police, they will contact the nearest Controller of Explosives. The latter would be at liberty to seek assistance from the Inspecting Ordnance Officer at the nearest Ammunition Depot for identification, disposal, etc. Should this officer be unable to identify the exhibit, he will send it to the Chief Superintendent of Development (Ammunition), Kirkee. In all court cases the Controller of Explosives will testify when necessary. Under this arrangement requests for examination of service bombs and shells to the Inspecting Ordnance Officer of the nearest Ammunition Depot would go through the Controller of Explosives and not from the Police direct.

(G. I., M. H. A. Letter. No. 26/50-46-Police, dated 27th November 1948.)

(b) The Chief Superintendent (Ammunition), Kirkee, is not to be cited as a witness in any case, unless either (a) the Court writes upon it or (b) the success or failure of the case depends entirely on his evidence. Even in such cases attempts should be made to have his evidence taken on commission at Kirkee.

(I. G. 's C.M., No. 6210 dated 4th April 1956)

(2) In respect of the identification of weapons and bullets seized by the Police and coming within the purview of the Arms Act and Rules (vide Government of India, Home Department letter, No. F. 128jVlj34-Police, dated the 17th August 1934), the Police may contact the Chief Superintendent of Development (Ammunition), Kirkee, direct for technical opinion

In doing so, the following procedure should be observed, so as to avoid any dislocation of the normal production work, as suggested by the Chief Superintendent of Development (Ammunition), Kirkee :-

(a) All request for rendering expert advice/identification and disposal of ammunition and connected questions should be made in writing duly signed by a Police officer not below the rank of Gazetted Officer. In cases of emergency however, messages by telephone from a Gazetted Officer will be entertained during office hours only

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(b) A suitable officer, capable of giving expert advice will then be detailed to examine ammunition under investigation and will render a report to the Police authorities.

(c) A fee of Rs. 70 only per exhibit will be charged by the Technical Development Establishment (Ammunition) for examining ammunition and rendering expert advice to the Civil Police.

(d) An acceptance Certificate. in quadruplicate will be sent to the Indenting Authorities for completion and return to the Chief Superintendent of Development (Ammunition). Kirkee on completion of the examination.

(e) In cases where the ammunition in question is desired to be demolished or is 1 dangerous enough as has to be demolished in situ. the same will be done by the expert from the Technical

Development Establishment (Ammunition). Kirkee Necessary arrangements for demolition will have to be made by the Police. The cost of demolition will also have to be borne by the Police and will be added on with the Acceptance Certificate.

(f) Only service type of ammunition will be examined and handled by the expert.

(I. G. 's C. M. No. 6210, dated 30th September 1954 and No. 6210, dated 13th July 1955)

(3) The following procedure should be followed regarding the correct dispatch of arms, ammunition and bicycles etc. to the Ordnance Authorities:-

(i) In no case should any Police officer send arms and ammunition without proper escorting party.

(ii) Arms should be sent to the Ordnance Depot, Kirkee.

(iii) Ammunition should be sent to the Ammunition Depot, Dehu Road.

(iv) Vehicles and their components should be sent to the Ordnance Depot, Talegaon Dabhade.

(I. G.'s C. M., No. 6374. dated 28th March 1952)

(4) Any question of forensic ballistics will be dealt with by reference to the Government Examiner of Questioned Documents. The previous sanction of Government should be obtained in all cases in which it is proposed to utilize the services of the Government Examiner of Questioned Documents for the purposes of comparing bullets or cartridge cases with weapons etc. No fees will be charged for the services other than the actual expenses incurred on the cost of photography and, when evidence is given by the officer on traveling and halting allowances at the rates laid down for Grade I Officers of the Central Services and for the peon accompanying the officer at the rates fixed for Government of India peons be claims for the cost will be settled by book adjustment.

(G. R., H. D., No. 4895/3. dated 9th October 1934)

163. Expert opinion of the mint master and the currency officer.-(I) Coins suspected to be counterfeit coming to the notice of the Police should be sent through the Deputy Inspector-General. Criminal Investigation Department (Crime & Railways) to the Master of the Mint at Bombay for his opinion as to whether they are counterfeit or not (vide Rule 130)

(2) Whenever currency notes suspected to be forged or counterfeit come to the notice of the Police, they should be sent through the Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways) along with a report regarding the circumstances in which the notes were found, to the Currency Officer for examination and expert opinion vide Rule 129).

(3) For detailed instructions on counterfeit coins refer to Appendix VII.

164. Photographers and other technical experts.-(I) whenever it is necessary to take a photograph of a scene of crime or of finger-prints foot-prints or any document which cannot be easily removed, the investigating officer should call in a photographer to make a photograph of the same.

(2) In investigations of railway accidents, the Police should apply to the General Traffic Manager for expert evidence on the proper interpretation of any pertinent rule or rules, and the Manager will arrange to depute a competent person to assist the Police and attend in Court.

(3) Similarly in all matters of a technical nature, e.g., engineering and motor mechanics, investigating officer should obtain assistance from persons, official or non-official, specially skilled in such matters. .

(I. G. 's No. 49, dated 6th November 1922)

165. Use of different rays in crime detection.-There are seven visible colours in solar spectrum. They are violet, indigo, blue, green, yellow, orange and red. Besides these seven visible colours there are other invisible rays before the violet and again other rays found the red which are termed as Ultra-violet and Infra-red respectively. Similarly beyond Ultra-violet light there are Roentgen rays, which are commonly known as X-rays. Although human eyes cannot see them without aids, photographic plates are easily affected by their existence. With certain objects, Ultra-violet rays are sometimes visible to the eye in darkness by the phenomenon commonly called fluorescence. These different rays are extensively used these days in crime detection work by photographing objects under various radiations i.e. rays to suit the occasion. For detailed instructions refer to Appendix XVII.

166. Examination of documents by the examiner of questioned documents, Government of India, Simla.-Police officers should not ordinarily find it necessary to obtain opinion of handwritings from the Examiner of Questioned Documents, Simla, as those can be obtained from the Examiners in the State Criminal Investigation Department but in certain exceptional circumstances where it becomes necessary to do so and in all cases pertaining identification of ink and paper the procedure to be adopted by the Police officers will be as follows :-

(1) The Police officer concerned should submit a detailed report of the case, through the Superintendent of Police to the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railway) stating the necessity of obtaining the opinion of the Examiner of Questioned Documents, Government of India, Simla. In proper cases, the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railways) will obtain the necessary sanction for the payment of fees for opinion and evidence (if necessary) of the Examiner of Questioned Documents, Simla, and inform the Superintendent of Police to submit the case directly to the Examiner of Questioned Documents, Simla, after receipt of the sanction.

(2) On receipt of such intimation, the Police officer should send the documents to the Examiner of Questioned Documents, Simla.

(3) Detailed instructions for sending documents for examination to the Examiner of Questioned Documents, Government of India, Simla, are contained in Appendix XVIII and Sub-Rule (6) of rule 167.

(I.G. 's No. G/34/9475 dated 23rd November 1971)

167. Examiners of documents of the State Criminal Investigation Department (crime).- (1) The Criminal Investigation Department (Crime) has attached to it one Handwriting and Photographic Bureau at Ahmedabad and one Photographic Bureau at Rajkot. These Bureaux are under the general administrative control and supervision of the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways), Gujarat State. The Bureau at Ahmedabad is controlled by the Chief State Examiner of Questioned Documents and working of the Photographic Bureau at Rajkot is supervised by the Police Photographer at Rajkot and controlled by the Chief State Examiner of Questioned Documents, Ahmedabad.

(2) The Cases relating to examination of documents sent by the Police from the State including Railways, Criminal Investigation Department and the Anticorruption Bureau are to be dealt with by the Handwriting and Photographic Bureau at Ahmedabad.

(3) The jurisdictions allotted to the Photographic Bureaux are as follows:-

(a) *Ahmedabad Photographic Bureau.-Districts.*-1. Ahmedabad Rural and Gandhinagar, 2. Kaira, 3. Panchmahals, 4. Baroda City, 5. Baroda Rural, 6. Broach. 7. Surat, 8. Bulsar, and 9. Sabarkantha.

(b) *Photographic Bureau at Rajkot.-Districts.*-1. Amreli. 2. Bhavnagar, 3. Surendra-nagar, 4. Rajkot, 5. Jamnagar, 6. Junagadh 7. Kutch, 8. Mehsana, and 9. Banaskantha.

(c) Cases relating to the Police Photography from the State Criminal Investigation Department, Anti-corruption Bureau and the Railway Police are to be dealt with in the above Bureaux as per the above distribution of districts.

(d) The work of Police photography of Ahmedabad City is done by the Police photographers unit attached to the Ahmedabad City Crime Branch (Detection) and is under the general administrative control and supervision of the Commissioner of Police, Ahmedabad City.

(4) Cases to be accepted for opinion of the Examiners in the State Criminal Investigation Departments. Such cases are of three types:-

(i) Police cases.-(a) Cases sent for opinion, during the stage of investigation by the Superintendents of Police in the State.

(b) Cases sent for opinion during a criminal trial by the Judicial Magistrates or the Sessions Judges, at the instance of the Prosecution.

(ii) Government cases.-(a) Cases pertaining to Departmental enquiries sent for opinion by the Heads of Departments in the State after following the procedure laid down in Sub-Rule (7) below.

(b) Cases received from Secretarial Departments or by the orders of the State Government, as laid down in Sub-Rule (7) below.

(c) Cases sent for opinion by Judicial Magistrates, Session Judges and other presiding officers of Criminal Courts in the State for their own information when no such requests have been made either by the prosecution or the accused.

(iii) *Paid cases*.- (a) Cases sent by Civil Courts in the State.

(b) Cases sent by municipal or other local bodies, Universities, Railway Administration and firms of Solicitors and other public bodies in the State.

(c) Criminal cases received from Courts for opinion on the application of the accused.

(d) Criminal cases received from Courts for opinion on the application of a party in a private prosecution.

(e) Cases from other States, if they are forwarded by the Government of the State concerned. Provided that cases in category (iii) (*Paid cases*) above may be rejected at the discretion of the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railway), if in the circumstances of the case, he finds it fit to do so, ' , due to pressure of work, shortage of material, etc.

(5) (i) Application for the opinion of the examination of questioned documents :-

All applications (preferably typewritten) should be addressed to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways), Gujarat State.

(ii) In Police cases, the investigating officers should supply, in particular, the following information viz.

(a) Police Station and C. R. No.

(b) Charges laid against the accused.

(c) Necessity of obtaining the opinion on handwritings.

(d) Names of the complainants and the accused.

(e) Total number of documents sent for examination with the appropriate exhibit numbers etc.

(f) Such other circumstances (e.g., the mental and physical condition of the alleged writers as may be conducive to arrive at a correct opinion on the handwritings under examination.

(iii) *Standards of writing for comparison.*-It is advisable to send as many specimens of the handwriting of the suspected person or persons as can conveniently be obtained. Care should be taken as to the selection of these standards and no writing should be characterized as admitted or genuine unless it is absolutely certain that it is so. When selecting handwritings for comparison writings written about the same period as the document in question should as far as possible be selected. This should be done in cases where already existing writings of the suspect or accused are readily available whether contained among correspondence or in books or registers. The natural admitted writings and signatures should be in the same script as that of the questioned ones. Signatures or writings in different scripts should not be sent. The natural admitted writings should be so selected as to contain sufficient words in common with those from the questioned writings. When taking specimen handwritings of several suspected or accused persons the writings of each individual should be taken on separate sheets and not on the same sheet. In cases where a person is required to give several specimens of his signature it is also advisable to take each specimen on a separate paper care being taken to remove the previously written sheets from the sight of the individual when he is writing the other specimens. For the purposes of obtaining specimen handwritings, the matter should preferably be dictated. The suspect if unable readily to write from dictation should be made to write from typewritten or printed matter, and not manuscript so the chances of imitation or variation of formation may be minimized. In no case should the suspect be allowed to see the questioned document to write from. When any lengthy piece of writing is dictated or given for copy, the actual time occupied in writing should be noted and also the kind of pen used and the position of the paper while in the act of writing, i.e., whether laid on a flat hard surface, or held across the palm or placed across the thigh or in any other position. The officer taking the specimen should state on it the name of the writer together with the particulars above referred to, and affix the date of the writing. He should also certify on the same sheet, that the specimen was written in his presence. Admitted writings, if undated, should if possible, bear on them a pencil entry giving the probable date of the writing e.g. "Said to have been written in July 1904" In the same way if the disputed document bears no date, the supposed or probable date of writing or the date of receipt should be ascertained and noted.

(iv) Such applications should be accompanied by a list of documents and questionnaire as shown in Schedule 'A' in Appendix XIX.

(v) Applications received from private individuals will not be entertained.

(6) The following instructions should be scrupulously observed while forwarding documents for examination in the Handwriting and Photographic Bureau of the State Criminal Investigation Department:-

(a) The documents should be described in terms of Exhibit Numbers followed by the description of the document as shown in Schedule 'A' in Appendix XIX and never in the application for opinion which may contain a brief statement of the facts of the case. The covering letter forwarding the documents should contain the following details: -

1. Language of the writing. 2. The number of exhibits sent, giving their distinguishing marks and other necessary particulars indicating separately the questioned documents on which opinion is sought and the admitted documents with which comparison is to be made, these latter being classified according to their respective writers, 3. The question to the Examiner, clearly and precisely put, in regard to the particular writings or portions of writings on which opinion is desired, 4. Particulars of the case such as title number date names of the complainant and the accused and the section under which the charge is laid, together with any remarks as to the circumstances of the writing and on any other matters or points on which the Examiner should be informed.

(b) At least six specimen handwritings (i.e., before panchas) should be obtained in " respect of each of the disputed documents by dictating the entire contents on it, on a paper and with a pen, as far as possible of the same kind as are used for writing the disputed document. These are termed as " Provable documents" in Schedule "A" in Appendix XIX.

(c) Natural admitted writings and signatures should invariably be supplied in addition to specimen handwriting taken as in (b) above. Such writings may be available in the form of various types of correspondences manuscript applications or Registers and Books maintained by the suspect. The particular portion from the same which can be thus treated as admitted documents should be clearly encircled, flagged and

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given separate exhibit numbers. Such natural writings should be written on dates as near as possible to those of the questioned documents. If such natural admitted hand-writings and/or signatures are not available, the fact should be mentioned with reasons in the application for opinion.

(d) *Encircling of signatures or portions of writings intended for examination.*-In cases where opinion is required on, or the attention of the Examiner directed to, the signature only or to a portion of the writing, the signature or the particular portion should be clearly indicated by being circled in red or blue pencil. Ink mark should be avoided. The encircling or marking off of signatures or portions of writings for examination or comparison should be carefully and neatly done by means of a fine pointed pencil. Specific care should be taken to see that the encircling does not touch the writings in question. The encircling should be complete and mere under-lines and brackets avoided. If there are other writings in juxtaposition, the dividing line should clearly exclude the outside portions. Carelessness in this matter causes unnecessary increase of work and is apt to lead to mistakes. Special attention should be given in this matter in regard to interpolations, additions and over writings and to signatures on bonds and on the reverse of Government currency notes where there are other signatures endorsements and writings.

(e) If the disputed writings are in ink, the specimen obtained should also necessarily be in ink. The same principle should be applied to disputed pencil and typed writings. Handwritings in the form of carbon copies will not be examined unless they are accompanied by the original documents.

(f) *Pen and writing pad.*-When the writings of suspected individual are required to be examined, his pen and writing pad if obtainable should be sent. In such cases, a piece of paper containing the name of the writer should be gummed on the pen handle and a similar label affixed to the pad.

(g) *Sealing wax Impressions.*-While sending sealing wax impressions for examination care should be taken in the packing, so that the wax or lac is not broken in transit by the post. A thin layer of cotton placed on either side of the portion containing the seal impression will afford safe protection.

(h) *Distinguishing marks.*-All papers should bear distinguishing marks, such as A, B, C, or Exhibit 1, 2, 3, etc. Any other writing on the document should be avoided. In cases of letters sent together with their envelopes or covers, the envelopes should bear a sub-mark or number to the letter it contained. Thus, if a letter is marked A, its covering envelope should be marked A-I, or if the letter is marked I, its envelope may be marked I-A. In the case of documents already entered as Court exhibits, the Court marks will, of course be observed.

(i) *Stitching or stringing of papers.*- In stitching or stringing paper together care, should be taken not to mutilate any written portions.

(j) The questionnaire should be very brief and compiled in terms of the exhibit numbers and not the actual description of the documents. It should also never be worded in a manner which would suggest the opinion required. Any material in the questionnaire likely to create a prejudice is frequently utilized in cross-examination by the adverse party's counsel as a basis for the allegation that the Examiner was not impartial in his examination.

(k) *Dispatch of Papers.*-Papers intended for examination by the Examiner should, if possible, be placed flat, either between blank sheet or thin boards. If too large to allow of this being done they should be rolled rather than folded. If folding cannot be avoided, care should be taken to refold into the original folds. The documents should invariably be sent in clearly sealed envelopes and never in a loose condition. If sent in such loose condition, they will be returned to the sender in the same condition. un-examined and no correspondence will be entertained if the documents are lost, spoiled or damaged in any way. In no case, should the questioned documents be pasted to any other

paper, even if those be in a very tattered condition. For such purposes, transparent adhesive tape should be used on the reverse side of the document which is simply torn. When in pieces those should be placed between two glass plates and such plates be fixed by an adhesive tape.

(1) In any one case, opinion should be sought only on such number of documents as will be included in one criminal case under the charges originally framed. Under any circumstances, opinion should not be sought on more than a minimum of documents which are absolutely essential for the successful prosecution of the case.

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(m) Opinion should not be sought twice on the same disputed documents and the investigating officers should, therefore, be very vigilant in supplying all sufficient data (such as specimen writings, natural admitted writings etc.) and should, in no case, submit them for comparison when an opinion has already been furnished on the strength of the material supplied.

(n) The work of giving opinion on inks and on age of documents will not be undertaken. For this purpose reference may be made to the Government Examiner of Questioned Documents, Simla.

(G. R., H. D., No. CID 2256/63738-V, dated 21st February 1959.)

(7) *Procedure for obtaining opinion in Departmental Inquiries.*-The Head of the Department concerned should submit the report of the case stating the necessity of obtaining the opinion of the Examiner in the State Criminal Investigation Department to the Administrative Department concerned of the Secretariat which should obtain the orders of Government in consultation with Home Department for referring the case to the State Criminal Investigation Department. On receipt of such intimation, the Head of the Department should send the case to the Examiner of the State Criminal Investigation Department (Crime) for opinion, in accordance with the instructions in Sub-Rule (6) above.

(G. L. H. D., No. HPB-1370-91-C, dated 29th January 1972.)

(8) (i) Supply of Photographs,-subject to the availability of Photographic material, photographs of documents examined by the Examiners will be supplied on request.- at the rates mentioned in Schedule "B" in Appendix XIX. .

(G. R., H. D. No. 8129/5, dated 20th June 1953)

(ii) Photographic materials offered by private Parties will not be accepted in 'Paid' cases enumerated in Sub-Rule (4) (iii) above.

(9) (a) *Court-Attendances of the Examiners in the State Criminal Investigation Department.*- As long a notice as possible should be given to the Examiner as to his attendance in Courts being needed, and efforts should be made to arrange for dates suitable to him with regard to his other engagements. It sometimes happens that owing to an emergent call or an important case or other circumstances the Examiner is obliged to revise his current programme of Court attendance. In such cases he will suggest fresh dates for the acceptance of the Courts for which revised dates of attendance become necessary.

(b) In no case should the Examiners be summoned to give evidence in cases wherein the documents have not been previously examined.

(c) As the Examiners have to visit unfamiliar places for giving evidence, the Prosecutor in charge of the case should request the Court to record his evidence early so that he may be able to return to his Head-quarter immediately without being required to halt at places. If for some reason the evidence of the Examiner cannot be recorded on the date on which he is summoned to appear in the Court, the Prosecutor concerned should send a prior intimation, if necessary by a telegram, to the Examiner.

(d) The summons should give full details of the opinion number with date of the Examiner in the case in question, the Police Station, C. R. No., the name of the accused, date of offence, sections, etc. Name of the Examiner concerned should be mentioned in the summons.

(e) Whenever possible, the Prosecutor should arrange for a personal discussion with the concerned Examiner prior to the evidence being given.

(10) Fees for examination of documents and Court-Attendances (including Traveling fees):-

(a) No fees will be charged when the Examiners' services are requisitioned in Police and Government cases. The examination of documents in 'Paid' cases will not be undertaken, unless the Court or the party calling for the opinion of the Examiner guarantees payment of the photographic charges and of the opinion and Evidence Fees(vide Schedule 'c' in Appendix XIX).

(b) An extra charge of Rs. 20 for each disputed document over five (irrespective of the number of admitted documents) will be charged in addition to the opinion fees and photographic charges mentioned in Schedule "c" in Appendix XIX (Explanation : -For the purposes of this sub-rule, a disputed document means one disputed signature alone or with its body writings alone on a fulscape paper or a part of it).

(G. R. H. D. No. HPB-1068-4849-C, dated 10th January 1973.)

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(c) When an Examiner attends a Civil case outside Head-Quarters and also attends Criminal case at the same place or another place in the same tour, the fees to be recovered in the civil case should be calculated as if the Examiner traveled to and fro between the place of the civil court and his Head-Quarters.

(d) The Inspector-General of Police is competent to sanction the disposal of fees levied under this Sub-Rule, subject to the observance of the provisions of Rule 360 of the Bombay Civil Services Rules.

(e) The general principle to be observed is that a fee received for work done during office hours and on the strength of special knowledge acquired in the course! of an officer's duties should be credited to Government. The entire fees for supplying the opinion and any other work done during the office-hours (whether at Head-quarters. or outside) by the Examiner should be credited to Government under the head "055- Police",

(f) Attendance and traveling fees for giving evidence in case of examiners art "admissible as per Schedule 'C' of Appendix XIX.

(G. R., H. D., No. HPB-IO68-4849-C, dated 2nd September 1972.)

(11) The Examiners of Documents in the State Criminal Investigation Department, (Crime) will not undertake the examination of documents anywhere else except their respective offices nor will they attend a Court for evidence unless the documents have been ,so examined, sufficient time being allowed for such examination.

(12) (a) The Assistant Public Prosecutors and the Public Prosecutors should seek the assistance of the Examiners in the State Criminal Investigation Department (Crime) whenever they have to conduct important cases involving Expert-evidence, especially when: a private Handwriting Expert is likely to be examined as a Defence-witness to contradict j the opinion and evidence given by the Examiners in the Criminal Investigation Department (Crime). They should, however, obtain a prior permission to do so from the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime & Railways).

(b) Whenever an Examiner of the State Criminal Investigation Department (Crime) has been summoned to give evidence in a Civil or other Paid case his services can be spared in that case for helping the pleader who cites his evidence, to cross-examine a private Handwriting Expert appearing for evidence on the opposite side. These services can be spared only at the discretion of the Deputy Inspector-General of Police C.I.D. (Crime and Railways) on the application from the concerned party through the Court, after giving guarantee of the usual fees, on account of the Examiner's attendance.

(13) The examiners in the State Criminal Investigation Department (Crime) will not accept photo-stat copies or photographs for examination without their originals. In case of documents in possession of the Audit offices, the Investigating officers should approach the Inspector-General of Police, through the Superintendent of Police to obtain the original documents in accordance with the procedure laid down in that behalf.

(14) Records.-All case papers concerning identification by the State Examiners will be preserved for five years from the final date of giving evidence by the Examiner or from the date of dispatch of the opinion from the office of the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) in cases where evidence has not been recorded.

(15) Intimation of results.-All officers should intimate to the Deputy Inspector- General of Police, Criminal Investigation Department, (Crime and Railways) in due course the result of cases in which the opinions of the Examiners were called for. (16) Training of candidates from other States in the Science of Examination of Question Documents is undertaken in the Criminal Investigation Department (Crime) provided suction for such training from the Government is obtained by the State concerned.

(17) Photographers in the State Criminal Investigation Department.-(a) The Hand writing and Photographic Bureaux of the State Criminal Investigation Department (Crime) are manned by a staff of photographers whose main work is to take photographs of documents concerned in examination of handwritings, finger prints and other questioned documents. Work of photographing of chance prints in the detection of crime and other incidental work for the use of the Finger Print Bureau in the State Criminal Investigation Department (Crime) is done by these photographers. .

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(b) The work of taking photographs of unknown dead bodies, accidents, scenes of offences in murder cases, etc. is attended to by these photographers at Ahmedabad, Rajkot and Ahmedabad City, subject to availability of necessary photographic equipment and material.

(c) In cases where chance-prints are developed at the scenes of offences, the services of the photographers should be requisitioned only after the Finger Print Expert has certified that they are fit to be photographed and that the article in question cannot conveniently be taken to the Photographic Bureau for photographs. Where the chance-prints are developed on moveable articles, they should be carefully taken to the Finger Print Bureau where the developed chance-prints will be re-examined by the Finger Print Expert and photographs will be taken only of those decipherable prints, which will be useful for comparison. The requisition for the services of the photographer should, in all cases, give full particulars of the nature of the work, police station and C.R. No. (if any), the description of the article and the total number of chance-prints developed on the same.

(d) Records of Negatives of Photographs.-The negative film record will be preserved for the below-mentioned periods in respect of each type of work, the period beginning to run from the date on which any photographic work is last done in connection with the particular case: -

1. Handwriting cases	... 5 years
2. Accidents, scenes of offences, Modus Operandi	... 1 year Bureau and B.H.O.
3. Unknown-Dead-bodies	... 3 years

(18) Photographs required by the Modus Operandi Bureaux and under the Bombay Habitual Offenders Act should be obtained from the local photographers and the expenditure should be met from the sanctioned grants of the Superintendents of Police concerned.

(G. R. H. D., No. CID. 2256/63138-V 21st February 1959, No. FPB/C-6624-V 29th November 1958; No. 8129/5, 20th June 1953)

(19) In cases in which opinion of the Handwriting Expert is sought and the same is not received, the Superintendent of Police should write a Demi-official letter to the Superintendent of Police, Criminal Investigation Department (Crime) and get the opinion before the cases come up for

hearing. No case should end in acquittal only for want of opinion of Examiner of Questioned Documents.

(I. G. 's Cir. No. G/34, dated 31st December 1965)

168. Examination of typewritten documents in dispute.-(1) The State Examiner of Questioned Documents attached to the Criminal Investigation Department (Crime) will also undertake the examination of typewritten documents in dispute and give his opinion as to whether it has been typed on a particular machine, the probable date of the making of the document, whether there have been any subsequent additions of pages or paragraphs, whether the document was made by one machine or by more than one machine, and as to matters similar to those in the case of manuscript documents.

(I. G. 's No. K/3481-VII, dated 3rd September 1958)

(2) Sub-Rules (1) to (5) of Rule 167 will apply mutatis mutandis in the case of examination of typewritten documents.

(3) (a) The examination of typewritten documents is based on the features and peculiarities of type-writing machines. Typescript produces many varied characteristics peculiar to the machine of origin. Typewriting identification rests not upon the make of the machine, but upon the characteristics of its own particular type, such as certain letters out of alignment or variations in the pacing between letters and lines. Sometimes defects in the typefaces, which are visible in the typewriting itself, disclose the machine. A typewriter has an individuality of its own, which is developed further by use. No two machines of the same make, even when new, behave alike. Typewriting individuality is often of unmistakable and convincing character and the same can be established with a degree of certainty that it may amount to absolute proof.

(b) With a view to improvement, manufacturers of typewriting machines are constantly changing the designs and relative proportions of the letters. They have aimed at an individual peculiarity in the design of letters. This provides a valuable clue to the date of typewriting.

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e.g., typewriting alleged to be done in 1962 and proved to have been done on a machine manufactured in 1970, will bring home the guilt to the accused. The first typewriting machine came into use in 1874; but they were in a crude and experimental stage until 1879; when first machine was put on the market. There have been progressive changes in the type-writer from this time in the design, size and proportions of the type faces, the length of the line that the machine will write, the vertical spacing between the lines, the number, of characters on the machine, etc.

(4) The examination of a type written documents consists of an examination of the following principal features of the writing:-

(a) The design size and proportions of each of the characters.

(b) The relation of each character as printed to adjacent characters or its vertical and horizontal alignment.

(c) The vertical position of the character in relation to the line of writing, i.e., perpendicularity or slant to the left or right.

(d) The comparative weight of impression of the upper lower right or left sides of each character.

(e) The condition of the type faces of all the letters and the presence of defects bruises or scars due to wear or accidents.

(5) The examination is made with the aid of various typewriting test-plates and devices typewriting test-plate has been devised on which small squares are marked. A magnified typewriting protractor is used to measure the deviations to the left or right of the perpendicular; Curves of a known radius are drawn on a glass-plate which is useful in measuring curves turns of the typed letters. There are also other plates used in this connection.

(6) For typewriting identification, the investigating officer should obtain at least three specimens of typewriting of the same context as of the disputed documents, typed on the suspected

machine. If the disputed document is a carbon impression carbon copies should be obtained along with the first impression copy. While taking specimens of typewritten documents, they should be spaced as in the disputed documents.

169. Identity of articles to be preserved.-It is essential that the identity of each article attached by the Police in the course of investigation of medico-legal as well as all other should be preserved unmistakably from the commencement of attachment and writing panchnama up to its production in the trying court and identification by witnesses and through all its intermediate stages, if any, such as while in the custody of the Civil Surgeon the Chemical Analyzer. With this end in view, the following instructions should be owed by the investigation officers:-

(1) In describing in the panchnamas the articles attached, they should be serially numbered. Separate serial numbers should be given to the articles described in each panchnama in cases where simultaneous searches are carried out at different places in connection with one and the same registered offence or where more than one panchnama in connection with the same offence have to be drawn up because of property being recovered at different times.

(2) Large and distinctive labels showing the names of, and the numbers given to the articles attached in the panchnama and the names of the persons from whom and dates on which they are attached, should be securely fastened to the articles as soon as they are attached.

(3) Receptacles containing small articles of value should be sealed in addition to being labeled.

(4) In cases where it is not possible to fasten tie-on-labels the articles should be packed in paper or cloth as may be convenient unless they are very bulky, labels bearing the number and name of articles being put on the covering.

(5) It is not necessary to label live-stock. In such case.-it will be enough, if a full description of the animal or animals attached has been given in the panchnama, for action being taken under Sections 451, 452 or 457 of the Criminal Procedure Code. It may be necessary to attach in the course of investigation such articles as fodder, grain, etc., which cannot be labeled. In such cases, labels need not be attached.

(I. G's No. 64. dated 19th September 1927)

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(6) Cases in which chemical analysis is required would usually be :-

- (a) alleged murder by poison,
- (b) alleged rape,
- (c) alleged unnatural offence,
- (d) alleged cattle-poisoning.

The articles to be sent would be :-

- (i) viscera,
- (ii) vomit,
- (iii) excreta,
- (iv) articles with blood stains,
- (v) articles with semen stains,
- (vi) articles of food or drink said to contain poison,

(vii) charred bones and ashes of a person who has been cremated and who, it is suspected has died of poisoning, and.

(viii) any other articles in which poison may, according to the circumstances of the case, be present, e.g., earth where the washings of vessels used for administering the poison have been spilt.

(7) Whenever any such article is attached which may have to be sent to the Chemical Analyzer to Government, the investigating officer must see that it is enclosed in a proper receptacle or covering, so far as possible on the spot and in any case in his presence and in that of the panch and that the cover is sealed by him in such a way as to preclude tampering.

(8) The labels on articles sent to the medical officers should be attached in such a manner as to permit of their being detached without damage being done to them and used again by medical officers in repacking and transmitting the articles to the Chemical Analyzer.

(9) The investigating officer should be careful to see that such articles are sent in proper custody to the medical officer. The numbers given to such articles in the panchnama should be quoted in the forwarding report. The number of seals put on the receptacle or covering should also be stated in the body of the report. A receipt acknowledging these articles with seals intact should be obtained from the medical officer.

(G. R., J. D., No. 8955, dated 27th September 1920 and G. R., H. D., No. 1561, dated 29th April 1922.)

(10) (a) A statement containing the following particulars in a tabulated form, should invariably be furnished to trying courts by investigating Police and prosecuting officers and Public Prosecutors with regard to the articles to be produced in courts, in all cases in which articles have been sent to the Chemical Analyser for examination:-

- (i) Numbers of the articles sent for examination to the Chemical Analyser.
- (ii) Corresponding numbers of the articles in the list of property submitted to the Court.
- (iii) Corresponding numbers of the articles in the certificate of Chemical Analyser.
- (iv) Corresponding numbers of the articles in the panchnama bearing on the point and dates of the panchnamas.
- (v) Names and numbers of the accused persons connected with the respective articles.
- (vi) Names of deceased persons (if any) connected with the respective articles.

The statement should, as far as possible be submitted by the station House Officer prior to the provisional date fixed by the Magistrate or the Judge trying the case.

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(b) In other cases in which there are many accused persons and a mass of exhibits, the list of property submitted to courts should be arranged according to the serial numbers of the accused persons connected with the particular articles.

(G. R., H. D., No. 5196/3, dated 2nd February 1935)

SECTION II-COLLECTION OF ORAL EVIDENCE

170.-Examination of witnesses.-(1) Under Section 161 of the Criminal Procedure Code, an investigating officer is empowered to examine orally any person (including even a suspect) who is supposed to be acquainted with the facts and circumstances of the case, and if he wishes, shall make a separate and true record of the statement of each such person whose statement he records. The person so questioned is bound to answer all questions truly, but not bound to give incriminating answers. The investigating officer may, whenever necessary, require any other Police Officer not lower in rank than a Head Constable, to examine witnesses. For the examination of witnesses residing at long distances, a requisition may be made to local Police Officers not lower in rank than a Head Constable through the proper channel. L (Section 161 of Criminal Procedure Code)

(2) (a) In order to examine witnesses, the investigating officer should, as far as possible, contact them at their places, but may, where necessary call them by a written order to attend before him at the Police Station or any other place within the limits of the Police Station provided such persons are at the time within the limits of his own or any adjoining Police Station. A person so-called to attend is liable to be prosecuted under Section 174, Indian Penal Code, in case he intentionally omits to attend as required. This power to call for attendance should, however, not be exercised for the purpose of procuring the attendance of a suspect or an accused person as he is liable to be arrested at any time without a warrant.

(b) A male person below the age of 15 years or a woman cannot be required to attend at any place other than the place in which such male person or woman resides.

(I. G.'s No. 7490, dated 12th January 1956 and Section 160 Cr. P.C)

(c) The witness examined should be a competent witness who can understand the questions put to him and give rational replies. If the witness is of tender age or extreme old age or suffering from some disease of body or mind who is not in a position to understand the questions and give rational replies, he cannot be considered a competent witness.

(I. G.'s Cir. No. G/34, dated 15/11th September 1960)

(d) Witnesses should be interrogated minutely and thoroughly before their statements are reduced in writing. They shall however not be prevented by any caution or otherwise, from making any statement which they may be disposed to make of their own free will.

(Section 163 Cr. P.C)

(e) If the integrity of witnesses is doubtful and they change their versions or give additional information, the investigating officer shall make an entry regarding the efforts made for examining such witnesses in their case diaries and also bring the fact to the notice of the Assistant Public Prosecutor or the Public Prosecutor when the case comes up for bearing.

(I. G.'s Cir. No. G/1909, dated 25th April 1967.)

(3) As regards the attendance of a railway employee for the purpose of a Police investigation, reference should be made to Sub-Rule (5) of Rule 189.

(4) (a) If it becomes necessary to question a prisoner in the course of an investigation the Inspector-General of Police, a Deputy Inspector-General of Police, the Commissioner of Police, a District Magistrate or Superintendent of Police may, by letter addressed to the Superintendent or Jailor, authorize any Police officer. therein specified, (who except for special reasons which shall be stated therein, shall not be below the rank of a Sub-Inspector, to interrogate any prisoner, and the officer so specified shall thereupon be permitted to interrogate such prisoner in the presence but not within the hearing of the Jailor or some other prison officer approved by him. Except as in this rule provided no Police officer shall, except in the capacity of an ex-officio visitor, interrogate any prisoner.

(G. Rs., J. D., No. 7683, dated 14th November 1900 and No. 6476 dated 11th December 1905)

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(b) A letter to the Superintendent or to a Jailor of a Prison or a Sub-Jail authorizing a Police officer to interrogate or identify a prisoner in jail, signed by an Assistant or Deputy Superintendent of Police, "for the Superintendent of Police" should be accepted as sufficient authority.

(G. R., H. D. No. 6629, dated 11th October 1916)

(5) (a) When it is necessary to secure the help of a convict undergoing sentence in the detection of crime, it is advisable to suspend the sentence of the convict under Section 432 of the Criminal Procedure Code on condition of his giving such help. The suspension of sentence will, in the first instance, be granted for a period of six months only. If any extension of the period is required, further application should be made to Government by the authorities concerned.

(b) No promise of a remission of sentence after the period of suspension should be made to such convicts, but they should be informed that a report of the assistance rendered will be submitted to Government, who will consider it.

(G. R., J. D., No. 735, dated 5th February 1917)

(6) (a) *Procedure for Interrogation.*-When, where and how? -Investigation is but a search for the truth. Naturally, the Investigator is a fact-finder. His aim, however, is not merely to find out the truth but also to bring the culprit to book by the collection of legal evidence. He must, therefore, have a fairly good knowledge of the law of evidence and the ingredients that go to constitute the offence under investigation. And as evidence in most cases has still to be obtained by the examination of witnesses, the question that naturally arises is when, where and how should he examine the witness.

(b) *Early interrogation is desirable.*-The interrogation of witnesses should be conducted early because human memory becomes fainter and fainter with the lapse of time, and ultimately a time comes when the witness forgets almost everything about the occurrence. A belated examination of witness may produce another undesirable result: often witnesses discuss things observed not only amongst themselves but also with others and as a result enrich their story with what they hear from others. Moreover, as memory fades with the lapse of time, there grows a certain tendency to fill up the gaps from one's imagination. All these, however, do not always happen as a result of a conscious process of thinking; rather, they happen most unwittingly in very many cases.. Nevertheless, they show the necessity of taking up interrogation of witnesses soon after the occurrences, although it should not be undertaken before the place of occurrence has been carefully inspected, map of the scene of crime prepared, searches made and exhibits preserved. -

(c) *How to revive lost memory.*-In some cases it is found that due to genuine pre-occupation the investigator fails to contact the witnesses within a reasonable time and by the time a contact is established, the witnesses have either forgotten all about the occurrence or forgotten a substantial portion of it. Now, what to do in such cases? Should the investigator throw up his hands and abandon all hope of unearthing the crime, or should he try to help the witness to recollect his thoughts? Obviously, he should adopt the latter course, but how? There are two different ways of achieving this purpose, namely, (i) by adopting the association method of investigation and (ii) by placing the witness amidst the surroundings in which he first made his observation.

(d) *The association method.*- The association method is of great help in reviving lost memory. Generally a man associates different facts with each other and one fact remembered may stir up his memory with regard to another fact. Thus an educated man's memory regarding date of occurrence may be revived by making a reference to an interesting or sensational political event and that of a rustic villager by recalling a village festival of about the same date.

(e) *Place the witness amidst the same surroundings.*-Another method of reviving lost memory is to place the forgetful witness in the surrounding and situation in which he first made his observations. Environment helps a great deal in stirring the memory of the witness Even if his memory be not revived instantaneously, it is likely to be rekindled after a certain lapse of time. For this reason, it is rather advantageous examine all important witnesses on the spot because memory reacts better, if it has the actual place of occurrence before it. It must, however, be remembered that nothing should be suggested to the witness so as to make him testify on matters about which he has no personal knowledge. To be trustworthy, thy, the testimony must come spontaneously from the witness and not as a result of suggestions and feelers thrown at him with a view to get a particular statement.

(f) *Witnesses to be examined separately, favorable witnesses to be examined first.*- Each witness should be examined separately and none of the suspects or witnesses should be allowed to hear the interrogation of others. As far as possible, the important favorable and trustworthy witness should be heard first so that the investigator may be sufficiently conversant with the facts of the case before he takes up the interrogation of the suspect or of the unfavorable witnesses. The questions should be clear and unambiguous; they should I be neither suggestive nor leading. As a rule the witness should be allowed first to give an account of his experience in his own way and only

thereafter should the real interrogation begin. The investigating officer must see that the witness does not omit any important details but he should at the same time guard against being misled by any false or inaccurate statement.

(g) *Psychology, an essential step.*- The method of interrogation should vary according to the psychology of the person interrogated, his age, sex, education and social status. A good investigator must, therefore, have a practical knowledge of human psychology and a good deal of fact and experience in the art of handling different classes of witnesses.

Some witnesses may require a little bit of stem handling, but as a rule best results are" obtained through patient and sympathetic treatment. The complainant and the inmates: of the house, for example, must be made to feel that they are narrating their own tale of woes to their own kith and kin and not to a band of callous and indifferent persons. People wronged deserve kindness and sympathy. To talk: to people in distress in a high handed haughty, and imperious fashion is not only indiscreet but also inhuman and unknown to any Code of civilized conduct. A word of sympathy brings witnesses much nearer to the investigator than a thousand harsh words.

(7) Classification of witnesses.- (a) Interested witnesses.- Witnesses may be classified into following groups :-

An interested witness is a person who stands to gain by the successful investigation of the case. The test in every case is: what interest the witness has to further the ends of investigation The complainant and his relations, the rival Zamindar, the unfriendly neighbour, the envious co-sharer, the leader of the rival faction, the jealous lover and the disgruntled employee all belong to this class. No doubt the investigator should tap these sources to the best of his ability, but he should not repose implicit faith in their statements without some sort of preliminary checking. , Their evidence requires preliminary check-up. These witnesses are prone to exaggerate things and an intelligent investigator must be on his guard against being taken in by half-truths and falsehood by such witnesses. Interested persons might set up a story before the investigator in accordance with a pre-conceived plan, and if he readily believes that story without any verification or without going to the root of the case, he will in some cases at least simply play into their hands unwillingly and become a party to the bringing of a false charge before a court of law.

(b) Hostile witnesses.-They are a class of witnesses who stand to lose something from' the result of the investigation and generally come from amongst the friends, relatives associates, receivers or other well wishers, of the suspect or his family. The investigator must be on his guard against this class of witnesses. They often lead the investigator to wrong path. Interested as they are in the suspect their constant endeavour would be to lead the investigator to a wrong path and thus thwart the purpose of investigation. So To deal with them the investigator must atonce be tactful courteous and firm in his stand. It is almost wrenching something from unwilling hands, not by sheer use of superior force but by the utilization of greater intelligence, wit and resourcefulness over the forces of the hostile camp.

The investigator should not give any chance to the hostile witness to know that he proposes to examine him. It is always profitable to take him by surprise. If he gets an earlier intimation, he either absents himself or gets enough time to cook up a story to mislead the investigator. Take him by surprise and examine him away from his own place preferably at his place of employment.

He should be examined at a place away from his friends, associates, lawyers and relations. The place of his employment is often the most suitable place for this purpose. And if the interrogation takes place in the immediate presence of his employer his position be- comes all the more difficult. Any attempt to become evasive or shuffling is bound to produce an adverse impression in the mind of his employer, a thing which no employee wants to create to his own detriment. His attitude, therefore, becomes to tell all that he knows and get back to his work without much fuss. I

(c) (i) *Disinterested witnesses*. - This class consists of persons who have neither to gain nor to lose anything from the result of the investigation. Devoid as they are of any personal motive or consideration for manipulating things, their evidence deserves the highest credence. Such a witness, however, unless he is an extremely duty-conscious citizen, does not usually come out of his own accord to help the police.

(ii) *Look to their convenience regarding the time and place of interrogation*. - Naturally, such a witness does not like to stay away from his place of business incurring an amount of personal loss simply to oblige the investigator. The convenience of such witnesses must, therefore, be taken into consideration in deciding the date and time of interrogation.

(iii) *Develop common ground for conversation*. - While interviewing a disinterested witness, the investigator would do well to develop a common ground of mutual interest for the conversation instead of putting a blunt question like "what do you know about this case?" at the very outset. That is indeed an awkward way of beginning a conversation with a respectable and disinterested person. Such a cut and dried question produces a very bad psychological effect on the mind of the witness and he instinctively assumes a sort of unfavorable attitude towards the imperious investigator. A wrong approach at the outset acts and reacts as a colossal barrier between the investigator and his subject much to the disadvantage of the investigator himself. So, he should be extremely cautious in dealing with a witness of this type and approach him only with utmost civility, politeness and a due sense of dignity in his undertaking. On no account should he provoke the apathy of the witness. A word of greeting or an expression of courtesy from the side of the investigator often produces a marvelous effect and the investigator at once finds his ground well prepared to start the conversation in a congenial atmosphere.

(d) *Lying witnesses*. - Lying witnesses are not necessarily hostile witnesses. Witnesses may, at times, give false information from lack of observation, incorrect observations, low intelligence, lack of education, as also due to self interest and interest in the suspect.

Motive should be discovered and questions shaped accordingly. - So, a good investigator must be able to find out the motive of the witness in giving false information in each case and shape his questions accordingly. Allow him to speak; constant lying is not possible. As regards the person who gives false information intentionally it is always better to allow him to talk as much as he likes, as it is not possible to lie logically and consecutively for any length of time. When the witness exhausts himself, an intelligent interrogator may not take much time to discover the issues of falsehood in his statement. In most cases it would be found that the witness has contradicted himself on a number of material points.

(e) *Unwilling witnesses*. - Unwilling witnesses may come from a variety of reasons. Interestedness in the accused is, no doubt, a real cause but it is not the only cause to engender such a feeling. A witness may be unwilling to depose because of his dislike of the police, his reluctance to be drawn before a court of law or his aversion to publicity.

Causes of unwillingness should be removed. - The remedy lies in discovering the cause of aversion in each case and in taking steps to remove it. Threatening or bullying the witness in such cases makes matter worse confounded. Thus, if a "pardanshin lady" (a lady observing veil) is found to be reluctant to appear in open court and that is why she does not like to give a statement to the interrogator, she may be assured that arrangements would be made for taking her evidence on commission under the provisions of the Code of Criminal Procedure.

(f) *Nervous witnesses*. - From the nervous witnesses the interrogator will have to pick up information slowly and gradually. The witness should be allowed to collect his thoughts and then, made to deal with the points one after another in a systematic fashion.

Examine him in his own environs by way of a conversation. - He should not be confronted with a volley of interrogatories as that invariably increases his nervousness and he may mix up things. He should, therefore, be approached in a spirit of sympathy and examined in his own surroundings.

The interrogation should be in the nature of a conversation. -

(g) *Child witnesses*. - children are often good witnesses, when handled with care. They are minute observers but being receptive to suggestions are easily influenced and terrorised. A friendly, almost a fatherly, tone should be used to give them self-confidence. They should be asked to tell about their own experiences and not what they heard. For children often confuse their own experiences with those of others. The interrogation should be in the

form of a simple conversation and must be as brief as possible. The questions should not be leading or suggestive as on account of their tender age it sometimes becomes difficult for them to give a precise narration of what they actually witnessed and when leading questions are put in their mouth, they are likely to give affirmative answers without understanding the full implications of the questions.

(h) *Female witnesses.*-In view of the peculiar conditions obtaining in India and other Oriental countries, it is necessary to say a few words about the examination of the female witnesses. In India, especially in the villages, the majority of the women still observe "Pardah" (veil). So when women figure as witnesses, the investigator is often faced with a number of peculiar difficulties. If the female inmates of a household had witnessed an occurrence, say the commission of a "dacoity" (robbery by five or more) or murder that took place in the house, they become the most natural and vital witnesses of the case and as such it is not possible to ignore their evidence. For, the presumption of law is that evidence that could be and is not produced, would, if produced, be unfavorable to the party which withheld it. In view of their "Pardah" system, low standard of education, great aversion to publicity and habits of seclusion, the females in Indian villages constitute the most nervous set of witnesses in India. The examination ought to be conducted, at the residence of the witness, and in the presence of a relation or a guardian. A high standard of decorum and courtesy should be maintained throughout the interrogation and on no account should the interrogator lose patience or behave in a way that may look like rudeness or incivility on his part. The witness, who is not accustomed to speak at all with an unknown male, may take a long time simply to overcome the initial shyness that stands in the way of her giving a narrative of facts witnessed by her. If possible, the services of the women police should be requisitioned to help the interrogator. If no member of the women police be available, the interrogation may be conducted through the help of an elderly female, preferably a co-villager, or with the help of adult male relation of the witness with whom the witness is on a speaking term.

(8) Application of evidence natural limitations of human testimony.-No human faculty is infallible, "To err", they say "is human". This principle is equally true in the case of witnesses. Human testimony has three stages of development, i.e., (i) preception, (ii) fixation in the mind of what is seen and (iii) expression. As these powers vary from person to person, some discrepancies are bound to crop up amongst the versions of different witnesses even regarding a particular incident. The investigator should see if the discrepancies are vital and go to the root of the case. Minor discrepancies, however, do not take away a case; rather they go to prove the genuineness of the occurrence. Dove-tail precision is only possible in concocted cases.

It is not possible for every witness to remember all the details. Some differences and discrepancies in details are generally found even in the case of honest witnesses and unless the contradictions are material they need not necessarily be "disbelieved" (1952, Criminal Law Journal, page 276 [India.]). Slight differences in the story of witnesses of the same even show that the witnesses are giving their own account and not a single agreed upon story

(1953, Criminal Law Journal, page 1123 (India), 1954 Criminal Law Journal, page 132 (.India))

Discrepancies in the statement of the witnesses do not necessarily point to their uttering deliberate falsehood. When they do, full effect must be given to it. But in a case where the witnesses have to state a long story, after a lapse of considerable period, of a number of acts by various persons divided into parties and at various places, discrepancy need not necessarily point to a falsehood. Power of observation and retention and description and expression all have their own part to play, when one comes to examine the record of evidence. Therefore, mere immaterial discrepancies will not be allowed to be availed of, without regard to their actual importance in the case.

It is, therefore, seen that material discrepancies on important and broad points of the case have to be given their due weight in arriving at a conclusion but mere minor discrepancies need not worry an intelligent investigator. In fact they are often a sure test of the truth. (Sarkar on evidence 8th Edn. page 44 (Calcutta))

(B. P. G. [Crime] , dated 11th December 1958.)

171. **Summoning as witnesses Police officer of other districts.-** When an investigating officer requires the attendance of a Police officer of another district to give evidence either before him or before a Court in a case belonging to his own district, he should be careful, in calling for his attendance to cause the least inconvenience to the other district. The best course in such a case is to leave the nomination of the witness to the Officer-in-charge of the Police

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Station from which he is to be summoned, intimating to him at the same time the point or points on which his evidence is required. The officer-in-charge of the police station will then determine who is the person best fitted to give evidence on those points and send him to the police officer requiring his attendance.

172. Recording the statements of witnesses and accused persons.-(I) It is advisable though not compulsory, for the investigating officer to record the statements of witnesses, as they enable the superior officer and the prosecuting officer to know what each witness has got to say and thereby to form a correct estimate of the evidentiary position of the case. The investigating officer must not, however, obtain the signatures of the witnesses to their statements. Such statement may be used provided that when any witness is called for the Prosecution in such inquiry or trial whose statement has been reduced into writing, any part of his statement, if fully proved, may be used by the accused, and with the permission of Court, by the prosecution, to contradict such witness in the manner provided by Section 145 of the Indian Evidence Act, 1872, and when any part of such statement is so used, any part thereof may also be used in the re-examination of such witness, but for the purpose only of explaining any matter referred to in his cross examination. It should, however, be noted that a statement which amounts to a dying declaration under Section 32(1) of the Indian Evidence Act, though made to a Police Officer in the course of an investigation, and a confession relevant under Section 27 of the Indian Evidence Act, can be used for evidentiary purposes in the enquiry or trial against the accused.

(2) It is equally important and advisable for an investigating officer to record the statement of an accused person, especially if it consists of lengthy details in complicated cases, so that these details may not be forgotten or overlooked in the course of enquiries for their verification. The statement may sometimes disclose his line of defiance and may at times indicate sources from which independent evidence may be available.

(3) In all-important criminal cases, where vicarious responsibility is involved, it is proper that before a criminal case is actually instituted, the vicarious offender should be given an opportunity to explain as to why he should not be prosecuted. The investigating officer should, therefore, refer launching a prosecution against any offender; call him and ask him orally, why a prosecution should not be launched against him. However, in certain exceptional cases he should record the explanation given by the vicarious offenders. If the alleged accused refuses to make a statement or give an explanation then, the investigating officer should proceed with the case as in the ordinary course.

(I. G.'s C. M., No. 151.111, dated 28th April 1954 and 23rd July 1954.)

(4) Statements of witness should be recorded as far as possible in the language of the witness.

(5) If during investigation, any information or any statement of a person belonging to investigations officer should do correspondence either in translation with his reference in order to avoid undue delay.

(I.G.'s Cir No. G/1927/68, dated 7th October 1968.)

(6) Calling of a suspect to a Police Station at night and interrogation beyond reasonable hours amounts to harassment. The suspects should be questioned in their own villages or house and not at the Police Stations.

(I.G.P.Cir. No. G,~909, dated 16th September 1961.)

173. **Dying declaration** : - Whenever a person whose evidence in a case is likely to be relevant as to facts or the circumstances which have eventually resulted in his death is likely to die, it is advisable to record his dying declaration, which is relevant as evidence under section 32(1) of the Evidence Act, in every case in which the cause of that person's death is in question. Even if such a declaration is made to a Police officer, it is admissible in evidence and its use is not barred by Section 162, Criminal Procedure Code.

(2) In the normal course, dying declarations should ordinarily be got recorded by the Executive Magistrates and if possible in the presence of the accused. The Judicial Magistrates should be

approached only when the Executive Magistrates, I not available. In case it is not practicable to get the declaration recorded either by executive Magistrate or a personal Magistrate in time, an Investigating Officer should record it, preferably in the persons of the panch. Even if it has been made orally in the presence of any person, it may be proved in Court by the oral evidence of that person. The declaration becomes possible, if the declaring subsequently dies. If he survives, it will be useful, if, made, be for a Magistrate, only to corroborate his oral evidence as a witness in court. If it was made before a police officer, it will be treated only as a statement covered by section 162, Criminal procedure code.

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(3) The declaration must be complete itself. If the declarant dies before he has finished it or if it contains any indication that he intended to modify or add to it, it will not be of any evidentiary value. The person making the declaration must be a competent witness and must be speaking from personal knowledge of the facts. If reduced to writing by the Police, the declaration should, as far as possible, be in the form of questions and answers and in the very words of the declarant. If practicable, the declarant should be asked to sign it, and the panch and the police officer should attest it. Signs (Section 119. Indian Evidence act) made before the death explaining the cause of death can be a statement under section 162, Criminal procedure code and is admissible as a dying declaration.

(4) Dying declaration of a married woman committing suicide should not be recorded in the presence of her mother-in-law, father-in-law, husband or any other influential person in the family of the husband. As far as practicable, a well-respected, non-partisan social worker, if immediately available, should be invited as a panch when such a dying declaration is recorded.

(I.G.H.D. No. C. II 1458/60021-VIII, dated 22nd august 1958.)

(5) The first information report given by a complainant can be treated as dying declaration if he subsequently dies and is not available for examination.

(6) (a) The person making a dying declaration shall, if possible, be examined by a Medical officer with a view to ascertaining that he is sufficiently in possession of his reason to make a lucid statement.

(b) The dying declaration, after it has been recorded, should be read over by the person recording it and should be signed by the maker of it, but in law whether the statement recorded is read over or not, whether it is signed, makes no difference and that the fact that it has been read over and signed by the deponent only makes its evidentiary value stronger.

174. Recording of statements of witnesses and confession of accused persons before a magistrate. : (1) In important cases witnesses may be produced before any metropolitan magistrate or judicial magistrate, and their statements got recorded on oath (section 154, criminal procedure code) such statements cannot be used as evidence by themselves, as they have been made behind the back of the accused. The only object in recording such statements is to obtain a hold over the witnesses.

(2) Whenever an occasion arises, statements of the important witnesses should be got recorded under section 164 criminal procedure code, but this should not be done as a matter of course but only in deserving cases where the case depends upon the evidence of a solitary witness or relatives or friends of the accused.

(I.G.P's Cir. No.G/1909, dated 25th October 1968)

(3) In taking action under section 164. Criminal procedure code, the investigation offices should invariably see that all precautionary measures, such as informing the witness that he was not bound to make a statement, that he was not under a duty to make a statement and that there was no inducement or promise given to the witness by the police etc. are observed by the magistrates recording the statements.

(I.G.P's Cir. No.G/1909, dated 25th October 1968)

(4) If an accused person is willing to make a confession, he should be taken under arrest for the purpose of his confession being recorded under section 164, criminal procedure code. Before any metropolitan magistrate, or judicial magistrate. It is advisable though not obligatory, that the magistrate is not the one who will eventually try the case or hold committal proceedings. As far as practicable, confessions should be recorded in the courthouse in preference to the residence of the Magistrate and on working days in preference to holidays.

(5) (a) Confessional statements made to police officers are admissible in evidence under section 27 of the Indian Evidence Act, but only that portion of the confession which is absolutely necessary to lead to the discovery of property or other relevant fact is admissible. The words fact discovered in section 27 are not to be treated as equivalent to the object or article produced; the fact discovered embraces the place from which the object is produced and the knowledge of the accused about its existence at that place and the information given must relate distinctly to this fact. Information as to past user or the past user or the past history,

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of the object produced is not related to its discovery in the setting in which it is discovered. Information supplied by a person in custody that I will produce a knife concealed in the roof of my house does not lead to the discovery of a knife. It leads to the discovery of the fact that a knife is concealed in the house of the informant to his knowledge and if the knife is proved to have been used in the commission of the offence, the fact discovered is very relevant, But if to this statement the words be added with which I stabbed A these words are inadmissible, since they do not relate to the discovery of the knife in the house of the informant. So where confession of an accused person is deposed to by a police officer who says that the accused said to him I stabbed shanker with a spear. I hid the spear in a yard in my village. I will show you that place the first sentence is in admissible, but the second and the third sentences are admissible under section 27. There may be cases in which the object produced by an accused person may not in itself be of an incriminating nature and its production would be irrelevant in the absence of any evidence to connect the article with the offence in question, apart from the accused confession. However, the difficulty, insuperable as it may be, of proving that a fact discovered on information supplied by the accused is a relevant fact can be no justification for reading into section 27 something which is not there and for admitting in evidence a confession barred by section 26.

(b) Where one of several accused persons who have taken part say in burying stolen property at a certain place offers to point out the place and the property is found in consequence, his confessional statement is relevant against him under section 27 of the Indian Evidence Act. If all accused persons given the same information, no joint statement should be recorded, statement of each accused should be recorded separately, and as precisely as possible, in the very words used by the accused, This should be done before the recovery is actually made. After such statements are recorded, the accused who first gave the information may be taken to point out the discovery, The evidence about the discovery of facts in pursuance of information given by all accused may be led in the court leaving it to the discretion of the court to accept the evidence or not.

(I.G.'s No. G/151, dated 4th may 1959)

(6) The slightest attack on the part of the defence to prove any circumstance vitiating a confession is usually sufficient to render the confession irrelevant and inadmissible Even when relevant it is at best a very flimsy its very nature, unreliable piece of evidence, It should therefore, not be regarded as end and aim of investigation but merely as a basis for working out the case by procuring evidence verify and support it, It is only when corroborated by such independent evidence in material particular that a confession that as against persons other than the maker of confession has practically no such value.

(7) (i) Section 24 of the Indian evidence act forbids proof any confession of an accused brought about by any inducement, threat or promise in a court of law and section 163 of criminal procedure code forbids a police officer to offer any such inducement threat or promise by himself and also forbids him to cause such threat or inducement or promise to be offered.

(ii) After the accused has made a confession he should ordinarily be committed to jail, It is not feasible absolutely to prohibit the return of an accused to police custody after he has made a confession. An absolute prohibition of remand to police custody in such cases is impracticable, since the accused may be required to identify persons or property to assist at the discovery of property etc. A remand to police custody should not be a satisfactory ground for it a general statement that the accused may be able to give further information should be accepted as being in itself a sufficient reason for police remand.

(iii) An accused who has declined to make a confession or has made a statement which from the point of view of the prosecution is unsatisfactory, he should under no circumstances be remanded to police custody.

(iv) The police is entitled to take out copies of confession recorded by the Magistrate.

(G.C.H. & C.S.D. No. CII-1862/6845-D dated 4th may 1963.)

(8) Extra judicial confession: Extra judicial confession are those which by the parties elsewhere than before Magistrate or in court. This term embraces not only express confession of crime but also those admissions and acts of the accused from which his guilt may be implied. There is no controversy that such confession are receivable in evidence if they voluntary.

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175. Approver's evidence.-(1) with a view to obtain the evidence of a person supposed to have been directly or indirectly concerned in or privy to the offence. Pardon can be tendered to such a person on condition of his making a full and true disclosure of the whole of the circumstances within his knowledge relating to the offence and to every other person concerned, whether as principal or as abettor, in the commission thereof. I. Under Section 306 of the Criminal Procedure Code, the Chief Judicial Magistrate or a Metropolitan Magistrate, at any state of investigation or enquiry into or trial of the offence and the Magistrate of the First class enquiring into or trying the offence at any stage of enquiry or trial may tender a pardon to an accused concerned in any offence (a) triable exclusively by a Court of Sessions or by a Court of the Special Judge appointed under the Criminal Law Amendment Act. 1952 and (b) punishable with imprisonment which may extend to seven years or with more severe sentence. In the course of investigation of an offence mentioned in the above category in which such pardon could be lawfully tendered. if an accused person is in a mood to make a full disclosure of such a nature. he should be placed before the Chief Judicial Magistrate a Metropolitan Magistrate with a request to offer the person a pardon on the aforesaid condition; and if he accepts the offer. he will thereafter remain in custody, but will be examined as a witness on oath in the course of an enquiry or trial that may follow. Similar steps can be taken even during the course of enquiry or trial. and pardon during enquiry and trial can be tendered by the Chief Judicial Magistrate or a Metropolitan Magistrate or a Magistrate of the First Class enquiring into or trying the offence.

(2) The investigating officer, whenever he finds it necessary to make an accused person an approver. Should obtain the permission of his Sub-Divisional Officer. The person to be selected for an approver should be one who is the least guilty and whose evidence, at the same time. covers the largest possible part of the prosecution case. The criterion for deciding whether the evidence of an approver is necessary in a case is whether in the absence of the evidence of an approver, no evidence would be forthcoming to throw light on any part of the prosecution case. More than one accused person may be made approvers in a case. if it is necessary and advisable to do so in that particular case. After a person has accepted a pardon. arrangement should be made to keep him in a separate cell and well protected.

(Section 306 of Cr. P .C.)

SECTION III --COLLECTION OF DOCUMENTARY EVIDENCE AND PROPERTY.

176. Searches.-(1) During the course of investigation. the investigating officer is required to make a search both for the person and property connected with the crime. The accused may be concealing

himself in certain premises and in that case entry into the premises and search for the accused may become imperative Provision. for such entry is made in Section 47 of the Criminal Procedure Code.

(2) Section 165 concerns search by Police Officers within the limits of their own Police Stations while Section 166 concerns those cases where search is to be made outside the limits of one's Police Station.

(3) Requirements under Section 165(1) are-

(i) The Police Officer should have reasonable grounds for believing-

(a) that anything necessary for the purpose of an investigation into an offence may be found in any place. and

(b) Such thing cannot in his opinion be otherwise obtained without undue delay; and

(ii) He should record in writing, so far as possible, the thing for which search is to be made.

(4) Whenever any document or article or any animal is required for the purposes of an investigation, any officer not lower in rank than a Police Station Officer can call for the production before him of the same under Section 91, Criminal Procedure Code, and subject to the Rule 177 below, it is the duty of the person in possession or control of the article, etc., to produce the same unless, in the case of a document, he has privilege to refuse to produce it under Section 123 or Section 124 of the Indian Evidence Act.

(5) Where the procedure laid down in Sub-rule (4) has proved or is likely to prove ineffective, the investigating officer may himself or through a duly authorised subordinate, not lower in rank than a Head Constable make a search of the house or place within his jurisdiction, wherein the document, article etc., is expected to be found. Before making the search the Police officer must record a description of the articles to be searched for and the.

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grounds on which he suspects the articles to be in the house or place to be searched and must submit a copy of the record to the Magistrate having Jurisdiction who will turn may supply a copy thereof on application to the owner of the house or place searched For articles or property suspected to be in a place outside the limits of the Police Station the local Police Station Officer should be requested to make a search. But where this procedure is likely to result in delay and consequent futility of the search, the investigating Police Officer may make a search direct, care being taken to send to the Magistrate concerned a copy of the record referred to above and of the search list made in connection with the search.

(6) (a) In making searches in Military quarters or lines, the procedure laid down in rule 109 should be followed.

(b) The premises of educational institutions should be searched in the presence of the heads of those institutions unless they are not available and immediate search is necessary.

(I. G.'s No. 4354 dated 25th February 1950 and G. L. H. D., No. o/(29266)-G, dated 4th February 1950.)

(c) The conduct of search of houses or interrogation of employees of Post and Tele- graphic Departments, whenever necessary, may be done where possible, in presence of Post and Telegraphic officer, who can provide information of technical nature to the Police authorities.

(I. G. 's Cir. No. G}1916/71, dated 2nd August 1971.)

(7) The general provisions (Sections 99 and 100) of the Criminal Procedure Code as to the method of making searches should be strictly followed.

(8) The instructions in Rule 169 regarding the preservation of the identity of the articles should, in so far as they may be applicable, be carefully observed in regard to articles, etc., seized in the course of a search. Under Section 10 of the Bombay Village Police Act, it is the duty of the Police Patels to preserve all incriminating articles found at the scene of offence till the Police reach there and take charge of them.

(G. C., H. D., No. P. 1154/31344-g, dated 13th May 1955.)

(9) (a) If Chhattisa has been seized in the course of a search, one grain of copper sulphate should be added to an ounce of the solution seized in order to arrest fermentation. To obviate allegations from

the defence that they were not aware of the substance added to the preparation seized, two samples from the copper sulphate to be added should be taken out and sealed up with the seal of the panch and the Police Officer. One of these samples should be retained by the Police Officer and the other handed over to the accused and his acknowledgement taken for receipt of the same. These facts should be entered in the panchnama. Expert evidence may then be cited at the time of trial to prove that copper sulphate instantaneously arrest fermentation.

(b) When 'wash' is seized in course of raids it is necessary before sending the sample to the Forensic Laboratory, to prevent further fermentation. It is sufficient to arrest further fermentation of one quart bottle or 8 drams of wash. As it is not always possible to have the exact weight of copper sulphate, one teaspoon-ful of copper sulphate crystals should be added to one-quart bottle of wash. This fact should be mentioned in the letter to the Forensic Laboratory at the time of sending the wash for being analyzed. The fact that copper sulphate has been added should be mentioned in the panchnama. Evidence on this point must be adduced in the Court while producing report from the Forensic Laboratory. Police Officers should also add copper sulphate to the samples of wash and should seal the bottle containing a sample wash invariably.

(I.G.'s M., No. 5429-III, dated 16th October 1954, and G-5414 dated 24th April 1959.)

(10) (a) When in the investigation of an offence, a live animal is seized by the Police, it may, in order to avoid the expenditure of Government money for feeding it, be handed back to the person from whom it is attached, on his entering into an agreement to produce it whenever required. The agreement should be taken on a stamped paper (Re. 1.50 nP.) and the stamp duty should be paid by the person concerned.

(b) If for any reason it is considered undesirable to hand the animal over to the person from whom it was seized, or desirable, before handing it over to take security from him or from any other person to whom it may be proposed to hand it over, the Police should forth-with report the seizure to a Magistrate under Section 457, Criminal Procedure Code, and take necessary orders from him to do so,

(I.G.'s No. 10, dated 20th February 1942.)

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(C) The Police should not keep perishable articles indefinitely but should produce such articles before the court, obtain necessary sanction and hand it over to the owner or the person concerned.

. (I. G.'s Cir. No. GJ1927/Food/67, dated 15th July 1967.)

(11) While acting strictly within the limits of the authority to search for specified articles conferred by section 165, Criminal Procedure Code, a Police officer happens to notice or come across, without effecting a general or roving search, any property which may be alleged or suspected to have been stolen which may be found under circumstances which create a suspicion of any offence, he would be entitled to seize it in pursuance of his powers under section 102, Criminal Procedure Code.

(G. C., H. D. No. MIS 1053/49923, dated 24th December 1954.)

(12) Under Section 165, Criminal Procedure Code, Police Officers are authorized to search only if there are reasonable and sufficient grounds. Police Officers have to keep a record of the same. Whenever a question arises as to whether there were reasonable grounds or not, it can be decided only from the record made about the grounds that existed at the time. The best way of keeping such record is to mention the grounds in the First information Report itself whenever it is convenient to do so, specially in prohibition cases. In other cases the grounds should be mentioned in the case diary. The words to the effect "on receipt of reliable information" would suffice.

tl. G.'s C. M., No. G/8315, dated 30th July 1959.)

(13) Search of Mail Vans.-The following procedure should be followed by Police officers while carrying out searches of mail vans:

(i) The Police officer entering the mail van for search should be of and above the rank of an officer in charge of a Police Station. He should establish his identity before the senior-most officer of the Post and Telegraphs Department present on the spot. He should be accompanied by two panchas whose identity also may be established in the same manner.

- (ii) The number of Police officers allowed to enter the mail vans for search should be restricted to two.
- (iii) The Police officer concerned should ordinarily consult the Divisional Officer of the Posts and Telegraphs Department, before the search is carried out, but in emergent cases the Consultation may be dispensed with and the Divisional Officer should be informed immediately after the search is taken.
- (iv) The Inspector of R.M.S. should also be taken into confidence if he is available on the spot; otherwise the search may be conducted in the presence of the senior-most Postal official on the spot.
- (v) In view of the arduous and difficult duties of the R.M.S., staff searches should be carried out in such a way as not to obstruct them in the discharge of their duties or to cause them unnecessary inconvenience.

(G. E., H. D., No. GOI 1055/84281-D, dated 18th November 1955.)

177. Documents and articles in the custody of the Postal or Telegraph Authorities.-

(1) To obtain protection under Section 91(3) of the Criminal Procedure Code, documents and articles in the custody of the Postal or Telegraph authorities must be of the nature of a letter, post-card, telegram, parcel, or other thing. To obtain protection under Section 123 and 124 of the Indian Evidence Act, documents must relate to affairs of State or must be communications made in official confidence, by the disclosure of which the public interests would suffer. The bulk of the records of the Post Office do not come under any of these exceptions and consequently they will be produced on the written requisition of any Police officer making an investigation, but only to the extent of those entries which relate to the person accused in the case and which are relevant to the offence. Documents and articles covered by Section 91(3) must, if necessary, be obtained in accordance with the procedure laid down in Section 92 Criminal Procedure Code.

(2) Whenever Postal documents in possession of the Accountant-General, Posts and Telegraphs, Simla, are required for the purpose of Police investigation requisition for the same should be addressed to the Accountant-General Posts and Telegraphs, Simla-3, through the Inspector-General of Police, in triplicate (along with the accompaniments, if any).

(I.G.'s C.M.No. G/7403, dated 18th December, 1958 and No. G/1926/MISC/63, dated 23rd September '1963.)

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178. Muddamal register -(I) All property passing through the hands of the Police must be brought to account in the "Register of property passing through the hands of the Police" commonly known as the "Muddamal Register" (Form No. P.M. 81).

(2) All other property received at the station must be entered in the "Muddamal Register.

(3) (a) Columns 3 and 4 of the Muddamal Register should be filled in very carefully so as to enable each article to be identified easily with the help of information in those columns.

(b) The register should be renewed at the commencement of each calendar year, the entries regarding property remaining undisputed of at the end of the year being carried forward to the new register for the following year.

(c) The Sub-Inspector in charge of the Police Station should check the entries in the register at the end of each month and sign it in token of his having satisfied himself about their correctness.

(I. G.'s No. 9069-B, dated 16th August 1918.)

(4) The Police shall produce 'Pavtis' or 'Yadis' in duplicate showing full description i.e. measurement, weight, etc. of each kind of muddamal produced in the court. The clerk in charge shall verify each article shown in the 'Pavtis' or 'Yadis' and then sign both the 'Pavtis' or 'Yadis' and return the duplicate to the Police in token, having received the muddamal after entering therein the

serial number, date, etc. of muddamal register of the court in which the articles should be entered immediately after verification.

(Gujarat High Court Cirs. No. B/1465/63, dated 10th February 1964 and 14th December 1964.)

(5) The Police shall strictly follow the provisions of Section 457, Criminal Procedure Code while returning the muddamal.

(I. G. P.'s Cir. No. 922 dated 31st December 1965.)

179. **Proof of correction of Gazette order or Notification.** - As the Gazette of a State Government is, under the Indian Evidence Act, 1872 prima facie evidence on certain matters, the correction of any error, typographical or otherwise in any notification or order will be formally made by notification in the usual form issued under the signature of the Secretary or other officer under whose signature the original notification or order was issued. Whenever, therefore, any such correction is required to be proved, the notification by which the same was made must be produced before the Court.

(G. R., J. D., No. 705, dated 30th January 1901.)

SECTION IV-PANCHNAMA

180. **Panchnama.**-(I) (a) The only occasion on which a document which is popularly styled as a panchnama is required by law to be drawn up are when (i) some articles are seized in the course of a search of a place under Section 100(5) of Criminal Procedure code, or (ii) an investigation into the cause of death is made under Section 174, Criminal Procedure Code.

(b) (i) The holding of panchnama on other occasions is not a duty imposed Upon a Police officer by law, though in practice a Police officer resorts to it as a mode of procuring independent evidence to corroborate the results of his own inquiry and observation. It is merely a memorandum of what has been observed by the panch and the investigating officer, who are apt to forget many of the details observed by them, in the interval between the ; events themselves and the day on which they are called on to testify to them in Court. Hence a panchnama is useful only as a piece of corroboration of the oral evidence of the panch and the investigating officer (Section 157. Evidence Act) or as a memorandum of facts observed by them, which they may use to refresh their memory while giving evidence of those facts I (Section 159, Evidence Act). For the latter purpose, it is essential that the person using the i panchnama must either have written it himself immediately after having observed certain I facts or must have personally read it soon after it was written up by some one else, and found it to be correct.

(ii) Cases coming in the category (b] (i) may be divided into the viz. those in which the Police act on prior information, those in which panchas are easily available and those in which due to time or the place at which the search is made or for some other reasons, panchas are not available. In the first two classes although the law does not make it obligatory it is desirable that the search should be made or the articles should be seized in presence.

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of the panchas. Even when it is considered necessary to take immediate action, as for instance when a man is found carrying a bottle of liquor, the panchas should be called as soon as may be possible after such person is detained and the bottle seized. The panchas in such cases, though cannot be witnesses to the actual seizure, but they would be able to support the testimony of police officers that the accused was detained at a particular place and that they had seen the article there.

(I.G.'s Cir Memo No. G/1947/260, dated 18th July, 1973)

(2) (a) In view of the above legal position of panchnamas the panch to be selected should be of mature age, intelligent, literate as far as possible, respectable independent, un-biased, impartial, free from objectionable antecedents, not likely to be influenced by pecuniary or other considerations, free from bodily infirmities or loath-some disease without in any way connected with

police and should be selected by the police officer and not by the complainant or any other interested person. When females are concerned, female panch should be called in.

(I.G.'s C.M. No.G/151/date 5th may 1959 and G.C. H. & C.S.D. No. PRN/1063/266-A, dated 7th October 1964.)

(b) Though the panchas should be independent and respectable persons of the locality or neighborhood (Section 100, criminal procedure code), however panchas from outside place can be taken or selected if the investigation officer from his local knowledge considers that independent or persons unconcerned with local faction are not available from the locality.

(Section 100 (4) Cr. P.C.)

(3) The panch should be present from the beginning to the end of the transaction, should be informed beforehand of the nature of the proceedings at which they have to serve as panch and should also be instructed to observe carefully what they are called on to see, as they would afterwards be required to give evidence, about the facts observed by them.

(4) The panchnama should begin with a mention of the full names, age occupation and address of the panch, followed by a preamble explaining the purpose, e.g. search of a house etc. for which the panchnama is being held. It should contain full and accurate statements of the articles or other relevant circumstance found and the exact spots at which they were attached, After it has been written up, it should be read over by or to the panch and they should be asked to sign it after they have read it and admitted it to be a true account of what they observed. The name of the writer should be mentioned and his signature taken. The time when it was commenced and completed, the date and the place should also be mentioned in it.

(5) The following general hints should be borne in mind in holding panchnamas:-

(i) The panchnama should be written up at the place where and immediately after, the proceeding concerned, e.g. a search, is held.

(ii) It should be held ordinarily during day, but if the circumstances demand it, even during nighttime.

(iii) As on fair copies are supposed to be made, it should be written up very carefully, so as to avoid the need for insertions or erasures, All erasures or insertions, if inevitable, should be initialled by at least two of the panch, copy of the panchnamas should be given to the person concerned without his asking for it.

(I.G.;s C.M. No. G/151, dated 5th May 1959 and No. 7490, dated 12th January 1956)

(iv) In all murder cases the investigating officers should themselves draw the panchnamas.

(I.G.;s C.M. 151-II dated 9th September 1955.)

(v) In case of the attachment of currency notes or documents, the identification of which is a material point, the initials of the panch should be taken on them and in case of currency notes, the numbers should also be noted in panchnama.

(vi) Where the complainant or informant is resent, the identification of property attached should be done in the presence of the panch and the fact noted in the panchnama.

(vii) When ornaments are concerned, they should be got properly weighed by a goldsmith who may be included among the panch.

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(viii) Where any property is produced by the accused, the exact place where it was found and the fact that the panch accompanied the accused producing it should be mentioned.

(ix) Care should be taken to avoid the inclusion in the panchnama of-

(a) any statement of accused person except to the extent admissible under Section 27 of the Indian Evidence Act, or of other persons except when the statement is coupled with some relevant conduct, e.g., the owner of property in identifying it makes a statement that it is his own. Statements of accused should be incorporated in the panchnama only, if the accused has made the

statement in the presence of the panch witnesses. It should be borne in mind that the value of such a panchnama is reduced to a great extent, if some part of it is found to be untrue.

(I. G. 's C. M., No. G/151, dated 1st March 1959.)

(b) the opinions of the panch or the investigating officer except to the extent permitted by Section 174, Criminal Procedure Code, vide clause (vii) of Sub-Rule (7). of Rule 223.

(I. G. 's Nos. 5864-A, dated 23rd December 1920, 19, dated 17th July 1947, 6, dated 21st June 1944 and 29, dated 30th October 1947.)

(x) The occupant of the place searched or some person in his behalf shall in every instance be permitted to attend during the search and a copy of the list prepared and signed by the witnesses shall be delivered to such occupant or person.

(I. G. 's Cir. Memo, No. G/1947/2640, dated 18th July, 1973.)

(xi) In deciding whether the evidence of panch witness should be believed or not the court takes into consideration:-

(a) his status and position,

(b) whether he is in habit of frequently acting as panch, and

(c) (1) nature of evidence given by the panch witness.

(2) though the mere fact that a man has acted on several occasions as a panch witness is not however considered sufficient by itself to lead to the inference that he is a police agent. However, the Police should, as far as possible, avoid utilizing persons as panch witnesses who have already acted as panchas.

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(3) Though it is not obligatory upon the Police to call both panchas as witnesses, but when one pancha witness, during cross-examination, has elicited that he has acted as panch witness before, in such cases the Police should call the other panch as witness so as to remove any doubt.

(G. C., H. & C.S.D. No. PRN-1063/266-A, dated 7th October 1964)

(xii) While making a panchnama, the Police should show in the panchnama that particular vessels or other articles bearing the name of that very accused are lying in a house. Such possession or occupation can also be proved either by neighbors or tenants or from the ration cards or sugar cards, etc. The Police by positive evidence must show that the premises concerned were in actual possession or occupation of the very particular persons.

(I. G. P 's No. 0{1947 dated 3rd April 1968)

(6) (a) For certain specific duties, The Home Guards and members of Gram Rakshak Dal are a part of the Police Organization and as such members of the Home Guards and Gram Rakshak Dal cannot be regarded as an independent person in the judicial sense of the word. In view of this, Police officers should refrain from using Home Guards and members of Gram Rakshak Dal as Panch witnesses.

(I. G. 's C. M., No. 7069, dated ,26th September 1952.)

(b) A fresh panchnama should be drawn up every time, the offender is approached a bogus customer, in a trap case.

(I. G. 's C. M. No. 3637, dated 17th September 1954)

(c) Panchas themselves or any other literate man called for the purpose can write the panchnama. When panchas are illiterate the Police officer holding the panchnama or his subordinate can write it. The ponchos should themselves dictate the contents of a panchnama as to what they have seen or observed.

(7) If Police officers are on a general round and they discover a working-still which is an offence under Bombay 'Prohibition Act. it may not be reasonable to expect that they should secure the services of panchas and get a panchnama written before arresting the accused who are seen by them to be working still but that wherever it is reasonably possible for them to take precaution of securing the presence of ponchos they should comply with the provisions of Section 100 Criminal Procedure Code.

(G. C., R. D. No. BPA. 1754, dated 10th January 1954)

181. Holding of Identification Parade.-(I) (a) Object of the Identification Parade of accused persons is to test the veracity of eye witnesses when they have a genuine claim to have seen the culprit and to assure reliability of the witnesses who pass the test.

(b) The statement made before Police officers by witnesses at the time of Identification Parades are statements to the Police and as such are hit by Section 162, Criminal Procedure Code. In view of this it is necessary that Identification Parades are not conducted in the presence of Police officers, and as such Identification Parades held in the presence of the Police are inadmissible in the Courts. The Police officers concerned should obtain the help of Executive Magistrates to hold Identification Parades. When the presence of Executive Magistrate is not readily available, the only alternative is to hold the parade by the panch Witnesses.

(c) The Police Officers should arrange for the identification parade in all cases in which the identity of the accused could not otherwise be established beyond doubt.

(I. G's. Cir. No. G/1926/63, dated 29th January 1964.)

(d) The identification proceedings being in the nature of tests, no provision for holding them is to be found in the code or even in the Indian Evidence Act. Proceedings are record of facts which establish the identity of any thing or person and which may be relevant under Section 9. Indian Evidence Act

(e) The identification test is usually adopted during the investigation of crime by the Police when the witnesses are interrogated and state that they had seen some persons committing the crime. but do not know their names and would be able to identify them. (f) The identification parade is held during investigation only, only at the instance of investigation agency, to satisfy itself whether the particular suspect participated in the crime or not by putting him up before the witnesses who claim to have been present at the time the crime was committed.

(g) Since the human memory is apt to get dulled with the passage of time, it is desirable both in the interest of the honest witness and of the suspect himself that the latter be put up for identification without delay. Test identification parade should be arranged early at any rate before the accused goes on bail. In fact, courts ought to refuse bail if an identification parade is going to be and ought to be held. So, not only the test identification parade has to be arranged at the earliest possible opportunity, but bail will have to be opposed strenuously until the test identification parade is finished.

(h) Piece-meal identification parades are deprecated at the same time delays mar its sanctity.

(i) The Police should continue the investigation and collect evidence even though the ,accused are identified in identification parades.

Procedure for Identification Parade.

(2) (a) Before the Identification Parade:-

(i) the accused or suspect, at the time of his arrest to be told that he is to be put on Test Identification Parade,

(ii) The Investigating officer should screen the lock-up in which the suspect is kept before sending to jail.

(b) At the time of parade and after :-

(i) the number of persons to be mixed should not be too few or too many. It is better to have separate parades for not more than two at a time. However, it is advisable to mix up the accused or suspect with other person in the proportion of 1 to 9 and for every additional accused or suspect the number of persons to be mixed should be increased by 5.

(ii) Police officers should completely obliterate themselves after arranging the parade.

(iii) Witnesses to be kept away at a distance and called one by one.

(iv) After identification witnesses should not be allowed to mix with other witnesses who are still to be forwarded.

(v) Any objection by the accused or suspect for the presence of any person at the parade should be given proper consideration.

(vi) In case of deformity or special marks suitable arrangements should be made to bring in uniformity.

(vii) In cases where an accused or suspect whose identification is necessary is lying in hospital, the identifying witnesses should be kept out of sight of the Ward in which he is lying and the accused or suspect should be shown to the panchas and given the option of having his cot changed if he so desires. The panchnama should show whether this was done or not and should also show how many patients and cots are there in the Ward, with their numbers. Identifying witnesses should then be called and the procedure outlined above should be followed.

(viii) The attendance of witnesses at the Identification Parade is the sole responsibility of the investigating officer.

(G.C., H.D., No. IDP. 1058/79482-V, dated 4th December 1958; G. C., H. D. No. MIS, 1054/ 84588, dated 22nd April 1955; and I. G. 's Cir. memo., No. G/151, dated 1st March 1959.)

SECTION V-ARREST AND CUSTODY

182. Power of arrest.-(1) The powers of the Police in the matter of arresting a person in connection with cognizable offences and under other circumstances will be found in Section 41, 42, 60, 432 etc., of the Criminal Procedure Code and the provisions of various other Acts and every Police officer should be thoroughly conversant with these powers. As to the exact stage at which an arrest should be effected in the course of an investigation, no hard and fast rule can be laid down.

(2) There is no specific provision which lays down as to how a person in judicial custody can be arrested. However, from the nature of things, a person in custody of a court cannot be physically arrested by the Police. The only alternative for the Police then is to request the court to treat the accused as arrested for the subsequent case too. This mode of arrest is recognized by long standing practice. It appears from the Criminal Manual, Chapter I, Rule 9, (issued by the High Court) that this mode of arrest of the accused persons is recognized by the High Court.

(I. G. P.'s Cir. No. G/1909 dated 13th May 1966.)

(3) The incidence of violence can be reduced only when the anti-social elements feel convinced that they will be promptly arrested.

(I. G. .P.'s C. M. No. G/1927/73/2337, dated 22nd June'1973.)

183. Re-arrest of a person arrested by the village police.-When a person is apprehended by the Village Police and is forwarded to an officer in charge of the Police Station, such officer is not authorized to arrest the person in question if the offence alleged does not all within Section 41 of the Criminal Procedure Code, and subject to the provisions of section 42 of the Code, he must release him forthwith. In all probability, however, a Police Patel will rarely make an arrest, unless the offence imputed is not only of a cognizable, but also of a serious nature, and in that case the conditions of Section 43 of the Code being fulfilled, a fresh arrest must be made by the District Police on the analogy of the procedure prescribed in that Section.

(G. R., J. D. No. 5734, dated 6th August 1897.)

Chapter V

184. Intimation of arrest, detention etc. of a member of Gujarat Legislative Assembly to the Speaker.-(1) When a member of the Assembly is arrested on a criminal charge or for a criminal offence or is sentenced to imprisonment by a Court or is detained or restrained under an executive order, intimation of such fact should immediately given to the Speaker indicating the reasons for the arrest, detention or conviction as the case may be as also the place of detention, restraint or imprisonment of the member in Form 11 (A) and (B) Appendix 1.

(2) When a member of the Assembly is released on bail pending his trial or pending an appeal against his conviction or otherwise such information should also be given to the Speaker in Form 11 (c) Appendix I.

(3) (a) No arrest shall be made of any member nor any legal process civil or criminal be served within the precincts of the House without obtaining the permission of the Speaker,

(B. L. A. Rules 247-251, B. L. C. Rules 223-227/G. L., H. D. No LAM/2159/109559-XIII, dated dated 16th November 1959.)

(b) When a Member, who is under detention or undergoing a sentence of imprisonment is transferred from one Jail to another the change in the place of detention or imprisonment should also be intimated to the Speaker.

185. Intimation of arrest, detention, restraint of members of Lok Sabha/Rajya Sabha to the Speaker/Chairman.-(1) (a) No arrest shall be made within the precincts of the House without obtaining the permission of the Speaker/Chairman.

(b) To enable the Presiding Officer to decide whether he should grant or withdraw permission for arrest within the precincts of the House, it is necessary that in making request for such arrest, the warrant should be accompanied by a brief statement explaining why it is desired that the arrest be made within the precincts of the House and why t matter cannot wait till the House adjourns for the day. The subordinate authorities' should address the Presiding Officer direct in this connection but such request must be ma through the Ministry of Home Affairs.

(2) (a) When a Member is arrested/detained/restrained/convicted or released, whet on bail or on completion of his term or due to any other reason, or transferred from one p of detention to another, intimation should be sent to the Speaker / Chairman at the earliest that is, by telegram followed by a formal written communication in form No. 12 Appendix I, which should be nearestly typed and should not be sent on cyclostyled forms, copy of the intimation should be endorsed invariably to the Home Ministry Government India and the Home Department, Government of Gujarat. The first intimation by telegram should also contain the essential information, viz. in the case of arrest, the place of arrest, the law and the Section under which the arrest was made, where the Member is lodged, the name and designation of the sender of the intimation and the authority which ordered the arrest

(b) Intimation of arrest should be sent by telegram and also by post irrespective of day on which the arrest is made. The fact that the day of arrest happens to be holiday not mean that the intimation can be held over till the next day.

(d) It is not merely arrest under law in respect of which the intimation has to be to the Speaker/Chairman but intimation has also to be sent even if the Member of Parliament has been subjected to any kind of restraint or detention by the Police which is not within strict legal meaning of the term "arrest".

(Govt. of India, M. H. A. No. 32/65/73-Po11-I, dated 4th February 1974 Govt. H. D. (Spl.) Endos. No. SB. II(AGT-1472/5987 dated 6th March 1974 and SB-II/AGT-1472-5987, dated 6th May 1974

186. Intimation of arrest, detention, release etc. of member of the Legislative Assembly Council of other States to the Speaker/Chairman of that State Legislative Assembly/Council.-(1) The procedure to be adopted in intimating the arrest, detention, restraint, release of a member of other State Legislature, to the speaker/Chairman of that member's Legislative Assembly/Council should be

the same as is applicable in the cases of members of Parliament in whose case the arrest, detention, restraint, release etc. is to be intimated to the Speaker/Chairman of the Lok Sabha/Rajya Sabha.

(2) The following instruction should also be scrupulously followed

(i) that the intimation is invariably sent to the State concerned, simultaneously along with the Speaker/Chairman of the Legislative Assembly /Council in any case of arrest, detention, restraint, conviction release etc. of a member of that state.

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(ii) that in the communication regarding arrest, detention, imprisonment of a member, the place of imprisonment or detention of the member should invariably be specified.

(iii) that when a member, who is under detention or is undergoing a sentence of imprisonment, is transferred from one jail to another, the change in the place of detention or imprisonment should also be intimated to the speaker / chairman, and

(iv) that when a member is released from jail on any ground e.g. on bail pending prosecution, trial, appeal or on the sentence being set aside on the appeal or on the remission of sentence by Government or on completion of sentence or on termination of preventive detention, such release should invariably be communicated to the speaker chairman.

(G. L. H. & C. S. D. No. SB I/LEG/23 27 dated 8th Ju. IY 1965)

187. Other miscellaneous instructions for arrest/detention etc. of member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly/Member of Legislative Council.-(1) In conveying information regarding arrest/detention/restraint/conviction of a member of Parliament/ Rajya Sabha/ Legislative Assembly / Legislative Council by telegram to the Speaker/chairman of Lok Sabha/Rajya Sabha/Legislative Assembly/Legislative Council may be in the following form.

Name: -

Speaker / Lok Sabha
Legislative Assembly
Chairman/Rajya Sabha.
Legislative Council

Address: -

Text :-Shri X. Y. Z. Member of Parliament /Member of Rajya Sabha/Member of Legislative Assembly Member of Legislative Council was arrested/restrained and removed/ detained under section (provisions of the law) at (place) on (date and time). Reasons for arrest/detention/conviction etc He has been lodged in (name of prison). Detailed communication follows.

(2) A separate telegram regarding arrest/ detention/ restraint/ conviction etc. of the Member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly/Member of Legislative Council should also be given to the Ministry of Home Affairs, Government of India or the Home Department of the State concerned in the following form:-

Name: -

Address: -

Text: -

Shri X. Y. Z. Member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly / Member of Legislative Council was arrested / restrained and removed / detained under section (provision of the law) at (place) on (date and time). Reasons for arrest / detention/restraint/conviction etc He has been Lodged in (name of prison). The speaker/ chairman has been informed.

(G. Cs. H. D. (Spl.) No. SB. II/LEG-1268 dated 2nd May 1968 and 12th August 1968.)

(3) Information about the arrest/detention/restraint/transfer etc. from one jail to another of the Member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly/Member of Legislative Council should be communicated to the Speaker/Lok Sabha Legislative Assembly and Chairman/Rajya Sabha-Legislative Council immediately by the quickest possible means irrespective of a Sunday or a holiday.

(4) The practice of giving intimation to the Speaker, Gujarat Vidhan Sabha by Wire-less Message/telegram should be continued. Such wireless messages/telegrams should be addressed only to the Speaker, direct and as far as possible the form for giving such intimation as prescribed in the Gujarat Legislative Assembly Rules, vide Rule 184 should be adhered to.

(5) If any other officers are required to be informed regarding the arrest/detention/restraint/conviction etc. of member of Legislative Assembly a separate wireless message/telegram should be sent to them, a copy of which should not again be endorsed to the Speaker or the Secretary, Gujarat Legislative Secretariat.

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(6) Immediately after the wireless message/telegram, the officer exercising the power, of arrest/detention etc. must send a written letter in the form prescribed in the Gujarat Legislative Assembly Rules, vide Rule No. 184 as above. Such a letter should be sent, directly to the speaker and not through the superior officers. Copies of such formal intimation should be endorsed to Home Department for information.

(7) The practice of endorsing to the Speaker or to the Secretary of Gujarat Legislative Secretariat, copies of letters or wireless message addressed to other officers is, highly objectionable and should be strictly avoided.

(8) When the member detained / arrested / restrained / convicted is released very soon, the fact of such release should also be intimated to the Speaker of Gujarat Vidhan Sabha either by wireless message / telegram addressed direct to the speaker or on phone to a responsible officer of the Gujarat Legislature Secretariat, but the same should invariably be confirmed immediately by a regular letter written in the prescribed form. The question of giving such, intimation regarding, release on phone or in person by a responsible Police officer exercising the power would arise in Gandhinagar specially when Vidhan Sabha is in session, but such oral intimation must invariably be confirmed by written letter in the prescribed form.

(9) It is neither necessary nor correct to give intimation about arrest/detention/restraint/conviction/release of Member of Parliament/Member of Legislative Assembly/Council of other state to the Speaker of Gujarat Vidhan Sabha. In such cases intimation should be sent to the Speaker/Lok Sabha/Legislative Assembly, Chairman/Rajya Sabha/Legislative Council as the case may be, but copies thereof should not be endorsed to the Speaker of Gujarat Vidhan Sabha.

(10) In cases in which Member of Legislative Assembly/Member of Legislative Council/Member of Parliament/Member of Rajya Sabha is produced before a Magistrate or any other Court for bail, trial etc., the Police authorities concerned should make it a point to bring the fact of his being a Member of Legislative Assembly/Member of Legislative Council/Member of Parliament/Member of Rajya Sabha to the notice of the Magistrate or the Court concerned.

(11) The intimation of release of Member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly/Member of Legislative Council should be sent immediately only after the member is actually released.

(G. C. H. D. Spl. No. SB II/AGT/1472/5987 dated 23rd March 1973.)

188. Service of legal process and use of handcuffs in arresting Member of Parliament etc. and Interrogation of Member of Parliament/Member of Rajya Sabha/Member of Legislative Assembly/Member of Legislative Council.-(1) (a) The permission of the Speaker, Lok Sabha, is required to be obtained for the service of legal process within the precincts of the house on any person, whether a member of Lok Sabha or a stranger vide Lok Sabha Rule 233. In the case of member of Rajya Sabha, however, permission of the Chairman of Rajya Sabha has to be obtained with simultaneous intimation to the Speaker of Lok Sabha.

(b) For any person arrested, handcuffs are used by the Police, if the person is violent disorderly obstructive or is likely to attempt to escape or to commit suicide or is charged with certain non-bailable offences. Handcuffs are not used as a matter of routine. Discretion must rest with the Police officer who is responsible for effecting the arrest and taking, the person in custody to the lock-up. If a Member of Parliament is arrested and handcuffed, the matter is likely, indeed almost certain to be raised in Parliament. This by itself should not influence the judgment of a Police Officer, but the fact that a person arrested is a Member of Parliament be borne in mind by the Police and other authorities who have to deal with the arrested member.

(2) When it is found from the disclosures made by a member on the floor of the Rajya Sabha/Lok Sabha that the member of Rajya Sabha/Lok Sabha is in possession of a vital information in criminal case which is under investigation the matter should be referred' to the State Government through the Superintendent of Police/ Commissioner of Police, Ahmedabad City, instead of dealing direct with the member. The State Government will' then deal with the matter in a suitably appropriate manner.

(3) The instructions in sub-rule (2) also apply in case of any disclosures made in the. Houses of State Legislatures by their members

(Govt. H. D. Spl. No. SB-II/LEG-1269/3253, dated 18th October 1969)

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189. Arrest of a Railway Employee.-(I) The exercise by the Railway Police of the power of arrest without warrant given them in Section 131 of the Indian Railways Act (IX of 1890), for offences under Section 101 of the same Act is discretionary. It should be, exercised only in extreme cases, as for instance, when-

- (a) there has been loss of life or serious injury to person; or
- (b) a person is caught in the commission of a grave offence; or
- (c) the accused is likely to abscond or to continue to endanger the safety of the public.

(2) When an arrest is made without warrant, immediate intimation of such arrest must 'be given to the head of the railway employee's department.

(3) Under ordinary circumstances, no immediate arrest is necessary. A warrant should be applied for in the usual manner, the Police maintaining a watch over the movements, of the accused, where this precaution is deemed necessary.

(4) When an arrest is effected under a warrant, the warrant should. in the absence of any direction to the contrary in the warrant under Section 72 of the Criminal Procedure 'Code, be executed by a Police officer of rank superior to that of a I Grade Head Constable. The officer entrusted with the execution of the warrant will execute it judiciously and, if the arrest is likely to cause risk or inconvenience to the public, make arrangements to prevent 'the escape of the accused and apply to the head of his department to have him relieved, arrest being deferred till he is so relieved.

(G, R., J. D., No. 5647, dated 6th September 1902)

(5) When a Police officer finds it necessary for the purpose of any Police investigation to require any employee of a Railway Administration to leave his duties or otherwise to .detain such employee from his duties, he shall give previous notice of the fact to the responsible railway official concerned in order that steps may be taken to replace the employee, and shall at the same time take all necessary measures to ensure that the object of the investigation is not thereby defeated.

(6) By "previous notice" is meant notice sent to the railway office concerned at the same time that the Police actually set out for a search or other action during which they 'wish to detain the railway servant named in the notice, irrespective as to whether he is on ; duty or not.

(7) The following classes of railway servants, if actually on duty at the time, shall not 'be required to leave their duty until they have been replaced:-

Station Masters

Assistant Station Masters

Cabin and lever-men

Signalers

Points men

Key men

Patrolmen

Individual gang men posted to show caution signals at weak bridges or other points requiring cautious working.

Shunting staff
Watchmen

Gatemen in charge of level crossings The actual running staff of a train (guards engine drivers and firemen).

More than half a gang of engineering gangmen

(8) The staff of the Railway in this State will co-operate with the Police in giving effect to the requirements of Sub-Rules (5) to (7) above.

(G. R., H. D., No. 11449, dated 17th December 1920 and No. 79, dated 8th March 1922)

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Chapter V

190. Arrest of Central Government servants.-(I) Whenever Central Government servants other than those mentioned in Rule 191 are arrested or/and released on bail etc. the Police Station Officer should send prompt intimation thereof to the official superiors of the Government servants concerned. indicating also the circumstances of the arrest etc. to enable them to decide what action if any should be taken against such employees.

(I.G. 's C. M., No. 6588, dated 30th May 1955)

(2) Whenever an employee of the Government of India or an employee of other Departments of the State is convicted by Court of Law for criminal offences necessary intimation regarding such conviction should be sent promptly to the administrative authorities concerned.

(G.C., P. and S.D., No. 1581/34, dated 14th November 1951)

191. Arrest of a Central Government servant on operational staff of any Department, Ordnance Factory Employees or any other Military employees.- Whenever. Central Government servants on operational staff of any Department or Ordnance Factory employees or any other Military employees are arrested or removed, the Police Station Officer should send immediately an intimation of the arrest to the immediate superior officer of the officials concerned if in any case prior warning of the arrest cannot be given. The intimation should be followed by a more detailed report of the offence committed together with an indication as to whether the arrested person is being released on bailor bond by the Police. Wherever practicable, prior intimation of the arrest of such an officer, should be sent secretly to his immediate superior officer or the officer-in-charge of the installation or Department.

192. Arrest of Pakistan Officials.- Whenever officials of Pakistan are arrested while on duty or on leave or otherwise in this State. the fact must be intimated at once to the Inspector-General of Police for communication to the Government of Pakistan through the State Government and the Government of India. Under the reciprocal arrangements arrived at with the Government of Pakistan, arrests of officials of India in Pakistan will be similarly intimated to the Government of India.

(G. E., H. D., No. 5305/A, dated 12th September 1950)

193. Prosecution of Law Officers under legal Department.-Whenever a Law Officer under the Legal Department is to be prosecuted that Department should first be informed about it.

194. Hints for the guidance of a Police Officer making an arrest.-(I) When a Police Officer proceeds to arrest a person and cannot identify him personally he should secure the services of a person who knows the person to be arrested and should also provide himself with a photograph, a descriptive roll and the marks of identification of that person, as far as possible.

(2) The Police Officer should be in uniform and should arm himself with a revolver or other means of defence if the circumstances demand such a precaution.

(3) Police parties engaged on dacoit operations or similar duties likely to result in effecting arrests should carry handcuffs and ropes with which to secure prisoners.

(4) The person to be arrested should be informed of the authority for making the arrest.

(5) The arrest should be effected without unnecessary violence or publicity.

(6) The arrest should be effected strictly in accordance with the provisions of Sections 46 to 55 of the Criminal Procedure Code.

(I.G. 's No. 4719, dated 17th August 1944)

(7) Persons who are arrested as lunatics or as drunken persons and others who may show a tendency to violence should not be put up in the same lock-up with normal prisoners or arrested persons. Special care should be taken to separate the ordinary prisoners from those who are likely to be violent.

(I.G. 's No. G/1909/1051, dated 15th September 1972)

195. Use of fire-arms in making arrest.-(I) Where a person forcibly resists the endeavour to arrest him or attempts to evade arrest. the Police officer making the arrest may under Section 46 of the Criminal Procedure Code, use all means necessary to effect the arrest. If therefore an arrest cannot otherwise be effected, the use of fire-arm,; to effect the arrest is justifiable and the Police officer is protected from the consequence and even from liability for the death of a person fired on under such circumstances, in case of the person to be arrested is accused of an offence punishable with death or transportation for life.

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(2) Even in cases of offences punishable in a lesser degree than by death or transportation for life, though Section 46 of the Criminal Procedure Code does not authorize the killing of a suspected person merely for the sake of effecting his arrest, it does not deprive the Police officer of his right of self-defence, if the resistance to arrest is such as would justify him in causing death in defiance of his own person under Section 100 of the Indian Penal Code. This right of self-defence includes the use of fire-arms to overcome the resistance, if necessary, even with fatal effect. Police officers who are entrusted with a warrant or who have reason to suppose that crimes of particular gravity have been committed by a specified person are bound to arrest the person and are punishable if they fail to do so.

They cannot desist upon a mere show of resistance, they are bound to redouble their efforts, even at the risk of their lives, if opposed; and the law protects them from any consequences which the resistance entails.

(3) The above statement of the law as to the right of self-defiance given to a Police officer attempting to effect an arrest does not of course apply when the person to be arrested merely "attempts to evade arrest" i.e. without resistance files to avoid arrest. .In such a case the amount of violence, which may be used by the officer effecting the arrest, depends upon the cause of the arrest. When the offence in question is one punishable with death or transportation for life, such as murder or Dacoity and there is no other means of effecting the arrest of the suspected person, the resort to fire-arms is justifiable in spite of any danger there may be of thereby wounding him and causing his death. If, however, the offence is one punishable in a lesser degree than by death or transportation for life, and the, suspected person merely tries to evade arrest by flight without resistance the Police officer would ordinarily not be justified in causing the death of such person and it would be very hazardous for the officer to fire in such a case and thereby to run the risk of inflicting what might prove to be fatal injuries.

(4) The Police should not at all hesitate to aim straight at notorious criminals wanted for crimes when the criminal also happens to be armed and shooting at the police and the public.

(I. G. P.'s Conf. :No. G/1909, dated 2nd April 1969).

(5) In the event of a murderous assault on a citizen, the Police should promptly open fire on an aggressor to discharge their duty to protect the life of the citizen.

(6) These instructions apply also to the case of Police officers endeavoring to arrest prisoners who have escaped from, or are attempting to escape from, lawful custody and who are thereby guilty of an offence punishable with two years' rigorous imprisonment and fine under Section 224, Indian Penal Code; but they must not be taken as in any way modifying those laid down regarding the use of fire-arms by a Police guard over prisoners (vide Rule 398) regarding use of fire-arms by escort of prisoners and the rules in Chapters XLI and XLII of the Bombay Jail Manual 1944 Part I, regulating the use of arms by officers of a prison against any prisoner or body of prisoners in case of an outbreak or attempt to escape.

(G. R., J. D., No. 6190, dated 13th September 1898)

196. Enquiry as to ill-treatment of a person arrested.-(I) Directly an accused person is placed under arrest, the investigating Police officer shall as the first step in the Police Investigation, ask him whether he has any complaint to make of ill-treatment by the Police, and shall enter in the case diary the question and answer. If an allegation of ill-treatment is made, the investigating officer shall there and then examine the prisoner's body, if the prisoner gives consent, to see if there are any marks of ill-treatment, and shall record the result of his examination. If the prisoner refuses to allow his body to be examined, the refusal and the reason therefore shall be recorded. If the investigating officer finds that

there is reason to believe the allegation of ill-treatment, he shall at once so far suspend the investigation on which the prisoner has been arrested, as to forward the prisoner with his complaint, the record of corporeal examination, any other evidence available, and, if possible, the Police officer implicated by the prisoner's complaint, to the nearest Magistrate having jurisdiction to enquire into the case.

(G.R., J. D. No. 3317, dated 19th June 1906, G. M. J. D., No. 4130, dated 1st August 1906 and I.G.'s. No. 68790, dated 10th August 1906)

(2) The Police should not ill-treat or beat the women who are accused of or suspected in an offence. Instructions regarding behavior of Police officers towards the women are contained in sub-rule (17) of rule 354 of Bombay Police Manual, Volume I.

(I. G.P. 's No. G/I927/Misc/66, dated 12th May 1966)

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Chapter V

197. Search of an arrested person.-As soon as a person is arrested. his body should be thoroughly searched preferably in the presence of the panch in order to ascertain if there are any marks of violence or injuries on his person and also to see if he has any incriminating articles dangerous weapons poisonous drugs etc. on him. If any such things are found they should be taken possession of after noting in the panchnama. If the search of the person discloses any injuries etc. he should be forwarded to the Medical officer concerned for treatment. If the person to be searched is a woman, the search should be made with the help of a woman.

198. Interviews with the accused.-(1) All applications from pleaders or other members of the legal profession, for interviews of accused in Police custody for the purpose of defence must be in writing and should be referred to the officer-in-charge of the Police Station who will, if there are no valid objections, give necessary orders on the .1 application, and appoint a suitable time. j

(2) If there are valid objections. the Officer-in-charge Police Station will 'forward the 1 application without any delay to the Sub-Divisional Police Officer with an endorsement stating what the objections are, and the Sub-Divisional Police Officer will then pass orders immediately. In cases in which the accused in a C. I. D. case is detained in a Police Station; lock-up, interviews should be granted only after the Inspector/Sub-Inspector of the C.I.D, Branch concerned has been contacted and signifies "No objection."

(3) The interview should take place within sight of, but not within the hearing of, a Police officer who will see that nothing passes between the parties.

(4) No interviews should be granted after 8 p.m. or before 8 a.m. unless such a course will lead to real hardship to the prisoner, i.e. such as when the charge-sheet is put up the J following day and the denial of an interview during the prohibited hours will hamper the' preparation of his defence etc. Such interviews should only be granted with the previous permission of the Officer-in-charge Police Station.

(5) Counsel. desiring to interview a client who is involved in a case to be tried by the Sessions and who is detained in the Court lock-up will produce to the officer in charge' Sessions Court duty, a permit from the Registrar or the Clerk of the Court authorizing his interview with the accused.

(6) A suspect or an under trial prisoner in Police lock-up shall be permitted to maintain himself and purchase or receive from private sources at proper hours food, clothing , and bedding and other necessities subject to examination of these articles and availability of space in the lock-ups.

(7) Police officers visiting prisons for the purpose of interviewing prisoners should take their Identity Cards with them.

(8) Interviews can be refused only-

(a) when a pleader insists on going to see an accused at any time, that suits him,

(b) if the Police have any reason to believe that a particular pleader has abused his right of access (for instance, by tampering with witnesses), and

(c) when there a reason to believe that the ends of justice might be defeated or might suffer by such access.

199. Release on bail or other disposal of a person arrested.-(I) When a person arrested without warrant by a Police Officer lower in rank than the officer in charge of a Police Station, it is his duty to produce the person arrested without delay before the Police Station Officer and act upon his instructions.

(2) The provisions in regard to bail are set forth in Chapter XXXIII of the Criminal Procedure Code. When the person arrested is accused of a bailable offence or has been arrested under Section 41(2) of the Criminal Procedure Code, the officer-in-charge of the Police Station must release him on bail, if he is prepared at any time, while in the custody of such officer, to furnish satisfactory bail.

(3) (a) If at any stage after the investigation has been entered upon but before it is completed, the Police Station Officer has to consider the evidence that has become available against the accused upto that time and if the evidence collected does not afford reasonable grounds for believing that the person has committed a non-bailable offence, though further investigation is still necessary, the Police Station Officer must release such accused on bail pending such investigation such investigation.

(Section 437 (2) of Criminal Procedure Code)

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(b) The question of releasing the person on bail after the completion of the investigation will be governed by the provision of Section 169 of the Criminal Procedure Code, vide Rule 232(1).

(c) An officer in charge of a Police Station shall have to get bail bonds and bonds or appearance (recognizance's) executed under Sections 436, 437 and 170, Criminal Procedure Code affixed with a Court fee stamp of 25 Paise by the party executing the bond.

(I. G. 's No. 7680. dated 29th June 1955)

(d) The Police Officer in whose presence the bond is executed has to deliver a copy thereof to one of the persons who executed it and then send to the Magistrate the original with the report. The bond should be in proper prescribed form. It should be filled in correctly with suitable alternations. The date, time and place for appearance of the accused before the Magistrate should be mentioned in the bond. It is necessary that the Magistrate should receive charge sheet before the date mentioned in the bond as contemplated by Sub-section 4 of Section 170. Criminal Procedure Code.

(I. G. 's Cirs. No. G/1927/MISC/66, dated 14th December 1966 and 30th June 1969)

(4) The Police Officer has no authority to rear rest a person, once he grants him a bail. When rear rest is deemed necessary the Police must apply to a competent Court for the cancellation of the bail bond under section 437 (5) Criminal Procedure Code.

(5) The Provisions of Section 444, Criminal Procedure Code reveal that the right to continue on bail is subject not only to the directions of the Court but also to the will of the sureties and the mere fact that a person has been released on bail does not lead to the inference that he is at liberty.

(6) For the procedure to be followed after the arrest of a Borstal School licensee, see Rule 343.

(7) The disposal on arrest of a child as defined by the Bombay Children Act, LXXI of 1948, will be governed by Sections 64-67 and Section 88 of that Act.

(8) Police officers should avoid indiscriminate bailing out of children and to bail them out only in a few really safe and securely deserving cases preferably on the recommendation of a Probation Officer.

(I. G. 's C. M. No. 5132-III, dated 3rd November 1950).

(9) The collection of the bail bond money made by the Police Station Officer should be deposited immediately into the local Treasury by the officers concerned under "P-Deposits of Advances-other Deposit Accounts-Civil Deposits-Criminal Courts Deposits" direct or through the Magistrates concerned, according to the nature of the case. The collection should not be kept at the Police Station in any case.

200. Powers of a Court to release on Bail.-(1) The powers of a Court in the matter of releasing a person on bail are governed by Sections 436-440 Criminal Procedure Code.

(2) It is open to a Court, when releasing an accused person on bail, to impose upon him a specific condition that the person should not do a particular thing or act, while on bail.

(G. C., H. D., (Poll)., S. D. No. 1378, dated 19th April 1940)

(3) The Magistrates are empowered to release on bail any person in custody who has been accused of a non-bailable offence if the trial is not concluded within 60 days from the first date fixed for taking evidence in the case. It is therefore, necessary that all the proceedings are concluded within this stipulated period.

(I. G. 's C. M., No. 7490. dated 12th January 1956)

201. Anticipatory Bail.-(1) There is a provision for anticipatory bail in the Code. When any person apprehends that he is likely to be arrested on accusation of having committed a non-bailable offence, he may apply to the Sessions Court or High Court for releasing him on bail and that Court may, if it thinks fit, direct that in the event of such arrest he shall be released on bail.

(2) If such person is thereafter arrested without a warrant by an officer in charge of Police Station on such accusation and he is prepared to give bail, he shall be released on ' bail; and if the Magistrate taking cognizance of such offence decides that a warrant should issue in the first instance, he shall issue a bailable warrant in conformity with the direction of the Court under sub-rule (1).

(Section 438 of Criminal Procedure Code)

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Chapter V

202. Prohibition against the use of Temples, Mosques, etc., as Lock-ups.- The use of places of religious worship, such as temples, churches, mosques etc, for the purposes of confining persons arrested by the Police pending immediate local investigation into offences alleged against them is strictly prohibited. In such cases, other arrangement for the confinement of such persons should be made.

(I. G. 's No.7, dated 22nd April 1947)

203. Maximum number of under trial prisoners to be detained in Police Lock-ups.-(1) The number of prisoners kept in a Police lock-up must not exceed the number for which there is sleeping accommodation, which should be calculated at 215 cms by 120 cms surface area of the floor of the cell.

(2) Over the door of every lock-up shall be inscribed the maximum number of prisoners which it is capable of accommodating on the above scale, e.g., "Accommodation forprisoners".

(3) The above number shall never be exceeded at night. It may be exceeded in the day time as a temporary measure for one day only, in case of real necessity, provided that an area of at least 185 cms by 60 cms on the floor of the cell is allowed for each prisoner. Any excess over the authorized number shall be accommodated in some other convenient building under an adequate guard.

(4) Sub-Rules (1) to (3) do not apply to subsidiary jails, even if the Police are allowed to use them to confine persons who remain in their custody.

(G.R., J.D., No. 7798 of 1st December 1916 and No. 4948, dated 3rd August 1917)

204. Treatment of under trial prisoners in Police Lock-ups.-(I) Interference with religion and caste prejudices of prisoners is prohibited but care shall be taken that this rule is not made an excuse for frivolous complaints. Conservancy duties shall not be exacted from arrested persons who owing to caste prejudices are not in the habit of performing such work when in a free state.

(G.L., H.D., No. LA. 36, dated 17th June 1938)

(2) Earthen *kundas* should be kept in the cells for night use only until the cells are provided with night latrines and not otherwise. Superintendents of Police should during their inspections see that these others are properly carried out by subordinate officers and men.

(I.G. 's No. 5331, dated 12th May 1948)

(3) Convicted prisoners in general and under trial prisoners in particular, are held in custody as a sort of trust and they should not, therefore, be denied the urgent necessities of life. It is quite essential that medical aid to any extent, whenever necessary is immediately rendered to them. The authorities concerned should not give any grounds for complaint, whatsoever from all quarter regarding inhumane treatment towards the prisoners or negligence in rendering medical aid to them.

(G. C., H.D., No. SAT. 1058/5187-IV, dated 3rd June 1959)

205. Procedure preliminary to production of an arrested person before a Magistrate.- (1) As soon as any person is arrested without a warrant, the Police Station Officer must send to the concerned Magistrate an arrest report in the prescribed Form. The report must be sent whether or not the person arrested has been released on bail.

(2) In appropriate cases finger impression slips of the arrested person should be taken for being sent to the Finger Print Bureau for tracing his previous convictions.

(3) A descriptive roll and marks of identification of the arrested person should be prepared in accordance with instructions in Appendix XX and entered in the "Register of persons arrested within the jurisdiction of the Police Station".

(I. G. 's No. 70, dated 31st July 1925)

(4) A person arrested can be detained in Police custody for a maximum period of 24 hours excluding the time taken up for his journey from the place of arrest to the Magistrate's Court. The period required for the journey will be calculated by the route and the type of transport usually used by the public, and any detention due to the making of inquiries on the way will not be excluded from the calculation. Before the lapse of the period of 24 hours or even earlier, if his presence in Police custody is not necessary, he must be produced before a Magistrate having jurisdiction in the case.

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(5) The accused should be made to remove his shoes, chappals, etc. before he is taken to the Magistrate and he should be dispossessed of anything which can be hurled and his such belongings, should be returned to him after his production before the Magistrate.

(I. G. P.'s Conf. No. G/1909, dated 21st December 1971)

(6) The report should be accompanied by a statement giving reasons for the arrest such as the information about the details of a decision to commit a cognizable offence together with the recommendation for further action under the Bombay Police Act or the Preventive Detention Act. If action under Chapter VIII, Criminal Procedure Code is proposed to be taken that should be done promptly before the expiry of 24 hours.

(G. C., H. D. No. PRO-2358/90669-III, dated 14th April 1959)

206. Lock-up Register.—Property such as ornaments and wearing apparel, left on the person of a prisoner by the investigating officer and taken from him as a preliminary measure by the officer in charge of the lock-up before the prisoner is put into the cell, must be entered in the 'Lock-up Register', known as the "Book of ornaments and wearing apparel" (Form No. P. M. 87).

207. Arrest Register.—A descriptive roll and marks of identification of the arrested persons within the jurisdiction of the Police Station should be prepared in accordance with the instructions contained in Appendix XX and entered in the "Register of persons arrested within the jurisdiction of the Police Station", commonly known as "Arrest Register".

208. Photographs of arrested persons.—It is usually unnecessary to take photographs of prisoners whose finger impressions have been taken. In cases where, in the opinion of the Superintendent of Police, it is advisable that they should be taken, the previous sanction of the Deputy Inspector-General of Police, Criminal Investigation, Department (Crime and Railways) should invariably be obtained. In very urgent cases where such sanction cannot be obtained immediately, photographs may be taken and a report made to the Deputy Inspector-General C.I.D. (Crime and Railways) to whose grant under contingencies all such expenditure will be debited (vide Rule 97 Volume II).

(G. Rs. J. D. No. 7734, dated 13th November 1896 and No. 88 dated 6th January 1897 and I. G.'s No. 3630-B, dated 16th March 1911)

209. Intimation of arrest of a Military or Consular Employee.—(I) (a) In the event of the arrest by the Police of a person subject to military, naval or air force law, charged with the commission of an offence, as early intimation as possible of the fact must be given to his Commanding Officer so as to enable him to adopt in time any measures he may think necessary for defence.

(b) Subject to clause (a), the person so arrested shall be dealt with in all respects like any other person in the matter of investigation, etc. of the offence in respect of which he is arrested. The question as to whether he is to be tried by a Court Martial or a Court functioning under the Criminal Procedure Code is one for decision between the Commanding Officer and the Magistrate before whom he is brought by the Police, in accordance with rules made by the Government of India under Section 475 of the Criminal Procedure Code.

(2) If it comes to light that a person who has been arrested on a criminal charge is an army reservist, the appropriate military authority should immediately be advised of his arrest and, if he is subsequently convicted, also of his conviction. A reservist who is convicted of a criminal offence forfeits pay for any periods spent under arrest and in jail, and the above intimation is necessary to prevent such payment.

(G. R., H. D., No. 6557/3, dated 27th June 1935)

(3) Whenever an employee of a foreign consulate is arrested within the limits of India for any offence, information of his arrest should immediately be supplied to the consulate concerned, irrespective of the wishes of the person arrested.

(G. C., P. D., No. 6701, dated 3rd February 1930)

210. Arrest of a deserter from the armed forces of India.—(I) In accordance with the instructions issued to Military Units/formation a report of a military deserter/absentee without leave will be made by express letter to the civil authorities at under:-

(a) The Local Police.

(b) The Local Railway Police.

(c) The Commissioner of Police/Superintendent of Police the Collector to which the deserter/absentee belongs.

(d) The Deputy Inspector-General. Criminal Investigation Department (Crime and Railways) of :-

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|--|--|
| (i) The State in which desertion. absence occurs and | In case of desertions with arms and ammunition collective desertions with or without arms and ammunition or where it is considered that desertions |
| (ii) The State to which deserter absentee belongs. | absences are due to subversive activities the report will be made by signal followed by an express letter in confirmation. |

(2) The desertion reports will be made in the following form:-

(a) Number, rank and name.

(b) Name and address of the sponsor if known.

(c) Unit.

(d) Class.

(e) Home address (village, post office, Tehsil, Police Station or Thana, district, The street or gali, house number in the case of recruits of urban areas) and father's name.

(f) Date and place of enrolment.

(g) Age, description and distinguishing marks.

(h) Date of return from Last leave.

(i) Date of absence.

(j) With or without arms.

(k) Full description of incident especially when in possession of arms (nature and registered number of arms to be stated).

(l) Any other information which will contribute to the apprehension of the deserter, e.g., any plan in connection with his desertion which he may have confided to his associates.

(m) Opinion of Commanding Officer as to cause of desertion.

(n) Name of place of desertion.

(o) The particular Controller of Defence Accounts in whose payment the deserter was.

(3) The Police officers concerned should make every possible effort to apprehend the deserters / absentees without any delay, particularly if they are reported to be in possession of arms and ammunition.

(4) If the deserters from the Army are not apprehended within three years period from the date of offence, no legal action can be taken against them under the Army Act. The Police officers should, therefore, pay their personal attention in cases of deserters reported by the Military authorities and take prompt action in the matter.

(I.G. P.'s Memo. No. G/1927/Misc/66, dated 30th September 1966)

(5) Besides the statutory duty placed upon the Police officers under Section 41 of the Criminal Procedure Code, rule 269 (1) (d) of Police Manual, Volume I, prescribes a special reward for apprehension of deserters.

(6) There may, however, be genuine cases of overstaying of leave for reasons beyond the control of an individual. The Police authorities should not arrest personnel who are in possession of railway warrants and leave passes and apparently on their way to rejoin their units unless such leave passes show that they have overstayed their leave by at least 10 days. They should not in any instance take away soldiers' leave passes or railway warrants.

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(7) On apprehension or voluntary surrender of a deserter/absentee the Police Station Officer, who effects the arrest or accepts the surrender will send telegraphic information to the adjacent Regimental Centre or the Military Unit specified in Appendix XXI and arrange despatch of the deserter/absentee to the Centre/Unit in question under civil Police escort as early as possible. They will not, however, be detained in civil jails, nor should they be produced before a Magistrate.

(8) An apprehension certificate (IAFD 910) in the Form No. 13. Appendix I, will invariably be sent with the Police Escort as deserters / absentees may not be accepted by the Regimental Centre/Unit without this form duly completed. The original copy of the desertion report (wherever possible) will also be sent with the Police escort.

(9) The expenditure incurred by the State Government in escorting deserters to Regimental Centres/Units will be reimbursed from the Defence Services Estimates. Debits on that account supported by an audit certificate to the effect that "the charges debited have been audited and admitted under Rules" will be raised by the Civil Accounts Officer-con-corned against the Controller of Defence Accounts referred in para 2(0) above.

211. Responsibility for preventing escape of prisoners.-(I) Once an accused person is arrested, it is the duty of the Police to see that he does not escape from Police custody.

(2) The following instructions should be followed in order to prevent escapes of convicted as well as under trial prisoners from custody:-

(i) All Police Station Officers should clearly understand that they will be held personally responsible for any slackness in the performance of guard duty by men serving under them, if this slackness has its origin in any way in faulty supervision by them.

(ii) Systematic and periodic instructions in guard duties should be given to all members of the armed Police at each district Head Quarters. The Range Deputy Inspectors-General will, at the time of their inspections, see that this has been done.

(iii) A selected Head Constable from each Head-Quarters should be detailed periodically to visit all Police Stations to instruct the Police Station officers and armed men particularly in roping and handcuffing of prisoners and to bring to the notice of the Police Station Officers any faults in procedure.

(iv) Primarily it is the duty of the Guard-Commander, the Sub-Inspector and superior officers to see that there is no defect in the place of confinement or the arrangement of escort which would facilitate escapes. The Inspecting officers should always make it a point to inspect the lock-ups in their charge and see that there are no structural defects. Since prisoners often escape from latrines or urinals, the Superintendent of Police should see how these places could be made escape-proof by providing enclosures around them.

(I. G.'s C. M., No. 4719-IV, dated 31st May 1954)

(v) Whenever an escape from Police custody, attributable to negligence on the part of the Police occurs, a brief summary of the nature of the negligence and of the punishment awarded should be sent to the Inspector-General for publication in the Gujarat Police Gazette. Entries of the character in the Gazette should be read out to the armed Police on parade both at Head-Quarters and at Police Stations.

(vi) (a) Every incident of escape from Police custody should reported with such brief details as are available immediately to the Range Deputy Inspector-General with a copy to the Inspector-General of Police. A subsequent detailed report should be sent by the Superintendent of Police to the Inspector-General of Police through the Range Deputy Inspector-General of Police, after completing all the necessary enquiries.

(I. G. 's No. 4719-III, dated 22nd March 1944, 21st June 1944 and No. 4719-1V, dated 19th February 1955)

(b) All lock-ups, whether Police or judicial, are manned by policemen and all prisoners kept therein are in the physical custody of the Police though in case of judicial lock-ups, they may be in legal custody of a Magistrate. Every escape therefore from a judicial lock-up amounts to escape from the physical police custody and report is therefore required to be sent as required in sub-rule (2) (vi) (a) above.

(I.G. P.'s Memo. No. G/I909, dated 8th March 1965)

Chapter V

(vii) Unarmed Police should be used for guarding and escorting of prisoners only when Armed Police are not available either totally or in sufficient numbers. In such cases prisoners should be permitted to be escorted by Unarmed Police from the place of arrest to the Police Station only.

(viii) Unless there are special circumstances, Unarmed Police should not be used for escorting prisoners to Courts or from local jails or Police Stations to District Head- quarters.

(ix) In no case should the Inter-District transfers of prisoners be done by Unarmed Police.

(x) (a) Dangerous prisoners should always be escorted by Armed Police and the escort should be given special instructions.

(b) Special care should be taken to escort the prisoners who are recalcitrant, dangerous or who may be inclined to escape, by detailing a senior officer to be solely responsible for the safe custody of the prisoner.

(c) Similarly, special precautions for the categories of prisoners mentioned in (b) above by way of (i) strengthening the Police guard, (ii) briefing the Guard regarding dangerous propositions of the prisoner, (iii) check up of the security of the lock-up or cell (iv) arrangements for the prisoners diet, etc., shall be taken with a view to prevent escape of under-trial prisoners in Police custody, under-trial prisoners in judicial custody and convicted prisoners in jail custody.

(I. G. P.'s No. G/1909, dated 5th June 1967, G. R., H. D., No PRC-1067-J, dated 21st March 1967, and Govt. of India, M. H. A. No. 3/5/66/Police-IV, dated 21st January 1967).

(xi) Handcuffs are normally to be used by the Police only where the prisoner is violent, disorderly, obstructive or is likely to attempt to escape or to commit suicide or is charged with serious non-bailable offences. Detailed instructions are given in rule 442 of Police Manual, Volume III.

(G. E. G. & C. S. D., No. MIS-1061/36741-L, dated 26th June 1964).

(xii) Political prisoners should not be handcuffed if they are arrested during agitations of political nature. Those who are political agitators would be known to the local Police from the cause they are agitating for and their reputation in the local area as political agitators and there should not be any difficulty in identifying them and in not hand-cuffing etc. However if the agitators attack the Police and or commit a grave offence, there is no restriction on handcuffing them.

(I. G. P.'s Cir. No. G/1909 dated 16th December 1971 and No. G/1927/72/14297, dated 21st April 1972)

(xiii) The above sub-rule should not be interpreted as relieving the Unarmed Police of escort duty. Superintendents of Police should continue to train unarmed men in escort duties also.

(I. G. 's C. M. No. M/4719-IV, dated 30th January 1959)

212. Responsibility for preventing escape of Naxalite/Extremist prisoners.-(I) The following steps should be taken to prevent escape of Naxalite/Extremist prisoners:-

(a) Naxalite / extremist prisoners should not be allowed interviews freely. Their interviews should cut down to the minimum and confined to close relations and bonafide legal advisers. These too should take place under strict supervision.

(b) A strict watch should be kept on communications of Naxalite/extremist prisoner with the outside world.

(c) Collection of Naxalite prisoners inside jails for holding political classes should be prevented as far as possible. Demands for facilities like supply of Mao literature which are being pressed by the Naxalite, should be firmly resisted. Their demand for categorization as political prisoners for getting increased benefits which they exploit for further mischief can be easily turned down in most of cases in view of the highly violent nature of extremist's movement and involvement of most of the prisoners in heinous offences.

(d) In order to prevent Naxalites from indoctrinating other prisoners they should, be isolated from latter by confining them to separate parts of jails unless they are kept in jails meant exclusively

for Naxalites. It is particularly necessary to keep the away from hard-core criminals and young prisoners.

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(e) Even among the Naxalites, it would be desirable to segregate the hard-core and those firmly committed from the recruits so that attempts to retrieve the latter are not hampered.

(f) Warders and other jail staff put on duty with Naxalites should be carefully chosen so that they are not cowed down by Naxalite threats or lured by other means to oblige the Naxalite prisoners.

(g) With a view to prevent escape of Naxalites from Police custody, the Police party escorting Naxalite prisoners should absolutely be vigilant and constantly alive to the possibility of the prisoner's objective of finding opportunities to escape from jailor while in Police custody.

(G.I.,M.H.A., Secret letter No.3/3/71-GPA-II dated 3rd March 1971 and I.G.P. 's Secret Memo No. G/1927/11, dated 29th March 1971)

213. Illegality of Nazarkaid.-(I) It is a mere evasion of the law to place a suspected person in what is ordinarily known as nazarkaid and to say that he is not under arrest. The system is still more objectionable when applied to witnesses. When a person is placed under nazarkaid or Police supervision and restraint he should be considered to be in the custody of the Police and the provisions of Section 56 of the Criminal Procedure Code should be held applicable to him.

(2) The persons suspected to be involved in cognizable crime should not be merely called at the Police Station. Such detention is highly objectionable and is often challenged by the persons concerned.

(I. G. 's C. M., No. 151, dated 5th November 1952)

214. Treatment towards suspects involved in crimes.-(a) Attention is drawn to rule 354(17) of Police Manual, Volume I, under which instructions have been given to act with strict regard to decency and with reasonable gentleness in dealing with women. These instructions should be followed scrupulously while dealing with women suspected in offences.

(b) The superior officers, during their visits to the Police Stations, should give instructions to the subordinates to implement these instructions strictly.

(c) The Principals, Police Training Schools should see that necessary instructions mentioned in clause (a) above are imparted to the trainees.

(I.G.P. 's Cir. No. G/1927/Misc/66 dated 12th May 1966)

215. Treatment of persons in Police Custody.-(I) On arrest of a person by the Police, he should be allowed to consult a legal practitioner before he is taken to a Magistrate for remand, subject to the exceptions mentioned in clause (3) of Article 22 of the Constitution of India.

(2) Once a person is arrested by the Police, he must, while in Police custody, be given proper subsistence and shelter and in the event of his becoming ill, proper medical treatment.

(3) Under trial prisoners should be treated with such reasonable consideration as is compatible with their safe custody and production before the Court. Their status and the probability of their attempting to escape should be taken into account in deciding the necessity or otherwise of the use of hand-cuffs and allowing them the use of a conveyance at their expense [vide Sub-Rule 10 of Rule 354 in Volume I].

(4) For detailed instructions as to the hand-cuffing of persons in custody and provisions of a conveyance for their transport, reference should be made to Rules 348 and 350.

216. Allegations of Ill-treatment made to a Judicial Magistrate or a Medical Officer.-

(1) The Judicial Magistrate before whom a prisoner is first brought, whether for confession or otherwise, shall invariably question the prisoner whether he has any complaint of ill-treatment against the Police or others responsible for his arrest or custody and shall place on record the question put and answers given. If any allegation of ill-treatment is made, he shall then and there examine the prisoner's body, if the prisoner consents, to see if there are any marks of injuries as alleged and shall place on record the result of his examination. If the prisoner refuses to permit such examination the refusal and the reason thereof shall be recorded. If the Magistrate finds that there is reason to suspect that the allegation is well founded, he shall at once record the complaint and cause the prisoner to be examined by a medical officer, if possible, and shall make a report to the Sessions Judge. If he has not the power to take up the necessary inquiry himself, he should act according to the orders of the Sessions Judge.

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(2) (a) Medical officers in charge of jails must carefully examine the body of every under trial prisoner on the day of his arrival in jail, or on the day following at the latest.

(b) Similarly in the case of third class subsidiary jails, if there is a Sub-Assistant Surgeon or other medical officer in local charge of the place, every under trial prisoner should be examined by him, if present in the station, within 24 hours of admission.

(c) In the case of lock-ups and subsidiary jails at places where there is no medical officer, the officer-in-charge should in all suspicious cases send under trial prisoners in custody to the nearest medical officer for examination.

(d) A medical officer to whom a person in Police custody is brought for Examination should examine the person of the prisoner and even though no suspicious marks are found, he should at once report to the Judicial Magistrate authorising Police custody that he has done so.

(3) In all such cases the medical officer should record the result of the examination.

(4) If any marks or symptoms at all indicative of recent violence or ill-treatment are found the medical officer concerned should immediately make a report to the appropriate Judicial Magistrate and to the Sessions Judge. This report should specify the nature of the injuries and their position together with the opinion of the medical officer as to their causation and should state whether the prisoner makes any allegations in regard to them against the Police or others responsible for his arrest or custody or should state how else the prisoner explains them.

(5) If such allegations have been made the Sessions Judge should arrange for all immediate magisterial investigation into the complaint through such officer as he may deem most convenient unless he is satisfied by the Judicial Magistrate's report under Sub-Rule (1) above that adequate investigation is proceeding.

(6) The result of this investigation, so far as it refutes or establishes the truth of the allegations made must be communicated as soon as possible to the Court seized of the substantive case. If it seems expedient the trial Court (including the Sessions Court) will summon the medical officer to give evidence at the trial.

(G. R., H. D., No. 810/4/12489, dated 5th November 1938)

(7) Officers of all grades must understand that if the senior officers present during an investigation cannot restrain their subordinates or fail to strain every nerve correctly to ascertain the actual facts of outrages happening in the course of an investigation of which they are immediately in charge, they themselves cannot but be held responsible departmentally together with all those against whom there is a reasonable suspicion of complicity and will thus come under the severe displeasure of Government. Responsibility as a matter of departmental discipline is a very different

matter from criminal responsibility; and if the actual truth of such cases is concealed by officers engaged in an investigation all those who come under reasonable suspicion of responsibility for the occurrence must expect to suffer departmentally.

(G. R., J. D., No. 4367, dated 30th July 1907 and No. 7289, dated 16th November 1917)

217. Deaths in Police Custody.-(1) When any person dies in Police custody or when attending before the Police for an inquiry the Sub-Inspector or the Police Inspector in charge of Police Station should send an immediate report direct to the District Magistrate and to the nearest local Magistrate empowered to hold inquest. Copies of this report should be sent simultaneously to the Superintendent of Police and to the Sub-Divisional Police Officer.

(2) The corpse of such a person should be promptly sent for post mortem examination.

(3) On the occurrence of such a death the Sub-Divisional Police Officer and if necessary, the Superintendent of Police should proceed to the spot at once and make inquiries in person forwarding his report to the District Magistrate with the least possible delay. If the inquiry is made by a Sub-Divisional Police Officer in addition to sending his report direct to the District Magistrate he will dispatch a copy simultaneously to the Superintendent of Police. Copies should also be sent by the officer making the inquiry direct to the Inspector-General and the Range Deputy Inspector-General of Police.

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(4) The fact that the Sub-Divisional Police Officer is required to proceed at once to make the local inquiry in a case of this nature within his sub-division does not absolve the Superintendent of Police from all responsibility in the matter. The Superintendent of Police is expected to keep in close touch with such events and, if he considers it necessary or desirable, to proceed himself and make inquiries in addition to, or in lieu of those made by any officer subordinate to him.

(5) In the event of such a person dying in hospital and the medical officer certifying that the person died from natural causes, a personal inquiry on the spot may be dispensed with, all that is required being a simple report detailing the facts and the cause of death, accompanied by the medical officer's certificate, provided that the medical officer is not of lower rank than an Assistant Surgeon.

(6) Sub-Rules (1) to (5) do not apply to prisoners dying after conviction or to those dying at the camp of Sessions Judge or Sub-Divisional Magistrate or District Magistrate.

(G. R. H. D., No. 2140/2, dated 18th July 1921)

218. Remand.-(1) There are two Sections in the Criminal Procedure Code which empower the Magistrate to grant time to the Police in connection with the investigation of a case. Under Section 57 of the Criminal Procedure Code, no Police Officer shall detain in custody a person arrested without warrant for a longer period than 24 hours. If the investigation cannot be completed within 24 hours, the Police must forward the accused to the nearest Judicial Magistrate empowered u/s 167(1) Criminal Procedure Code. After the term of expiry of remand under section 167 Criminal Procedure Code under which the total period is laid down as 15 days, the investigating officer has the further option to obtain a remand under Section 309 Criminal Procedure Code. But while under Section 167 Criminal Procedure Code, the detention, on remand, may be in any custody, viz., Police or Magisterial, whereas the custody under Section 309 Criminal Procedure Code must be Magisterial.

(2) When an investigation cannot be completed within 24 hours after the arrest of an accused person and the Police Station Officer, or the investigating officer not below the rank of a Sub-Inspector finds that in the interest of further investigation, further detention of the arrested person in custody is essential, he must forward the person in custody to a nearest Judicial Magistrate of the First Class or Judicial Magistrate of the Second Class specially empowered in this behalf by the High Court whether or not he has jurisdiction to try the case, with a report giving reasons for further remand. The report should be supported by copies of the case diaries.

The Magistrate will grant remand to Police custody, if he feels satisfied that there are reasonable grounds for doing so; otherwise he may grant remand to magisterial custody. The maximum period of remand in either case will be 15 days on the whole. If remand first granted for a shorter period is found insufficient to complete the investigation, further remand may be applied for and granted, the procedure mentioned above being repeated on each occasion. It must, however be noted that all such periods put together must not exceed 15 days (Section 167, Criminal Procedure Code).

(3) If during the period of remand to Police custody, the Police complete the investigation and find that there is no ground for sending up the accused to a Magistrate for inquiry or trial, it is not open to the Police to release him on bail under Section 169, Criminal Procedure Code. The proper course for them is to send the accused back to the Magistrate concerned or request him to release the accused on bail under Section 437, Criminal Procedure Code.

(4) If the investigation is too heavy or complicated to be finished within the period of 15 days a report under Section 170. Criminal Procedure Code, based on such evidence as has been collected should be sent to the Magistrate having jurisdiction to inquire into or try the case and he should be requested to postpone the hearing order to afford time for further investigation, the accused remaining in magisterial custody during the time so granted. The Magistrate may, if he thinks fit, examine the Police officer asking for a postponement and even any witnesses for the prosecution before granting postponement, which may be for not more than 15 days at a time and may be granted oftener than once. If necessary (Section 344, Criminal Procedure Code)

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(5) Neither the Judicial nor the Executive Magistrate can grant remand in respect of persons arrested under Section 151, Criminal Procedure Code and hence whatever action is proposed to be taken, that should be done promptly before the expiry of the period of twenty four hours.

(G. C., H. D. No. PRO-2358/90669-III, dated 14th April 1959)

(6) When an accused is under a judicial custody and when required to be arrested in another case, a report is required to be given to the Magistrate to treat the accused, as I arrested as per instructions contained in rule 182(2) of Police Manual Volume III. The accused can be handed over to the Police in the fresh case for the purpose of investigation in view of the powers of the Magistrate under Section 167(2) Criminal Procedure Code.

(I.G.P. 's Circular No. G/1909 dated 13th May 1966).

(7) If the Magistrate has refused to grant remand and if the order of the Magistrate is not considered just, the proper course for the Police would be to file an appeal or a revision application to the appropriate appellate, authority.

(I. G. P.'s Memo No. G/1909/64, dated 24th January 1964).

219. Steps to be taken in regard to an absconding accused person.-(1) If an accused person seems to be evading arrest, the investigating officer should make the best possible efforts through appropriate Police Stations to trace his whereabouts.

(2) The person's relations, friends and also the village Police should be instructed to give information of his whereabouts and warned against harboring him.

(3) If with all these efforts the accused cannot be found, a charge sheet should be sent to the appropriate Magistrate, showing the accused person's name as an absconder in red ink.

(4) The Magistrate should be requested to issue a warrant for the arrest of the accused.

(5) (a) If, after diligent efforts to execute the warrant, the accused person cannot be traced, evidence of Police officers associated with the efforts to effect the arrest should be led before the Magistrate to prove that the accused is purposely evading arrest, and the Magistrate requested to follow the procedure regarding the issue of a proclamation under Sections 82, 83 etc. of the Criminal Procedure Code.

(b) The commonest mistake appears to be the idea that proceedings under Sections 82 and 83, Criminal Procedure Code, are bound up with proceedings under Section 299, Criminal Procedure Code. The correct procedure would be that under Section 82 Criminal Procedure Code, any court may at any time issue a proclamation against the person for whose arrest the court has issued a warrant. All that is necessary is that the court should be satisfied that the person has absconded or is canceling himself so that such warrant can not be executed. Having done this, the court may further at any time order the attachment of any property-moveable or immoveable or both belonging to the proclaimed person.

(c) The period of thirty days mentioned in Section 82 Criminal Procedure Code is the period within which the absconder is called upon to surrender. It does not impose delay, in the issue of an attachment warrant under Section 83 Criminal Procedure Code.

(d) The Police should therefore apply for an ordinary warrant of arrest immediately when they are satisfied that an accused person has gone into hiding. Having got the warrant, the Police should make a real attempt to execute it. When they fail in executing the warrant, they can go to the court and ask for a proclamation order.

(e) The Police should be ready to lead the evidence of the Policemen who had attempted to execute the warrant.

(f) Immediately the proclamation has been duly made, the court should be moved to issue an attachment order.

(g) The investigating officer should take steps to prevent the improper alienation property by fictitious mortgage or sale. For this purpose, lists of such property should made as part of the investigation and attached with the case papers and the village Head-man concerned should be directed to report any attempt at alienation or removal pending the issue of attachment order. The lists of property should be got attested by competent witnesses and should be put into court with the application of an attachment order.

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(h) The Police should see that the issues of warrant and proclamation order are given the fullest publicity not only in the place from which the absconder has disappeared but in all his likely resorts.

(I. G. 's No. G/1925, dated 5th January 1960)

(6) A photograph, a descriptive roll and marks of identification of the accused person should be sent to the Deputy Inspector-General of Police Criminal Investigation Department, (Crime and Railways) for publication in the Gujarat Police Gazette.

(7) In suitable cases, the Superintendent of Police should arrange for the offer of a handsome reward being published in newspapers and the Police Gazette and in any other manner to induce people to help the Police in securing the accused person.

(8) The name of the accused person should be entered in the Register of Absconders maintained at the Police Station.

(9) Information should be given to the Finger Print Bureau that the accused is wanted in connection with the case concerned.

(10) In appropriate cases, a Magistrate should be requested to record evidence of witnesses, in the absence of the accused, under Section 299, Criminal Procedure Code.

(11) All the papers of the case and the articles and property attached should be care-fully preserved, so that they may be available when the accused, person is eventually arrested.

(12) (a) All the Superintendents of Police should send promptly special reports in regard to the absconders whose domicile is outside the Gujarat State, to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) in addition to the usual reports which are sent for publication in Gujarat Police Gazette as per Sub-Rule (6) above.

(I. G.'s NG. 6/34, dated 27th August 1958)

(b) With a view to avoid delay in the arrest of an absconder residing in another State, as far as possible, English translation of the reference should also be sent to the Police of the State concerned.

(I. G. P. 's No. G/1927/68, dated 7th October 1968)

(13) The Police should keep a watch over the persons acquitted by the lower Courts where the acquittal appears to the Police to be clearly unjustified and when there is an apprehension of the accused absconding. It will enable the Police officers to secure the attendance of the accused when the acquittal appeals are filed and notices are to be served on the accused.

(I. G. 's C. M. No. G/721, dated 4th October 1958)

SECTION VI-INVESTIGATION OF OFFENCES COMMITTED BY POLICE OFFICERS AND OTHER PUBLIC SERVANTS

220. Complaints against Police.-(1) When an individual, who is not personally aggrieved, brings to the notice of the Superintendent of Police the fact that complaints are current against a Police officer, it is the duty of the Superintendent of Police to ask such person to produce all the details in his possession and especially to disclose the names of the persons actually aggrieved.

(I. G. 's No.9, dated 4th April 1949)

(2) Whether or not further details are given the Superintendent of Police should consider whether there are sufficient grounds to hold a departmental enquiry.

(3) If, in the opinion of the Superintendent of Police, there is insufficient ground, he should decline to make an enquiry. On the other hand, if he decides to order an enquiry, he should see that the enquiry is made thoroughly and impartially. The inquiring officer must direct the enquiry as actively as if it were an investigation into a crime. He must decide for himself which Witnesses are to be examined and he should himself secure their attendance.

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(4) It is of the utmost importance that enquiry into grave charges against Police officers should not only be impartial and exhaustive but also acceptable as such by the persons aggrieved and the general public. From the Police point of view, it is equally important that charges should either be clearly disproved or clearly established, so that those who misconduct themselves and bring a bad name on the service should be removed. It is the Superintendent's duty to investigate vigorously all cases in which suspicion is aroused in regard to the honest dealings of their subordinates.

(5) (a) When complaints are received against any police officers or men, they should not be sent to them for enquiry. ,

(I. G. 's No. 6142, dated 19th August 1947)

(b) Whenever complaints are received for enquiry, such complaints should invariably be enquired into by an officer superior to the officer complained against and the officer making the enquiry should also call and hear the complainant to enable him to adduce any evidence or proof in support of his complaint.

(G.C., H.D. (Spl.), No. SB/I-AGT-2572/3467, dated 15th July 1972)

(6) It is essential that the trial of or enquiry into, such cases, either by the Magistracy or the Police; shall be conducted with the least possible delay, in order that the harassment of Police officers by means of criminal complaints may be reduced to a minimum.

(7) (a) Any strike against the alleged Police inaction is to be viewed with concern by the Commissioner of Police/Superintendents of Police, who should personally study the cause behind it, the genuineness of the grievances of the people against the Police and take prompt remedial measures.

(b) In the event of incorrect rumours, the Commissioner of Police/Superintendents of Police should explain the correct facts to the people through their representatives and even promptly issue hand-bills explaining the correct facts to the people.

(c) Instances of such strikes against the alleged Police inaction should be reported by signal to the Inspector-General of Police by the Commissioner of Police / Superintendents of Police mentioning briefly the grievances / allegations, the correct facts pertaining to the burning issue and the remedial steps being taken including to educate the people about the correct facts and the steps taken. The signal should be followed by a detailed report by post.

(I. G. P.'s Conf. Cir. No. 49/G/1927/72/43 , dated 5th June 1972)

221. Inquiries into serious misconduct on the part of the Police.-(I) (i) When complaint is made to the Police or a Magistrate of serious misconduct (i.e., the causing of grievous hurt, torture of a cruel nature, extortion and any other misconduct of a like nature which, subject to the guidance of the District Magistrate, the Police officers Magistrates concerned consider fit to be treated as serious) on the part of any Police officer or when such misconduct comes to the notice of the Police or of a Magistrate in the course of investigation or otherwise, immediate information shall be sent by the Police or Magistrate, as the case may be, to the District Magistrate and in Ahmedabad City to Commissioner of Police.

(ii) In any case of alleged serious misconduct of which complaint has been, direct to the Police or has been referred to the Police by a Magistrate for previous local investigation under Section 202, Criminal Procedure Code, the Superintendent or , Assistant or Deputy Superintendent of Police (in Ahmedabad City the Commissioner or a Deputy Commissioner of Police) shall, on receiving the information forthwith proceed to the scene of the alleged offence and shall, under the provision of Section 36 of the Criminal Procedure Code assume the position of investigating officer (Vide Rule 40 and Sub-Rule (5) of Rule 135 of Police Manual Volume III

(iii) When the Magistrate taking cognizance of a case of alleged serious misconduct by the Police is of opinion that the complainant has willfully made a false charge (Sec 182 or Section 211 of the Indian Penal Code) it is very desirable that he should lodge complaint against the complainant. The appellate Magistrate / Judge should also remember that under Section 195 (b) of the Criminal Procedure Code. they can lodge a complaint writing of an offence under Section 211 of the Indian Penal Code, if the offence was committed in or in relation to any court subordinate to their own.

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(2) (i) In cases in which serious misconduct as explained in clause (i) of Sub-Rule (1) above is imputed to any Police Officer by a Court, the following procedure will be followed: --

(a) In the case of a Magisterial Court, the Presiding Magistrate shall at once furnish the District Magistrate (in Ahmedabad City the Commissioner of Police) with a copy of the judgment, and in the case of a Sessions Court, the District Magistrate shall require the Court under para 6 (a) of circular No. 103 of the Criminal Manual issued by the High Court of Bombay, 1947, to send him a copy of the judgment.

(b) If the strictures have been passed by a Magisterial Court, or if the Sessions Court or the High Court, in passing strictures has not recorded an opinion that a special enquiry is necessary, the District Magistrate shall, if in his opinion there be sufficient evidence to warrant action of taking cognizance of any offence appearing to have been committed by the Police officer, he shall cause proceedings to be instituted in the Court. In Ahmedabad City, the Commissioner of Police shall if there be sufficient evidence to warrant such a course, cause proceedings to be instituted against the Police officer before a Magistrate. If the District Magistrate or the Commissioner of Police, as the

case may be, does not cause proceedings to be instituted against the Police officer or officers concerned, he shall record departmentally his reasons for not doing so.

(ii) If a Sessions Court or the High Court indicates that in its opinion a special enquiry is necessary with reference to the conduct of the Police in any case before it, whether misconduct imputed or suspected be of the kind referred to in Sub-Rule (1) above or not, the following directions shall be observed:-

(a) If the Court be a Court of Sessions, the District Magistrate shall call for a copy of the judgment as in clause (i) above.

(b) The District Magistrate or in Ahmedabad City the Commissioner of Police, shall, if in his opinion there be sufficient evidence to warrant such a course, take criminal proceedings in the manner indicated in clause (i) above.

(c) If the District Magistrate or the Commissioner of Police, as the case may be, does not consider the facts sufficient to warrant the immediate institution of criminal proceedings, he shall forthwith report the case to Government, who will direct a public enquiry to be held by a commission of two officers, of whom one must have had judicial experience and neither must belong to the Police Department.

(G.R.J.D. No. 3305, dated 2nd May 1914)

(iii) If any case falling under clause (i) or (ii) above is referred to the Police, the Superintendent or the Assistant or Deputy Superintendent of Police (in Ahmedabad City the Commissioner or a Deputy Commissioner) will proceed in the same manner as in clause (ii) of Sub-Rule (1) above.

222. Investigation of cases of corruption, black marketing etc.-(1) All officers should see that complaints regarding charges of corruption on the part of their subordinates are inquired into personally with care and without discouraging persons from bringing all available evidence.

(2) (i) All members of the public should be encouraged to bring to the notice of the Heads of Offices any cases of misconduct among the lower ranks of officials.

(ii) Utmost care should be taken before prosecutions are launched under Section 182. Indian Penal Code against persons from whom complaints of corruption have been received and in no case should such prosecutions be undertaken without the sanction of Government. This does not apply to any prosecution which may be launched by an officer in his judicial capacity as a Court. The Commissioner of Police / Superintendents wishing to undertake such prosecutions should address their reports to the Inspector-General of Police. The Superintendents of Police should endorse copies to the Range Deputy Inspector-General for information. The Inspector-General will take the necessary further action in the matter on receipt of these reports. If there are no cases of such prosecutions, the fact should be mentioned in a separate paragraph in the six monthly reports referred to in Rule 104.

(G. Rs. P. and S.D., No. 1581/34, dated 25th August 1937 and 9th October 1937, G.C.P. and S.D.No. 1581/34, dated 21st October 1937, I.G. 's No. 5229. dated 2nd April 1938, 7th April 1938 and 10th November 1938 and G. C. P. and S.D. No. 1581/34, dated 29th September 1939).

(iii) The responsibility, however, for the conduct and discipline of the Government servants under them rests entirely on the respective Heads of Offices and they cannot and should not on any account share with non-officials the duty of initiation, conduct or control of departmental inquiries into cases of misconduct on the part of their subordinates.

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Departmental inquiries are strictly official in character and the participation in any such inquiry, except as witnesses, of non-officials must be entirely at the discretion of the officer-in-charge of the inquiry and in accordance with the prescribed procedure only. Heads of Departments should bear this principle in mind and make sure of its observance by the Heads of Offices under them. While members of the Legislature as other gentlemen interested in the administration are to be encouraged to bring complaints that have come to their notice direct to the notice of the district officers competent under the rules and the law to deal with these complaints, these gentlemen should be made to understand quite clearly that it is the function only of the Government officers concerned to conduct any investigation required.

(G.C.M.P. and S.D., No. 3760/34, dated 20th May, 1940)

(3) (a) Every Police officer receiving information about bribery, black marketing, corruption etc. from members of the public should take immediate action on the information. The identity of any persons who give secret information to the Police should be kept a close secret and that their names are not disclosed except in accordance with instructions laid down in Rule 363 of Bombay Police Manual Volume I.

(G. C., H. D., No. 207/5-1, dated 26th July 1946 and I. G.'s S. O. C., No. 55, dated 5th April 1954)

(b) Where applications received from the Government, Inspector-General of Police, etc. are in connection with the information about the activities of anti-social elements, the Commissioner of Police/Superintendents of Police should not forward such applications as well as the letters of the Government/Inspector-General to the officer to whom the enquiry is entrusted but should retain with him these papers and send out only a separate memo containing the gist of information or complaint. Any leakage of information relating to the identity of the informant will be the responsibility of the Commissioner of Police / Superintendents of Police.

(c) Ensuring security of the people who report to the Police or Government is not only the responsibility of the Police but also a necessity which is in the interest of the Police administration as well.

(I. G. P. 's No. G/1926, dated 31st May, 1963)

(4) Superintendents should note the necessity of making inquiries into all complaints of this nature in all important cases. On others they should satisfy themselves that the inquiry is made promptly thoroughly and fairly by a Sub-Divisional Officer or other officer according to circumstances. In general, inquiries into serious complaint of corruption should not be entrusted to subordinate officers.

(5) Under Section 6(2) (b) of the Bombay Police Act, 1951 the Director of Anti. Corruption Bureau should exercise the powers under the Act in the matter of (a) taking disciplinary action against persons serving under him and (b) authorize the officers to take up investigation of cases detected by them after their registration at Police Station. Heads of Departments should see that sanction for prosecution of the Government servants involved in cases of corruption is accorded by the sanctioning authorities immediately on receipt of a communication from the Police officers investigating the cases. The Criminal Law Amendment Act created certain new offences and Section 6 provided for the appointment of Special Judges and Section 7 made certain offences solely tribal by these Special Judge and among the offences created by Amendment Act are the offences which fall under Section 5(2) of the Prevention of Corruption Act, 1957. It is not advisable to use any Magistrate for witnessing trap cases.

(G. L., H. D., No. 207/6/C-3801-D, dated 21st April, 1956 and G.C., H. D., No. MIS 1253/C, 4653-B, dated 22nd March, 1955)

(6) (a) When the Anti-Corruption Bureau requests for sanction for prosecution, departments concerned should accord such sanction as early as possible and latest with two months.

(b) The Anti-Corruption Bureau should send draft sanction order along with report to the departments concerned.

(c) On receipt of sanction the investigation should completed and the charge-sheet should be sent up within one month.

(G. C., H. D. No. LRV-3268-78-H, dated 10th January, 1968)

(7) (a) With a view to avoid delay in cases of corruption the Handwriting Expert should give first priority to the exhibits of the cases against Government servants. Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways) shall ensure that cases are disposed of on the first priority basis.

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(b) The investigating officers should not rest contented after sending the exhibits to the Experts but the concerned Experts should be periodically reminded by the investigating officer and the case charge-sheeted as expeditiously as possible.

(c) When the case is charge-sheeted in the court, the concerned Assistant Public Prosecutor is equally responsible to see that unnecessary adjournments are not sought and are objected to so that the case is decided without loss of time.

SECTION VII-ACCIDENTAL DEATHS AND RAILWAY AND OTHER ACCIDENTS

223. Inquiries into accidental or suspicious deaths.-(1) All Police officers of and above the rank of a Sub-Inspector and all Head Constables incharge of Police Out-posts in the State, are empowered to perform the duties referred to in Sub-Section (1) to (3) of Section 174, Criminal Procedure Code, in the matter of holding inquests. It is necessary that the Police should draw up the Inquest Report immediately after they get intimation of accidental or suspicious death.

(G. R., J. D., No. 3595, dated 26th June 1909 and I. G. 's C. M., No. 219-I, dated 25th April 1955 and G. N. H., H & C. S. D. No. GG/534/BVP-1063/58569-D, dated 17th August, 1965).

(2) (a) The investigation to be made under Section 174, Criminal Procedure Code, should consist of a close and minute examination of the dead body, an examination of persons acquainted with the facts and circumstances of the case and an inspection of the spot where the body is lying and of its surroundings.

(b) Statements made to a Police Officer in the course of an investigation under Section 174, Criminal Procedure Code are not to be signed by the witnesses making the statements.

(I. G.'s C. M., No. 5301, dated 13th November 1954)

(3) (a) All cases which prima facie appear to be purely accident cases should be enquired into as such. Head Constables can be deputed to make necessary enquiries in such cases.

(b) In all other cases of unnatural deaths the investigating officer should go deep to find out the cause of death. An offence of murder should immediately be registered when there is slightest suspicion to that effect. All cases of suspicious death should as far as possible, be personally investigated by the Police Sub-Inspectors. The case should be entrusted to Head Constables only if the Police Sub-Inspectors are not available owing to other important engagements. Investigation made by Head Constables should be always verified by the Sub-Inspector.

(4) (a) Identification of the dead body.-The most important thing in such an investigation is the identification of the body which should be done by assembling the villagers, relations and other persons. In case the body is not identified, a photograph, finger impressions, a descriptive roll and marks of identification should be sent to the Deputy Inspector--General of Police, Criminal Investigation Department, (Crime and Railways) for publication in the Gujarat Police Gazette and the information circulated in neighboring Police Stations.. Clothes and other articles on the body should be carefully preserved for future identification.

(b) Photograph.-In the preparation and publication of the photograph the following instructions should be observed:-

(i) When a dead body remains unidentified, the Police Station Officer concerned should have it photographed and necessary publicity should be given in the press through the local newspapers. In the event of the person being suspected to belong to another part of the country, publicity should be given through leading English news- papers. A copy of such notice should be put on the notice board of the concerned Police Station of the area in which such an unidentified dead body is found. If the newspaper authorities have no space to publish it as a news item, it should be released even by way of an advertisement. :

(I. G. P.'s Cir. No. G/1927/Misc/63, dated 13th May, 1963)

(ii) Photographs of unidentified dead bodies should not be taken if they are too mutilated or too decomposed to make identification possible.

(iii) Ordinarily dead bodies should be held up in a sitting position and the head and shoulders only should be photographed.

(iv) As a rule the most important portion of the body for identification purposes is the face and before the photograph (which should be of quarter size) is taken. The face should invariably be washed and cleaned in order to remove any blood stains etc. that may be present.

(v) In cases where special reasons exist such as peculiar fashion or dress, some deformity of the body or limbs etc. full length photographs (which should be of cabine1 size) may be taken.

(vi) Revolting photographs of dead and decomposed bodies, which are obviously useless for identification purposes, should not be taken and sent for publication. except on the personal orders of the Superintendent or Sub-Divisional Officer, who should see that only those photographs are sent for publication which are likely to be of real advantage.

(vii) In cases where photographs have been taken but are not sent for publication in the Gujarat Police Gazette a remark should be made in the notice sent for publication that the photograph is on record in the Superintendent's or Sub-Inspector's office and is available for inspection.

(I.G. 's No. 21, dated 11th June 1936)

(5) *Finger Impressions*.-Except when decomposition has set in to such an extent as completely to destroy the surface of the skin, finger impressions of an unidentified dead body should be taken in accordance with the following instructions:-

(i) The fingers of the corpse should be carefully cleaned of all dirt etc. and all moisture removed. If available, a piece of clean cloth soaked in turpentine should be used for the cleaning process.

(ii) The finger print slab should be prepared in the ordinary way and the roller well, covered with a thin film of ink.

(iii) The inked roller should be rolled gently on the fingers between the edges of th nails so that the tip of the finger as far as the crease of the first joint is fully cover with a thin film of ink.

(iv) The finger print slip should then be folded at the line indicated thereon and thin piece of wood or stiff cardboard placed behind and within the folded slip.

(v) The finger print slip thus stiffened should be placed against the finger at right angle to the other side of the nail, care being taken to keep constant contact with the finger and to avoid smudging the print.

(vi) Great care should be taken to see that the impressions are taken in the proper spaces in the form.

(vii) Instructions as regards the making of finger impression slips of unidentified dead bodies for search as contained in the State Finger Print Bureau Manual should also be observed.

(viii) If the unidentified body is that of a dacoit robber or a thief killed during operations, his finger impressions should invariably be taken and sent to the Finger Print Bureau for trace.

(6) *Descriptive roll and marks of identification*.-As regards descriptive roll and mar of identification, instructions in Rule 205(3) should be observed.

(7) *Inquests*.-1n holding inquests the following hints may prove useful:-

(i) The presence of the accused or suspect, if available, should be secured.

(ii) The dead body should not be allowed to be touched by any body until the panch have arrived and the report (panchnama) prepared.

(iii) Bodies found in wells should be taken out those that have been buried show be exhumed, while those which are found hanging should be lowered down, in presence of the panch.

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(iv) A minute inspection should be made of every part of the body. All wounds fractures bruises contusions scalds burns and any other marks on it should be noted with the following details :-

- (a) The position and the condition of the corpse should be fully described.
- (b) The details of wearing apparel colour of hair or other peculiar or characteristic marks ornaments documents or any other articles found on it should be mentioned.
- (c) The seats of wounds their number nature shape and dimensions. Whether bleeding or not the direction from which the manner in which and the probable weapons with which they were caused and the absence or presence of ants or maggots on the body should be specified.
- (d) In cases of poisoning, hanging, strangulation drowning etc. special mention should be made of the symptoms and other post-mortem appearance and the odour etc. of the poison, e.g., opium.
- (e) The spot where the body might be lying and all its surroundings should carefully be inspected to find an indication to the cause of death.
- (f) The situation of the place where the body has been found should be examined to ascertain whether death occurred there or somewhere else. In the case of a house or room a mention should be made as to whether it was closed from within or without.
- (g) The circumstances in which the body was found, whether suspended from a tree or roof of a house floating in water or placed on the railway line or run over by train etc. should be mentioned.
- (h) The details and description of the weapons bullets and their marks, poisons, clothes, shoes and any other articles and their identity, the apparent means employed to cause death and any marks or engraving on it which could establish the ownership should be carefully noted.
- (i) The existence (or non-existence in certain cases) of any marks of struggle, blood, footprints or finger impressions should be observed.
- (j) The stage or Rigour Mortis (stiffening) and the post-mortem lividity (staining) should be minutely observed and noted.
- (v) Map on the scene.-A map of the scene of occurrence should always be prepared and all the necessary points and circumstances relating to the incidents of the case should be accurately noted in it.
- (vi) A detailed report should be drawn up in Form C.P.C. 23, supplemented, if necessary, by blank paper.
- (vii) The report should contain only those matters which are covered by Section 174, Criminal Procedure Code. In it, the panch can express their opinion as to the manner in which, and the weapon or instrument etc. with which, the wounds appear to have been caused.
- (8) Post-mortem examination.-When there is any doubt as to the cause of death, the body should be sent for post-mortem examination (see Rule 144) with a copy of the inquest report and form P. M. 35 duly filled in.

(I. G. 's. No. 46. dated 13th August 1928)

(9) *Death in Railway Carriages*.-In cases of sudden death in railway carriages, the Civil Surgeon's certificate and the inquest report if any, should be sent to the Magistrate, who after being satisfied regarding them, should handover copies to the railway authorities.

(10) (a) (i) After the inquest is over, if there is no suspicion as to the cause of death the body if claimed, should be handed over to the relatives of the deceased for disposal. In case where the dead body is not claimed it will be the duty of the Municipality or the Gram Panchayat to dispose of such body found in their limits as per Section 87 (c) (3) of the Gujarat Municipalities Act, 1961 or item 'G' of the Statement under Section 88 of the Gujarat Panchayats Act, 1963 respectively.

(I. G. P. 's No. G/1927/66, dated 10th February 1966)

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(ii) If any of the approved institutions do not require the dead body for the anatomical examination or dissection, the authorised officer of the place shall dispose of the dead body or cause it to be disposed of by cremation, burial or any other recognized method of disposal of dead bodies in accordance with the custom of the community to which the deceased person belonged. Where an unclaimed dead body is handed over to the authorities in charge of an approved institution under section 5 of the Bombay Anatomical Act, for the purpose of conducting anatomical examination and dissection, the authorities in charge of such institution should, after use of the dead body for the said purpose, arrange to dispose of the body or its remnants in such manner as they deem fit.

(G.R.J.D., No. 3061, dated 22nd May 1907, G.N.L.S. and P.H.D. No. 5337/33, dated 10th July 1951 and I. G. 's No. 7151, dated 18th .March 1952)

(b) With a view to facilitate quick disposal of dead bodies in the mofussil, the highest ranking Police officer not below the rank of Police Sub-Inspector permanently stationed in the locality, may issue permission for the transport of dead bodies outside the jurisdiction of his station, in Form No. 14 in Appendix I. As regards Ahmedabad City the Police Inspector of the Station concerned may issue such permit after the party has produced a letter from the Municipal Health Officer indicating "No objection to the removal of the body outside municipal limits".

(G. R., H. D. No. 4173/6, dated 28th August 1951)

(11) (i) *Disinter a body.*-If it becomes necessary to disinter a body which has been formally buried, the sooner it is done the better. The order of a competent Magistrate should be obtained before taking such a step.

(ii) No such order is, however, required if the body has been merely hidden or concealed under ground or buried without any ceremony.

(iii) Where a Magistrate's permission has been applied for the place where the body has been buried should be guarded until the permission is received.

(iv) The body should be disinterred in the presence of the panch.

(v) The attendance of a medical officer should, if possible, be secured.

(vi) The grave should be got identified and an attempt should be made to get the body identified after it has been exhumed.

(vii) Disinfectants may be sprinkled round the body, but not on the body itself.

(viii) The odour should be marked and stage of purification noted.

(ix) The skull and bones should be carefully examined for marks of injury.

(x) If mineral poisoning is suspected, the bones as well as the earth above and below the body should be sent for examination by the Chemical Analyser.

(xi) The dates of burial and exhumation should be noted.

(12) If the investigation made in accordance with the above Sub-Rules discloses any offence, the appropriate procedure for its registration and investigation should be followed.

(13) (i) In case of suicides Police investigation should be more elaborate and conducted in a spirit of discovering the cause of the social evil.

(ii) A quarterly statement giving analysis be sent to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways), Ahmedabad in the following month.

(I. G. P.'s Cir. No. G/1927/72/5877, dated 15th February 1972)

(iii) The Police investigation should invariably reveal details of family relations, the economic conditions of the family and the physical and mental condition of the victim.

(G. L. H. D. No. C-II-1458/60021-VIII, date~22nd August 1958)

(14) Even dismembered limbs strewn here and there may help identification by medico-legal means. Limbs and adhering tissues should be carefully collected and inquest held separately for each limb and one more inquest collectively, after putting all together, suspected to be of the same person. It is better always to take photographs of all the places

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(15) The provision of Section 174 Criminal Procedure Code is to ascertain the cause of death with a view to detecting whether any crime has been committed. Therefore When the Police sends a report to the District Magistrate/Sub-Divisional Magistrate under sub- section (2) of the Section the Magistrate may (i) either decide that the death was accidental (or natural) and therefore no further enquiry by the Police be necessary or (ii) the Magistrate or the Sub-Divisional Magistrate concerned may decide that the death was not by natural cause or accidental in which cases he would suspect either suicide or homicide. He would therefore require the Police to cause further enquiries. If the Magistrate arrives at the first mentioned conclusion, the papers of investigation should be recorded in his office. If the Magistrate comes to the second conclusion he would naturally return the papers of investigation to the Police with orders for further investigation.

(G.L., H. D. No. MIS-1170-32172-D, dated 1st October 1971)

224. Inquiries regarding dead bodies and carcasses found in railway limits.-(1) (a) In the case of dead bodies found within railway limits, investigation into the circumstances regarding the cause of death should be taken up by the chief Railway Police authority present; but when it is not probable that some one of rank above that of a Constable in the Railway Police will arrive at the spot in time intimation should be sent to the nearest District Police Station at once.

(b) The responsibility for the custody of such corpses at all stages until final disposal must rest with the Railway Police. After the conclusion of the necessary investigation or inquiry, if relatives or friends willing to dispose of the corpse cannot be found it should be disposed of on the lines indicated in Sub-Rule (10) of Rule 223.

(G. R. J. D. No. 4251, dated 25th June 1918)

(2) Property found with the dead body should be dealt with as other unclaimed property under Sections 82 and 83 of the Bombay Police Act, when it has served any purposes to which it can be applied as evidence.

(3) The Railway Police will deal with the carcasses of cattle found on the line precisely as they would deal with other unclaimed property.

(4) The proceeds of the hides of animals killed on railway lines and of all unclaimed property found there should be credited to Government.

(G. R. P. D. No. 4441, dated 21st June 1901)

225. Investigation of railway accidents.-(1) The Railway Police make an investigation into the causes which led to any accident occurring in the course of working a railway and shall do so-

(a) Whenever any such accident is attended with loss of human life or grievous hurt as defined in the Indian Penal Code, or with serious injury to property or has prima facie been due to any criminal act or omission or

(b) Whenever the District Magistrate or the Magistrate appointed under Rule 22 , of the Rules sanctioned by the Central Government in their Railway Department (Railway Board) Notification No. 1926-T, dated the 19th March 1930 (vide Bombay Government Gazette, Part I. dated the 3rd April 1930, pp. 613-618) has given a direction under clause (c) of that Rule; provided that no such investigation shall be made when-an enquiry has been commenced or ordered under clause (a) or clause (b) of that Rule.

(2) The Railway Police shall report, immediately to the nearest station master or, where there is no station master to the Railway servant-in-charge of the section of the Railway on which the accident has occurred, every accident occurring in the course of working a railway which comes to their notice and is attended with loss of human life or with grievous hurt as defined in the Indian Penal Code or with serious injury to property or which has prima facie been due to any criminal act or omission.

(3) Whenever an investigation is to be made by the Railway Police.-

(a) in a case in which an accident is attended with loss of human life or with grievous hurt as defined in the Indian Penal Code or with serious injury to property or

(b) in pursuance of a direction given under Rule 22, clause' (c) referred to in Sub- Rule (1) of this Rule,

the investigation shall be conducted by the officer-in-charge of the Railway Police or, if that officer should be unable to conduct the investigation himself, then by an officer to be deputed by him.

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(4) An officer deputed under Sub-Rule (3) shall ordinarily be the senior officer available and shall, whenever possible, be Superior Gazetted Officer, and shall in no case be of rank lower than that of Inspector, provided that the investigation may be carried out by an officer in charge of a Police Station.-

(i) in such a case as is referred to in clause (a) of Sub-Rule (3), unless loss of life or grievous hurt has been caused to more persons than one or injury to property has been caused to a value exceeding Rs. 20,000 or there is reason to suspect that any servant of the railway has been guilty of neglect or rules, or

(ii) in the case referred to in clause (b) of the Sub-Rule (3), if the District Magistrate so directs.

(G. R., H. D. No. 3831, dated 19th November 1923)

(5) The officer, who is to conduct an investigation in pursuance of Sub-Rule (3) or (4) above shall proceed without delay to the scene of the accident and conduct the investigation there, and shall at once advise the General Manager of the railway and the Traffic officer of the district by telegraph of the date and hour at which the investigation will commence so that, if possible, the presence of a railway official may be arranged for, to watch the proceedings and to aid the officer making the investigation. The absence of a railway official must not, however, be allowed to delay the investigation, which should be made as soon as possible after the accident has taken place.

(6) In every case to which Sub-Rule (3) or (4) applies, immediate information shall be given by the Railway Police to the District Police, who, if so required, shall afford all necessary assistance, and shall, if occasion arises, carry the investigation beyond the limits of the railway premises. But the Railway Police are primarily entrusted with the duty of carrying on the investigation within such limits.

(7) Subject to any provisions elsewhere contained in this Rule, the further prosecution of the case, on the conclusion of the Police investigation, shall rest with the Railway Police.

(8) The result of every Police investigation shall be reported at once to the Magistrate of the District, or other officer appointed in this behalf by the State Government, to the General Manager of the railway or other officer appointed by him and to the Government Inspector.

(9) Where there are no Railway Police, the duties imposed by Sub-rules (1) to (8) above on the Railway Police or on the officer-in-charge of the Railway Police shall be discharged by the District Police or by the Superintendent of Police of the district, as the case may be.

(G. C., J.D. No. 3435, dated 3rd May 1919 and G.R.H.D., No. 3831, dated 7th June 1923 and; 18th January 1926).

(10) Rules regarding the notice of accidents under Section 84 of the Indian Railways Act, 1890, and the duties of railway servants, Government Inspectors and Magistrates on the occurrence of accidents in the course of working a railway will be found in the Central Government Notification No. 1926-T, dated the 19th March 1930, published at pages 613. 618 of Part I of the Bombay Government Gazette, dated the 3rd April 1930.

(G.R., H.D. No. 3831, dated 14th May 1930)

(11) For stoppage of trains at non-stopping stations in special and urgent cases, see Rule 107(1).

(12) A copy of the finding of the Government Inspector, Railways, as per his final report on any accident inquired into by him will be sent to the Superintendent of Police. who should see that intimation regarding the decision as to whether or not Police desires to prosecute the persons responsible for Railway accidents is sent to the General Manager immediately on receipt of the report of the Inspector of Railways so as to enable him to communicate the decision to the Railway Board within the prescribed time limit.

(I. G. 's C. M., No. G/2904-II, dated 4th June 1958)

(13) Hints which may help the investigating officer in determining sabotage are follows;-

(1) *Site of accident and time of occurrence.*-(a) secluded area at or near a gradient curve, bridge or culvert, availability of covers for the saboteurs.

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(b) Height of embankment at the sight.

(c) Time of accident.

(2) *Open fish-plates.*-(a) He must determine whether it happened before or after the accident and differentiate between bolts opened by hand& and machine from those torn off as a result of accident. Threads of bolts and nuts found at the scene will help enormously in coming to conclusions.

(b) *Displaced rails.*-(i) He should examine screw holes and threads and see whether they are torn or intact.

(ii) He should see whether rail seats are crushed.

(c) Last rail intact at the point of suspected fractures.-

(i) Existence of burr is highly significant against sabotage,

(ii) Rounding off supports sabotage strongly.

(iii) Position of wheels of derailed wagons is a matter of great importance and should be examined carefully as to whether the position of displaced rails could have been possible after the accident.

(iv) He should carefully prepare a map of the sight of accident if railway plan- drawers are used he should carefully check each item shown on the map.

(v) Determination of speed at the time of accident-

(a) In case of through trains, the time of passing of previous station and the exact time of occurrence may give the possible, and likely speed of the train at accident.

(b) If train had stopped at previous station, the time of departure, the distance at which accident occurred and the time of accident, if known may lead to very approximate calculations of the speed of the train.

(vi) Breaking distance, vacuum brakes, reaction time, visibility, weather condition and the depth of water by the side of embankment should be carefully noted as it will affect decisions.

(vii) It is extremely necessary to check engine tools and gangway man's tools.

(viii) He should check the movements of suspicious characters and of the known saboteurs.

(ix) If track patrolling is in vogue in the area, he should ascertain at what time they passed at the spot of accident.

(x) He should also verify whether other trains passed shortly before the accident and if so, their drivers and guards should be questioned. Station records of both stations between which accident occurred should be seen immediately to prevent any fudging.

(xi) He should note whether the victim train was carrying any bullions, currency, etc.

(xii) He should take the photographs of the sight of the accident, from various angles and of various materials concerned. He should also make use of scientific aids for tools marks, finger prints (latent), particles of exploded material, if bomb used etc.

(14) *Preservation of clues.*-(a) In the case of an accident, the rails, sleepers and fastenings-whether serviceable or otherwise, which bear evidence oh wheel marks (especially between the points of mount and drop) shall be carefully preserved for inspection by the Additional Commissioner of Railways Safety or by a senior officer or for a later reconstruction of the scene or for production before a court, even though the Magistrate or the Police may have inspected the scene and investigated the cause of the accident and photographs serially marked in sequence to facilitate reconstruction of scene.

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(b) Any material involved in an accident and which is likely to be required as an exhibit must be set apart as such and must on no account be utilised to repair the line. The Police investigating officer may mark each and every piece of evidence or exhibit, make out a list of them and take steps to preserve them.

(c) It should be ensured that any finger-prints or foot-prints observed at the site are not obliterated. The indications of signals shall be observed and carefully recorded for future reference.

(d) The aforesaid duties shall devolve on the officer or Inspector first reaching the site of the accidents. The officer-in-charge of restoration of through running shall be responsible to ensure that all evidence has been correctly collected and preserved.

(Para 1406 of the Indian Railway Ways and Works Manual)

(15) (a) Theft of track materials like tie bars, etc., resulting into accident and willful obstruction and tampering with track from criminal or political motive for looting of trains or causing sabotage are some of the causes of track tampering. As regards thefts the railway material is generally converted into agricultural implements by blacksmiths. The Police should promptly conduct surprise raids on shops of village blacksmiths. As regards looting of trains and acts of sabotage timely intelligence should be collected and suspects rounded up and security vigilance and patrolling introduced.

(b) In case anonymous threatening letters are recovered, thorough enquiries should be made amongst the villages, which may give clue to bring the offenders to book.

(I. G. 's No. G/1927/W. R./64, dated 15th July 1965)

226. Rescue, relief and restoration of traffic operations in case of railway accidents.-

(1) The Police officer investigating the case should within a reasonable period of his inspection and preparation of sketches etc., grant 'permission for laying diversion to bring cranes and removal of wreckage. With a view to save time spent in inspection of the scene and when recording in the panchnama of all details photographers should be attached with the investigation team and should be utilised to take photographs of the scene. Likely clues and evidence which may need to be preserved should be photo recorded and that would help and curtail the time spent in the conventional way of preparation of record of the scene and clues there.

(2) Where there is delay in arrival of civil or Police officials at the place of accident, the Police should not object to the railway authorities initiating immediate rescue operations, After all, lives must be saved and pain relieved even if the Police investigation suffers to some extent. The senior-most railway officer present should have powers and discretion to jack up any portion or a coach or shift any property to the minimum extent necessary after noting its original position on a sketch and proceed to extricate human-beings trapped under the debris. However restoration of normal traffic should not be permitted by a railway official without consulting the local Police.

(I. G.'s No, G/1947/Rly./64 dated 17th April 1964 and No. G/1927/72/1069, dated 16th September 1972)

227. Inquiry into street accidents.-(I) It is the duty of the Police to regulate traffic in streets and when therefore, any accident in connection with street traffic takes place, the Police must inquire into the circumstances under which the accident took place with a view to discover as to whether any person's negligence or recklessness resulted in the occurrence.

(2) The Police officer making the inquiry into the accident should note-

(a) the names and addresses of the bystanders who witnessed it,

(b) the width of the road and the condition of the surface and

(c) in case a vehicle was involved in the occurrence, the side of the road on which, the driver was travelling prior to the incident and the direction in which he was going the signal which driver gave of his approach the lights which the vehicle was carrying, if it was after dark what side of the road the parties concerned were on, the number and description of the vehicle and the damage caused to any property.

(3) If the accident is attended with injury to any person the Police officer should act in accordance with the instructions given in Rule 141. If any animal has been injured, the same should be sent to the nearest veterinary dispensary for examination and treatment,

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(4) In cases where an injured animal is sent to a veterinary dispensary, the Police officer concerned should, if the owner of the animal disowns interest in it, obtain sanction of the District Magistrate for the animal to be sold, destroyed or otherwise disposed of, e.g., sent to a Panjrapole, as soon as the purpose for which the animal was referred to the veterinary dispensary is served.

(G. R., H. D., No. 6273/4, dated 6th March 1943)

228. Incidents of common interest to Military and Civil Departments.-In all cases in which a Court of Inquiry is set up to inquire into an incident in which both military and civilian Government personnel are involved or in which both military and civilian Government Departments obviously have an interest (e.g. an accident which has involved loss of life or injury to civilian Government personnel or damage to Government-property controlled by a civilian Government Department), the officer who orders the assembly of the Court will ensure that a precise of the case with a list of relevant witnesses is forwarded to the civil authorities concerned to enable them to institute a departmental inquiry, if they desire. Both the authorities should hold their inquiries in their own way independently of each other. The findings arrived at may then be exchanged and such action as may be deemed necessary, as a result of those findings, may be taken by the two authorities. Both the authorities should co-operate in the fullest possible manner with a view to the issue of joint orders to prevent the recurrence of similar incidents.

(G.E., H.D., No. 9489/4-D, dated 14th March 1946, and I.G. 's No. 6063, dated 29th March 1946)

SECTION VIII.-COMPLETION OF INVESTIGATION AND FINAL DISPOSAL

229. Completion of investigation.-(1) Every investigation must be completed with-out unnecessary delay.

(2) It is the duty of Sub-Divisional Police Officers to see that investigations are promptly and vigorously carried out by officers-in-charge of Police Stations. In no case should an officer-in-charge of a Police Station fail to make a final report within fourteen days of submitting the first information report in a case, without satisfying the Sub-Divisional Officer that there is sufficient cause for further delay; and in no case must the completion of the investigation be delayed beyond one month from

the date of the first information report. A supplementary report may be afterwards sent in, when necessary.

(3) Section 97 of the Bombay Police Act enables a Superintendent or Assistant or Deputy Superintendent, in any case especially requiring it, to take up the duty of a Police Station Officer or to assign it to another competent officer (vide Sub-Rule (1) of Rule 40).

(4) Assistant and Deputy Superintendents of Police should carefully go through the papers and exercise control and supervision, through their orders, over the progress of the enquiries by obtaining explanation where such seems necessary giving orders calculated to further the investigation and to elucidate points, and generally stimulating the investigation. Investigating officers should, when applying for extension of time, for investigation, be required to show concisely in their application what they have attempted and what they have achieved during the first 14 days of their investigation or the extension previous to the one applied for, as the case may be, and for the same period to quote the diaries in which their movement and the results of their enquiries have been recorded. Anything in the shape of a stereotyped form of application for extensions or of orders granting extensions should be avoided. All reports for extensions should be made on ordinary blank paper. Each successive report must be accompanied by the one previous and the order regarding the grant of extension endorsed thereon. The whole correspondence regarding extensions should accompany the final report on the case. The investigating officers should prepare case diary of the charge-sheet on the date the charge-sheet reaches the court and not on the date on which the charge-sheet is prepared. The investigating officers should ask for extensions up to the date the charge-sheet reaches the court.

(I.G. 's No. C-725, dated 7th February 1908, No. C-976, dated 20th March 1908 & Cir. No. G/1909-14386, dated 24th April 1972)

(5) The maximum period for which an investigation may, for special reasons, be permitted to remain pending is six months from the date of the first information report. At the end of this period the final report must be submitted to the Magistrate for final orders.

(6) In a Magisterial case, extensions to complete the investigation should be obtained from the Magistrate concerned.

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(7) When any subordinate Police officer has made any investigation he shall report, result of such investigation to the officer-in-charge of the Police Station.

(8) Investigation in cases of misappropriation of Government money should always thorough so that the accused will not find any loophole to shift his responsibility on hers. Evidence to show that the person involved was present on the spot on the dates of alleged misappropriation should be invariably collected before sending the charge-sheet similarly if the evidence discloses that two or more persons are responsible for the offence. I of them should be charge-sheeted leaving it to the Court to fix individual responsibility.

(I. G. 's C. M., No. G/151, 'dated 13th December 1958)

(9) The investigation of cases of misappropriation of money in the Co-operative Societies and Gram Panchayats should be completed without unnecessary delay. If necessary, e investigating officers may contact the concerned authorities personally and get the required information.

(I. G. P.'s Conf. Cirs. No. G/1911 dated 6th June 1969 and No. G/1927/73/2701, dated 23rd July 1973).

(10) Investigation of cases of violence should be carried out promptly so that arrests anti-social elements be quickened resulting in reducing the incidence of violence.

(I.G.P. 's Cir. No. G/1927/73/2337 dated 22nd June 1973)

(11) (i) Investigation in respect of offences against Government servants should be carried out promptly so that consequent infractions expenditure in payment of subsistence allowance to the suspended Government servants can be reduced. The State Examiner of Questioned Documents should give first priority to the exhibits of cases against Government servants. The investigating officers should not rest content after sending the exhibits to the Experts but the concerned. Expert

should be periodically reminded till the opinion is received and the case be charge-sheeted, as expeditiously as possible.

(ii) The Assistant Public Prosecutors should see that unnecessary adjournments are not sought and are objected to so that the case gets decided without loss of time.

(I. G. P.'s Cir. No. G/1927/CBI/70, dated 13th October 1970)

(12) Investigation of cases of accused in jail should be carried out expeditiously so that they may not have to remain in jail custody for long periods.

(I. G. P.'s Conf. Cir. No. G/1927/72/1269, dated 30th September 1972)

(13) The investigating officers should not call for the records of the Co-operative Marketing Societies at the Police Stations for the purpose of investigation but the investigating officers should go to the concerned offices, see the records and obtain necessary records or information which is necessary for the purpose of investigation.

(I. G. P.'s No. G/1927/Food/66, dated 7th December 1966)

230. Reports to be submitted under section 173 of the Criminal Procedure Code on completion of investigation.-(I) Section 173 of the Criminal Procedure Code is a general provision relating to both Sections 169 and 170 of the Criminal Procedure Code. It lays down that a report by the Police officer incharge of the Police Station shall be put up when the investigation is complete and it also gives directions about the nature of the report to be put up.

(2) It is for the investigating officer or the officer-in-charge of the Police Station to decide whether a final report or a charge-sheet should be submitted. Accordingly, it would appear that when the Police officer has submitted final report thinking that the case has not been proved the Magistrate empowered to take cognizance has no power to direct investigating officer to submit a charge-sheet; and similarly when the investigating officer submits a charge-sheet, the Magistrate has no power to direct him to submit a final report.

(3) The Magistrate is not bound to accept the opinion of the Police and to issue any summary as asked for by the Police. If in the opinion of the Magistrate, the facts set out in the final report constitute an offence and having regard to the final report and the Police papers, there is a case for placing the accused on trial, the Magistrate can take cognizance of the offence under Section 190(1) (b) of the Criminal Procedure Code, notwithstanding the contrary opinion of the Police expressed in the final report.

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(4) If the Magistrate, considering a final report, finds that the investigation is unsatisfactory or incomplete or there is scope for further investigation, he may decline to issue a summary and order further investigation generally or any specific directions under Section 156 (3) of the Criminal Procedure Code and on completion of such further investigation, the Police may submit a charge-sheet, if it appears to them, as a result of such further investigation that there is a case for putting up the accused on trial and if it appears to them, despite such further investigation, that there is no case for putting up the accused on trial, the Police may once again submit a final report.

231. Charge-sheet.-(I) When there is sufficient evidence to justify the sending of an accused person to a Magistrate, a charge-sheet in form C. P. .C. 20, should be sent to the Magistrate direct. In addition to the information to be filled up in the columns of the charge-sheet, the following points should be observed:-

(i) The correct home address of each of the accused, the place, the time and date of arrest together with the name of the officer arresting him should be shown in the column for accused persons sent for trial or at the foot of the foil sent to the Magistrate as well as of the counterfoil retained at the Police Station. The information regarding home address will be entered by the Court in the committal warrant, and if the information is not given in the warrant, the Superintendent of the Jail which receives the prisoner concerned should return the warrant to the Court for completion, unless it is specifically stated by the Court in the warrant that the information is not available, in which case the Superintendent of the Jail will obtain the information from the Police

concerned, and if the same is not available, will release the prisoner at the place where he was arrested. The officers sending the charge-sheets should make a note on the charge-sheet before the names of the witnesses in red ink, that the witnesses are eye-witnesses. The officers conducting the prosecution should examine all such witnesses by taking help of the legal provisions. According to Section 209 of the Criminal Procedure Code, the preliminary enquiry by the Magistrate in cases exclusively triable by the Court of Sessions has been dispensed with, the reason is that such a procedure involved a great deal of anfractuous work causing delay in trial of Sessions cases. However, the Magistrate, taking cognizance of the case, will perform the preliminary functions like granting copies, preparing records, notifying the Public Prosecutor etc.

(I. G.'s C. Ms. No. G/151, dated 2nd December 1958 and 30th December 1958)

(ii) The value of property stolen and recovered should be shown in a prominent place.

(iii) At the bottom of the charge-sheet, notes should be made on the following points, as may be necessary in each case:-

(a) whether the date of hearing has been fixed by the Police or whether the Police desire the Magistrate to fix it;

(b) what arrangements have been made for conducting the prosecution;

(c) whether the Police themselves would keep the prosecution witnesses present on the day fixed for hearing or whether they desire the Magistrate to issue the necessary summonses;

(d) when witnesses are Government servants of other departments (such as the village accountant, medical officer, forest officer etc.), whether the Magistrate should issue summonses to them through their official superiors;

(e) whether any of the accused sent up for trial has made a confession before a Magistrate;

(f) where the offences are of a kind in which previous convictions can be proved for the purpose of enhancement of punishment under Section 75, Indian Penal Code, or any other law, whether finger impressions of the accused have been taken and sent to the Finger Print Bureau for trace;

(g) whether additional witnesses will be produced;

(h) whether, and if so, which articles have been sent to the Chemical Analyser for examination;

(i) whether the Police wish to oppose the release of the accused on bail.

(G. C., H. D., No. 100/5-I, dated 5th September 1946)

(iv) When a previously convicted person is again sent for trial, as complete a record as possible of his previous convictions should be given in the charge-sheet. Section 75 of the Indian Penal Code should be shown in the charge-sheet of all cases which obviously merit the application of that section. It is, however, unnecessary to delay the sending up of a charge-sheet in such cases; but if the information regarding previous convictions is not received before the charge-sheet is sent up, a remark should be made on the charge-sheet to that effect and steps taken to obtain an adjournment in Court before a charge is framed. Omission to apply the section in suitable cases is only too likely to lead to inadequate sentences.

(v) Whenever a deaf and dumb person is to be sent for trial, the Investigating Officer will quote marks of identification on the charge-sheet, so that if he is sent to prison the Court can furnish these marks along with the warrant of commitment.

(2) When absconding accused persons present themselves before the Magistrate or are arrested after a charge-sheet has been sent up, a supplementary charge-sheet should be submitted against them.

- (3) The charge-sheet should be accompanied by-
- (i) the accused if in custody,
 - (ii) the bail bond of the accused, if he is on bail,
 - (iii) a descriptive roll and marks of identification of the accused,
 - (iv) any weapons or articles of evidentiary value,
 - (v) the bonds of the complainant, if any, and witnesses or their appearance before" the Magistrate.
 - (vi) remand order if any.

(I. G.'s No. 18, dated 26th April 1934)

(vii) (a) All documents or relevant extracts thereof on which prosecution proposes to rely other than those already sent to the Magistrate during investigation.

(b) The statements recorded under Section 161 of all persons whom the prosecution proposes to examine as its witnesses. :

(c) If the Police officer is of the opinion that any part of any such statement is not relevant to the subject matter of the proceedings or that its disclosure to the accused is not essential in the interest of justice and is inexpedient in the public interest. he shall indicate" that part of the statement and append a note requesting the Magistrate to exclude that part from the copies to be granted to the accused and stating his reasons for making such request, as laid down in sub-section (6) of Section 173 of the Criminal Procedure Code.

(viii) Where the Police officer investigating the case finds it convenient so to do, he may furnish to the accused copies of all or any of the documents referred to in sub 1 section (5) of the Criminal Procedure Code.

According to Section 207 the duty of furnishing copies of statements recorded by the Police and other documents has been laid on the court of the Magistrate who takes cognizance. A further provision has also been made in the said Section that where the document is voluminous, the accused may be allowed to inspect it personally or through Pleader in the court instead of being furnished with a copy. A provision permitting the Police to furnish these copies if it is more convenient to do so has also been made.

(4) (a) It is open to the Police to take security under Section 17°, Criminal Procedure' Code, without a formal arrest. Sub-Section (1) of that section lays down two alternatives, viz., (a) forwarding the accused under custody or (b) taking security from the accused for his appearance before a Magistrate. Although the Police may arrest and then take security, yet it is not obligatory on the Police to make a formal arrest in a proper case where security is taken. The Police have a discretion in the matter, and the belief that the Police have no option but to arrest is erroneous. Apart from the fact that Section 170(1) does not necessarily contemplate an arrest in connection with the second alternative, there is no point in making a formal arrest when security is taken.

(G.R.H.D. No. 174212. dated 5th April 1927)

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(b) Under Section 170 of the Criminal Procedure Code if the offence is bailable and the accused is able to give security the investigating officer takes security from the accused for his appearance before the Magistrate empowered to take cognizance of the offence upon the Police report and to try the accused or commit him for trial on a day fixed for his attendance from day to day before such Magistrate until otherwise directed. Under sub-clause (4) of the Section the officer in whose presence the bond is executed has to deliver a copy thereof to one of the persons who executed it and then send to the Magistrate the original with his report.

The bond taken by the Police should not be defective and the following points should be borne in mind while filling the bond: -

(i) The accused should be directed to remain present before the Court and not before the Police.

(ii) The Police should fix the day and time for such appearance as required under Section 170 (1) of the Criminal Procedure Code.

(iii) Prescribed printed forms should be used by the Police for filling the bond with suitable alterations according to the circumstances of the case.

(iv) The amount for which the accused was bound down should be mentioned in the bond.

(v) The proper designation of the Court should be mentioned in the bond. -

(c) The Magistrate should receive charge sheets before the date mentioned in the bond as contemplated by Sub-section (4) of Section 170 Criminal Procedure Code.

(I. G. P.'s Cir. No. G/1927/Misc/66, dated 14th December 1966)

(5) Whenever an officer in-charge of a Police station requires a complainant or other person to execute a bond to appear before a Magistrate to prosecute or to give evidence as the case may be. in accordance with the requirements of Sub-Section (2) of Section 170 Criminal Procedure Code he shall if such complainant or other person is a soldier in the Army send a copy of the bond immediately after taking the bond to the Commanding Officer of the regiment in which he is serving.

(G. R., J. D. No. 4826, dated 10th July, 1894)

(6) After the Police officer has forwarded a charge-sheet under Section 173 Criminal Procedure Code to the Magistrate the Magistrate shall furnish to the accused free of cost, copies of (1) the report forwarded under Sub-Section (1); (2) the first information report recorded under Section 154 and (3) all documents or relevant extracts thereof on which the prosecution proposes to rely including statements and confessions recorded under Section 164 and the statements recorded under sub-section (3) of Section 161 of all prosecution witnesses intended to be examined. The Magistrate can, however exclude any part from the statements recorded under sub-section (3) of Section 161 which in his opinion is not relevant to the subject matter of the enquiry or trial or that its disclosure to the accused is not essential in the interest of justice and is inexpedient in the public interest.

(7) Section 207 Criminal Procedure Code provides that after a charge-sheet is sent by the Police copies of First Information Report, statements of witnesses and all other, documents on which the prosecution has to rely should be supplied to the accused by the Magistrate. In the case of additional witnesses, this is not possible, as they are cited at a later stage of the case. In view of the mandatory provision of the section, the Courts are not inclined to permit the prosecution to examine additional witnesses however the prosecution are not wholly debarred from examining additional witnesses after a charge-sheet is sent. The Court may, however, refuse permission to examine additional witnesses if their evidence is not relevant and if their examination is likely to cause prejudice to the accused.

(8) The submission of charge-sheet should not be delayed in prohibition cases in particular for want of previous conviction slips, as Section 173, Criminal Procedure Code provides that the investigations into the offences should be completed by the Police without unnecessary delay and the charge-sheet submitted as soon as investigation is completed. Non-availability of previous conviction slips cannot be valid ground for withholding charge-sheet in such cases. Nevertheless, the information about previous conviction slips should be placed before the Court before the judgment is announced. While submitting the charge-sheet, the Police Officers should make a request to the Court for postponing the hearing of the case or the delivery of judgment.

(9) The investigating officers should prepare a case diary of charge-sheet on the date the charge-sheet reaches the court and not on the date on which the charge-sheet is prepared, as mentioned in sub-rule (4) of rule 229.

(I. G. P.'s Cir. No. G/1909/14386, dated 24th April 1972)

(10) Investigations must be completed and the charge-sheets, wherever they are 10 be submitted, should be submitted promptly in. order to avoid likelihood of the accused being discharged by the court on the presumption that the investigating officers have not got sufficient evidence to charge-sheet the accused.

(G. C., No. 16 of Hand Book, Home and Civil Supplies Department)

232. Final reports.-(I) When there is no sufficient evidence to justify the forwarding of the accused to a Magistrate the Police Station Officer or the investigating officer will release the accused person on bail, if he is in custody.

(2) The Police Station Officer will then submit a final report to the Magistrate empowered to take cognizance of an offence on a Police report through the Sub-Divisional Police Officer in the following three classes of cases:-

(a) Those in which it appears from the Police investigation that no offence has been committed.

(b) Those in which it appears from the Police investigation that only a non-cognizable offence has been committed.

(c) (i) Those in which there are grounds for believing that an offence has been committed, but in which, in the opinion of the officer-in-charge of the Police Station; there are not sufficient grounds to investigate or there is not sufficient evidence to justify sending any accused for trial, or in which the offender is not known or cannot be arrested and sent for trial.

(ii) In cases referred to the Police by a Magistrate, the final report will be sent direct to the Magistrate.

(3) The final report should be written up carefully by the officer-in-charge of the Police Station personally and should be accompanied by all the case papers numbered and indexed methodically. If the accused has been released on bail, the Magistrate should be requested to cancel the bail bond. He should also be requested to pass orders regarding the disposal of property attached, unless any of the articles, e.g., blood stained clothes, are required for further use in true but undetected cases. A request should also be made to the Magistrate to classify the case and to issue an appropriate summary of his order, viz.

(i) "A" True, undetected (where there is no clue whatsoever about the culprits or property or where the accused is known but there is no evidence to justify his being sent up to the Magistrate (for trial).

(ii) "B" Maliciously false.

(iii) "C" Neither true nor false, e.g., due to mistake of facts or being of a civil nature.

(iv) "Non-cognizable" Police investigation reveals commission of only a non cognizable offence.

(4) A Sub-Divisional Officer is not bound to forward a final report to the Magistrate immediately. He may of his own motion direct further enquiry or he may for special reasons permit a case to remain pending under investigation.

(5) When any further investigation is ordered and made subsequent to the submission of the final report the papers should, at each stage up to final disposal, be sent through the Sub-Divisional Officer. In urgent cases, however, the Magistrate may return the papers direct to the investigating officer.

(G. R., J. D., No. 5570, dated 26th October 1904)

(6) When a final report of an officer-in-charge of a Police Station is returned to him for further investigation or other purpose, the date of the submission of the final report in its last and complete form should be taken as the date of its submission to the Magistrate for the purpose of determining the beginning of the period of 14 days within which a summary of the Magistrate's final order should be sent.

(G. R. J. D. No. 5570, dated 26th October 1904)

(7) It is not competent to a Magistrate to return investigating officer's report made to him under Section 173, Criminal Procedure Code, with an order to make a case against the accused and to send it up for trial. If the Magistrate considers that there is a prima facie case against the accused he should take action under Section 204 of the Code. A reference should also be made to instructions contained in sub-rules (2) & (3) of rule 230.

(Letter No. 957, dated 7th June 1894 from the Registrar, High Court, Bombay to the District Magistrate, Ratnagiri, and I. G. 's No. 5531-C, dated 19th April 1913)

233. Study of case papers by Assistant Public Prosecutors before charge sheets are sent to the Courts.-(1) The investigating officers should make use of Assistant Public Prosecutors to study cases falling under classes I to V, under section 4, 5 Gambling Act or any other important case before they are sent up to the court with a view to see and inform whether the available evidence which could have been collected has been collected or not and whether any evidence has been ignored on a particular ingredient constituting the offence.

(2) All the supervising officers should see that the investigating officers follow the instructions given in sub-rule (1) above scrupulously.

(I. G. P.'s Cir. No. G/1927/72/11083, dated 10th January 1972 and G./1927/73/303, dated 10th August 1973)

SECTION IX.-EXTRADITION

234. Delegation of functions of the Government of India under the Extradition Act.-

(1) Extradition is governed by the Indian Extradition Act No. 34 of 1962. The old Indian Extradition Act of 1903 and the Fugitive Offenders Act, 1881 are repealed as per Section 37 of the Indian Extradition Act, 1962.

(2) (a) Extradition is the arrangement agreed to between certain countries whereby they agree to surrender to the country applying for extradition of persons who have committed certain crime of that country.

(b) Extradition offence means-(i) in relation to a foreign State, being a treaty State, an offence provided for in the extradition treaty with that State, (ii) in relation to a foreign State other than a treaty State or in relation to a commonwealth country, an offence which is specified or which may be specified by notification under the second schedule of the Act.

(c) Commonwealth country means, a commonwealth country specified in the first schedule of the Act, and such other commonwealth countries, as may be added to the schedule by the Central Government by a notification in the official gazette and includes every constituent part, colony or dependency of any commonwealth country so specified or added.

235. Surrender or return of accused or convicted person from Foreign States or Commonwealth Countries to India.-(I) Chapter IV of the Act has three Sections, viz. Sections 19, 20 and 21 of the Act.

(2) In Section 19 of the Act, a mode of requisition or form of warrant for the surrender or return to India of accused or convicted person who is in a foreign State or common-wealth country is given. A requisition for the surrender of a person accused or convicted of an extradition offence committed in India and who is or is suspected to be in any foreign State or commonwealth country to which Chapter III of the Act, does not apply, may be made by the Central Government, to

(a) a diplomatic representative of that State or country at New Delhi, or

(b) the Government of that State or country through the diplomatic representative of India in that State or country, and

(c) if neither of these modes are convenient, the requisition shall be made in such other mode as is settled by arrangement by the Government India with that State or country.

(3) A warrant issued by a Magistrate in India for apprehension of any person who is or is suspected to be in any commonwealth country to which Chapter III of the Act, applies, shall be in such form as may be prescribed by the Government.

(4) According to Section 20 of the Act any person accused or convicted of an extradition offence who is surrendered or returned by a foreign State or commonwealth country may, under the warrant of arrest for his surrender or return issued in such State or country be brought into India and delivered to the proper authority to be dealt with according to law.

(5) According to Section 21 of the Act, a fugitive criminal or convicted person surrendered or returned by a foreign State or commonwealth country is not to be tried in India for an offence committed prior to the surrender or return other than the extradition offence proved by the facts on which the surrender or return is based.

236. Return of Fugitive Criminals to Commonwealth Countries with Extradition arrangements.- (1) Chapter III of the Act contains Sections 12 to 18 of the Act. This Chapter shall apply only to any such commonwealth country to which by reason of an extradition arrangement entered into with that country, it may seem expedient to the Central Government to apply the same.

(2) According to Section 13 of the Act whenever any fugitive criminal of any commonwealth country to which Chapter III of the Act applies is found in India, he shall be liable to be apprehended and returned in the manner provided by Chapter III of the Act, to that commonwealth country.

(3) According to Section 14 of the Act, a fugitive criminal may be apprehended in India under an endorsed warrant or a provisional warrant.

(4) According to Section 15 of the Act, where a warrant for the arrest of a fugitive criminal has been issued in any commonwealth country to which Chapter III of the Act applies and such fugitive criminal is or is suspected to be in India, the Central Government may, if satisfied that the warrant was issued by a person having lawful authority endorse such warrant to apprehend the person named in the warrant and to bring him before a Magistrate in India.

(5) According to Section 16 of the Act, any Magistrate may issue a provisional warrant for the apprehension of a fugitive criminal from any commonwealth country to which Chapter III of the Act applies, who is or is suspected to be in or on his way to India on such information and under such circumstances as would in his opinion justify the issue of warrant. The Magistrate issuing a provisional warrant shall forthwith send a report of the issue of the warrant together with information or a certified copy thereof to the Central Government and the Central Government if it thinks fit, may discharge the person apprehended under such warrant. The fugitive criminal apprehended on a provisional warrant may, from time to time, be remanded for such reasonable time not exceeding seven days at any one time as under the circumstances seems requisite for the production of an endorsed warrant.

(6) According to Section 17 of the Act, the Magistrate, before whom a person apprehended under Chapter III of the Act, is brought, is satisfied on enquiry that the endorsed warrant for the apprehension of a fugitive criminal is duly authenticated and that the offence of which the person is accused or has been convicted is an extradition offence, the Magistrate shall commit the fugitive criminal to prison to await his return and shall forthwith send a certificate of committal to the Central Government. If the Magistrate is of opinion that the endorsed warrant is not duly authenticated or that the offence of which such person is accused or has been convicted is not an extradition offence, the Magistrate may, pending the receipt of the orders of the Central Government detain such person in custody or release him on bail. The Magistrate under sub-section 3 of Section 17 of the Act shall report the result of his enquiry to the Central Government and shall forward together with such report any written statement which the fugitive criminal may desire to submit for the consideration of the Government.

(7) Under Section 18 of the Act, the Central Government at any time after the fugitive criminal has been committed to prison under Chapter III of the Act, issue a warrant for the custody and removal to the commonwealth country concerned of the fugitive criminal and for his delivery at a place and to a person to be named in the warrant.

237. Extradition of Fugitive Criminals to Foreign States and to Commonwealth Countries to which Chapter III of the Indian Extradition Act, 1962 does not apply.-(1) According to Section 4 of the Act a requisition for the surrender of fugitive criminal of foreign State or a commonwealth country may be made to the Central Government:

(a) by diplomatic representative of the foreign State or commonwealth country at New Delhi. or

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(b) by the Government of that foreign State or commonwealth country communicating with the Central Government through its diplomatic representative in that State or country, and

(c) If neither of these modes is convenient, the requisition shall be made in such other mode as is settled by arrangement made by Government of the foreign State or commonwealth country with the Government of India.

(2) According to Section 5 of the Act, where such requisition is made, the Central Government may, if it thinks fit, issue an order to any Magistrate who would have had a jurisdiction to enquire into the offence, if it had been an offence committed within the local limits of his jurisdiction directing him to enquire into the case.

(3) Under Section 6 of the Act, the Magistrate shall, on receipt of an order of the Central Government under Section 5, issue a warrant for the arrest of the fugitive criminal.

(4) According to Section 7 of the Act, when the fugitive criminal appears or is brought before the Magistrate, the Magistrate shall enquire into the case in the same manner and shall have the same jurisdiction and powers as nearly as may be, as if the case were one tried by a court of Sessions or High Court. The Magistrate shall take such evidence as may be produced in support of the requisition of the foreign State or commonwealth country, and on behalf of the fugitive criminal including any evidence to show that the offence of which the fugitive criminal is accused or has been convicted is an offence of political character or is not an extradition offence. If the Magistrate is of opinion that a prima-facie case is not made out in support of the requisition of the foreign State or commonwealth country, he shall discharge the fugitive criminal but if the Magistrate is of opinion that a prima-facie case is made out, he may commit the fugitive criminal to prison to await the orders of the Central Government and shall report the result of his enquiry to the Central Government and shall forward together with such report any written statement which the fugitive criminal may desire to submit for the consideration of the Central Government.

(5) According to Section 8 of the Act, the Central Government, on receipt of the report of the Magistrate, if is of opinion that the fugitive criminal ought to be surrendered to the foreign State or commonwealth country, it may issue a warrant for the custody and removal of the fugitive criminal and for his delivery at a place and to a person to be named in the warrant.

(6) According to Section 9 of the Act, the Magistrate, if it appears to him, that a person within the local limits of his jurisdiction is a fugitive criminal of a foreign State or commonwealth country, he may, if he thinks fit, issue a warrant for the arrest of that person on such information and on such evidence as would in his opinion justify the issue of a warrant, if the offence of which the person is accused or has been convicted had been committed within the local limits of his jurisdiction. The Magistrate shall forthwith report the issue of a warrant to the Central Government and shall forward the information and evidence or certified copies thereof to the Government. A person arrested on warrant under sub section (1) of Section 9 of the Act, shall not be detained for more than three months unless within that period the Magistrate receives from the Central Government an order made with reference to such person under Section 5 of the Act.

(7) Under Section 10 of the Act, the procedure has been given for receipt in evidence of exhibits, depositions and other documents and authentication thereof.

(8) According to Section 11 of the Act, Chapter II (Section 4 to 11 of the Act) does not apply to commonwealth countries to which Chapter III applies.

238. Application of Indian Extradition Act.-(1) According to Section 3 of the Indian extradition Act, 1962, the Central Government may, by a notified order, direct that the provisions of this Act other than Chapter III, shall apply to :-

(a) such foreign State or part thereof, or .

(b) such commonwealth country or part thereof to which Chapter III of the Indian Extradition Act of 1962 does not apply, as specified in the order. .

(2) The Central Government may by the same notified order, as referred to in sub-rule (1), or any subsequent notified order restrict such application to fugitive criminals found or suspected to be in such part of India, as may be specified in the order.

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(3) Where the notified order relates to a treaty State-(a) it shall set out in full the extradition treaty with that State; (b) it shall not remain in force for any period longer than that treaty and (c) the Central Government may by the same or any subsequent notified order render the application of the Act subject to such modifications exceptions. Conditions and qualifications as may be deemed expedient for implementing the treaty with that State.

SECTION X.- PROCEDURE REGARDING CORRESPONDENCE WITH INTERPOL

239. International Criminal Police Organization (ICPO-Interpol).-(1) The Central Bureau of Investigation Ministry of Home Affairs, Government of India, New Delhi, is functioning as a National Central Bureau for India for co-ordination with the ICPO-Interpol. The said office known as Interpol India, New Delhi is charged with the responsibility of extending international cooperation in all criminal matters connected with foreigners who come to the adverse notice of the Law Enforcement Agencies in this country. The Central Bureau of Investigation will be the representative of this country for the purpose of correspondence with ICPO-Interpol and National Central Bureaux (NCBx) of other member nations.

(2) All correspondence with ICPO-Interpol Headquarters and the National Central Bureaux of other countries is conducted by the Director, Central Bureau of Investigation (Interpol Division)

(3) The countries which are members of ICPO-Interpol have each their National Central Bureau through which they approach ICPO-Interpol Headquarters for any inter. national crimes committed by criminals who are the nationals of that country or of any other country. Similarly the ICPO-Interpol seeks information about foreign criminals who operate in India or have links with this country through the National Central Bureau of India (i.e. Central Bureau of Investigation).

(4) Correspondence with the ICPO and NCBx falls under three distinct categories, viz.:-

(i) References made by the ICPO-Interpol or the National Central Bureaux seeking information relating to crimes and criminals or assistance in their investigation from the Police forces of this country;

(ii) References made by the Central Bureau of Investigation on behalf of State Police Forces and other investigating agencies in India to the ICPO-Interpol or National Central Bureaux for similar assistance; and

(iii) Collection of information and statistics and preparation of papers etc. in relation to subjects selected for special study by the ICPO-Interpol.

(G. L., M. H. A., G. O. I., No. Interpol-18/67-11 (B), dated 18th February 1967)

(5) For Gujarat State the Deputy Inspector-General of Police, C.I.D. (Crime and Railways) has been nominated to deal with matters relating to ICPO-Interpol/NCB Hence all correspondence meant for ICPO-Interpol must be routed through the Deputy Inspector General of Police, C.I.D. (Crime and Railways).

(6) It is necessary that each Police Unit in the State should have a clear understanding of its own functions and duties in connection with the activities of ICPO-Interpol so as render and receive all possible assistance in the investigation of cases of international nature. In order to present a uniform image, it is also necessary that whenever a request is received from a foreign country through the Deputy-Inspector-General of Police, C.I.D. (Crime Railways), all officers should extend their fullest co-operation and response to the request in the quickest possible way.

(G. M., M. H. A., G. O. I., No. Interpol-18/67-11 (B), dated 6th February 1968 and I. G. 's endorsement No. G/1927/CBI/68, dated 10th May 1968)

(7) (a) When a foreigner is arrested/convicted the following procedure should in ably be followed:-

(i) As soon as a foreigner is arrested for some offence (other than offence in which the Special Branch or the Intelligence Branch may be interested), a report thereof should invariably be sent to the Interpol-India. If his finger-prints are taken, two copies not search slips may also be sent to them.

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(ii) Whenever a foreigner is convicted, two legible copies of his finger-prints should be sent to the Interpol India. This is in addition to F. P. slips sent in the usual course to the CFPB Calcutta and State FP Bureau concerned.

(iii) After conviction, a report on the case, details of persons charge-sheeted, details of persons convicted, nature and extent of sentence, whether sentence of imprisonment undergone or fine paid in lieu thereof should also be sent to Interpol India for record.

(G. M., M. H. A., G. O. I., No. Interpol /18/69, dated 31st October)

(b) In respect of movements and activities of foreign criminals, arrests of foreigners should be reported to the Central Bureau of Investigation (Interpol Division) by wireless followed by regular report for the purpose of indexing and record.

(G. L., M. H. A., G. O. I., No. Interpol/18/67-11-(B), dated 18th February 1967)

CHAPTER VI
DIARIES, REVIEWS ETC.

240. Case Diary of the Investigating Police Officer.-(1) The "case diary" is maintained under section 172, Criminal Procedure Code. and is to be kept for each case by the investigating officer in his own handwriting.

(2) The fair copy of the case diary is to be sent daily to Sub-Divisional Officer (3) There is only one investigating officer in each case, who is ordinarily "the officer in charge of the Police Station" or when he does not "proceed in person to investigate the case, the subordinate deputed by him "to investigate the facts and circumstances of the case" (Section 157, Criminal Procedure Code). In special cases the Superintendent of Police or Sub-Divisional officer may, however, under Section 36, Criminal Procedure Code, either take over the investigation himself or nominate any officer superior to the Police Station Officer to take charge of the investigation. The Superintendent of Police or the officer so nominated then becomes the investigating officer for the purposes of Chapter XII Criminal Procedure Code.

(4) Those who, under the orders of the investigating officer, assist him by making any enquiries they are directed to make and are bound to make under Section 64 of the Bombay Police Act, do not thereby become investigating officers under Chapter XII, Criminal Procedure Code, nor, because of the subordinate part they are required to take in any investigation, is it necessary for them to keep diaries under Section 172, Criminal Procedure Code. The result of any enquiries and action such officers take in furtherance of the investigating officer's instructions or orders will be communicated by a report written or verbal, as required by the investigating officer and will be embodied by the latter officer in his case diary under Section 172, Criminal Procedure Code. This will appear also, briefly in the subordinate officer's weekly diary or on his patrol book.

(G.R., H.D. No. 2420/3, dated 15th May 1933)

(5) Case diaries should be maintained in cognizable cases, in non-cognizable cases where permission is obtained to investigate the offences under Section 155 (2) of Chapter XII of the Criminal Procedure Code and in case of enquiries under Section 174, Criminal Procedure Code and in the latter cases after verification, if enquiries were first made by the Police Patels.

(G. R., H. D. and C.S.D. No. BPM-1064/3158-C, dated 20th August 1964)

(6) Copies of diaries in cases referred by Magistrate to the Police for enquiry under Section 202, Criminal Procedure Code, should be submitted by Police Station Officers to the officer in charge of the sub-division. (No entry should, however, be made in the Sub-Divisional Officers' crime registers).

(L G. 's No. 95, dated 30th October 1925)

(7) With regard to the contents of the diary, it should not be necessary to issue any directions, since Section 172, Criminal Procedure Code expressly lays down the matters to be contained in it. These should be the time at which the information reached the investigating officer or, in the case of an officer deputed to make an investigation, the date and substance of the order of the officer in charge of the Police Station the time at which he began and closed his "investigation, the places visited by him and a statement of the circumstances ascertained in the investigation. The last should be as brief as is consistent 'with clearness and need not include statement or reports in extensor or copies of Panchnamas' or other proceedings. The diary need contain only a brief reference to the recorded statements. The fact that panchnamas have been recorded or reports made should be entered as part of the history of the investigation; but a statement of their contents should appear, if at all, only as a portion of the narrative of the results. Case diary should not be verbatim copy of the statements of witnesses recorded under Section 162, Criminal Procedure Code. The case diary should show how the case progresses during the course of investigation. It must also reflect the mind of the Investigation Officer. On receipt of a summary from a Magistrate, a note about It should be made on the last case diary previously written or if no sufficient space is available in it, on a loose slip which should be attached to the diary. It is for Sub-Divisional Officers to see that diaries are properly kept in accordance with this instructions.

(I. G. 's No. 2, dated 27th January 1944)

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Diaries, Reviews Etc.

(8) As a guide to writing up the case diary, reference may be made to the model diary in Appendix XXII.

(9) (a) On holidays as well as on other days, every case diary must be written up in the evening of the day of the enquiries or, if the enquiries have been prolonged into the night, the first thing the following morning, and a copy thereof must be dispatched at the latest during the morning of the day following the day or night of enquiry, by the officer in charge of the Police Station to the Sub-Divisional Officer and, in case of murder, highway robbery, gang robbery or robbery with violence etc. also to his Inspector. Copies of case diaries of all serious cases should also be sent to the Superintendents of Police. A Superintendent will have discretions to require the submission to him of any diary he may think it necessary or desirable that he should see.

(J.D. Letter No. 1402, dated 13th March 1906)

(b) The senior officers who investigate the cases should also write case diaries as per instructions contained in Section 172, Criminal Procedure Code. Copies of case diaries of the cases investigated by the Superintendents of Police should be sent to the Deputy Inspector-General of Police concerned and copies of the case diaries, if any, investigated by the Deputy Inspector-General of Police or the Commissioner of Police should be sent to the Inspector-General of Police.

(I. G. P.'s Cir. No. G/642, dated 6th July 1964)

(10) (a) The Superintendents of Police should scrutinize all serious crime diaries received by them in the usual manner, make entries personally in the serious Crime Register and deal with them as the Sub-Divisional Police Officer deals with his cases viz., scrutinize them, issue suitable checks and enter the diaries promptly in the Register.

(I. G. 's C. M., No. G/7504, dated 11th April 1958)

(b) The Superintendents of Police should scrutinize case diaries of all undetected cases of burglaries and robberies of Rs. 2000 and above not detected during the month and should send detailed report to the Deputy Inspector General of Police with every crime review for the month preceding the review month. The Commissioner of Police should take similar action so far as Ahmedabad City is concerned and send his report to the Inspector General of Police with Crime Review.

(I. G. P.'s Cir. No. G/36, dated 4th October 1967)

(c) The queries raised by the Commissioner of Police or Deputy Commissioners of Police/Superintendents of Police or Sub-Divisional Police Officers on the case diaries and the replies

received should be filed along with the case diaries and not separately, to enable supervising officers to check up whether the diaries are scrutinized properly, queries raised and clarification asked for from time to time.

(I. G. P.'s Cir. No. G/642, dated 29th April 1964)

(11) The investigating officer should note down in the case diaries of the cases concerned, the names of other Police officers including the subordinate officers who were associated with him in the investigation of the case, so that some of them could watch the case after his departure.

(I. G. P.'s C. M. No. 151-II, dated 9th September 1955)

241. Station diary of the Police Station Officer.-(I) Objects of station diary. The main object of the station diary is to safeguard the interests of the public by chronicling briefly, at the time they take place all important occurrences affecting the Police and the public. A further object to the diary is to keep superior Police officers informed of such occurrences. The diary is not intended to serve as a personal diary of the senior Police Station Officer. For this purpose, separate diary is provided (vide Rules 244, and 245.)

(2) *Contents of station diary.*-Subject to any general or special orders of the Commissioner of Police/Superintendent of Police the entries should be as brief as possible, consistent with the objects of the diary. The entries should be regarding the following among other occurrences taking place within the Police Station limits:-

(a) Charge of Police Station House.- The taking and handing over charge of the Police Station House.

(b) *Information of crime, etc.*-The receipt and immediate manner of disposal of all information and magisterial orders or directions received under Sections 154, 155, 156, 159, 174 and 202 of the Criminal Procedure Code.

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(c) Case diaries.-The preparation and disposal of, all case diaries made under Section 172, Criminal Procedure Code, or in accordance with executive orders, and of all copies of such diaries made for submission with copies of station diaries.

(d) Arrests.- The effecting and reporting to the Magistrate of all arrests by the Police with or without warrant and the immediate disposal of the arrested person except in the case of arrests shown in the case diaries of the Police Station.

(e) Searches.-The effecting and reporting to the Magistrate of all searches of person or place by the Police, except in the case of searches shown in the case diaries of the Police Station.

(f) Seizures.- The effecting and reporting to the Magistrate of all seizures of property by the Police *Suo motu* and the immediate disposal of such property, except in the case of seizures shown in the case diaries of the Police Station.

(g) Complaints.-The lodging of all complaints by the Police to Magistrates under the Indian Penal Code, special and local laws, or otherwise.

(h) Police reports.-The submission of all reports by the Police to Magistrates or superior Police officers for the issue of warrants of arrest, search warrants etc., or with a view to preventive action being taken.

(i) Miscellaneous information.- The receipt of important miscellaneous information regarding the disappearance of persons, apprehended offences and nuisances, etc.

(j) Miscellaneous occurrence.- The receipt of information regarding local occurrences of importance, such as fires, accidents, strikes, fairs, processions, public meetings, unlawful assemblies, epidemics, wandering gangs, the time of registration of all cognizable and non-cognizable cases, showing the sections of law under which recorded; Discharge or release on bail of arrested persons except in cognizable cases actually registered; departure from the Police Station of arrested persons for enquiries or for courts quoting the B. Nos. of the Policemen in charge of each prisoner, time of departure and the name of the court to which sent; time of return of prisoners from Court or from enquiries with results; action taken on broadcast messages relating, to missing motor cars, murders riots etc., noting the date and serial number of the wireless message; affrays between civilians and members of the wireless message; affray between civilians and members of the Armed Forces or the Police; escorts of explosives being carried through the limits of Police Station, reports on blasting operations up-country police requesting assistance or reporting for any duty; misconduct of Police officers and men calling for disciplinary action; visits paid by superior officers and other high Government officials, etc.

(k) Departmental duties.-The performance of departmental duties by the Station House Officer, such as parades and inspection held or attended, attendance at Courts, town patrols, night rounds, Village patrols assistance to officers or other Police Stations, etc.

(1) Other occurrences.-Any other occurrences which the Superintendent of Police, orders to be mentioned or which, the Police Station Officers consider, should be mentioned.

(3) Mode of writing diaries.- (a) The diary is to be written up as from midnight to midnight, and the entries therein are to be made chronologically hour by hour, as the occurrences they record become known to the Station House Officer, the exact time being shown against each entry.

(b) Reference to case diaries or other miscellaneous information should be given at the end of the day's diary.

(4) Officers responsible for writing diary.-An officer in charge of a Police Station, on leaving the Station House for any purpose, should give over charge of the Station to the next senior officer present, who, under clause (o) of Section 2 Criminal Procedure Code, becomes vested with all the powers of an officer in charge of a Police Station. The diary is to be written up and signed by the Police officer actually in charge of the Police Station House. The in-charge Police Station Officer and the senior Police Station Officer are responsible for keeping each other informed immediately of public occurrences affecting the Police as soon as they become known to them, when the latter is one tour within the Police Station limits.

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(5) *Place of keeping diary.*- The diary is on no account to be removed from the Station House, except on the orders or permission of higher authority.

(6) (a) Copies of diaries.-The diary in original is to be submitted early on the day following that for which it is written up, to the Sub-Divisional Officer and the carbon copy retained in the Police Station as office copy.

(b) The Sub-Divisional Police Officers should scrutinize the entries in the Station Diaries thoroughly and see that they have been written according to the instructions and that all information has been incorporated in the station diary and that despatch of case diaries has also been shown in the summary of the station diary. The Sub-Divisional Police Officers should also see that all arrests are properly shown and appropriate action taken in connection with the persons arrested and that complaints filed in the courts are not delayed by the Police.

(I. G. P.'s Cir. No. G/642, dated 21st November 1964 No. G/1909/65, dated 24th February 1965)

(7) *Form of diary.*- The diary is to be written in from No. C. P. C. 22-A. The forms will be bound in book form and paged and sealed by the Superintendent of Police.

(I. G. 's No. 20, dated 25th July 1939)

242. Calling of Daily Report by the Commissioner of Police/Superintendents of Police.-Since daily reports are useful in giving the Commissioner of Police/Superintendents of Police an idea about the crime fluctuation at the Police Stations, the Police Station officers should send daily reports every morning including holidays to the Commissioner of Police/ Superintendents of Police, Sub-Divisional Police Officers and Circle Police Inspectors, giving details in brief of all crime, incidents, occurrences, important events, non-cognizable complaints, etc. for the day beginning from 00.00 hour to 2400 hours. The Police Station Officers should also mention sanctioned strength, number of men sent on night rounds, village patrolling, road patrolling, engaged in other duties, etc. in the daily reports.

(I. G. P.'s Cir. No. G/1909/1836, dated 4th May 1973 and G/1909/74/3110, dated 31st August 1974)

243 Weekly diary of Assistant and Deputy Superintendent of Police.-(1) Assistant and Deputy Superintendents of Police will maintain and write up day by day, as the facts- come to be known in their own handwriting, for each week commencing on Sunday and ending on Saturday, a diary in a bound book stamped, paged and endorsed by the Superintendent of Police, of their movements and proceedings.

(I. G. 's No. 3550, dated 3rd September 1886 and No. 79, dated 19th January 1925)

(2) Probationary Assistant and Deputy Superintendents of Police attached to districts for training as well as Headquarters Deputy Superintendents of Police, who are not in charge of sub-divisions, should also maintain such a diary.

(3) A Superintendent of Police, whilst holding temporary charge for his Sub-Divisional Officer on leave, should write the latter's usual diary.

(4) (a) But when a Superintendent of Police visits a scene of serious crime, it is not necessary for him to make entries in a regular diary. He should, however, make detailed notes of his investigation on plain paper, which should be attached to the office copy of the 'E' Statement of the Crime Review, so that they will, when necessary, be readily available for refreshing memory, if he is called upon to give evidence in Court. A brief report of investigation should be sent to the Range Deputy Inspector-General of Police with a copy to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) on the first Monday following the week in which the offence was visited.

(b) No further investigation reports need be sent if the case is later supervised by the Sub-Divisional Police Officer as he is required to send such reports. When the Superintendent of Police visits a serious crime in addition to the Sub-Divisional Police Officer, it is not necessary for him to send investigation report as the Sub-Divisional Police Officer sends the same with his weekly diary.

(I. G. 's No. G/1252-I, dated 9th September 1958)

(5) Cases of the following description should be reported in the Assistant Superintendent's or Deputy Superintendent's diary:-

(a) All cases of serious crime as mentioned in Rule 134 (1).

(b) Other cases which the Sub-Divisional Officer personally enquires into.

(I. G. 's No. 13, dated 27th October 1944 and No. 2042-B, dated 22nd -February 1916)

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(6) When Sub-Divisional Officers visit scenes of crime in any of the above cases and make personal investigation, they should enter day by day their proceedings, setting forth briefly the places visited by them in the course of their investigation, the persons examined, the facts ascertained through their investigation, and generally particulars bearing on the points noted in Rule 136. In fact the Sub-Divisional Officer's diaries regarding any personal investigation into an offence should mutatis mutandis, though in less detail, contain very much what a Sub-Inspector is required to record in his case diary.

In visitable cases not visited by them, the entries in the diaries should be based on the details available from the case diaries submitted by the investigating officers.

(7) Each case of crime should be serially numbered. Entries relating to other matters should not be numbered.

(8) The entry number for each case should run right through until the case is finally disposed of, e. g. entry No. 75. Further references to this case should be numbered 75/2, 75/3 and so on.

(9) In referring to former entries, e. g. 75/2, a brief reference should be made showing the nature of the crime, the place and the date thus :-

Dacoity at Dadhall 10th ultimo

(10) In numbering cases at the beginning of the year, Sub-Divisional Officers should continue to old year's series of numbers for all cases reported to the Police before the close of the year, although not entered in their own weekly diaries till the beginning of the new year. The new series of numbers should commence with the first serious crime reported on or after January first.

(I. G. 's No. C/1166, dated 16th April 1907)

(11) Whenever a Sub-Divisional Police Officer of one division is required to make investigation into an offence that has occurred in another division, he should record in his diary the

entries pertaining to that crime under the proper serial number of the division to which it belongs. For example, if a Sub-Divisional Officer in charge of the Rajpipla Division investigates an offence of Broach Division, he should make entries relating to that offence in his diary under the correct serial number of the Sub-Division, e. g. 5/Broach Dn, 52/Broach Dn, and so on.

(I. G. 's No. 23, dated 9th August 1958)

(12) Assistant and Deputy Superintendents of Police who do not hold separate charges must not number afresh in their diaries cases which have already been numbered in the diaries of the Sub-Divisional Officers, even if such cases have personally been investigated by them.

(I. G. 's No. 711, dated 26th January 1907 and G. R., H D., No. 6169, dated 5th May 1925)

(13) The town, the Police Station and the taluka, the nature and the date of crime the name of the complainant and the amount of loss are to be given at the head. After giving the above, the Sub-Divisional Officer should invariably give some account of the circumstances of the case. It is not sufficient to know for instance that a certain house was broken into, Rs. 4,000 stolen, and that enquiries are being made. A short precis of such particulars as have been learnt from the Sub-Inspector's reports should be given.

(I. G. 's No. 10720, dated 30th November 1896)

(14) In cases of moves, the distance in Kms. should be given, if journeys are performed by road or by water in country craft. In addition to the name of the village at which the camp is, the name of the taluka should invariably be added.

(I. G. 's No. 6346-B, dated 24th June 1921)

(15) The place of camp is, as a rule, the place where the officer was at midnight. If the officer was outside the district at that hour, it is irregular to enter as his camp the place where his office or tents have been during the time. The place of camp need not be entered at all for Sunday, provided no work is done and no entry is made on that day in the diary. If the Assistant or Deputy Superintendent of Police works on a Sunday and makes entries under that date, the place of camp should be given; otherwise the Range Deputy Inspector-General of Police has no means of knowing to what place the entry refers.

(I. G. 's No. 8792, dated 11th September 1901 and J. D., Letter No. 6364, dated 1st October 1911.)

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(16) Inspection of Police Station and Outposts or other offices (vide sub-rule (3) of Rule 580) including a reference to any grave irregularity of which the higher authority should be informed or which is likely to be the subject of special investigation and visit to, and inspections of, shops, etc. of licensed manufacturers under the Arms Act should be reported in the Sub-Divisional Officer's diary.

(17) Time of arrival and departure, distance travelled, and vehicle used should be entered by all Assistant and Deputy Superintendents of Police in their weekly diaries in respect of all journeys undertaken by them. Time of arrival at and departure from, the scene of crime or place where any personal investigation is conducted and time of beginning and ending night rounds, names of Policemen during night rounds as well as brief mention of the defects or defaults, if any, noticed by them should also be shown in the diaries.

(I. G. P. 's No. G/2460, dated 13th February 1958 and No. G/642, dated 10th April 1964)

(18) The final result of any case once entered should invariably be noted in the diary.

(I. G. 's No. 10720, dated 30th November 1896)

(19) Copies of the diary may be made by a clerk. Each Assistant or Deputy Superintendent of Police will send to the Superintendent of Police, the District Magistrate, the Range Deputy Inspector-General of Police and the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) a copy of the weekly diary accompanied by a copy of the weekly statement prescribed by Sub-Rule (2) of Rule 466.

(20) The officers to whom copies of the weekly diary are sent under Sub-rule (19) should scrutinize the diary and make such remarks and issue such instructions as they deem necessary in relation to the scope of the control which they exercise over the work of the Assistant or Deputy Superintendent of Police. Copies of his remarks and instructions should be sent by the officer issuing them to other officers to whom copies of the diary are sent. Replies, if any to such remarks should be submitted by the Assistant or Deputy Superintendent of Police through his Superintendent of Police, copies of the replies being simultaneously sent to other officers to whom copies of the remarks were sent.

(21) (a) As these diaries are to serve the additional purpose of special reports on serious crime to the Criminal Investigation Department (Crime) (Rule 466), they should contain as much details as possible of all crime reported therein, both as to facts and special steps taken to deal with it. .

(I. G. 's No.2, dated 8tp January 1934 and 51, dated 27th November 1934)

To facilitate an independent record of every serious crime being maintained, the diary should be split up in to parts viz., (1) Movements and (2) Investigation of cases. The facts of investigation should be typed date wise on a separate sheet for each case during the week and sent to the officers concerned along with the weekly diaries so that they can be filed separately. For example, an officer who is at Head-quarters on 20th May 1974 will write his weekly Diary thus:-

Weekly diary of ----- for the week ending 25th May 1974

Date	Camp	Number of Returns	Proceeding
20th May 1974.	Rajpipla	2	(1) 7 hours attended parade, office routine At 1600 hours received express report of a murder at Piraman. (2) Murder at Piraman on 19th May 1974 at 20 hours of Badar Mohan by Bechar Supediya in his field Sub-Inspector received the report at 21 hours and sent a telegram which was received by me at 1600 hours. Left Rajpipla at 17 hours and reached Piraman at 22 hours. Last entry No. 2 of 20th May 1974 continued Investigation. (For details vide Memo attached).
21st May 1974.	Pirman	2/2	

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(b) According to the above sub-rules, all the incidents of serious (visitable) nature should find place In the weekly diaries and that final report of the case once entered in the weekly diary should also invariably be noted in the weekly diary. If the instructions contained In the rule are timely and carefully observed by all the officers, it would suffice to ensure that the progress of all investigation right up to the disposal of the case in the court is reported in the Crime memos and the Deputy Inspector-General of Police (Crime and Railways) and the Range Deputy Inspector-General of Police should get a complete account of these cases through the crime memos. The crime memos should the therefore be written completely and any laxity in reporting the progress of the investigation from the registration of the offence right up to the stage of its disposal in the court should be viewed seriously.

(I. G. P. 's Cir. No. G/1909 dated 7th April 1970)

(22) The Sub-Divisional Police Officers should attach the statement regarding-

(a) Offences of coinage and currency notes,

- (2) administering of poison or drug for gain,
- (c) thefts involving loss of property of Rs. 2000. or more.
- (d) robberies other than those included in rule 134 involving property worth Rs. 500 or more,
- (e) Criminal breach of trust involving loss of property of Rs. 2000 or more, and
- (f) House-breaking with thefts involving loss of property worth Rs. 1000 or more along with their weekly diaries referred to in rule 466 (2).

(23) (a) The Deputy Inspector General of Police / Superintendents of Police should check the weekly diaries of the Sub-Divisional Police Officers thoroughly and see that the Sub- Divisional Police officers discharge their functions properly and in a responsible manner. They should issue necessary checks and give guidance to them.

(I. G. P.'s Cir. No. G/642, dated 16th June 1969 and No. G/642/228 dated 23rd June 1972)

(b) The Deputy Inspector-General of Police should take sufficient interest in insisting on diaries and crime memos of the Sub-Divisional Police Officers coming to them according to the orders. The diary for the week should be dispatched the following Monday. The Deputy Inspectors General of Police should insist on this in future and report to the Inspector-General of Police every fortnight details regarding diaries which are delayed by more than ten days. Chronic delays should find place in the annual confidential reports of the officers concerned.

(I. G. P.'s Cir. No. G/1909/567, dated 31st July 1972)

(24) The District Magistrate, after proper scrutiny of the diary, will report to Government points, if any, requiring immediate attention, copies of such reports being endorsed to the Inspector-General of Police.

244. Inspector's Weekly Diary.-(1) Each Inspector of Police will write in his own handwriting, day by day, as the facts come to be known, a weekly diary, in a bound book stamped, paged and endorsed by the Superintendent of Police, commencing on Sunday and ending up on Saturday. It must be a minute and faithful record of his movements and actions. It should state concisely every duty performed, inspection made, and every occurrence and information coming to his notice. It should record every step taken in tracing cases and following up clues and all circumstances elicited in his enquiry. It should also state any neglect of duty by subordinates.

(2) A copy of the diary will be submitted to the Superintendent of Police and the Sub-Divisional Police officer on the following Monday.

(I. G. 's No. 3550, dated 3rd September 1886)

245. Weekly Diary of Assistant Public Prosecutor and Sub-Inspector.-(1) Every Assistant Public Prosecutor and Sub-Inspector will maintain in his own hand writing a diary In Form No. P.R. 2 in a bound book stamped, paged and endorsed by the Superintendent or Assistant or Deputy Superintendent of Police in charge of a Sub-division, showing his personal movements and work, his camps, the distances he travels and the time of arrival and departure from each place.

(2) When a case is investigated and a case diary submitted, the details of the work done, as entered in the weekly diary, need only be very brief, reference being made to the case diary for full particulars.

(I. G. 's No. 3835-A, dated 12th March 1909)

(3) With a view to economize paper, the blank space in the first three columns should be utilized by writing the proceedings right across the form instead of confining the entries to the column intended for the purpose.

(4) Assistant Public Prosecutors will submit copies of their weekly diaries for the week ending Saturday to their Superintendents through the Senior Assistant Public Prosecutor and the Sub-Divisional Officer concerned on the following Monday. Sub-Inspectors will similarly submit copies of their diaries to the Sub-Divisional Officer.

246. Accuracy in Entries in the Diaries.-It is quite necessary that the entries in the officer's diaries should be quite correct and accurate. Severe action should be taken against officers making wrong entries in their diaries. This applies to all grades of officers.

247. Patrol Books and Note Books of Head Constables and Constables.-(I) All Head, Constables and Constables including I grade Head Constables will keep patrol books in standard Form No. P. M. 5, if on patrol duty. All other Head Constables, and Constables including I grade Head Constables will maintain note books, in accordance with instructions given in Rule 82 and 83, The Police Inspector/Police Sub-Inspector will see them at roll call and initial them with dates.

(2) Extracts from patrol books and note books need not be sent to superior officers, who should when on tour, examine them, as laid down in Rule 89.

(I. G.'s C. M. No. 1909/74/3925, dated 4th October 1974)

248. Monthly Crime Reviews of Superintendents of Police.-(I) (a) All Superintendents of police will prepare for their respective charges monthly reviews of crime consisting of the following parts in the prescribed forms.

PART A : Statistical information (for the whole district), in Form No. PR50-e (Revised).

PART A-1: Preventive action taken by the Police and its disposal during the month, in form No. PR. 50-e. (Revised).

PART A-2: Statement showing number of cases of (1) serious crime, (2) crime other than serious crime, and (3) preventive action, pending trial for over six months at the close of the month to be sent quarterly (i.e. with the reviews for the months of March, June, September and December only) in Form No: PR-50-e. (Revised)

PART B : Statistical data and also comments on the Incidence and the disposal of each type of important offence.

PART C : Remarks on any features of any particular form of crime, measures taken or proposed for dealing with it, etc, in Form No. PR-51-e (Revised)

PART D : A brief narrative account of the circumstances and investigation of each individual crime classed as serious, reported or under investigation during the month in form No. PR-52-e, (Revised).

PART E : Statement of personal movements.

PART F : Inspection of Police Stations and Outposts (figures to be given separately. for each Gazetted Officer.

PART G : Information regarding meetings of leading citizens held by the Commissioner of Police/Superintendents of Police during visits of the Police Station View of the leaders on the working of local Police Stations and the grievances of Public and action taken.

(Govt. of Guj., H. & C.S.D. Cir. No.MIS/1064/C-1157-D, dated 21st April 1964)

When space in the printed forms is insufficient, blank sheets should be added. A note on cases transferred to other districts and the reasons for It should be given in Part A of the Crime Review.

(I. G. P. 's Cir. No. G/351 (43)/1960, dated 16th December 1960).

(b) In the form P.R.50-e (Revised), E:S.T.P. Act, 1946 (S. No.5) should be substituted as Essential Commodities Act at S. No.5., the Bombay Police Security Measures Act, 1946 should be substituted by Maintenance of Internal Security Act at S. No. 6 and Bombay Harijans (Removal of Social Disabilities Act VI of 1947), should be substituted by Untouchability (Offences) Act, 1955, at S. No.9.

The following Acts shown in Statement 'A' (Class VI) of the Review should be deleted and entries renumbered accordingly:-

- (i) Cotton, Cloth and Yarn Control Act at S. No. 8.
- (ii) Bombay Prevention of Hindu Bigamous Marriage Act 1946 (S. No. 13).
- (iii) Indian Press Emergency Act, 1931 (S. No. 18).
- (iv) Paper (Distribution) Control Order, 1947 (S. No. 20).

(I. G. P. 's No. G/642 (1252-1), dated 9th February 1961)

(2) The following instructions should be observed in the preparation of the review:-

PART B.

(i) (a) This part is mainly intended for offering comments on the statistical data given in Statement A and remarks on increase, decrease and special measures taken to deal with the crime situation in the district. With a view to increasing utility of this part, it is essential that this part should provide statistical data and also comments on the incidence and the disposal of each type of important offences. This part should, therefore, be divided under different heads of important offences such as Murders; Dacoities, Robberies, House Breaking and Thefts, Thefts, Rioting, etc. A paragraph should be devoted to each head and it should begin with the total number of offences reported during the month and their disposal. Thus for example, the paragraph pertaining to House Breakings and Thefts would begin as under:-

No. of cases recorded.	Disposal during the month under all different heads.	Amount of property stolen.	Amount of property recovered
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- (i) Detected.
- (ii) Sent up.
- (iii) Pending Investigation.
- (iv) Disposal, if any of cases by Court. -

(b) The Superintendent of Police should specifically mention in Statement 'B' of the Crime Review-

- (i) The Police Stations and areas where the crime has taken place, and
- (ii) The areas which are affected due to rise in crime.

The Superintendents of Police should also give a break-up of other offences including under Sections 447, 448, 449 I.P.C. etc.

(c) For the Deputy Inspector-General of Police (Crime and Railways), the Superintendents of Police should also attach to Statement in the following further information in a statement from:-

- (i) All House-breakings (including attempts), Police Station and village-wise.
- (ii) All thefts of and above Rs. 100. (Police Station and Village-wise),

(I. G. P. 's Cir. No. G/642, dated 27th February 1965)

(d) The Superintendents of Police should give break-up of offences under the head 'Others' in Part 'B' showing the comparative figures for the last month and corresponding month of the previous year. It should be given section-wise.

(I.G. P. 's Cir. No. G/642 dated 4th August 1964)

(ii) (a) After this statistical data, comments should be offered on the large fluctuation of crime under the head and also on any salient features of the type of offence. Variation within the district should also be commented upon although the total may not show appreciable change. This is intended to provide to supervising officer a continuity of thought and a true picture of the crime situation from all possible angles. The Superintendent of Police should study crime closely to enable the supervising officer to get a complete picture of the crime situation of the district. The serious offences like murders, Dacoities, etc. need not be discussed individually as the facts are already given in Part D.

In order to keep uniformity in the modus operandi of house breakings' information throughout the State it is suggested that "Khan Nakab" should be included under the head "Rumali" and "Gimlet" be included under the head "Bagli."

(I. G. 's C. M. No. 1252-I, dated 9th October 1958, 6th November 1958, 25th November 1958, 7th January 1959).

(b) The Superintendents of Police can dictate statement 'B' to the Steno, but the first transcription which might contain omissions, mistakes and necessary corrections made by the Superintendents of Police, will also be kept in the office copy of the review.

(I. G. P. 's Cir. No. G/642 dated 13th October 1964).

(iii) The Railway Police Reviews should contain statistics about thefts under different heads as mentioned below:-

Thefts:

(1) Running Train Thefts:

(a) of goods consigned to the charge of Railway Administration.

(b) of goods in charge of passengers themselves.

(i) First Class compartments.

(ii) Other parts of the train including Second Class compartments.

(2) Goods Shed Thefts.

(3) Yards Thefts.

(4) Platform Thefts.

(5) First Class Waiting Room Thefts.

(6) Second Class Waiting Halls Thefts

(7) Thefts by pick-pockets.

(8) Miscellaneous Thefts.

They should also contain remarks about the watch or patrolling systems at various yards, platforms and good sheds and ways and means devised to prevent these offences.

(iv) The additional information as follows should be supplied in this Part while offering comments on Prohibition cases, under Class VI offences to enable the Inspector General of Police to assess the quality of work done by the District Police in the enforcement of the Prohibition Act:-

(a) Number of cases in which accused is known.

(b) Number of cases of consumption, and

(c) Number of cases of distillation.

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(v) In cases of Telegraph wire thefts, the Commissioner of Police/Superintendents of Police should ensure that Telegraph wire (Unlawful Possession) Act is invariably utilised wherever possible.

(vi) Under the head of the Bombay Prevention of Gambling Act, total number of accused arrested headwise and cash and instruments of gambling and cash seized should be mentioned as follows:-

	No. of cases	Accused arrested	Seizures
Section 12			
Section 12 (A)			
Sections 4 & 5.			
(vii) Under the head of the Bombay Prohibition Act, the number of cases in which accused are not known should be mentioned besides furnishing the break up of the offences and the information about detection by the Task Forces. The information could be in the following table:-			
	<u>Detection by Task Forces</u>	<u>Detection by others</u>	<u>Total detection</u>
	Known Un-known Total	Known Un-known Total	Known Un-known Total
Distillation.			
Possession of Implements			
Possession.			
Transport			
Sale.			
Drunkenness			
Others			
	Grand total:	Current month Previous month Corresponding month.	

(viii) Under the head of Preventive Action the Commissioner of Police Superintendent of Police should not reproduce mere figures which are already available In the table of preventive action. They have to discuss Endeavour in the light of the incidence of crime and correlate the two.

(ix) The fluctuation must be discussed head wise under respective head of crime and not in the beginning or the end. More than marginal fluctuations, in crime should be discussed giving the facts for such fluctuations both for improvement and deterioration, as the case may be. For adverse trend, line of action to arrest the deterioration must be spelled out. For improvement, the factors which brought out the improvement must be given.

(x) In respect of detected offences, break-up as P.I. (dated) and P.I. (undetected) must be shown.

(xi) Motives must be shown in all cases where relevant Vague motives like sudden quarrel for the offences of hurts, murders, riots, etc. without showing what reason led to the sudden quarrel should be avoided. The causes of sudden quarrel would be the correct motive. Similarly, motive must be correctly brought out in mischief and rioting cases. In all such cases, whether the offences was preventable by preventive Endeavour and whether such steps were taken or not should also be reported.

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(xii) Property crimes could best be shown in a table given below instead of in a narrative from:-

the	P .Stn.	Place of	M.O.	Property		Police	Name of	Whether
	Cr. No.	offence		Stolen	Recovered	disposal	accused, if transpired	accused is recidivist, Police survei lee etc.
	1	2	3	4	5	6	7	8

(xiii) If the case is classified as 'B' it should be specified whether 'B' final is submitted with or without prosecution. The reasons for giving false complaint should also be reported.

(I. G. P.'s Cir. No. G/642/71 dated 17th May 1971)

PART C

This Part should contain a statement showing information relating to important events other than concerning Crime such as :-

(i) Movements of Wandering Gangs.

(ii) Big fires, serious motor accidents, or other incidents not directly connected with crime like Police arrangements at fairs and big meetings, floods and other natural catastrophes.

(iii) The following points in regard to fatal accidents should invariably be incorporated in Statement 'c' of the Crime Review:-

(a) Number of person's dead and those received injuries from among the passengers or persons in the vehicle.

(b) Number of pedestrians and others died or injured.

(c) In the case of fatal accidents the Police Officers investigating the accident, should withdraw the driving licences of the driver and send it to the Regional Transport Officer along with a copy of the panchnama of the scene of accident for Suspension/cancellation of the licences.

(I. G. P. 's Cir. No. G/642/STB/62 dated 4th August 1962)

(iv) Information regarding posting and withdrawal of special parties during the month should be given in Statement 'C'. The Superintendents of Police should attach a detailed note with Monthly Crime Review showing dates of posting of special parties and reasons for posting of the same in statement 'c' as per instructions given in sub rule (2) of rule 86.

(I. G. P.'s Cir. No. G/642 dated 4th May 1964 and dated 25th May 1964)

(v) Information about special parties should be given in separate sheet and at the bottom of the statement the following information should be given:-

- (a) Number and strength of special parties as it stood at the beginning of the month
- (b) Number and strength of new parties posted during the Month..
- (c) Number and strength of parties withdrawn during the month.
- (d) Number and strength as it stood at the end of the month.

(I. G. P. 's Cir. No. G/642 dated 2nd June 1964)

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(vi) Under the head special parties, reasons for posting and continuance of the parties at particular places should be given. Reasons as to why they are continued so long are to be given. It is necessary to show briefly the circumstances as to why posting of a special party or its continuance, as the case may be, was necessary. It is necessary to show between which parties' breach of peace has taken place and whether preventive actions with interim bonds have been taken. This statement should cover S. R. P. deployment also.

(I. G. P. 's Cir. No. G/642/71 dated 17th May 1971)

PART D

(i) This Part should contain a brief narrative account of the circumstances and investigation of each individual crime classed as serious, reported or under investigation during the month. It should be shown whether the scene of offence was visited in each case by a Gazetted Officer, reasons for non-visitation being explained. The final results of all such cases should also be reported.

(ii) Each offence should be given serial number, which should be mentioned when a reference is made to the offence in subsequent reviews.

(iii) Cases in which the method of the criminal or the course of investigation is of; unusual interest should be described in detail for publication in the Police Gazette.

(iv) For the purposes of this Part, the expression "serious crime" means those offences enumerated in Rule 134 (1) which are required to be visited by a Superintendent or a Sub-Divisional Officer.

(v) The particulars should invariably be given, separately for each individual crime classed as serious crime reported or investigated during the month under review.

(vi) An entry should invariably be made below the above particulars as under:- "Scene visited by the Superintendent of Police Sub-Divisional Officer on (Here give dates during which the officer was engaged on the investigation)

The account of the serious crime should also contain a brief account of what part the Superintendent or the Sub-Divisional Officer personally took in the investigation.

(vii) The information regarding the assistance rendered by members of the Gram Rakshak Dal and Home Guards in detection and prevention of dacoities etc. should be incorporated in the body of the brief facts of the cases concerned in this Part.

(I. G. 's No. G/1252-1, dated 22nd December 1958)

(viii) The columns of 'D' statement of the monthly crime review should be properly filled in. Necessary explanation should be given in column No. 16. Delay in registration, delay in receipt of special report, delay in visitation and short halt at the scene of offence should invariably be explained. The officer should leave for visitation as soon as he receives information of the serious offence either by telegram or by a trunk call and should not wait for detailed report. Brief facts should contain all information which is necessary, viz.

- (1) Receipt of first information.
- (2) Description of the offence and the scene of offence.
- (3) Nature of evidence that is available and collected.

(4) Accused, whether arrested or not.

(5) Property recovered from accused.

(6) State of evidence on the last day of the month if charge sheet is not sent up Brief facts of a case may run up to 20 lines in order to give a clear picture.

(I. G. P.'s Cir. No. G/642 dated 26th December 1963)

(ix) Police officers should treat each and every accident on its merits and not as an instance of fault on the part of the driver of the motor car in each and every case. 'D'. Statement of Monthly Crime Review of cases should not merely state rash and negligent

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act of the driver as cause of accident but should give details as to what constituted the rash and negligent act, i.e., whether the driver was driving on the wrong side, whether he had failed to slow down seeing the obstruction, what was the speed of the vehicle, whether the driver had blown the horn etc. should be shown.

(I. G. P. 's Cir. No. G/1909 dated 24th February 1971)

(x) 'D' statement should be sent in 'respect of all visitable offences along with the Crime Review.

(xi) Each statement should be given serial number of district and it should correspond to those shown in serious crime register of the district. The consecutive serial number should be in accordance with the date of registration of offence. Date and time of arrest and age of the accused, must be invariably shown. Distance travelled should be shown in kilometers.

(xii) The objective of supervision should be to pin point the shortcomings for rectification of matters and for future improvement. Serious lapses, deliberate omissions or commissions, calculated to damage investigation should entail disciplinary action. Matters should be set right in further investigation before leaving the scene of offence.

(xiii) The disposal of cases by police and by court should be reported in the crime review immediately in the next month.

(I. G. P. 's Cir. No. 0/642/11 dated 11th May 1971)

PART E

(i) This Part should give a brief outline of the duties performed by the Superintendent, whether at headquarters or on tour, day-by-day for the period of the halt, irrespective of whether the work done is of a routine nature or not. Consequently all visits to Headquarters or Police Stations in headquarters and attendance at drill, parades, etc. must be recorded in this Part. Mention should also be made of inspections of Police Stations Outposts or other Police offices on the lines indicated in Sub-Rule (2) of Rule 580 Detailed timings and mileage of distance travelled by the Superintendent should invariably be given in respect of journeys undertaken to visit crime as well as other journeys out-side district headquarters.

(I. G. 's No. 30, dated 22nd June 1928; 44, dated 24th August 1935 and 1252-III, dated 9th September 1943)

(ii) While making an entry regarding checking of traffic, the Superintendent of Police should invariably mention the number of cases made out during the checking of traffic.

(iii) When an entry regarding departmental proceeding conducted is made, the work transacted during the day should be mentioned along with the last entry and date and also the next date of hearing fixed.

(I. G. 's Circular No. 0/642/71, dated 17th May 1971)

PART F

(i) The name of Gazetted officer, incharge, number of Police stations and out posts incharge of each Gazetted officer, the number of Police stations and outposts required to be inspected during the month in accordance with the approved programme, the number of Police stations and outposts inspected during the month and number of Police stations and outposts inspected during the year up to the end of the month under review, should be mentioned in the appropriate columns.

(ii) Reasons for failure to adhere to the approved programme should be mentioned in a note below the statement for all inspecting officers.

(I. G. P. 's Circular No. G/642/71, dated 17th May 1971)

PART G

The Commissioner of Police/Superintendents of Police should hold meetings of leading citizens including; M. L. As. and Panchayat Pramukhs, whenever they visit Police Stations and hear their views on the working of local Police Stations and the grievances of public and try to redress the same, wherever possible on the spot. Entries should be made in statement 'E'.

(Govt. of Gujarat, H. & C. S. D., Cir. No. MIS/1064/C-1157-D, dated 21st April 1964 and I. G. P.'s Cir. No. G/642 dated 23rd June 1970 and 17th May 1971.)

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(3) Superintendents of Police are expected to give their personal attention to the preparation of the crime review and not to regard it merely as work of a routine nature, leaving it entirely to their offices. It is their duty to write personally especially Parts B, C and D which are intended to be the personal observations of Superintendents. As far as possible, the review should be submitted over the signatures of Superintendents, themselves.

(4) The Superintendent of Police will submit copies of the crime review to the following officers:--

(i) The District Magistrate.

(ii) The Range Deputy Inspector-General of Police.

(iii) The Deputy Inspector-General of Police Criminal Investigation Department.(Crime & Railways).

(iv) The Inspector-General of Police.

Superintendents of Police in charge of Railway will send them to (1) the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime & Railways) (2) the Inspector-General of Police.

(5) On the first of every month, the Police Station Officer should send the relevant crime statistics for the preceding month to the Superintendent of Police and the Sub- Divisional Police Officer concerned.

(6) On receipt of information from all the Police Stations, the Superintendents of Police should prepare the statistical frame work of the monthly crime review without waiting for the receipt of the crime reviews from the Sub-Divisional Police Officers. Thereafter, on receipt of crime reviews from the Sub-Divisional Police Officers, the Superintendents of Police should finalise his comments and submit the monthly crime review so as to reach the Inspector-General of Police not later than tenth of the month.

(I.G.P.'s Cir. No. G/642/71 dated 1st January 1972).

(7) Whenever a case is shown in Part A-2 of the Crime review, as pending investigation for over three months, because of the non-receipt of sanction or opinion of the Finger Print Bureau, State Examiner of Questioned Documents, Chemical Analyser, etc. the date on which the sanction or opinion was sought should invariably be mentioned in the remarks column.

(I. G.'s No. 1252-VI, dated 4th March 1955)

(8) In statement 'A-I', disposal of the cases of preventive action made during the month, should be shown. The disposal of externment cases during the month. viz., the number of persons externed should also be shown and that these figures should be month wise and not progressive. The information on the following points should be furnished in statement 'A-1' of the monthly crime review.

Sr. No.	Cases	Current month	Previous month	Corres- pending month of year. the previous year.	Total current the year.	Disposal during	Total for corresp period of last year.	Total for last year.
1	2	3	4	5	6	7	8	9

(I. G. P. 's No. G/642, dated 15th July 1965)

(9) (i) The Commissioner of Police/The Superintendent of Police should add a new item namely "10 (b)" in prohibition crime review for the information received from the Superintendents/District Inspectors of Prohibition and Excise and action taken on it instatement 'A" of the monthly prohibition crime review and original column No. 10 should b renumbered as 10 (a).

(I.G. P.'s Cir. No. G/1947 dated 10th April 1964)

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(ii) It should indicate the existing bad prohibition pockets in the districts, how each one of them is dealt with, whether any additional pockets have been noticed and intimated to the Inspector-General of Police by the Superintendents of Police or by any other authority and what action is being taken to deal with them. The Superintendents of Police should give their personal appreciation of the situation in the districts with regard to prohibition in all its aspects.

(I. G. P.'s Cir. No. G/642 dated 11th September 1964)

(iii) The Commissioner of Police/Superintendents of Police should mention in column No.8 of the monthly prohibition review information regarding prohibition cases detected by the Home Guards during the month.

(I. G. P.'s Cir. No. G/1947 dated 20th February 1965)

(iv) The Commissioner of Police/Superintendents of Police should send the information, of disposal of prohibition cases decided in courts during the quarter under report in prescribed Performa to (1) the Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways), (2) the Director of Prohibition and Excise, and (3) the Collector of the district concerned. The Deputy Inspector General of Police, Criminal Investigation Department (Crime & Railways) shall compile the information and send a quarterly return instead of monthly. by 20th following each quarter endorsing copy to the. Secretary to the Government Education and Labor Department, Gandhinagar, and the Director of Prohibition and Excise, Gujarat State, Ahmedabad

(I. G. P.'s Cirs. No. G/1947 dated 4th February 1971 and No. G/1947 dated 20th April 1912)

249. Crime charts graphs and Maps.-(1) Officers mentioned in column 2 in the sub-joined table should maintain in Police Stations in the case of Sub-Inspectors and Inspectors in charge of Police Stations, and in their respective offices in the case of other officers crime charts in respect of cognizable crime falling under the heads shown in Form No.15 in Appendix I, month by month, in the manner indicated in column 3 of the table:-

Serial No.	Officers by whom crime chart should be maintained	The areas for which separate crime charts should be maintained.
1	2	3
1	Sub-Inspectors and Inspectors (in charge of and Police Stations).	(a) For each Outpost under the Police Station

2	All Inspectors (in charge of circles).	(b) For the Police Station as a whole. (a) For each Police Station, and (b) For the circle, as a whole.
3	All Sub-Divisional Police Officers .	(a) For each Police Station in the Sub-Division, and (b) For the Sub-Division as a whole.
4	All Superintendents of Police (District and	(a) For each Police Station and Railway). (b) For the District or Railway as a whole.
5	The Range Deputy Inspector-General of Police	(a) For each District in the Range, and (b) For the Range as a whole.
6	The Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways)	(a) For each District. (b) For each Range, and (c) For the State as a whole.
7	The Commissioner of Police,	(a) For each Police Station, and (b) For the Commissionerate as a whole.

(I. G. 's C. M. No. G/1252-I, dated 13th February 1958)

(2) (a) Officers mentioned in column 2 of the table in Sub-Rule (1) above should, similarly maintain, for the areas mentioned in column 3 of that table, graphs according to following instructions:-

(1) Graphs should be maintained for each type of offence under the following important heads of crime for the last 10 years:-

(i) Murder, (ii) Dacoity, (iii) Robbery, (iv) H. B. and Thefts, (v) Thefts, (vi) Riot, (vii) Hurt and (viii) other offences under the Indian Penal Code.

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(2) The graphs should show in a vertical column:-

- (a) Number of cases registered,
- (b) Number of cases sent up,
- (c) Number of cases convicted, and
- (d) Number of cases disposed of by Courts.

(3) The percentage of cases convicted to cases disposed of by Courts, should also be shown in the columns of the graph, year by year..

(b) There should be two sheets showing graphs in the form of columns.

Note.- The heads of crime in charts and graphs maintained at Police Station should be given Sub-headings in regional language.

(3) (a) Similarly, maps showing the location of the following heads of serious crime should be maintained by the officers mentioned in column 2 of the table in Sub-Rule

(1) (a) above for their respective charges:-

- (1) Dacoities.
- (2) Murders and culpable homicides.
- (3) Robberies.
- (4) House-breaking and thefts.

(b) In case of any serious outbreak of crime in any particular area, the Range Deputy Inspector-General of Police should submit with their reports a map of the affected area to the Inspector-General of Police and a copy to the Deputy Inspector-General of Police Criminal Investigation Department, (Crime & Railways) for information.

(4) Copies of the charts, graphs and maps maintained in accordance with this Rule should be submitted as indicated in column 3, by the officers mentioned in column 2, to the officers mentioned in column 4, to reach them by the dates mentioned in column 5, of the Sub-joined table:-

S. No.	Officers by whom crime charts should be maintained.	Whether crime charts or graphs or maps to be	Officers to whom the crime charts, graphs or maps, as the case	The date of the month succeeding the month to which the
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		sent. maps	may be, should be sent.	charts, graphs or relate on which they should reach the officers: shown in column 4.
1	2	3	4	5
1	Sub - Inspectors	Charts	Inspector in-charge of the circle.	5th.
2	Inspectors (whether in-charge of a Police Station or a circle).	Charts	Sub-Divisional Police Officers.	5th.
3	Sub-Divisional Police Officers.	Charts	Superintendent of Police.	10th.
4	Superintendents of Police.	Charts maintained for the district as a whole.	(1) Range Deputy Inspector General of Police. (2) Deputy Inspector General of Police C.I.D. (Crime & Railways)	10th.
5	Range Deputy Inspector-General of Police.	Charts maintained as a whole.	(1) Deputy Inspector General of Police, C. I. D. (Crime & Railways)	20th.
6	Commissioner of Police.	Charts, graphs and maps maintained for the Commissionerate as a whole.	Inspector-General of Police.	20th.
7	Deputy Inspector-General of Police C. I. D. (Crime & Railways).	All charts, graphs and maps maintained by him.	Inspector-General of Police.	20th.

(I. G. 's No. 1252-V, dated 29th November 1949 and I. G. 's C. M. No. CG/1252-I, dated 24th Jan 1958)

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(5) No separate covering letter is necessary in submitting the charts. The charts should be forwarded with an endorsement at the foot of the chart.

(6) The charts sent in any one month should contain figures of previous months also, and not of that month alone, The charts should be sent in by the prescribed date without fail.

(7) Superintendent of Police and Deputy Inspector-General of Police should maintain large scale maps of their jurisdiction showing:-

- (1) Police Stations.
- (2) Outposts.
- (3) Beats, and
- (4) Places where there is any heavy incidence of crime of a serious type.

(8) Similar graphs "for prohibition offences -should also be maintained in the offices of the Superintendents of Police separately on yearly and monthly basis indicating the classification and disposal of cases.

(I. G. 's M., No. 34-G, dated 17th April 1956.)

250. Maps and graphs of motor Accidents.-Separate maps and graphs in respect of motor accidents should be maintained at all Police Stations as well as in the offices of Superintendents of Police. Fatal accidents should be shown in red, serious accidents in green and minor accidents in blue.

(I. G. 's No. 6564, dated 22nd June 1950 and 22, dated 4th August 1950)

CHAPTER VII

PROSECUTION AND COURT PROCEEDINGS

251. Sanction to Prosecute.-(1) Prosecution for an offence under Section 101 of the Indian Railways Act, 1890, shall not be instituted without the sanction of the Railway Superintendent of Police, which shall be communicated to the General Manager of the Railway, immediately it is accorded.

(2) (a) Whenever any Judge or Magistrate, or a public servant not removable from his office except by or with the sanction of a State Government or some higher authority is to be prosecuted for any offence alleged to have been committed by him in the discharge of his official duty, the sanction of the Governor or the President of India, as the case may be, must be obtained as required by Section 197, Criminal Procedure Code.

(I. G. 's No. 6199, dated 17th/20th October 1947)

(b) The Indian servant of a diplomatic envoy is not immune from the law of the land, but is only treated differently in the execution of the law in consonance with international usage. If he commits a heinous, non-bailable offence, such as murder or if there is a case for the proper investigation of which the culprit must immediately be apprehended, the local authorities should report the case with full details to the Government of India in the Ministry of External Affairs, who will persuade the diplomatic envoy to waive immunity. Similarly, if a culprit takes refuge in an Embassy, the local authorities should seek the intervention of the Ministry of External Affairs for the surrender. In all such cases, redress is to be sought through diplomatic channels, and it will be the

Endeavour of the Government of India to ensure that the ends of justice are met without unduly compromising the freedom and dignity of a diplomatic envoy.

(Government of India, Ministry of External Affairs, letter No.8 (42)-P- II/50, dated 21st February 1951).

(3) When a public servant is to be prosecuted for an offence under Section 161 or Sections 165 and 165-A of the Indian Penal Code or Sub-section (2) of Section 5 of the Prevention of Corruption Act, II of 1947, the sanction of the Central Government, the Government of the State or any other authority competent to remove him from his office must be obtained before sending up a charge sheet, according as the public servant is removable from his post by the Central Government or the Government of the State or any other authority (vide Section 6 of the Prevention of Corruption Act).

(4) (a) If in cases referred' to in Sub-Rule (3) above, Government have directed a prosecution, that direction is merely of an administrative character and cannot take the place of a valid sanction required by law. A legal sanction, therefore, of the Inspector- General, the Deputy Inspector-General or the Superintendent of Police concerned is necessary and should be obtained before a charge sheet is sent up against a Police Officer dismissible by the Inspector-General, the Deputy Inspector General or the Superintendent of Police respectively.

(b) The sanction order to be issued under Section 6 (c) of the Prevention of Corruption Act, 1947, should, as far as practicable, be in Form 16 in Appendix I. Care should be taken to see that a statement of facts on which the prosecution is to be based is embodied in the sanction order. Such sanction orders need not be referred to the Remembrancer of Legal Affairs for scrutiny, unless there is any particular point involved on which his opinion is considered necessary.

(I. G. 's No. 5671, dated 9th November 1949)

(5) Whenever a member of the Home Guards organization is to be prosecuted, the sanctioning authority should, before sanctioning the prosecution, discuss the case with officer concerned of the Home Guards. The test to be applied in such cases would be the test, that would be applied if a complaint similar to the one made against a Home Guard were I made against a Police officer.

(G. C., H. D., No. HGS-H, 5353, dated 2nd July 1953).

(6) In the case of offences under the Bombay Co-operative Societies Act, 1925, no prosecution can be lodged without the previous sanction of the Registrar of Co-operative Societies.

(I. G.'s C.M. No. 151-V, dated 27th January 1955).

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(7) Drivers and conductors of the nationalised transport undertakings can be straight-away prosecuted for offences under the provisions of the Motor Vehicles Act, 1939 except those falling under Chapter VI of the Act in which case the matter should be referred to Government in the Home Department direct by the Superintendent of Police or the Commissioner of Police, as the case may be, for sanction to prosecute. Simultaneously the Police officers should endorse copies of the communications to the General Manager of the concerned nationalised transport undertaking and also to the Divisional Controller if he is different from the General Manager.

(G. L., H. D. No. MVA/4358/93115, dated 13th/14th March 1959).

(8) According to Section 195 clauses (a) (ii) and (b) (i) of the Criminal Procedure Code, no court shall take cognizance of an offence punishable under Section 182 Indian Penal Code except on the complaint in writing of the public servant concerned or of some other public servant to whom he is subordinate and for section 211 of the Indian Penal , Code except on the complaint in writing of that court or of some other court to which that court is subordinate. As the Government do not want to discourage members of the public giving information against Government servants, utmost

care should be taken before requesting prosecutions under Sections 182 and 211 of the Indian Penal Code against the persons making false complaints about misconduct of Government officials and in no case should such prosecutions be launched without the sanction of the Government.

(G. Cs., P. & C. S. D., No. 1581/34, dated 21st October 1937 & 16th January 1949).

(9) No sanction is necessary for prosecution of Government servants under Section 409 of Indian Penal Code as the act of criminal misappropriation cannot be said to have been committed by him while acting or purporting to act in the discharge of his official duties and such an offence has no direct connection with his duties, as public servant's official status only furnishes him with the occasion or opportunity to commit the offence.

(I. G. P. 's No. G/1927/72/1593 dated 27th October 1972).

(10) Whenever sanction is required by the Officers of the Anti-corruption Bureau, Criminal Investigation Department and other Police officers for prosecution of Panchayat employees and if the Panchayat officers do not accord sanction, then in such cases, the District Development Officer should forward papers to the vigilance Commissioner through the Development Commissioner.

(Govt. H. D. No. EST-1072-0498-C, dated 28th September 1972 and I. G. P.'s No. G/1927-72/215, dated 17th December 1972).

252. Officers Conducting Prosecution.-(I) Assistant Public Prosecutors will conduct and prosecute all serious cases and such other important cases as they may be deputed to take up in the Courts of Magistrates. All other cases will be conducted by a Police officer not below the rank of an Inspector provided he has not taken any part in the investigation of the case, according to Section 25 of the Criminal Procedure Code.

(2) If in any Police case it is considered necessary, in view of its importance, - that the services of the Public Prosecutor should be retained to conduct the prosecution in the Court of a Magistrate, application should be made to the District Magistrate for the purpose.

(3) The sanction of Government should be obtained when it is considered necessary to retain the services of any pleader of counsel other than the Government Prosecutor, and any officer who calls in additional professional assistance without previously obtaining the sanction of Government will be held personally responsible for the remuneration of the person whom he has employed without such authority.

(G. R., J. D., No. 4416, dated 10th December 1959).

(4) The main duty of an Assistant Public Prosecutor is to prepare and prosecute cases in Courts. With pleaders now so readily available for the defence, It is imperatively necessary that as many Police cases as possible should be properly conducted in Courts. It is more to the point, therefore, that Assistant Public Prosecutors should appear in each and every possible case, rather than be engaged in Subsidiary duties, such as opinion work.

(5) It is, the chief duty of Sub-Inspectors to supervise the investigation of crime, Collect evidence assure themselves that only true cases are put up before the Courts, and Instruct the prosecuting officers so that when a case is sent into Court, the evidence may be presented in the best manner possible.

(G. L., H. D. No. 3650-C, dated 24th September 1923).

(6) (ii) Section 302 (1) of the Criminal Procedure Code, however, provides that any Magistrate enquiring into or trying any case, may permit the prosecution to be conducted by any person, other than an officer of Police below the rank of an Inspector, but no person other than the Advocate General or Government Advocate, or Public Prosecutor shall be entitled to do so without such permission.

(b) Normally criminal cases are being conducted by the Public Prosecutors on behalf of the Government in the district or lower courts. There are however a few occasions when (Government might consider it necessary to appoint a special public prosecutor on the recommendation of the Inspector-General of Police or the District Magistrate as the case may be, for conducting cases of a complicated nature, of unusual importance, and requiring marked ability and industry to be displayed, as envisaged under the Law Officers Rules. Such proposals should be made to the

Government in the Home Department, endorsing a copy of the proposal to the Government in the Legal Department for

prompt action. Such proposals should contain all details of the cases with full justification and should be made in good time so that Government in the Home, Legal and Finance Department is enabled to examine and take a decision on the merits of each case. '

(Govt. H. D. No. PRO/1067-D, dated 7th February 1967 and I. G. P.'s No. G/1909 dated 16th May 1967).

(7) The Assistant Public Prosecutors should however, not, except upon a suggestion by the court or for other special reasons, which it will be for them to substantiate, withdraw any prosecution without first consulting the District Magistrate the Commissioner of Police as the case may be. If necessary, in any particular case, an application should be made to the court for a short adjournment of the hearing to permit such consultation.

(8) Cases relating to offences punishable with imprisonment for a term up to two years are "summons cases."

(Section 2, clause W & X of Criminal Procedure Code, 1973)

(9) Muddled property produced in committal cases should be carried to the Sessions Court by the Police, subject to the condition that the expenses incurred should be borne by the Sessions Court.

(I. G. 's C. M. No. G/3679, dated 19th March 1958)

(10) The cases where breach of the provisions of the Drugs and Magic Remedies (objectionable Advertisements) Act, 1954 is suspected the services of the District Government Pleaders and the Public Prosecutors should be utilised.

(G. R., L. s. G. P. H. D. No. ACA-1054-H, dated 22nd November 1955).

(11) Every Assistant Public Prosecutor and every Prosecuting Police officer will maintain a register of cases conducted by him in Form No. P. M. 190 (e).

(I. G. 's No. 6896, dated 10th June 1950)

(12) With a view to: improve the investigation, the commissioner of Police/Superintendents of Police should instruct the senior Assistant Public Prosecutor to study acquittal judgment in all cases dealt with in the lower courts and to note on any Police failures or mistakes which might have led to such acquittals, and take further appropriate action.

(I. G. P.'s Cir. No. G/642 dated 5th September 1964).

253. Withdrawal from Prosecution.-(I) According to Section 321 of the Criminal Procedure Code, the Public Prosecutor or the Assistant Public Prosecutor in charge of a case, with the consent of the Court, at any time before the Judgment is pronounced withdraw from the prosecution of any person either generally or in respect of any one or more of the offences for which he is tried; and upon such withdrawal the accused shall be discharged or acquitted as the case may be. Provided that where the offence:-

(i) was against any law relating to a matter to which the executive power of the Union extends, or

(ii) was investigated by the Delhi Special Police Establishment under the Delhi Special Police Establishment Act, 1946, or.

(iii) involved the misappropriation or destruction of or damage to any property belonging to the Central Government, or

(iv) was committed by a person in service of the Central Government while acting or purporting to act in the discharge of his official duty,

and the Prosecutor in charge of the case has not been appointed by the Central Government he shall not unless he has been permitted by the Central Government to do so move the Court for consent to withdraw from the prosecution and the Court shall, before according consent, direct the

Prosecutor to produce before it the permission granted by the Central Government to withdraw from the prosecution.

(2) As regards criminal cases filed in connection with the incidents of communal disturbances agitations, strikes, etc. the Public Prosecutor or the Assistant Public Prosecutor should obtain prior permission of the Government before requesting the court for withdrawal of cases. For details see rule 256.

(Govt., H. D. (Spl.) Cirs. No. SB-I/COM-1164/5368, dated 28th February 1966 and SB-III-COM-1071, dated 14th February 1971)

(3) As regards cases other than those mentioned in Sub-rule (2), the Public Prosecutors or the Assistant Public Prosecutors should not however, except upon a suggestion by a court or for other special reasons which it will be for them to substantiate, withdraw any prosecution without first consulting the District Magistrate/the Commissioner of Police, as the case may be. For details see sub-rule (7) of rule 252.

254. Trial to be Expeditious.-(1) Priority should, as a rule, be given to criminal work over other work and every effort made to reduce, as far as possible, the hardship to parties and witnesses, which the proceedings entail. The hearing of a case should usually go on from day to day accepting authorised holidays. Adjournments when necessary should be as short as the circumstances will permit.

(G. L., H. D. No. 3650-C, dated 24th September 1923)

(2) To avoid the needless harassment to witnesses by detention for cross-examination after the charge has been framed, Magistrates will usually find it convenient not to wait for the completion of the evidence for the prosecution, but to frame the charge as permitted by Section 246, Criminal Procedure Code, at an earlier stage, as soon as, from the examination of the prosecutor or complainant or otherwise when, the Magistrate is of opinion that there is ground for presuming that the accused has committed an offence which such Magistrate is competent to try and which in his opinion could be adequately punished by him.

(G. L. H.D. No. 3650-C, dated 24th September 1923)

(3) (a) Police officers should give due priority to court attendance over all other work. The fact that they were called away by superior officers, however high should not be made an excuse by them for late attendance or non-attendance in Court.

(I. G. 's No. 1484, dated 20th December 1947, 34 (1484), dated 17th September 1949 and 38, dated 11th November 1948).

(b) Officers and men of City and Town Police Stations at District places who, when summoned, cannot attend Courts for any valid reasons should obtain certificates regarding their non-attendance from the Home Inspectors and send them immediately to the Courts concerned. In the case of rural Police Stations, the Sub-Inspector concerned should send the certificates to the Courts. If the certificates pertain to the non-attendance of the Sub-Inspectors themselves, they should send copies of the certificates to the Sub-Divisional Police Officer, who will check up that the certificates are invariably sent to the Courts concerned in good time before the hearing of the cases. Similarly in Commissionerate area a certificate from the Divisional Superintendent should be obtained.

(I. G. 's C. M. No. 1484/IV, dated 2nd August 1954 and G. L. H. D., No. 6833/6/9490-D, dated 6th May 1953).

(4) Judges and Magistrates should not be approached by the offence by writing to them letters confidentially or otherwise for the purpose of expediting the hearing of any cases. The proper procedure to be followed in such cases is to ask the Public Prosecutor or the Assistant Public Prosecutor to move the Court for passing necessary orders.

(I. G. 's Cir. No. 2400, dated 10th November 1953)

(5) With a view to avoid enormous delay in the disposal of criminal cases against Government servants and Panchayat servants accused of crime, the prosecuting officers should object to unnecessary adjournments asked for by the advocates of the accused.

(I. G. P.'s Cir. No. G/1921/72/18177/71, dated 8th June 1972).

(6) (a) According to Section 437 (6) of the Criminal Procedure Code, if in any case triable by a Magistrate, the trial of a person accused of any non-bailable offence is not concluded within a period of sixty days from the first date fixed for taking evidence in the case, such person shall, if he is in custody, be released on bail. The Police Officers should therefore, keep the witnesses present on scheduled dates so that the trial may commence and be concluded within sixty days.

(I. G. P.'s Cir. No. G/36, dated 19th December 1963)

(b) The Commissioner of Police/Superintendents of Police should see that their subordinates attend the courts on due dates without fail and return the summons to the courts in time to enable the courts to take action against the witnesses who have not remained present though served with summons.

(I. G. P.'s Cir. No. G/1909, dated 30th May 1962)

(7) The Commissioner of Police/Superintendents of Police should see that Police officers send the case papers of Sessions triable cases to the Public Prosecutors before 15 days of the hearing of the cases without fail. Any delay or irregularity should be adequately punished.

(I. G. P.'s Cir. No. G/1909, dated 11th January 1967)

(8) In important cases where the case depends upon the evidence of a solitary witness or relatives or friends of the accused, the investigating officer should see that statements of such witnesses are recorded under Section 164 Criminal Procedure Code. If any witness whose statement is recorded under Section 164 Criminal Procedure Code, turns hostile during the trial, the prosecutors should request the court to express an opinion to the effect that the witness appearing in the proceedings had knowingly or willfully given false evidence or had fabricated evidence, and that in the interest of justice, the witness/witnesses be tried summarily for giving fabricated or false evidence and for that end to take cognizance of the offence and after giving the offender a reasonable opportunity of showing cause why he should not be punished for such offence, try such offender summarily and sentence him, as laid down under Section 344 of the Criminal Procedure Code.

(I. G. P.'s Cir. No. G/1909, dated 25th October 1968)

(9) Prompt institution of cases in the courts or their speedy disposal would go a long way in bringing the anti-social elements under control.

(I. G. P.'s Cir. No. G/1927/73/2337, dated 22nd June 1973)

255. Prosecutors to Press for appropriate sentences or orders in certain cases.-(I) The Public Prosecutor or the Assistant Public Prosecutor, as the case may be, should press for deterrent sentences in the following cases:-

(a) Dacoity by night accompanied by violence.

(b) Cases of gambling, particularly those in which bucket shops are involved.

(G. R. J. D., No. 1903, dated 18th April 1905 and I. G. 's No. 55, dated 15th August 1927)

(c) Cases of illicit distillation or transport of liquor (e.g., substantial fine and in default substantial imprisonment will be preferable to a combination of a small fine and a short term of imprisonment. In aggravated cases, in which imprisonment is desirable in any case, there should also be a substantial fine with a substantial term imprisonment in default).

(I. G. 's No. 5468-1, dated 27th October 1944)

(d) Offences regarding hoarding, profiteering and pilfering.

(G. R. H. D., No. 7665/4, dated 21st January 1944)

(e) Cases under the Explosive Substances Act, 1908.

(G. R. H. D., No. 3755/5, dated 16th December 1947)

(f) Offences under the Factories Act, 1934.

(G. R. H. D., No. 5127/5, dated ~.July 1948)

(2) (a) Cases, such as thefts of steel keys, etc. on railway lines, which are likely to result in serious accidents, thereby endangering the safety of the traveling public should not be indifferently dealt with by Police Station Officers (both Railway and District Police). An Inspector of police must be made responsible for the supervision of such cases, and Assistant Public Prosecutor must deal with them in Court and press for deterrent sentences.

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(b) Under no circumstances should a Prosecutor agree or concede to a punishment lesser than the minimum prescribed by law unless he has first consulted the District Magistrate and obtained his instructions in the matter. In the absence of such instructions the only course for him to adopt is to point out to the Court the policy of the law as evident from the particular legislation and to leave it to the Court to decide what sentence is adequate in the circumstances of the case.

(G. C. L. D., No. 12871-A, dated 13th June 1953)

(c) Persons who are fined in a court of Law generally prefer to undergo imprisonment in default of payment of fine; although they are in a position to pay it. The Prosecutors should move the trying Courts to recover the fine in all suitable cases.

(I. G. 's No. 4645, dated 18th April 1950)

(3) (a) The officer conducting the prosecution should remind the Court of the provisions of Section 250, Criminal Procedure Code, in every case in which, during the bearing, he has had reason to form the opinion that the complaint was false and either frivolous or vexatious.

(I. G. 's No. 16694-A, dated 23rd November 1916)

(b) According to Section 357 of the Criminal Procedure Code, when a court imposes a sentence of fine or a sentence (including a sentence of death) of which fine forms a part, the court may, when passing judgment, order the whole or any part of the fine recovered to be applied-(a) in defraying the expenses properly incurred in the prosecution, (b) in payment to any person of compensation for any loss or injury caused by the offence when compensation is, in opinion of the court, recoverable by such person in a civil court, (c) when any person is convicted of any offence of having caused the death of another person or of having abated the commission of such offence, in paying compensation to the persons, who are, under the Fatal Accidents Act, 1855, entitled to recover damages from the persons sentenced for the loss resulting to them from such death, (d) when any person is convicted for an offence which includes thefts, criminal misappropriation, criminal breach of trust or cheating or of having dishonestly received or retained or of having voluntarily assisted in disposing of stolen property, in compensating any *bonafide* purchaser of such property for the loss of the same if such property is restored to the possession of the person entitled thereto and (e) when a court imposes a sentence, of which fine does not form a part, the court may when passing judgment, order the accused person to pay by way of compensation, such amount, as may be specified in the order to the person who has suffered any loss or injury by reason of the act for which the accused person has been so convicted. The prosecutors should therefore bring to the notice of the court the provisions of Section 357 of Criminal Procedure Code and request the court to order the accused to pay compensation to the person aggrieved.

(4) As a more extensive use of Section 356 of the Code of Criminal Procedure will assist the police in preventing offenders from returning to the place of their former activities, and in curtailing crime, all Assistant-Public Prosecutors should bring prominently to the notice of the Courts the necessity of passing orders under Section 356 Criminal Procedure Code.

(I. G. 's No. 43, dated 30th October 1936)

(5) In a trial of any person for any offence punishable under Chapter VIII (excepting offences under Sections 153-A, 153-B and 154 of the Indian Penal Code) or any offence which consists of or includes assault or using criminal force or committing mischief or any offence of criminal intimidation or any other offence which caused or was intended or known to be likely to cause a breach of peace, the prosecuting officer should remind the court of the advisability of demanding security for keeping the peace under Section 106, Criminal Procedure Code, in the event of the person being convicted of any such offence.

(6) Where the accused appears to the trying Court to be between 16 and 21 years of age, the Court should invariably record evidence as to his age, such as the birth certificate of age after a medical examination etc., and record definite finding as to age, so that though the accused may not be in the Opinion of the trying Court fit for detention in a Borstal School, the Inspector-General of

Prisons may later order such detention under Section 11 of the Borstal Schools Act. All Prosecutors and other officers conducting cases against juveniles should invariably produce evidence of age before the trying Court.

(G. Cs. H. D., No. 5210/3, dated 5th April 1941 and 7th July 1942)

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Chapter VII

256. Investigation and conducting of cases or withdrawal of cases arising out of Communal Disturbances.-(I) The Public Prosecutors or the Assistant Public Prosecutors, as the case may be, conducting cases arising out of communal disturbances, should always press for imposition of maximum possible punishment on such trouble makers when convicted by courts. The Police should also make all endeavours to unearth the conspiracy, if any, which might have been the cause of communal riot so as to break it up and recover arms or ammunition, if secretly collected by conspirators in furtherance of their intention to cause riots.

(Govt. H. & C. S. D., Cir. No. SB-I-COM-1164/586 dated 22nd May 1966)

(2) Where the Commissioner of Police/District Magistrates feel that a criminal case filed, in connection with incident of communal disturbances, agitations, strikes, etc. deserves to be withdrawn, they should invariably consult Government in all such cases and only after obtaining the permission of the Government, the cases should be ordered to be withdrawn. For this purpose, they should give sufficient justification while submitting such proposals to the Government. No prosecutor should withdraw any criminal proceedings without the orders from the Commissioner of Police/District Magistrates, as the case may be, who are required to obtain prior approval of the State Government.

(Govt. H. D. (Spl.) Cirs. No. SB-I/COM-1164/5368, dated 28th February 1966 and SB-III-COM-1071 dated 14th February 1971)

(3) The Commissioner of Police/Superintendents of Police should see that cases arising out of communal disturbances should be investigated promptly and efficiently and trial conducted speedily. If need be, special teams for investigation be detailed for this purpose.

(Govt. H. D. (Spl.) No. SB-I./COM/1070/6173. dated 9th June 1970)

257. Attendance in Court of Investigating Officers.-(I) In all important criminal cases, and especially in cases of murder and dacoity it is desirable that the Police officer by whom the investigation was conducted should be in readiness to be examined, if necessary, as a witness in regard to the circumstances of investigation. The police officer should bring with him his diary of the case and also the statements of the witnesses taken down by him under Section 162, Criminal Procedure Code. He should study his diary before attending Court to give evidence and should, as far as practicable, avoid the use of the diary for refreshing his memory while in the witness-box. If, however, it becomes inevitable to use the diary for that purpose, he should not hesitate to do so. The Court has power to look into the diary and use it to put questions to the Police officer on the basis of its contents. In that case an extract from the diary should be attached to the record of the case. As regards the use of the statements of witnesses, reference should be made to Rule 172. (2) The Commissioner of Police/Superintendents of Police should see that the investigating officers invariably keep the prosecution witnesses present in the court on due dates and the Police officers themselves should also remain present for their evidence in the court, except under unavoidable circumstances. Negligence should be adequately punished.

(I. G. P.'s Cir. No. G/1909, dated 30th May 1962)

258. Attendance to watch the trial of important Cases.-(I) Commissioner of Police/Superintendents of Police will either in person or by subordinate investigating officers, watch serious cases till they have been finally disposed of either by magisterial or by judicial officers, there being no doubt that in many cases the guilty escape punishment merely through the negligence with which cases are prepared for trial, and because no person acquainted with them from the beginning watches them in their later stages. The Commissioner of Police/Superintendent of police should require a brief report from the officer watching each case. He should confer, in particular cases, with the Government Prosecutor and should give such instructions as may prevent a recurrence of errors and defects injurious to the success of prosecutions.

(G. C., dated 25th October 1952)

(2) An unwarranted exhibition of zeal on the part of Police to try and make prosecution witness to conform to previous Police statement is strongly objectionable and further that such action amounts to interference with a witness, as it renders Section 162, Criminal Procedure Code nugatory.

(I. G. 's C. M. No. 6596-A, dated 26th February 1954)

(3) As regards the duty of superior officers in the matter of citing themselves as witnesses in cases visited by them, reference should be made to Rule 135 (7).

Inspection of scenes of offences by Courts

(4) As soon as a Court intimates his intention of visiting the scene of an offence, the Police Station Officer should make such arrangements as may be necessary.

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259. Summary procedure for trial for giving false evidence.-According to Section 344 of the Criminal Procedure Code, the Court of Sessions or the Magistrate of the First Class, at the time of delivery of any judgment or final order disposing of any judicial proceedings, if expresses an opinion that any witness appearing in such proceedings had knowingly or willfully given false evidence or had fabricated false evidence with the intention that such evidence should be used in such proceedings, it or he may, if satisfied, in the interest of justice that the witness should be tried summarily for giving or fabricating false evidence, take cognizance of the offence and may, after giving the offender a reasonable opportunity of showing cause why he should not be punished for such offence, try such offender summarily and sentence him to imprisonment for a term which may extend to three months or to fine which may extend to Rs. 500 or with both. The Court shall follow as quickly as practicable the procedure prescribed for summary trials. The Court of Sessions or the Magistrate of the First Class having come to know that an appeal or an application for revision has been preferred or filed against the judgment or the order in which the opinion referred to above has been expressed, it or he shall stay further proceedings of trial until the disposal of the appeal or application for revision and thereupon the further proceedings of trial shall abide by the results of the appeal or the application for revision.

260. Summary procedure for punishment for non-attendance by a witness in obedience of summons.-According to Section 350 of the Criminal Procedure Code, if any witness who has been summoned to appear before a criminal court is legally bound to appear at certain place and time in obedience of the summons and without just excuse neglects or refuses to attend at that place or time and the court before which the witness has to appear is satisfied that it is expedient in the interest of justice that such a witness should be tried summarily, the court may take cognizance of the offence and after giving the offender an opportunity of showing cause why he should not be punished under this Section, sentence him to fine not exceeding Rs. 100. The Court shall follow as quickly as may be practicable the procedure prescribed for summary trial.

261. How to give Evidence in Court.- The following may serve as some of the useful hints for the guidance of Police officers in the matter of giving evidence in Courts:-

- (a) Always appear in uniform for giving evidence in Court.
- (b) Always salute the Court both when entering and leaving the witness-box, I
- (c) Be attentive, never fidget.
- (d) Be calm and dignified in giving evidence so as to impress favorably by manner and appearance the Court or the assessor and counsel.
- (e) In giving evidence look neither to your right nor to your left but look towards the Court.
- (f) When questioned by the adverse party, never turn towards the prosecution counsel
- (g) Do not answer a question by means of a question.
- (h) Answer no question at random without understanding it. If the question is not clear enough to be understood, say so and politely ask counsel to repeat it in a simple form.
- (i) If you do not remember any fact, say so at once, rather than attempt a random answer.

(j) Never show irritation and do not be offended if the cross-examiner questions you in a way you do not like.

(k) If the questions are unnecessarily vexatious or obnoxious represent the matter to the Court and seek its protection. Above all, do not quarrel with counsel.

(l) Carefully distinguish between what you know personally from what you may have heard from others.

(m) In answering a question, volunteer no unnecessary information, e.g., it. Asked whether the colour of a certain article is while, do not say no, it is black say simply "No" or "Yes".

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Chapter -II

(n) If you consider that some of your answers require an explanation which counsels failed to elicit, you may, when both sides have finished, represent the matter to the Court.

(o) Remember that all that the Court wants to ascertain is the guilt or innocence of the accused, and not any intelligence displayed by you.

(p) Give no more details regarding the source of your information than "from information received, I did this or that".

(q) Avoid lengthy answers, as they furnish more material for cross-examination. Your replies should be commendably short.

(r) Do not leave the Court without the permission of the Court, unless all evidence adduced by the party summoning you has been finished.

262. Procedure to be followed when a Government Servant is summoned by a Court to Produce Official Documents for the purpose of giving Evidence.-(l) The law relating to the production of unpublished official records as evidence in Courts is contained in Sections 123, 124 and 162 of the Indian Evidence Act, 1872 (Act I of 1872), which are reproduced below:-

"123. No one shall be permitted to give any evidence derived from unpublished official records relating to any affairs of State, except with the permission of the officer at the Head of the Department concerned, who shall give or withhold such permission as he thinks fit.

124. No public officer shall be compelled to disclose communications made to him in official confidence when he considers that the public interest would suffer by the disclosure.

162. A witness summoned to produce a document shall, if it is [obis- possession or power, bring it to Court, notwithstanding any objection which there may be to its production or to its admissibility. the validity of any such objection shall be decided on by the Court.

The Court, if it sees fit, may inspect the document, unless it refers to matters of State, or take other evidence to enable it to determine on its admissibility. If for such a purpose it is necessary - to cause any document to be translated, the Court may, if it thinks fit, direct the translator to keep the contents secret; unless the document is to be given in evidence, if the interpreter disobeys such direction, he shall be held to have committed an offence under Section 166 of the Indian Penal Code."

(2) For the purposes of Section 123 above, the expression "Officer at the Head of the Department concerned" may be held to mean the officer who is in control of the Department and in whose charge records of the Department remain. Ordinarily such an officer would be the Secretary to the State Government in the case of State: Government and the Secretary, Additional Secretary or Joint Secretary in charge of the Ministry in the case of the Government of India. But in case of attached offices like Directorates, the Director- General may be regarded as "the Head of the Department" for the purposes of this section. Only such an officer should be treated as the authority to withhold or give the necessary permission for the production of official documents in evidence. In

case of centrally administered States, the Chief Commissioner or the Lieutenant Governor, as the case may be, is regarded as the Head of the Department and not his Secretaries.

(3) In respect of documents (1) emanating- from a- higher authority, i.e., the Government of India, or the State Government, or which have formed the subject of correspondence with such higher authority or (2) emanating from other Governments, whether foreign or members of the Commonwealth, the Head of the Department should obtain the consent of the Government of India or of the State Governments, as the case may be, through the usual official channels before giving permission to produce the documents, in Court, or giving evidence based on them unless the papers are intended for publication or are of a purely formal or routine nature when a reference to higher authority may be dispensed with.

(4) In the case of documents other than those specified in Sub-Rule (3) above, production of documents should be withheld only in public interest when such disclosure would be injurious to national defence, or to good diplomatic relations or where the practice of

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keeping a class of documents secret is necessary for the proper functioning of the public service. Some High Courts have pointed out the circumstances under which no such privilege should be claimed, e.g., privilege is not to be claimed on the mere ground that the documents are State documents or are official or are marked confidential or, if produced, would result in Parliamentary discussion or public criticism or would expose want of efficiency in the administration or tend to lay a particular Department of Government open to a claim for compensation. The mere fact that the Head of the Department does not wish the documents to be produced is not an adequate justification for objecting to their production. The High Courts have also observed that refusal to produce documents relating to affairs of State implies that their production will be prejudicial to public interest. Consequently the reasons therefore should be given in an affidavit in Form No. 17 in Appendix I, at the appropriate place.

(5) In a case of doubt the Head of the Department should invariably refer to higher - authority for orders.

(6) These instructions apply equally to cases in which Government is a party to the suit. In such cases much will depend on the legal advice as to the value of the documents, but before they are produced in Court, the considerations stated above must be borne in mind, and reference to higher authority made, when necessary.

(7) A Government servant other than the Head of a Department who is summoned to produce an official document should first determine whether the document is in his custody and he is in a position to produce it. In this connection, it may be stated that all official records are normally in the custody of the Head of the Department and it is only under special circumstances that an official document can be said to be in the custody of an individual Government servant. If the document is not in the custody of the Government servant summoned, he should inform the Court accordingly. If under any special circumstances, the document is in the custody of the Government servant summoned, he should next determine whether the document is an unpublished official record relating to affairs of State and privilege under Section 123 should be claimed in respect of it. If he is of the view that such - privilege should be claimed or if he is doubtful of the position, he should refer the matter to the Head of the Department, who will issue necessary instructions and will also furnish the affidavit in Form No 17 in suitable cases. If the document is such that privilege under Section 123 could not be claimed but if the Government servant considers that the document is a communication made to him in official confidence and that the public interest would suffer by its disclosure, he should claim privilege under Section 124 in Form No. 18. In case of doubt he should seek the advice of the Head of the Department.

The expression "Head of the Department" used in this paragraph will have the same meaning as the expression "Head of the Department" in Sub-rule (2).

(8) The Government servant who is to attend a Court as a witness with official documents should, where permission under Section 123 has been withheld, be given an affidavit in Form No. 17 in Appendix I, duly signed by the Head of the Department. He should produce it when he is called upon to give his evidence, and should explain that he is not at liberty to produce the documents before the Court, or to give any evidence derived from them. He should, however, take with him the papers which he has been summoned to produce.

(9) The Government servant who is summoned to produce official documents, in respect of which privilege under Section 124 has to be claimed, will make an affidavit in Form No. 18, in Appendix I. When he is not attending the Court himself to give evidence, he shall have it sent to the Court along with the documents. The person through whom the documents are sent to Court should submit the affidavit to the Court when called upon to produce the documents. He should take with him the documents which he has been called upon to produce but should not hand them over to the Court unless the Court directs him to do so. They should not be shown to the opposite party.

(10) The Head of the Department should obtain from entering into correspondence with the presiding officer of the Court concerned in regard to the grounds on which the documents have been called for. He should obey the Court's orders and should appear personally, or arrange for the appearance of another officer in the Court concerned, with the documents, and act as indicated in Sub-Rule (8) above, and produce the necessary affidavit if he claims privilege.

(G. R., H. D. No.. 8996/6, dated 28th April 1954)

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263. Summaries of final orders.-(1) Each Magistrate shall, immediately after disposing of a cognizable case, forward through the Police Station from which the case came, to the Sub-Divisional Police Officer concerned a summary of a final order in Form E. It should be sent in all cases, whether disposed of by trial or otherwise, brought to an end by the death, lunacy or escape of the accused or in any other way whatsoever. When a case has been tried by a Magistrate, he will issue the summary. In cases tried by the Court of Session, the committing Magistrate will forward the required summary after the disposal of that case by that Court or by the High Court. When the result of a case is changed

on appeal or revision, the Magistrate who sent the original summary will send a summary of the amendment in Form F.

(G. R., J. D., No. 6272, dated 19th November 1888)

(2) If an accused in a case dies after a charge sheet has been sent up against him but before any evidence is recorded by the trying Magistrate, the Magistrate should be requested to issue an 'A' summary.

(I. G. 's No.2, dated 17th January 1940)

(3) Summaries in cases not sent up for trial but disposed of on final reports should be issued by a Magistrate who is empowered to take cognizance of the offence on a Police report.

(4) Reports in cases in which investigation has been refused by the Police under Section 157 (1) (b), Criminal Procedure Code, a Magistrate's reply is necessary. It is sufficient to enter against entry No.4. of the summary (Form E) that the case is "not investigated by the Police acting under Section 157 (1) (b), Criminal Procedure Code, with Magistrate's approval." The Magistrate should also include in his summary the value of property alleged to have been stolen in such cases, unless investigation was refused on the ground that the complaint was of a civil nature.

(G. Rs. J. D. No. 46, dated 6th January 1911 and 2590, dated 1st April 1912)

(5) If the case is "true" it should be classed as "A". This applies even where an accused is tried and, in the absence of conclusive evidence, is acquitted. The classes 'B' and 'C' are reserved for cases in which it is found that no offence has been committed at all either by the accused or by anyone else. In such cases, if the complaint is found to be "false and maliciously false" the case

should be classed as 'B'. If the case is found to be "neither true nor false" but not maliciously false" it should be classed as "C". If the case ends in a conviction for a non-cognizable offence it should be classed as "Non-cognizable". A case where police report made under Rule 232 reveals commission of only a non-cognizable offence may also be classed as "Non-cognizable".

(G.R., J.D., No. 3499, dated 15th May 1896)

(6) If the case has been compounded, Magistrates should make no attempt to characterize the complaint, but should simply record against entry No.3 of the summary Form E that the case has been compounded. Similarly when an accused person dies, or " becomes a lunatic or escapes, this fact should be mentioned against entry No.3 of the summary form.

(G.R., J.D., No. 1260, dated 15th February 1897)

(7) Magistrates should send direct to the office-in-charge of the Police Station for record summaries of their final orders in the prescribed form in cases referred to the- Police for enquiry under Sections 156 and 202, Criminal Procedure Code.

(G.R., J.D., No. 3598, dated 14th May 1914)

(8) Section 6 of the Criminal Law Amendment Act, 1952, provides for the appointment of Special Judges for trying the following offences:-

(a) An offence punishable under Section 161, Section 165 or 165-A of the Indian Penal Code Sub-Section (2) of Section 5 of the Prevention of Corruption Act, 1947;

(b) any conspiracy to commit or any attempt to commit or any abetment of any- of the offences specified in clause (a); and

(c) any other offence connected with any of the offences specified at (a) and (b), above with which the accused may under the Criminal Procedure Code, be charged at: the same trial.

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Police Station Officer of the Anti-Corruption Bureau, as the case may be, should make their investigation reports with regard to the above offences to the Special Judges, in the same way as they make their reports to judicial Magistrates under Section 173 of the Criminal Procedure Code, and obtain summaries from the Special Judges after the cases are decided.

(9) In cases in which Government has ordered prosecution, the further orders of Government should invariably be obtained, if for lack of evidence, etc., no prosecution can be launched and 'c' summary has to be asked for.

(I. G. 's Cir. 49 (6020), dated 20th December 1949)

264. Filing of Investigation Papers.- (1) Police investigation papers in non-cognizable cases, and in cognizable cases which are excluded, i.e., classed as B or C, should be filed in the Courts of the Magistrates who pass the final orders. Police investigation papers in cognizable cases which are classed as 'A' but remain undetected and are not brought to trial should be returned to the Police for record.

(G. R., J. D., No. 5257, dated 18th July 1912)

(2) After the trial of a case is over, Panchnamas and Statements recorded by the Police and all other Police papers, except the copies of Police diaries and such of the Police papers as have been exhibited, will be returned by the Courts to the Police after the period allowed for appeal is over or after the decision of the appeal if any, provided that the Police may call for these papers and should be entitled to their return earlier, if they are wanted for the purpose of any investigation. The copies of police diaries, with such of the Police papers as have been exhibited, will be filed in the Courts with the papers of the case.

(G.C.,H. D. No. 8054/2, dated 24th March 1931)

(3) Whenever a Police Officer makes an inquiry into a case of damage by fire and no cognizable offence is disclosed by the inquiry, the papers of inquiry should be filed by the inquiry officer himself.

(G. R. H. D., No. 7443/3, dated 15th July 1936)

(4) The Police papers of enquiry under Section 174, Criminal Procedure Code, should be filed in the office of the District Magistrate/Sub-Divisional Magistrate, as the case may be.

(Govt. H. D. No. MIS/1170-32172-D, dated 1st October 1971).

265. Action in Maliciously False Cases.- (I) In every Police case classed B, whether on a final report or after trial, the offence of giving a maliciously false complaint would fall under Section 211 and not under Section 182, Indian Penal Code, and in no such case can complainant be prosecuted for an offence under the former Section, except on the written complaint of the Magistrate concerned, or of some other court to which that court is subordinate, as provided in Section 195 (1) (b) (i) of the Criminal Procedure Code.

(G.R.J.D., No. 5653, dated 27th August 1901)

(2) The Superintendent of Police or the Sub-Divisional Police Officer concerned should, unless the complainant has been dealt with under Section 250, Criminal Procedure Code, consider the question of prosecuting him under Section 211, Indian Penal Code. If he decides in favour of a prosecution, he should, while forwarding the final report for a B summary or on receipt of the B summary after trial, as the case may be, make a separate report to the Magistrate concerned, giving details of the case and requesting him for reasons shown to lodge a complaint in writing in the Court having jurisdiction in the case.

(3) For facilitating the collection of information required for the Annual Police Administration Report, In every such case dated entries should be made by the Superintendent of Police or Sub-Divisional Police Officer in the remarks column of the Cognizable Crime Register, stating:-

- (i) Whether request was made to the magistrate to lodge a complaint,
- (ii) Whether the Magistrate did lodge a written complaint and.
- (iii) the result of the case, if any, under Section 211, Indian Penal Code.

(G. L. H. D. No. 6284/2-D. dated 4th June 1947 and I. G. 's No. 14. dated 14th June 1947)

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265. Detected Cases Registered at more than one Police Station.- When the case is registered at more than one Police Station and when it is detected, it shall be retained in the register of the Police Station within the jurisdiction of which the offence is proved to have been committed and the other Police Station may then strike off the case from the register of that Police Station, as provided in rule 120.

267. Habitual Criminals.-(1) The following persons will be liable to be classified as 'habitual criminals':-

(i) Any person, convicted of an offence, whose previous conviction or convictions under Chapters XII, XVI, XVII or XVIII of the Indian Penal Code, taken by them selves or with the facts of the present case, show that he habitually commits an offence or offences punishable under any or all of those Chapters.

(ii) Any person committed to or detained in prison under Section 122 read with Section 109 or 110, Criminal Procedure Code.

(iii) Any person convicted of any of the offences specified in clause (i) above, when it appears from the facts of the case, even though no previous conviction has been proved, that he is by habit a member of a gang of dacoits or of thieves, or a dealer in slaves or in stolen property. Explanation - For the purposes of this definition, the word "conviction" shall include an order made under Section 117 read with Section 110 of the Criminal Procedure Code.

(G. L., H. D., No. 680-D, dated 8th February 1923)

(2) A Court convicting a person should at the time of passing sentence classify the convicted person, if covered by Sub-rule (1) as a habitual and enter the classification in the committal warrant; but if the convicting Court omits to do so. such classification may be made by the District Magistrate or Sessions Judge as the case may be, or, in the absence of an order by the convicting Court or District Magistrate or Sessions Judge as the case may be and pending the result of a reference to the District Magistrate or Sessions Judge as the case may be, by the officer-in-charge of the jail where such convicted person is confined. Provided that any person classed as a habitual criminal may apply for a revision of the order.

(3) The convicting Court or the District Magistrate may, for reasons to be recorded in writing, direct that any convicted person or any person committed to or detained in prison under Section 122, read with Section 109 or Section 110, Criminal Procedure Code, shall not be classed as a habitual criminal and may revise such direction.

(4) Convicting Court or District Magistrates, as the case may be, may revise their own classification, and the District Magistrate may alter any classification of a prisoner made by a convicting Court or any other authority, provided that the alteration is made on the basis of facts which were not before such Court or authority.

(5) The expression "District Magistrates" in Sub-Rules (2) to (4) above means the District Magistrate of the district in which the criminal was convicted, committed or detained.

(G. R., H. D., No. 680, dated 28th October 1922)

(6) The Magistrates issuing summaries of final orders should enter the letter 'H' in, column 7 of the summary. Any other officer authorized by the above Sub-Rules to classify habitual should, at the time of making such classification, send a copy of his, order at once to the Superintendent of Police.

(G. R., J. D., No. 6373, dated 23rd September 1898)

(7) Officers conducting, or responsible for the conduct of, prosecutions in Magistrates' Courts should satisfy themselves in each case where the prisoner has been proved to be a habitual that the letter 'H' has been entered in the Magistrate's or Court's summary of final order. If the letter has been omitted through oversight, the order should be returned at once for amendment.

(I. G. 's No. 9167, dated 7th October 1898)

268. Appeals.-(1) (a) According to Section 375 of the Criminal Procedure Code, n appeal lies where an accused person has pleaded guilty and has been convicted--

(i) by the High Court or

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(ii) by a Court of Sessions, Metropolitan Magistrate or Magistrate of the First Class or Second Class, except as to the extent or legality of the sentence.

(b) According to Section 376 of the Criminal Procedure Code no, appeal lies in cases (a) where a High Court passes only a sentence of imprisonment for a term not exceeding six months or fine not exceeding Rs. 1000 or both, (b) where a Court of Sessions or a Metropolitan Magistrate passes only a sentence of imprisonment not exceeding three months or a fine not exceeding Rs. 200 or both, (c) where a Magistrate of the 1st Class passes only a sentence of fine not exceeding Rs. 100, or (d) where in summary trial a Magistrate passes only a sentence of fine not exceeding Rs. 200.

(2) (i) According to Section 377 of the Criminal Procedure Code, the State Government may in case of conviction direct the Public Prosecutor to present an appeal to the High Court against the sentence on the grounds of its inadequacy.

(ii) In case of conviction in a case investigated by Delhi Special Police Establishment constituted under the Delhi Special Police Establishment Act, 1946, or by any other agency empowered to make investigation into an offence under any Central Act other than the Criminal

Procedure Code, the Central Government may direct the Public Prosecutor to present an appeal to the High Court, against the sentence, on the ground of its inadequacy.

(3) (i) According to Section 378 of the Criminal Procedure Code, the state Government may direct the Public Prosecutor to present an appeal to the High Court from original or appellate order of acquittal passed by any court other than the High Court,

(ii) In case of acquittal in a case investigated by the Delhi Special Police Establishment constituted under the Delhi Special Police Establishment Act, 1946, or by any other ~ agency empowered to make investigation under any Central Act, the Central Government may direct the public Prosecutor to present an appeal,

Note:- No appeal shall be entertained except with the leave of the High Court.

(iii) If order of acquittal is passed in any case instituted upon a complaint and, the High Court on an application made to it by the complainant grants special leave to appeal from the order of acquittal, the complainant may present such an appeal to the High Court.

(iv) No appeal under sub-rule (2) for the grant of special leave to appeal from an order of acquittal shall be entertained by the High Court after the expiry of six months where the complainant is a public servant and sixty days in every other case, computed from the date of that order of acquittal.

(v) If in, any case, the application for the grant of special leave to appeal from an acquittal is refused no appeal from that order of acquittal shall be.

(4) ever a case ends in discharge or acquittal by a Magistrate, the officer in charge of Police Station concerned should get a copy of the judgment immediately and submit a detailed report to the Superintendent of Police through the Prosecutor and he Sub-Divisional Police Officer in the mofussil and to the Commissioner of Police in Corals Comissionerate area with reasons for such discharge or acquittal, within ten days from the date of discharge or acquittal, in order to see:-

(i) Whether, the case was properly investigated by the investigating officer;

(ii) Whether the case was properly put in court by the prosecutor; and

(iii) Why the Magistrate did not appreciate the evidence produced by the Prosecutor and on with that ground he discharged or acquitted the accused.

If the disposal of the case by the Magistrate is found to be wrong in any way, the fact should be throught to the notice of the District Magistrate, and revision or appeal suggested, if, it is a fit case for such a course.

(I. G, 's No. 23, dated 15th June 1948)

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(5) Under Rule 50 of the Law Officers' Rules, proposals for filing appeals against acquittals and revision applications for enhancement of sentences are to be made to Government within a period of six weeks from the date of judgment. However, proposals are sometimes made, not only after the period prescribed in that Rule, but also after the period of limitation. The proposals are, moreover, in many cases not accompanied with certified copies of the Judgment and extracts from relevant evidence, and much time is wasted in calling for those papers, resulting in delay and consequent failure of the case in the High Court on account of delay.

(G. C., L. D., No. 1710, dated 14th February 1949)

(6) With a view to eliminating delays and to enabling Government to take proper steps within the time prescribed in the Law Officers' Rules, the following procedure should be followed by

the Assistant Public Prosecutors, Public Prosecutors and the District Magistrates and all other officers of Government who may desire to move Government in matters of appeals against acquittals and of revision applications:-

(a) (i) As soon as a judgment is pronounced by the Magistrate acquitting the accused, the Prosecutor or the Officer conducting the case should apply for a certified copy of the judgment. Immediately after the certified copy is received, he should forward the copy with three uncertificated copies, together with his report with reasons for preferring appeal or revision application to the Public Prosecutor. He should send along with this report extract from the evidence. If they are in regional language, he should send its English translation done by his office. At the time of sending this record, the Prosecutor concerned should see that correct addresses and names of the accused are mentioned in the copies of judgments or charge sheets. The certified copies should not be underlined or marked as such copies are not accepted by the High Court. Every page of the judgment must bear Court seal. Prosecutor should see that it is so. A Purse's showing the names of the accused and their present addresses should accompany the proposal. If they are in jail, the jail in which they are sent. The original record of the Court should not be forwarded along with the proposals.

(I. G. 's C.M., No. 721, dated 16th July 1957)

(ii) All copies that are sent should be exactly identical in their contents of paging, page wise, that is to say page to page.

(Govt. of Gujarat L. D., Cir. No. 23562/A-2, dated 11th October 1962 and I. G. P.'s No. G/1927/72/25, dated 4th January 1973).

(iii) An appeal for acquittal or an application for revision or enhancement should have a certified copy containing the following:-

- (a) certified copy of judgment should contain the seal of the court on each page,
- (b) it should contain specific date on which the judgment was pronounced,
- (c) It should contain the specific date on which the certified copy was applied for and became ready for delivery.

(Govt. L. D. Cir. No. 13932/A-2 dated 15th June 1972)

(b) Proposals for appeals etc., should be sent promptly where co-accused are sentenced to death. This will enable the High Court to hear confirmation and appeals together.

(G. C., L. D., No. 12682/A, dated 10th June 1953)

(c) The Assistant Public Prosecutor or the office conducting the case should send his proposals to the Public Prosecutor concerned endorsing a copy to the Commissioner of Police/Superintendent of Police concerned. The Superintendent of Police his opinion on the proposal to the District Magistrate. The Commissioner of Police may communicate his remarks, if any, to the Public Prosecutor.

(d) The Superintendent of Police will also send a copy of his opinion of proved to Inspector General of Police, Criminal Investigation Department (Crime & Railways) and the Deputy Inspector General of Police of the Range. On receipt of a copy of report, the Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways) or the Deputy Inspector General of Police of the Range may, if necessary, communicate their views on the proposals direct to the Legal Department copy Magistrates likewise should send copies of their endorsements to the Inspector General of Police, Criminal Investigation Department (Crime & Railways), and not to the Inspector-General of Police.

(I. G. P.'s Cir. No. G/642/14383, dated 24th April 1972)

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(e) All the proposals for appeals must reach the Legal Department within six weeks and hence it is essential that the proposals duly complied should be sent immediately on receipt of certified copy. The period for special leave for preferring an appeal is six months where the complainant is a public servant and 60 days in every other case computed from the date of the order of acquittal.

(f) As the period of limitation for filing an application for special leave, for appeal is short, the Public Prosecutors should apply for certified copy of the judgment from the court immediately as

soon as the case is acquitted and take delivery of the certified copy of judgment as soon as it is ready. The said copy should be sent with the proposal and with three uncertified copies of judgments and extract of relevant evidence to the District Magistrate and in sending the same, there should not be delay of more than 15 days from the time the certified copy of the judgment is ready for delivery. When proposal for preferring an acquittal appeal is initiated by the Assistant Public Prosecutors, he should not take more than 15 days from the date on which the certified copy of the judgment is ready for delivery. The period of 15 days shall be understood as reduced prorata for the number of days spent in applying for a copy of judgment after it is delivered and in obtaining actual delivery of judgment after it becomes ready for delivery.

(Govt. L. D., No. APT-3671-5716-H, dated 29th December 1971 and I. G. P.'s No. G/1927/73-2336, dated 22nd June 1973)

(g) The District Magistrate or Collector or Additional District Magistrate on receipt of the report of the Public Prosecutor should examine the case and within 1.5 days of receipt of the papers submit the proposal to Government in the Legal Department. He should also endorse a copy of his report to the Inspector General of Police, or the Range Deputy Inspector General of Police concerned.

(G. L. R. L. A., No. 5679, dated 26th April 1950)

(h) It is primarily the duty of the Prosecutor or officer conducting the case to submit proposals for appeals or revisions in deserving and fit cases. It is for the Commissioner of Police/Superintendents of Police to see that such proposals are made in appropriate cases without any delay. The Superintendents of Police may submit their proposals, to District Magistrates in deserving cases.

(i) The Public Prosecutor of the District will make proposals for appeals or revisions in cases which are conducted by him. Similarly, they shall take necessary further steps when they receive proposals from the Prosecutors or officers conducting the cases in lower Courts.

(j) If there are proposals for appeals or revisions from the orders of Sessions Courts, certified copies of judgments of Sessions and lower Court must be sent along with the proposals.

(k) The procedure prescribed above for appeals shall also apply to proposals for revision applications for enhancement of sentences.

(1) Relevant extracts from the evidence should always be forwarded along with the judgment and the report. If any relevant exhibits are in the regional language, they be got translated into English by the Prosecutor or the Public Prosecutor concerned, with the help of his own establishment.

(m) A public Prosecutor or an Assistant Public Prosecutor applying for a certified copy of a judgment for the purpose of an appeal or an application in revision should be supplied with it free of cost.

(G. L. H. D., No. CFA-1555/67971-B, dated 31st October 1956 and I. G. 's No. 2046, date 26th November 1956)

(n) While filing an. acquittal appeal, the Assistant Public Prosecutors have to obtain judgments and other documents, duly typed, the cost whereof should be paid to the Assistant Public Prosecutors in time.

(I. G. P. 's Cir. No. G/1921/73/1064 dated 8th March 1913)

(o) Notice issued by the High Court in cases of appeals filed against the orders should be invariably served by the Police. When the efforts of the local Police fail, the Commissioner of Police/Superintendent of Police should depute the personnel of the Crime branch for serving the notices and action should be taken against the defaulting Policemen.

(I. G. P.'s Cir. No. G/1927/69, dated 16th April 1969)

269. Copies of Courts' Proceedings.-(I) (a) It often happens that a Court cannot spare proceedings which another office or department may require for perusal. In such cases every Court will allow the Government Pleader or any responsible person deputed by him or by the Collector or Magistrate to take unauthenticated copies of any of its proceedings needed for official purposes, and such copies can thus be obtained more economically than by employment of section-writers.

(b) When Government desires to consider the propriety of making an appeal under Section 378 (1) and (2) of the Criminal Procedure Code, It is ordinarily sufficient that the Public Prosecutor or other officer appointed by the Government should have an opportunity of taking copies of the record. But in exceptional cases in which Government may consider it essential to see any original documents, such documents may be given into the possession of the officer appointed by the Government to receive them, under such precautions for security, their safe custody and return.

(Rule 14 of Chapter XVII of Criminal Manual of the High Court of Bombay and I. G. P.'s Cir. No. G/1926/418 dated 19th July 1972).

(2) In the event of a Superintendent of Police or other Gazetted Government officer desiring to inspect any of the records of a Magisterial Court, the proper course is to apply to the Sessions Judge, who should call for the records and proceedings from the lower Court and after inspecting them, decide in the exercise of his discretion whether they should be forwarded to the officer desiring to peruse them or whether his request should be refused and he be required to obtain copies of such documents as he wants in the usual manner.

(G. R. J. D., No. 130. dated 7th January 1901)

(3) Whenever a Government official is judicially convicted of any offence, a copy of the decision should be sent free of charge to the Head of the Department in which he is employed, in order that such action in the case as may be deemed proper may be taken at once. Copies of judgments of acquittal and orders of discharge shall also be supplied free of charge, on the application of the Head of the Department in which the officer is employed. English translations of judgments in the regional language in such cases shall also be supplied free of charge.

(G.R.J.D., No. 6769, dated 29th September 1899 and G.R., J.D., No. 2441, dated 6th April 1900, and rule 23 (2) of Criminal Manual).

(4) Public Prosecutors and officers responsible for prosecutions should not apply, nor move the trying Court to apply, for the supply in original of judicial records or documents filed in cases, where the purpose would be equally well served by copies.

(G. C., J. D., No. 5213, dated 22nd July 1915)

(5) According to Section 365 of the Criminal Procedure Code, in the cases tried by the Court of Sessions or a Chief Judicial Magistrate, the Court shall forward a copy of its findings and sentence, if any, to the District Magistrate.

270. Prosecution of Government Employees.-(I) Whenever any employees of the Government of India or of the Government of Gujarat are prosecuted in Courts of Law for criminal offences at the instance of the Police, the result of the prosecution should be communicated to the administrative authorities under whom the employees concerned are working with the least possible delay after the decision whether of the first or the Appellate Court is known.

(2) So far as appeals or revision applications filed by Government servants to higher Courts (namely the Sessions or the High Court) are concerned, the District Magistrate who gets the notice of the Sessions Court or the High Court as the case may be, should communicate the information to the Superintendent of Police concerned and also the respective Departmental authority of the Government employee. On receipt of the information from the District Magistrate the Department concerned will be in touch with the Police authorities concerned and ascertain from them the result of the appeals.

271. Scrutiny of Judgments.-(I) According to Section 365 of the Criminal Procedure Code, the Sessions Judges or the Chief Judicial Magistrate or the Chief Metropolitan Magistrates send copies of judgments of all cases tried by them to the District Magistrates, who in turn send the same to the Superintendents of Police. The Superintendents of Police should study the judgments with a view to see whether there are any faults or shortcomings in the investigation. They should take suitable

remedial measures on them. If the fault is of general kind, a copy of the order issued by them should be sent to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime

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& Railways), who in consultation with the Inspector-General of Police will decide if general orders are necessary. A copy of the report sent to the Deputy Inspector General of Police, Criminal Investigation Department (Crime & Railways) should also be sent to the Range Deputy-Inspector-General of Police. In case of Commissionerate area, the Commissioner of Police should take steps for the scrutiny of the Judgments and take suitable measures and send a copy of his report to the Inspector-General of Police.

(2) The Commissioner of Police/Superintendents of Police should maintain a register of all acquitted cases in the Court of sessions or the Chief Judicial Magistrate or the Chief Metropolitan Magistrate.

(3) In cases which are tribal by the courts other than Sessions Court or Chief Judicial Magistrates or Chief Metropolitan Magistrate, the Superintendent of Police incharge of division in Ahmedabad City and the Sub-Divisional Police Officers incharge of divisions in mofussil shall scrutinize the judgments and keep similar register and send their reports to the Commissioner of Police/Superintendents of Police about the action taken or proposed to be taken.

(4) The Range Deputy Inspectors General of Police and the Deputy Commissioner's of Police of divisions in Commissionerate area shall scrutinize these registers during their inspections and offer their remarks, if any, in the inspection notes.

(I. G. P.'s Cir. No. G/642 dated 7th October 1971)

272. Procedure for the Expunction of Strictures made in Judgment.-(I) The Commissioner of Police/Superintendents of. Police should see that the Police should prefer a revision under Section 399 (3) of the Criminal Procedure Code, in the Sessions Court to get expunged unwarranted strictures from the judgments passed in the lower Courts. If the strictures are passed in the Sessions Court, revision under Section 401 of the Criminal Procedure Code, is required to be filed in the High Court. The revisions are required to be filed within the period of limitation in the appropriate Courts.

(2) Requests are sometimes made to Government for moving the High Court/Sessions Court to expunge remarks made in judgments of lower Courts against Police Officers or other Government servants, which are considered unjust. The proper time to move the High Court/Sessions Court in such cases is when the judgments, in which the remarks objected to are made, are before the High Court/Sessions Court either in appeal or in revision. The officers concerned should bring such remarks to the notice of Government through their superiors and the respective District Magistrates in good time, so that the Government pleader, High Court/Public Prosecutor, can in proper cases be instructed to move the High Court/Session Court to expunge the remarks when the judgment comes before it either in appeal or in revision. Such action is possible only when the judgments of the lower Courts come before the High Court/Sessions Court either in appeal or in revision and not otherwise.

(G. C., H. D., No. 3654/4, dated 11th July 1941 and Sec. 399(3) of the Cr. P.C.)

(3) Whenever adverse remarks against the Police Officers are made by the Courts in judgments, a report indicating the action taken or proposed to be taken or why no action is considered necessary should be submitted to the Government.

(Govt. H. D., No. SCP-1053, dated 3rd November 1955)

(4) The Commissioner of Police/Superintendents of Police are required to send annual return in respect of strictures passed by the Magistrates or Sessions Judges to the Governments so as to reach the Government by 31st January every year, containing the information on the following points:-

(i) Serial Number.

(ii) Police Station C. R. No. and Sections.

(iii) Criminal case number.

(iv) Name of the Court who delivered judgment and the date of judgment.

(v) Name of the Police Officer/man against whom strictures are passed.

(vi) Strictures in brief passed.

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(vii) Action taken against the Police Officers/men showing the nature of punishment awarded or decision taken otherwise.

(viii) Remarks.

(5) If there are any strictures on investigation, the Superintendents of Police should send a copy of the strictures to the Range Deputy Inspectors General of Police with a note on action taken or proposed to be taken. The Range Deputy Inspectors-General of Police should send the information to the Inspector-General of Police if they think it necessary. Likewise, the Commissioner of Police will send similar information to the Inspector-General of Police.

(I. G. Po's Cir. No. G/642 dated 7th October 1971)

273. Remission of Sentences.-(1) (a) The State Government may suspend the execution of the sentence or remit the whole or any part of the punishment, with or without conditions, to which a person has been sentenced.

(b) On receipt of an application for suspension or remission of a sentence, the Government may require the presiding Judge of the Court who had passed or confirmed the orders of punishment to state his opinion as to whether the application should be granted or refused together with his reasons for such opinion and also to forward with the opinion a certified copy of the record of the trial.

(Section 432 of the Criminal Procedure Code)

(2) Rules relating to the appointment of Advisory Boards to revise the sentences of long term prisoners, the constitution and the working of such committees and the principles to be followed by them in making recommendations for the premature release of such prisoners will be found in Appendix XXIII.

(3) For rules regarding the submission to Government of cases of life convicts or premature release and the principles followed by Government in ordering such release, reference should be made to Appendix XXIV.

(4) The Inspector-General of Prisons cannot release any prisoner unless Government has issued orders under Section 432 Criminal Procedure Code, remitting his sentence.

(G. L. H. D., No. 3418/5-C, dated 27th April 1953 and 13th May 1953)

(5) No remission should be granted to habitual prisoners except for conservancy work. Habitual Prisoners are taken out of the purview of Advisory Boards.

(G.L., H. D., No. RTP-1554/87573-C, dated 11th February 1955)

CHAPTER VIII

DUTIES OF THE POLICE UNDER CERTAIN SPECIAL OR LOCAL ACTS AND IN AID TO OTHER DEPARTMENTS

Note:-All Police Stations and higher Police offices are ordinarily supplied with copies of all important special and local Acts which impose any duties or confer any powers on the Police. Officers are expected to study them or refer to them, whenever any necessity arises, for finding out what their powers and duties under the Acts are. Rules in this volume contain mainly ingredients of important Sections of the Acts, the executive orders or instructions issued by Government or the Inspector-General for the guidance of Police Officers under their control.

SECTION-I CENTRAL ACTS

The Ancient Monuments Preservation Act VII of 1904.

274. Archaeological Remains.-Police Officers should protect architectural and archaeological remains from wanton destruction and mischief, whenever possible. They should see that no nuisance is committed there or near other public buildings. It is an offence under section 16 of the Act to do an Act which will imperil the monument and under section 15, the right of access to the Government Monument is restricted by rules framed in the latter. Action for contravention of the Rules can be taken under section 15 of the Act. For rules refer to Appendix XXV.

(I. G.'s C. M. No. G/34, dated 6th February 1959.)

The Indian Aircraft Act XXII of 1934.

275. Details to be noted and reported in connection with Aircraft.-(I) (a) The Police should pay special attention to the general safety conditions prescribed in the extract from the Indian Air Craft Rules 1937, in Appendix XXVI. Whenever any low or dangerous flying is witnessed, the registration marks painted on the machine should be recorded, to enable the owner and probably the pilot of the machine to be traced. Advice in connection with such infringements of the rules should, if required, be sought from the Director of Civil Aviation.

(b) The unauthorized flights of foreign aircrafts should be reported by wireless message to the Inspector-General of Police who will pass on the information to Director of co-ordination Police Wireless, New Delhi, for necessary actions.

(I. G. 's No. (C)/8029, dated 19th August 1958)

(2) Whenever circumstances arise which make it necessary for the Police to take action in connection with aircraft and a report to the Director of Civil Aviation or the Aerodrome Officer of the area concerned appears to be called for, the following information should be given, whenever possible:-

(a) Registration marks of the aircraft. If not observed with certainty, additional particulars to be given as to type of aircraft

(b) Name of pilot and number of other occupants of the aircraft.

(c) Nature of flight on which aircrafts was employed. In a case where an aircraft is observed in the air only, the direction from which it came and the direction in which it was flying together with an estimate of height should be given.

(d) Place of observation or occurrence reported upon. This must be given precisely as true bearing and distance from nearest railway station or with reference to a place name of which appears on a small scale general map, such as the one million map, and may be further amplified as necessary.

(e) Time and date of observation or occurrence reported upon.

(f) Brief particulars of the rule, which appears to have been broken, or of the occurrence reported upon. In the case of an aircraft accident, its nature, the extent of damage to the aircraft and whether death or personal injury was caused and if so, to whom, should be stated

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(3) Information of this nature, particularly (a), (c), (d) and (e) of sub-rule (2) may be of vital importance in the case of an aeroplane reported missing.

(4) The Police should immediately inform the local Customs and Central Excise Officers of a case of forced landing of place and they both together should investigate such cases from their respective angles.

(I. G. Po's Cir. No. G/1909, dated 8th February 1968.)

(5) Sections 10, 11 and 12 of the Indian Aircraft Act, 1934 are penal Sections.

276. Action required of police authorities in case of Aircraft Accidents.-(1) In case of an aircraft accident away from a civil or Military airfield, the following action should be initiated by the Police:-

(i) Notify by the quickest possible means, the officer-in-charge of the nearest Civil; Military Aerodrome.

(ii) Notify 'Duty Officer' of the nearest Flight Information Centre (FIC) situated at Delhi, Calcutta, Bombay and Madras Airports (*Current Telephone Numbers of these officers are given below). This may be done through the officer-in-charge of the nearest Civil Military Aerodrome, if direct telephone connections are not possible. As far as possible, the notification should contain the following:-

(a) Registration marks of the aircraft (normally available on the bottom/top of the wings and at rear portion of the fuselage. These registration marks may consist of letters or numbers or combination of both (e.g. VT-MAM, 9-B-AAR, N9014).

(b) Type of aircraft and number of engines.

(c) Name of the Pilot-in-command and owner of the aircraft.

(d) Date, time and place where the accident/incident occurred.

(e) Number and description of persons killed injured as a result of accident.

(f) The extent of known damage to the aircraft including fire, if any.

(2) *Rescue of passengers etc.* (i) Even prior to arrival of the. Inspector of Accident or Officer-in-charge of the nearest Aerodrome/any officer of the Civil Aviation Department, the police authorities shall initiate action (a) to extricate persons from the aircraft (b) to arrange for immediate First-aid and medical attention (c) to extinguish fire and (d) assist the officers of the Civil Aviation Department on their arrival.

(ii) whilst rescuing the injured crew members (Pilot and the co-pilot/s) their identifications and location in or around the aircraft must be carefully observed and recorded

(iii) in the event of Pilot and/or the co-pilot/s being found dead, the necessary photographs must be taken in situ prior to their removal. The removal action should be such minimum of disturbance to the aircraft wreckage parts and any such disturbance should be fully recorded.

(iv) The location of the passengers alive or dead should be recorded immediately during rescue/removal operation. However, removal of the injured to the nearest hospital must not be delayed for want of formalities with regard to the recording as stated above.

(v) Removal of the persons dead or alive from the wreckage is the responsibility of the Police/the Fire Fighting Services as in any other accident.

(3) *Medical check up/post-mortem examination.*-(a) Crew Members (Alive).-The Captain and the Co-Pilot/s should be immediately subjected to medical check-up for consumption of alcohol. Doctor carrying out such a medical check-up shall take samples of blood, urine, etc. as required for detailed chemical analysis.

	Telephone Number
*Duty Officer-F. I. C. Delhi.	611725
- do - F. I. C. Calcutta	572123
-do- F.I.C. Bombay.. ..	534106
-do - F, I. C. Madras	802620

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The samples shall be suitably preserved for detailed laboratory examination. These checks should be expeditiously carried out without any loss of time for obvious reasons.

(b) Dead Crew Members.-(i) In the event of death of the crew members, he/they should be subjected to detailed post-mortem examination immediately to ascertain the precise cause of death including the presence and extent of alcohol and carbon mono- oxide etc., in the system. The blood, urine and the viscera of the dead should be properly preserved by the Doctor carrying out the postmortem examination for further detailed chemical analysis.

(ii) The post-mortem examination shall include those mentioned in (i) above, other aspects such as physical incapacitation, if any, prior to the accident and precise cause of death etc.

(iii) Prior to subjecting the body of the crew member to postmortem examination, its identity must be fully and properly established to the extent possible, full body photo- graphed and its clothes and belongings recorded and preserved carefully in accordance with the Police procedures.

(c) *Dead Passengers.*-All passengers on board in the aircraft who received fatal injury would be subjected to post-mortem examination indicating the nature and extent of injury as well as cause of death with special reference to carbon mono-oxide. However, this requirement may be waived off by the Inspector of Accident/Investigator-in-charge or Civil Aviation Department Headquarters (Director of Air Safety) if the nature of accident so warrants.

(4) *Release of dead bodies.* (a) Crew.-No bodies of the dead crew members specially of the pilot and the co-pilot/s are to be released even after the post-mortem examination - has been completed, by the Police authorities or any other authority. The Inspector of Accident/the Investigator incharge/the Civil Aviation Department Head quarters (Director of Air Safety) is the only authorised officer to issue instructions for the release of crew, dead bodies.

(b) *Passengers.*-After the requirements of para 3-(c) have been complied with, the police authorities may dispose of the dead bodies of passenger/s in accordance with their procedures and in consultation with Airlines/Owner concerned.

(5) *Guarding of the wreckage and preservation of evidence.* (i) The entire site of the crash area, including wreckage trail shall be immediately cordoned off and guarded by the Police till such time the investigation of the accident has been completed and positive instructions in writing issued

to the Police authorities by the Inspector of Accident/Investigator Incharge or by the Director of Air Safety in the office of the Director General of Civil Aviation.

(ii) The Police authorities arriving at the site of crash shall ensure that the public and other unauthorized persons are kept away from entering into the cordoned area and not allowed to interfere with the wreckage parts of the aircraft or move around in the area which may obliterate the ground marks left by the aircraft which are of considerable value as a piece of evidence to the Investigator.

(iii) The parts of the wrecked aircraft shall not be disturbed or interfered with except for the purpose of providing succour to the injured, removal of dead bodies, extinguishing of fire and saving the wrecked parts.

(6) *Eye witnesses.*-Police authorities shall record the names and addresses of all the eye witnesses and others who may have first-hand knowledge of the accident and supply such a list to the Inspector of Accident/Investigator incharge on his arrival for the purpose of investigation and facilitate production of such witnesses before him. The copies of the statements of eye witnesses, if recorded, may be handed over to the Inspector of Accident/Investigator incharge. .

(7) *General.*-(i) On the arrival of the Inspector of Accident/Investigator-incharge at the crash site and his assuming responsibility he shall be the 'final authority in all matters.

(ii) For the purpose of investigation under the Indian Aircraft Rules, 1937, it is imperative that Inspector of Accident/Investigator Incharge appointed by the Director General of Civil Aviation has an unrestricted control over the aircraft/wreckage and the accident site. The Police authorities shall provide maximum assistance required by him in

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discharge of his duties. However, the Police authorities may carry out their functions in accordance with the Police procedures and other formalities which they are required to fulfill under relevant rules in co-ordination with him without interfering with the smooth and efficient function of the Inspector of Accident/Investigator Incharge.

(iii) For offences under the Indian Aircraft Rules, the prosecutions are normally launched with the approval and under instruction from the Government of India. Other offences may be dealt with by the Police in normal course of their duty.

(8) *Photography.*--Photography may be carried out freely by the police authorities and/or the Fire Fighting authorities taking due care that no ground marks are obliterated and the aircraft wreckage/parts are not disturbed for this purpose. The Inspector of Accident/Investigator Incharge may however, take over this function on his arrival.

(9) *Rescue by Fire Fighting Services.*-(i) during rescue operation, fire fighting services play a very important role. Whilst extricating the bodies from the wreckage alive or dead, the officer-in-charge supervising the operation shall ensure that minimum disturbance to the wreckage is, caused while extricating such bodies and that he will keep adequate notes for the purpose to be passed to the Inspector of Accident/Investigator Incharge conducting the investigation. Any movement of the controls/cutting of wires, cables, etc., must be made note of for the purpose. If it is possible free use of photography can be made prior to removal of such bodies. However, where there is a reasonable doubt to believe that the person to be extricated from the wreckage is still alive, no delay should be caused in removal of that body. In the event of there being sufficient reasons to believe that body to be extricated is a dead one all possible care should be exercised as stated above.

(ii) Where the fire fighting services are not available and such rescue operations are being carried out by the Police authorities, the Police officer incharge of the operation shall ensure that the above instructions with regard to fire fighting and rescue operations are complied with.

(Director General of Civil Aviation Circular No.1 of 1974 (File No. A V. 15029/1/74 AS), received under Govt. of India, Ministry of Tourism and Civil Aviation's No. AV 15011/3/74-A, dated 12th February 1974 and Govt. of Gujarat, H. D. (Spl.), No. SB II/MMM 2374/1457, dated 20th March 1974)

277. Checking of baggage on receipt of warning regarding bomb scare.-(I) The checking of baggage in the event of a bomb scare should be made by the civil Police with the assistance of the Customs officers whenever necessary and the passengers whose baggage is checked should be present at the time of checking their baggage. The overall supervision will be exercised by the Aerodrome officer concerned. This procedure will apply even in respect of air-fields used for civil flights but not controlled by the Air Force. The Commissioner of Police/Superintendents of Police should arrange for

the checking of baggage in case of emergency at once after the receipt of information from the Aerodrome Officer.

(I. G. P.'s Secret Cir. Memo No. G/1927/Exp./70, dated 7th December, 1970).

(2) All Police Officers of and above the rank of Assistant Sub-Inspector of Police, in regard to the provisions contained in sub-rule (6) of Rule 8 of the Aircraft Rules, 1937, are authorized to cause the goods in question to be placed under custody pending detailed examination of the nature of goods and pending a decision regarding the action if any to be taken in the matter.

(G. O. I., M. H. A., No. 8/58/71-GPA I, dated 24th April, 1971).

Indian Arms Act 54 of 1959

278. Powers and Duties of the Police.-(I) (a) Every Superintendent of Police, Assistant Superintendent of Police or Deputy Superintendent of Police shall visit and inspect the shop, stock and accounts of every licenced manufacturer or vendor within their respective charges at least once a year and report the result to the District Magistrate. The date of every inspection shall be noted in the account books of licenced manufacturer or vendor and authenticated with the signature of the officer making the inspections. In the mofussil Inspectors of Police shall visit and inspect such, shops within their charges at least once every six months and communicate the results of such inspections atones to the District Magistrate through the Superintendent of police. For the duties and powers of the Police under the Indian Arms Act 54 of 1959, reference should be made to the Bombay Arms Act Manual, and Arms Rules, 1962.

(GC., HD No. 2990/5, dated 8th November 1951)

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(b) A register of dealers in arms including Potassium Chlorate and explosives should be maintained at each Police Station and these shops should be periodically inspected by Police officers as laid down in sub-rule (1) (a). As fire-arms and explosives are used during communal troubles, the Police must see that these shops are kept under close watch. If the situation demands, the stock should be frozen. Intelligence should also be obtained about fire-arms, lethal weapons and explosives during communal troubles.

(I. G. P.'s Cir. No. G/1927/64, dated 9th November 1966)

(c) The Superintendents of Police, Sub-Divisional Police Officers and the Circle Police Inspectors should check the registers during their inspections.

(I. G. 's Cir. No. G/1909, dated 5th March 1971)

(2) (a) Committee should be appointed in each District for fixing the prices of confiscated and forfeited fire arms. This Committee should consist of the District Magistrate (and NOT the Additional District Magistrate) as Chairman, and the Superintendent of Police, the Sub-Divisional Police Officer or Headquarters Inspector/Sub-Inspector of Police in charge of the Police Armory at the Headquarters, the Vice-Chairman of the District Development Board and a reliable local arms dealer selected by the District Magistrate as members.

(b) The prices fixed by the Committee should be charged while selling weapons from the confiscated and forfeited stocks at the Police Headquarters with the approval of the District Magistrate and in accordance with the priorities fixed in sub-rule (3) below.

(c) In Ahmedabad City, the Committee should consist of the Commissioner of Police or the Deputy Commissioner of Police, as Chairman, and two other Police officers having technical knowledge of arms and ammunition and a reliable local arms dealer selected by the Commissioner of Police as members.

[Para 67 (5) of the Bombay Arms Act Manual]

(3) (a) Confiscated or forfeited guns should first be offered at fair prices to gun clubs, crop protection societies and Sarvodaya centers before they are made available to licensed dealers and other persons entitled to possess them, preference being given, among licensed dealers to those who are agriculturists and are in need of guns for crop protection.

(G. C., L. H.D., No. 4452/5-F, dated 14th September 1950)

(b) Arms, ammunition and stores which can be utilised by the Police or any other Government department may be retained or brought into use with the sanction of the State Government. Pistols, revolvers, rifles and muskets of the prohibited bores which may be thus acquired may be loaned to the Government servants who are authorised to keep them as part of their equipment or who by nature of their duties require the protection of a weapon. This should not, however, be allowed to become the property of the persons to whom they are issued.

(c) Arms, ammunition and stores not so retained should be disposed of in the following manner:-.

(i) All revolvers, pistols, rifles and ammunition of prohibited bores shall be sent to the nearest arsenal for disposal;

(ii) Pistols and revolvers of non-prohibited bores may be sold to the Government servants and others who are duly licensed. Government servants should however be given preference over others according to the needs of each category.

(iii) The applications for grant of licence to the honorary officers/members of the Gram Rakshak Dal may be given preference over the ordinary applications in respect of the sale of confiscated or forfeited arms at the prescribed price if they are other- wise eligible.

(iv) Arms, ammunition and stores other than those described under (i) and (ii) above may be sold to licensed dealers or other persons entitled to possess them.

(v) Arms not disposed of under (ii); (iii) and (iv) above shall be broken up locally and the material sold unless they are rifled fire-arms or rifle barrels, in which case they should be sent to the nearest arsenal to be broken up, ammunition and stores not disposed of under (ii) and (iv) shall be destroyed. Alternatively all arms, ammunition and stores which cannot be disposed of under (ii) and (iv) may be sent to the nearest arsenal for disposal.

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(d) An acknowledgement should be obtained from the officer incharge of arsenal concerned of receipt of arms and ammunition sent to him under sub-rule (3) (c).

(G. E. G. A. D., No. OFA-1060/66818 L, dated 5th January 1961 and G. L. H. D. No. VDP 10657-C, dated 29th June, 1965)

(4) (a) No member of the price fixation committee of the district should be allowed to purchase any weapon/fire arms from the stock of confiscated / forfeited arms lying in the Police Head Quarters of his own district.

(G. L. H. D. No. CFA 1073-5940-M, dated 1st October 1973 and 20th November 1973.)

(b) Arms and ammunition deposited with the Police for safe custody should not be removed from the Headquarters stores of armories by any person either for inspection or for personal use under any Circumstances without the previous permission of the Commissioner of Police/Superintendent of Police.

(c) The register of arms, etc., deposited with the Police must invariably be checked by Inspectors or Sub-Inspectors of the Head Quarters or Police Stations, as the case may be, once a month, and by inspecting officers, with the actual stores carefully, at the time of their periodical inspections of the Head Quarters or Police Stations. Any irregularities or discrepancies must immediately be reported by the Superintendent of Police to the Inspector-General of Police, the Deputy Inspector General of Police, Criminal Investigation Department (Crime & Railways) and the

Range Deputy Inspector-General of Police. The Commissioner of Police shall likewise report to the Inspector General of Police with a copy to the Deputy Inspector General of Police, Criminal Investigation Department, (Crime and Railways).

(d) The Superintendent of Police should send to the District Magistrate a monthly statement showing the particulars of confiscated and forfeited firearms available for disposal at the beginning of the month, the prices fixed for them by the Committee appointed for the purpose, the firearms disposed of during the month, the prices realized therefore and the balance of firearms remaining un disposed of at the end of the month.

(G. C. L. H. D. No. 2583/7-F, dated 3rd February 1953)

279. Registration etc. of private firearms of Police Officers.-(I) In the case of an officer of the Indian Police or of the Indian Police Service who is authorised to keep two revolvers or pistols, or in the case of a Deputy Superintendent of Police who is authorised to keep one regulation pattern revolver, particulars of the weapons shall be registered by the officer with the Commissioner of Police, or the District Magistrate of the district as the case may be, in whose jurisdiction he is posted on appointment or transfer with in 15 days from the date of his assuming charge of his office in the area concerned.

(2) (a) Police officers other than those mentioned in sub-rule (1) above, who are permitted to keep privately-owned revolvers or pistol as part of their equipment without licence fee, shall register them with the Commissioner of Police, or the District Magistrate as the case may be in whose jurisdiction they are posted (on appointment or transfer) within the aforesaid time limit of 15 days.

(b) Police officers, who are in possession of privately owned prohibited bore weapons j forming part of their equipment, should continue to hold them as their personal property during the tenure of their offices. On their resigning office, the officers should not be considered to have any claim as such to possess the weapons under licences The licensing authorities will consider the question of granting licences to them in the light of the general principles governing the grant of licences for prohibited bore weapons to private persons.

(G.R., H. D., No. 3483/5, dated 3rd April 1950)

(c) If a Police officer is already in possession of a privately owned service bore weapon," he should use It for official purposes and Government need not Issue him another one of service bore. If, however, a service bore weapon has been supplied to him by Government the second weapon that he may be permitted to acquire should be only of a non-service pattern.

(G. L., H. D., No. 3483/5-F, dated 10th May 1951)

(3) Every such officer shall produce the weapon or weapons to be so registered before the registering authority for Inspection and verification, if required by the said authority, either at the time of registration or whenever called upon to do so during the period the weapon is registered with him.

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(4) Every such officer shall, on the loss or theft of any such weapon or weapons, forthwith report the occurrence at the nearest Police Station as well as to the last registering authority.

(5) Every such officer, immediately on retirement from service or while in service wishing to dispose of his weapons, shall observe the following procedure:-

(i) If the arms are of prohibited bores, he shall return them to the Government arsenal or deposit them with the nearest Police Station for being returned to the arsenal.

(ii) If the arms are not of prohibited bores and were imported without payment of customs duty, he shall present them first to the Customs authorities at the nearest Customs House for reclassification and payment of the customs duty. He may thereafter apply to the proper licensing authority for license or permission to retain the weapon or weapons as a private individual or to

dispose of the same to an authorized person, after reporting to the registering authority the full name and address of the purchaser and the authority under which he is entitled to possess the same. In case it can be proved to the satisfaction of the licensing authority that the customs duty had already been paid on the weapon there is no necessity for such officer to redeclare the weapon to the Custom authorities, but he should deposit the weapon at the nearest Police Station immediately on retirement and then apply to the proper licensing authority for a licence for its retention or for permission to dispose of the same to an authorised person.

280. Possession of fire arms by officers of the armed forces after retirement.-(I) The bearing or possession of arms, ammunition or military stores by Commissioned officers of the Army, Navy and Air Force or of the Territorial Army in the course of their official duty comes within the purview of the savings of Section 45 (b) (ii) and (iii) of the Indian Arms Act, 1959 and hence such possession is exempted from the operation of the prohibitions and directions in the Act and Rules. The concession is admissible to the officers, only for so long as they are in active service and lapses with their retirement after retirement they will be governed by the provisions of the Arms Act and Rules as any other member of the public either on payment of licence fee or free of licence fee as the rules may prescribe. Consequently, if after retirement they possess or carry any fire arm without licence in contravention of section 3 of the Arms Act of 1959, or if they fail to notify to the appropriate authority the sale of their weapon as required under the provision to Section 5 of the Arms Act, proceedings can be drawn against them under Section 25 of the Indian Arms Act, 1959.

(2) Under section 45 (b) of the Arms Act, 1959, the possession or carrying of the arms mentioned in column (b) of the schedule below shall comprise the service equipment of the classes of persons specified in the corresponding entry in column (a) thereof (so long as they are on active list) and consequently the possession or carrying of such arms by the personnel concerned will be exempted from the operation of the restrictions and prohibitions imposed under the Arms Act:-

SCHEDULE

(a) Classes of Persons.	(b) Description of Arms.
A. (1) Every officer holding commission in the regular army.	One pistol/revolver (personal issue) One Pistol/revolver (Privately owned) One sword.
(2) Every officer of the Territorial Army.	One pistol/revolver One sword.
(3) Every junior commissioned officer, including that of the Territorial Army.	One pistol/revolver/machine One stengun One sword.
(4) Every officer and junior commissioned officer of the Gurkha Regiments and Garhal Rifles.	One 'Khurkri' and two small 'knives' in addition to the arms mentioned in (1) and (3) above as applicable.
(5) Every officer and junior commissioned officer of Assam Regiments.	One 'Dah' in addition to the arms mentioned in (1) and (3) above as applicable.

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Note:-In an emergency, officers J.C. Os, (Excluding those of T .A.) mentioned in (1), (3) (4) and (5) may be issued with one rifle/sten machine carbine each. When so issued, those weapons will constitute personal equipment of these officers J. C. Os.

B. Every officer of the Air Force.	One pistol/revolver (personal issue) One pistol/revolver (privately owned)
C. Every officer and W.O. of Navy.	One sword. One pistol/revolver (personal issue)

(G. O. I., M. H. A., Letter No. 17/1/64-P. IV, dated 9th July 1964)

281. Use of Revolvers by Police Constables.-Constables in plain clothes are permitted to use revolvers only in the following circumstances:-

- (a) While working as body guards to dignitaries;
- (b) While working around the apartments or buildings occupied by dignitaries as inner or isolated cordons; and
- (c) While employed for apprehending dangerous criminals.

E Barring the above situations, the use of revolvers by constables is not considered advisable as there is likelihood of indiscriminate firing as a result of either nervousness or trigger-happiness.

(G. E. G. A. D. No. MIS 1064/36346 L. L. dated 29th September 1964)

282. Acquisition, Possession or sale of Potassium Chlorate.-(I) The Government of Gujarat has prescribed the following conditions for acquisition, possession or sale of potassium chlorate in accordance with which the *bonafide* medical practitioners and chemists in the State of Gujarat shall be excluded from the operation of prohibitions contained in Sections 3 and 5 of the Arms Act No. 54 of 1959, viz.:-

- (i) The maximum quantity of potassium chlorate that a *bonafide* medical practitioner can possess at a time shall be 30 grams powder and 100 tablets (300 mg. each) of potassium chlorate.
- (ii) The maximum quantity of potassium chlorate that a dispensing chemist can possess at a time shall be 450 grams of potassium chlorate powder and 100 tablets (300 mg. each) of potassium chlorate.
- (iii) The maximum quantity of potassium chlorate that a dispensing chemist can sell to a *bonafide* medical practitioner shall be 30 grams of powder and 100 tablets (300 mg. each) of potassium chlorate.

(2) Every *bonafide* medical practitioner and every dispensing chemist shall maintain a prescription register in which the following particulars about potassium chlorate shall be entered, daily viz:-

- (a) Quantity of potassium chlorate purchased and date of purchase.
- (b) Date of dispensing or sale.
- (c) Name and address of patient.
- (d) Age of patient.
- (e) Prescription (to be copied in detail from the original prescription.).
- (f) Quantity of powder of tablets sold.
- (g) By whom prescribed.
- (h) Initials of the *bonafide* medical practitioner or dispensing chemist.
- (i) Balance of potassium chlorate (powder and tablets to be recorded separately).

(3) The register maintained under sub-rule (2) shall be open to inspection at any time in the City of Ahmedabad by the Commissioner of Police or any other officer authorised by him and elsewhere by the District Magistrate or any other officer authorized by him.

(G. N., H.D., No. GG/223/EAR/2870-152 M, dated 5th September 1973.)

283. Import of arms for Personal Use Restriction on sale of.-(1) A person lawfully entitled to possess fire-arm in India is eligible to Import for his *bonafide* personal use one fire-arm from abroad without any import licence or .C.C.P. on payment of customs duty, subject to the specific condition that the

weapon so Imported shall not be sold or offered for sale or otherwise disposed of within a period of ten years from the date of clearance by the Customs.

(2) A passenger normally resident in India and returned from abroad from any country other than Ceylon, Pakistan or Nepal, after a stay for a period of less than three months abroad, may be allowed to Import duty-free and without I. T .C. formalities articles up to a value of Rs. 500. In addition, he may be permitted to import at the discretion of the proper Custom authorities, without any import licence or C: C. P. but on payment of custom duty, fire-arm for his own use or for the use of his family up to the value permissible.

(3) A passenger normally resident in India who has been, living abroad continuously for three months or more and returning to India may be permitted to import fire-arm for his own use or his family's use without import licence or C.C.P. but on payment of custom duty.

(4) The import of a fire-arm set under sub-rules (2) and (3) above shall be subject to the condition that the passenger affirms a declaration that (i) he has not imported or otherwise acquired a foreign made fire-arm of the same category during the last ten years, (ii) the fire-arms shall not be sold, gifted or given to a retainer or otherwise parted with for a period of ten years from the date of the clearance.

(G. O. I., M. H. A., No, 11/1072-GPA-II, dated 23rd October 1973 and G. O. I., Ministry of Foreign Trade Import Trade Control, No. 13 I. T. (PN)/71, dated 8th February 1971.)

284. Offences and Penalties.-(1) The offences and penalties are given under Section 25, 26, 27, 28, 29, 30 and 31 of the Arms Act, 1959.

(2) *Powers to arrest.*-Any Police officer may arrest without warrant any person found carrying or conveying any arms or ammunition whether covered by licence or not in such a manner or under such circumstances as to afford just grounds of suspicion that he same are or is being carried by him with Intent use them or that the same may be used for any unlawful purpose and may seize from him such arms or ammunition.

(Section 20 of Indian Arms Act, 1959)

The Cattle Tress-pass Act, I of 1871.

285. Duties and Power.-(a) Under Section 10, all police officers shall, when required, aid in preventing (1) resistance to legal seizures and (11) rescues from persons making such seizures.

(b) Under Section 11, the Police may seize or cause to be seized any cattle doing damage to public roads, canals, plantations, grounds, drainage works and the embankments and the sides of slopes thereof or round straying thereon.

(c) The District Magistrates are authorise to dispose of weak and feable impounded cattle which cannot be disposed by public auction, by entrusting them to institutions like *panjarpole* free, of charge and, to write off the losses on, account of recovery of fine in respect of such animals. Expenditure Incurred on conveying the animals to the *panjarpole*, etc. if any, feeding and watering such animals, if claimed, shall be paid and debited to Government account. Such expenditure should not exceed Rs. 10 per head If cattle or Rs. 100 per annum, in each district.

(G. C., H. D., No, CPD 4058/27365 XIII, dated 24th November 1958)

(d) Section 24, 26 and 27 of the Act are penal Sections.

The Child Marriage Restraint Act XIX of 1929.

286. Duties, Powers and issue of injunction under the Act.-(I) Under Section 8 of the Act, only Metropolitan Magistrate or First Class Magistrate shall take cognizance of or try any offence under this Act. Under Section 9, no cognizance shall be taken after the expiry of one year from the date on which the offence is alleged to have been committed. Under Section 12, Court may, If satisfied from information laid before It through a complaint or otherwise that a child marriage in contravention of this Act has been arranged r is about to be solemnized, issue an injunction against any of the persons mentioned) the Act, e.g., Parties to marriage, Guardians, Priests, etc., prohibiting such marriage.

(2) The principal Act has been amended by the Child Marriage Restraint (Gujarat Amendment) Act, 1963.

(3) According to Section 7 of the Act which has been added by the Child Marriage Restraint (Gujarat Amendment) Act, 1963, offences punishable under the Act shall be deemed to be cognizable offences within the meaning of the Criminal Procedure Code. Section 10 of the principal Act has been deleted and preliminary enquiries into the offence have been dispensed with. Under Section 13 of the Act, the State Government are authorized to appoint the Child Marriage Prevention Officers whose duties shall be to prevent marriage which are being performed in contravention of the Act, to collect evidence for effective prosecution and to discharge such other functions as may be assigned to them.

(4) The Child Marriage Prevention Officers have been appointed by the State Government vide Education and Labor Department Notification No. GH/SH/702/BCA-1071 21780-C.II dated 18-5-1973 and they have been empowered:-

(i) to require attendance of witnesses and examine them under Sections 160 and 161 of the Criminal Procedure Code;

(ii) to arrest and detain a person under Sections 41, 46, 47, 57, and 151 of the Criminal Procedure Code.

The Customs Act, No. 52 of 1962

287. Duties of the Police.-(1) Under section 151 of the Act, officers of Police are empowered and required to assist officers of Customs in the execution of the Act. (2) "Proper officer" in relation to any functions to be performed under this Act means the officer of Customs who is assigned those functions by the Board or Collector of Customs.

(3) Under Section 104 of the Act, if an officer of Customs empowered by general or special order of the Collector of Customs has reason to believe that any person in India or within the Indian Customs quarters has been guilty of an offence under Section 135 of the Act, he may arrest such person.

(4) (a) When any things liable to confiscation under this Act are seized by any Police officer on suspicion that they have been stolen, he may carry them to any Police Station or Court at which a complaint connected with the stealing or receiving of such things has been made, or an enquiry connected with such stealing or receiving is in progress, and there detain such things until dismissal of such enquiry or of any trial thence resulting. In every such case, the Police officer seizing shall send written notice of their seizure and detention to the nearest Custom House; and immediately after the dismissal of the complaint or the conclusion of the enquiry or trial, he shall cause such things to be conveyed to, and deposited at, the nearest Custom House, to be proceeded against according to Law. The provisions under the Act are mandatory and the Assistant Public Prosecutors should bring the provisions of the Act to the notice of the trying Magistrate, before any orders are passed by them regarding the disposal of the property, whenever such cases occur.

(b) Whenever goods are seized on suspicion of being stolen ones, the Police officers may arrest the persons concerned under Section 41 of the Criminal Procedure Code and the goods attached under Section 102 of the Criminal Procedure Code and the Prosecution under Section 124 of the Bombay Police Act may be launched in the court of law. When such goods are suspected to be smuggled ones, In addition to action under Section 124 Bombay Police Act, the nearest Customs authority should also be informed; of the seizure and of the Court's judgment when it is delivered so that the customs ;. department can take measures they consider necessary.

(I. G. P.'s Cir. No. G/1927/72/11400, dated 29th March 1972.)

(c) Cases of smuggling detected by the Police should be handed over immediately to the concerned Customs officers for necessary further investigation under the Customs Act. Whenever the Police seizes contraband goods on suspicion, the nearest Customs officers should invariably be informed immediately irrespective of the fact whether a decision is taken to prosecute the persons concerned on the alleged possession of stole property or otherwise.

(I. G. P.'s Cir. No. G/1927/73/2249, dated 18th June 1973.)

Duties of the Police under certain Special or Local Acts and in aid to other Departments

(5) Much better work can be done in the direction of preventing the activities of the smugglers if concerted efforts are made by the Customs, Excise and the Police Departments. Periodical meeting of the officers of these three Departments should be held at selected places, with a view to devising ways and means for checking the activities of the smugglers. So far as the Police Department is concerned, the Superintendents of Police of the districts bordering on the coastal areas and one representative of the Criminal Investigation Department (Crime) of the State would participate in the meetings.

(G. L. H. D., No. 2019/7-D, dated 10th February 1953)
The Prevention of Corruption Act II of 1947

288. Powers of the Police.-(1) In regard to offences of criminal breach of trust by public servants, it would be open to the Police either to have resort to Section 409, Indian Penal Code and to institute prosecutions in the Courts of Magistrates or to have resort to Section 5 (1) (c) of the Prevention of Corruption Act, 1947, and institute prosecutions in the Court of the Special Judge after complying with the provisions of the Prevention of Corruption Act, in regard to investigation and sanction. It would be preferable, however, to resort to Section 5 (1) (c) of the Prevention of Corruption Act, 1947, and proceed in the Courts of Special Judges as this Procedure is speedier and more effective.

(I. G. 's No. 489/G, dated 31st May 1954)

(2) Police officers below the rank of Deputy Superintendent of Police shall not investigate any offence under Sections 161, 165 and 165-A, Indian Penal Code without the orders of the Judicial Magistrate of the First Class.

(G. L. H. D., No. SJE 2854/12231-B, dated 13th March 1954.)

(3) The filing of a charge-sheet and arresting of accused form a part of the investigation and it is, therefore, necessary to obtain sanction under the provisions of Section 5-A of the Act.

(4) In exercise of the powers conferred by the first proviso to sub-section (.1) of Section 5-A of the Prevention of Corruption Act, 1947, the Government of Gujarat have authorized for the purpose of the said proviso every Police Officer not below the rank of an Inspector of Police attached to the Anti-Corruption Bureau, Gujarat State.

(Govt. Order, H. & C. D. No. ACB 2865/880 H, dated 2nd July 1965.)

The Prevention of Cruelty to Animals Act, No. 59 of 1960

289. Duties and Powers Under the Act.-(I) The Bombay Act No. XI of 1890 regarding prevention of cruelty to animals is repealed by Section 41 of the Prevention of Cruelty to Animals Act, 1960.

(2) (a) Animal under the Act means any living creature other than a human- being.

(b) The offences in respect of cruelty to animals are set out in Section 11 of the Act and the offences mentioned in clauses (I) (n) and (o) of Sub-Section (1) of Section 11 and those under Section 12 of the Act are cognizable offences.(Section 31 of the Act.)

(3) (a) If a Police Officer not below the rank of a Sub-Inspector, or any person authorized by State Government in this behalf has reason to believe that an offence under clause (1) of sub-section (1) of Section 11 in respect of any animal as referred to in Section 30 (goat, cow or its progeny) is being or is about to be or has been committed in any place, he may enter and search such place under Sub-section (.1) of Section 32 of the Act.

(b) If a Police Officer not below the rank of a Sub-Inspector, or any person authorized by State Government in this behalf has reason to believe that *Phooka* or *Doom*. Dev has just been or is being performed on any animal he may enter any place in which he has reason to believe such animal

to be, and seize the animal and produce It for examination by the Veterinary Officer under Sub-section (2) of Section 32 of the Act.

(Note:-*Phooka* and *Doom* Dev includes any process of introducing air or any substance into the female organ of a milk animal with the object of drawing of from the animal any secretion of milk).

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(4) The Magistrate of the First Class, the Metropolitan Magistrate, the Sub-Divisional , Magistrate, the Commissioner of police or the Superintendent of police, upon an information in writing and after such enquiry as he thinks necessary, has reason to believe that an offence under the Act is being or is about to be or has been committed, he may enter himself and search or by his warrant authorize any police Officer not below the rank of Sub-Inspector to enter and search the place under Section 33 of the Act.

(5) Any police Officer above the rank of Constable who has reason to believe that an offence against this Act has been or is being committed in respect of any animal and may if in his opinion the circumstances so require, seize the animal and produce the same for examination by the nearest Magistrate or the Veterinary Officer under Section 34 of the Act.

(6) A prosecution for an offence against this Act shall not be instituted after the expiration of three months from the date of the Commission of offence.

(Section 36 of the Act)

The Dangerous Drugs Act, II of 1930.

290. Reports on seizures of Drugs Smuggled into or out of India.-(1) (a) The State Government have to submit to the Government of India reports containing full particulars in respect of all seizures of drugs attempted to be smuggled into or out of India from or to countries outside India, effected by the Excise or police authorities and also full information in regard to the proceedings and movements of persons engaged in carrying on illicit international traffic in drugs.

(b) Immediate action is necessary in the following two cases:-

(i) When information (e. g., as to the movements or proceedings of traffickers) might be useful for the purpose of stopping some contraband transaction which is in the course of being carried out.

(ii) When a seizure is made and there is anything to show that a person or a firm in a foreign country is implicated, but it is not considered possible to stop the transaction by passing the information on to the other country. In cases falling the first category, Excise and Police officers, who are stationed in or near a Chief Port, should communicate at once full particulars to the nearest Collector of Customs of a Chief Port. A copy of such communication should at the same time be forwarded to the Government of Gujarat Revenue Department, for transmission to the Government of India. If no time can be saved by such reference to a Collector of Customs, the particular& should be addressed to Government as in other cases.

In cases falling under the second category, full particulars should at once be reported direct to Government who will pass on the particulars to the Government of India copies of the reports being sent to the Inspector-General of Police in each case.

(c) Routine cases, .i.e., cases of ordinary seizure of import of drugs, which are purely of local interest and which do not reveal any useful Information regarding movements and methods of traffickers, need not be reported. These cases, however, are required to be included in the return furnished to the Secretary, All India Narcotics, Board, Simla, for transmission to the United Nations Organization each year.

(2) The reports should be as full as possible and should include a mention of the quantities seized, a description of the packages, and the marks on the packages, the names and addresses of the consignor and consignee, the names and addresses of any agents through whom the goods have passed, the place from which the goods were dispatched the date on which they were dispatched, the name of the ship by which they were dispatched, the port from which the ship started its voyage and its ports of call, and any other information throwing light on the manner of conducting illicit traffic. Whenever possible, three specimens of the labels or of the containers themselves any

particulars of evidence as to the origin of the seizures made should be forwarded with all the reports. If, however, it is not possible to send specimens of labels or containers or even copies of the labels, the reason why they could not be sent should be stated in the report.

When reporting cases of seizures of drugs suspected to be of Japanese origin, unopened and intact containers of drugs, when available, may also be supplied along with the reports.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(3) When reporting seizures of cocaine or of other drugs believed to originate from a particular country, the reasons for believing the drugs to be of that particular origin should be stated, if possible.

(4) The instructions in Sub-Rules (1) to (3) above do not relate to cases which there are good reasons to believe, represent inter-State smuggling only.

(5) The reports should be submitted in the form given below and seven copies of these should be furnished in each case:-

1. Date of seizure.
 2. Place of seizure, and department making seizure.
 3. How the traffic was detected.
 4. No. and description of packages, tins, wrappers, labels etc., seized, including the marks, if any thereon.
 5. Nature of contents, and quantity.
 6. Name of manufacturer and place of origin.
 7. Description of the route through which the drug was imported or attempted to be dispatched.
 8. From whom, how, where and at what price the drugs were obtained by the accused, if any.
 9. Personal particulars of accused, if any (name, nationality, occupation and other details).
 10. Name and address of consignor.
 11. Destination (country and place), and consignee.
 12. Date of dispatch from the country of origin, if known.
 13. No. of labels (or copies of labels), wrappers and tins or other containers sent with the report. If none is sent, reasons for not sending should be given.
 14. Any other particulars throwing light on the method employed in the illicit traffic in drugs.
 15. Judicial decision regarding the seizure.
- Authority making this report:-
Director of Excise and Prohibition or other Officer of the State Government

(6) Under Sections 23 and 24 of the Act, Police officers not below the rank of Head Constable are empowered to enter and search a private place and seize the incriminating articles under this Act. They can search, seize and arrest any person committing offences under the Act and are required to assist the officers of other Departments acting under it. .

291. Duties of the Police Under the Act.-(1) Under Section 8 of the Act, if any Magistrate has reason to believe that any house, room or place is used or is about to be used for 'any performance prohibited under this Act, he may, by his, warrant, authorize my Police officer to enter with such assistance as may be required, by night or by day and by force, if necessary; any such house, room or place, and to take into custody all persons whom he finds therein, and to seize all scenery, dresses and Other articles found herein and reasonably suspected to have been used, or to be intended to be used, for the purpose of such performance.

(2) According to Section 12 of the Act, nothing in this Act applies to any 'Jatras' or performance of like kind at religious festivals

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Chapter VIII
The Drugs and Cosmetics Act, XXIII of 1940.

292. Duties and Powers of Police.-(1) Offences under this Act are cognizable. Whenever a Police officer wants to take action under the Act by carrying out a raid in which drugs are to be seized or attached, he should as far as possible inform the Drugs Inspector having jurisdiction in the area concerned, to accompany him and take samples as required by Section 23 of the Act. In cases where such prior contact with the Drugs Inspector could not be made as soon as possible either the same day or later in such cases the Police officer in charge of the raid should take four samples of the drugs in sufficient quantity in the presence of the accused and the ponchos and all such samples of drugs should be duly sealed and signed by the accused (if he consents) and the ponchos. The fair price of the drugs must be paid. If stock is seized, a receipt should be tendered. All other instructions in the Act regarding taking samples should be strictly followed. One sample should then be handed over to the accused and his signature obtained for having received the sample. The Drugs Inspector may also later pick up samples at the Police Station in the presence of the same ponchos in whose presence the Police officer had seized or attached the drugs and in the presence of the accused unless he willfully absents himself.

(I. G. 's C. M. No~ 3693, dated 11th May 1957)

(2) A Police officer should, when the samples of spirituous medical preparations are picked up by them, send those for test and analysis to the Government Analyst and on completion of investigation of the whole case pass it on to the Divisional Senior Drugs Inspector for further action under the Act as a complaint under Section 32 of the Act will have to be filed only by a Drugs Inspector duly appointed under Section 21 of the Act.

(I. G. 's No. 3693, dated 2nd August 1955.)

(3) As it is desirable that persons engaged in illicit traffic should not be authorized to engage in legitimate trade, all necessary steps should be taken to prevent the grant of import or export certificates in which the names of notorious drugs traffickers appear; and as certain persons engaged in illicit traffic are able to move freely from country to country in carrying out their operations, passports and visas should be refused to persons known to be so engaged, and steps should be taken, as far as possible, to cancel pass ports already issued to them.

(4) The internal air services do not come within the purview of Customs examination. The searching of passenger's luggage, freight etc., at the air ports for the purposes of State excise restrictions is the function of the State Excise authorities and the State Police. The Police staff on duty at air-ports must, therefore, be vigilant in checking cases of illicit traffic in opium and other dangerous drugs by the internal air services.

(5) Every Police Station should maintain an up to-date list of Opium and Hemp Drugs permit holders in their jurisdiction with a view to helping surprise checks of permits by Police officers. The Sub-Inspectors should check these permits at least once in three months, the Police Inspectors and Sub-Divisional Police Officers should check these permits once in six months and the Superintendents of Police may check the permits from time to time. Particular attention should be

paid to quality and quantity issued on the permits and actually possessed by the permit holders. Services of officers from Prohibition and Excise Department may be requisitioned whenever required.

(I. G. P.'s Cir. No. G/5414 dated 19th September 1960.)

The Drugs and Magic Remedies (Objectionable Advertisements) Act XXI of 1954.

293. Powers and Duties of Police.-(1) This Act provides for prohibition of taking part in the publication of any advertisement referring to any drug in terms which suggest or are calculated to lead to the use of that drug for procurement of miscarriage or prevention of conception, in women or the maintenance or improvement of the capacity of human beings for sexual pleasure or correction of menstrual disorders in women, or the diagnosis, cure mitigation, treatment or prevention of any venereal disease or any other disease or condition which may be specified under the rules made under the Act. It also prohibits taking part in publication of any misleading advertisement relating to drugs of advertisement of magic remedies for treatment of above mentioned diseases and also prohibits import and export of documents containing such advertisements.

(2) Under Section 8, all Police officers not below the rank of a Sub-Inspector are empowered to seize and detain any document, article or thing which he has reason to believe to contain any advertisement which contravenes any of the provisions of this Act

(G. R. L. S. G. & P. H. D., No. ACT/1054, dated 4th June 1955.)

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(3) While examining from a legal point of view, the cases where breach of provisions of this Act is suspected the services of the District Government Pleader and the Public Prosecutors should be utilized.

(4) Under Section 9 (a) of the Act, offences punishable under the Act shall be cognizable.

The Dowry Prohibition Act, 1961

294. Offences.-(1) 'Dowry' means any property or valuable security given or agreed to be given either directly or indirectly-(a) by one party to a marriage to the other party to the marriage; or (b) by the parents of either party to a marriage or by any other persons, to either party to the marriage or to any other person, at or before or after the marriage as consideration for the marriage of the said parties, but does not include dower or 'mahr' in the case of persons to whom the Muslim Personal Law applies.

Note:-Any present made at the time of the marriage to either party to the marriage in the form of cash, ornaments, clothes or other articles shall not be deemed to be dowry unless made as consideration for the marriage of the said parties.

(Section 2 of the Act)

(2) If any person, gives or takes or abets the giving or taking of dowry shall be punished with imprisonment which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

(Section 3 of the Act)

(3) If any person, demands directly or indirectly, from the parents or guardian of a bride or a bridegroom any dowry shall be punishable with imprisonment up to 6 months or fine up to five thousand rupees, or with both.

Note:-Previous sanction of the State Government or an officer appointed 'for it should be had before a Court takes cognizance of the offence.

(Section 4 of the Act)

(4) No Court inferior to that of a Metropolitan Magistrate or a Magistrate of first class shall try any offence under this Act and no Court shall take cognizance of any such offence except on a complaint made within one year from the date of the offence.

(Section 7 of the Act)

(5) Offences under this Act are non-cognizable bailable and non-compoundable.

(Section 8 of the Act)

The Administration of Evacuee Property Act XXXI of 1950 and the Administration of Evacuee Property (Amendment) Act 1960

295. Duties and Powers.—All offences under this Act are cognizable as per Section 37 of the Act. This Act provides penalty for failure to surrender possession of evacuee property and for wrongfully paying or receiving rents and for concealing evacuee property and for causing damage to evacuee property and for false declaration etc. No prosecution for any offence under this Act shall be instituted except with the previous sanction of the State Government, or of any officer authorized in this behalf, by general or special order by the State Government as per Section 38 of the Act.

The Central Excise and Salt Act, No. I of 1944

296. Duties and Powers of the Police.—(1) When a Police officer on the strength of a search warrant seizes excisable goods he has to prepare and deliver under Section 100 of Criminal Procedure Code, a list of all the things seized in the course of the search and to hand over a copy of the list to the occupant. If the goods are non-duty paid, the police officer should be requested to deliver a copy of the list of the seized goods to the nearest Central Excise Officer, who upon receipt of the list shall inform the Police officer that duty on the goods seized by him was not paid and that an intimation should, therefore, be sent to him, in due course, when the goods are intended to be disposed of.

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(2) Under Section 15 of the Act, all Police officers and all village officers are empowered and required to assist the Central Excise Officers in the execution of this Act.

(3) (a) Under Section 19 of the Act, every person arrested under this Act shall be forwarded without delay to the nearest Central Excise Officer empowered to send person so arrested to a Magistrate or if there is no such Central Excise Officer within a reasonable distance, to the officer in charge of the nearest Police Station.

(b) Under Section 20 of the Act, when any person arrested under this Act is forwarded to the Police Station Officer, he shall either admit him to bail to appear before Magistrate having jurisdiction or in default of bail forward him in custody to such Magistrate. The Indian Electricity Act, IX of 1910.

297. Powers to Prosecute.—(1) (a) According to Section 39 of the Act, whoever dishonestly abstracts, consumes or uses any energy shall be deemed to have committed theft within the meaning of the Indian Penal Code and the existence of artificial means for such abstraction shall be prima facie evidence of such dishonest abstraction.

(b) Theft of electric energy being a cognizable offence under Section 39 of the Indian Electricity Act should be investigated by the Police under Section 156 of the Criminal Procedure code

(I. G. P.'s Cir. No. G/1927/63, dated 30th October 1963)

(2) No prosecution shall be instituted against any person for any offence against this Act or any rule, licence or order there under, except at the instance of the Government or an Electric Inspector or of a person aggrieved by the same.

(Section 50 of the Act)

The Indian Emigration Act, VII of 1942.

298. Powers to Prosecute.—(1) No prosecution shall be instituted for any offence under this Act except with the sanction of a Protector of Emigrants or a person appointed or the District Magistrate where there is no Protector or person appointed.

(2) Illicit emigration to the Gulf States of poor women living around the coastal areas has been noticed. They are exploited by unscrupulous touts operating as self-styled travel agents with connection in Gulf States where there is an acute shortage of female domestic staff. These touts promise lucrative jobs and attractive living conditions to needy and susceptible women, even procure passports for such women on the pretext of their visiting friends, relatives and make arrangements for their travel in Arab Dhows illicitly and without any travel documents, exposing the women to a great deal of misery and hardship. In order to check the outflow of such Indian women, it is imperative that

the security arrangements at all possible exit points are further tightened with the co-operation of the Police and the Customs authorities. The local Police should also maintain greater liaison with our Missions in the Gulf areas and when the need arises, depute Police officials to visit these countries for detailed on the spot investigation. Widest publicity through newspapers exposing and condemning the machinations of these unscrupulous touts should also be given. Social organization may be advised to educate public opinion stressing that the promises held out by the touts are false and that the women recruited through their agencies are generally exposed to ill-treatment, exploitation and untold privation. The organizations should also advise the interested parties to seek the assistance of Governmental agencies (the Regional Passport Officers in India and Indian Missions in Gulf area) in verifying the genuineness of the employment offers and to avail of the protection and security of the provisions of the Emigration Act, 1922.

(G. O. I., M. E. A., No. VIII/385/26/72, dated 31st October 1972 and I. G. P.'s No. G/1927/73/1065,, dated 8th February 1973)

The Indian Explosives Act IV of 1884.

299. Powers of Search and Seizure of Explosives.-(1) Any officer specified in the first column of the sub-joined table may within the areas specified the corresponding entry in the second column of that table-

(a) enter, inspect and examine any place, carriage or vessel, in which an explosive is being manufactured possessed used, sold, transported or imported under a licence granted under the Indian Explosives Rules, or in which he has reason to believe that an explosive has been or is in contravention of the Act or the Rules there under;

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

- (b) Search for explosive therein;
- (c) take samples of any explosive found therein, on payment of the value thereof if such payment is demanded at the time the samples are taken; and
- (d) seize, detain or remove any explosive found therein, in respect of which he has reason to believe that any of the provisions of the Act or the rules there under have been contravened:-

Table	
Officers	Areas
The Chief Controller and Controller of Explosives	India
All District Magistrates	Their respective districts
All stipendiary Magistrates sub-ordinate to the District Magistrate	Their respective jurisdictions
The Commissioner of Police and all Police officers of rank not below that of an Inspector, in the Commissionerate area.	The areas over which their authority extends.
All Police officers of rank not below that of Sub-Inspector	The respective areas over which their authority extends
The Chief Inspector of Mines in India and Inspectors of Mines	-do-

(2) Whenever any officer other than the Chief Controller seizes, detains or remove any explosives under Sub-Rule (I), he shall forthwith report the fact by the telegram to the Chief Controller and whenever any officer not being the District Authority seizes detains or removes any explosive under that Sub-Rule, he shall forthwith report the fact by telegram to the District Authority concerned.

(3) Any gas contained in any cylinder in a compressed or liquefied state has been declared under Section 17 of the Indian Explosives Act by the Government of India to be an explosive within the meaning of the said Act. The powers of removal under clause (d) of Sub-Rule (I) shall not be exercised in respect of such gas by any Magistrate or Police officer except under and in accordance with the instructions of the Chief Controller, Deputy Chief Controller or a Controller or Assistant Controller of Explosive.

(P. & S. D. No. 2670/34, dated 14th May 1940 and Part IV C of B. G. G. of 23rd May 1940.)

(4) Any Police officer may apprehend without a warrant any person whoever is found committing any act for which he is punishable under this Act or the rules under this Act, and which tends to cause explosion or fire in or about any place, where an explosive is manufactured or stored, or any railway or port, or any carriage, ship or boat.

300. Inspection of Explosives Etc.-(1) (a) Stocks, explosives in. shops, mines, etc., should be inspected once every three months by sub-Inspectors, once every six months by Police Inspectors and Sub-Divisional Officers, and from time to time by Superintendents of Police who should regard this duty as important. Stocks of temporary licence holders should be inspected by Sub-Inspectors before and after Divali.

(b) By "explosive shops" should be understood the premises of licensees in forms I, J, K, L and M (vide Schedule IV to Explosives Rules, 1940).

(2) As regards register of dealers to be maintained, see Rule 278 (1) (b) & (c).

301. Instructions Regarding Dealing with dangerous Explosives.-(1) .The explosive most likely to be met with is the illegal mixture of a chlorate and arsenic sulphide, or of a chlorate and sulphur, or of a chlorate and phosphorus or, again, of chlorates and aluminum. Explosives of this type can be so sensitive that the dropping of the receptacle containing them. friction such as can be so caused by dragging a box over a stone floor, a blow or a spark, or even undue pressure on a firework of the class consisting of the explosive and a few stones wrapped in paper arid string can cause the most disastrous explosion. Mixtures of this sort are also unsafe in simple storage and, without being disturbed or handled, may at any time spontaneously explode.

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(2) Types of explosions that commonly occur are:-

- (i) Explosion of a magazine at a work site.
- (ii) Explosion in a fire workshop or industrial concern.
- (iii) Explosion of military grenades, mortars, etc. lying in a scrap.
- (iv) Explosion of crude bombs, dangerous crackers as it occurs in dacoities in cities and villages.
- (v) Explosions to wreck bridge, culverts, railway lines, industrial plant, aircraft etc.
- (vi) Explosion by crackers at the place of sabotage or in wagons during transit.

(3) When the presence of an illegal or unsafe explosive is suspected, the local Police Officer should not touch anything, but should at once arrange for the proper guarding of the premises or place containing any substance or object suspected of being explosive, and all unnecessary persons, whether Police or not, should be sent away and no one allowed to enter the premises. The first thing to do will be to keep the public away from the substance or object suspected to be explosive, if lying in an open place. Such object should always be considered highly dangerous unless such time as it is proved to be otherwise. Even the person keeping 'watch over such an object lying in the open or the premises where such an object is suspected to be, should also keep himself away at a reasonable distance from the same.

(4) The local Police officer should communicate at once, by telegram or telephone, if necessary, with the superintendent of Police, who should himself proceed or depute some responsible officer to proceed to the suspected place. All available details should be furnished to the Superintendent of Police regarding the recovered explosive or exploded bomb.

(5) The following instructions should be borne in mind by the officer visiting the places:-

(i) If you have any reason, however slight, to suspect that the substance or object with which you are dealing is dangerous, then regard it as being highly explosive until such time as it is proved to be otherwise.

(ii) Allow no smoking, lights, fire or matches in or near the premises.

(iii) If the suspected substance is in any quantity or the floor is dusty, or if any of the substance appears to have been split, remove your boots or shoes before entering the premises.

(iv) Handle everything with the greatest care, slowly and delicately.

(v) Do not drag or roll any cases or articles about, but carefully lift and deposit them. Do not drop or throw anything down. Explosives should be handled with little force, and shaking or inverting should be avoided in case of bombs. If the fuse is lighted this must be extinguished with water and if it is a safety fuse, it should be cut off.

(vi) If, after inspection, you suspect the substance or article to be dangerous and, if the quantity is small, place it in water, cover the vessel and send it by messenger to the nearest Chemical Analyzer to Government. One way to render a bomb harmless is to place it in water. However, it should be borne in mind that bomb in which metallic sodium is used and those containing sulphuric acid might explode even when placed in water. The Police should not interfere with the mechanism of the bomb.

(vii) Paraffin or light lubricating oil is better quenching agent than water but it should be noted that the liquid contamination renders subsequent chemical analysis difficult or impossible.

(viii) The Controller of Explosives should be informed by express telegram for the examination of the scene where explosion has occurred or where the quantity of the substance or article suspected to be a dangerous explosive exceeds half a kilogram or so in weight. Explosives should never be carried without due precautions such as when explosives are to be carried by train, the Station Master and the Guard of the train should be informed and the person carrying the explosives should occupy a place in the train in a separate compartment as far as possible.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(6) The following hints should be borne in mind in cases of explosives:-

(i) Nitro-glycerin which is yellowish thick liquid, should never be touched as even simple touch is sufficient to blow up.

(ii) Gelatin crackers and detonators should be sent in a wooden box with screws duly packed in cotton wool.

(iii) In case of mortar bombs, inform military authorities.

(iv) In case of grenades, the position of the safety pin should be noted. If the safety pin and lever are missing and the striker is inside the bomb, it will probably have to be destroyed on the spot.

(v) In case of imitation of grenades, these may be rendered harmless by removing the explosive cap or tuft of gun cotton.

(vi) Letter bombs are in the form of letters containing explosives which are designed to explode when opened, or turned over. Don't disturb it. Seek instructions from the Collector of Explosives in case of doubt.

(vii) Explosive charge of crude bomb consists of mixture of arsenic sulphide and/ or sulphur and potassium chlorate wrapped up in paper and firmly tied with string. Missiles like glass pieces, nails, lead shots, gramophone needles, etc. are usually embedded in the explosive charge. These are designed to explode on being dropped or thrown against any hard object or by igniting a safety fuse protruding containers such as cigarette tins, coconut shells, brass pots, etc. Wait for the arrival of the Controller of Explosives.

(viii) In case of bombs made in Soda water bottles, etc., these may be removed with caution in their original position and placed in hot water.

(ix) The "booby traps" may be in the form of tins, trunks, kettles, lamps, buckets, boxes, clocks, etc. These are designed to explode when the Police officers are conducting raids of suspected premises for search and arrest. Such types of bombs are placed by the passage leading into the house. In case of suspected "booby trap", cautiously enter the house or room touching nothing until each object is carefully examined. Make a loop at the end of a long rope and drop the loop over each object which might be a bomb without touching it. From outside the room or house disturb the objects by means of the rope and do not enter the premises again for some time. Repeat the process till all the objects have been so disturbed.

(x) In case of exploded bombs, careful collection of exhibits should be made and sent for analysis. Collaborate with the Controller of Explosives. (xi) Search the scene in a radius of 10 meters, for fragments. Typical staining is seen on stones, glasses, missiles, etc. Such articles should be preserved for sending them to the Expert for examination.

(xii) All samples must be sent by hand with brief history and duly sealed, labeled etc. Separate containers should be used to avoid sympathetic action.

(xiii) The presence of any of the following substances should be regarded with the gravest suspicion :-

(a) Chlorates of soda or potash:-May be found in clear crystals or as a white powder.

(b) Sulphide of arsenic:-Generally found as a yellow or orange powder or in lumps.

(c) Phosphorus.

(d) Fireworks being made from a yellowish or orange powder.

(e) Mixtures of sulphur with a white powder not being saltpeter.

(f) Mixture of aluminum powder with a white powder.

(g) "Phatakas" of all sorts and throw downs etc. are very generally manufactured from illegal chlorate mixtures and should be treated accordingly until the officer is satisfied that they do not contain chlorates.

(G. R., P. & S. D., No. 1395/34, dated 2nd November 1938 and C. D. T. S. Notes)

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(7) (a) Country crackers or bombs, which are generally found on cloth or jute covered oval or circular objects, should be soaked well with preferably distilled water in a suitable vessel and the contents sent by messenger properly packed and if possible, taking care that the aqueous contents are not lost during transit.

(b) No glass container should be used small enamel vessels or clean earthen pots cotton wads inside are preferred.

(c) Under no circumstances, should these objects be sent in dry condition.

(d) Ordinarily not more than two representative samples only should be sent for Chemical examination. If large quantity is seized the assistance of Controller of Explosives should be sought for its disposal.

(e) Country made bombs, military grenades, shells etc. should not be sent to Controller of Explosives by messenger. Instead an intimation should be sent by telegram Controller of Explosives, requesting his assistance for their disposal. While so the full description of the object marking, if any, observed on their exterior, shape, etc. should also be communicated.

(f) The preliminary examination, if any, should be done at the site without any disturbance to the objects concerned, if possible a photograph of the object should also taken.

(g) If the object is of service origin, a request should be made through proper channel to the Brigadier, Army Ordnance Corps, Southern Command, Poona, under advice to the office of the Controller of Explosives to dispose them off.

(8) Forwarding of Special Gelatin Cartridges and Detonators to the Senior Controller of Explosives, West Circle, Bombay, through one messenger is fraught with risk and danger. These two explosives i.e. Special Gelatin Cartridge and Detonator are to be sent separately through two separate messengers. These two explosives should be kept separately wide apart preferably in separate rooms away from sources of fire or flame till their final disposal by destruction by an officer of the Explosives Department. In case of any doubt before forwarding samples, the Police officer concerned should seek, if necessary, advice from the office of the Senior Controller of Explosives, giving a pencil sketch.

(I. G 's. Cir. No. G/1927/Misc/67, dated 19th January 1967)

(9) For detailed instructions, reference should be made to the booklet entitled:

"Summary of Lectures on Explosives and Bombs" by Shri K. Shankaran, Controller of Explosives, West Circle, Bombay.

(10) The address of the Controller of Explosives to be telegraphed is:-

The Senior Controller of Explosives, Government of India, Department of Explosives, West Circle, Bombay.

Telegraphic address:-

"INSWEST" Bombay.

302. The Issue of Licences.-(1) Licences for the manufacture, possession and sale of explosives coming under the Explosives as well as the Arms Act should as far as possible granted under the Explosives Act, and licences under the Arms Act limited to what do not come within the definitions of the former Act, it being understood that directly the explosives Act applies, the control is transferred.

(2) Two separate licences under both the Explosives Act and the Arms Act are not required for the manufacture, sale and possession of the same explosive. The position is where a licence under the explosives Act is necessary, the Arms Act drops into a secondary place and the necessary control is exercised under the Explosives Act, the registration required for the purposes of the Arms Act being obtained simply by having the licence under the Explosives Act endorsed by the proper authority under the Arms Act.

(G. J., R. D., No.1109 dated 12th February 1900)

(3) When arms and ammunition are simultaneously imported a licence under the Arms Act is necessary for the import of the arms and another under the Explosives Act for the import of the ammunition, irrespective of the question whether a licence under the Arms Act has been obtained or not.

(4) To prevent the occurrence of accidents, authorities empowered to grant explosives licences should exercise great care in the issue of the licences. No licence should be granted unless, after a personal inspection by a responsible officer of Gazetted rank, the licensing authority is satisfied that the premises comply fully with the conditions of the licence. Fireworks cannot be possessed in any quantity for purposes of sale without a licence under the Indian Explosives Rules. In all cases where the District Authority is in any doubt about the interpretation of the Explosives Rules, a reference should be made to the Chief Inspector of Explosives.

(G. R. J. D. No. 5893, dated 7th September 1901)

(5) It is also important that licenced premises should be inspected periodically by officers authorized under Rule 106 of the Explosives Rules in order to ensure that the licensee is complying with the conditions of his licence. Inspections are particularly desirable during the festival seasons.

(G. E. P. & S. D. No. 2225/34-B dated 14th February 1938)

(6) In order to prevent recurrence of incidents which occur during the time of Diwali every year in the State due to the licence holders of crackers and other explosive substances keeping large stocks of such materials in congested localities and any slightest negligence on their part causing serious accidents whereby people are put to considerable danger apart from any other loss of property, Government desires that the condition of the licence, for the possession and sale of fireworks granted in form 'K' which lays down certain conditions about the premises, should be strictly followed by all licensing authorities.

(7) Accordingly, it is directed that (a) police should make discreet enquiries and try to find out unlicensed seasonal stock kept in residential premises especially during Diwali time (b) licence holders should be directed to declare their stock as and when they indent and receive the indented goods, (c) licence holders should be asked to keep the stock in boxes preferably iron and they should be prohibited from stocking loosely, (d) new licences may be issued sparingly and that too in cases where the District Magistrate is satisfied that the place is situated in a safe locality.

(8) The authorities should enforce existing instructions through vigorous checks and inspection.

(9) In order to avoid chances of accidents and consequential damage to property and lives, Government desires that in all cases where it is proposed to construct grouped fire- workshops or booths, all such proposals should be first referred to the Chief Controller of Explosives for approval of layout and site and such suggestion received from the Chief Controller of Explosives, laying down the principles for selection of site and construction of booths should be strictly followed before sanction is accorded for the construction of such booths.

(G. C., H. & C. S. D. No. NRA3261/110241 M, dated 17th December 1962)

(10) To prevent the occurrence of accidents and wrong use of explosives such as Potassium Chlorate, Sulphur, Country Gun Powder and Blasting Explosives, authorities empowered to grant explosive licences should exercise great care and stricter control in the issue of licence, so as to put down illicit possession and illegal use of chemicals and explosives

(G. L., H. D., No. 2990/5 VIII F, dated 6th March 1950)

303. Prohibited Use of Fulminates.-(1) Fulminates (Class V) are not allowed to be used in the manufacture of fire-works and as chlorates (such as chlorate of potash) in admixture with sulphur or a sulphuret (such as sulphide of arsenic) are fulminates as defined in if: the rules, this prohibition applies to the use of such chlorates.

(G. C., G. D., No. 3041, dated 20th May 1911)

(2) Import, manufacture, possession and sale of Putaputia also known as *tartary*, *Martimics*, *chitpals*, *chidchedia*, Butterflies, is prohibited and are not included in the list of authorized explosives issued under the Explosive Rules, 1940. It should be seized wherever found and party concerned proceeded against under the provisions of Indian Explosives Act, 1884.

(Government of India, Ministry of Works, Housing and Supply No. M 102 (21)/52, dated 22nd December 1952 and G. L., H. D., No. 3099/7 F, dated 22nd October 1953.)

304. Restriction on Place of sale of Explosives.-Licence in Forms I, K and M require that explosives including fire-works shall not be sold anywhere except upon the premises specified in licence, and further that the sale of fire-works of any sort at fairs is illegal, unless a special licence is issued.

(G. R., G. D., No. 3040, dated 20th May 1911)

The Explosives Substances Act, VI of 1908.

305. Restriction of Trial of Offences.-Under the provisions of Section 7 of the Act no Court shall proceed to the trial of any person for an offence against this Act except with the consent of the Central Government.

The Factories Act, LXIII of 1948.

306. Taking. Cognizance of the Offences.-No Court shall take cognizance of any offence under this Act except on complaint by or with the previous sanction in writing of a Factory Inspector and unless complaint thereof is made within three months of the date on which the alleged commission of the offence came to the knowledge of the Inspector.

(Sections 105 and 106 of the Act)

The Foreigners Act, XXXI of 1946.

307. Police to enforce Orders of Internment or Externment of Foreigners.-(1) Sub-Section (1) of Section 3 of the Foreigners Act empowers the Central Government by order to prohibit regulate or restrict the entry of foreigners into India or the departure there from or their presence therein. That Government have delegated to the State Government their powers under clauses (d), (e) and (f) of SubSection (2) of that Section to order a foreigner to remove himself to, and remain in, a certain specified area in India or to intern him in a particular place or to demand from him a bond with or without sureties for the due observance of conditions or restrictions imposed upon him.

(2) A Superintendent of Police should, whenever he finds action under the above provisions necessary against a foreigner, report the facts to the District Magistrate who will move Government for the issue of appropriate order in that behalf.

(3) Under Sub-Sections (2) and (3) of Section 11 of the Act, any Police Officer may take steps, including the use of force, when reasonably necessary, for securing compliance with any order or direction given under or In pursuance of the provisions of the Act or for preventing or rectifying any breach of any such order or direction. This power of the Police includes a right of access to any land or other property, when necessary in the exercise of that power.

(4) The Deputy Commissioner of Police Special Branch, Ahmedabad city and Superintendents of Police In their respective jurisdictions are appointed as Registration Officers for the purposes of Registration. of Foreigners Rule.

(5) All offences under the Act provide punishment for five years imprisonment.

The Forward Contracts (Regulations) Act LXXIV OF 1952.

308. Powers of Police / Penalty for contravention of certain provisions of the Act.-(1) (a) Any person who-

(i) In any return, statement or other document required by or under the Act makes a statement which is false in any material particular knowing it to be false or willfully omits to make a material statement, or, ,

(ii) Without reasonable cause "fails to furnish any return, statement or other document or any information or to answer any question or to comply with any requisition made under the Act, or any rules made there under, or

(iii) Enters into any forward contract during the period of suspension of business of recognized association in persuasion of a notification under Section 14 of the Act, or.

(b) is a member of any association other than a recognized association, to which certificate of registration has not ,been granted under this Act, or

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(c) publishes or circulates information relating to the rate at which any forward contract has been entered into in contravention of any of the by-laws of recognized association, or

(d) organizes or assists in organizing or is a member of any association in contravention of the provisions contained in the proviso to sub-section (1) of Section 18, or

(e) enters into any forward contract or any option in goods in contravention of any of the provisions contained in sub-section (1) or sub-section (3) (a) or sub-section (4), Section 15, Section 17 or Section 19 ;

commits offence under Section 20 of the Act, and

(2) Any person who-

(a) owns or keeps a place other than that of a recognized association, which is used for the purpose of entering into or making or performing whether wholly or in part, any forward contracts in contravention of any of the provisions of this Act and knowingly permits such place to be used for such purposes, or

(b) without the permission of the Central Government, organizes or assists in organizing, or becomes a member of any association, other than a recognized association for the purpose of assisting in entering into or making or performing whether wholly or in part, any forward contracts in contravention of any of the provisions of this Act, or

(c) manages, controls or assists in keeping any place other than that of a recognized association, which is used for the purpose of entering into or making or performing, whether wholly or in part, any forward contracts in contravention of any of the provisions of this Act or at which such forward contracts are recorded or adjusted, or rights or liabilities arising out of such forward contracts are adjusted, regulated or enforced in any manner whatsoever, or

(d) not being a member of a recognized association, willfully represents to, or induces, any person to believe that he is a member of a recognized association or that forward contracts can be entered into or made or performed, whether wholly or in part, under this Act through him, or

(e) not being a member of a recognized association or his agent authorized as such under the rules or bye-laws of such association; canvasses, advertises or touts in any manner either for himself or on behalf of any other person, for any business connected with forward contracts in contravention of any of the provisions of this Act, or

(f) Joins, gathers, or assists in gathering at any place, other than the place of business specified in the bye-laws of a recognized association, any person or persons for making bids, offer or for entering into or making or performing, whether wholly or in part, any forward contracts in contravention of any of the provisions of this Act,

(g) makes, publishes, or circulates any statement or information which is false and which he either knows or believes to be false, affecting or tending to affect the course of business in forward contracts in respect of goods to which the provisions of Section 15 of the Act have been made applicable, or

(h) manipulates or attempts to manipulate prices in respect of forward contracts for the sale or purchase of any goods specified in any notification under Section 15 in any area specified in the notification; commits offence under Section 21 of the Act.

(3) (a) Under section 22-A of the Act, any Magistrate of the first class may by warrant authorize any Police officer not below the rank of Sub-Inspector, to enter upon and search any place where books of account or other documents relating to forward contracts or options in goods entered into in contravention of the provisions of the Act may be or may be reasonably suspected to be and such Police Officer may seize any such book or document, if in his opinion it relates to any such forward contract or option in goods.

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(b) Under Section 23 of the Act, the following offences shall be deemed to be cognizable, Viz.:-

- (i) an offence falling under sub-clause (ii) of clause (a) of Section 20 in so far as it relates to the failure to comply with any requisition made under sub-section (3) of Section 8;
- (ii) an offence falling under clause (d) of Section 20;
- (iii) an offence falling under clause (e) of Section 20, other than a contravention of provisions of sub-section (3) (A) or sub-section (4) of Section 15, and
- (iv) an offence falling under Section 21 of the Act.

(c) Whenever any offence under the Forward Contracts (Regulations) Act, 1952 is registered, a detailed report with copy of First Information Report and arrest memo with names of persons arrested shall be forwarded to the Directorate, Enforcement Department, Bombay

(I. G. P.'s Cir. No. G/1927/73/1991, dated 28th May 1973.)

The Indian Forest Act, XVI of 1927.

309. Powers and Duties.-(1) It is the duty of the Police to render assistance to the Forest Department in the detection or suppression of crime, when called upon to do so.

(2) No Revenue or Police officer shall call a Forest Guard off his beat nor shall a Forest Guard leave his beat, in order to report himself to such officer, except with the previous permission of his Ranger.

(G. L., H. D., No. 7178/3-D, dated 28th July 1936)

(3) Any Police officer may seize any forest produce, together with all tools, boats, vehicles or cattle used in commission of any forest offence. Every Police Officer seizing such property shall place on such property a mark indicating that the same has been so seized, and shall, as soon as possible make a report of such seizure to the Magistrate having jurisdiction to try the offence on account of which the seizure has been made. When the seized property is of Government and the offender is unknown the officer should make a report of the circumstances to his official superior.

(4) Under Section 64 of the Act any Police officer. may without order from Magistrate and without a warrant, arrest any person against whom a reasonable suspicion exists of his having been concerned in any forest offence punishable with imprisonment for one month or upwards, except offences under Chapter IV unless such act has been prohibited under clause (c) of Section 30 of the Act.

(5) Every Police officer is required to prevent and to interfere for the purpose of preventing the commission of any forest offence, under section 66 of the Act.

The Prevention of Food Adulteration Act, XXXVII of 1954.

310. Police Action in case of Adulteration.-(1) Provision exist in the Prevention of Food Adulteration Act, 1954, and the Rules made there under for prevention of Food Adulteration and to take necessary action against those engaging in such Acts and for inflicting necessary punishment on such persons.

(G. C. L. S. G. and P. H. D. No. V. O. P. 1054 D, dated 27th October 1958)

(2) In cases, where the adulteration of articles of food or drink creates noxious effect which would be injurious to the health of human beings, action may be taken against the person or persons concerned under provisions contained under Section 272 and 273 of the Indian Penal Code.

(3) In cases where the adulteration of the articles of food or drink are not likely to cause any noxious effects, action may be taken against the persons engaged in such activities of adulteration under Section 420 of the Indian Penal Code.

(4) The Police officers should take cognizance of such offences whenever they come or are brought to their notice and take action against the offenders in accordance with law. The members of the general public can also apprise the Police Authorities of such malpractices for taking suitable action.

(5) Section 16 of the Act is a penal Section and Section 17 deals with offences by Companies.

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(6) Under Section 20 of the Act, no prosecution for an offence under the Act shall be instituted except by or with the written consent of the Central Government or the State Government or a local authority or a person authorized in this behalf by general or special order by the Central Government or the State Government or a local authority.

The Indian Fisheries Act, 1897, (VI of 1897)

311. Duties and Powers of the Police.-Any Police officer may arrest without warrant any person committing in his view any offence of catching or destroying fish by use of dynamite, poison, lime or noxious materials in the water under Sections 4 and 5 of the Act and also under the rules made under Section 6 of the Act, If the name and address of that person are unknown and he declines to give name and address or gives name and address which are doubtful and that person will be detained till his name and address are correctly ascertained.

(Section 7 of the Act)

The Glanders and Farcy Act, XIII of 1899.

312. Powers of the Police in regard to diseased Horses.-(1) (a) The Glanders and Farcy Act has been made applicable to the whole of the State of Gujarat Superintendents, Assistant Superintendents and Deputy Superintendents of Police in their respective charges have been declared under Section 4 to be Inspectors for the purposes of the Act.

(G. N., R. D., No. 5542, dated 3rd August 1901 and G. N., R. D. No. 10426, dated 6th October 1991)

(b) The provisions of this Act relating to horses shall also apply to camels, asses and mules.

(Section 2 of the Act)

(2) The following instructions should be observed by the Police when dealing with cases of horses suspected to be "diseased" under the Glanders and Farcy Act:-

The Veterinary Inspector or the Veterinary Assistant, on suspecting a horse to be "diseased" will direct the owner of the horse to confine it to a particular place and will immediately inform the Police Station Officer of the nearest Police Station of the fact. The Police Station Officer, on receipt of the intimation, will immediately depute Constable to see that the horse is confined to the place fixed by the Veterinary Inspector or Assistant, and not put to work. If the diagnosis is not confirmed, the Veterinary Inspector or Assistant will inform the Police Station Officer accordingly, who will then withdraw the Constable. If however, the diagnosis is confirmed and the horse has to be destroyed, the Veterinary Inspector or Assistant will inform the Police Station Officer, who will depute an armed Constable to shoot the horse under the supervision of the Veterinary Inspector or Assistant and to dispose of the carcass either by burning or burial, as may be ordered by the Veterinary Inspector or Assistant.

(Note:-"Diseased" in this Act means affected with glanders or farcy or any other dangerous i epidemic disease among horse and which the State Government may by a notification specify.

(3) All expenses in connection with the disposal of such horses will be borne by the Veterinary Department.

(I. G. 's No. 1556/A, dated 9th February 1920)

The Identification of Prisoners Act, XXXIII of 1920.

313. Finger Impressions and Photographs of Criminals.-(1) Instructions as to the powers and duties of the Police in the matter of taking of finger impressions and photographs of criminals and their custody and disposal etc., will be found in the rules framed under , Section 8 of the Act, which have been reproduced in Appendix XXVII.

(2) Under section 4 of the Identification of Prisoners Act at! rule 7 of the Finger Print Bureau Manual, finger impression slips of all adults of either sex suspected or arrested by the Police for any of the criminal charges which are included in the Schedule .of the Finger Print Bureau Manual have to be obtained by the Police and sent to the Chief Operator of the respective district who in turn will send them to their. Finger print Bureau of the State. Finger Impressions are taken for enhanced punishment, Finger

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impressions of politicians or political agitators are not necessary because punishments can be proved from the dossiers of persons taking interest in political activities and conviction awarded to such persons in the past would also be figuring in these dossiers and it would not be necessary to trace their previous conviction through finger print slips. Previous convictions could also be proved from the jail records. Finger impressions of political agitators should therefore be dispensed with.

(I. G. P.'s Cir. No. G/1927/72/14297 dated 21st April 1972.)

The Industrial Disputes Act, XIV of 1947.

314. Taking cognizance of offence.-According to Section 34 of the Act, no Court shall take cognizance of any offence under this Act except on complaint made by or under the authority of the appropriate Government. Sections 22, 23 and 24 define legal and illegal Strikes and Lockouts.

The Indian Income-tax Act, 43 of 1961

315. Supply of information and submission of annual return of payments and assistance to the Income-tax Department.-(I) Superintendents of Police should furnish confidentially to the Income-tax Department, on request, information regarding-

- (i) names and addresses of the contractors employed; and
- (ii) amount paid to each i during the previous years.

(G. R. F. D. No. 5304 dated 2nd April 1927)

(2) With a view to assist the Income-tax Department in their assessment work, all disbursing officers will furnish. to the Assistant Director of Inspection (Income-tax) Central Board of Revenue, Collation Branch, Locksley Hall, Poonamallee, High Road, Madras, either monthly or quarterly, the details of every payment (above Rs. 250) made by them to contractors and other non-officials on behalf of Government local bodies, j in Form-19, in Appendix I. Disbursing officers are those officers who pass bills presented 1 by the contractors etc. and endorse them for payment at the treasury.

(G. R. F. D. No. 5304, dated 2nd April 1927; 251/33, dated 29th September 1944 and 21st September 1945.)

(3) According to Section 206 of the Act, the prescribed person in the case of every office of the Government shall prepare and within thirty days from the 31st day of March I in each year, deliver or cause to be delivered to the Income-tax Officer in the prescribed form and verified in the prescribed manner, a return in writing showing-(a) the name, the address of every person who was receiving on the 3] st day of March or has received or to whom was due during the year ending on the date, from the Government any income chargeable under the head "Salaries" of such amount as may be prescribed; (b) the amount of the income so received by or so due to each such person and the time or times at which the same was paid or due as the case may be ; (c) the amount deducted in respect of income tax and super tax from the income of each such person.

(4) According to provision]9 of the Second Schedule of the Act, any officer authorized to attach or sell any property or to arrest the defaulter or charged with any duty to be performed under the Schedule may apply to the officer in charge of the nearest j Police Station for such

assistance as may be necessary in the discharge of his duties and the authority to whom such application is made shall depute a sufficient number of Police Officers for furnishing such assistance.

(5) According to section 279 of the Act, a person shall not be proceeded against for an offence under Sections 276 or 278 of the Act, except at the instance of the Commissioner of Income Tax. According to Section 280 of the Act, the prosecution against a public servant who discloses any particulars, the disclosure of which is prohibited by Section 137 of the Act, shall not be filed except with the previous sanction of the Central Government.

(6) Under Section 132 of the Act, the Income tax officer is authorized to enter and search any building or place and attach any books of accounts or other documents which may be useful for or relevant to any proceedings under this Act.

The Indian Lunacy Act, IV of 1912.

316. Duties of the Police in connection with lunatics.-(I) It is the duty of the Police, under the orders of Magistrates, to take lunatics to Civil Hospitals.

(G.O., F. D., No. 2865, dated 4th April 1919)

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(2) A Police guard is not to be provided to watch lunatics under observation in Civil Hospitals or to remove them to the Mental Hospitals except in the following cases:- (a) Police Constables are to be employed to watch only dangerous lunatics under observation in Civil Hospitals.

(G. R., J. D., No. 2288, dated 14th June 1918, G. O., F. D., No. 2865, dated 4th April 1919 and G. R., G. D., No. 2257, dated 5th May 1925.)

(b) A lunatic to be removed from a Civil Hospital to a Mental Hospital by two attendants to be deputed from the latter. But when owing to pressure of work a second attendant is not available, the services of a Police Constable should be lent.

(c) With regard to the question of custody, the system of escort outlined above should be adopted in the case of lunatics to be transferred to another State. When there is a Police escort provided by this State, it should be changed at the most convenient spot on or near the frontier.

(G. C., H. D., No. 8480, dated 3rd December 1918)

(3) (a) Under Section 3 of the Act, every officer in charge of a Police Station may arrest or cause to be arrested all persons found wandering at large within the limits of his station whom he has reason to believe to be lunatics, and shall arrest or cause to be arrested all persons within the limits of his station whom he has reason to believe to be dangerous by reason of lunacy. Any person so arrested shall be taken forthwith before the Magistrate.

(b) Every Officer in charge of Police Station who has reason to believe that any person within the limits of his station is deemed to be a lunatic and is not under proper care and control, or is cruelly treated or neglected by any relative or other person having the charge of him shall immediately report the fact to the Magistrate.

(Indian Lunacy Act, IV of 1912)

(4) In all cases in which alleged lunatics are placed before a Magistrate, charged with trivial offence, and the Magistrate orders them to be sent to the Police Surgeon, or Civil Hospital for examination as to their state of mind, they should be sent back to the Police Station with the Officer or Constable who produced them in Court. The Medical History Sheets will then be prepared by the Police Station Officer, in triplicate and the accused sent to the Hospital. The papers in connection with the accused must be seen with him and not afterwards, and an officer of constable acquainted with the facts should form part of the escort. The following Memo, should also be sent by the Police Station Officer:-

Memo.-The accused who is charged with a trivial offence and is being forwarded for observation has been sent on the authority of the Court. If the accused is certified as a lunatic he should not be forwarded to the Court but should be detained at the Hospital, and if he is not certified as a lunatic he should be returned direct to the Court.

Inspector/S. I. of Police,
Police Station

Note :-When alleged lunatics are charged with serious offences, no such memo, should be sent.

(Indian Lunacy Act, IV of 1912)

(5) There are three classes of lunatics that are dealt with by the Police :- (0) those who are homeless and wandering at large; (b) those who are believed to be dangerous on account of their lunacy and (c) those who are not under proper care and control.

As regards class (0) the alleged lunatic will probably have no property other than that on his person. Such property should be taken charge of by the Police and an inventory thereof prepared in quadruplicate.

As regards classes (b) and (c) the property, if any, found on the person, of the alleged lunatic should be taken charge of as in the case of (a), should there be any other moveable property belonging to him, such other property should be taken charge of, only if there are no relatives etc., residing with him who could look after it. In either case, a complete inventory of the moveable property taken charge of by the Police should be prepared in quadruplicate. If the property includes Household furniture which

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is bulky and conveniently be sent with the lunatic to a mental hospital, the property should be left in the lunatic's residence, locked up and sealed and guarded by a Constable until orders are received from the Commissioner of Police or the District Magistrate, as the case may be. The Lepers Act, III of 1898.

317. Arrest of Lepers.-(1) The Central Lepers Act, III, 1898, has been made applicable to the State of Gujarat, vide The Lepers (Bombay Amendment) Act XX-VIII, 1955 and the Lepers (Bombay Unification) Act XXXIX, 1959. According to Section 2 of the Lepers (Bombay Amendment) Act, '1955, in its application of the Act to the State of Gujarat, the word "pauper" has been deleted.

(2) Any Police officer may arrest without warrant any person who appears to him a leper and forthwith take or send the person to the nearest convenient Police Station, whereupon, such person shall without unnecessary delay be taken before an Inspector of Lepers for further disposal. Any Police officer may also arrest any person who, having been lawfully sent to a leper asylum under an order of a Magistrate, escapes from or leaves the asylum without the written permission of the Superintendent thereof. Such person, upon arrest, shall be forthwith taken back to the asylum. Leprosy patients (even infectious ones) should be prosecuted under the Lepers Act and not under Section 269

Indian Penal Code

(Section 6, 7 and 8 of the Leper Act. G. R., H. D., No. 6751/3, dated 26th September 1935 and I. G. 's No. 5019, dated 15th July 1955.)

(3) Any Police Officer may arrest without warrant any person who appears to him to be a leper and who is found to be within the limits of the notified area in contravention of the order issued under Section 14A Bombay Act, XXVIII, 1955. Person so arrested shall forthwith be taken or sent to the nearest convenient segregation camp. Lepers escaping from such segregation camps may also be rearrested, under section 14-F of this Act.

(4) Lepers should, as far as possible, be picked up in the mornings, so that the necessary formalities may be gone through without detaining them in the station all night. *Bhatta* money should never be given to a leper, but if he has to be detained, arrangement may be made to feed him, and expenses paid out of *bhatta* money. Occasionally the Police may come across a leper who requires immediate medical treatment, but with regard to whom, on account of holidays etc., it is impossible to carry out the usual formalities. These may be sent to the Asylum as exceptional cases, without any formalities, but it is necessary that they are examined by the Medical officers at the earliest possible moment, and then placed before a Magistrate.

The Indian Medical Degrees Act, VII of 1916.

318. Taking cognizance of offence.-No Court shall take cognizance of any offence under the Act except, on complaint by order of State Government or by a Council of Medical Registration with the previous sanction of State Government.

(Section 7 of the Act)

The Maintenance of Internal Security Act No. 26 of 1971

319. Power to make orders, execution and the maximum period of detention.-(1)The Central Government or the State Government may-

(a) If satisfied with respect to any person (including a foreigner) that with a view to preventing him from acting in any manner prejudicial to-

(i) the defense, of India, the relations of India with foreign powers, or the security of India, or.

(ii) the security of the State or the maintenance of public order, or

(iii) the maintenance of supplies and services essential to the community, or

(b) if satisfied with respect to any foreigner that with a view to regulating his continued presence in India or with a view to making arrangement for his expulsion from India, it is necessary so to do, make an order directing that Such person be detained.

(2) Any of the following officers, namely:-

(a) District Magistrates,

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(b) Additional District Magistrates especially empowered in this behalf by the State Government,

(c) Commissioners of Police,

may, if satisfied as provided in sub-clauses(ii) and (iii) of clause (a) of sub-rule (I) exercise the powers conferred by the said sub-rule.

(3) When any order is made under Section 3 of MISA Act by an officer mentioned in sub-rule (2), he shall forthwith report the fact to the State Government with grounds on which the order has been made and such other particulars which have a bearing on the matter, and no such order shall remain in force for more than twelve days after the making thereof unless in the meantime, it has been approved by the State Government: Provided that where under Section 8 of the Act, the grounds of detention are communicated by the authority making the order after five days but not later than fifteen days from the date of detention, sub-rule (3) shall apply subject to the modification that for the words "twelve days" the words "twenty days" shall be substituted.

(4) When any order is made or approved by the State Government, the State Government shall within seven days report the fact to the Central Government together with the grounds on which the order has been made.

(5) Under Section 4 of the Act, a detention order may be executed at any place in India in the manner provided for the execution of warrants of arrest under the Criminal Procedure Code.

(6) According to Section 6 of the Act, no detention order shall be invalid or inoperative merely by reason that the person to be detained is outside the limits of the territorial jurisdiction of the Government or officer making the order or that the place of detention of such person is outside the said limits. .

(7) According to Section 8 of the Act, when a person is detained, the authority making the order shall ordinarily not later than five days and in exceptional circumstances for which reasons to be recorded in writing, not later than fifteen days from the date of detention, communicate to the detunue the grounds on which the order has been made.

(8) According to Section 13 of the Act, the maximum period for which an:y person may be detained in pursuance of any detention order which has been confirmed under Section 12 of the Act,

shall be twelve months from the date of detention. As regards foreigners, Section 17 of the Act may be referred.

The Mines Act, XXXV of 1952.

320. Prosecution.-(1) No prosecution against the owner, agent or manager for any offence under this Act shall be launched except at the instance of the Chief Inspector or of the District Magistrate or an Inspector authorized by Chief Inspector in this behalf.

(Section 75 of the Act)

(2) It is necessary that Assistant Public Prosecutors should obtain certified copies of judgments in the cases entrusted to them by the Chief Inspector of Mines as expeditiously as possible and forward it to the concerned officers of the Mines Department in proper time to enable the Chief Inspector of Mines to take further action in the matter. The cost of such certified copies will be payable by the said Department.

(I. G. 's C. M. No. G/34, dated 19th June 1958)

(3) In respect of mining accidents, the Police may await for the report of the enquiry of Mines Inspectorate before sending up the charge sheet or final report, as the Police investigation will have an advantage of the expert opinion of the technical personnel.

(I. G. P.'s Cir. No. G/1940, dated 16th May 1967.)

The Motor Vehicles Act, IV of 1939.

321. Police Action under the Motor Vehicles Act.-(1) For instructions for the guidance of Police officers regarding the control of motor vehicles traffic, reference should be made to the pamphlet entitled "Instructions for the guidance of Police officers regarding the control of Motor Vehicles Traffic" supplied to all Police officers.

(I. G. 's No.6, dated 21st February 1941)

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(2) On the occurrence of an accident involving death or bodily injury, the officer-in-charge of the Police Station should complete Form A-I prescribed by Government Letter, Home Department No. 2040/5/19471-E, dated 9th April 1949, and dispatch it to the Regional Transport Officer concerned. He should also send a statement in the prescribed form of all accidents including accidents in which police vehicles are involved, to the Deputy Superintendent of Police; State Traffic Branch, Gujarat State, to enable him to maintain his graphs, charts and maps up-to-date. Information regarding (a) the place of accident (b) the name of the road, and (c) the Kilometer number should also be given, in the report.

(I. G. 's No. 564-III, dated 14th December 1940, 564-IV, dated 16th June 1942 and 14, dated 28th May 1959 and I. G. 's No. 19 (6564), dated 21st July 1950 and 31 (6564), dated 4th September 1950 and, I. G. P.'s Cir. No. 186/STB/Accident, dated 12th June 1970.)

(3) Any Police officer in uniform is empowered to stop any motor vehicle and satisfy himself that the tax due has been paid. All Police officers should, therefore, report to the Superintendent of Police the registration numbers of all motor vehicles on which current tax tokens are not displayed, for communication to the Regional Transport Officer concerned,

(4) Drivers and owners of goods vehicles involved in the smuggling of food stuffs in contravention of food control orders should be reported to the Regional Transport Officer concerned for departmental action under Section 15 (1) (B) and Section 60 (1) (B) of the Motor Vehicles Act respectively for using the vehicles in the commission of a cognizable offence and using the vehicle in a manner not authorized by the permit, after taking the necessary action in respect of the breach of the control orders.

(I.G. 's No. 5538, dated 19th September 1947)

(5) (a) All cases of breaches of the Motor Vehicles Act and the Bombay Motor Vehicles Rules, 1959, detected by the Police should be promptly reported to the Regional Transport Officer concerned to enable him to take departmental action, like suspension of permits, pending the result of the cases which are *subjudice*. The results of cases in which prosecution has been undertaken should also be reported to the Regional Transport Officer concerned to enable him to take similar action in addition to judicial punishments, which are often very light.

(I. G. 's No. 5538-11, dated 7th May 1948)

(b) (i) All Police officers should offer full and active co-operation to the Motor Vehicle staff in all possible ways as for example, checking fitness certificates of motor vehicles, evasion of tax and breaches of conditions of licence and checking and detecting traffic offences. Inspectors of the Motor Vehicles Department, who, when on tour, contact the local Police officers, should be given all possible assistance. For the expeditious disposal of cases, resort should be had to departmental action against the defaulters, as far as possible, rather than to prosecuting them in Courts of Law, which involves delay and inconvenience to all. The Regional Transport Officers will take prompt and suitable action against the offenders, as soon as the cases are reported to them.

(I. G. 's No. 32/(5538-II), dated 3rd September 1949.)

(ii) Government have prescribed a scheme for granting of rewards to persons who have given information about evasion of taxes by owners of motor vehicles which have led to the recovery of arrears of taxes with penalty.

(G. R. H. & C. S. D. No. NTA/1963/3094-E, dated 17th July 1964 and G. R. H. D. No, MTA 1963/3094 E, dated 21st December 1973.)

(c) With a view to minimizing inconvenience to all concerned, the following procedure, which has been approved by Government, should be adopted in future in the case of prosecutions launched by Police officers against owners and drivers of motor vehicles for breaches of the provisions of the Motor Vehicles Act and Rules, which arise out of driving the vehicles without documents such as certificates of fitness, permits, driving licenses, etc.

(d) Wherever the Regional Transport Authorities have delegated powers under section 16 of the Act, to disqualify a person from holding or obtaining a licence to drive a transport vehicle, to the Police officers of the rank not lower than the Superintendent of Police in Ahmedabad City and the Deputy Superintendent of Police elsewhere should send a report in the first week of every quarter on the action taken by him under, section 16 during the previous quarter for information of the Regional Transport Authorities.

(6) Before launching prosecutions in such cases, Police officers should ascertain from the Regional Transport Officer concerned or the Director of Transport, Ahmedabad, as the case may be, whether the documents in question are deposited with them in connection with any other issue pending before them.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(7) As it is essential that prosecutions whenever found to be necessary, should be launched as early as possible, the Director of Transport has been asked by Government to issue instructions to all Regional Transport Officers to treat communications from Police officers on this subject as very urgent and to see that no avoidable delays occur in disposing of them.

(8) Under the eighth schedule to the Motor Vehicles Act, the maximum speed which can be legally attained by a public passenger bus is 48 Kilometers per hour and that by a goods vehicle is 40 Kilometers per hour. Police officers, who notice any such vehicles contravening these speed limits, should report them to the Regional Transport Officer for departmental action. Superintendents of Police should maintain a record of such action taken by themselves and their officers in order that the Inspector-General may call for it when required. If any specific instances of contravention of these limits are detected, action should also be taken under Section 115 of the Motor Vehicles Act.

(I. G. 's No. 5403/V, dated 13th March 1948 and 35, dated 30th October 1948)

(9) Drivers and Conductors of the Nationalised Transport Undertakings can be straightway prosecuted for offences under the provisions of the Motor, Vehicles Act, 1939, except those falling under Chapter VI of the Act in which case the matter should be referred to Government in the Home Department direct by the Superintendent of Police or the Commissioner of Police, as the case may be, for sanction to prosecute. Simultaneously the Police officers should endorse copies of the communications to the General Manager of the concerned Nationalised Transport Undertaking and also to the Divisional Controller if he be different from the General Manager vide Rule 251 (7).

(G.L., H.D., No. MVA 4358/93115XII, dated 14th March 1959 I.G.P. 's No. K/6583 I)

(10) Drivers often place big stones as brakes for the wheels of their vehicles to prevent their sliding down when halting on sloppy roads, and leave the stones on the road after they have done with them. With a view to put a stop to this dangerous practice, action should be taken against the drivers concerned under Section 102 of the Bombay Police Act. Prosecution can also be launched against such drivers for offences punishable under Sections 283 and 290 or under Section 426 of the Indian Penal Code. The act of leaving such stones on the public road may, under certain circumstances, also

amount to using criminal force to persons using the road, punishable under Section 352, Indian Penal Code

(11) A Police Officer should not resort to impounding of driving licenses in petty cases. Whenever he impounds the driving licence of a motor driver, he must furnish the driver with an official receipt or temporary authorization in accordance with Rule 15 of the Motor Vehicles Rules and Section 129 (3) of the Motor Vehicles Act, clearly mentioning particulars of the motor driving licence together with its office of issue and the details of the case in which the licence is impounded. The licensing authorities concerned should also be informed about the steps so taken.

(I. G. 's No. 43 (5538-II), dated 26th October 1949)

(12) Motorists offending against minor requirements, such as a broken side-mirror or absence of a bulk horn when there is an electric horn etc., should ordinarily be dealt with by giving them a warning for the first offence and an opportunity to make good the deficiency. The Police and especially the traffic Police should concentrate their attention more, on important cases, such as over speeding, over-loading, plying without permit or without payment of tax or without insurance, etc. The traffic Police should pay particular attention to motor vehicles with raucous horns, and report then to the Regional Transport Officer for action and also take action against drivers under Rule 149 (2) of the Bombay Motor Vehicles Rules for indiscriminate use of horns.

(I. G. 's No. 2664-V, dated 4th February 1950 and 1 (6707), dated 1st February 1950.)

(13) Whenever a motor vehicle is checked by the Police but no *Panchnama* is made, a memorandum should be made out by the checking officer, showing the defects or breaches of the Motor Vehicles Act or the Rules there under, discovered in the course of the check, and a copy of the memorandum should be served on the driver and his signature taken, on the original in token of his having received the copy. If necessary the contents of the memorandum should be explained to the driver in his own language or in Hindi and the fact endorsed in the memorandum. If this procedure is followed, the driver will have no grounds later to deny the offences reported against him.

(14) (a) The Police are expected to enforce the provisions of the Motor Vehicles Act and Rules, where they have been specifically empowered to do so, e.g., under sections 73, 75, 76 and 77 of the Act, Superintendents of Police are empowered to act. Similarly under

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Rule 127 (3), any Police officer in uniform is entitled "to stop" a bus and to make reasonable examination of the number of passengers and other contents of the vehicles so as to satisfy himself that the provisions of the Act and Rules and the provisions and conditions of the permit in respect of the vehicles are being complied with.

(I. G. 's C.M., No. 5403-V, dated 6th September 1951)

(b) Vehicles seized by the Police for clandestine operations may be garaged in the State Transport Depot or Workshop premises by the Divisional Controllers on request from the Police. The vehicles so garaged will be deemed to be in Police custody and responsibility of State Transport will be to see that the vehicles are not tampered with in any way while they are in their premises.

(I. G. 's No. K/5538, dated 10th February 1958.)

(15) (a) The offence of clandestine transport of passengers in private Motor Vehicles is made punishable under Section 123 of the Act. All Police officers should concentrate on the detection of such cases and also to press for deterrent punishment and wherever possible should make use of the provisions of Section 129 (a) of the Act.

(I. G. 's No. 5538-IV, dated 18th September 1953)

(b) When investigating cases under Section 42 (1) of the Act, the Police officers 1 should as far as possible see that evidence is collected to support the inference that the driver had the express or implied permission of the owner of using the vehicle in contravention of Section 42 (1) of the Act.

(I. G. 's No. 5538-V, dated 4th December, 1953.)

(c) Police officers in charge of Police Stations and other Police Officers not below the rank of a Head Constable are authorized by the State Government under Section 129-A of the Act and hence they are empowered to seize and detain vehicles used without certificate of registration or permit in contravention of Sections 22 (1) and 42 (1) of the Act and can take proper steps for the safe custody of the vehicle.

(G.N., H.D., No. MVA 6657 XII, dated 13th July 1959, G.N., H.D. No. 4838/VII, dated 27th November 1953, and I. G. 's No. 5403 VII, dated 31st December 1953.)

(16) The Commissioner of Police/Superintendents of Police should instruct their prosecuting staff to bring to their notice all cases of rash driving involving accidents in which the driving licenses are cancelled by the courts as and when the cases are decided, to enable them to see whether action under this Act is taken against the driver concerned for each and every rash driving, involving an accident.

(I. G. 's No. 2664-VI-A, dated 23rd November 1955)

(17) The Commissioner of Police/Superintendents of Police should send the following monthly returns to the Deputy Superintendent of Police, State Traffic Branch, Gujarat State, Ahmedabad, in the prescribed form,

(i) Return of motor accidents occurring in the District to be submitted by the 15th of every month as per Inspector-General of Police's No. A/O/II/RTNS/7441 dated 25th February 1972).

(ii) Return of cases under the Motor Vehicle Act and Rules put up by the officer and men in the District to be submitted by the 20th of every month as per Inspector-General of Police's No. A/O/II/RTNS/ 25th February 1972).

(18) Police officers should avail, as far possible, of the assistance and co-operation that may be extended by the executive staff of the nationalised State Transport undertakings in the matter of detection and checking of overloading of goods vehicles of private operators and even otherwise in respect of the enforcement of the motor vehicles law.

(I. G. 's C. M. No. KJ5538-VII, dated 17th June 1958)

(19) In case of over-loading of goods trucks, whenever it reveals that the owners have forced the drivers to overload the truck, the statements of the truck drivers should be recorded and sent to the Regional Transport Officers concerned to take departmental action under Section 60 of the Motor Vehicles Act, against the owners by suspending the vehicle for a period up to 4 months in cases which have ended in conviction. In such cases suspension will definitely prove a deterrent punishment. In cases where the driver of an overloaded vehicle is himself the owner of the same truck, the court may be requested to suspend the vehicle in addition to whatever fine the court may impose. This procedure should invariably be followed in dealing with overloaded goods trucks.

(I. G. 's C. M., No. K132 M. V., dated 20th August, 1958)

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(20) To avoid the pendency of a large number of cases under this Act on the dormant files of the court Police officers should conduct occasional drives to serve process in respect of cases on dormant files, and invoke the frequent use of provisions of Sections 128 and 129 of the Act in appropriate cases to secure the presence of accused persons in courts.

(I. G. 's C. M., No. K/32 M. V., dated 12th February 1959)

(21) Police officers not below the rank of a Head Constable are authorized-

- (a) under Section 73, to have the vehicle weighed;
- (b) under Section 86. (2), to ask the owner or driver of the vehicle to produce the certificate of registration and the certificate of fitness;
- (c) under Section 88, to ask for information from the owner of a vehicle, about his driver who is an accused of any offence under the Act;
- (d) under Section 90, to inspect vehicle involved in accident;

(e) under Section 106 (1), to ask a driver of a vehicle to produce certificate of insurance;
(f) under Section 106 (3), to require the owner of vehicle to give information for the purpose of determining whether the vehicle was or was not being driven in contravention of Section 94;

(g) under Section 129, to impound documents carried in a vehicle or produced by the driver which are suspected to be false and a driving licence of a driver charged with any offence under the Act, who is likely to abscond, or avoid service of summons and to issue a temporary acknowledgement (L.T.M.) for the impounded driving licence;

(h) under Section 129-A, to detain vehicles used without certificate of registration or permit. .

(G. N., H. D., No. MVA-6657 XII, dated 13th July 1959)

(22) For Common traffic offences and limits of speed for motor vehicles, refer to Appendix XXVIII.

The Indian Official Secrets Act, XIX of 1923

322. Powers under the Act.-(1) Opinions expressed by the Remembrance of Legal Affairs on cases are confidential and hence copies of opinion tendered by the Remembrance of Legal Affairs on current or lately recorded cases should not be supplied or allowed to be obtained or divulged to non-officials under any circumstances. Similarly copies of Government Resolutions, etc. containing such opinions of Remembrance of Legal Affairs should be refused to them. Any breach of these instructions should be regarded as divulgence of official secrets and dealt with as such. These instructions do not apply to opinions that have been directed to be communicated for general Information.

(2) If any person for any purpose prejudicial to the safety or interests of the State (a) approaches, inspects, passes over, or is in the vicinity of, or enters any prohibited place or (b) makes any sketch, plan, model or note which is calculated to be or might be or is intended to be directly or indirectly, useful to an enemy, or (c) obtains, collects records or publishes or communicates to any other person any secret official code or any pass-word, or any sketch plan, model, article or note or other documents or information which is calculated to be or might be or intended to be, directly or indirectly useful to an enemy commits offence under Section 3 and its attempts and abetments are punishable under Section 9, and they are cognizable and non-bailable under Section 12 of the Act

The Indian Passport Act 15 of 1967

323. Powers and Duties.-(1) Any Police officer not below the rank of a Sub-Inspector may arrest without warrant any person against whom a reasonable suspicion exists that he has committed an offence punishable under Section 12 and shall as soon as may be inform him of the grounds for such arrest and shall without unnecessary delay take 'send the person arrested before a Magistrate having jurisdiction in the case or to the officer in charge of the nearest Police Station and the provisions of Section 57 of the Criminal Procedure Code, shall, so far as may be, apply in the case of any such arrest

(Section 13 of the Act)

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(2) Any Police Officer not below the rank of a Sub-Inspector may search any place and seize any passport or travel document from any person against whom a reasonable suspicion exists that he has committed an offence under Section 12 of the Act.

(Section 14 of the Act)

(3) No prosecution shall be instituted against any person in respect of any offence under the Act without the previous sanction of the Central Government or such officer or authority as may be authorized by that Government by order in writing.

(Section 15 of the Act)

(4) As Gujarat State is bordering Pakistan, there is a possibility of Pak-nationals coming down to Gujarat State without passports. The Police should keep vigilance and track such Pak-nationals, if they are found in Gujarat State limits, and take appropriate action.

(I. G. P.'s No. 1926/Passport. dated 5th August 1967)

(5) Under rule (3) of the Indian passport Rules 1950, no person proceeding from any place outside India shall enter or attempt to enter India by water, land or air unless he is in possession of a valid passport conforming to the conditions prescribed in the Indian Passport Rule 5. Contravention of the provisions of Indian Passport Rule 3 is punishable under rule 6 of these Rules. Even Indian nationals departing or attempting to depart from India or entering into India from outside can be punished under the above quoted relevant provisions of the Passport Act, 1967 or the Indian Passport Rules 1950, if they have no valid passports or travel documents.

(I. G. P.'s No. G/1927/Border/68, dated 23rd February 1968.)

The Petroleum Act XXX of 1934.

324. Power to Search etc.-(I) All Police officers of and above the rank of Inspector have been authorized (a) under Section 13 (1) of the Act, to enter place in their respective jurisdiction where petroleum is being imported, stored, produced, refined or blended or is under transport, and to inspect all receptacles, plant and appliances used in connection with petroleum in order to ascertain if they are in accordance with the provisions of Chapter I of the Act and the rules made under the Act, and (b) under Section 1.4 (1) of the Act, to enter and inspect any such place and to take samples for testing any petroleum found therein.

(2) Similarly all Police officers not lower in rank than a Sub-Inspector have been authorized under Section 26 (1) of the Act to enter and search any place in their respective jurisdictions, in which there is reason to believe that any petroleum is being illegally imported, transported, stored, produced, refined or blended, and to seize, detain or remove any or all the petroleum in respect of which in their opinion, an offence under the Act has been committed.

(G. R., P. & R. D., No. 1566/34, dated 24th April 1937)

(3) The provisions of the Petroleum Act are applicable to the import, storage etc. of petroleum by Government in the same way as in the case of private individuals.

(G. R., P. & R. D., No. 1362/34, dated 9th November 1937)

The Poisons Act XII of 1919

325. Inspection of Poison Shops.-(I) Rules framed under Section 2 of the Poisons Act for regulating the possession for sale and the sale of poisons within the State have been published in Government Notification, Home Department No. 705 of 11th November 1922, No. 4521 of 14th June 1926, No. 7922/3 of 21st September, 1938, 17th November 1942 No. 2107/5 of 17th April 1947, amended by Government of Gujarat No. G.N. H. & C. S.D. No. PNA-1061-85403-D, dated 17-4-1963 and G.N., H.& C.S.D. No. PNA-1060-D, dated 8-6-1963.

(2) Licensed poison shops should be inspected once in three months by Inspectors or Sub-Inspectors and once a year by a Gazetted Police officer of higher rank than Inspector.

(3) Under Section 7 of the Act the District Magistrate, the Sub-Divisional Magistrate or the Commissioner of Police may issue a warrant for the search of any place in which he has reason to believe or to suspect that any poison is possessed or sold in contravention of the Act or any rule there under, or that any poison liable to confiscation under this Act is kept or concealed.

326. Penalty.-Section 3 of this Act provides penalty for causing or attempting to ~user doing an act which one knows is likely to cause disaffection towards the Government, established by law in India, amongst the members of the Police Force, or induces or attempts to induce or does any act, which one knows is likely to induce, any member of a Police Force to withhold his services or to commit a breach of discipline. Under Section 5 no Court shall precede to the trial of any offence under this Act except with the previous sanction, or on the complaint of the District Magistrate/the Commissioner of Police.

The Probation of Offenders Act No. 20 of 1958.

327. Action how Taken.-(1) "Probation Officer" means an officer appointed to be a probation officer or recognized as such under Section 13 of the Act.

(2) A probation officer sha.1l, subject to such conditions and restrictions as may be prescribed-

(a) enquire in accordance with any directions of a Court into the circumstances or home surroundings of any person accused of an offence with a view to assist the Court in determining the most suitable method of dealing with him and submit reports to the Court;

(b) supervise probationers and other persons placed under his supervision and, where necessary endeavour to find them suitable employment;

(c) advise and assist offenders in the payment of compensation or costs ordered by the Court;

(d) advise and assist in such cases and in such manner as may be prescribed, persons who have been released under Section 4 of the Act; and

(e) perform other duties as may be prescribed.

(Section 14 of the Act)

(3) When any person is found guilty of having committed an offence punishable under Section 379 or 380 or 381 or 404 or 420 of the Indian Penal Code or any offence punishable with imprisonment for not more than two years or with fine or with both under the Indian Penal Code or any other law and no previous conviction is proved against him and the Court is of opinion that having regard to the circumstances of the case including the nature of the offence and the character of the offender, the Court may instead of sentencing him to any punishment or releasing him on probation of good conduct under Section 4, release him after due admonition.

(Section 3 of the Act)

(4) When any person is found guilty of an offence not punishable with death or imprisonment for life and the Court is of the opinion that having regard to the circumstances of the case and the character of the offender, it is expedient to release him on probation of good conduct, then, the Court may, instead of sentencing him, direct that he be released of his entering into a bond with or without sureties, to appear and receive sentence when called upon during such period but not exceeding three years, as the Court may direct and in the meantime to keep the peace and be of good behavior. Before making an order, the Court shall take into consideration the report, if any, of the probation officer. The Court may in addition pass a supervision order directing that the offender shall remain under the supervision of a probation officer named in the order during such period not being less than one year and may impose such conditions as it deems necessary for the due supervision of the offender.

(Section 4 of the Act)

(5) When any person under 21 years of age is found guilty of having committed an offence punishable with imprisonment (but not with imprisonment for life), the Court shall not sentence him to imprisonment unless it is satisfied that, having regard to the circumstances of the case and the character of the offender, it would not be desirable to deal with him under Sections 3 or 4 of the Act and if the Court passes any sentence of imprisonment on the offender, it shall record its reason for doing so. For the purpose of satisfying whether it would not be desirable to deal under Section 3 or Section 4, the Court shall call for a report from the probation officer. Report from the probation

officer is a condition precedent to passing an order under Section 6 (1) of the Act. A crucial date on which the age of the offender is to be considered must be that upon which the trial Court had to deal with the offender. Age is to be considered only for punishment of the offender.

(6) Under Section 9 of the Act, procedure has been given in case of offender failing to observe conditions of the bond.

Indian Post Office Act, 1898

328. Offences and Authority for Prosecution.-(1) Sections 49 to 57 of the Act are in connection with offences by the employees of the Postal Department.

(2) Whoever:-

(a) conveys otherwise than by post, a letter within the exclusive privilege conferred on the Central Government by section 4 of the Act; or

(b) performs any service incidental to conveying, otherwise than by post, a letter within the exclusive privilege aforesaid; or

(c) sends, or tenders or delivers in order to be sent, otherwise than by post, a letter within the exclusive privilege aforesaid; or

(d) makes a collection of letters excepted from the exclusive privilege aforesaid for the purpose of sending them otherwise than by post,

shall be punishable with fine which may extend to fifty rupees for every such letter, and whoever having already been convicted of an offence under section 58 of the Act, is again convicted there under, shall, on every such subsequent conviction, be punishable with fine which may extend to five hundred rupees.

Note:-This, in short, will mean that running of parallel postal service is an offence under section 58 of the Act).

(3) The following are the common offences under the Act:-

(a) Defiling or injuring post office letter-boxes. Section 62

(b) Affixing, without authority, thing to, or painting, tarring Section 63 or disfiguring, post office or post office letter-box.

(c) Making false declaration in respect of any postal article Section 64 or the contents or the value thereof.

(d) Detaining mails or opening mail bag. Section 67

(e) Retaining postal articles wrongly delivered or mail bags. Section 68

(f) Unlawfully diverting letters. Section 69

(4) No Court shall take cognizance of any offence punishable under any of the provisions of sections 51, 53, 54 clauses (a) and (b), 55, 56, 58, 59, 61, 64, 65, 66 and 67 of the Act unless upon a complaint made by order of or under authority from the Director General or a Post Master General.

(Section 72 of the Act)

Prevention of Insults to National Honour Act, 1971

329. Offences and Punishments.-(1) Whoever in any public place or in any other place within public view burns, mutilates, defaces, defiles, disfigures, destroys, tramples upon or otherwise brings into contempt (whether by words, either spoken or written, or by acts) the Indian National Flag or the Constitution of India or any part thereof, shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

Note :-(i) Comments or criticism with a view to obtain an amendment of the Constitution or an alteration of the Indian National Flag by lawful means do not constitute an offence.

(ii) Indian National, Flag includes any picture, painting, drawing or photograph, or other visible representation of the Indian National Flag, or of any part or parts thereof, made of any substance or represented on any substance.

(2) Whoever intentionally prevents the signing of the Indian National Anthem or causes disturbance to any assembly engaged in such singing shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

(Section 3 of the Act.)

Railway Property (Unlawful Possession) Act No. 29 of 1966.

330. Duties and Powers.-(1) The powers of enquiry into offences under this Act are vested in the Railway Protection Force, the Police should not, therefore, investigate the cases falling under this Act.

(2) If the Police get any information about the commission of offences under this Act, they should enter the same in their non-cognizable register and direct the informant to the appropriate office of the Railway Protection Force. The Police should further send the relevant extract of the non-cognizable register to the appropriate office of the Railway Protection Force immediately.

(3) If the officers of the Railway Protection Force, during their enquiry of offences under this Act, incidentally get any information about the commission of cognizable offences, such as thefts, etc., they will convey such information to the Police Stations concerned at once in writing.

(4) The Police should render all assistance necessary and extend their co-operation in searches, raids and other steps which may be required to be carried out by the Railway Protection Force under the provisions of this Act on request by the Railway Protection Force.

(5) If during investigation and search in a cognizable offence the Police find any railway property, then in addition to a normal charge of that theft, etc., an additional charge under Section 3 of this Act should be levelled by the Police as it provides for a heavy sentence.

(6) The Police shall supply escorts and vehicles to the Railway Protection Force upon payment, subject to their availability. ..

(7) As the Railway Property (Unlawful Possession) Act, 1966, envisages enhanced punishment for subsequent offences and the finger print record forms an important piece of evidence for proving the previous conviction under the Act, the State Finger Print Bureau shall assist the Railway Protection Force to the extent it helps the district Police. Normal finger print work during enquiry and trial will be done by the Railway Protection Force officers themselves.

(I. G. P.'s Cir. No. G/1927/68, dated 20th March 1968.)

Indian Railways Act, 1890

331. Powers and Duties.-(1) The following are the Cognizable offences under the Indian Railways, Act, 1890:-

(a) Offences by Railway Servants.

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| (i) Being in a state of intoxication while on duty. | Section 100 |
| (ii) , Abandoning train etc. without authority, while on duty. | " 100-A. |
| (iii) Obstructing, running of trains, rail, car, or other rolling stock by squatting, picketing, keeping without authority, tampering with signal, gear, or otherwise. | " 100-B. |
| (iv) Endangering the safety of persons etc. | " 101 |
| (b) Other offences. | |
| (i) Needlessly interfering with means of communication in a train. | " 108 |

(ii) Fraudulently traveling or attempting to travel
without proper pass, or, ticket.

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| (iii) Entering carriage or other place reserved for females. | Section 119 |
| (iv) Being in a state of drunkenness or to commit a nuisance or act of indecency or to use obscene or abusive language or to wilfully and without lawful excuse interfere with comfort of any passenger or extinguish any lamp. | 120. |
| (v) Obstructing Railway servant in his duty. | „ 121. |
| (vi) Maliciously wrecking or attempting to wreck a train. | " 126. |
| (vii) Maliciously hurting or attempting to hurt persons travelling by Railway. | " 127. |
| (vii) Endangering safety of persons travelling by Railway by wilful act or omission. | " 128. |
| (ix) Endangering safety of persons travelling by Railway by rash or negligent act or omission. | " 129 |
| (x) Acts of children under the age of 12 years endangering safety of persons travelling by Railway. | " 130(1) |

(2) If a person commits any offence mentioned in sections 100, 100-A, 100-B, 101, 108, 112, 119, 120, 121, 126, 127, 128 or 129 or in section 130(1) he may be arrested without warrant or other written authority by any Railway servant or Police Officer, or by any other person whom such servant or officer may call to his aid.

(Section 131 of the Act)

*The Spirituous Preparations (Inter-State Trade and Commerce) Control
Act XXXIX of 1955*

332. Powers and Duties.-(1) Under Section 7, all offences under this Act and Rules made there under are cognizable. Under Section 8, any Police officer authorized in this behalf by the State Government, who has reason to believe from personal knowledge or from information given by any person and taken down in writing that any spirituous preparation in respect of which an offence punishable under Section 5 of the Act has been committed is kept or concealed in any house, building or enclosed space, or is being transported in any vehicle, vessel or air-craft to any place, or is in transit may enter such place, seize such preparation and documents or other articles and detain and search any person whom he has reason to believe to be guilty and if any spirituous preparation is found to arrest him. When an officer takes down any information in writing as above, he shall forthwith send a copy thereof to his immediate official superior.

(2) The work of enforcement of this Act and Rules made there under will be dealt with by the Police Department.

(I. G. 's No. G/5429, dated 20th December 1958)

The Suppression of Immoral Traffic in Women and Girls Act, 104 of 1956

333. Duties and Powers of the Police.-(1) (a) (i) The present Act has 25 Sections and it is practically similar to the Bombay Prevention of Prostitution Act. There are however, some more special provisions in this Act. The words "Prostitute" and "Prostitution" have been defined in this Act. The Act has provided for starting Protective Homes by Government or if they are started by private persons, they can do so under licenses issued by the State Governments. Persons have been prohibited from establishing or maintaining Protective Homes without a licence from the Government. A breach of this provision is made punishable under Section 21 of the Act.

(ii) The Act provides penalties for those who are indulging in the evil practice or living on the earnings of prostitution (Section 4), procuring, seducing or soliciting woman or girls in premises where prostitution is carried on (Section') and detaining a woman or a girl in premises where prostitution is carried on. Special measures may also be initiated to curb the movements at all traffic check posts of the highway or on rail ways wherever suspicious characters are seen moving with the girls and women, with a view to enforce strictly problem of trafficking in women and girls in tribal and rural areas.

(G. P.'s Cir. No. G/1927/72/304, dated 24th January 1973)

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(iii) A watch may be kept over brothels and places of clandestine prostitution. Whenever persons are found visiting such places, a note may be made in a separate register at the Police Station and a notice served on the person calling him to the Police Station and recording his statement in that connection. No case need be sent up in the first instance but when two or three more such entries are recorded about the same place and the same prostitute, a case may be sent up. The earlier entries and copies of notices issued could then be used as evidence against the accused and no punter may be considered then necessary,

(I. G. P.'s Cir. No. G/1927/SITA/64 dated 23rd March 1964.)

(b) Section 10 of the Act provides that where a person (Woman or a girl) is convicted under Sections 7 and 8 of the Act, the woman or the girl may be detained in protective home instead of undergoing sentence.

(I. G. 's No. G/1728 dated 23rd May 1958)

(c) Section 19 provides that any woman or girl may make an application to a Magistrate requesting that she may be kept in a protective home. The Magistrate can make an order to keep her in protective home after making necessary enquiries in the matter.

(d) Section 11 of the Act provides that persons who are previously convicted for offences punishable under Sections 363, 365, 366, 366-A, 366-B, 367, 368, 370, 371, 372 and 373, Indian Penal Code are again convicted within a period of five years after their release for offences of the same nature, they can be directed to notify their residence. Similarly Section 12 provides that when convicting a person, the court finds that he is in the habit of committing or attempting to commit offences under this Act, the Court may direct him to execute a bond for good behavior. Similarly, the Court also is empowered to start proceedings for security for good behavior if a complaint is lodged with the Court the person within his jurisdiction habitually commits or attempts or abets the commission of any offence under this Act. These provisions will enable the Police to enforce the provisions under the Act, as security can be taken from the persons who are habitual ally committing offences under this Act. Similarly, provisions under Section 11 will be t useful to know the whereabouts of the persons who are habitually committing offences in respect of women and girls.

(e) Section 13 of the Act provides for the appointment of Special Police Officers and the State Government can also appoint an advisory body separately for every sub-division and consisting of works of that particular area to advise the Special Police , Officer on questions of general importance regarding the working of this Act. Special r Police Officers so appointed, are empowered .under Section 15 to search without warrants, , a place where the Police reasonably believe that an offence In respect of women or girls is likely to be committed. The Special Police Officers are also empowered to rescue girls from those places if they are under the age of 21. All offences under this Act are made cognizable by Section 14 of the Act. A proviso has, however, been added that if the arrest is to be effected by an officer other than a Special Police Officer, the Special Police Officer should give a written authority. The officer arresting the person must show the authority to the person to be arrested and explain its substance.

(f) Sections 16 and 17 provide for rescue of girls under the age of 21 years if they are carrying on prostitution, etc. If information is lodged with a Magistrate in respect of such girls, the Magistrate can direct the Special Police Officer to enter the brothel and remove the girl concerned from the brothel. Pending a decision about her, the Magistrate can retain her in a Protective Home

or he can make suitable arrangements for her custody. When the Magistrate acts under Sections 16 and 17 he can take assistance of five respectable persons, who are social welfare workers, particularly in this Branch. The Section also provides that out of the five, three shall be women.

(2) The Superintendent of Police, Crime Branch, Ahmedabad City and the Deputy or Assistant Superintendent of Police, in-charge of a Sub-Division of a District or any Police officer not below the rank of the Deputy Superintendent of Police temporarily holding the additional charge of the Deputy or Assistant Superintendent of Police of a Sub-division of a district for his sub-division, constituted for the purposes of the Criminal Procedure Code, have been appointed as Special Police officers for the purposes of this Act. The Special Officer so appointed shall be assisted by all their subordinate Police officers including women Police.

(I. G. 's No. G/1728 dated 25th June 1959 and G.N. H.D. No. PPA 157/84187/X dated 22nd August 1958.)

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(3) The Deputy Director of Social Welfare (Correctional Administration) has been appointed to be the Chief Inspector for all the Protection Homes in this State.

(L. and S. D. No. SMH-1058(37999-I dated 15th December 1958 and I. G. 's No. G/1728 dated 14th January 1959)

(4) In arranging traps to detect offences under this Act, the Police officer should invariably instruct the bogus customer not - to go to the length of actually having sexual intercourse with the girl or woman supplied to him, but only to be found in a compromising position with her.

The Telegraph Wires (Unlawful Possession) Act, LXXIV of 1950.

334. Duties and Powers of the Police.-(1) Sections 5 and 6 of this Act lay down that even possession of an inch of telegraph wire having gauges commonly used in Tele- graph lines, viz., one hundred and fifty pounds per mile, two hundred pounds per mile or three hundred pounds per mile; is an offence punishable with 5 years or with fine or with both. According to section 7 of the said Act it is obligatory that sanction from the Central Government or by an officer specially empowered in that behalf by that Government is necessary before lodging the prosecution to enable the Courts to take cognizance,

(2) The Central Government has empowered all the Superintendents of Police of the district and the Sub-Divisional Officers of the Telegraph and the Telephone Department to give their formal complaints in the Courts so that there would be no necessity to obtain the sanction from the Central Government. The Sub-Divisional Officers of the Telegraph and the Telephone Department can be examined in the Courts with advantage as Experts to prove ownership of such wires.

(D. I. G. C. I. D. 's No. CIB(46-Te1. dated 25th August 1953.)

(3) A special report of this type of crime with its development and action taken should be made to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways) on 10th of each month.

(4) (a) This Act is enacted with a view to assist the prosecuting authorities to book the offenders, arrested for copper wire thefts envisaging heavy punishments to have deterrent effect on the culprits. This act is powerful weapon in the hands of the Police and it should be enforced rigidly especially against the receivers.

(I. G.'s No. G/4746 dated 13th May 1958.)

(b) (i) With a view to prevent thefts of copper wire, the Commissioner of Police/Superintendents of Police should arrange proper patrolling in an unobtrusive way in the affected area, take suitable preventive measures against the known or suspected copper wire thieves and receivers and intensify the vigilance on such persons. They should also depute plain clothes men at bus stops, railway stations and cross roads for watching the suspicious persons. The posts and Telegraphs Department may also be approached if their Co-operation is needed in detecting occurrence of wire cutting thefts without loss of time so that there can be a hot pursuit of the criminals committing the offences. As soon as the offence is reported, the Posts and Telegraphs Department should be requested to check up their subordinates with a view to find out whether any one is absent or missing under suspicious circumstances. If this form of crime is rife in railway

jurisdiction, the railway authorities should be requested to supply trolleys for patrolling the track. As soon as the offence of copper wire theft is reported, immediate look out for stolen copper wire should be organized at possible places of disposal, particularly the shops of goldsmiths, black-smiths and the dealers dealing in scrap metal utensils. The list of such persons should be kept ready at the Police Station. In a case of unabated occurrence in a particular sector, public co-operation should be sought for and patrols be organized with the assistance of Gram Rakshak Dais, Home Guards and Village Police. Every accused arrested red-handed should be closely interrogated under Police remand to find out his complicity in other crimes and locate receivers and others' who are interested in this type of Crime list of suspected employees of Telegraphs Department indulging in wire-cutting should be prepared. Intensive and prolonged surveillance of such persons is likely to yield fruitful results. In addition a list of temporary laborers should also be obtained from the Posts and Telegraphs Department and antecedents of such temporary laborers should be verified. Personal files of criminals indulging in such crime should be opened and maintained at Police Stations and at district level by the Local Crime Branch. Frequent verification of the whereabouts of these criminals and their means

of livelihood may be made. Surprise checks at night of such criminals will help in keeping

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a continuous track of their activities. Suddenness with which the increase and decrease in crime takes place should be studied and appropriate action taken. The posts and Telegraphs Department may be requested for regular tapping of telegraph wire lines with the help of "Electronic Fault Detectors" in the worst affected area. Prompt action on the part of the Police on the complaints of faults may lead to red-handed arrest of wire-cutters. Border conferences of adjoining districts and Posts and Telegraph Department may be arranged to organize concerted action against wire-cutters.

(ii) Prosecution under Section 5 of the Act is more simple than prosecution under Section 379 Indian Penal Code and the punishment under the former is more severe. For prosecution under Section 5 of the Act, it has to be proved that the wire in question was a prohibited wire of Posts and Telegraphs Department whereas for a prosecution under Section 379 Indian Penal Code, it has to be proved that the recovered wire was cut from a particular post, etc. As such, prosecution under Section 5 of the Act is easier and better. Action under rule 36 of the Defense of India Rules for acts of sabotage which includes tampering with telegraph wires may also be useful. Adequate use of Sections 124, 126 and 127 of Bombay Police Act should be made to control carriers and receivers. The supervising Police officers, while visiting the Police Stations for the purpose of inspection should invariably ensure that the records as mentioned in the above sub-rule are maintained.

(I. G. P. 's Cirs. No. G/1927 dated 10th March 1974 and No. G/1916/67 dated 12th July 1967)

(iii) The offences of copper wire thefts should be visited by the Circle Police Inspector.

(I. G. P. 's Cir. No. G/1916/67 dated 12th July 1967.)

(iv) The search of the houses of employees of Posts and Telegraphs Department, wherever necessary, may be conducted in presence of Posts and Telegraphs Department officer who can provide information of technical nature to the Police authorities.

(I.G. P.'s Cir. No. 0/1916/71 dated 2nd August 1971)

(5) The Superintendents of Police should submit to the I.G. P. a monthly report in Form No. 20. Appendix I, regarding the incidents of thefts of the telephone wires that may occur in their jurisdiction and the action taken by the Police in each case.

(I. G. 's C. M. No. 4746-11 dated 5th September 1953)

The Untouchability (Offences) Act, XXII of 1955.

335. Duties of the Police.-(1) (a) All offences under the Act are cognizable vide Section 15 of the Act. The acts of enforcing religious or social disability or refusing to admit in the hospitals, dispensaries,

educational institutions and hostels or to sell goods or render services or any other act arising out of "Untouchability" are punishable under this Act. This act enjoins on the part of court to presume that the act complained of is committed on the ground of "Untouchability". It is the duty of every Police Officer incharge of Police Station to act and proceed according to the provisions contained in Chapter XII of Criminal Procedure Code, on receiving information of the commission of an offence under the Act.

(I. G. 's No. 2800-II dated 5th March 1959)

(b) Sections 3,4,5,6 and 7 are penal Sections of the Act.

(c) Under Section 12 of the Act, it is to be presumed that an offence under the Act has been committed on the ground of Untouchability if the contrary is not proved. The Police should therefore register cognizable offences whenever the Harijans complain that something was done to them because they were Harijans. The burden of proving other- wise may be thrown on the accused.

(I. G. P. 's Cir. No. 34-35 dated 23rd November 1960)

(2) Investigations of cases in which Harijans or other backward classes are involved should be unbiased and should, as far as possible, be instituted by some higher Police officials.

(I. G.'s No. 7579 dated 31st July 1953)

(3) Police officers who go on tour and have occasion to spend their time at a place where there is a Harijan locality should, as far as possible, visit such locality and enquire into the grievances of the people there.

(I.G.'s Cir. No. 6113 A-IV dated 1st October 1956)

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(4) In case of complaints by way of giving applications or even orally on behalf of the Harijans, the Police should go deep and make detailed enquiries. In some cases, the offences under the Act are subsequently compounded and the parties accede to a compromise on account of pressure from the people. The Police should therefore see that the Harijans do not compromise cases on account of pressure and that, if the compromise is effected, it should be durable and the Police should see that the Harijans are not harassed after the compromise.

(I. G. P. 's Cirs. No. 34-65 dated 2nd March 1965 and G/1927/65 dated 20th November 1965.)

(5) The supervising officers should inculcate in the lower ranks of the Police the need to pay attention to the complaints of harassment and highhandedness brought to the notice by Harijans and instilling in them an awareness of the values that the new Indian society stands for. The Police officers at all levels should make thorough efforts to pay special attention to curb down this evil from the society. Assistant Public Prosecutors should request for deterrent punishment in such cases by the Courts. The investigating offices should not rest contented on charge sheeting such cases but they should follow up in Courts and see that the convictions are secured. If any laxity is noticed in investigation resulting into the acquittal of the case under this Act, the supervising officers should take serious view and take deterrent action against the responsible investigating officers to set an example on others.

(I. G. P. s Cir. No-G/1927/Misc/66 dated 6th December 1966 G.L.H.D. No. ૫૨૫-1068-52-S dated 18th August 1968 and I. G. 's No. G/1927/68 dated 28th August 1968.)

(6) A register should be maintained at all the Police Stations in Form No. 21. Appendix I. The Police Inspectors/Police Sub-Inspectors of the Police Stations should send copies of their registers on 5th of every month regarding the complaints entered in the register to the Commissioner of Police/Superintendent of Police. The Commissioner of Police/Superintendents of Police should similarly maintain a register in Form No.22. Appendix I and enter the complaints received from the Police Stations in their registers and send a copy thereof on 15th of every month to the Director of Social Welfare, Gujarat State, Ahmedabad, with a copy to the Deputy Inspector-General of Police, Criminal Investigation Department (Crime & Railways). The Commissioner of Police, Superintendents of Police/Deputy Commissioners of Police/Sub-Divisional Police Officers should check these registers during their inspections and should see that the entries in the registers tally with the entries of the registers maintained in their offices.

(I G. 's No. G/1928/68 dated 16th December 1968)

(7) The Police should take steps to see that no harassment is caused to Harijan employees serving in the villages and that their complaints are attended to with promptness.

(I. G. P.'s Cir. No. G/1927/69 dated 5th June 1969.)

(8) With a view to eradicate the practice of Untouchability in the hotels, etc., the Commissioner of Police/Superintendents of Police should arrange for surprise checking of all the hotels at least once a month on an appointed date and in case cups and glasses are found outside the hotel for the use of Harijans, they should take legal action against proprietors and also take steps for securing cancellation of hotel licenses. The Commissioner of Police being the licensing authority, he may take action at his own level for cancellation of licenses.

(I. G. P.'s Cir. No. G/1927/72 dated 31st January 1972.)

(9) In order that the relations between Harijans and other members of public may not deteriorate in the villages, the Commissioner of Police/Superintendents of Police should issue instructions to their subordinates, to take prompt action to prevent the harassment Whenever cases of harassment to Harijans take place or Harijans are found vacating the villages on account of such harassment, the Commissioner of Police/Superintendent of Police should send information to the Inspector-General of Police by a wireless message, copy of which should be endorsed to the Deputy-Inspector-General of Police, Criminal Investigation Department (Crime and Railways), Gujarat State, Ahmedabad. They should also visit such villages or arrange visitation of such villages by a responsible officer for taking adequate action and for arranging safety of Harijans.

(I. G. P.'s No. G/1927/73/1990 dated 28th May 1973.)

The Indian Wireless Telegraphy Act No. 17 of 1933

336. Duties of the Police.-(I) All Police officers should Invariably consult Superintendent of Police, Wireless, State of Gujarat, in case of possession of unauthorized wireless equipment.

(I. G. P.'s Cir. No. 6113-A-IV dated 1st October 1951)

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(2) Section 6 of the Act is a penal Section.

(3) Any officer especially empowered by the Central Government may search any building, vessel or place in which he has reason to believe that any wireless telegraphy apparatus in respect of which an offence punishable under Section 6 of the Act has been committed, is kept or concealed and take possession thereof.

(Section 7 of the Act)

SECTION II

STATE ACTS

The Bombay Aerial Ropeways Act 1956 (III of 1956).

337. Powers to Arrest.-According to Section 37 of the Act, if any person commits an offence under Section 35 or 36 of the Act, such person may be arrested without warrant or other written authority by any Police officer. Section 35 is in connection with unlawfully interfering with aerial ropeways etc. and Section 36 of the Act is in connection with maliciously doing, abetting or attempting to do acts endangering safety of persons travelling or being upon aerial ropeways, etc.

The Bombay Anatomy Act, of 1949

338. Assistance to Hospital Authorities to procure Bodies For Dissection.-(I) When a patient dies at a hospital under Government control and the body is not claimed by the near relatives, the officer authorized in that behalf must deliver the body to an approved medical or teaching institution for "anatomical examination and dissection. All Police officers and Village officers are bound to take all reasonable measures to assist any authority or an officer authorized under the Bombay Anatomy Act, to obtain possession of an unclaimed body.

(Section 5 of the Act)

(2) A Police officer not below the rank of a Police Inspector or the Local Coroner, where such appointment exists, is authorized to act under Section 5 of the Act, to deliver the dead body to an approved medical or teaching institution for anatomical examination.

(G. No. L. S. G. and P. H. D. No. 5337/33-III dated 13th June 1950)

(3) Section 6 is a penal Section

(4) Under Section 7 of the Act, all Police Officers shall be bound to take all reasonable measures to assist the authorities and officers authorized under the Act in the discharge of their duties under the Act.

(5) If any of the approved institution does not require the dead body for the anatomical examination and dissection and if the body is unclaimed, it should be disposed of in accordance with the instructions contained in sub-rule 10 (a) (i) of rule 223. According to rule 3 (framed under Section 10 of the Act), when an unclaimed body is handed over to the authorities in charge of an approved institution under Section 5 of the Act, the authorities in charge of such institution shall, after use of the body for the said purpose, arrange to dispose of the body or its remnants.

(G. N. L. S. G. & P. H. D. No. 5337/33-V dated 13th June 1950 appended by Notification LSG & P. H. D. No. 5337/33 dated 10th July 1951 and L. S. G. & P. H. D. No. 5337/33 dated 10th February 1952.)

The Bombay Animal Preservation Act, LXXII of 1954

339. Slaughter of Animal when Legal.-(I) Under Section 5 of the Bombay Animal Preservation Act, the slaughtering of bulls, bullocks, cows, buffaloes and calves is an offence, except when the animal slaughtered is above the age of 15 years and is slaughtered for bona fide religious purposes. In order to legalise the slaughter of any animal, certificate is necessary from the competent authority appointed for the area to the effect that the animal is fit for slaughter, i.e., it is not useful or likely to become useful:-

(a) for the purpose of draught or any agricultural operation, or.

(b) for the purpose of breeding. if male, or giving milk or bearing off-spring, if female.

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(2) According to Section 6 of the Act, no animal in respect of which a certificate has been issued under Section 5 shall be slaughtered in any place other than a place specified by such authority or officer as the State Government may appoint in this behalf.

(3) Section 8 of the Act is a penal Section.

(4) Under Section 10 of the Act, the abetment of any offence under this Act or attempts to commit any such offence is punishable.

(5) Under Section 9 of the Act, all the offences under the Act are cognizable.

(6) *Illegal Slaughter of a Cow.*-In place where the Bombay Animal Preservation Act, 1954 is not applicable, the action under Government orders; Agriculture and Rural Development Department No. 298-D, dated the 23rd August 1948, should be taken.

(I. G. 's C. M. No. 6209 dated 7th January 1953)

The Gujarat Agricultural Produce Markets Act, 1963

340. Powers and Duties.-(I) (a) According to Section 43 of the Act, any Police Officer may arrest any person committing in his view any offence against any provision of the Act or any rule or by-law made there under, if the name and address of such person be unknown to him and if he declines to give his name and address on demand or gives the name and address the accuracy of which such officer has reason to doubt; and such person may be detained at the Police Station until his correct name and address has been ascertained.

(b) It shall be the duty of every Police officer to communicate as soon as may be to the Market Committee any information which he receives regarding any attempt to commit or the commission of any offence against the Act or any rule or by-law made there under and to assist the Secretary or any officer or servant of the Market Committee reasonably demanding his aid in the exercise of his lawful authority.

(Sub-section 2 of Section 43 of the Act.) ,

(2) According to Section 41 of the Act, no offence under this Act or any rule or by-law made there under shall be tried by any Court inferior to that of the First Class Magistrate. Prosecutions under the Act may be instituted by any person duly authorized generally or specially in writing by the Market Committee.

(3) According to Section 42 of the Act, no Court shall take cognizance of any offence alleged to have been committed by a member, secretary or officer or servant of a Market Committee while acting or purporting to act in the discharge of his duties in relation to the affairs of the committee except with the previous sanction of the Director.

Gujarat Ancient Monuments and Archaeological Site and Remains Act, 1965

341. Powers and duties.-(1) Section 31 is a penal section according to which whoever (i) destroys, removes, injures, alters, defaces, imperils or misuses a protected monument or (ii) being the owner or occupier of a protected monument, contravenes an order made under sub-section (1) of section 9 or sub-section (1) of section 10, or (iii) removes from a protected monument any sculpture, carving, image, inscription, or other like object, or (iv) does any act in contravention of sub-section (1) of section 21, shall, on conviction, be punished with imprisonment for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.

(2) According to section 32 of the Act, no Court inferior to that of Magistrate of First Class shall try any person under the Act.

(3) According to section 33 of the Act, notwithstanding anything contained in the Criminal Procedure Code an offence under clause (i) and clause (iii) of sub-section (1) of section 31 shall be deemed to be cognizable offence within the meaning of that Code.

The Gujarat Animals and Birds Sacrifices (Prohibition) Act, 1973

342. Powers and duties.-(1) According to section 3 of the Act, sacrifice of any animal or bird in any temple or its precincts is an offence. For this purpose "sacrifice" will mean killing or maiming of any animal or bird.

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(2) According to section 4 of the Act, no person shall (a) officiate or offer to officiate at, or (b) perform, or (c) serve, assist, or participate, or offer to serve, assist or participate in any sacrifice in a temple or its precincts.

(3) According to section 5, no person shall knowingly allow any sacrifice to be performed at any place which is situated within any temple or its precincts, and is in his possession or under his control.

(4) The offence under section 3 is punishable with imprisonment up to 6 months, or with fine which may extend to Rs. 500 / - or with both and the offences under section 4 or 5 are punishable with imprisonment which may extend to 3 months or with fine which may extend to Rs. 300/- or with both.

(5) According to section 7, the offence under this Act in any area outside City of Ahmedabad is triable by a Magistrate of the First Class.

(6) According to section 8, the Court on receipt of information through a complaint or otherwise, issues injunction against any person concerned prohibiting the performance of the sacrifice. Disobedience of such injunction, on conviction shall be punished with imprisonment which may extend to 6 months or with fine which may extend to Rs. 500/- or with both.

(7) According to section 9 of the Act, the officer in charge of Police Station, shall, on receipt of information that a sacrifice in contravention of the provisions of this Act, has been arranged or is about to be performed, (unless he has reasonable grounds which shall be recorded by him in writing for not believing the information) forthwith file a complaint in the Court for an offence which appears to have been committed or as the case may be, make an application to the Court for an injunction under section 8.

The Bombay Borstal Schools Act, XVIII of 1929.

343. Treatment of offenders on discharge or licence from a Borstal School.-(I) As regards the treatment to be given to offenders discharged from a Borstal School, reference should be made to Rule 71.

(2) Whenever a Borstal School licensee is arrested for a fresh breach of law, the Police Officer should invariably inform the stipendiary Probation Officer concerned immediately, though the person may be detained pending trial in such manner as may be deemed fit.

(I.G. 's No.6, dated 24th March 1947)

(3) Under Section 18, any offender who in contravention of the provisions of this Act, has escaped from a Borstal School or from Civil Hospital or from supervision of any authority, institution, society or person under whose supervision, he has been directed to remain or has been permitted to live by licence, has committed breach thereof may be arrested by any Police officer without warrant and without order from Magistrate and sent back to the concerned authority.

The Bombay Prevention of Begging Act X of 1959.

344. Powers and duties of the Police in regard to beggars.-(I) The object underlying the Act is to make provision for the prevention of begging, for the detention and employment etc. of beggars in certified institution and for the punishment etc. of beggar offenders in the State of Gujarat. The Act is operative at those places to which it is made applicable by Government.

(2) Begging after detention as a beggar and employment of other persons for begging are cognizable offences punishable respectively under Section 6, and 11 of the Act. Every Police officer is empowered to arrest without warrant any person found begging in public places, including railway trains, and to produce him before a Magistrate. He is likewise empowered so to arrest any person who unauthorizedly leaves a receiving centre or a certified institution, and to send him back to the place concerned, under Section 27 of the Act.

(3) While enforcing the provisions of the Act properly, the arrests of beggars only should be made and not of pseudo-beggars and previous convicts. -

(4) (i) Under Section 29 of the Act, every person ordered to be detained in a Certified institution under this Act, shall at any time allow his finger prints to be taken by the Commissioner of Police, or any officer empowered by him in this behalf and by the District Magistrate or any officer empowered by him in this behalf.

(ii) According to Sub-Section (2) of Section 29 of the Act, whoever refuses to allow his finger prints to be taken under sub-section (1) of Section 29 shall on conviction be liable to have his period of detention in a Certified Institution not exceeding three months converted to a term of imprisonment extending to a like period.

(G. C., H. D., No. 2162/7/I-K, dated 19th March 1953)

(5) (i) Under Section 30 of the Act, any Police officer or other person effecting under sub-section (1) of Section 4 the arrest of a person who was found begging may seize any animal the sore, wound injury, deformity or disease of which was exposed or exhibited by such person with the object of obtaining or extorting alms.

(ii) Under sub-section (2) of Section 30 of the Act, the Police officer or other person effecting the arrest may remove such animal to any infirmary appointed under Section 35 of the Prevention of Cruelty to Animals Act. 1960 for detention therein pending its production before a Court

(6) Action under Section 49 of the Bombay Children Act, 1948 which is more severe, should be taken against any person who, for his own profit, causes any child to beg, or, having the actual charge of or control over a child allows that child to be in any place for the purpose of begging or receiving alms or of inducing the giving of alms.

(7) Offences under Section 6 and 11 of the Act are cognizable and non-bailable, according to Section 31 of the Act.

(8) According to Section 7 of the Act, all offences under the Act, except those under Section II, shall be tried in a summary way. According to Section 9 of the Act, when the Court has ordered the detention of a person in a Certified Institution under Section 5 or Section 6 of the Act, it may after making such enquiry as it thinks fit order any other person who is wholly dependent on such person to be detained in a Certified Institution for a like period.

(The Bombay Prevention of Begging Act X of 1959 and Section 49 of Bombay Children's Act)

(9) The Police should ensure that the places frequented by tourists and areas in the vicinity of hotels and restaurants where foreign tourists put up and the railway and airline terminals are kept clean and free of beggars, touts and peddlers.

(I. G. P.'s Cir. No. G/1927/Tourism/71, dated 21st September 1971)

The Bombay Cinemas (Regulation) Act, No. XI of 1953

345. Powers to grant or suspend licence.-(1) Section 3 prohibits the exhibition given by means of a cinematograph elsewhere than in a place licensed under the Act.

(2) The Commissioner of Police is the Licensing Authority for the areas for which Commissioner of Police is appointed. Elsewhere the District Magistrate is the Licensing Authority.

(3) The penalty is given in Section 7 of the Act.

(4) Restrictions on powers of the licensing authority are given in Section 5 of the Act. According to Section 6 of the Act, the State Government or the licensing authority can suspend exhibition of films in certain cases mentioned in the Section. In Section 8 of the Act, powers to revoke or suspend licenses are given. Under Section 8A of the Act, the aggrieved person can file an appeal to the State Government.

(5) Section 9 empowers the State Government to frame rules and Section 10 empowers the State Government to grant exemption from any of the provisions of the Act or rules made there under.

346. Powers and duties under the Bombay Cinema Rules, 1954.-(1) According rule 110, no person shall sell or keep or offer or expose for sale or cause to be sold cause to be kept or exposed for sale any ticket of admission, pass or any other evidence of the right of admission to any cinema without having first obtained the licence for the same.

(2) According to rule 111, tickets, etc. shall be sold at a licensed booking office. According to rule 112. prices and hours of sale shall be notified on a board in the cinema premises or at the booking office. According to Rule 112-A tickets shall be sold on the

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basis of first come first served and licensee shall neither stop the sale of such tickets nor exhibit any sign indicating the closure of tickets of any class unless all the tickets of that class are actually sold. According to rule 113, prices shall be printed on the ticket, etc. According to rule 114, the licensee shall maintain full and accurate sets of records showing sale of tickets and their rates and produce on demand for inspection by a Police officer of the rank not lower than that of a Sub-Inspector, stocks of tickets and registers of accounts. According to rule 115, the licensee shall remain present at the cinema at all times when the cinema is kept open to public for business and shall not absent

himself there from except with the permission of the licensing authority and shall not permit any other person to act on his behalf, except with the permission of the licensing authority.

(3) Smoking is prohibited under rule 119. Spitting is prohibited under rule 121 and hawking is prohibited under rule 122. Overcrowding is prohibited under rule 123.

(4) According to rule 128, the licensee shall give free access to the cinema at all hours to any Police officer who is required by a general or special order of the licensing authority or the Superintendent of Police to attend the same.

(5) According to rule 130, the licensee is liable for the acts of his employees.

The Bombay Children Act, LXXI of 1948.

347. Duties and powers of the Police.-(I) This Act provides for the protection of neglected children under sixteen years of age in order to prevent such children from developing delinquent ways and also secures means for the right treatment of young offenders, belonging to the same age group, with a view to preventing them from growing up into adult criminals.

(2) (a) Under Section 40, any Police officer can bring before a Juvenile Court or a Court empowered under Section 8 or any Court where special courts are not established any person who in his opinion is a child and who has no home, or he is or is found wandering without any settled place of abode and without visible means of subsistence or is found begging or is found doing for a consideration any act under circumstances contrary to the well being of the child or is destitute, or is illegitimate without means of subsistence or has no parent or guardian or has unfit parent or guardian, or is known to associate or live with any prostitute or person or persons of criminal or drunken habit or is lodging or residing in or frequently going to places used for prostitution, or is likely to fall into bad association or to be exposed to mortal danger, or to enter upon a life of crime.

(I. G. 's S. O. Cir. No. 42, dated 25th June 1952)

(b) Under Section 42, Police officers shall report to the competent court if the child requiring care and protection on any of the above-said grounds, has a parent or guardian, who has actual charge of, or control over the child.

(c) Sections 48 to 62 provide for the punishments for-cruelty to children, employing children for begging, being drunk while in charge of a child, giving intoxicating liquor or dangerous drug to child, permitting child to enter places where liquor or dangerous drug is sold, inciting child to let borrow, taking on pledge or purchasing articles from child, allowing or permitting child to be in brothel, causing or encouraging seduction etc., exposing young girls to risk of seduction etc., exploiting of child employees, abetting, escape of child or youthful offender, and using voluntary homes in contravention of Section 35 of the Act. Section 63 makes all these offences cognizable.

(d) Sections 66 and 88 require the Police officer effecting arrest of a child to inform a Probation Officer and Officer in charge of a Remand Home, immediately after such arrest.

(e) Under Section 93 any Police officer may arrest without a warrant of arrest a child who has escaped from a Certified School or a fit person institution or from the supervision of a society or a person under whose supervision he was directed to remain and shall send the child back to the concerned authority without registering any offence or prosecuting the child.

(3) Investigating officers should invariably get proof of the offender's age like birth certificate etc. or else a certificate from the local Government Medical Officer to whom the offender should be sent for examination. Unless offenders are patently very young or overage, no charge-sheet should be sent against Juvenile offenders without first obtaining proof of their age, and while their age is ascertained they should be detained as far as possible in a separate cell.

(I. G. 's No. 5132, dated 27th March 1952)

(4) A Juvenile Court or any court empowered under Section 8 of the Act, to exercise he powers of a Juvenile Court or the Chief Inspector of Certified Schools may direct any Police officer not below the rank of a Sub-Inspector to provide escort to the child in respect of whom an order of

committal transfer or repatriation or an order granting leave is made, under the Act or these rules as the case may be.

(G. N., E. D., No. JDE-1151, dated 28th April 1954)

(5) Under the existing rules, cinema managements are required to refuse admission to juveniles i.e., those who have not yet completed 18 years of age when films meant for adults only are exhibited. The object in view can be achieved by a strict enforcement of the existing rule on the point. All licensing authorities should impress on the managements of cinema houses within their jurisdiction the necessity of enforcing strictly the rule in question. Surprise checks should be undertaken by the licensing authorities to see that the rule is in fact strictly enforced.

(G. C., H. D., No. BCR-5359/C-1359-XVI, dated 30th May 1959)

(6) The Bombay Children Rules 1950 have been framed under the powers vested under Section 119 of the Act.

The Bombay Devdasis Protection Act, X of 1934.

348. Procedure to be followed in cases under the Devdasis Protection Act.-(1) By Section 3 of the Act, the performance of any ceremony intended to dedicate, or having the effect of dedicating a woman as a devdasi has been declared unlawful, and under Section 5 of the Act any person who performs, permits takes part in or abets the performance of such a ceremony is punishable with imprisonment for a term which may extend to one year or with fine or with both. The said offence is cognizable under Section 5A of the Act.

(G. Cs., H. D., No. 2416/3-III, dated 22nd July 1935 and 21st May 1958)

(2) Bombay Devdasis Protection Rules. 1959 are framed for the enquiry and recording of evidence.

The Bombay Drugs (Control) Act, XI of 1959.

349. Police aid to the Drugs Controllers, powers and duties.-(1) All Sub-Inspectors of Police in charge of Police Stations within their respective jurisdiction will be Inspectors for the purposes of the Act.

(2) Police should give necessary help to the staff working under Drugs Controller whenever asked for, with a view to see that offences under the Act are efficiently dealt with.

(G. N. L. S. G. and P. H. D. No. BDC-I053, dated 3rd November 1953 and 13th November 1954.)

(3) Sections 21 and 22 of the Act are penal Sections.

(4) According to Section 27 of the Act no prosecution for any offence punishable under this Act shall be instituted except with the previous sanction in Commissionerate area of the Commissioner of Police and elsewhere of the District Magistrate.

(5) According to Section 28 of the Act, an Inspector may enter and search any place in which he has reason to believe that an offence under the Act, has been or is being or is likely to be committed and may seize any notified drug and other things which he has reason to believe to be liable to confiscation under the Act and any document or other articles which he has reason to believe may furnish evidence of the commission of an offence punishable under the Act and may detain and search any person whom he has reason to believe to have committed an offence under the Act. According to Section 29 of the Act an Inspector or any other person authorized by the State Government may seize in any open place or in transit any notified drug or any other thing which he has reason to believe to be liable to confiscation under the Act and detain and search any person whom he has reason to believe to have committed an offence under the Act.

(6) For other details reference may be made to the Bombay Drugs (Control) (Gujarat) Rules, 1961.

(7) As regards maintenance of list and checking of opium and hemp drugs holders, reference may be made to sub-rule (5) of rule 292.

350. Power to require animals, etc. to be brought to infected areas and other powers and duties under the Act.-(1) Section 5 of the Act is in connection with eradication of diseases in certain areas. Section 6 of the Act is in connection with the power to prohibit or regulate, import, export or transport of holdings of market fairs etc. of and traffic in infective animals, etc. Section 7 of the Act is in connection with the establishment of quarantine stations. Section 8 is in connection with power to isolate infective animals and their examination. Section 14 is in connection with removal of animals and other things from infected area or place prohibited without Licence. Section 15 is in connection with power to require animals etc. to be brought to infected areas.

(2) Section 28, 29 and 30 are penal Sections..

(3) According to Section 32 of the Act, any Police officer not below the rank of Sub-Inspector may, without an order from a Magistrate and without a warrant, arrest any person for whose arrest a requisition has been received from an Inspector appointed under Section 3 of the Act, or Veterinary Surgeon provided that the requisition specifies the person arrested and the offence which such person is alleged to have committed under this Act.

(4) All Village Officers shall be bound-

(a) to give immediate information to the Veterinary Surgeon and Inspector having jurisdiction in the area regarding the prevalence of a schedule disease among animals in the area;

(b) to take all necessary measures to prevent the spread of disease, and

(c) to assist the Veterinary Surgeon and Inspector to carry out the provisions of this Act.

The Bombay Entertainments Duty and Advertisements Tax Act, I of 1923

351. Powers to enter place of entertainment.-(1) Under Section 8 of the Act, the Commissioner of Police in the commissionerate area, or the District Magistrate elsewhere, or any officer other than a Police officer below the rank of Head Constable duly authorized by them in this behalf, may enter any place of entertainment while the entertainment is proceeding, and any place ordinarily used as a place of entertainment, at any reasonable time, with a view to seeing whether the provisions of this Act or the rules made there under are being complied with.

(2) The proprietor of every entertainment and the owner or person in charge of any place which is ordinarily used as a place of entertainment shall give every reasonable assistance to the inspecting officer in the performance of his duties under Sub-Rule (1) above.

(3) If any person prevents or obstructs the entry of the inspecting officer, he shall, in addition to any other punishment to which he is liable under the law for the time being in force, be punished with fine which may extend to five hundred rupees.

(4) For other details, reference may be made to the Bombay Entertainments Duty and Advertisement Tax Rules, 1958.

The Bombay Essential Commodities and Cattle (Control) Act, LXII of 1958.

352. Taking cognizance of offence.-(1) Under Section 13 no Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made by a person who is a public servant as defined in Section 21 of the Indian Penal Code.

(2) No person in the State excluding the areas of Municipal Corporation of Ahmedabad and Surat, Municipal Borough of Broach, Godhra and Kapadwanj, shall slaughter, cause to be slaughtered, acquire for slaughter or re-sale for slaughter any of the following kinds of cattle:-

(i) Bulls, bullocks, he-buffaloes which are useful or likely to become useful for , draught or breeding purpose and male calves, or

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(ii) cows, she-buffaloes and heifers which are useful or likely to become useful for the purposes of milk or for bearing off-spring and female calves.

(SLT/IO59/8216-D, mentioned in the Schedule of the Act)

(3) The number of (i) buffaloes and (ii) bulls and bullocks that may be slaughtered during any week commencing on Sunday at a slaughter house situated at places of Ahmedabad, Kapadwanj, Nadiad, Bulsar, Broach, Ankleshwar, Jambusar, Godhra, Dahod, Surat, Borsad and Rander shall not exceed the number respectively specified against that place in columns 2 and 3 of the Schedule of the Act.

The Bombay Ferries and Inland Vessels Act, II of 1868

353. Concessions, powers and duties of the Police.-(1) Under Section 3 of the Act, no tolls shall be levied from any Police officer in uniform on duty and any person in the custody of the Police.

(2) Under Section 14D of the Act, any Police officer not below the rank of Sub-Inspector may board and inspect any vessel for the purpose of satisfying himself that the provisions of this Act, the rules, regulations and orders made there under and the conditions of the licence issued in respect of such vessel are duly observed. If such officer is of opinion that the vessel is not seaworthy or is insufficiently equipped or is in such a condition that its plying may cause danger to human life or safety, he may suspend the licence issued in respect of such vessel and such vessel shall not thereafter be plied until the order suspending the licence has been cancelled or a fresh licence has been issued in respect of such vessel. Under Section 14E, such Officer in order to avert accident or danger to human life or safety may by order prohibit the plying of any vessel, or class of vessels generally on any river, stream, creek, tank, lake or other collection of water affording passage for a vessel within the limits of his jurisdiction during such period as may be specified in the order.

(3) (a) In order to avert any accident endangering human lives, action under Section 14D and 14E of the Act should be taken by prohibiting the plying of ferries during the hours when the wind is strong.

(I. G. P.'s Cir. No. G/1909, dated 10th April 1963)

(b) During the times of floods, no ferries should be allowed to ply endangering human life in the ferry. A strict watch should be maintained at all times to avoid any overloading which causes accidents.

(c) A list of places where ferries ply showing names of ferries, drivers, proprietors, licence number their capacity, etc. should be maintained at all Police Stations.

(I. G. P.'s Cir. No. G/1909, dated 15th May 1963)

(4) Section 14F of the Act is a penal Section. According to Section 14G of the Act, if any of the provisions of the Act or of the rules, regulations or orders made there under or of the conditions of the licence granted under Section 14C of the Act, are contravened in respect of any vessel, both the owner and the person in charge of such vessel shall be deemed to have contravened such provisions and shall be personally liable for the same.

(5) For other details, reference may be made to the Bombay Ferries and Inland Vessels (Conditions of Licence) Rules, 1948.

The Bombay Foreign Liquor Rules, 1953

354. Procedure to be followed.-(1) In exercise of the powers conferred by Section 143 of the Bombay Prohibition Act, 1949, and all other powers enabling it in this behalf, the Government has made the Rules called "The Bombay Foreign Liquor Rules, 1953",

(2) Under Rule 45, the Collector with the previous sanction of the Director of Prohibition and Excise may grant a licence to any manager of a hotel [desiring to sell at the hotel imported foreign liquors (potable) and Indian made. Foreign liquors (potable) on which excise duty has been paid at special rates] by retail to permit holders residing or boarding at his hotel

(3) The licensee shall write daily in a bound book paged and sealed with the Collector's seal, the name of every person who comes to reside at the hotel with the dates of his arrival and - departure. Such books shall always be open to inspection by any officer duly

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empowered under Section 122 of the Act. If any person who comes to reside at the hotel refuses to give his name, information of the fact shall be given in the Commissionerate area to the commissioner of Police, and elsewhere to the Superintendent of Police.

(Rule 53 of the Foreign Liquor Rules, and Condition 6 (b) in Form F. L.III)

The Saurashtra Felling of Trees (Infliction of Punishment) Act, 1951

355. Powers and duties.-(1) The Saurashtra Felling of Trees (Infliction of Punishment) Act, 1951 has been extended to the whole of the State of Gujarat vide Gujarat Act, No.9 of 1960.

(2) The "tree" shall not include shrubs, bushes and such other varieties as may be notified by the Government by a notification in the Official Gazette.

(Section 2 (c) of the Act)

(3) "Damaging a tree" includes girdling, lopping, strapping the bark of a tree.

(Rule No.3 of the Rules of 1961 framed under the Act)

(4) Notwithstanding anything contained in the Code (Land Revenue) or an in any other law for the time being in force in the State:-

(a) no person either by himself or through any other person shall, without the written permission of the Collector or any other officer (or any Village Panchayat), duly empowered by Government, voluntarily fell, appropriate or damage or cause to be fallen, appropriated or damaged any tree or any portion thereof.

(b) any person who contravenes the provisions of sub-clause (a) shall on conviction by a revenue officer not below the rank of Mahalkari authorized by the Government in this behalf, be liable to fine which may extend to Rs. 1000/- (and which shall not be less than Rs. 50/- unless the revenue officer inflicting such fine considers it improper for special reasons to be recorded in writing to inflict such minimum amount of fine).

Note:- Nothing contained in sub-rule (4) shall apply to felling, appropriating or damaging any branch of Babul tree for the purpose of using it or causing it to be used for cleaning teeth.

(Section 3 of the Act)

(5) The order of the revenue officer passed under sub-clause (b) of sub-rule (4) shall be, final, subject to appeal, which may be preferred within thirty days of the date of communication of such order to the Collector. The Collector can delegate his powers to hear appeal to the Assistant Collector or Deputy Collector subordinate to him.

(Section 4 of the Act)

The Bombay Prevention of Gambling Act, IV of 1887.

356. Keeping common gaming house.-(1) Whoever, (a) opens, keeps or uses any house, room or place, for the purpose of a common gaming house, (b) being the owner or occupier of any such house, room or place knowingly or willfully permits the same to be opened, occupied, kept or used by any other person for the purpose aforesaid; (c) has the care of management of, or in any manner assists in conducting the business of, any such house, room or place opened, occupied, kept or used for the purpose aforesaid, and (d) advances or furnishes money for the purpose of gaming with persons frequenting any such house room or place is liable for punishment under Section 4 of the Act and whoever is found in any common gaming house gaming or for the purpose of gaming is liable for punishment under Section 5 of the Act.

(2) (a) Under the provisions of Section 12 of the Act, a Police officer may apprehend and search without warrant:

(i) any person found gaming or reasonably suspected to be gaming in any public street or thoroughfare or in any place to which the public have or are permitted to have access, or in any race course;

(ii) any person setting any birds or animals to fight in any public street, or thorough-fare, or in any place to which the public have or are permitted to have access: -

(iii) any person there present aiding and abetting such public fighting of birds or animals.

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(b) Under the provisions of Section 12A of the Act, a Police officer may apprehend without warrant any person who prints, publishes, sells, distributes or in any manner circulates any newspaper, news-sheets or other document or any news or information with the intention of aiding or facilitating gaming and may enter and search any place for the purpose of seizing and may seize all things reasonably suspected to be used or to be intended to be used for the purpose of committing an offence under this section.

(3) Under Section 6 of the Act, it shall be lawful for a Police officer-

(i) in any area for which a Commissioner of Police has been appointed, not below the rank of a Sub-Inspector and either empowered by general order in writing or authorized in each case by special warrant issued by the Commissioner of Police, and

(ii) elsewhere not below the rank of a Sub-Inspector of Police authorized by special warrant issued in each case by a District Magistrate or Sub-Divisional Magistrate or by a Taluka Magistrate specially empowered by the State Government in this behalf or by a District, Additional, Assistant or Deputy Superintendent of Police,

(a) to enter with the assistance of such persons as may be found necessary by night or by day, and by force, if necessary, any house, room or place which he has reason to suspect is used as a common gaming-house;

(b) to search all parts of the house, room or place which he shall have so entered, when he shall have reason to suspect that any instruments of gaming are concealed therein, and also the persons whom he shall find therein whether such persons are then actually gaming or not.

(c) to take into custody and bring before a Magistrate all such persons.

(d) to seize all things which are reasonably suspected to have been used or intended to be used for the purpose of gaming, and which are found therein.

(4) Under Section 6A, any person found in any common gaming-house, entered by any Magistrate or officer of Police under the provisions of the Act, upon being arrested by any such officer or upon being brought before any Magistrate, and on being required by such officer or Magistrate to give his name and address, refuses or neglects to give the same or gives any false name or address, he shall, on conviction be punished with a fine not exceeding one thousand rupees.

(5) Section 7 of the Act is in connection With presumptive proof of keeping or gaming in common gaming house.

(6) According to Section 9 of the Act, it shall not be necessary in order to convict a person of any offence against any of the provisions of Sections 4 and 5, to prove that any person found 'gaming' was playing for any money, wager or stake.

(7) The Government of Gujarat have amended the Bombay Prevention of Gambling Act IV of 1887, by an Act called Bombay Prevention of Gambling (Gujarat Amendment) Act, No. 16 of 1972.

(8) According to Section 2(b) of the Act No. 16 of 1972, item (f) has been added viz "on the digits of figures used in stating the opening, middle or closing digits or figures: declared for or in connection with 'Worli Matka' gaming or any other form of gaming".

(9) (a) Under Section 3A, whoever prints or publishes in any manner any digits, figures, or combination of digits of figures relating to 'Worli Matka' or any other form gaming under the

heading "Shubha Rashi" or by adopting any other form or device disseminates or attempts to disseminate or abets dissemination of information relating such digits or figures or combination of digits or figures shall be punishable with imprisonment which may extend to six months and with fine which may extend to one thousand rupees. Those who print hand-bills with such figures or distribute them are also liable prosecution under this section.

(b) According to sub-section (2) of Section 3A when any person is accused of offence under sub-section (1) any digits or figures or combination of digits or figures in respect of which the offence is alleged to have been committed shall be presumed to relate to 'Worli Matka' gaming or some other form of gaming unless the contrary is proved the accused.

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(c) It is not possible to prosecute the printer or publisher of newspapers which are published outside the State. However, action can be taken against the local person who gets these papers and distributes them as he will be attempting to disseminate or abet dissemination.

(10) According to Section 5A of the Act where in any area for which a Commissioner of Police has been appointed a Police officer not below the rank of Deputy Commissioner of Police and elsewhere a Police officer not below the rank of Deputy Superintendent of Police. is of opinion that any register, record or writing of any kind whatsoever which contains digits or figures or combination of digits or figures relates to 'Worli Matka' gaming or such other form of gaming. he shall be entitled to seize the same and such register record or writing shall be presumed to be an instrument of gaming unless it is shown by the person from whom it is seized that it is a register record or writing of any transaction in connection with a lawful trade, Industry business profession or vocation or of any lawful personal transaction of any person or it is otherwise not an instrument of gaming. Section 5A gives powers to, Police officers to enter and attach various registers where there is a suspicion that they relate to 'Worli Matka' figures. However, according to Section 5A the search should be by the authorized officers themselves if the presumption has to arise.

(11) The action of Police officers in seizing the telephone during the gambling raid carried out by virtue of a warrant obtained under the Act is not legal in view of Section 4 and 5 of the Indian Telegraph Act. 1885.

(I. G. P.'s Cir. No. G/1927/73/378, dated 26th February 1973.)

(12) Where an officer who is especially empowered under the Act has issued a warrant, it should be proved that the officer has been legally authorized to issue such warrants to take benefit of presumption under Section 7 of the Act. A copy of an order purported to have been made by the Government empowering such officer to issue such warrants could be produced in the court as evidence.

(I. G. P. 's Cir. No, G/1934/66, dated 3rd November 1967.)

'The Bombay Highways Act, LV of 1955.

357. Powers and duties.-(I) Under Section 37 of the Act. if the Highway Authority or any officer or servant is opposed or impeded in taking possession of any land or in executing any work or In removing any encroachment under this Act he shall apply in the commissionerate area to the Commissioner of Police and elsewhere to the Superintendent of Police or such Police officer as the State Government may empower in this behalf. And these officers shall enforce the surrender, removal or execution as the case may be.

(2) Under Section 61 of the Act, every Police officer shall forthwith furnish information to the nearest Highway Authority or his subordinate officer of any offence coming to his knowledge which has been committed against this Act or any Rule made under this Act, and shall be bound to assist the Highway Authority and his subordinates in the exercise of their lawful authority. All village officers shall forthwith inform the Police Station and Highway Authority whenever they become aware that any survey mark or any boundary mark of highway or any mark showing the building or control line determined in respect of a highway has been destroyed, damaged removed, displaced or

otherwise tampered with or that any damage to any highway or encroachment on any highway has been made.

(3) For other details reference may be made to the Bombay Highways Rules, 1958.

The Bombay Hindu Places of Public Worship (Entry Authorization) Act XXXI of 1956

358. Offences cognizable.—Under Section 3 of the Act. it is an offence to prevent any person belonging to any class or section of Hindus from entering, worshipping or offering prayers or performing any religious service in any Hindu temple which is used as a place of public worship or whoever molests, injures, annoys, obstructs, or causes or attempts to cause obstruction to or by the threat of molestation, injury, annoyance or obstruction, overawes or discourages any such person doing or performing any of the aforesaid acts, commits an offence under section 4 of the Act and under section 5 abetment of such offences is also punishable in the same manner, Section 7 of the Act makes all offences under this Act cognizable and compoundable with the permission of the Court.

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Chapter VIII

The Bombay Judicial Proceedings (Regulation of Reports) Act, XVIII of 1955.

359. Publication of reports.—(1) Section 3 restricts the publication of reports of certain judicial proceedings.

(2) Under Section 6, no Court shall take cognizance of an offence under this Act, except with previous sanction of the State Government.

(3) Under Section 5, no Court inferior to that of a Magistrate of the First Class shall try any offence under this Act.

(4) Section 4 of the Act is a penal Section.

The Bombay Lotteries (Control and Tax) and prize Competitions, (Tax) 1958.

360. Powers and duties of the Police.—(1) All lotteries and all prize competitions are unlawful subject to the provisions of this Act.

(2) Under Section 9 of the Act, the Collector may suspend or cancel a licence granted under this Act.

(3) Under Section 16 of the Act, where any newspapers or publication, wherever printed or published, contains an unlawful lottery or prize competition the Collector may, by notification in the Official Gazette, declare every copy of the issue of the newspaper or every copy of such publication containing such lottery or prize competition to be forfeited to the State Government.

(4) Under section 18 of the Act, it shall be lawful for a Police Officer, not below the rank of a Sub-Inspector of Police, authorized by a special warrant issued in each case by the Commissioner of Police or Superintendent of Police or by an Assistant or Deputy, Superintendent of Police specially empowered by the State Government in this behalf ;—

(a) to enter, with the assistance of such persons as may be found necessary by night or by day, and by force, if necessary, any house, room or place which he has reason to suspect is used for purposes connected with the promotion or conduct of any lottery or prize competition;

(b) to search all parts of the house, room, or place which he shall have so entered, the persons whom he shall find therein and also such persons as may be specified by name in the warrant;

(c) to take into custody and bring before a Magistrate all such persons;

(d) to seize all things which are reasonably suspected to have been used or intended to be used in connection with a lottery or prize competition and which are found therein:

Provided that no officer shall be authorized by special warrant unless the Commission of Police, the Magistrate, the Superintendent or Assistant or Deputy Superintendent Police concerned is satisfied, upon any complaint made before him on oath and upon making such inquiry as he may think necessary, that there are reasonable grounds, to suspect the said house, room or place to be used for purposes connected with the promotion or Conduct of an unlawful lottery or prize competition.

(5) Under Section 20 of the Act, a Police officer may apprehend without warrant any person found or reasonably suspected of, committing an offence under clauses (a), (c), (d) of Sub-Rule (4) in any public street, or thoroughfare or in any place in which the public have or are permitted to have access.

(6) (i) Under Section 21 of the Act, every Officer not below the rank of Sub-Inspector of Police shall have power to investigate all offences punishable under this Act.

(ii) Every such officer shall, in the conduct of such investigation, exercise the power except the power to arrest without warrant otherwise than under Sub-Rule (5) above] conferred by the Code of Criminal Procedure upon an officer in charge of a Police Station for the investigation of cognizable offence.

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(7) All offences punishable under this Act shall be bailable.

(8) (i) No licenses in respect of entertainment and private lotteries under section 5 & 6 of the said Act shall be granted without the previous approval of the State Government.

(G. N. H. D. No. GHG-1567-LOT-1967-7650-M, dated 17th February 1969.)

(ii) No licenses should be granted for any kind of entertainment lotteries except those which are in the form of 'lucky number programmes'. These lucky number programmes are subjected to the under mentioned conditions and the licensing authorities have to satisfy themselves that all the conditions are fulfilled before they grant a licence for promoting these entertainment lotteries in the form of 'lucky number programmes',

(a) The whole proceeds of the entertainment as well as the lottery are devoted to a purpose other than private gain.

(b) None of the prizes in the lottery shall be money prizes.

(c) Tickets or chances in the lottery shall not be sold or issued, nor shall the result of the lottery be declared, except on the premises on which the entertainment takes place and during the programme of the entertainment.

(d) The facilities afforded for participating in lotteries shall not be the only, or the only substantial, inducement to persons to attend the entertainment.

(e) The programmes are not priced higher than Rs. 2 each, and

(f) None of the prizes, which are required to be non-money prizes, is of a higher value than Rs. 500 (Rupees five hundred only).

(g) A scheme known as Lucky Prize ("Bhet Yojna") in which coupons are given to the purchaser of articles at the fixed rates, and on the fixed date and time draw is taken out and the prize articles are distributed solely depends on luck and as such it is necessary to obtain licence for such schemes.

(G. C., H. D. No. IOT-1564-3562-M, dated 20th January 1969 and I. G. P.'s No. G/1927/Lottery/69, dated 26th February 1969.)

The Bombay Molasses (Control) Act, XXXVIII of 1956

361. Offences cognizable.-(1) Under Section 9, no Court shall take cognizance of any offence punishable under this Act except with the previous sanction of the Director of Prohibition and Excise.

Under Section 11 any Police officer not below the rank of officer in charge of Police station shall within his jurisdiction have power to investigate any offence punishable under the Act and under Section 12, shall also have powers regarding entry, search, seizure, detention and arrest for offences under the Act, Under Section 14 a report regarding such seizure of molasses should be immediately sent to the Magistrate concerned and obtain necessary orders for its custody.

(2) Under Section 9 (c) of the Act, all offences under the Act shall be cognizable and bailable.

(3) The Central Government has made an order called "The Molasses (Control) Order, 1961." According to clause (2) of the said Order, "Molasses" means the mother liquor produced in the final state of manufacture of sugar by the vacuum pan process from sugarcane or gur. Under clause (3), there is a restriction on sale by the owner of sugar factory and under clause (4) there are restrictions on removal by the owner of the sugar factory. Clause (9) is in connection with maintenance of accounts and clause (10) is in connection with powers of entry, search and seizure etc. The Industries Commissioner, Ahmedabad has authorized the officers not below the rank of Sub-Inspectors of Police under Notification No. GEN/CHEM/MOL-23(vi) dated 7th December 1963:-

(a) to stop and search any person, boat, motor or any vehicle or receptacle used or capable of being used for the transport of molasses;

(b) enter and search any place; and

(c) seize any molasses in respect of which there is a suspicion that any provision of, the order has been, is being or is about to be contravened along with the packages or coverings or receptacles in which such molasses is found or the animals, vehicles, vessels, boats or conveyances used in carrying such molasses and thereafter take all measures necessary for production of the articles so seized in a court and for safe custody pending such production.

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Chapter VIII

The Bombay Money-Lenders Act, XXXI of 1947.

362. Certain offences to be cognizable.-(1) The offences under Sections 5 and 33 of the Act are cognizable under Section 35A of the Act.

(2) No money-lender shall carry on the business of money-lending except in the area for which he has been granted a licence and except in accordance with the terms and conditions of such licence, under Section 5 of the Act, breach of which is punishable under Section 34 of the Act, which is cognizable.

(3) Under Section 33 of the Act; whoever molests or abets the molestation, of a debtor for the recovery of a debt by him to a creditor shall, on conviction, be punishable with imprisonment of either description which may extend to three months or with fine which may extend to Rs. 500 or with both.

For the purposes of Sub-Rule (3) above a person who, with intent to cause another person to abstain from doing any act which he has a right to do or to do any act which he has a right to abstain from doing-

(a) obstructs or uses violence to or intimidates such other person, or

(b) persistently follows such person from place to place or interferes with any property owned or used by him or deprives him of, or hinders him in the use thereof, or

(c) loiters near a house or other place where such other person resides or works, or carries on business, or happens to be, or does any act calculated to annoy or intimidate such other person, shall be deemed to be molested, provided that a person who goes to such house or place in order merely to obtain or communicate information shall not be deemed to molest.

(4) For the purpose of verifying whether the business of money lending is carried on in accordance with the provisions of this Act any Registrar, Assistant Registrar or any other officer authorized by the State Government in this behalf may require any money-lender or any person in respect of whom the Registrar, Assistant Registrar or the officer so authorized has reason to believe

that he is carrying on the business of money-lending in the State, to produce any record or document in his possession which in his opinion is relevant for the purpose and thereupon such money-lender, or person, shall produce such record or document. The Registrar, Assistant Registrar or officer so authorized may after reasonable notice at any reasonable time enter any premises where he believes such record or document to be and may ask any question necessary for interpreting or verifying such record.

(Section 13-A of the Bombay Money-Lenders Act, 1947)

(5) According to Section 35B of the Act, no Court shall take cognizance of any offence punishable under Section 34 of the Act for contravening the provisions of Section 18 or 19 of the Act except with the previous sanction of the Registrar.

363. Antecedents of money-lenders.-Police Station Officer should, if possible, furnish to the Registrar or Assistant Registrar of Money-lenders of their area available information when required, in respect of money-lender who might have knowingly participated in connived at any fraud or dishonesty in the conduct of or in connection with the business money-lending or been found guilty of an offence under Chapter XVII or Section 465, 4 or 477A of Chapter XVIII of the Indian Penal Code.

The Bombay Motor Vehicles Rules, 1959

364. Authority to suspend certificate of registration and examination of vehicles.-(1) Under Rule 58 of the Bombay Motor Vehicles Rules, 1959, any Police officer not below rank of an Inspector of Police, may suspend the certificate of registration of a motor vehicle under Section 33 of the Motor Vehicles Act.

(2) The Regional Transport Authorities, Ahmedabad and Rajkot have delegated powers under Section 16 of the Act, to disqualify a person from holding or obtaining licence to drive a transport vehicle to the officers of the rank not lower than a Superintendent of Police in Ahmedabad City and Deputy Superintendent of Police elsewhere. For other details, refer to sub-rule 5 (d) of rule 321.

(3) (i) The overall height of a motor vehicle other than a double-decked motor vehicle measured from the surface on which the motor vehicle rests shall not exceed 3.4 meters according to rule 266(2)(iv) of the Motor Vehicles Rules.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(ii) The overall height of a double-decked motor vehicle shall not exceed 4.62 meters and nothing shall be placed outside the roof of a double-decked service vehicle, vide Motor Vehicles Rule 266 (1).

(iii) The rule shall not apply to fire-escapes tower-wagons and other special purpose vehicles exempted by the general or special order of the Registration Authority.

(4) Under Rule 127(1), any Police officer in uniform not below the rank of Sub-Inspector within his respective jurisdiction, may at any time when a goods vehicle is in a public place, call upon the driver of such vehicle to stop such vehicle and to keep it at rest for such time as may be necessary to enable him to make reasonable examination of the contents of the vehicle, however, he shall not be entitled to examine the contents of any goods vehicle unless-

(i) the permit in respect of the vehicle contains a provision or condition in respect of the goods which may or which may not be carried on the vehicle;

(ii) the Police officer has reason to suppose that the vehicle is being used in contravention of the provisions of the Act or the Rules.

(5) Under Rule 128, any Police officer not below the rank of a Sub-Inspector specially authorized in this behalf by the State Government may at any time when a transport vehicle is in a public place call upon the driver of such vehicle to stop the vehicle and to keep it at rest for such

time as may be necessary to enable the Police officer to inspect the brakes of the vehicle so as to satisfy himself that the provisions regarding the brakes as mentioned in Rule 147 are complied with.

(6) Under Rule 130, any Police officer in uniform, not below the rank of a Sub-Inspector, if he has reason to believe that a motor cab fitted with a taxi-meter has been or is being plied with a meter which is defective or has been tampered with, stop such motor cab in order to test such taxi-meter, direct the driver or the person in charge of such motor cab to proceed to an approved institution, under Rule 227 and take or cause to be taken such steps as he may consider proper for the purpose.

(7) Under Rule 131(10), an agent of a transport vehicle shall, on demand by any Police officer in uniform not below the rank of a Sub-Inspector, produce his agent's licence for inspection.

(8) Under Rule 121, the owner of any transport vehicle is required to maintain records in respect of the vehicle and he is bound to produce the same for inspection on demand by any Police officer not below the rank of Sub-Inspector.

(9) Under Rule 103, the holder of the permit is bound to keep always in his possession Part A of the permit and shall be produced on demand made at any reasonable time by any, Police officer not below the rank of a Sub-Inspector.

(10) Under Rule 26(27), the owner of a motor cab shall maintain and on demand by a Police officer not below the rank of a Sub-Inspector of Police, produce for inspection a current register showing the dates on which the motor cab was disinfected from time to time, and shall also satisfy him that a mechanical spray which shall be used for the purpose of such disinfection is in working order.

(11) Under Rule 26(28), a driver of a motor cab shall, on demand by any Police officer in uniform, produce his driving licence for inspection.

(12) Under Rule 15, a Police officer of and above the rank of Head Constable may give to holder of a driving licence a temporary acknowledgment under sub-section (3) of Section 129 for the driving licence, which is not suspended or cancelled and has been taken in temporary possession for any purpose. The temporary authorization in the prescribed form may be valid for the period mentioned thereon.

(13) Under Rule 127(3), any Police officer in uniform within his respective jurisdiction may at anytime when a public service vehicle is in a public place, call upon the driver of such vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable him to make reasonable examination of the number of passengers and other contents of the vehicle so as to satisfy himself that the provision of the Motor Vehicles Act, and the Rules made there under and the provisions and conditions of ,the permit in respect of the vehicle are being complied with.

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(14) Under Rule 112(2) (xviii) no passenger or person using or intending to use a stage carrier shall on demand being made by any Police officer when reasonably suspected of contravening any of the provisions of the Bombay Motor Vehicles Rules refuse to give his correct name and address to such Police officer.

(15) Under Rule 112(1) if at any time a passenger or person using or intending to use a stage carriage-

(i) obstructs any authorized employee of the permit holder in the execution of his duties or
(ii) has bulky luggage of a form or description which obstructs annoys or inconveniences another passenger or is likely to do so or

(iii) carries any animal bird flesh or fish (other than tinned food in its original pickings) any instrument, implement substance or any other article which annoys or inconveniences or is offensive to any other passenger or is likely to do or be, so, or

(iv) without lawful excuse occupies any seat exclusively reserved for female passengers or

(v) sings or plays upon any musical instrument, or

(vi) rings without lawful excuse or otherwise interferes with any signal of the stage carriage.

or

(vii) is reasonably suspected to be suffering from any contagious or infectious disease or
(viii) knowingly or intentionally enters a stage carriage which is carrying the maximum number of passengers according to the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried in excess of the seating capacity of the vehicle, or
(ix) has dress or clothing, which is likely to soil or damage the seats or the dress or clothing of another passenger or which for any other reason is offensive to other passengers, or
(x) commits or abets any breach of the provisions of the Act or Rules made, there under, will be required to alight from the vehicle. If any person refuses to comply; with, may be forcibly removed by the conductor or driver or any Police officer on being requested by the driver or conductor or any passenger in that behalf, such person shall not be entitled to a refund of any fare which he may have paid.
(16) Under Rule 103(2), any Police officer in uniform may mount on any transport vehicle for the purpose of inspecting Part-B of the permit. .

(17) Under Rule 26(29), the driver of a motor cab shall at the conclusion of every journey make reasonable search in the vehicle for anything left by any passenger and shall take into his custody anything so found and shall as soon as may be convenient hand over the same to the officer-in-charge of the nearest Police Station.

(18) Severe action should be taken against nuisance caused by the noisy silencers and smoky exhausts of motor vehicles under Rule 150 of the Bombay Motor Vehicles Rules, 1959.

(I. G. 's No. K/32 M. V. dated 8th March 1959)

(19) Under Rule 213, every goods vehicle shall be fitted with-
(a) two rear red reflectors having a diameter of not less than 760 millimeters across rafters on both the sides of the body; and -'.
(b) one green reflector having a diameter of not than 760 millimeters on front side of the load body at the extreme right and facing to the front, at a height between 1.2 to 1.5 meters from the ground level.
(20) In exercise of the powers conferred under Sub-Rule 3(c) of Rule 118 of the Bombay Motor Vehicles Rules, 1959 the carriage of policemen in goods vehicles belonging to private parties and hired to the Police Department is permissible subject to the following conditions:-

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(i) The Policemen are carried in goods vehicles only in an emergency.
(ii) They are carried in such manner:-
(a) that there is no danger of their falling from the vehicles, and
(b) that when they are in a sitting position in the vehicles, any part of their body should be at a height not exceeding three meters from the surface upon which the vehicles rest.
(iii) The total number of policemen carried in any single vehicle should not exceed the number obtained by dividing the area in square centimeters of the floor space of the vehicle by 4.

(iv) Permission of the Regional Transport Officer of the region concerned is obtained before the policemen are carried in goods vehicles.

(G.O., H. D., No. MVR 1659/79898 XII, dated 21st December 1959.)

(21) Every motor vehicle, while in public place during the period between half an hour after sun-set and half an hour before sun-rise, and at any time when there is no sufficient light to render clearly discernible vehicles on the road at a distance of 150 meters ahead, shall carry the following lamps:-

(a) except in cases of motor cycles and an invalid carriage two lamps showing to the front a white light, .

(b) in case of motor cycle and an invalid carriage one lamp showing to the front a white light,

(c) in case of a side car attached to a motor cycle, a lamp affixed to the extreme left hand side of the side car showing to the front a white light, in addition to the lamp required by clause (b) above to be carried on the motor cycle and shall in every case also carry :-

(i) one lamp (rear lamp) showing to the rear a red light,

(ii) a lamp which may be the rear lamp or some other device illuminating with a white light the whole of the registration mark exhibited on the rear of the vehicle so as to render it legible from a distance of 15 meters to the rear.

(22) For more details, refer to the Gujarat Tourist Vehicles Rules, 1970.

The Bombay Motor Vehicles Tax Act, LXV of 1958

365. Power of Police and the Motor Vehicles Department Officers.-(1) Under Section 15 of the Act, any Police officer, or officer of the Motor Vehicles Department in uniform, not below such rank as may be prescribed by the State Government in this behalf may-

(a) enter, at any time between sunrise and sunset, any premises where he has reason to believe that a motor vehicle' is kept, or

(b) require the driver of any motor vehicle in any public place to stop such vehicle '1 and cause it to remain stationary so long as may reasonably be necessary, for the purpose of satisfying himself that the amount of the tax due in accordance with the provisions of this Act in respect of such vehicle has been paid.

(2) Any person failing to stop a motor vehicle when required to do so by any such officer under the provisions of Sub-Rule (1) above, shall on conviction, be punished with fine which may extend to one hundred rupees and in the event of such person having been previously convicted of an offence under this Act or any rule made there under, with fine which may extend to two hundred rupees.

(Secs 17 of the Act)

(3) For grant of reward to persons who have given information about evasion of taxes by owners of motor vehicles which have led to the recovery of arrears of taxes with penalty, reference may be made to sub-rule (5) (b) (ii) of rule 321.

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Chapter VIII

The Bombay Motor Vehicles (Taxation of Passengers) Act, LXVII of 1958.

366. Powers of entry and inspection.-(1) Under the provisions of Section 14 of the Act, any officer authorized by the State Government in this behalf may at all reasonable times enter into inspect and search any stage carriage and any place ordinarily used by the operator for garaging such vehicle or keeping accounts of his business for the purpose of seeing or verifying whether the provisions of this Act or any rules made there under are being complied with.

(2) All searches under Sub-Rule (1) above shall be made in accordance with the provisions of the Code of Criminal Procedure. 1973.

(3) For other details reference may be made to the Bombay Motor Vehicles (Taxation of Passengers) Rules. 1958.

The Bombay Provincial Municipal Corporations Act, LIX of 1949

367. Powers and duties.-(1) According to Section 2(8) of the Act. "the City" means the City of Ahmedabad or any other local area constituted to be a City under Section 3 of the Act.

(2) According to Section 309 of the Act, it shall be the duty of the Commissioner of the Corporation to provide for the removal of the carcasses of all animals dying within the City.

(3) According to Section 287 of the Act, it shall be the duty of all Police Officers and of all Municipal officers and servants to aid the fire-brigade in the execution of their duties. Any Police officer or any Municipal officer may close any street in or near which a fire is burning and remove any persons who interfere by their presence with the operations of the fire-brigade.

(4) According to Section 433 of the Act, any Police officer may arrest any person who commits in his view any offence under the Act or under any rule, regulation or by-law, if the name and address of such person be unknown to him and if such person on demand declines to give his name and address or gives a name and address which such officer has reason to believe to be false. No person so arrested shall be detained in custody after his true name and address are ascertained or without the order of the nearest Judicial Magistrate for a longer period than 24 hours.

(5) According to Section 483 of the Act, all Police officers should give co-operation to the staff of the Corporation. .

(6) According to Section 427 of the Act, offences for the contravention of Sections 60,61 and 325 shall be cognizable.

(7) According to Section 428 of the Act, no Magistrate shall take cognizance of an offence punishable under the Act or any rule, regulation or by-law unless complaint of such offence is made before him within six months next after the date of commission of such offence or if such date is not known or the offence is a continuing one, within six months next after the commission or discovery of such offence.

The Gujarat Municipalities Act, 1963 (Act No. 34 of 1964).

368. Powers and duties.-(1) According to Section 3 of the Act, Municipality shall be known as a 'Nagar-palika' and a Municipal Borough shall be known as a 'Nagar', Gujarati.

(2) According to Section 190 of the Act, the Chief Officer may by public notice require that every dog while in the streets and not being led by some person shall be muzzled in such way as to allow the dog freely to breathe and to drink while effectually preventing it from biting. The Chief Officer may take possession of any dog found wandering unmuzzled in public place and may either detain such dog until owner as claimed it, has provided proper muzzle for it and has paid all the expenses of. Its detention or cause it to be destroyed When a dog which has been detained is wearing a collar with the owner's name and add thereon, such dog shall not be destroyed until a letter stating the fact that it has been detained has been sent to the said address and the dog has remained unclaimed for t clear days provided that any dog which is found to be rabid may be destroyed at any time.

Any unclaimed dog and any dog, the owner of which refuses to pay all the expenses of its detention may be sold or destroyed after having been detained for the period of three clear days. All the expenses incurred by the Chief Officer may be recovered from the owner of any dog which has been taken possession of or detained.

(3) According to Section 204 of the Act, whoever tethers cattle or other animals or causes or suffers them to be tethered by any member of his family or household in any public street or place so as to obstruct or endanger the public traffic therein or to cause a nuisance or who causes or suffers such animals to stray about without a keeper is an offence under the Act, punishable up to rupees two hundred fine for the first offence and up to rupees five hundred fine for subsequent offence. .

(4) According to Section 223 of the Act, whoever in any street or public place within the limits of Municipal Borough loiters for the purpose of prostitution or importunes any person to the commission of sexual immorality, is punishable with fine up to rupees one hundred. Provided that no court shall take cognizance of an offence under this Section except on the complaint of the person importuned or of a Police officer not below the rank of the officer in charge of Police Station and specially authorized in this behalf by the District Magistrate or by the Municipality.

(5) According to Section 225 of the Act, it shall be the duty of all Police officers and all Municipal officers and servants to aid a fire-brigade in the execution of its duties. Such officers and servants may close any street in or near which a fire is burning and remove any persons who interfere by their presence with the operations of the fire-brigade.

(6) (a) According to Section 238 of the Act, the provisions of the Cattle Trespass Act, 1871 shall cease to apply in every Municipal Borough. Therefore, according to Section 239 of the Act, the Municipality is authorized to establish cattle pounds and appoint pound- keepers. According to Section 240 of the Act, whoever within the limits of Municipality allows any cattle which are his property or in his charge to stray in any street or to trespass upon any private or public property is an offence punishable up to one month imprisonment or fine of rupees three hundred or with both for the first offence and for six months imprisonment or with fine up to rupees five hundred or with both for the subsequent offence. The Magistrate also may order the accused to pay compensation not exceeding rupees two hundred fifty and may also order the cattle in respect of which the accused is convicted to be forfeited to the State Government. The offence is cognizable.

(b) According to Section 241 of the Act, it shall be the duty of every Police officer and Watch and Ward appointed by the Municipality to seize and to take to any such public pound for confinement therein any cattle found straying in any street or trespassing upon any private or public property within the limits of the Municipal Borough.

(c) No Police officer or officer or member or servant of the Municipality including the pound-keeper shall directly or indirectly purchase any cattle at a sale under sub-section (1) of Section 241 of the Act. '

(d) According to Section 245 of the Act, every pound-keeper shall before releasing any impounded cattle require the owner of the impounded cattle or his agent to make in the form prescribed by rules the declaration regarding the ownership of such cattle and to deposit by way of security such sum as may be prescribed. If any cattle belonging to such owner or impounded within a period of six months from the date on which the security is deposited and if the seizure is not adjudged illegal, the amount of deposit or a part thereof as may be directed by the State Government by rule made in this behalf shall stand forfeited to the State Government. If cattle are not impounded as aforesaid, the amount of security deposit shall on an application made by or on behalf of the depositor be refunded to him on the expiry of that period.

(7) According to Section 254, previous sanction for the prosecution against the President or Vice-President or councilor is necessary if the offence is alleged to have been committed by him while acting or purporting to act in the discharge of his official duty.

(8) (a) Under Section 255 of the Act, any Police officer may arrest any person committing in his view any offence against any of the provisions of the Act. or any by-law there- under, if the name and address of such person is unknown to him and ~ he declines to give his name and address or if the Police officer has reason to doubt the accuracy of such name and address if given; and such person may be detained at the Police Station until his name and address has been correctly ascertained. Provided that no person arrested shall be detained without the order of the Magistrate longer than shall be necessary for bringing him fore a Magistrate or twenty-four hours at the most.

(b) It shall be the duty of all Police Officer to give immediate information to Municipality of the commission of any offence against the provisions of the Act, or any law there under and to assist all Municipal Officers and servants in the exercise of their lawful authority.

(9) Under Section 65 of the Act, the Municipality have powers to sell, lease and on contract the land which is the property of the Municipality for a term exceeding ten years or of every sale or transfer of such immovable property, the market price of which exceeds one lath rupees with the previous permission of the State Government. Applications are received by the Municipality to sell, lease or give on contract their land for the construc1 of temple, Masjid and Church. In order that breach of peace between the different communities may not take place, the Municipalities have to scrutinize and see that religious places of different communities are not adjacent to each other and that the religious place one community is not constructed in the locality occupied by the other community. The Municipalities therefore may not accord sanction to the sale, lease or erection of such religious places as referred above in the interest of public peace and tranquility.

(G. C., P. & H. D., No. MUN 457-9/5562-G, dated 27th July 1971 and I. G. 's No. G/1927/70, dated 8th October 1971)

(10) According to Section 87C (k), it shall be the duty of every Municipality to make reasonable and adequate provision for acquiring and maintaining, changing and regulating places for the disposal of the dead and disposal of unclaimed dead bodies and carcasses dead animals. The Municipalities have to bear expenses for disposal of unclaimed dl bodies.

(I. G. P.'s Cir. No.G/1927/66, dated 10th February 1966)

The Gujarat Medical Practitioner's Act 6 of 1963

369. Functions and cognizance.-(1) Section 30 of the Act is in connection with prohibition of Medical Practice by persons not registered or enlisted.

(2) According to Section 31(2) of the Act, no person other than a Practitioner registered under any of the laws specified in sub-section (1) shall be qualified to give evidence at a inquest or in any court of law as an expert under Section 45 of the Indian Evidence Act, 1872 on any matter relating to medicine, surgery or midwifery.

(3) Under Section 32 of the Act, conferring, granting or issuing colorable imitations of degrees, diplomas or licenses, are prohibited, except by a university established by la an authority specified or notified under the Indian Medical Degrees Act, 1916, an authority authorized under any law for the time being in force in relation to the qualifications and registration of homoeopathic practitioners in any part of the State or an authority empowered or recognized as competent by the State Government to confer granting or issuing any de diploma licence, certificate or any other like award.

(4) Section 33 of the Act is in connection with prohibition against addition to title, description etc. to name of any person unless he is authorized to do so.

(5) According to Section 35 of the Act all offences under this Act shall be cogniza

The Gujarat Obsequial Dinner (Control) Act, 8 of 1964

370. Powers and duties.-(1) According to Section 1(3), "Obsequial Dinner" me dinner given in course of a day at one time or at different times or at one place or at diff places in connection with the demise of a person, on one occasion or more than one occasion, within a period of 13 months from the date of the demise of the person, to a person or of persons (excluding members of household of the person giving dinner) and includes a dinner on an occasion commonly known as *Barma, Terma, Vershi, Ziarat etc.*

(2) According to Section 3(1) of-the Act, no person shall either by himself or the any agent or caterer give or abet the giving of an obsequial dinner to more than fifty person

(3) Penalty is given under Section 4 of the Act.

(4) According to Section 5 of the Act, if a Court is satisfied on an information before it through a complaint or otherwise that an obsequial dinner in contravention provisions of the Act, has been arranged or is about to be given, the court may issued an injunction against any of the persons concerned in arranging or giving it, prohibiting giving of such obsequial dinner.

Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(5) (1) According to Section 6 of the Act, any member of the Panchayat may communicate any information which he may possess respecting the commission of an offence punishable under this Act to the officer in charge of the Police Station or himself files a complaint in a Court for an offence punishable under the Act, if such offence is committed or make an application to the Court for injunction under Section 5, if he has reason to believe that an offence under Section 4 is about to be committed.

(ii) According to Section 7 of the Act, every Police Patel shall forthwith communicate to the officer in charge of Police Station any information which he may possess about the commission of in or in the neighborhood of the village any offence under the Act.

(iii) According to Section 8 of the Act, the officer in charge of the Police Station has to file a complaint in the Court for an offence under the Act on receipt of information under Section 6(a) or 7 or through any other source or to make an application to the Court for an injunction under Section 5

(6) No court shall take cognizance of any offence under the Act after the expiry of one year from the date on which the offence is alleged to have been committed.

The Bombay Opium Smoking, Act, XX of 1936.

371. Duties of the Police under the Opium Smoking Act.-(1) Under Section 18 of the Act the Director, Prohibition and Excise, Collector and any officer duly empowered in this behalf shall, within the area for which they are appointed, have power to investigate all offences punishable under this Act.

(2) Any officer empowered under Sub-Rule (1) above shall in the conduct of such investigation exercise the powers conferred by the Code of Criminal Procedure, upon an officer in charge of a Police Station for the investigation of cognizable offences, under Sub-section (2) of Section 18 of the Act.

(3) Any officer to whom such officer is subordinate may, during the course of the investigation, take over the investigation himself or direct any other officer duly empowered to conduct the same. The officer in conducting the investigation shall have the same powers under Sub-Rules (1) and (2) above as if he were the officer appointed for the area or for the purpose of investigating the said offence.

(4) If the officer conducting the investigation is of opinion that there is not sufficient or reasonable ground of suspicion to justify the forwarding of the accused to a Magistrate or that the person arrested may be discharged with a warning, such officer shall release him on his executing a bond, with or without sureties, to appear, if and when so required before a Magistrate empowered to take cognizance of the offence and shall make a full report of the case to his official superior and be guided by the order which he shall receive on such report~

(5) The powers of an officer empowered under Section 18 of the Act, shall be subject to such other modifications or restrictions as the State Government may deem fit.

(6) Under Section 21 of the Act, Police officers are bound to give immediate information regarding commission of an offence under this Act and to take all measures to prevent commission of such offence and to assist in carrying out provisions of the Act.

(7) The State Government, by notification No. 4414/24, Revenue Department, dated the 31st May 1938, empowered all Police officers of and above the rank of Sub-Inspector under Sections 13, 14 and 17 (1) of the Bombay Opium Smoking Act, XX of 1936. Every person arrested for thing seized by the Police under the Act must be forwarded for further investigation to the nearest Excise Officer.

(i) Sections 13, 13A and 13B.-They may enter, search, arrest and seize articles connected with offences under Chapter III..

(ii) Section 14.-They are vested with powers to arrest, without an order from a Magistrate and without a warrant, any person obstructing Officers in the execution of their duties under this Act, or escaping or attempting to escape from custody.

(iii) Section 17 (l).-Empowers them to arrest a person who has committed or has been accused of committing an offence under this Act, and who refuses to give his correct name and address or gives one believed to be false.

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Chapter VIII

(8) In accordance with the provisions of Section 18(1) of the Act the power of investigating offences under this Act is vested in the Commissioner the Collector and officers of the Excise Department. It should be noted therefore that every person arrested or thing seized by the Police must be forwarded for further investigation to the nearest Excise Officer.

(9) It should further be noted that the Commissioner of Excise and the Collector have been authorized by Government to grant suitable rewards to recoup for expenses incurred in paying informants or in other ways.

(10) Offences under Section 8 of the Act. i.e. penalty for opening, keeping or having charge of place of assembly for the purpose of opium smoking are not-bailable and other offences under the Act are bailable.

The Bombay Police Act, XXII of 1951

372. Duties of the Police under the Act.-(l) In cases of the hotel-keepers who run the hotels persistently without obtaining the necessary licenses the District Magistrate concerned should be moved to take action under Section 131A of the Act. In no case the Police should attach properties of hotel-keepers. such as cups saucers furniture etc.

(G. L., H. D., No. HLG 2255/8852-D, dated 8th July 1955.)

(2) Spitting and throwing rubbish in streets to the annoyance of passers by is an offence under Section 115 (c) of the Act. The Police officers should use their discretion and take action only in those cases where it is felt necessary to do so instead of launching prosecution. in each and every case. Section 13IAA of the Act makes the keepers of places of public entertainment responsible for the acts of their servants. Prosecution under this Section should be launched only when it is considered quite necessary to do so. In cases where the offences are not of a serious nature departmental action should be taken under Section 162(2) read with Explanation.

(I. G. 's No. 6.-18, dated 3rd February 1956 and G. L. H. D., No. BPA/1554/39645-D. dated 19th January 1956.)

(3) (a) Under Section 59(1) of the Act prosecution has no authority to cross examine defense witnesses produced by the person against whom externment proceedings are instituted. It is however open to the authority or officer, himself to put such questions as he likes to the witnesses and he may for this purpose, avail himself of the assistance of any member of the Police if he thinks it necessary to do so.

(G. C., H. D., (Spl.) No. S: B. II/Ext. 4059/2276, dated 13th April 1959.)

(b) In order that the externment proceedings are disposed of expeditiously, the Commissioner of Police Superintendents of Police should see that the Deputy Commissioners of Police/Sub-Divisional Police Officers dispose of the externment proceedings as early as possible and send the same for final orders. The Superintendent of Police should also take up this question in the monthly co-ordination meeting and bring to the notice of the District Magistrate cases in which no notice under Section 59 of the Bombay Police Act has been' issued after the receipt of the Police proposal as well as cases where no final orders have' been passed after the receipt of the report from the enquiry officer.

(I. G. P.'s Cir. No. G/1950/64 dated 9th April 1964.)

(c) With a view to avoid delay in the disposal of externment proceedings, the District Magistrates / Commissioner of Police should send quarterly statements in the prescribed form to the Government on the 10th of the following month.

(G. C., H. D. (Spl.) No. B-I/Externment-1067-dated 2nd May 1967 and No. SB/I/EXT/1068/502, dated 15th April 1968)

(d) In cases filed for breach of externment order, the Commissioner of Police/Superintendents of Police should see that the investigating officers produce the certified copy of the externment order with a view to prove the breach instead of uncertified copy.

(I G. P.'s Cir. No. G/1927/63 dated 29th October 1963.)

(4) District Magistrate or the Superintendent of Police should consult the Police Advisory Sub-Committee of the District Development Board concerned, before submitting through the Inspector-General of Police proposals for imposing the Punitive Police for under Section 50 of this Act, to Government in Home Department.

(G.R. P. & S.D.. No DDB-5158-R, dated 22nd January 1958.)

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(5) The Commissioner of Police and the Superintendents of Police should detail at least one plain clothes Police Constable at each of the prominent Cinema Theatres to keep a check on pick pocketing and other malpractices, the management of the theatres not paying for this service.

(G. C., H. D., No. MSC 1054/75073-D, dated 8th November 1954.)

(6) All Police officers should make strenuous efforts to control anti-social elements and factions in their limits by taking most stringent action under Chapter and Externment Proceedings.

(I. G. 's C. M. No. 7355, dated 12th May 1955.)

(7) The Superintendents of Police specially empowered under Section 63AA of the Bombay Police Act may take action against the members of a gang or body or persons etc. under Sections 55, 56 and 57 Bombay Police Act.

(8) The Superintendent of Police and the Police Force of a district shall be under the control of the District Magistrate.

(9) Under Section 79, any Police officer may without an order from a Magistrate and without a warrant, arrest any person committing in his presence any offence punishable under Section 117 or Section 125 or Section 130 or sub-clauses (i) (iv) or (v) of Section 131, or clause (i) of Section 135 in respect of contravention of any order made under Section 39 or 40. Similarly Sections 70, 71., 72, 73, 80, 81 and 143-B provide for powers of arrest by Police , officers. Provisions of Sections 68 and 69 should also be properly used in appropriate cases. Under Section 65, Police have got powers to enter places of public resort without warrant and 'to search suspected persons in streets and places of public resort.

(10) An exhibition of poultry is for the purpose of dissemination of knowledge and not for entertaining the public. Such an exhibition is not a place of public amusement within the meaning of Section 2(9) of the Bombay Police Act, 1951, and the premises where it is held are not premises within the meaning of Rule 2 of the Rules for licensing and controlling Theatres and other places of Public Amusement.

(G. L., H.D., No. 3344/7-POLL, dated 21st April 1953)

(11) It is necessary for persons keeping hotels in Cantonment Areas to obtain licenses under the Bombay Police Act also.

(G. L., H. D., No. 3100j7-D, dated 5th August 1953.)

(12) The expenditure incurred by the District. Magistrates in respect of the advertisement charges for publishing notifications under the Bombay Police Act, 1951, and under Section 144 of the code of Criminal Procedure should be debited to the Head "27-Administration of Justice" and payment arranged by the District Judges as they are the estimating - officers under that head.

(G. L., H. D., No. BUD 1353/78915, dated 23rd March .1954.)

(13) Section 33(1) of the Act empowers the Commissioner of Police and the District Magistrates to make, alter or rescind rules or orders not inconsistent with the act relating to the matter mentioned therein. According to sub-section (2) of clause (i) of Section 33, the power of making, altering or rescinding rules under clauses (a), (b) and (c) of sub-section (1) shall be subject to the control of the State Government and under clause (ii) of the said sub- section, the power of making, altering or rescinding rules under the remaining clauses of "sub-section (1) shall be subject

to the previous sanction of the Government. The expression "rules" and "orders" occurring in Section 33 of the Act are distinguishable and sanction of the Government is necessary only for making rules but not orders.

(G. C., H. D. (Spl.) No. SB-I-BPA-1372, dated 15th September 1972)

The Bombay Prohibition Act, XXV of 1949.

373. Duties of the Police under the Prohibition Act.-(1) Detection and prevention of prohibition offences is as much a part of the duty of the Police as any other duty in regard to crime. All Police officers and Men must put forth their best efforts for the proper discharge of this duty and take suitable measures to suppress excise crime, if it exists in any part of their charge. They must be fully conversant with the various orders and notifications issued by Government from time to time under the Prohibition Act, and also allied enactments.

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They must work in full co-operation with the Excise department and the local prohibition Committees. If it is found that any Police officer does not take sufficient interest in this important branch of his duties, it will be noted as a factor to his discredit and disciplinary action taken.

(I. G. 's No. 15414-F, dated 10th January 1949)

(2) The following instructions should be followed by the Police in carrying out their duties in regard to prohibition:-

(i) Persons giving information about offences under the excise laws and prohibition orders should be treated as informants and not complainants. Care should similarly be taken to see that strictest possible secrecy about their names is maintained. Immediate action should be taken on information received from members of the District Prohibition Committee who produce badges in token of their identity.

(ii) The scenes of offences under the prohibition laws should be visited forthwith by the Sub-Inspectors of Police or Police Station Officers, and information regarding them duly verified and acted upon instantaneously.

(iii) The meetings of the District Prohibition Committee should be attended for the purpose of refuting any allegations made against the subordinate staff or of supplying any useful information to the members.

(iv) Railway stations, motor stands, brothels, gambling dens etc., should form the rendezvous of the Police Watchers to elicit information secretly.

(v) The co-operation of selected Home Guards who demonstrate a flair for detection work under Section 4 of the Home Guards Act and of informants of the Forest Department should be similarly sought.

(vi) (a) The village Police Patels are expected to be in the know of illicit distillation, going on in their villages and it is their duty to inform the Police of commissions of such offences promptly to enable the latter to take necessary action. Government desires that the Police Patels should be dealt with severely, if they are found to be conniving at prohibition offences in their jurisdiction. The Police Station Officers should, therefore, bring to the notice of the Superintendent of Police, any such omission on the part of the village Police Patels.

(I. G. 's No. G/7463, dated 21st May 1958.)

(b) According to Section 133 of the Act, every officer of the Government and every officer or servant of a local authority shall be legally bound to assist any Police officer or any prohibition officer or persons authorized in carrying out the provisions of the Act,

(c) According to Section 134 of the Act, every village officer or a servant useful to the Government, every officer of the State Government and (with the consent of the Central Government) every officer of the Customs and Central Excise Department and every officer or servant of a local authority and the Sarpanch of the village Panchayat shall be bound to give immediate information at the nearest Police Station to any officer or person authorized of the commission of any offence and of the intention or preparation to commit any offence under the Act which may come to their knowledge and to take all reasonable measures in their power to prevent commission of any such offence which they may know or have reason to believe is about likely to be committed.

(d) According to Section 141 of the Act, if the State Government is satisfied that inhabitants of any area are concerned in the commission or abetment of any of the offences punishable under Sections 65, 66, 66A, 67, 67-1A, 67C, 68, 69 and 70 of the Act, the State Government may by a notification in the official gazette direct the employment of additional police in that area for such period as it thinks fit. The cost of such additional Police shall be defrayed either in whole or in part by tax imposed on persons or by a rate assessed on the property of such persons or both by a tax and by a rate so imposed and assessed and charged either generally or on all persons who are inhabitants of the local area or specially on any particular section or section or class or classes of such persons.

(e) According to Section 142 of the Act, the Collector is empowered to close place where intoxicants or hemp is sold in certain cases. If a riot or unlawful assembly is imminent or takes place, any executive Magistrate or a Police officer who is present shall direct such place to be closed or kept closed.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(f) According to Section 146 of the Act no suit or proceeding shall lie against the Government or against the Police, Prohibition or other officers for any act done in good faith and under Section 146A, limitation of prosecutions or suits against officers are given.

(3) What is more important than detection is the prevention of excise crime by seizing or destroying illicit liquor, wash, implements etc., by organizing mobile parties, including Policemen and if possible, Home Guards and Social Workers, the objects to be aimed at being-

(a) to trace to their source the illicit liquor etc., coming into cities or other markets for sale,

(b) to pursue and prosecute the traffickers in such intoxicants, and

(c) to put, by every possible means, such difficulties in the way of the traffic that the retail prices of illicit intoxicants would rise to a height beyond the reach of the average consumer.

(I. G. 's No. 5414-F, dated 14th July 1949 and 17th February 1950)

(4) It is necessary to take precautions while launching prosecutions for the possession or trade of illicit liquor against persons who hold permits. In such cases, it will be desirable not to undertake prosecutions unless sufficient and reliable evidence is available to prove that the permit is used as a cloak for illicit brewing or trade.

(I. G. 's C. M. No. 5414-F, dated 21st July 1952)

(5) If a person arrested in a prohibition case and released on bail resorts to the same activities and is rearrested for the breach of the provisions of the Prohibition Act, his bail application should be opposed. Assistant Public Prosecutor should bring such case to the notice of the trying Magistrate and press to refuse the bail. In suitable cases, the Court may be moved for the cancellation of the bail.

(I. G. 's No. 3218, dated 28th April 1953)

(6) French Polish or Varnish which does not contain essential solids in requisite quantities should for the purposes of this Act be considered to be "liquor" and all the corresponding restrictions and prohibition under this Act should be applied to it.

(I. G. 's No. 5429, dated 17th January 1952.)

(7) A separate Known Criminal Register and Surveillance Register for prohibition offenders committing offences of distilling, selling and smuggling should be maintained. In order to focus attention on the known bootleggers and distillers, a list of such persons should be maintained at the

Police Station. Similarly a case made out against a known bootlegger or a prohibition case involving "*Corpus Delict*" worth over Rs. 500 should be registered in red ink in the Prohibition Crime Register, as a special report case to enable the inspecting officer to find out at once the real detection work of the Police Station.

(I. G. 's No. 4199, dated 2nd January 1954 and No. 7439-A-II, dated 9th January 1954)

(8) As regards jurisdiction of the Police regarding the offences committed on Customs Frontiers, the following instructions should be noted:-

(a) Jurisdiction of the Police officers should commence after the persons pass out of the Customs Frontier.

(b) If intoxicants are in the stage of import by specified routes, the Police officers cannot take action while they are under such import;

(c) If intoxicants are brought otherwise than by specified routes, Police officers can take action under this Act, and;

(d) After Central Excise officers have finished their checking, there is no objection to further checking by Police officers.

(I. G. 's No. 5414-G, dated 16th January 1954)

(9) The procedure laid down in Inspector-General of Police's Circular Memorandum No. 7776, dated 16th December 1954 should be followed for the seizure of State Transport Vehicles and arrest of drivers and Conductors of such vehicles involved in offences under this Act.

(I. G. 's C. M. No. 7776, dated 16th December 1954)

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Chapter VIII

(10) Whenever an investigating officer wants to record statements of Excise Officers and examine or seize any records from the Excise office in connection with any offence under investigation outside the State, he should as far as possible usually obtain prior permission of the head of the Excise Department concerned. If, however, the loss of time involved in doing so is likely in the opinion of the investigating officer, to hamper or do harm to the investigation the Officer concerned should proceed to do the needful in the matter of recording statements of witnesses, examining or seizing the relevant records etc., and in due course inform of the same to the head of Excise Department.

(I. G. 's C. M., No. 5429, dated 13th November 1956)

(11) Whenever loss of *muddemal* property by leakage etc. is apprehended in prohibition cases the Court should be requested, at the time of production of property or submission of charge sheet, to take suitable action under Section 451, Criminal Procedure Code, for its preservation. Police officers should submit a separate report in this connection and should make this note on the charge-sheet.

(I. G. 's C. M., No. G/6740, dated 28th August 1959)

(12) With a view to obviating all possibilities of confiscated articles such as stills, implements, utensils which are useful in the manufacture of liquor, being used again for same purpose, all the Police officers concerned should see that such articles are broken up or otherwise rendered useless and the instructions issued in regulations 12(2) of the Bombay Prohibition Confiscated or Forfeited Articles (Disposal) Regulations, 1953 are scrupulously observed before such articles are put on auction. Inspector-General of Police's Circular Memorandum No. 7281, dated 9th January 1952 should also be referred.

(I. G.'s C. M., No. G/6847, dated 2nd April 1959)

(13) When prohibition cases are put up in the Courts the Investigating Officers should see that they bear the prosecution story fully supported by evidence to avoid any doubt for the accused e.g., conscious possession of contraband articles by the accused or benefit of doubt.

(I. G. 's No. G/5429, dated 7th October 1958)

(14) It is desirable that the Police officer-in-charge of raids should give evidence in Court when persons are arrested for Prohibition offences, which are discovered while on general rounds.

(I. G.'s No. 7439-A, dated 13th December 1954)

(15) Whenever cases (i) involving important public personalities (ii) substantial haul of illicit liquor or rounding up of gangs of smugglers and (iii) such other important Information for breaches of the following Acts detected, the Commissioner of Police / Superintendents of Police should immediately submit reports regarding the seizure or arrests of persons to the Secretary to the Government. The details of cases should please be given in Form. No. 23 in Appendix I.

(i) The Bombay Prohibition Act, 1949.

(ii) The Bombay Opium Smoking Act. 1936.

(iii) The Bombay Drugs (Control) Act, 1959.

(iv) Dangerous Drugs Act. 1930.

Copies of such reports should also be sent to the Inspector-General of Police and Director of Excise and Prohibition.

(I. G. 's No. 3693, dated 5th April 1959)

(16) In order to reclaim the areas which have been dominated by the bootleggers, distillers and other anti-prohibition agents concentration should be paid on the worst affected areas first, deployment of more policemen in such areas and carrying out continuous persistent raids, selection of the best *panchas* for raids in such areas and launching of prosecution resulting from such raids and finally the action of exterminating of bad characters mercilessly from these areas will go a long way in improving the situation. The following guide lines should be noted by the Commissioner of Police / Superintendent of Police / Sub-Divisional Police Officers and they will be personally responsible for improving conditions within their jurisdiction:-

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(a) All bad areas and anti-prohibition agents and bad characters should be listed and priority arranged for carrying out raids, making out cases, putting up externment proposals and taking such other action every month.

(b) Normal enforcement of prohibition should be continued and should be improved upon in the rest of the areas.

(c) A stock-taking should be done by all the officers at the end of the month when they write the Crime Reviews about the effect of action taken during the month in all these bad areas and over the bad characters. The Sub-Divisional Police Officers shall make specific mention of action taken by them and the number of cases put up along with their results, if any, in the special supplement prescribed and attach the same to their weekly diaries. The Commissioner of Police / Superintendents of Police shall make specific mention in Part 'C' of their crime reviews about the bad areas of the city / district, action taken in such areas and the effect of such action taken.

(d) The Deputy Inspectors General of Police and the Commissioner of Police will review each month situations in all these bad pockets within their charges and take steps to improve the situation and the better enforcement of prohibition policy.

(e) The work of Task Forces should be supervised personally and it should be seen that desired effects in bad pockets and areas are obtained. Task Forces should be utilised to deliver effective blows to these anti-prohibition agents and to liquidate them effectively.

(f) The Commissioner of Police /Superintendent of Police should carefully study and remove the weak links by putting such officers and men in places where they cannot obstruct the enforcement of prohibition policy. A list of such officers and men should be sent to the Inspector-General of Police and the Deputy Inspector-General of Police. Severe action should be taken wherever possible and where even strong suspicion exists to clean up the organization.

(g) Support of the public should be sought. The information obtained from the public should be personally collected by the Commissioner of Police / Superintendents of Police / Sub-Divisional Police Officers and under no circumstances the names should be leaked out. The information so collected should be tactfully conveyed to the subordinate staff or worked out only through the task force. The Commissioner of Police / Superintendent of Police shall personally issue a press note every month through the District Publicity officer about the enforcement in the bad areas and the action taken against the bad characters for their anti-prohibition activities.

(h) Assistant Public Prosecutors should be personally instructed that success in prohibition cases will be regarded as a point in their favour and that without any fear or favour, they should do their best to point out any lacuna or lapses in the investigation. The Head Constables and Constables who have shown keen interest and obtained good results in the enforcement of the policy in the district and cleaning of the bad areas should be encouraged by liberal rewards and in exceptional cases, the Commissioner of Police / Superintendents of Police could also make out proposals for accelerated promotions where the service record of the man justifies also generally such a promotion.

(I. G. P. 's Cir. No. G/1947, dated 24th January 1969)

(17) Persons convicted of an offence under the Bombay Prohibition Act and Bombay Opium Smoking Act, can be held ineligible for being given contracts or licenses which are entirely at the discretion of Government and the grant or issue of which is not regulated by any Act.

(I. G. 's No. 5414-G, dated 3rd February 1950)

(18) (a) As soon as blood is taken from the body of the person, it should be treated with Citrate of Oxalate Mixture thoroughly stressed to arrest the deterioration and bottles containing blood should be properly sealed to prevent natural process of evaporation. Arrangements should be made to send blood quickly to Chemical Analyzer. Police officers should follow the rules framed for collecting and forwarding blood.

(b) In cases wherein public servants are suspected of consuming liquor or in any other important cases of drunkenness, where the Police consider it expedient, the samples blood of the suspect should be taken in the presence of the Police officers investigating cases. The Police officers may also be in the vicinity when a sample of urine is taken containers of the samples should bear the seals of the Medical Officers concerned.

(G. L. H. D. No. 1858/C-3447-VIII, dated 18th December 1958)

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Chapter VIII

(19) (a) When it is alleged that the accused person consumed liquor and it is proved that the concentration of alcohol in the blood of the accused person is not less than 0.05 per cent., then the burden of proving that the liquor consumed was a medicinal or toilet preparation, or an antiseptic preparation or solution, or a flavouring extract essence or syrup, containing alcohol, the consumption of which is not in contravention of the Act, or any rules, regulations or orders made under the Act shall be up to the accused person, and the Court shall in the absence of such proof presume the contrary.

(The Bombay Police (Ext. & Amndt.) Act 1959.)

(b) On the point regarding concentration of alcohol in the blood of the accused, it is the court which has to form its opinion from the entire evidence as to whether the concentration of alcohol in blood was not less than 0.05 percent. The report of the Chemical Analyzer would have no probative value and no weight could be attached by the court to the report unless the report is full and complete and discloses the tests of experiments per formed by the Chemical Analyzer, the factual data revealed by such tests or experiments and the reasons which led to the Chemical Analyzer to form the opinion from such factual data. The reasons in support of the opinion are necessary for the court to decide as to what weight should be attached to the opinion.

(I. G. P. 's Cir. No. G/1947 dated 7th September 1962)

(20) (a) Where any Police officer, has reasonable ground for believing that a person has consumed an intoxicant and that for the purpose of establishing that he has consumed an intoxicant or for the procuring of evidence thereof, it is necessary that his body be medically examined, or that his blood be collected for being tested for determining the percentage of alcohol therein, such officer may produce such person before a Registered Medical Practitioner (authorized by State Government) for such medical examination or collection of blood, and request such medical practitioner to furnish a certificate on his findings. The Medical Practitioner before whom such person has been produced shall examine such person and collect and forward in the manner prescribed the blood of such person to the Chemical Examiner, and issue a certificate in prescribed form containing result of his examination. The Chemical Examiner shall certify the result of the test of the blood forwarded to him, in the prescribed form, stating percentage of alcohol and other necessary particulars. If any person offers resistance to his production before such Practitioner to the examination of his body or to the collection of his blood, it shall be lawful to use all means reasonably necessary to secure the same.

(The Bombay Police (Ext. & Amndt) Act, 1959)

(b) (i) Blood sample phial should be sent by the medical officer concerned to the Chemical Analyzer and not by the Police.

(G. R., H. D., No. CRA/165-51-M, dated 8th December 1966 and I. G. P.'s Cir. No. G/1909 dated 18th January 1967.)

(ii) The Medical Officer shall forward the blood sample phial to the Chemical Analyzer either by post or with a special messenger so as to reach him within seven days from the date of its collection.

(Rule 4 (2) of the Bombay Prohibition (Medical Examination and Blood Test) Rules 1959)

(21) Prohibition and Excise officers should not be called to give evidence as experts in the courts.

(I. G. 's No. 6807, dated 19th May 1952 and 8th February 1957.)

(22) (a) Motor cars are often used for carrying illicit trade in liquor. When such motor cars are seized they are liable to be confiscated. In order to avoid confiscation, the owners of such cars lodge complaints of theft. It is likely that in some cases, the cars may have been actually stolen and used for illicit trade in liquor. All cases wherein motor cars involved in the carrying of liquor are reported to have been stolen by the owners of the cars, should be investigated promptly and with due diligence. The investigating officers should try to find out whether the motor cars were really stolen or whether the complaints were lodged only with a view to avoiding confiscation. Investigation in such case should not be delayed by waiting for the disposal of the prohibition cases. The disposal of the prohibition case may be taken as one of the criteria for determining whether the theft case was genuine or false. The comments or remarks of the Court will also be found useful in deciding one way or other.

(I. G. 's No. G/5429, dated 2nd March 1959)

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Duties of the Police under certain special or Local Acts and in aid to other Departments.

(b) If the driver of a motor vehicle is involved in a Prohibition offence, the Regional Transport Officer should be requested to cancel his licence.

(I. G. P.'s Cir. No. G/1947 dated 30th September 1970)

(23) Under clauses (b), (c) and (m) of Section 139 of the Act, the members of the Armed Forces may consume or use foreign liquor purchased by them at military messes or canteens subject to the following conditions, namely:-

(i) the foreign liquor so purchased shall be consumed or used at a military mess or canteen or at the residence of the member and at no other place;

(ii) the foreign liquor shall be purchased in such quantity as does not exceed that which may be fixed by the Officer appointed by the Area Commander or the Appropriate Naval or Air Force Authority in whose charge the mess or canteen is;

(iii) no permit shall be necessary for the transport of such foreign liquor from the mess or canteen at which it was purchased to the residence of the member.

(G.O., R.D. No. 9987/49, dated 18th September 1951)

(24) Military personnel are not exempted from search under the Bombay Prohibition Act, 1949, however, all possible care should be taken to avoid any inconvenience to the Military personnel where search is considered necessary.

(G. L., R. D., No. 9987/49, 38732-C, dated 2nd April 1955)

(25) The conveyance of liquor by the Military personnel while passing through Gujarat State to destinations elsewhere is governed by the Bombay through Transport Rules, 1949. According to these Rules, in the case of service personnel the pass granted by the Officer Commanding of the Old Regiment or Unit may be deemed to be a valid pass for purpose of the Rules.

(G. R. R. D. No. 9987/49-38732-G, dated 2nd April 1955)

(26) Shields are allotted by the Gujarat State Prohibition Board to each range and the commissionerate area, for awarding it to the Police Stations and the Districts who have done good work. Rules for awarding the shield have also been framed by the Government.

(I. G. P. 's No. G/1947 Shield/69 dated 11th August 1969)

(27) Whenever the opinion of the Chemical Analyzer is not received within two months, the investigating officers of their own should issue a reminder and mention the same in the case diary. The Superintendents of Police in Ahmedabad City and the Sub-Divisional Police Officers elsewhere should watch the developments and take up this question to get the opinion earlier.

(I. G. P. 's No. G/1927/72/1104, dated 20th September 1972)

(28) (i) The minimum quantity of intoxicants of different kinds needed for thorough analysis by the Chemical Analyzer is given below:-

(a) *Liquor samples*.--(i) for determination of percentage of alcohol alone 113.40 Gram of samples; (ii) for determination of medicinal and toilet ingredients .45 kilo grams.

(b) *Opium samples*.-Five grams.

(c) *Ganja, Bhang and Charas*.-Percentage for determination of the active principle of these products is not feasible. For the presence or otherwise of such elements in specimen is possible to be drawn even if a small quantity of one gramme of sample is sent.

(I. G. P. 's Cir. Memo No. G/1947/64, dated 29th July 1964)

(ii) Quantity of samples should be mentioned in the forwarding letters to the Chemical Analyzer.

(I. G. P. 's Cir. No. G/1947 dated 23rd January 1965)

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(iii) The investigating officers should send the *muddamal* with two copies of forwarding letter to the Chemical Analyzer through the Local Crime Branch man so that the Chemical Analyzer may be able to keep one letter with him and the other letter bearing the original signature of the Police officer who sends the muddamal may be returned back with the Chemical Analyzer's report with an endorsement that "the said muddamal which is sent with the letter is analyzed by him/report pertaining to this muddamal is sent herewith." The procedure is introduced as some courts have demanded for the original memo addressed to the Chemical Analyzer being produced with the muddamal. The carrier of the muddamal to the Chemical Analyzer should be examined as a witness.

(I. G. P. 's Cirs. No. G/1947 dated 1st October 1964 No. G/1947/67 dated 17th July 1967.)

(iv) Whenever article under the Prohibition Act are sent to the Chemical Analyzer he should examine those articles in the light of the definitions given under the Prohibition Act and should give the opinion confirming to that. If opium is examined by the Chemical Analyzer and if he finds that the article is opium as defined in the Prohibition Act. then his opinion should not merely say that article contains opium but he should confirm that to the definition given in Section 2 (30) of the Prohibition Act and should also state that the article does not contain more than 0.2 percent of morphine or a manufactured drug as defined in Section 2 of the Dangerous Drugs Act, 1930. Similarly, if Charas is examined and he finds that the article is Charas then he should not rest content by saying that the article contains presence of Charas but he must say that the same is Charas i.e. resin obtained from the

Indian hemp plant and further that the same has not been subjected to any manipulations other than those necessary for packing and transport.

(I. G. P. 's Cir. No. G/1947/67, diitoo 17th July 1967)

(29) (a) According to Section 115(a), an offence of consumption of any intoxicant or hemp specified in clause (b) of sub-section (1) of Section 66 may be tried by a Magistrate having jurisdiction either at the place in which the offence was actually committed or at any place in the State where the offender may be found. This new section has been added as in the past several cases under Section 66 (i)(b) had failed on the point of jurisdiction. The amendment has set at rest the difficulties experienced by the prosecution on this point.

(b) It is the duty of the prosecution to prove that the accused has consumed intoxicant in the prohibited area. The investigating officer should therefore bring the circumstances to the notice of the court, viz. that the non-prohibited area is very far from the place from where the accused is arrested, etc. The investigating officer should collect evidence on that point and produce it in the court.

(I. G. P. 's Cir. No. G/1947, dated 20th August 1970)

(30) Whenever Police authorities going out for prohibition raids should be adequately equipped and members of such raiding parties should invariably carry handcuffs and/or ropes with them.

(I. G. P. 's Cir. No. G/1911 dated 1st October 1964)

(31) A committee consisting of a Sub-Divisional Police Officer, a Police Inspector and an Assistant Public Prosecutor is required to scrutinize prohibition cases acquitted from time to time and should send their quarterly reports to the Inspector-General of Police. It is the duty of the committee to scrutinize acquitted cases under the Prohibition Act thoroughly and to propose action against the Police officers for lapses in investigation and to propose such measures which would improve the enforcement of prohibition by plugging various loopholes in law or in investigation.

(I. G. P. 's Cir. No. G/652 dated 21st November 1967)

(32) For detecting the prohibition articles imported in the State by post, a senior Head Constable of the Prohibition task force should be deputed for training in the censorship to the office of the Deputy Inspector-General of Police, Criminal Investigation Department (Intelligence) and he should then be utilised for checking post parcels at the post offices to detect whether any prohibition articles are sent or received by parcels.

(I. G. P.'s Cir. No. G/1947 dated 2nd February 1968)

(33) (a) Whenever it is possible to have panchas within reach, the Police officer should always see that they are called and the articles seized should be affixed with seals of such panchas.

(b) The Panch witnesses should be independent, unbiased and without in any way under the control of the Police. The court does not rely on the evidence of panch witness if it is established that such witness is likely to be applicable agent in the hands of the Police or is likely to be amenable

to the influence of the Police or is looked upon as a Police agent. The court takes into consideration (i) status and position in life of the panch (ii) whether the panch witness is in habit of frequently acting as a panch and (iii) nature of evidence given by particular panch witnesses.

(c) The Police should as far as possible avoid utilizing persons as panch witnesses when they have already acted as panchas.

(G. C., H. & C. S. D., No. PRN-1063-266-A, dated 7th October 1964 and I. G. P.'s No. G/1947,, dated 17th February 1977.

(d) When attaching articles, the Police officer has to see that proper seals under signatures of panchas have been affixed and that the rules framed in that respect have been properly observed.

(e) The articles seized should be sent to the Chemical Analyzer as early as possible and in case there is delay, proper explanation should be given to the court.

(f) The Chemical Analyzer should avoid undue delay and see that there arises no scope for any suspicion regarding the possibility of tampering with the articles or the contents of the articles sent to him and if there is any delay, proper explanation should be offered in the court.

(g) The identity of the bottle which was produced before the court has to be proved to be the same bottle as was seized and that the same was sent to the Chemical Analyzer and with seals in tact.

(h) The muddamal articles before the court have again to be identified by such witnesses so as to justify the court to believe that they were the same which were attached by the Police Officer and a sample whereof was sent to the Chemical Analyzer who examined it.

(I. G. P.'s Cir. No. G/1947, dated 17th February 1967)

(i) Whenever the liquor bottles are attached by the Police, they should take signatures of panchas on labels of each bottle and also on slips to be affixed on the seals of each bottle and should also write the Crime Register Number of the case on labels of each bottle.

(I. G. P. 's Cir. No. G/1947, dated 19th February 1968)

(34) With a view to preventing from pleading a false defense in the case of consumption, immediately after the arrest of the person, the investigating officer should try to collect evidence to show that the accused was not under the medical treatment or was not suffering from any disease requiring consumption of medical preparation containing high percentage of alcohol. It should be clarified as to what he had consumed and also the name of medical expert who had prescribed the medicine. He should also collect evidence to prove that the spirituous medicinal preparations produced or said to have been consumed by the accused is not the one which is prescribed by any qualified medical practitioner and that it was not possible and there was no reason for accused to consume the preparation in question in a large dose.

(I. G. P.'s Cir, No. G/1947, dated 14th June 1968)

(35) With a view to have efficient working of the task force men, the Commissioner of Police / Superintendent of Police before selecting personnel for task force should satisfy themselves that they are properly drawn, equipped, briefed and are physically fit to face a determined crowd. '

(I. G. P.'s Cir. No. G/1947 dated 15th May 1969)

(36) (i) According to Section 129 (A) (B) of the Bombay Prohibition Act, 1949, if any person offers resistance to the collection of his blood, it shall be lawful to use all means reasonably necessary to secure collection of blood necessary for the test. The escort party should foil the accused's resistance to give his blood by using such means as necessary in that regard and help the medical officer in taking the sample of blood.

(I. G. P. 's Cir. No. G/.1947 dated 23rd November 1971)

(ii) Resistance to the production before a registered medical practitioner or to the examination of the body under Section 129A of the Act or to the collection of blood shall deemed to be an offence under Section 186 of the Indian Penal Code.

(37) The Prohibition officer empowered to investigate an offence under the Act is empowered to grant bail according to Section 131 of the Act.

(38) Whenever unclaimed muddamal is found, it should be destroyed in accordance with the provisions of Section 101 of the Act and the case should not be registered. The quantity destroyed should be entered in the station diary and in statement B-1 of the monthly prohibition return.

(1. G. P.'s Cir. No. G/1947/15155 dated 29th April 1972)

The Bombay Public Conveyance Act, VII of 1920

374. Model notifications and rules under the Public Conveyances Act.-(1) In submitting recommendations for the extension to any place or town in the State of Gujarat of the provisions of the Public Conveyances Act, Superintendent of Police concerned should make use, so far as may be possible, of the model provisional notifications in Appendix XXIX. The model subsidiary rules in that Appendix are intended only as a guide and such alterations may be made in them as local circumstances render desirable.

(2) The notification has to be published at least 30 days before the date fixed for its coming into effect. It does not require previous publication for inviting objections or suggestions from the public. If, therefore, the notification is published in the Government Gazette thirty days before the date fixed for its coming into effect, it will be deemed to be duly made under Sub-Section (3) of Section 36 of the Act.

(The Bombay Public Conveyances Act, VII of 1920)

(3) Any Police officer may arrest without warrant any person, who has committed any offence under this Act, and may seize and detain any conveyance or horse in relation to which such offence has been committed.

(Section 30 of the Act)

(4) All officers should thoroughly verify the character and antecedents of the public conveyance drivers before granting them or renewing their licenses vide Section 12 of the Act.

375. Inspection of public conveyance accounts.-It is the duty of Superintendents of Police to arrange that public conveyance accounts are properly inspected and examined. They should make their own arrangements for this purpose. It is not necessary to depute Police Accountants to examine the accounts in situ at the actual Police Stations where they are kept. The accounts should be examined periodically by the establishments of the Superintendents of Police and Sub-Divisional Officers in the course of their ordinary inspection and this, combined with the check at head quarters as prescribed by Rule 7 of the Rules under Section 36(4) of the Public Conveyances Act (vide Government Resolution, Home Department, No. 196/2 of 4th January 1941) for the maintenance of accounts would be sufficient.

(G. R., H. D., No. 1946, dated 6th October 1925 and I. G. 's No. 62, dated 6th September 1927 and G. R., H. D., No. 96/2, dated 4th January 1941.)

The Bombay Regulation Act, XII of 1827

376. Levy of fines in ca. of robbery committed within the bounds of a village.-(1) First when robbery has been committed within the boundary of a village, or the perpetrators of a robbery have been satisfactorily traced thereto, and neglect or connivance be charged against the inhabitants or the Police establishment, with regard to prevention, detection or apprehension, it shall be competent to the District or Sub-Divisional Magistrate to investigate the matter as a criminal offence, and if the fact be well substantiated to exact a fine not exceeding the value of the property lost, the whole or part of which may be awarded in compensation to the owner, according to the degree of caution and activity which he evinced on the occasion may deserve.

(2) If the fine be awarded against the inhabitants at large, it shall be realised by the Collector in the same manner as revenue demands and paid to the order of the Magistrate if against individuals of Police establishment, it shall be levied as directed for fines in general.

(Section 37 of the Act)

The Bombay Refugees Act, XXII of 1948

377. Registration of refugees.-Under Section 13 of the Act, all offences under the Act except offences under Section 10(1) i.e., whoever refuses or without lawful excuse neglects to comply with

the requirements under Section 4 of the Act, are cognizable. Registration of refugees within a prescribed period and Section 6 intimation of change of address prescribed.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

The Bombay Rents, Hotel and Lodging House Rates Control Act, LVII of 1947.

378. Certain Offences to be cognizable.-According to Section 47 of the Act, the following offences are cognizable;-

Section 16	...	Recovery of possession for repairs, possession and re-entry
Section 17	...	Recovery of possession for occupation etc., and re-entry
Section 17 A	...	Recovery of possession for demolishing building
Section 17C	...	Landlord to intimate to tenant date of completion and tenant's right to occupy tenement in new building
Section 18	...	Unlawful charges by landlord
Section 19	...	Unlawful charges of tenant
Section 24(4)	...	Landlord not to cut off or withhold essential supply or service
Section 25	...	Conversion of residential into non-residential premises prohibited
Section 40(1) and (2)		Receiving of fine, premium, deposit etc., other than the fair rate by the Manager, owner etc., of the house

The Bombay Sales Tax Act, LI of 1959.

379. Cognizance of offences.-(1) Under Section 67 of the Act, no Court shall take cognizance of any offence punishable under Sections 63, 64, 65 of the Act or under any rules made there under except with the previous sanction of the Commissioner of Sales Tax.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, all offences punishable under this Act, or rules made there under shall be cognizable and bailable.

(Section 67 (2) of the Act)

(3) Under Section 68 of the Act, subject to such conditions as may be prescribed, the Commissioner of Sales Tax may authorise any persons appointed under Section 3 of the Act, to assist him to investigate all offences punishable under this Act.

(4) Every person so authorised shall, in the conduct of such investigation, exercise the powers conferred by the Code of Criminal Procedure, upon an officer in charge of a Police Station for the investigation of a cognizable offence.

(5) For other information, reference may be made to the Bombay Sales Tax Rules, 1959.

(6) The payment and acceptance of composition money under Section 69 of the Act, is a bar to the prosecution. The offence being a compoundable offence by the Commissioner of Sales Tax, the composition means an acquittal and trial of the accused is a bar under Section 300 of the Criminal Procedure Code. If a case under this Act which is being investigated and the Commissioner of Sales Tax has compounded the case, the party having paid the money, the Police has to submit final report in such a case under Section 173, Criminal Procedure Code. Therefore, if the Commissioner of Sales Tax decides to compound the offence during the pendency of investigation, the Police should not investigate the case further and should send the final report, reporting that the case has been compounded during the stage of investigation and the Magistrate should simply record against entry No.3 of the summary form 'E' that the case has been compounded. If the case is already sent up in the Court, the District Magistrate can order withdrawal of the case.

380, Powers, duties, production and inspection of accounts and documents and search of premises.-(I) According to Section 2(b) of the Act, consumer means any person who purchases motor spirit for the purpose of consumption and not for the purpose of re-sale.

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Chapter VIII

(2) Section 23 of the Act is in connection with penalty for contravention of Section 11 of the Act. Section 24 of the Act is in connection with penalty for failure to keep accounts or submit reports. Section 25 of the Act is in connection with penalty for failure to comply with the requirements of Section 14 or obstructing an officer in the discharge of his duties. Under Section 26 of the Act, powers to search are given. According to Section 28 of the Act, any Police officer not below the rank of Sub-Inspector of Police shall have power to investigate offence under this Act. According to Section 29 of the Act all offences under the Act shall be bailable.

(3) Under Rule 18 made under the Act, every Police officer not below the rank of Sub-Inspector of Police, shall have the powers to: -

(a) require any person, to whom Section 9 of the Act applies, to produce before him accounts, register or other documents or to furnish any other information, or

(b) inspect the accounts, registers and other documents and the stocks of any motor spirit manufactured, stored or kept in any shop, warehouse or place of business of any such person, or

© enter and search any building, vessel, or place in which he has reason to believe that any motor spirit is stored or kept for the purpose of sale or manufacture.

The Bombay State Reserve Police Act, 1951

381. Powers and functions.-(I) When employed on active duty at any place under sub-section (1) of section 10 of the Act, the senior Reserve Police Officer of highest rank not being lower than that of a Naik present shall be deemed to be an officer incharge of a Police Station for the purpose of Chapter X (sections 129 to 132) of the Criminal Procedure Code.

"Active duty" means (1) the duty to investigate offences involving a breach of peace or danger to life or property and to search for and apprehend persons concerned in such offences or who are so desperate and dangerous as to render their being at large hazardous to the community; (2) the duty to take all adequate measures for the extinguishing of fires or to prevent damage to person or property on the occasion of fires, floods, earthquakes, enemy action or riots, and to restore peace and preserve order on such occasions; and (3) such other duty as may be specified to be active duty by the State Government or the Inspector-General of Police in a direction issued under section 10.

(Section 2 and 11 (1) of SRP Act)

(2) A Reserve Police Officer who resigns his appointment in contravention of section 6 is liable to be punished with imprisonment which may extend to one year or with fine which may extend to Rs. 1000/- or with both.

(Section 12 of SRP Act)

(3) More heinous offences committed by the Reserve Police Officer viz. begins, 01 exercises any mutiny, assaults his superior officer, shamefully abandons his post, disobeys the lawful command of his superior, deserts his force or his post etc. are liable with punishment with rigorous imprisonment for a term which may extend to 14 years and shall be liable to fine.

(Section 14 of SRP. Act)

Tolls and Roads, Bridges Act, 1875 (III of 1875)

382. Powers of the Police.-All Police officers shall be bound to assist the toll collectors when required in the execution of this Act and for that purpose shall have the same power, which they have in the exercise of their ordinary Police duties.

(Section 6 of the Act)

The Bombay District Vaccination Act No, 1 of 1892

383. Offences cognizable.—According to Section 26 of the Act, all offences under the Act shall be cognizable by a Magistrate or Police subject to the provisions of any law for the time being in force for the trial of offences but no complaint in such offences shall be entertained unless the prosecution be instituted by order of or under authority from the Superintendent of Vaccination.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

The Gujarat Panchayats Act, VI of 1961.

384. Offences cognizable by Nyaya Panchayat.—(1) Under Section 229 of the Act. a *Nyaya Panchayat* shall take cognizance of and try all or any of the following offences (including the abetment thereof, or attempt to commit any such offences) subject to the provisions of Sub-Section (3) of Section 218 :-

(a)	<i>Under the Indian Penal Code</i>	<i>Section</i>
	Negligently doing any act known to be likely to spread the infection of any disease dangerous to life	269
	Fouling the water of a public spring or reservoir	277
	Causing danger, obstruction or injury to any person in any public way.	283
(b)	<i>Under the Prevention of Cruelty to Animals Act, 1960.</i>	
	Practicing phooka	12
	Killing animals with cruelty	11 (1)
	Employing animals unfit for labour	11(b)
	Baiting or inciting animals to fight	11(n)
	Permitting diseased animals to go at large or to die in public places	11 (j)
(c)	<i>Under the Bombay District Vaccination Act, 1892</i>	
	Inoculation, entering a vaccination area after inoculation, and bringing person inoculated into such area.	22
	Disobedience of order of the Magistrate for the vaccination of any unprotected child under 14 years.	23
	Not producing child for being vaccinated	24
	Neglecting to take child to be vaccinated	25
(d)	<i>Under the Bombay Primary Education Act, 1947.</i>	
	Failure to cause a child to attend approved school	35
	Employing child liable for compulsory education	36
(e)	<i>Under the Gujarat Panchayat Act, 1961.</i>	
	(i) erecting or re-erecting etc. any building without permission.	93
	(ii) obstructions and encroachments upon public streets, grazing lands and open sites.	94

(iii) destruction or defacement of any number or sub-number of premises or part thereof.	95
(iv) contravention of a rule	323
(v) contravention of a bye-law.	324

(2) (a) According to Section 240 of the Act, notwithstanding anything contained in the Code of Criminal Procedure, every case instituted under the Gujarat Panchayats Act, 1961 shall be instituted before the member of the Nyaya Panchay of the Gram or Nagar in which the offence is committed and if he be absent, then before, the Sarpanch or as the case may be, Chairman of the Panchayat and in his absence before the Up-Sarpanch. The Police have not to file complaints even if the cases which are tribal by Nyaya Panchayat are cognizable but in such cases according to Section 244 of the Act, the complainants have to file complaints in writing to the person before whom the case can be instituted under

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Section 240. The Police have not to remain present before the Nyaya Panchayat in such cases. Under Section 255 of the Act the Nyaya Panchayat may cause a written summons in the prescribed form to be served on the defendant or the accused as the case may be requiring him to attend and produce his evidence at such time and place as may be stated in the summons and shall at the same time direct the complainant to attend and produce his evidence at such time and place. According to Section 265 of the Act if the complainant fails to appear either in person or by a representative the Nyaya Panchayat may apply to the Magistrate having jurisdiction in the area and such Magistrate shall compel the accused to appear in person or by his representative before the Nyaya Panchayat as if he were a Court trying the case. According to Section 270 of the Act when any Nyaya Panchayat is of opinion that the case before it is of such nature or of such difficulty or importance that it ought to be tried by a court or that the accused in a case ought to receive a punishment different in kind from or more severe than that which such Nyaya Panchayat is empowered to inflict. it shall stay proceedings and refer the case to the Sessions Court for orders. As the Police are not to remain present before the Nyaya Panchayat in cognizable cases. The question of granting summary does not arise. Similarly as the Police is not a party the question of filing an appeal also does not arise.

(I. G. P. 's No. G/34/691/71 dated 17th May, 1971.)

(b) Under Section 230 of the Act no Nyaya Panchayat shall take cognizance of any offence of theft punishable under Section 379 of the Indian Penal Code in which the accused-

(i) has been previously convicted of an offence punishable under Chapter XIV or Chapter XVII of the Indian Penal Code, with imprisonment of either description for a term of three years or upwards;

(ii) has been previously fined for theft by any Nyaya Panchayat;

(iii) has been bound over to be of good behavior in proceedings instituted under Section 109. or Section 110 of the Code of Criminal Procedure.

(3) Under Section 231 no Nyaya Panchayat shall take cognizance of any offence specified in Section 229 in which either the complainant or the accused is a member of the Nyaya Panchayat or a public servant serving in the district in which the village for which the Nyaya Panchayat is established is situated: Provided however that a Nyaya Panchayat shall not be debarred from taking cognizance of an offence punishable under Section 35 or 36 of the Bombay Primary Education Act. 1947 or under Sections 93, 94 or 95 of this Act or for contravention of a rule made under sub-clause (c) of sub-section (2) of Section 323 or of a by-law under sub-Section (4) of Section 324 thereof notwithstanding that the complainant in the case is a public servant.

(4) Under Section 236 of the Act, instead of passing any sentence a Nyaya Panchayat may, after due admonition, discharge a youthful offender who, in the opinion of such Nyaya Panchayat, is at the time of conviction of the offence, under the age of sixteen years.

(5) (a) Under Section 261 of the Act no pleader or Vakil or Mukhtar, and no advocate or attorney of a High Court shall be permitted to appear on behalf of any party to any suit or case before a Nyaya Panchayat. Provided that any party to any such suit or case may be permitted on reasonable cause being shown to the satisfaction of the Nyaya Panchayat to employ any relation, servant or dependant who is not, and who has not previously been, a pleader or Vakil or an advocate or attorney of a High Court, to appear either conjointly with, or in lieu of such party. (b) When a relation servant or dependent appears in lieu of a party, he shall be furnished by such party with a written authority defining the extent to which he is empowered to act.

(6) Under Section 159 of the Act, in any local area which is declared ₹) be a village under Section 4 of this Act, or deemed to be a village under Sub-Section (1) of Section 186 the provisions of the Cattle Trespass Act, 1871 or any law corresponding to that Act in force in any part of the State shall cease to apply in relation to such local area.

(7) Every pound-keeper appointed under this Act shall in the performance of his duties be subject to the direction and control of the Panchayat.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(8) (i) Under Section 162 of the Act, it shall be the duty of every Police officer and a Watch and Ward appointed by the Panchayat, and it shall be lawful for any other person, seize and take to any such public pound for confinement therein, any cattle found straying any street or trespassing upon any private or public property within the limits of the am or Nagar, as the case may be.

(ii) Under Section 162(2) of the Act, whoever forcibly opposes the seizure of cattle liable to be seized under the Cattle Trespass Act, and whoever rescues the same after seizure either from a pound or from any person taking or about to take them to a pound, shall, on conviction, be punished with imprisonment for a term not exceeding six months or with fine not exceeding five hundred rupees, or with both.

(9) Under Section 164(2) of the Act, no Police officer, or officer, member or servant the Panchayat including the pound keeper shall, directly or indirectly purchase any cattle a sale.

(10) It is the duty of all Police officers of and below the grade of Sub-Divisional Officer, when visiting villages in the course of their various duties, to maintain close contact with representatives of village Panchayat.

(11) According to Section 88 of the Act, subject to the provisions of this Act it shall the duty of each Panchayat to make in the area within its jurisdiction and so far as the funds at its disposal will allow, reasonable provision in regard to all or any of the matters specified in Schedule I. According to Schedule I, Item (g), It is the duty of Gram Panchayat Nagar Panchayat to make provision for ensuring systematic disposal of carcasses, provision of definite place for the purpose and other needs for disposal of unclaimed corpses and carcasses.

(I. G. P.'s Cir. No. G/1927/66, dated 10th February, 1966)

(12) (a) According to Section 88 and Schedule I of sub-clause (4) item (a) of the Act, is the duty of Gram Panchayat or Nagar Panchayat to make provision for watch and ward of the Gram or Nagar and of the crops therein and raising volunteer organization or organizations of any other kind and encouraging and assisting such organizations.

(b) Providing for training facilities to the youths of the Gram or Nagar as the case may be for the purpose of self-defense and Gram defense.

(c) (i) Section 88 of the Act places the responsibility for crop protection on the village Panchayat. However, the District Panchayat Pramukhs and the Taluka Panchayat Pramukhs often ask Police to protect crops. They should be advised to make suitable arrangements through the village Panchayats under Section 88 and Schedule I of the Act. However, the Police has also to do their best in protecting crops. The Panchayat authorities may be requested to augment the efforts of the

Police in protecting the crops. The Superintendents of Police should also take legal preventive measures against known thieves and/or headstrong persons committing thefts of crop and/or damaging crops through illicit grazing. Sections 107, 109 and 110 of the Criminal Procedure Code, 161 to 164 of the Gujarat Panchayat Act and 118, 122 and 124 of the Bombay Police Act, 1951 should be used with advantage.

(I. G. P. 's Cir. No. G/1927/72/940, dated 7th September, 1972)

(ii) Sections 161 and 162 of the Act permit seizure of cattle straying in any street or trespassing on any public or private property by Police and other officers and impounding. Such straying is also made an offence and enhanced punishments are prescribed for a second and subsequent offences and also a compensation not exceeding Rs. 250/- is provided for and forfeiture of such cattle to the State Government. The offences are also cognizable. Section 167 of the Act contains a provision that before such seized cattle is released from a pound a security can be forfeited if any cattle of the same owner is impounded within the next six months. Further, Section 168 of the Act provides that after notification by the State Government, a Mamlatdar or a Mahalkari can direct people who are not residents of the village to remove the cattle to another specified place from the notified area. This may be helpful in removing cattle from areas of cultivation to grazing grounds.

(iii) As the Gujarat Panchayat Act is not applicable to Municipal towns, the provision regarding the cattle in the towns would be under Section 89 of the Police Act where stray cattle in the street can be impounded by any Police Officer under Section 89 of the Police Act. Also the power to help in the seizure of cattle damaging lands or crop thereon in area is given to the persons thereon and the Police can assist them.

(I. G. P. 's Cir. No. 0/1909 dated 18th July, 1964)

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(13) If the Panchayat authorities do not consider it desirable to accord sanction in criminal cases against their employees referred to by the Anti-corruption Bureau and the Criminal Investigation Department, such cases should be referred to the Vigilance Commission through the Development Commissioner.

(I. G. P.'s Cir. No. G/1909, dated 18th July, 1964.)

The Bombay Weights and Measures Act, XV of 1932.

385. Duties of Police with regard to weights and measures.-(1) Any officer in charge of a Police Station may, without a warrant enter any place within the limits of such station for the purpose of inspecting or searching for any weights or measures or instruments for weighing, used or kept therein, whenever he has reason to believe that there are in such place any weights, measures or instruments for weighing which are false.

(2) If he finds in such place any weights, measures or instruments for weighing which are false, he may seize the same and shall forthwith give information of such seizure to a Magistrate having jurisdiction.

(3) No prosecution under this Act shall be instituted except by or with the previous sanction of an officer authorized under Sub-Section (2) of Section 19 and specially empowered by Government in this behalf.

(Section 44 of the Act)

(4) The Assistant Public Prosecutors should press the trying Court for awarding deterrent punishment for offences under the Bombay Weights and Measures Act.

(I. G. 's No. 2464, dated 5th May, 1953)

(5) Sections. 31, 31A, 32, 33, 34, 35, 37, 38, 39, 39A and 40 are penal Sections.

(6) Under Section 22 of the Act, power to inspect weights etc. and to enter shops etc. for that purpose has been given.

386. Duties of the Police.-(I) It is the duty of the Police to co-operate with the Forest Department to see that wild birds and animals are not shot during the close season. In this connection, Police officers should look out for birds shot and offered for sale in markets outside forest areas. If any such case be detected intimation should be sent to the local Forest Officer if there be, evidence or suspicion that the birds were caught in a forest area. In the case of offences committed outside forest area, the Police themselves should deal with them.

(2) According to Section 44 of the Act, a Police officer may, if he has reasonable grounds for believing that any person has committed an offence under this Act-

(a) require any such person to produce for his inspection any animal, bird, meat or trophy in his possession or any licence, permit or other documents issued to him or required to be kept by him; ,

(b) enter and search any premises, land,- vehicle or boat, in the occupation of such person;

(c) seize any animal, bird, meat or trophy in the possession of any person and appearing to him to be the property of the State Government together with any vehicle weapon, trap or tools used for committing any such offence.

(3) (a) It shall be lawful for Police officers referred to in sub-section (1) of Section -14 to stop and detain any person whom he sees doing any act for which a licence or permit is required under the provisions of the Act for the purpose of requiring such person produce his licence or permit and if such person fails to do so, he may be arrested with a warrant, unless he furnishes his name and address and otherwise satisfies the officer arresting him that he Will duly answer any summons or other proceedings which may taken against him.

(b) Any person detained or things seized shall forthwith be taken before a Magistrate to be dealt with according to law.

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Duties of the Police under certain Special or Local Acts and in aid to other Departments.

(c) Any person who without reasonable cause fails to produce anything which under the powers conferred by Section 44 of the Act, he is required to produce shall be guilty of an offence under this Act.

(4) Section 46 is a penal Section.

(5) According to Section 47, no court shall take cognizance of any offence under this Act except on the complaint or report of the Wild Life Preservation Officer or any officer authorized by him or any Forest Officer or Police Officer or of any other officer authorized by the State Government and unless the prosecution is instituted within six months from the date on which the offence is alleged to have been committed.

(6) (a) Police Officers and men should always co-operate with the Non-Official Game Wardens in the matter of detection of offences under the Act.

(I. G. 's ~o. 5050-B, dated 8th February 1954)

(b) The Sub-Inspectors of Police may be appointed as Assistant Game Wardens in respect of the game listed in Schedules III and IV to this Act.

(G. R. R. D., No. 8319, dated 9th April 1953)

SECTION III.-POLICE DUTIES IN AID OF OTHER DEPARTMENTS

387. Troops on the march.-(I) (i) On receipt of information, that troops are to march through the district under his jurisdiction, the Collector will detail a Police officer or other official to accompany them and to take steps to prevent the irregular sale of liquor or fruits to the troops on or near the route, and exclude from the camp or in vicinity all women of loose character.

(ii) The official detailed will report himself to the Officer Commanding the troops the day before the troops enter the limits of his jurisdiction, and will remain with them until they leave it.

(iii) He will be the medium of communication in his district between the Officer Commanding the troops and the subordinate civil officials and inhabitants generally and will give all the assistance in his power to the Officer Commanding the troops.

(iv) He will settle, in communication with the Officer Commanding, all disputes with the inhabitants or with any transport establishments engaged by the civil authorities, within his powers, and be responsible for reporting cases beyond his powers to his superiors.

(v) He will be provided by the Collector with written instructions defining his duties and powers, which he will show to the Officer Commanding the troops.

(vi) If irregularities committed by the troops are not discovered until they have proceeded outside the limits of the jurisdiction of the Collector, the official detailed will send a full report of the occurrence to the Officer Commanding the Brigade Area in which it occurred, who will investigate the matter and take all action necessary for its disposal.

(2) Rationing arrangements for all troops and animals on March, and supply of necessary carriage are arranged for by the military authorities in consultation with and with the assistance of civil authorities in so far as this may be necessary. For details in this connection, see the memorandum of instructions for Collectors with regard to troops marching through districts under their jurisdiction, printed as an accompaniment to Government Resolution, Revenue Department No. 2721, dated 21st May 1929 as modified by Government Resolution, Revenue Department, No. 2721/17760, dated 16th July 1929 and Government Resolution, Revenue Department, No. 2721, dated 11th September, 1935.

(3) It is ordinarily no part of the duty of the Police to assist in the impressment of carts but they may be required by the District Magistrate or by the Mamlatdar of the taluka, under his general or special orders, in aid of the military, so to assist.

(G. R., H. D., No. 8331/2, dated 2nd December 1930)

388. State Transport officers and stores.-At places where there are large sums of money in the possession of local State Transport Officers, or large quantities of spare parts in store belonging to the State Transport, it is the duty of the local Police to exercise proper vigilance for the protection of such places. The Police should also give prompt assistance to the local subordinates of the State Transport, whenever a request for such assistance is made to them.

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389. Applications of prisoners for release on furlough or parole.-(I) The following procedure is prescribed for expeditious disposal of furlough and parole applications;-

(A) Release on Furlough:-

(i) The Form No. 24 given in Appendix I should be used to facilitate the enquiry on furlough applications and the reporting officers should furnish information on the set points.

(ii) Furlough applications in the Jail Superintendent's office should be processed within 3 days from the date of receipt.

(iii) The Superintendent of Police should furnish his report on the furlough application to the District Magistrate within a maximum period of a fortnight. The Commissioner of Police should furnish his report to the Inspector-General of Prisons within a fortnight.

(iv) The District Magistrate, who receives the report from the Superintendent of Police, should forward the remarks to the Inspector-General of Prisons within a maximum period of one week.

(v) The Inspector-General of Prisons should take decision on the application and communicate the order within ten days.

(vi) An application for furlough should be decided within a maximum period of sixty days.

(B) Release on Parole:-

(i) The Form No. 25 given in Appendix I should be used for immediate process of parole application and vigilance should be exercised to eliminate delay in disposal of parole application.

(ii) As a matter of course, the Superintendent of Prison should process a parole application on the day of its receipt.

(iii) The Superintendent of Police should furnish his report on parole application to the Inspector-General of Prisons through the District Magistrate within a period of one week. The Commissioner of Police should furnish his report direct to the Inspector General of Prisons within a week. If reply is not received within the prescribed time by the Jail Department, a telegram should be sent by the Jail Department and even then if the reply is delayed by the Police, the matter should be reported to the Government for suitable action against the defaulting officer.

(iv) The procedure for processing a parole application, as suggested above, should be followed and it should be disposed of within a fortnight. However, in case of emergency like death or serious illness in prisoner's family, the matter should be decided within three to four days, if necessary even by using wireless, telephone or personal messengers.

(2) The above procedure should be followed scrupulously by all concerned and furlough parole applications should be disposed of within the prescribed time.

(G. C., H. D., No. MIS-1065-2064-J, dated 4th February 1970.)

390. Unauthorized use of the Names of the President, Prime Minister or of other High Dignitaries of State.- Whenever a case comes to the notice of any officer, in which it appears prima facie that unauthorized use has been made of the names of high dignitaries, the officer should be immediately reported by him to Government in the Home Department through proper channel. Government will then report it to the office concerned with a copy to, Government of India, (Ministry of Home Affairs). In the case of the President and the Minister the appropriate officers are the Presidents Secretaries and the Prime Minister's Secretariat. The office concerned will then, if necessary, issue a press note refuting the same and inform the State Government of the correct facts of the case.

(G. C., P. and S. D., No. VNU-1054/27304-B, dated 14th May 1954)

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CHAPTER IX

GUARDS, ESCORTS AND ORDERLIES

SECTION I.-INTRODUCTORY

391. Scope of Rules.-(1) The Rules in this Chapter are for general information and guidance in normal conditions. When temporary or local necessity demands some departure from them the officer or officers concerned must exercise their own judgment to cope with the situation and if it be necessary to provide a stronger guard or escort for some special occasion, it should be provided.

(2) A translation of these Rules shall be kept with each guard and in the Police Station House for the information and guidance of all men concerned.

SECTION II.-GENERAL RULES GOVERNING GUARDS AND ESCORTS

392. Armed Police to do guard and escort duty.-(1) Unarmed Police should be used for guarding and escorting of prisoners only when Armed Police are not available either totally or in sufficient

number. In such cases prisoners should be permitted to be escorted by Unarmed Police from the place of arrest to the Police Stations only.

(2) Unless there are special circumstances, Unarmed Police should not be used for escorting prisoners to Courts or from local jails or Police Stations or District Headquarters.

(3) In no case should the Inter-District transfers of prisoners be done by Unarmed Police.

(4) Dangerous prisoners should always be escorted by Armed Police and the escort should be given special instructions.

(I. G. 's C. M., No. M/4719-IV, dated 30th January 1959)

393. Guard to be relieved daily.-Wherever practicable, the guard shall be relieved daily and the proportion of three men per sentry shall be maintained; but when the guard cannot be relieved daily, four men per sentry may be given.

394. Firearms of the guard.- The firearms of the guard shall not be loaded, but shall always have the bayonets fixed, and shall remain in the guard-room, when not in use.

395. Ammunition to be carried by guards.-Each man forming part of the guard shall carry in his pouch one packet containing 10 rounds ball ammunition except the sentry on duty who should carry 10 rounds buckshot cartridges loose in the pouch, which he shall wear open and in front to facilitate quick loading. These 10 loose buckshot cartridges shall be handed over to the relieving sentry, who shall exchange for them his closed packet of 10 rounds ball ammunition. When the guard is relieved, all the ammunition shall be handed over to the relieving guard. The guard commander shall be responsible for the ammunition being correct.

(G. R., J. D., No. 7500, dated 21st November 1901 and I. G. 's No. 100, dated 26th July 1926 and No. 131, dated 16th September 1926.)

396. Time of changing guards.- Time of changing the guard at sub-jailor jail should be fixed at 0800 hours so that the members of both the guards can be helpful for taking the prisoners out for fetching water, answering call of nature, taking bath, etc.

(I. G. P. 's C. M., No. G/1909, dated 20th August 1966)

397. Guard to use lantern at night.-At night, the guard shall use a lantern and not an uncovered and unprotected lamp.

398. Use of firearms by guards.-In case a prisoner attempts to escape or resists the efforts of the guard to prevent the escape, the guard would be fully justified in using firearms to overcome the prisoner's resistance. The extreme course of shooting down the prisoner should be resorted to only in cases where the prisoner is charged of an offence punishable with death or imprisonment for life.

Should the prisoner cause or attempt to cause bodily injury while effecting escape, firearms can be used subject to the right of private defense as given by Section 100, Indian Penal Code, i.e. when death or grievous hurt is caused or apprehended.

399. Use of firearms by escort of treasure.-Persons attacking and attempting to loot treasure may be fired upon, when the use of arms is necessary for the protection of the escort or to overcome the violence of the persons making the attempt, the order to fire in such an emergency being given by the escort commander. This course shall be resorted to only when the escort is convinced of the futility of all other means to defeat the attack and attempt to loot the treasure. The escort should always keep its firearms ready for immediate use in an emergency.

(I. G. 's No. 1256, dated 19th October 1945)

400. Duties and responsibilities of the officer detailing a guard or escort.-(I) All guards and escort parties shall be carefully inspected, before they go on duty, by the officer who sends them on duty. He will be held responsible that they are efficiently and properly equipped.

(2) No officer or Constable shall be employed on guard duty over any prisoner in the lock-up between whom and the prisoner relationship or friendship exists. The officer detailing the guard shall acquaint himself on this point and shall arrange, so far as possible, not to depute any such officer or Constable on guard duty, so long as such prisoner or prisoners are in the lock-up.

401. Responsibilities of the guard commander or officer-in-charge of escort.-(I) The guard commander or officer-in-charge of escort is responsible for the regularity and good conduct of the guard or the escort party, for the correct performance of their duties and for seeing that the men are at all times properly dressed and are sober. He is also required to acquaint himself thoroughly with the orders for the guard or the escort party.

(2) The guard commander shall see that, all standing orders regarding the duties of the guard are duly observed, and shall satisfy himself as soon as guard is mounted, that all such orders are known to the men and understood by them.

(3) In the event of the guard commander or any constable on guard duty becoming incapacitated by sickness for remaining at his post, the fact shall be immediately reported to the Sub-Inspector or such senior officer as may be near at hand, who shall forthwith take measures to relieve the incapacitated officer or constable.

(4) The guard commander shall be careful to see that the Constables on guard duty have not in their possession any Opium, Liquor, Ganja, or other stupefying or intoxicating substances. Should any such substance be found with any of them, the guard commander shall confiscate the same and report the matter to his superior officer without delay.

(5) The guard commander should see that there is no relative or a friend of the prisoner in the guard.

(6) Whenever the prisoner is taken out, he should be secured by passing the rope round the back of his neck and then tying a knot in front of his chest. Thereafter, the ends of the rope should be passed under the arms and again in a knot at the back.

(7) The guard duty men should not be allowed to mix up with the prisoners and the guard commander should also see that no outsider is allowed to talk with him without his permission.

(I. G. P. 's Cir. Memo. No. G/1909, dated 20th August 1966)

(8) Whenever a prisoner is taken to the hospital or the court from the lock-up or jail, he should not be taken to his house on the way.

(9) Whenever a prisoner is conducted from one place to another; he should not be taken to a lodge for his meal or tea etc. The guard commander should take him to the nearest available police station and arrange for his food etc. at the lock-up of the police station.

(I. G. P.'s C. M., No. G/1909, dated 3rd September 1966)

402. Guard commander or sentry etc. not to leave the guard.-(I) The guard commander shall on no account quit his guard except to obey a call of nature and before quitting the guard he shall place the next senior officer in charge. He shall also prevent any constable from quitting the guard without leave which shall be granted sparingly, only for special purposes and for the shortest possible period.

(2) Constables on guard duty who may be unable to arrange to have their food brought to them shall be allowed two hours leave for the purpose of taking meals between the hours of 9 a.m. and 2 p.m. This privilege shall not be granted to more than one Policeman on guard at the same time.

(3) No policeman from guard duty should be allowed to go out after sun-set and before sunrise. In case it is absolutely necessary for one to go the commander should ascertain from him about the reasons for going out and only if he is satisfied he may be given permission.

(I. G. P. 's C. M., No. G/1909, dated 20th August 1966)

403. Relief of guards and sentries.-(1) The relieved and relieving guard commanders shall both together carefully examine the charge of the guard and satisfy themselves that all property or prisoners in charge of the guard are correct and that all locks and seals are intact.

(2) A sentry shall always be relieved, in the presence of the guard commander. Every two hours.

(3) At each relief of sentries the guard commander shall satisfy himself and the relieving sentry that the latter understands his charge correctly. The guard commander and the relieved and the relieving sentry shall together examine and satisfy themselves that all articles or prisoners in charge of the guard are correct and that all locks and seals, etc. are intact.

404. Guard not to take off clothing or accoutrements.-No officer or Constable on guard duty shall on any account take off his clothing or accoutrements. This rule does not apply to occasions when an officer or Constable is taking his meals nor does it prohibit him from taking off his fatigue cap or belt when lying down to rest during the day or night.

405. Sentry not to quit his post.-A sentry shall on no account, quit his post without being regularly relieved. Should he find himself incapacitated by illness or other cause for the performance of his duty he shall call the guard commander who shall, if necessary, relieve him.

406. Challenges and use of firearms.-Sentries on treasuries and magazines must observe the following instructions in regard to challenges and use of firearms between the hours of sun-set and sun-rise:

(a) Sentries are entitled and are required to use their firearms when such a course is necessary to protect the property committed, to their charge. The guard commander should explain this to the men.

(b) Sentries must not fire save in the last resort. Ordinarily when a challenge is disregarded, they should in the first instance call out the guard and should not fire without the orders of the guard commander. A sentry should, however, open fire after giving due warning, if he has good reason to apprehend an immediate attack and cannot otherwise be confident of driving of the intruders.

(c) If there are special reasons for apprehending attacks on treasuries, armories or magazines, the Superintendent should on such occasions issue such special instructions to the guard commanders as the circumstances seem to require.

(J. D. Letter No. 8767, dated 15th October 1919 and I. G. 's No. 13082-B, dated 10th November 1919)

407. Compliments to be paid by guards.-(1) District Magistrates. Superintendents of Police and civil officers of higher rank, and Field Officers in uniform will be saluted by sentries with present arms. Other Magistrates and civil officers of corresponding rank and other military officers in uniform will be saluted by sentries standing to their front with slope arms.

(2) Police guards will turn out and present arms to the Governor a Minister, a Judge of the High Court, a General Officer in uniform, the Inspector-General of Police a Deputy Inspector-General of Police, the District Magistrate and the Superintendent of Police.

In the case of other officers entitled to a salute under the preceding Sub-Rule, the guard will come to attention. For the District Magistrate and the Superintendent of Police, the guard shall only be turned out once in a day, i.e. when first passed or visited by them.

(3) Police guards will fall in and present arms to any body of troops or Police passing the guard.

(G. R., H. D., No. 7866, dated 2nd June 1926)

(4) In addition to the compliments provided for in Sub-Rules (1) to (3) above, the prison or jail guard shall present arms to the Inspector-General of Prisons, the Superintendent of the Prison, the Sessions or Additional Sessions Judge, the Assistant Sessions Judge, the Magistrate in charge of the Sub-Division, the medical officer of the prison and such other officers as may be entitled to that compliment when visiting the prison.

(5) (a) Police Guards shall not present arms after sunset and Guards should not turn out to pay compliments after "Retreat" and before "Reveille" except to "Visiting Rounds" or an "Armed Party."

(I. G. 's No. 6196, dated 16th January 1956)

(b) The Guard Commander should not give the order for dismissal until the officer visiting the Police Guard gives the order.

(I. G. 's No. 4809-II, dated 21st May 1955)

SECTION III.-TREASURY AND LOCK-UP GUARD

408. Application of general rules.-Rules 391 to 407 in this Chapter with respect to guards generally apply, so far as may be to treasury and lock-up guards also.

409. Strength of treasury and lock-up guards.-(1) The district treasury guard shall ordinarily consist of one Head Constable and six constables.

(G. R., J. D., No. 7536, dated 7th November 1900)

(2) The strength of the taluka treasury and lock-up guard (when the treasury and lock-ups are immediately adjoining) shall ordinarily consist of one Head Constable and three Constables.

(G. R., J. D., No. 3756, dated 14th May 1919)

(3) If the lock-up and treasury room be adjacent in the same building, one sentry will suffice for both; but if they are some distance apart in different buildings, two sentries will be required.

410. Use of chain to prevent rush of prisoners.-(1) There should be chain to the lock-up. When a lock-up where more than one prisoner are confined is opened, a chain should first be passed round the two halves of the door and secured, so that the door can only be opened sufficiently to allow of the passage of one person at a time. This is a precaution against a rush by prisoners.

(I. G. 's No. 4719, dated 11th February 1933 & G/1909, dated 20th August 1966)

(2) The following procedure regarding chains should be followed:-

(a) The chain should have two large rings at each end, and should, when not in use, be hung up with the keys of the pad-locks of the cells.

(b) When a door is opened, the chain should be passed round the first or second bar of the door on each side; the pad-lock should then be unlocked, taken off and passed through the end rings of the chain and locked.

(c) When the chain is so attached and locked, the bolt of the door can be drawn back and the door opened.

(d) The reverse process should be followed after admitting the prisoners into the cell.

(I. G. 's No. 35, dated 28th December 1939)

411. Duties of the Commander of treasury and Lock-up guard in regard to the guard.-No one shall be allowed to leave the guard after sunset and before sunrise. If within the period any Constable should require to go outside for a necessary purpose, he shall first obtain the permission of the guard commander, who, unless he is satisfied that the request

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preferred is not a mere excuse, shall unlock the door, let the Constable out, and immediately re-lock the door. On his return, the guard commander shall search the Constable and satisfy himself that the Constable has brought in no liquor or other intoxicant.

412. Duties of the commander of treasury and lock-up guard in connection with relief of guard or sentry.-(1) All furniture, stores, or property in charge of the guard shall be handed over from one guard commander to another. The commander of the relieving guard shall be held responsible for their correctness and shall certify in his report as to the state of each article when taken over. He shall also satisfy himself of the correctness of the number of any prisoners there may be in the lock-up, and of their condition.

(2) At each relief of sentries, the guard commander shall satisfy himself and the relieving sentry that the lock and seal of the treasury door are intact and they shall carefully examine every article in charge of the guard and count any prisoners there may be, so as to satisfy themselves that the number is correct. If any mistake is discovered, the guard commander shall at once bring to the notice of the superior officer of Police on the spot, who shall immediately take such steps as the circumstances may require.

413. Duties of commander of treasury and lock-up guard in regard to treasury.-(1) When the treasury door is opened by the order of the Treasury Sub-Treasury officer or the person incharge for the purpose of depositing or withdrawing money out of the chest, the guard commander shall attend and see that the treasury door is re-locked, and shall draw the immediate attention of the shroff to any omission in this respect. The guard commander shall satisfy himself, before leaving the treasury room, that there is no one left in it and see that the door of the treasury is properly locked and sealed in his presence before the Treasury / Sub-Treasury Officer or the person incharge leaves the office.

(2) Except the Treasury j Sub-Treasury officer or the person incharge, no person shall be permitted to go into the treasury room except under a written authority, general or special, from the Treasury / Sub- Treasury officer authorizing the person to enter the treasury room.

(3) Money or valuables sent by the courts of law or the Police shall be received into safe custody by the guard; but the guard commander shall refuse to receive it, unless it is properly packed, if possible, in a box, fastened up and sealed. Such money or valuables, when received during the day before the closing of the treasury, shall be placed within it. When received, too late for deposit, such money or valuables shall be handed over in due form to each relieving guard, the commander of which shall carefully examine the boxes, fastenings and seals and they shall be placed in the treasury as soon as it is opened, and kept there till required by the court of law or the Police Officer depositing them.

(4) The following procedure should be followed at sub-treasuries for the receipt of remittances after closing hours:-

(a) The package in which village officers send their remittances should be sealed by them.

(b) A box should be kept outside the strong room at the sub-treasury for deposit of late village remittances in charge of the Police or other treasury guard.

(c) The guard commander shall put an additional seal on the package in the presence of the village servants who bring the cash.

(d) The box shall then be properly packed, fastened and sealed by the guard commander in the presence of the village servants who bring the cash.

(e) One of the carriers shall remain present till the sub-treasury re-opens.

(G. C. M., F. D., No. 2624/33, dated 15th July 1941)

The additional seal referred to in clauses (c) and (d) above should be understood to be that of the Treasury / Sub-Treasury officer as against the Police guard.

(G. C. M., F. D., No. 2624/33, dated 27th October 1942)

(5) Officers depositing cash boxes in a treasury or a sub-treasury for safe custody should finish their cash transactions and send their cash boxes to the treasury before the closing hours of the treasury or sub-treasury. If in exceptional circumstances, any cash box

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is sent to a treasury or a sub-treasury after closing hours, it should be delivered to the senior officer of the Police Guard who should receive it, if it is properly secured in a sealed receptacle, and should be responsible for its safe custody.

(G. Rs., R. D., No. 3146/45, dated 24th December 1947 and 10th July 1948)

(6) When the office is closed in the evening the guard commander shall go round and satisfy himself with the aid of a lantern when necessary, that everyone, with the exception of those whose duty it is to remain, has gone, and that no one has concealed himself in the building. He shall then fasten, lock and chain all doors and gates, communicating with the outside, and keep the keys with him. He shall also see that lamps provided to enable the sentry to inspect the locks at night are kept burning brightly. Should any superior officer come during the night on rounds or duty, the guard commander after satisfying himself by speaking with him, shall unlock the door, and after admitting him shall immediately relock it. On the visiting officer leaving, the guard commander shall shut and refasten the door as before.

414. Duties of the commander of a treasury and lock-up guard in regard to prisoners.- (1) The keys of cells and barracks shall in the day-time be in the charge of the jailor, the guard commander or a warder, as the Superintendent of the Jail may direct. During the night, they shall be kept by the Head Constable commanding the guard.

(2) (a) The guard commander shall not receive a prisoner without a written order in each case from the officer under whose authority the prisoner is sent, nor shall he release a prisoner without such written order, but a written order shall not be necessary in the case of a temporary remand as and when a prisoner is daily brought before the Magistrate for trial or taken back. A register shall be kept by the guard commander, in which he shall enter the arrivals and discharges of prisoners detailing the name of the prisoner and the Magistrate or other officer from whom he has been received. This register shall be checked daily by the Mamlatdar or, in his absence, by the Head Karkun.

(b) The guard commander shall obtain written orders from the Jailor in case any prisoner is to be sent for medical aid at the hospital or for any other important work.

(c) The prisoner should not be allowed to mix with the outsider.

(d) No outsiders should be allowed to enter the office or court room without the permission of the guard commander or the jail officer.

(I. G. P. 's C. M., No. G/1909, dated 20th August 1966)

(3) (a) When undertrial or convicted male prisoners are brought to the commander of the guard, he shall, search their persons and see whether they have in their possession any opium, Ganja or any other deleterious or poisonous substance, or any dangerous weapon or article which may be used in effecting an escape from the Lock-up. He shall also satisfy himself that room where the prisoner is to be kept does not contain any of the above articles. After he has caused the prisoner to enter the room, he shall lock the door and keep the key in his possession. The same procedure shall be adopted in the case of each prisoner admitted.

(b) In the case of an undertrial prisoner, all ornaments which the prisoner may be wearing and any wearing apparel he does not immediately require will be taken charge of and kept with the lock-up guard and shall be duly entered in a book (Form No. P. M. 87) known as "Lock-up register" to be kept for the purpose by the Police Station Officer. These ornaments and articles of wearing apparel should be handed over with the case to the Magistrate, who will return them to the

accused, if he is acquitted or discharged. If he is convicted, the jailor will take charge of these from the Magistrate.

(c) In the case of convicted prisoners, if they arrive at the subsidiary jail between 10 a.m. to 5 p.m. the necessary search will be made by the jailor and the property taken over by him. When such prisoners arrive before 10 a.m. and after 5 p.m. the search will be made by the guard commander and the property shall be temporarily taken over by him duly registered in the aforesaid book and then handed over to the jailor on his arrival next morning. In the case of a female prisoner, the search shall be made by another woman with strict regard to decency.

(d) When the guard commander has taken possession of the property belonging to a prisoner, the jailor, after comparing the property for which he is responsible under Rule 1011 of the Bombay Jail Manual, 1955, and Rule 35 of the Sub-Jail Manual, 1954, with the Police register, shall take it over and initial the Police register making therein any remarks he may deem necessary regarding discrepancies or the condition of the articles.

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(4) The guard commander shall also permit any prisoner, regarding whom he has received instructions from the jailor, to leave the jail.

(G. R., J. D., No. 8077, dated 11th November 1912 and I. G. 's No. 9069-B, dated 16th August 1918)

(5) The guard commander shall, when the jail opens, report to the jailor the name of any prisoner who may have arrived at or left the jail during the time the jail was closed.

(6) The guard commander may, in case of necessity and between lock-up and opening time, remove a prisoner from a barrack and place him for safe custody either in a hospital or in any part of the jail building. When the jail is opened, the guard commander shall take orders from the jailor before he removes a prisoner from or admits a prisoner to a cell.

(7) (a) A prisoner allowed to leave the lock-up for a necessary purpose shall be properly secured against escape, and shall on no account be allowed to go out of sight or to communicate with anyone.

(b) A prisoner shall be secured by the passing of a rope round the back of his neck, and then tying a knot in front on his chest. Thereafter the ends of the rope should be passed under his arms and again tied in a knot at the back.

(I. G. 's No. 3, dated 20th January 1940 and No.9, dated 1st April 1941)

(8) As and when the prisoner has to go out for natural call or for bath, the guard commander should first check up the latrine and the bath-room and only then the prisoner should be allowed to go. He should see that the door of the latrine is kept half-open and the policeman on duty should keep a close watch over him. One policeman should also be kept behind the latrine.

(9) The guard commander should check the sentries twice during the night and keep a watch on the prisoners.

(I. G. P. 's C. M., No. G/1909, dated 26th August 1966)

415. Duties of sentry of treasury and lock-up guard.-(1) In the case of a district treasury, the guard shall supply one sentry during the day to patrol up and down in front of the treasury building. At night, from the time the treasury is closed until the morning, two sentries at a time will be posted, one to patrol in front and the other in the rear of the building.

(2) On sentries being relieved, the relieving and relieved sentries shall both carefully examine and satisfy themselves that the lock and seal of the treasury room door as well as all other locks, seals, railings, windows and fastenings and every article pointed out and handed over are intact. They shall also count over any prisoners there may be in the lock-up, and satisfy themselves that the number is correct. At night time, this examination shall be performed with the aid of a lamp. The sentry shall not be required to examine the locks of chests inside the treasury-room.

(3) The sentry holding his musket in the manner taught to him shall always be on the alert and shall march up and down in front of the lock-up and treasury-room, keeping a watch on the actions of any prisoner there may be in the lock-up.

(4) The sentry shall hold no communication with any prisoners in the lock-up, shall prevent every outsider from doing so, and shall not, without good reason, allow people to come to or assemble round the lock-up. He shall call the attention of the guard commander to any irregularity he may notice and shall apprise him in case of any prisoner making a signal from the lock-up.

(5) The sentry should not allow any person to stand near the lock-up room without any valid reason.

(6) Should the sentry observe any prisoner attempting to escape, he shall at once raise the alarm and acquaint the guard commander. He shall at the same time take all necessary steps to prevent his escape. He may also use his fire-arms in emergency but must ensure that minimum harm is caused while firing, vide rule 398 of Police Manual, Volume III.

(I. G. P.'s C. M., No. G/1909, dated 20th August 1966)

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SECTION IV-PRISON OR JAIL GUARD

416. Application of General Rules.—Rules 392 to 407 in this Chapter with respect to guards generally apply so far as may be, to prison or jail guards also.

417. Strength of prison or jail guard.—(I) The strength of the guard to be furnished to prisons and subsidiary jails shall be decided by the Superintendent of the Prisons or Subsidiary Jail and the Police authorities, subject to the approval of the Inspector-General of Prisons. If the jail is overcrowded with intra mural convicts, the jail Department should engage such additional jail guards as may be necessary to keep order, apart from any increase of the Police guard to protect the warders from violence. Then, if the convicts or any of them are moved out of the jail for any reason there will be a certain number of jail guards set free to accompany them. If the number is insufficient, more temporary jail guards should be engaged, and no indent on that account alone made on the Police force.

(G.R., J. D., No. 1.862, dated 19th March 1901 and G. R., J. D., No. 7071, dated 18th October 1900.)

(2) When there are undertrial prisoners in the prison three additional Constables to supply an extra sentry shall be furnished.

(3) No Police Guard should be engaged on outside guarding of Central and District Prisons.

(G. L., H. D., No. 3607/7-C, dated 5th August 1953)

418. General duties of the prison or jail guard.—(I) The prison or jail guard will be under the immediate orders of the Superintendent of the Prison or Jail in all matters which affect the specific duty for which they are detailed. In all matters of discipline, however, the guard will be under the orders of its commander.

(2) The guard shall resist by force all attempts made to break into or out of any part of the prison and shall aid in the suppression of all violence or opposition to authority on the part of the prisoners. It shall also guard prisoners taken out of their cells for bathing and exercise every morning and evening.

(3) The guard shall not take any part in the daily discipline of the prison or assist in searching the prisoners or in counting them. It is to be kept as much as possible from being brought into close contact with the prisoners.

(4) The guard commander or Constables of the guard shall not hold any communication with a prisoner either by words or by signs. They are strictly prohibited from bringing anything of whatsoever description from the outside of the prison or sub-jail to any prisoner, and from receiving anything from a prisoner to be conveyed outside the prison or sub-jail.

(5) The guard shall observe and obey such rules as might have been made for its guidance by the Superintendent of the Prison or Jail concerned under Rule 419.

419. Subsidiary Rules for guidance of prison or Jail guard.-(I) The Superintendent of each prison or jail shall, in consultation with the Superintendent of Police, draw up subsidiary rules for the guidance of the guard to meet local requirements-

- (a) indicating the sanctioned strength of the jailor prison guard;
- (b) regulating its distribution the number and position of the sentries and their beats;
- (c) defining the position to be taken up by the guard, its distribution and duties on the alarm sounding by day, and the position to be taken up by the guard and its distribution and duties on the alarm sounding by night; and
- (d) determining some alarm signal.

The rules so drawn up will be subject to the approval of the Inspector-General of Prisons and the Inspector-General of Police. They shall, when so approved, be translated into the regional language, signed by the Superintendent of the Prison or Jail and the Superintendent of Police and be hung up alongside the general rules for prison or jail guards in the guard-room of the particular prison or jail to which they apply.

(G. R., J. D., No. 4914, dated 30th July 1901)

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(2) In determining the number and position of sentries under Sub-Rule (I), the Superintendent of Prison or Jail will consult the Superintendent of Police, and care shall be taken to see that except when absolutely necessary for special and urgent reasons, an armed sentry is not cut off from the support of his guard by doors etc.

420. Duties of a prison or jail guard in the event of a break-out or disturbance.-In the event of any attempt to break out of the jailor prison or any other disturbance occurring, the guard shall immediately fall in, load and act in accordance with the special rules, if any, framed under Rule 419 and the guard commander shall at once do his best to communicate with the jailor and his own superior officer. If, however, the prisoners should assault the prison officers, or attempt to break out of any particular ward or yard, and if the guard commander should consider that it would be dangerous to delay until the arrival of the superior prison officials, he shall rescue the prison officers and prevent the prisoners from breaking out. The guard commander shall give notice to the prisoners in a loud tone of voice that if they do not immediately surrender, they will be fired upon. This warning shall (if circumstances admit of delay) be repeated twice, and if there appears no other means of quelling the disturbance, the guard commander shall direct his men to open fire upon the refractory prisoners, but he shall be careful to cease firing as soon as the prisoners fly or surrender. On the arrival of the Superintendent of the Prison or a superior officer of Police, the guard shall act under his orders.

(G. R., J. D., No. 4914, dated 30th July 1901)

421. Duties of the commander of a prison or jail guard.-(1) The guard commander shall make his reports to and receive instructions from the Superintendent of the Prison or Jail.

(2) The guard commander shall make a round of the sentries twice during the night, and send a junior officer to visit each sentry between reliefs. He shall send an officer twice, also at separate intervals, during the night round the posts.

422. Duties of a sentry of a prison or jail guard.-(1) If detailed to guard undertrial prisoners, the sentry shall day and night march up and down in front of the cells and watch such prisoners confined therein.

(2) The sentry shall hold no communication whatever with any prisoner, but shall apprise any member of the prison establishment present in the event of any prisoner making a signal that he requires to see a member of the establishment.

(3) Should any prisoner attempt to escape, the sentry shall at once raise the alarm, and acquaint the guard commander. He shall at the same time take all necessary steps to prevent the prisoner's escape.

(4) Sentries shall enforce firmly the orders given to them without any distinction of persons.

(5) It is the duty of the sentry to protect, as far as may be in his power, the stores and property belonging to Government, although not actually delivered to his charge.

SECTION V. - QUARTER GUARD

423. Application of general rules.—Rules 391 to 407 in this Chapter with respect to guards generally apply, so far as may be to quarter guards also.

424. Strength of quarter guard.—The strength of the quarter guard at Head-quarters shall be one Head Constable and three Constables. The guard shall supply one sentry.

425. Sentry's beat.—The beat of the sentry shall be in front of his quarter guard and store room, and he will day and night, march up and down on his beat and keep a watch on the store room, magazine and other property committed to his charge.

(G. R., J. D., No. 7500, dated 21st November 1901 and I. G. 's No. 100, dated 26th July 1926 and No. 131, dated 16th September 1926.)

426. Charge keys to be kept at the quarter guard.—(1) In every quarter guard there should be provided a small case in which to keep the charge keys of the magazine, store rooms, office or any other place which is locked. All keys should be labelled.

(I. G. 's No. 26, dated 29th June 1936)

(2) (a) This case for charge keys should be itself locked and the key kept by the Head Constable in charge of the quarter guard.

(b) If there are any duplicate keys they should be labelled and kept in the safe in the Superintendent's office. It is not advisable to have duplicate keys kept by different officers.

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427. Duties of commander of quarter guard.—(1) The guard commander shall report at 8 a.m. and 6 p.m. daily to the Headquarter Inspector or Sub-inspector that all fastenings and seals are secure and not tampered with.

(2) He shall at once report to the Head Quarter Inspector or Sub-Inspector any irregularity or defect he may notice.

(3) He shall not allow anyone to unlock the store-room without the permission of the Inspector or Sub-Inspector.

(4) He shall at once report to the Inspector or Sub-Inspector the delivery and receipt of the treasury chest to and from the office.

SECTION VI-MISCELLANEOUS GUARDS

428. Guard of honors.—(1) (a) If a Police guard is required for the President and the Prime Minister of India or a Governor it should be furnished and should consist ordinarily of a hundred rank and-file armed Police (including a suitable proportion of Head Constables) or as many as are available up to that number, commanded as a rule, by the Headquarter Inspector or Sub-Inspector, as the case may be. If for any reason the Headquarter Inspector or Sub-Inspector is not available, another competent Inspector or Sub-Inspector should be chosen instead.

(b) A band should, if possible, be supplied with the guard.

(c) Until such time as new bugle calls corresponding to the National and the General salute are evolved and prescribed by the Central Government, the old bugle call known as the 'Royal Salute' may be played for the President of India and visiting Heads of States and Governors all of whom are entitled to the National Salute on the band. The old Governor's salute or the General Salute should not be played for these dignitaries,

(I. G.'s No. C/4809, dated 15th March 1953)

(2) (a) (i) Complimentary guards should be provided at the arrival and departure of a Minister or a Deputy Minister of the Government of India, the Chief Justice of the High Court of Gujarat, a Judge of the High Court of Gujarat, the Chief Secretary to the Government of Gujarat and the Inspector-General of Police, when visiting the Head-quarters of a district on tour, provided the

arrival and departure take place between sunrise and sunset irrespective of whether it is a Sunday or any other day of the week.

(G. Rs., H. D., No. 7866, dated 11th February 1937 and P. & S.D. No. 6541/34, dated 28th June 1943, and I. G.'s No. 2350-IV, dated 30th May 1946.)

(ii) The practice of presenting a Guard of Honour to the Chief Minister /Ministers Deputy Ministers of the State when visiting a District Town has been discontinued.

(G. L., H. D.. No. SB. I/SSA/1672/2552, dated 6th April. 1972)

(iii) The Guard of Honour need not be drawn up either on arrival or departure of the Inspector-General of Police unless the Inspector-General of Police specifically asks for it.

(I. G. 's No. F/66, dated 8th October 1963 and No. E/329-1039, dated 5th September 1972.)

(b) The guard will ordinarily consist of 20 rank-and-file armed Police under the command of an armed Police Jamadar. If this strength is not available from the Head Quarters force as many men as are available shall be detailed for this duty.

(c) Timely intimation should invariably be given to the Superintendent of Police concerned regarding the time and the place at which the guard is required.

(d) The Railway Police will provide a guard of honour, if and when required.

(3) For the lay out of the guard of honour, colours, salute and inspection please s Chapter XV of the Manual of Police Drill.

(4) Except as provided in Sub-Rules (1) and (2), no guard of honour shall be given for anyone, nor shall the band be sent with guard of honour, unless authorized by Government or permitted by the Inspector-General of Police.

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429. Protection of Ministers by Railway Police.-(1) The Railway Police will arrange for the protection of the Ministers of the Government of India on their arrival at and at their departure from. Ahmedabad Railway Station They will also arrange to afford the necessary protection if a Minister decides to stay in his saloon on the railway premises.

(G.R., P. and S. D.. No. 6541/34, dated 24th June 1949.)

(2) On receipt of information that a Minister of any other State Government is to visit this State officially the Inspector-General of Police will send intimation to the Superintendent of the Railway Police in whose jurisdiction the Minister is due to travel.

On receipt of such intimation the Superintendent of Police will inform all Police Stations and Outposts on the line. At the stations where the Minister may alight or change trains (as at a junction) a Head Constable should be posted on special duty to ensure the personal safety and convenience of the Minister. No persons should be permitted to approach with petitions or to cause any annoyance.

(I. G. 's No. 12, dated 1st April 1936)

(3) For Guards of Honour to distinguished foreigners and protection of the persons of distinguished foreigners and Commonwealth nationals while visiting or passing through India refer to Circulars issued by the Government of India (Ministry of Home Affairs). No. 2/38/57-Pub-II, dated 15th July 1958 and No. 28/13/49-Police-I dated 25th October 1949 respectively.

430. Guarding of Offices at Night.-(I) Instructions for the guarding of Police Station offices at places where there is no treasury armed guard will be found in Rule 432.

(2) Where there is a standing Police guard on duty in a Government building. There is no objection to the guard receiving charge of the keys of the various offices located in the building. A key board should be kept at the guard room and on this board should be hung the keys of the offices after they have been closed for the night. Over each nail and the dice attached to the key the name of the office to which the key belongs should be painted in plain letters in Gujarati/Hindi so that in

cases of emergency, there will be no loss of time in the guard finding the key of any room which it may be necessary to open.

(I. G. 's No. 2338-B, dated 25th February 1919)

431. Formation of 'Tactical' Guards.-(1) The Police guards mounted in emergencies such as guards on Government godowns, large industrial concerns, etc., should be 'tactical' guards instead of 'ceremonial' guards, to enable the Policemen to ward off possible attacks from law-breakers and save themselves from any bodily harms.

(2) The only difference between a 'tactical guard and a 'ceremonial' guard is that a t former does not turn out in the same way as the latter. The "guard, turn out" order is to be substituted by "guard, stand to." order. For this purpose different places are to be marked out before hand and the 'tactical guard is to be arranged in such a way that each sentry gets a maximum view of the enemy and makes the maximum use of his weapons with minimum danger to himself.

(3) The 'tactical' guards should be mounted in an emergency and the question as to when they should be so mounted should be left to the discretion of the Superintendents of Police.

(I. G. 's C. M., No. 7511, dated 9th January 1954)

432. Special guarding of Police Stations.- The following rules will be followed in regard to the guarding of Police Station offices at places where there is no armed Treasury Guard: -

(1) All important documents, muddemal and other valuable Government articles, including cash belonging to the Police Station should be kept in a heavy and strong wooden box provided with a strong and safe lock, and the box should be kept in the strongest room of the office building.

(2) Two off-duty Constables armed or unarmed, should be detailed for duty over the office. One Constable should be present from 6 to 8-30 a.m. and again from 6 to 8 pm. The other should be on duty from 8-30 to 11 a.m. and again from 8 to 10 p.m. Both Constable should be on duty over the office from 10 p.m. to 6 a.m. each doing sentry-go in turn. The officer-in-charge of the Police Station and his office staff are expected to be doing office work in the office between the hours of 11 a.m. and 6 p.m.

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(3) The Constables on duty should be posted in the verandah if there is one in front of the office building the Constable on sentry should frequently go round the building to see that all is well.

(4) The Constables should be changed as found convenient looking to the staff available.

(5) When on duty the Constables should be armed with lathes and provided with whistles; on night duty they should have in addition a lamp if the Police station is not altogether or sufficiently electrified.

(6) After 6 p.m. the keys of the strong box and office building should remain in the custody of the Police Station Officer.

(7) Head Constables on rounds should invariably visit the office and see that the sentry on duty is on the alert. A book should be kept at the office, in which patrolling Head Constables should sign their names, stating the hour of visit and whether the sentry is on the alert or not.

(8) The officer-in-charge of the Police Station should also frequently pay surprise night visits to the office and sign the book.

(I. G. 's No. 43, dated 22nd April 1926)

433. Courtesies to be shown and Police arrangements to be made when the Ministers of the Government of India pay official visits to the State of Gujarat.-(1) *Visits to places other than Gandhinagar / Ahmedabad city.*-(i) (a) When the Minister or the Deputy Minister of the Government of India visits the headquarters of a district, or any other place in the district either the Collector of the district or his nominee or a Gazetted Officer present at the station should meet the Minister or the Deputy Minister on arrival and see him off at the time of departure; The Superintendent of Police or a police officer deputed by him should also be present at the time of arrival and departure of the Minister or the Deputy Minister.

(b) It is not necessary to make arrangements mentioned in (i) (a) above if the Minister or the Deputy Minister arrives or departs by night air service or makes a transit halt. If however, the Minister or the Deputy Minister wishes to be met by an officer of the State Government when he travels by night air service or in transit or desires any facilities such as transport to be provided, arrangements may be made by the Collector or a Gazetted Officer concerned accordingly, if the arrangements are specially indicated in the tour programme.

(c) If any other officer is required to be present for some particular purpose connected With the visit of the Minister or Deputy Minister, the necessary intimation will be given by the Minister or the Deputy Minister to the Collector concerned.

(ii) It should be the duty of the Collector or of the Gazetted Officer deputed by him to see that suitable accommodation is provided at the places to be visited by the Minister, and that suitable arrangements are made for supplies, transport and other reasonable requirements if the Minister intimates that such facilities are required.

(iii) Gazetted Officers of the State Government present in the place unless visited by the Minister are not required to call on him or attend any function held during his stay at that place, unless they are specially concerned with the object of his visit or the purpose of the function.

(iv) (a) As regards Police arrangements in the District, Police escorts should be provided to the Ministers of the Government of India according to the prescribed scale, The Superintendents of Police are, however, authorized to make protective arrangements according to the circumstances prevailing at the places of visit.

(b) The arrangements are to be observed in the case of journeys performed by the Ministers by rail or road as well as by air.

(v) The Superintendents of Police are responsible for the security arrangements in connection With the visits of the Ministers of the Government India. If for any unavoidable reason they are away at the time of visits of the Ministers the senior Deputy Superintendents of Police should make an arrangements.

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(2) *Visits to Gandhinagar / Ahmedabad city.*-(i) When the Minister or the Deputy Minister of the Government of India visits Gandhinagar / Ahmedabad city he should be met on arrival by the Collector of Gandhinagar j Ahmedabad or any Gazetted Officer or by Com- 8.issioner 01 Police or a Police Officer as the Chief Secretary may direct.

(ii) Gazetted officers of the State Government present in Gandhinagar / Ahmedabad city at the time of the visit of the Minister are not required to call on him or attend any function held during his stay unless they are specially concerned with the object of the fish or the purpose of the function.

(iii) the Railway Police Will arrange for protection of the Minister on his arrival at, and at the time of his departure from the Railway Station. They will also arrange to afford the necessary protection it the Minister decides to stay in his saloon on the railway premises. If for any special reasons additional protection is necessary for the Minister when staying or passing through Gandhinagar / Ahmedabad. the Superintendent of Police / Commissioner of Police should make necessary arrangements for providing such protection in the shape of plain clothes officers and men on a scale to be determined by the circumstances prevailing it the time.

(iv) When the Ministers travel by air the Commissioner of Police should see that necessary Police protection is provided to them at the airfield at the time of their arrival and departure.

(v) Two uniformed unarmed constables should be placed on guard at the Minister's residence (when outside the railway premises) unless the Minister intimates that such guard is not required.

(3) These orders should also be made applicable to the Ministers of State/Deputy Minister of the Government of India during their official visits to the State.

(4) On the occasion of official visits to the State, the Speaker of the Lok Sabha and the Deputy Speaker of the Lok Sabha/Deputy Chairman of the Rajya Sabha should be accorded the same courtesies as are shown to a Minister of the Central Government.

(5) The security arrangements should be made even when the visits of the Union Ministers are personal or private; and irrespective of whether Police guards are specially asked for or not.

(6) Separate instructions exist for arrangements to be made during the visit of the President, Vice-President and Prime Minister of India.

(G. L., H. D., No BPM-1074-27-C, dated 18th April 1974)

434. Arrangement in the District for tours of the Ministers of the Government of Gujarat.-(1) Ordinarily the first visit of a Minister to any place should be treated as a public arrival and departure, unless the Minister concerned expressly directs otherwise. A second or subsequent visit to the same District will be private, unless for special reasons the Minister directs otherwise. Ordinarily it will be sufficient if there is one formal reception of a Minister once in a year in a district. On a second or subsequent visit of the Minister to the same district in the year, the meeting between him and the Collector or other officers of the district should be confined only to those occasions when the Minister wishes particularly to call the officer for discussion of specified matters.

(G. R., P. and S. D., No. 2799-E, dated 23rd November 1949)

(2) *Public arrivals and departure.*-(i) When a Minister visits the head-quarters of a district on an official tour, he should be met on arrival by the Collector and the Superintendent of Police and by the local senior Gazetted Officer of each department in the port folio of the Minister. However, if the Collector or the Superintendent of Police is on tour or is engaged in any special investigations, he should ask the most senior Gazetted Officer of his department at the head-quarters to deputies for him, unless his presence has been specifically requested by the Minister before hand. In the absence of any specific orders from the Minister, it should be presumed that the officers need not return to the head-quarters if they are on tour,

(ii) When the programme of a Minister has been officially communicated to the District - Officers, the officials concerned should meet the Minister on arrival and also be present to see him off. They should also be present when the Minister attends any public function or receives any address or a deputation as a Minister. As regards non-official functions. The officials are at liberty to attend such functions or not as they please.

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(iii) The Commissioner of Police, and the District Magistrate should take suitable but unobstructive steps to ensure that official proceedings at public receptions of the Minister are orderly and that political demonstrations are kept under control without taking any drastic steps like an arrest or a charge.

(iv) The practice of presenting a guard of Honour to the Chief Minister /Ministers/ Deputy Ministers of the State when visiting a district town has been discontinued.

(G. L., H. D., No. SB-I/SSA-1672/2552, dated 6th April 1972)

(v) A personal escort of one Sub-Inspector. one Head Constable and one Constable during day, and one -Head Constable and two Constables at night for the Chief Minister, and 1 Head

Constable during day and one Constable, armed with lathe, during night for the Ministers shall be provided during their visit.

(G. L., H. D., No. SB-I/SSA-1672/2592, dated 14th September 1972)

(vi) At places other than district head-quarters, the Minister should be met on arrival by the Collector or by a senior Gazetted Officer deputed by the Collector. Clause (ii) above will also apply in such cases. Halts by a Minister at a Railway Station expressly for the purpose of changing trains, should not be treated as "arrivals" within the meaning of this rule. The necessary Police bandobast for the transfer of the Minister's luggage should, however be made according to official standing orders of the authorities of the district.

(G. L., P. and S. D., No. 2799-E, dated 16th March 1951)

(vii) It should be the duty of the Collector or of a Gazetted Officer deputed by him to see that suitable accommodation is provided at each camp, and that suitable arrangements are made for supplies, carriage of luggage, transport and other reasonable requirements and facilities. If the Minister alights at a wayside railway station during the night, the officer in-charge of the arrangements should see that adequate lighting arrangements are made if these do not exist at the station and that porters are provided to carry his luggage.

(viii) Gazetted Officers present in the station will, as a matter of courtesy, be expected to call on the Minister.

(3) *Private arrival and departure.*- (1) The formalities laid down in Sub-Rule (2) should be followed, subject to clauses (ii) to (iv) below, by District Officers, but nothing in them shall be held to limit the discretion of a Minister to dispense with any or all of them in any circumstances in which he may consider that course desirable as for example, if he is travelling by motor car and the hour of his arrival at a station is uncertain or if he proposes to arrive by train at an inconvenient hour, late at night or in the very early morning or when his intended stay at a station is very short. In such cases the Minister may arrange to communicate his wishes to the Collector and to any other officer specially concerned as soon as it may be convenient.

(ii) The meeting between the Minister and the Collector or other officers of the district should be confined only to those occasions when the Minister wishes particularly to call the officer for discussion of specified matters.

(iii) Normally a Minister should be met by the Collector and the Superintendent of Police, unless the Minister intimates that on account of circumstances such as those exemplified in clause (i) above he does not wish for any formal welcome or for only the Heads of Departments in his portfolio to be present.

(iv) Gazetted officers present in the Station need not call on the Minister as a matter of courtesy, unless the Minister so intimates, and only the Collector and Gazetted Officers of the Minister's Department are expected to call.

(4) In the majority of cases when the Collector or other District Officer is on tour, the advantage to be derived from a personal meeting at which he could give information on local matters to the Minister and receive advice from him would greatly exceed the inconvenience caused by an interruption of his tour. Circumstances may arise, however, which it would be contrary to the public interest that the work an officer should interrupted, as for example, when he is touring in a distant and inaccessible part of a district, or is engaged on special investigations in which it would be contrary to the public interest that his work should be interrupted. It is not the intention of Government public work which the officer may be performing at the time should be interfered with unnecessarily but if any Minister wishes to discuss with the officer matters of general public interest and desires that during his visit (even if it is "private") to the district, the officer concerned should see him and the instructions should be complied with.

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(5) The Private Secretary to the Chief Minister and the Personal Assistants and Personal Secretary to the Ministers will ensure that advance notice as possible, i.e. least for one week is given to the officers concerned of the intended visit of the Chief Minister or a Minister respectively to a district, and that if it becomes necessary, the notice is given by telegram. Whenever tours of the Chief Minister and the Ministers involve journeys by trains, copies of the tour programmes should be supplied sufficiently in advance to the Superintendents of Police Railways.

(6) The above orders also apply to the tours of Deputy Ministers, the Speaker. Legislative Assembly of the Government of Gujarat.

(G. Rs., P. and S. D., No. 2799-E, dated 21st June 1952 and 22nd January 1953)

435. Courtesies to be shown and Police arrangements to be made in connection with official visits of the Ministers of other State Governments to the State of Gujarat.-

(1) Visit to places other than Gandhinagar / Ahmedabad city.- (i) (a) When a Minister of other State Government visits the headquarters of a district or any other place in the district, either the Collector of the district or his nominee or a Gazetted officer present at the station should meet the Minister on arrival and see him off at the time of departure. The Superintendent of Police, or a Police officer deputed by him should also be present at the time of arrival and departure of the Minister.

(b) It is not necessary to make arrangements mentioned in (i) (a) above if the Minister arrives or departs by night air service or makes a transit halt. If, however, the Minister wishes to be met by an officer of the State Government when he travels by night air service or in transit or desires any facilities, such as transport to be provided, arrangements may be made by the Collector or a Gazetted Officer concerned accordingly, if the arrangements are specially indicated in the tour programme.

(ii) The Collector of the district or a Gazetted Officer deputed by him should see that suitable accommodation is provided at the places to be visited by the Minister, and that suitable arrangements are made, for supplies, transport and other reasonable requirements, if the Minister intimates that such facilities are required.

(iii) As regards Police arrangements in the districts, the Police escorts etc. prescribed for the Ministers should be allowed to the Ministers of other State Governments. The Superintendents of Police are, however, authorized to vary the scale according to circumstances prevailing at the places of visits.

These arrangements are to be observed in the case of journeys performed by the Ministers by rail or road as well as by air.

(iv) The Superintendents of Police are responsible for the security arrangements in connection with visits of the Ministers of other State Governments to the districts. If for any reason they are away at the time of the visits of the Minister, the senior Deputy Superintendent of Police should make all arrangements. Police protection at the residence of the Minister should also be provided, if especially asked for.

(2) Visits to Gandhinagar / Ahmedabad city.- (i) When a Minister of other State Government visits Gandhinagar / Ahmedabad he should be met on arrival by the Collector of Gandhinagar / Ahmedabad or any Gazetted Officer as directed by the Chief Secretary and escorted to the hotel or place at which he is to stay.

(ii) A Police Officer (deputed by the Commissioner of Police) should also be present and afford necessary Police protection with escort (if desired) at the time of arrival of the Minister of other State Government. The Police escort should as far as possible be unostentatious. The Commissioner of Police should also arrange for Police protection at the residence of the Minister, if specially asked for.

(iii) The same arrangements as indicated at (i) and (ii) above should be made at the time of the departure of a Minister of other State Government

(iv) The Chief Secretary to Government will arrange through the Government Transport Service to provide the necessary transport facilities, if asked for from the station or aerodrome up to residence and vice versa at the time of arrival and departure respectively of a Minister of another State Government.

(v) Accommodation, if not already arranged, will also be provided on request to the Minister by the Chief Secretary to Government.

(3) The above orders are generally applicable to the official visits of the Ministers of State & Deputy Ministers of other State Governments to the State of Gujarat.

(G. L., H. D., No. BPM-1074-36-C, dated 14th June 1974.)

436. Tours of Parliamentary Secretaries.-(1) A Parliamentary Secretary ordinarily tours officially as representing the Minister-in-charge and is, therefore, entitled to all reasonable facilities and assistance in carrying out his work, from District officers. A Parliamentary Secretary has been given authority to invite to meet him such officers of the district as are connected with his Department and are required for personal discussion relating to matters falling within the department in which he is working and in connection with which he is on tour. No orders have been given to officers to call on a Parliamentary Secretary as a matter of course or to accompany him on his tour, unless invited to do so; and this should, not be expected.

(2) It follows that Parliamentary Secretaries should not invite the Collector or the District Head of his Department to arrange a general programme in consultation with the local public workers. More definite instructions in regard to his tour are ordinarily desirable and the District Officers should not be called upon to attend or assist in such part of the tour as is not official duty.

(G. C., P. and S. D., No. 2688/34-A, dated 23rd November 1938 and G. E., P. and S. D., No. 2688/34-A, dated 17th August 1939)

437. Provision of guards at the residence of District Magistrate.-Normally, provision of any guards at the residences of the District Magistrates is not necessary. If, however, there are any special circumstances in which breach of peace is feared and need of a guard is justifiable, the Superintendent of Police concerned should comply with the requirements of the District Magistrate from within the sanctioned strength of the District. When there is a difference of opinion as to whether necessity for a guard exists or not, the case should be referred to the Government through the Inspector-General of Police for a decision.

(G. L., H. D., No. GRD/3603-VI, dated 14th July 1958)

SECTION VII.-ESCORT OF PRISONERS AND TREASURY

438. General Instructions for escort of Prisoners and Treasure.-(1) The quantity of ammunition to be issued to parties escorting prisoners and treasure or in the pursuit of criminals shall be left to the discretion of the Superintendent of Police, subject to the proviso that such quantity be not less than ten rounds per man.

(G. R., J. D., No. 4001, dated 9th June 1900)

(2) When more than the ten rounds contained in the pouch are required, the extra bundle or bundles may be carried inside the coat, and will be kept up by the belt.

(G. R., J. D., No. 6596, dated 28th September 1900 and I. G. 's No. 11953, dated 10th October, 1900.)

(3) Policemen when going armed on duties other than orderly duty should not go singly in any local area infested with gangs of armed outlaws.

(G. R., J. D., No. 1594, dated 11th March 1901)

(4) An escort party proceeding to or returning from any duty shall return together as they went, and shall not linger one behind the other on the road. Should anyone of the party meet with an accident, or become ill and unable to march with the rest, the escort commander shall arrange to bring for him a conveyance or send him to the nearest hospital. No officer shall be allowed to absent himself from duty with his party.

(G. R., H. D., No. 1828, dated 19th May 1922)

(5) All escorts visiting stations outside their own districts should march in proper formation under the direct control of the escort commander. Cases of slovenliness or breaches of this Sub-Rule that come to the notice of local officers should invariably be reported, so that the Superintendent of Police concerned may deal suitably with the Head Constable responsible. .

(I. G. 's No. 104, dated 2nd August 1926)

(6) (a) An escort with prisoners or treasure shall not travel by night except when absolutely necessary.

(b) Dispatching stations should see that prisoners are dispatched so as to arrive the jail before it closes for the night. At places where there is likely to be any difficulty about finding the way to the jail, a guide should be provided by the Railway or District Police concerned.

(I.G. 's No. 16, dated 21st June 1941)

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(7) It is the duty of the Police to secure the detention of a person in their custody, although such person may be suffering from an infectious disease. However, it is essential to minimize the danger to policemen against their contacting any disease by taking the usual simple precautions by way of vaccination in the case of small-pox, and inoculation in the case of most other diseases. In dealing with such cases the following procedure will be followed, and it will be the personal responsibility of the officer-in-charge of the Police Station concerned or officer-in-charge of Armed Police, as the case may be, to see that these instructions are carried out scrupulously:-

(i) when an escort is required for a person suffering from an infectious disease, the officer providing the escort will be given full details of the disease and whether the person is badly infected with it;

(ii) the officer providing the escort will then obtain the services of a Municipal Ambulance for conveying the person to the Infectious Diseases Hospital or to any other destination;

(iii) as far as possible only unmarried men should be sent on such escorts;

(iv) in a case of small-pox only those constables who have recently been vaccinated will be deputed for the escort. In other diseases, constables who have been inoculated against that particular disease should be deputed. Where there are no constables so inoculated, arrangements should at once be made with the Police Surgeon or the Sub- Assistant Surgeon in mofussil, for the men to be inoculated immediately they return from this duty. They should be given 36 hours off duty after inoculation;

(v) on return from duty, the constables should hand in their uniforms which should be sent at once for fumigation. The constables should then be advised to have a bath before mixing with the other constabulary.

SECTION VIII.-ESCORT OF PRISONERS

439. Composition and Arms of escort of Prisoners.-(1) On escort duty with prisoners, the Head constable, or Head constables (if there be more than one) in the escort shall not carry any arms. Of the constables forming the escort, not more than one half - shall carry arms. In a party of one Head constable and three Constables, one Constable only should have a firearm; in a party of one Head Constable and six Constables, three Constables should have firearms. No Head constable or Constable should carry any side-arms on such escort duty. Instead of side-arms, batons may be provided, if necessary. Each constable armed with a firearm shall carry ten rounds of ball ammunition in his pouch.

(2) In such parties the Head Constable will arrange that there is only one armed Constable who shall walk in front of the party. When there are several armed Constables there shall be one in front and the others divided on either side of the prisoners. It will be the duty of the Head Constable in charge to keep in his possession all warrants or correspondence relative to the prisoners. It will be the duty of the Constables without arms to hold the prisoners' ropes or chains to prevent their escape.

(3) The above Sub-Rules regarding arms to be carried by escort parties apply when normal conditions exist. When disturbances occur or are apprehended, the proportion of arms carried shall be increased at the discretion of the officer dispatching the escort party, and in such times the amount and nature of the ammunition carried may also be varied by the same authority. Escort parties required to halt at night at places in which no secure lock-up exists should be provided with sufficient arms to ensure their safety from attack and to permit them to mount the necessary sentries as prescribed by Rule 441(5).

449. Strength of Escort of Prisoners.-(1) Escort of prisoners shall be provided at the following scale:

1	Prisoner		2	Constables
2-3	Prisoner	.. 1 Head Constable	2	"
4-5	"	.. "	3	"
6-7	"	.. "	4	"
8-9	"	.. "	5	"

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12-13	Prisoner	.. 1 Head Constable	7	Constables
14-15	"	.. 2 Head Constable	7	"
16-17	"	.. "	8	"
18-19	"	.. "	9	"
20-24	"	.. 3 Head Constable	10	"
25-28	"	.. "	11	"
29-32	"	.. "	12	"
33-36	"	.. "	14	"
37-40	"	.. "	15	"
41-45	"	.. "	16	"
46-49	"	.. "	18	"
50	"	.. 4 Head Constable	20	"

For every two additional prisoners one more Constable should be added. For every ten additional prisoners one more Head Constable should be added. Should special circumstances render the precaution of having a stronger escort desirable, the dispatching officer shall use his own discretion in the matter, reporting at once to the Superintendent of Police what steps he has taken. If an escort party is required to halt for the night at a place at which no secure lock-up exists, the strength of the escort shown above should be increased sufficiently to allow of the additional precautions required by Sub-Rule (5) of Rule 441 being taken.

(2) When prisoners are to be escorted in Police buses, the strength of the escort need not conform with the scale laid down in Sub-Rule (1) above, unless the prisoners are to be marched any distance either to or from the bus in which case the full escort must be provided,

(3) The strength of the Police escort accompanying parties of prisoners on transfer is a matter for the Police authorities to decide. The following information must always be supplied beforehand to the Police by the Superintendent of the transferring prison or jail regarding any specially dangerous or long-term prisoners who are included in the party:-

(a) All prisoners sentenced under Section 224, Indian Penal Code, and all who are known to have escaped or attempted to escape at any time should have a remark to that effect entered against their names, when such prisoners are among a party of prisoners due for transfer. I

(b) Prisoners whose conduct in jail is bad or who have been adjudged dangerous from the jail standard should be so notified.

(c) Prisoners forming members of a gang and transferred as a gang should be specially notified.

(d) All prisoners with sentences of five years and upwards should be notified

(G. R., H. D., No. 1333/3, dated 14th April 1934)

(4) With a view to economies the services of Policemen employed in escorting sentenced prisoners from the talukas to the district jails, arrangements shall be made for the different j Police Stations fixing one day in the week on which to take prisoners going to the district jail to the next relieving Police Station, so that time may not be lost in unnecessary marching and the men may have more time to devote to their other important duties. On the same principle, a Police escort proceeding to a district or central prison with prisoners should on its return journey take charge of any prisoner whose transfer to the subordinate jail of its own district has been sanctioned by the Inspector-General of Prisons.

(I. G, 's No, 12525, dated 14th December 1899)

441. Precautions to be taken by an escort of prisoners against escape.-(1) When a regular prison van is used, it shall be the duty of the driver to ensure that the compartments in which prisoners are to be confined are secured and that the locks on the doors are in working order.

(2) The escort accompanying prisoners conveyed by Police bus or prison van may unfix bayonets before embusing; but they shall always fix bayonets when superintending prisoners entering or leaving the bus or van.

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(3) The Police bus or van shall be brought as close as possible to the point at which prisoners are to be taken out from their place of confinement. For this purpose, the driver shall comply to the best of his ability with the instructions of the escort commander, regardless of rank.

(4) If prisoners are escorted in a public bus, the escort will so dispose itself as always to be between the prisoners and any door and between the prisoners and any member of the public.

(5) When parties escorting prisoners by road are required to halt for the night en route, halting places shall be selected, if possible, where lock-ups or secure chowkies are available. At such places during the night, one sentry shall mount guard over the prisoner or prisoners and shall be relieved every two hours. When a halt has to be made at a place where no such secure building is available, the escort commander shall, as far as possible, place double sentries to be changed every two hours, and shall make such further arrangements as he may consider advisable, to prevent the escape of the prisoner or prisoners in his custody.

(6) Where escort of prisoners involves journey by train, with a view to enabling the escorting parties to secure adequate accommodation in the train, the Police Officer, who furnishes the first escort should contact the Police Station Officer of the Railway Stations from which prisoners are to entrain and arrange a suitable railway compartment for the journey and the officer at the terminal station for suitable transport. If necessary he may send telegrams to the Police Station Officer of the Railway Stations concerned. In addition, the Railway Police Station should receive such prisoners who are being escorted, for temporary custody in their lock-ups. Such assistance will give the escort party time for their daily ablutions and to tidy themselves up for further duty. A list of Railway Police Stations where such lock-ups are available will be found in Appendix XXX. For purposes of economy, the party, including escort, shall be made up to ten, or as little below it as possible whenever such a course is practicable or whenever a little delay in obtaining a few prisoners would make up the requisite number is unobjectionable.

(I. G. 's C. M., No. M/4719-IV, dated 30th January 1959.)

(7) Prisoners shall be dispatched by ordinary trains and not by mail trains, provided that if a batch of transportation convicts travelling by ordinary trains cannot reach their destination either without a lengthened detention en route or between 4 a.m. and 4 p.m. mail trains may be used for their conveyance, but only if such trains either have no lengthened detention en route or reach their destination at a more convenient hour. .

442. Handcuffing of prisoners.-(1) (a) The handcuffing of prisoners is a matter which shall be left to the discretion of the senior responsible Police officers concerned, as much depends on the character, disposition and behavior of the prisoner or prisoners, and not necessarily on the type of alleged crime in which he or they are involved. The hand cuffs should normally be used by the Police only where the prisoner is violent disorderly, obstructive or is likely to attempt to escape or to commit suicide. These instructions should also apply in respect of use of the handcuffs in effecting the arrest of persons charged with an offence. In cases such as of feeble old men, women or children, the use of handcuffs may normally be dispensed with. In case of persons of social status, handcuffs should not generally be resorted to, and handcuffs may be used only when such persons are violent, or are likely to attempt to escape or to commit suicide. In cases of desperate characters, however, even greater precautions, such as tying the prisoner or prisoners with a rope in addition to handcuffing, may be necessary to prevent escape. The responsible officer in all cases shall thus use

his discretion taking every necessary precaution to prevent escape without inflicting unnecessary harshness or indignity on the prisoner.

[G. L., H. D., No. MIS-1065/35442-C, dated 28th August 1966 and I.G. P. 's "No. G/1909 (G/34/44), dated 14th July 1966.]

(b) Political prisoners should not be handcuffed if they are arrested during agitations of political nature. Those who are political agitators would be known to the local Police from the cause they are agitating for and their reputation in the local area as political agitators and there should not be any difficulty in identifying them and in not handcuffing etc. However if the agitators attack the Police and I or commit grave offence, there is no restriction on handcuffing them.

(I. G. P. 's Cir. No. 0/1909, dated 16th December 1971 and No. G/1927/72/14297, dated 21st April 1972.)

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(2) Touring Police officers particularly the Superintendents of Police should impart proper instructions to the junior officers regarding handcuffing during the course of their tours and otherwise on -appropriate occasions.

[G. L., G. A. D. (Home), No. MIS-1061-3674-L, dated 25th April 1961.]

(3) No prisoner (under-trial or convicted) shall be handcuffed by the Police while being taken from Jail to a court and vice versa or from one Jail to another unless a definite direction has been given in writing by the court or the senior Jailor directing that the prisoner be handcuffed or unless the Escort Commander has reason to believe that the prisoner is violent or is likely to attempt to escape or to commit suicide; provided further that if the necessity to handcuff arises inspite of the absence of such directions of the court or the Jailor as the case may be, a written report giving reasons for handcuffing shall be made by the Escort Commander to his superior officer within twenty-four hours of the occurrence.

(G. L., H. D., No. B. P. M. 1067/5194-C, dated 13th March 1968.)

(4) Police officers must without fail ask for and obtain orders in writing from the Judge, Magistrate or the jail officer in regard to the handcuffing of the prisoners committed to their charge before taking over prisoners from the Court or jail. Any neglect of these instructions must be dealt with most severely.

(G. C., H. D., No. IC-80, dated 12th November 1947.)

(5) In dealing with juvenile offenders. Police officers escorting them to and from Courts should appear in mufti without any arms. But in the event of a juvenile offender being troublesome and likely to abscond, the fact should be reported to the Court, so that sanction to secure the offender with a rope round his body may be obtained. Whenever big boys appear to be of the absconder type, .leather wrist straps may be used but nothing else.

[I. G. 's S. O. No. 42 (5132), dated 25th June 1952.]

(6) No prisoner convicted or undertrial shall be handcuffed to his bed under any circumstances, while under treatment in a civil hospital.

(7) Handcuffs shall not be imposed on any prisoner, convicted or undertrial, while under treatment in a Civil hospital, except where the prisoner is known to be refractory, violent or dangerous. In such cases, the handcuffs shall be frequently removed to give relief to the arms.

(8) Sick prisoners under treatment in a civil hospital or dispensary shall never be fettered, unless absolutely necessary for their safe custody and with the concurrence of the medical officer-in-charge.

(9) (a) Sub-Rules (7) and (8) do not apply to female prisoners who may under 110 circumstances be handcuffed or fettered.

(b) All female security prisoners shall be allowed to retain their glass bangles. If any female prisoner requests to be supplied with bangles at Government cost. Unbreakable bangles of suitable size not exceeding two for each hand shall be supplied to her and she shall be allowed to retain these bangles at the time of her release. Glass bangles should not be supplied or replaced at Government cost.

[G.O., H. D., No. SD-1042 (N)-II, dated 31st May 1952.]

(c) In no case fetters shall be imposed upon female prisoners, juvenile prisoners or civil prisoners, nor shall fetters be imposed on any convict when appearing before a Court under the Prisoners Attendance in Courts Act, 1955. If in any exceptional case a prisoner is so dangerous that it would be unsafe to produce him in Court without fetters the Police should make an application to the Court requesting permission to produce the prisoner in fetter. The fetters shall not be imposed on any prisoner in Hospital except with the approval of the Medical Officer. In no case should prisoners, who are aged and bed-ridden in Hospital be handcuffed or fettered. The Police should be more vigilant in guarding prisoners in Hospitals.

(G. C., H. D., No. COP, 2858/53236-1V, dated 27th June 1959)

(10) (a) In exercising the discretion vested in him, the Police Station Officer should issue clear instructions for the guidance of the escort party in every case, definitely stating whether the prisoner concerned in that case should be handcuffed or not. Such instruction should make it clear that the escort commander is nevertheless expected to use his own discretion and to take additional precautions, should the conduct of the prisoners or of

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persons sympathizing with them render such precautions advisable. When the Head Constable in command of an escort takes such additional precautions, he should invariably report the fact that he has done so to the Police Station Officer, stating his reasons for so doing.

(I. G. 's No. 10, dated 13th April 1931)

(b) (i) A security prisoner shall be handcuffed or bound while being escorted to or from the place of detention or Police lock-up if the Commissioner or the Superintendent so directs in writing.

(ii) Notwithstanding anything contained in sub-clause (i) above, a security prisoner may be handcuffed or bound by the officer-in-charge of the escort if he has reason to believe that the security prisoner will use violence or attempt to escape or that an attempt will be made to rescue him.

[G.O., H. D., (Poll)., No. SD-II/PDA-6653, dated 10th October 1953.]

(11) (a) In order that it may be known whether handcuffs are being properly used as required by rules, all Police Station Officers and all officers-in-charge of Police Head- Quarters will submit a return, by the 10th of each month, to the Superintendents of Police in form No. 26 in Appendix I. Even when a prisoner is handcuffed while being taken from jailor sub-jail to a Court or vice versa, his case should be shown in the monthly return, as the prisoner is in the custody of the Police during that period.

(G. L., H. D., No. LC. SO-D, dated 19th November 1947.)

(b) Superintendents of Police should carefully check the returns and take disciplinary action against any Police officer using handcuffs improperly.

(I. G. 's No.2, dated 15th February 1947)

443. Method of using handcuffs and ropes for securing prisoners.-In securing a prisoner under escort, the primary issue is that the Policemen in charge should remain alert. If there be negligence in this respect no amount or method of tying or handcuffing will prevent a prisoner's escape. For securing prisoners, the following methods should ordinarily be adopted:-

(a) If it be necessary to use handcuffs, the key holes of the handcuffs should be kept uppermost, as in this position it is not easy to open them by striking on some hard substance. Care should also be taken that the handcuffs are not too large; otherwise, the prisoner can slip his hand through them.

(b) Handcuffs frequently become defective by reason of the spring weakening. If handcuffs are kept locked when not in use the spring may weaken. They should, therefore, invariably be kept open. The keys of each pair of cuffs not in use should be tied to the cuffs. Keys are not interchangeable and as such the use of the wrong key tends to weaken the spring.

(c) (i) When there is only one prisoner, there is the simple device of attaching the handcuff to the prisoner's right hand and to a Constable's left. Both the prisoner and the constable can walk in comfort but the prisoner cannot escape.

(ii) It is sometimes advisable to handcuff a prisoner with his arms behind his back. The prisoner can walk quite comfortably but cannot run fast, at the same time he can- not strike the handcuffs on some hard substance to break them open. When travelling by train, a prisoner who is handcuffed behind cannot easily escape, as he finds it difficult to fall out and then pick himself up again.

(d) When there are two or more prisoners it is advisable to handcuff them by couples. While thus secured, they can walk in comfort, but if they attempt to escape, they are handicapped and cannot run fast.

(e) If the above precautions be taken regarding handcuffs, the use of a rope can often, but not always be avoided. If, however, it is necessary to rope a prisoner, the ends of the rope should be tied securely (but not too tightly) to each upper arm. In the middle of the rope there should be a loop through which the Constable can pass his hand and hold the rope. In the case of two prisoners, one end of the rope should be tied to the left upper arm of one prisoner and the other end to the right upper arm of the second prisoner. If the rope is used in addition to handcuffs it should be tied to the outer or free arm of each prisoner, in this way, with one hand handcuffed, it would be difficult for a prisoner to untie the rope.

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(f) If the prisoner be particularly dangerous or troublesome, it will rest with the officer arranging for the prisoner's escort to give specific orders to the Head Constable of the party as to the additional precautions necessary. It is the duty of the Police Station Officer to see that prisoners are properly secured.

(I. G. 's No.3, dated 20th January 1940 and No. 8, dated 12th March 1940)

444. Provision of conveyance for prisoners under escort.-(I) If a prisoner, convicted or undertrial, as the case may be, whether in Police or in Jail custody, is to be taken from the place of arrest to the Police Station or to such places as may be necessary for the purpose of investigation of an offence, or from a Court to a jailor vice versa, the following instructions in regard to the provision of a conveyance should be observed:-

(i) If the prisoner is willing to supply or pay for a conveyance for himself and his escort, this should ordinarily be permitted.

(ii) In the following cases prisoners should ordinarily be conveyed at Government expense: -

(a) If the prisoners are women, juveniles or sick or infirm persons.

(b) In order to avoid an undesirable demonstration.

(c) If the distance is in excess of 5 kilometers in the mofussil or 2 kilometers in Ahmedabad City.

(d) In other cases, if the police or jail authorities for special reasons direct, e.g., when the journey is through crowded streets or when it is necessary to save time of the escort party.

(iii) Where Police buses exist and they are not otherwise required for more urgent Police work, arrangements should be made to make them available generally for the conveyance of prisoners between jails or Police Stations and the Courts, if the distance exceeds 2 Kilometers in the mofussil and irrespective of distance in Ahmedabad city, when the number of prisoners to be conveyed is large. Prisoners to be taken to and from all Courts should be collected at one place.

(iv) If the prisoner is being conveyed at Government expense in the mofussil, the shortest routes and the cheapest form of conveyance should generally be provided, except that bullock-carts, being very slow, should be excluded. They may, however, be used for women or juvenile, sick or infirm prisoners, if no other conveyance is available,

(v) The charges incurred in the transfer of prisoners and their escort by road when a special conveyance has to be hired for the purpose should be debited to the head "255-Police Lockups".

(G. R., H. D., No. 9205/2, dated 7th November 1944)

(vi) Police escorts should invariably be warned, when escorting convicts with leg-irons on by road, that a conveyance should be employed for conveying the prisoners, should the leg-irons show any tendency to fall the prisoners.

(I. G. 's No. 9974/C, dated 13th July 1912)

(2) Where Police buses exist, the Police Department should provide transport to the Jail Department for carrying sick prisoners from Jails to Hospitals and back. Likewise, transport should be provided to the Jail Department for carrying leprosy-affected prisoners between Jails or Police Stations and Courts. No charges on account of cost of petrol, oil, lubricant, etc. incurred for such transport within the same District should be recovered from the Jail Department. Necessary provision for the expenditure should be made under "255-Police". Charges according to Government orders should, however, be recovered from the Jail Department when leper or other prisoners are transported from one District to another, as in the case of any other Department.

445. Duties of Police escort in connection with prisoners required to attend Courts.- (1) While escorting prisoners to and from Courts or while waiting outside the Courts no one should be allowed to speak to or to approach any prisoner.

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(2) When a convict is removed to give evidence in a Court situated at a place other than that where he is undergoing his sentence he should be delivered for custody until such time as his attendance in court is required to a prison (in the absence of a prison to a lock-up) at the place where the Court is situated. When his attendance is no longer required, he should be taken to the nearest district or central prison.

(I. G. 's No. 4309, dated 10th October 1931)

(3) Superintendents of Police should see that escorts sent with prisoners are not unnecessarily detained at the camps of Magistrates.

446. Examination of Prisoners bodies.-When a prisoner is sent to the district jailor to the hospital, the escort commander, on delivering over charge of him to the jailor or the Sub-Assistant Surgeon, may require that the prisoner's body be examined to ascertain whether there are any marks of violence thereon.

SECTION IX-ESCORT OF TREASURE

447. Strength of escort of treasure by road.-Under ordinary circumstances the following shall be the proportion and strength, whenever possible, of escorts of treasure, when it is taken by road, whether on foot or by bus or any other type of vehicle:-

Up to Rs. 5,000	..	..	2 Constables
From Rs. 5,001 to Rs. 15,000	..	1 Head Constable	2 "
From Rs. 15,001 to Rs. 40,000	..	1 Head Constable	3 "
From Rs. 40,001 to Rs. 1,00,000	..	1 Head Constable	5 "
From Rs. 1,00,001 to Rs. 2,00,000		1 I Grade and 1 II Grade Head Constable.	8 "

Special circumstances may, however, render a stronger escort advisable. Under such circumstances, the chief Police officer shall use his own discretion as to the extra number of men it may be advisable to supply, a report to that effect being made at once to the Superintendent of Police.

(G. R., H. D., No. 1946, dated 13th October 1922 and G.L., H. D., No. 8265/4-D, dated 20th January 1945.)

448. Transport of treasury under escort by road.-(1) Police buses should be made available, whenever possible for the conveyance of treasure. When this is not possible, public buses should be hired specially to carry treasure and its escort, the duty of hiring them resting with the Treasury authorities concerned. In deciding the suitability of a particular bus/buses to be hired, the amount of treasure as well as the strength of the escort required will have to be taken into consideration. The Treasury authorities concerned should, therefore, confidentially consult the Chief Police Officer of the place whether the particular bus/buses to be hired is/are in his opinion, suitable for conveying both the treasure and the escort.

(2) Treasure of the value of Rs. 15,000 or more should be conveyed in a Police or a specially hired bus. When the value of the treasure is less than Rs. 15,000, but is still fairly substantial, it should also be dispatched in a Police or a specially hired bus, unless in the opinion of the responsible Police officer concerned, it can safely be sent by an ordinary public bus with an adequate escort though in excess of the authorized strength.

(3) All arrangements with regard to the selection of the Police escort, the collection of the treasure and its movement to its destination should be kept as confidential as possible.

(I, G. 's No. 1256, dated 19th October 1945 and G. L., H. D., No. 8265/4-D, dated 1st October 1945.)

449. Duties of escort of treasure by road.-(1) An officer-in-charge of the escort on receiving charge of treasure shall carefully examine the condition of the boxes, chests etc. containing it, and also the seals, locks, hinges and other fastenings, and after doing so shall grant a receipt for the number of boxes entrusted to his care, and upon delivery he shall require a similar receipt from the person into whose charge he delivers it, for transmission to the remitting officer.

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(2) On the escort being relieved, the commanders of the relieving and the relieved escort shall jointly examine the condition of the boxes, chests etc. and the state of the locks, hinges, seals etc. with a view to discover whether they bear marks of damage or present the slightest indication of having been tampered with. After the examination, the commander of the relieving escort shall give a receipt specifying the actual condition in which he found everything committed to his charge.

(3) Halts for the night, shall, if possible, be in the vicinity of a Police post and spots shall be selected clear of thick jungle or old buildings, where a surprise by a gang of robbers might be attempted.

(4) Double sentries shall be placed on treasure, while halting on the march.

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(5) On sentries being relieved, the relieving and relieved sentries shall both, in the presence of the escort commander, examine, as far as possible, the boxes or chests containing the treasure and satisfy themselves that the boxes, seals, locks, fastenings etc. have not been tampered with and are correct in number.

450. Strength of escort of treasure by rail.-(I) When treasure is to be escorted by rail only and not by road the escort shall be on the following scale;-

	By day		By night	
	Head	Constables	Head	Constables
11 to 10 boxes of treasure	..	2	1	3
11 to 20 boxes of treasure	..	2	1	3

21 to 30 boxes of treasure.	..	3	1	4
31 to 40 boxes of treasure. . . .	1	3	1	5
41 to 50 boxes of treasure.. . . .	1	4	1	6
For one locked van containing treasure . .	..	2	1	3
For every additional van ..	..	1	..	2

(G.R., H.D., No.. 1946, dated 13th October 1922)

(2) It is necessary to reserve a compartment for the carriage of Government treasure and its escort.

(J. D., Letter, No. 5796, dated 18th October 1907)

(3) The minimum escort of each wagon loaded with treasure shall never be less than two Constables and a Head Constable. The escort may be increased proportionately to the value of the consignments by the number of men allowed free by the railway authorities.

451. Duties of escort of treasure by rail.-(I) The Police officer who is to travel in charge of a remittance by rail, shall jointly with the remitting treasury or bank officer or the substitute deputed by that officer, superintend personally the loading of the vans, and shall receive a memorandum of instructions (in Form T. R. 67) and as many blank receipts, in the form set out in Sub-Rule (8) below, as there will be relief's, which will be handed over to him by the treasury or bank officer. He will also receive from the remitting officer a memo random in Form No. Try. 221-e. in duplicate, stating the number of boxes delivered to his charge, the amount each box purports to contain and the officer to whom the boxes are to be finally delivered. The Police officer shall sign a receipt for these documents in the register maintained for the purpose by the remitting officer.

(2) The Police officer taking charge of an escort of treasure travelling by rail will not see the treasure packed at the treasury: but he will see the boxes weighed and satisfy himself that each box is properly secured before it is transferred to the van and that it is properly placed therein.

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(3) The escort of treasure should be accommodated in a brake-van attached to the treasure-van or in the end compartment of the carriage next adjoining the treasure van, and the doors of the compartment occupied by the escort should never be locked.

(4) The escort officer will wire to the receiving officer the number of the train (passenger or goods) conveying the remittance and its hour of departure and will also wire again en route if any change in the train has been made or anything has occurred to delay its arrival.

(5) An officer relieving such an escort will see that the numbers of the wagons agree with those given in the blank receipt tendered for his signature that the locks are secure, that the seals are unbroken and bear no sign of having been tampered with, and that the locked doors of the van cannot be opened.

(6) The officer-in-charge of the escort and every officer-in-charge of relieving escort should be provided by the officer furnishing the escort or relief with a lantern which will burn all night, and should cause a sentry to alight at every alternate stopping place and ascertain that the locks have not been tampered with. During any long stoppage a sentry must remain on duty by the door of the treasure wagon. If there be several such wagons, it will suffice to tell off two men, who may stand, one at each end of the wagons.

(7) In case of a break-down separating a convoy, the officer-in-charge should separate his party, attaching himself to the disabled portion

(8) On delivering the boxes at the treasury to which they are addressed, he will obtain a receipt for " bags said to contain coin to the value of Rs.

" or for " boxes With marks and weights detailed in the invoice said to contain coin or notes to the value of Rs. ". If any box be of short weight or shows signs of having been tampered

with, it should be opened in the presence of the escort officer; otherwise, he should be allowed to return at once.

(9) The form of receipt to be used by a relieving escort should run thus:-

"Received charge from	Police officer of
District of	railway wagon No.
said to contain	boxes aggregating Rs.

(and so on). The wagons were duly locked and sealed and one key for each made over blank receipts to be given by other relieving escorts and the memorandum in Form No. Try. 221-e in duplicate are also acknowledged.

The number and contents of each wagon should be detailed in case of a break down. The receipts should be in English, if the Police officer is acquainted with that language, otherwise in the language ordinarily used by the officer. The officer to whom a receipt is passed will on completion of his duty produce the same before his departmental superior.

(10) If the seals on a wagon are broken or bear signs of being tampered with or if the wagon has not been sealed, it is the duty of the relieving escort officer to insist on the wagon being opened and the number of boxes counted before he gives a receipt to the relieved officer. In such cases the fact of the wagon having been opened and the number of boxes counted should be endorsed on the receipt.

(11) The escort officer will present the command certificate for examination to the remitting treasury or bank officer before the remittance is handed over to him. He should also present it for examination to the treasury or Bank officer taking charge of the treasure. The latter will satisfy himself that he is taking over the treasure from the officer named in the command certificate and will at the same time check the strength of the escort with that stated in the command certificate, noting any difference that he may find. When all is correct, he will merely sign the command certificate, and one of the duplicates of memorandum in Form No. Try. 221-e in token of his having correctly received the treasure, and deliver the documents to the officer-in-charge of the escort, who will produce them before his departmental superior. The treasury or bank officer will send other copy of the memorandum by post to the remitting treasury or Bank officer. .

(12) Whenever any breach of these rules occurs, the officer-in-charge of the escort must insist on the treasure van being detached from the train and should immediately telegraph the facts to the remitting officer, to his own departmental superior and to the Traffic Manager of the railway.

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(13) When a Potdar accompanies a remittance, he is responsible during the whole course of the journey for the contents of the boxes, and the Police act as an escort. The Potdar will not interfere in any way in the performance by the escort of his legitimate duties; but he must be permitted to satisfy himself that all necessary precautions are being taken. In the event of damage occurring to a box, it is the duty of the Potdar to take over any coin that may fall out and to verify the contents and repack the box, if repacking becomes necessary. The escort officer must not permit the Potdar to be interfered with in the execution of his duties.

SECTION X-PAYMENT OF FARES OF POLICE ESCORTS

452. Payment of fares of Police escorts.-(I) The procedure for the payment of fares of an escort will be as follows :- .

(a) Railway warrants for Police parties escorting either prisoners or treasure should be issued by the Superintendent of Police of the dispatching district up to the destination of the charge, whether it is within or without the State of Gujarat.

(b) The railway warrants for the return journey of each escort should be issued before starting by the district to which the escort belongs, the charge being treated as one incurred in that district.

(2) The conveyance and other incidental charges involved in sending undertrial prisoners from the State of Gujarat to any of the States in the Union of India, excepting the State of West Bengal or any Union territory and vice versa will be borne by the State sending them. So far as the State of West Bengal is concerned, the prisoners will be escorted only up to the border of the State sending them.

(G. M., H. D. No. 9203/2-C, dated 23rd November 1931, 10th January 1931, 4th March 1932, 25th February 1932, 18th August 1932, No. 9203/2, dated 7th January 1936, 9303/2-C, dated 6th May 1939 and 9207/2-D, dated 21st October 1943 and Government, H.D., No. GRD-1064-5342-C, dated 3rd September 1966.)

453. Escorts supplied to other Departments.-(I) Officers of the Public Works Department should exercise their discretion in not requisitioning escorts except when they are clearly necessary. It is not necessary to have a Police escort for consignments of less than Rs. 1,000 save in exceptional circumstances.

(G. R., J. D., No. 6923, dated 6th December 1910)

(2) Remittance of Forest revenue to treasuries and of advances to disbursers are ordinarily to be made through the Post Office. When, however, that course is neither convenient nor advantageous and the amount of remittance exceeds Rs. 1,000 one armed Constable may on requisition, be supplied to accompany Forest subordinates.

(G. R., J.D., No. 8114, dated 21st November 1895 and G. R., J. D., No. 4593, dated 21st June 1912)

(3) (a) Police escorts will be supplied to all Post Offices in the State of Gujarat whenever cash remittances of and above Rs. 10,000 have to be exchanged with a treasury or sub-treasury, or between post offices inter se provided that timely intimation is given by the Postal authorities concerned to the relevant Police authorities.

(b) When the escort for cash in transit is supplied for 24 hours or more, full cost thereof should be recovered from the Department of Posts and Telegraphs, because Police on duty continuously for 24 hours are required to be given one day off.

(c) When the escort is provided continuously during a month, the recovery should, on the monthly basis, irrespective of the non-working days, cost being calculated on the daily average basis only for occasions when the escort is supplied on different days or for broken periods during a month.

(G. R., H. D., No. 699/4, dated 2nd June 1953)

(d) Half the cost of Police escorts so furnished is to be recovered from the Department of Posts and Telegraphs.

(4) The cost of Police Guards should be recovered from the Milk Department. Civil Supplies Department and commercial undertakings. The cost of guards supplied to Bailiffs of the Judicial Department should not be recovered.

(G. R., H. D., No. 3977/7-H, dated 30th October 1956)

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454. Personal escorts.-(I) No Police escort shall be furnished unless specifically authorized, or as an exception in cases when an officer is in danger.

(2) As regards personal escorts for the President of India and Governors, no definite rule can be laid down. The Superintendent of Police concerned is responsible for the safety and convenience of such personages and should take all measures to that end which he considers necessary.

(3) (a) When on tour the Ministers of the Government of India, the Chief Justice of the High Court of Gujarat, Judges of the High Court of Gujarat, the Chief Secretary to the Government of Gujarat and the Inspector-General of Police should be severally entitled to an armed Police escort of one Head Constable and six Constables.

(b) A personal escort of one Sub-Inspector, one Head Constable and one Constable during day, and one Head Constable and two Constables at night for the Chief Minister of Gujarat; and one Head Constable during day and one Constable armed with lathe during night for other Ministers of Gujarat, shall be provided during their visit.

(G. L., H. D., No. SB-I/SSA-1672/2592, dated 14th July 1972.)

(c) The Director of Excise and Prohibition, Gujarat, should be provided with an unarmed Police escort.

(d) The escort under this Sub-Rule should be supplied by the district in which an official is touring.

(G. Rs., H. D., No. 7866, dated 11th February 1937 and P. and S. D., No. 6541/34, dated 18th June 1943.)

SECTION XI-GUARDS AND ESCORTS FOR SICK OR INSANE PRISONERS AND PATIENTS.

455. Sick or insane prisoners.-(1) When a prisoner in a sub-jail is suffering from an ailment which is such as to necessitate his being detained in the Civil Hospital for treatment, he shall, under the orders of the Civil Surgeon, be kept there or in some other duly appointed place, and a Police guard shall be applied for by the Superintendent of the Jail. The patient's food shall be supplied by the hospital authorities, unless he is an under trial prisoner and his relatives arrange to feed him.

(2) When any undertrial prisoners are suffering from trifling ailments, they will be sent in charge of a Police escort to the Civil Hospital, daily or otherwise, as the Civil Surgeon may direct, for treatment.

(3) (a) In case of any undertrial prisoners on admission complaining of being hurt, or of having been beaten by the Police before admission into jail, such prisoner shall be sent in charge of a jail escort without delay before the Civil Surgeon for examination.

(b) With a view to avoid the waste of manpower, the Superintendents of Police, should approach their Civil Surgeons for providing a separate ward as far as possible for all the prisoners undergoing indoor treatment in the Government Hospitals concerned. This ward should then be provided with iron-barred doors and windows so that only one sentry would be able to guard them effectively.

(I. G. 's C. M., No. 5428, dated 9th July 1953)

(c) The Police Guard in charge of detainees at Public Hospitals should see that any person seeking an interview with a detainee undergoing treatment as in-patient in the Hospital is referred to the Superintendent of the Jail from which the detainee has been removed to the Hospital, that no person is allowed to interview the detainee without the previous written permission of the Superintendent of that Jail and that the interview held is in accordance with the conditions prescribed by the Jail Superintendent.

(I. G. 's Confi. Cir. Memo. No. 5428, dated 25th August 1956)

(4) For instructions as to the handcuffing of sick prisoners, reference should be made to Sub-Rules (6) to (8) of Rule 442.

(5) Police escorts should be provided for the children of the Remand Homes when they are sent to Hospitals for treatment and brought back to Remand Homes whenever requisitions are made by the Remand Home authorities. They should also be guarded by the Police if they are admitted as indoor patients.

(I. G., C. M., No. 7517, dated 7th May 1954)

456. Guards and escorts for insane patients.-For the guarding of insane patients in hospitals and escorting them to or from hospitals reference should be made to Rule 316.

SECTION XII-POLICE ORDERLIES

457. Court orderlies.- All Magistrates trying accused persons not in charge of the Police should have a Police orderly present in Court when the trial is proceeding. Local arrangements should be made to supply orderlies for the time they are needed to such stipendiary Magistrates as have no permanent

orderlies allotted to them; A Policeman as Court orderly must be invariably supplied to the Courts of Special Magistrates.

(G. R., J. D., No. 7475, dated 28th November 1902)

(2) Orderlies for Magistrates should be selected from the armed branch. They should understand the regional language of the district and if possible, who can read and write. They should be changed once a month.

(3) Their ordinary duties in the Court should be as under:

(i) To be present in Court while the Court sits.

(ii) To keep the public from overcrowding or creating any disturbance and to maintain order in Court.

(iii) To arrest under the orders of the Magistrate any person found committing an offence in the presence of the Magistrate.

(iv) Under the orders of the Magistrate, to arrest and handcuff any person convicted and to take charge of him till the arrival of an escort.

(I. G. 's No. 1457-C, dated 29th January 1912 and 24th December 1925)

458. Personal orderlies for Police Officers.-(I) The allotment of orderlies for personal attendance on officers of the Police Department shall be as follows :-

	Armed Head Constables	Armed Constables	Unarmed Constable
The Inspector-General of Police.	1	3	..
The Commissioner of Police. .	1	3	..
The Deputy Inspectors General of Police	1	2	..
The Superintendents of Police, Districts, Railways, C.I.D.&G. R.D. and Wireless and the Deputy Commissioner of Police	..	3	..
Assistant Inspectors General of Police.	..	3	..
Assistant/Deputy Superintendents of Police .	..	2	..
Headquarter Inspector	..	1	..
Inspector of Police (excluding H.P.Is. and P.Is. in C.I.D.)	..	..	..
Headquarter Sub-Inspector.	..	1	..
Sub-Inspector of Police in the mofussil.	..	..	1

*Home Inspector is allotted a Pattawala in place of a Constable orderly. No armed constable (instead of Pattawala) should be used as Telephone orderly, at his residence.

(2) The armed orderlies should not carry firearms or ammunition when merely employed on orderly duty.

(G. R., H. D., No. 1513/3-III, dated 27th June 1933, G. L., H.D., No. 1513/3-III, dated 22nd December 1933 and G. R., H. D., No. EST.1072/4544/C, dated 8th August 1972.)

(3) No Police officers may use orderlies not authorized by Sub-rule (1) above. Police Motor Drivers shall be included among orderlies except with the previous permission of the Inspector-General obtained on each occasion, nor must a Police officer extract private

work from Police orderlies. These orders must be observed very rigidly and failure to do so will entail severe action. All officers who have employed constable orderlies as drivers should give the allowance to the drivers at the following rates:-

Inspector-General of Police	Rs. 15 p.m
Dy. Inspector-General of Police/Commissioner of Police.	Rs. 15 p.m
Superintendents of Police, Deputy Commissioners of Police and other officers of this rank.	Rs. 10 p.m
Assistant/Deputy Superintendents of Police	Rs. 5 p.m

(I. G. 's No. 4665, dated 8th October 1947 and 16th June 1948, No. 4464/I-A, dated 20th September 1949 and 26th September 1957)

(4) Whenever a Police officer proceeds on leave on medical grounds or earned leave and when that officer stays in the town of his Head-quarters and in the circumstances when the arrangements made vice him are only of his charge being given additionally to other Police officer and not by way of full-fledged independent officer, there should be no need to withdraw his orderlies, provided the period of such leave does not exceed one month. The officer holding the higher charge should not avail of the services of orderlies beyond the strength he is entitled to in his regular post.

(G. L., H. D., No. EST-1065/2038-C, dated 26th September 1965)

SPECIAL ORGANISATIONS

SECTION I-CRIMINAL INVESTIGATION DEPARTMENT (C. I. D.)

459. Control over, and selection of, personnel of the Criminal Investigation Department (C.I.D.).-(1) Subject to - the general control of the Inspector-General of Police, the control over the activities and personnel of the Criminal Investigation Department (Intelligence) and the Criminal Investigation Department (Crime and Railways), rests with the Deputy Inspector-General of Police, C.I.D. (Intelligence) and the Deputy Inspector-General of Police, C.I.D. (Crime and Railways) respectively.

(2) Officers required to constitute the personnel are selected, in the case of those of and above the rank of Deputy Superintendents by the State Government and in the case of Inspectors and Sub-Inspectors by the Inspector-General of Police, and are posted to the Criminal Investigation Department by transfer from the Cities, Districts and Railways.

(3) (a) Head Constables are seconded from Cities, Districts and Railways for duty in the Criminal Investigation Department normally for about five years; their selection being made by the Deputy Inspector-General of Police, C.I.D. concerned.

(I. G. 's No. 55, dated 2nd November, 1935)

(b) During the period of his service in the Criminal Investigation Department, a Head Constable will retain his position in his own district on the 'next below rule'. This means that if anybody junior to him in the Hand Register is due to be promoted in the higher rank the Head Constable seconded must be promoted and not superseded in his Home district.

460. Designation and transfers.-(1) Officers and men while serving in the Criminal Investigation Department (Crime) will have the word Detective prefixed to their rank (e.g. Detective Inspector). In order to facilitate their specialization in different branches of the Criminal Investigation Department, frequent transfers of such officers and men will be avoided.

[I. G. 's No. 30 (6910) dated 2nd September, 1950.]

(2) Officers employed in the Criminal Investigation Department can be employed in any district or place in the State to which the Inspector-General of Police or the Deputy Inspector-General of Police, Criminal Investigation Department directs them to proceed, in the exercise of his powers under Section 5 of the Bombay Police Act.

(3) Officers and men of the State Criminal Investigation Department Branches, Crime Branch and Special Branch of the Commissionerate area, Local Crime Branches, Local Intelligence Branches and Anti-Corruption Branches will perform their duties and appear in Courts in plain clothes.

(G.L., J.D., No. 7534, dated 22nd November, 1901)

461. Functions of the C. I. D. (Intelligence Branch).- The functions of this branch are:-

(a) The collection and collation of information regarding political, industrial and other similar developments or movements in the State:

(b) Verification of character and antecedents, protection and security of V.I.Ps., watch over anti-national activities, movements of foreigners and, all matters pertaining to internal security, etc.;

(c) Collection of intelligence regarding all types of communal activities will be an important work of this branch;

(d) To keep the Government informed of all the above activities from time to time.

462. Functions and working of the C.ID. (Crime Branch).-(I) The functions of this branch are ;-

- (a) The control of specialized or professional crime throughout the State, and
- (b) The investigation of specialized crime when of sufficient importance, and special important cases.
- (2) This branch will concern itself with the collection, collation and dissemination information relating to crime and criminals in accordance with such orders as the Deputy Inspector-General, C.I.D. (Crime and Railways) may issue from time to time. All enquiries and orders issued in this connection will be promptly and carefully attended to by Superintendent.
- (3) This branch is responsible for the publication of Parts I and II (Crime) of the Gujarat Police Gazette after compiling them on information received from the districts or collected from the Police Gazettes of other States, and also of a separate supplement reproducing notifications of Government regarding prescribed literature.
- (4) (a) This branch prepares crime records in inter- State and inter-district thieves, burglars, dacoits, robbers, cheats, poisoners, forgers and coiners. Of these, the crime records of thieves, poisoners and coiners are maintained up-to-date by the preparation of addenda giving details of their latest activities and convictions, which are published in the Gujarat Police Gazette. In the case of all the classes of criminals, it is necessary to prepare crime records of all and also to maintain all records up-to-date for the purpose of Data Processing Machines.
- (b) Crime records of active professional criminals whose activities are confined to their districts are prepared and maintained by the Superintendents of Police concerned and copies thereof are supplied to this branch for record. The serial numbers of such district crime records are noted on the finger print slip of the individual on the record of the Finger Print Bureau so that on receipt of intimation regarding his arrest, his antecedents including previous convictions are supplied by this branch to the district in which he is arrested. Similarly, records of not convicted and strongly suspected criminals will be maintained by the Finger Print Bureau and intimation given as shown above.
- (5) The branch makes its business to study carefully the district crime reviews and the weekly diaries of Sub-Divisional Police Officers. This enables the branch to keep in touch with serious organized crime and gang crime in districts, with a view to take up, if necessary the investigation thereof or to collate information of such crime and disseminate it to the districts, co-ordination between which is called for.
- (6) The branch also maintains crime charts, graphs and maps showing by months the variations of the more important forms of crime in the State (vide Rule 249).
- (7) The branch maintains a register of forged currency notes that have come to notice in the Districts and on Railways in the State and takes up, whenever necessary, enquiries about their appearance in consultation with the Director of Intelligence Bureau attached to the Ministry of Home Affairs of the Government of India.

463. Working of the Crime Branch in the Commissionerate Area.-The Crime Branch in the Commissionerate is divided into two branches known as (i) Detection of Crime Branch (D.C.B.) and (ii) Prevention of Crime Branch (P.C.B.). Their duties will be as under ;-

Detection of Crime Branch (D.C.B.) deals with ;-

(1) Visits to Police Stations and scenes in cases of ;-

- (i) Murder and attempted murder;
- (ii) Dacoity and serious robbery;
- (iii) Arms Act cases and possession of arms by bad characters;
- (iv) Explosions and serious fires;
- (v) Sabotage and violent political crime;
- (vi) Cases in which Police have resorted to opening fire;
- (vii) House-breaking with theft involving property over Rs. 1000/-
- (viii) Thefts involving property over Rs. 5000/-
- (ix) Copper-wire temple car, motor-cycle, scooter and cycle thefts;

(x) Cases in which an organized gang is suspected to have operated; and

(xi) Administering of poisons or drugs for gain.

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(2) Investigation of cases:-

- (i) of exceptional difficulty or importance;
- (ii) which from their nature or ramifications cannot be dealt with by the local officers
- (iii) entrusted to the branch by the Commissioner of Police; and
- (iv) cases arising out of communal riots.

(3) Work connected with:-

- (i) Counterfeit coins and forged currency notes;
- (ii) Lotteries and Prize Competitions; and
- (iii) Obscene literature.

(4) Operating the City Modus Operandi Bureau.

(5) Work connected with Finger-prints, foot-prints and police photographer.

(6) Surveillance over the activities of criminals, anti-social elements and suspects.

(7) Curbing activities of Bootleggers, Distillers, Smugglers, Gamblers, Black marketers, etc.

(8) Co-ordinating the working of Police Stations regarding property crimes.

(9) Habitual offenders.

Prevention of Crime Branch (P.C.B.) deals with:-

- (1) Externment work;
- (2) Missing person's inquiry;
- (3) Suppression of Immoral Traffic in Women and Girls Act cases and to keep surveillance at brothels and places of ill-fame;
- (4) Beggars Act cases;
- (5) Work pertaining with detentions under the Maintenance of Internal Security Act, 1971;
- (6) To organize preventive measures; and
- (7) Preparation of crime statistics.

464. Reporting of losses etc. of arms and ammunitions.-(1) The following instructions regarding the reporting of losses and thefts of Government and private fire arms and ammunition capable of being used for military purposes, and their smuggling into India should be carefully followed:

(a) Under military regulations, Officer Commanding detachments report the loss or recovery of arms, important components or ammunition to the Superintendent of Police. The Superintendent of Police is then responsible for all further action for tracing the recovery of the lost or stolen articles.

(b) Reports should be made by the Superintendents of Police to the Criminal Investigation Department (Crime) of the loss, theft or recovery of arms, important components and ammunition coming under the following categories of which they may receive information from any source, whether military, civil or private:-

- (i) Machine guns, light automatics, grenades and articles of Indian Air Force armaments.
- (ii) Rifles, Muskets, revolvers and pistols (Government or private).
- (iii) Barrels and bolts of .303 bore, rifles and .410 bore muskets.
- (iv) Ammunition for cannon, machine guns and high velocity rifles.
- (v) High explosives, whether in bulk or in made-up charges, including fuses and detonators.

(c) (i) Reports concerning items of the above categories should be made by telegram wherever there is prima facie evidence or reasonable suspicion of a recent theft. In other cases reports should be made by letter. In all cases every effort must be made to include, either in the initial report or in a very early continuation report the fullest possible details both for the

identification of the missing arms, components or ammunition and as regards the methods or identity of the thieves.

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(ii) The Criminal Investigation Department (Crime) on receipt of reports according to the above instructions will be responsible for the direction of suitable action for detection and recovery.

(d) A return of all identifiable arms etc lost, stolen or recovered should be maintained by the Criminal Investigation Department (Crime) and should be sent in annually to the Director, Intelligence Bureau.

(e) All reports of losses, thefts and recoveries of arms etc. should be published by the Criminal Investigation Department (Crime) in its Criminal Intelligence Gazette or confidential supplement. Such reports must invariably include all details necessary to establish the identity of any particular weapon or component part.

(f) When losses are sufficiently serious to be brought to the notice of the Government Of India or to rank as matters of public interest, as well as in the following cases, viz :-

(i) When the theft appears to be the work of Ut Khels or other professional rifle thieves;

(ii) When the loss appears to indicate that standing rules for the custody of arms and ammunition either in possession of regiments or individuals or during transit by rail or otherwise, are defective and should be amended. Intimation of such losses should be telegraphed to the Director, Intelligence Bureau, New Delhi, by the Criminal Investigation Department (Crime) and copies of all subsequent reports submitted by the Superintendent of Police should also be sent to him.

(g) In the particular case of revolvers, rifles and pistols, all losses, thefts and recoveries of such weapons as bear the manufacturer's number should be reported to the Director, Intelligence Bureau, by the Criminal Investigation Department (Crime). The reports regarding recoveries should include information, if possible, as to where, when and from whom the weapon was obtained by the person from whom it is recovered. All reports should be submitted as soon as convenient after the loss, theft or recovery.

(h) No report need be made under this Rule in the case of the loss or theft of smooth bore weapons, ammunition for such weapons, swords, bayonets or accoutrements. Converted Martini-Henries and Sniders are classed as smooth-bore weapons.

(i) Deliberate attempts to smuggle arms and ammunition into India, by land or sea or air, should promptly be reported to the Director, Intelligence Bureau. Similarly, the discovery of firearms which appear to have been deliberately smuggled into India should also be reported to the same quarter.

(j) In all instances, full particulars of the articles seized, such as the maker's name, place of manufacture, number, bore and other distinguishing marks in the case of fire-arms and maker's name, bore and distinguishing marks in the case of cartridges should be communicated at the time the report is made or as soon afterwards, as possible. Information, if available, obtained from the smuggler, or otherwise, as to where, when and from whom the weapon etc. were obtained should also be given. Whenever a prosecution is initiated with respect to a reported case of smuggling of, or attempt to smuggle, arms and ammunition the result should also be communicated to the Director, Intelligence Bureau.

(2) These instructions do not affect the quarterly returns of arms and ammunition seized by the Customs, which should continue to be submitted by the Criminal Investigation Department (Crime) of maritime States and the States having air-ports in their jurisdictions.

465. Investigation of organized or important crime.-(1) Investigation of crime by the Criminal Investigation Department (Crime) should ordinarily be confined to:-

- (a) cases of exceptional difficulty or importance;
- (b) cases which, from their nature or ramifications, cannot be dealt with by local officers within their own jurisdiction or without the co-operation of other officers at a distance working under a common direction;
- (c) organized crime extending over two or more districts, and
- (d) temple theft cases including thefts of idols which are found to be complicated involving inter-district or inter-State gang or which have assumed importance by attracting public attention.

(I. G. 's C.Ms. No. 151-II, dated 3rd June 1957, and No. G/1927/1911, dated 11th June 1974.)

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(2) The services of the Criminal Investigation Department (Crime) are not save in very exceptional circumstances, to be requisitioned in the cases of ordinary crime confined to one district and of no special importance.

466. The Criminal Investigation Department (Crime) to be kept in touch with important and organized Crime.-(I) It is essential that the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime and Railways), should be kept informed of the state of important and organized crime, especially when committed by professional criminals, throughout the State, so that he may be able promptly to furnish assistance or information in connection therewith.

(2) (i) Assistant or Deputy Superintendents in charge of Sub-Divisions will there-fore prepare and submit to the Deputy Inspector-General of Police, Criminal Investigation: Department. (Crime & Railways) along with copies of their weekly diaries, week by week, a crime statement, giving details of all offences falling under the following heads which have been reported to them during the week:-

- (a) Offences against coinage and currency notes.
- (b) Administering of poison or drug for gain.
- (c) Thefts involving loss of property worth Rs. 2,000 or more.
- (d) Robberies other than those included under Rule 134 (1) involving loss of property worth Rs. 500 or more. .
- (e) Criminal breach of trust involving loss of property worth Rs. 2,000 or more. .
- (f) House-breakings with thefts involving loss of property worth Rs. 1,000 or more.

(ii) The cases entered in the statement will be numbered serially from the beginning of the calendar year and their disposal by the Police and courts will be entered in the statement as soon as known.

(I.G. 's No. 152-IV, dated 30th June, 1947)

(3) Whenever statements or confessions made to the local Police disclose the existence of an organization for the commission of crime falling within any of the categories mentioned in Sub-Rule (2) and extending over more than one district, copies of such records should be forwarded to the Deputy Inspector-General, Criminal Investigation Department, (Crime and Railways).

(4) Superintendents of Police will report at once to the Deputy Inspector-General. Criminal Investigation Department, (Crime & Railways), the arrest within their jurisdiction of any gang of persons suspected to be professional criminals.

(I. G. 's No. 51, dated 1st May, 1926 and No. 73, dated 18th June, 1926)

(5) Any sudden and serious outbreak of offences other than those enumerated in Sub. Rule (2), which presents any unaccountable peculiarity, excites public interest or alarm or is likely to

assume importance from a political or social point of view, should be reported forthwith to the Deputy Inspector-General, Criminal Investigation Department, (Crime and Railways).

(I. G. 's No. 18, dated 13th March, 1925)

(6) The details of all temple thefts and burglaries and other thefts in which property worth more than Rs. 5,000 is involved should be reported to the Deputy Inspector-General of Police. Criminal Investigation Department (Crime & Railways) at once to enable him to co-ordinate all cases of thefts and burglaries in which property worth more than Rs. 5,000 is involved.

467. Applications for assistance of the Criminal Investigation Department (Crime):-

(1) When a District Magistrate or a Superintendent of Police requires the assistance of the Criminal Investigation Department (Crime) in any matter in which he considers the Criminal Investigation Department (Crime) are specially qualified to make enquiries, he should communicate the facts to the Deputy Inspector-General of Police. Criminal Investigation Department (Crime and Railways) who will comply with the request to the best of his ability, having regard to other calls on his staff

(G. L., H. D. No. RPM-1075/III/XI-C, dated 20th March, 1975)

(2) In all cases in which a request for the assistance of the Criminal Investigation Department (Crime) is refused, the Deputy Inspector-General should inform the Inspector General of Police.

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(3) When the following types of cases occur. the Superintendent of Police concerned should except where the offences are simple or are already detected immediately inform the C.I.D. (Crime) so that a C.I.D. officer could be deputed without any delay to assist the local Police in the detection of such cases ;-

(i) Murder for gain.

(ii) Dacoity or robbery committed by gangs operating in more than one district.

(iii) Counterfeiting of coins where the investigation would extend over more than one district.

(iv) Offences which are the work of professional criminal and which are causing alarm or panic in the locality.

(v) Offences in which important local persons are concerned and public clamour is responsible.

It should be noted that the C.I.D. officers so deputed should assist in detection of the offences only and that they should not be mixed up with the scriptory work connected with the cases and attend court, watch witnesses, etc. To achieve the desired effect of rendering such assistance by the C.I.D., it will be seen by the Deputy Inspector-General of Police, C.I.D. (Crime and Railways) that the C.I.D. officers specially trained and qualified both in the type of offences and with information of the region in which they have taken place, are deputed.

(4) (a) Besides the above cases, the C.I.D. officers should themselves investigate (i) forgery of currency notes and (ii) such offences where the area of operation may be extensive and the time taken over it may be such that the C.I.D. would investigate them better.

(b) In such cases, no time should be lost by the Superintendents of Police concerned in intimating the occurrence of the offence and the progress of the on-the-spot investigation to the Deputy Inspector-General of Police. C.I.D. (Crime and Railways), who will depute an officer of the C.I.D. to take over the cases for investigation.

(5) In view of the fact that the investigation of forgery, embezzlement or frauds of big nature need considerable leisure from preoccupation and other duties and ability to concentrate on them for a long period and may need consultation with Accountants, Auditors and knowledge of Companies Act, etc., such cases of a complicated nature should be investigated. by the C.I.D.

(6) In cases in which the C.I.D. officers are detailed to assist the local Police, copies of case diaries of investigation of such cases should be sent to the Deputy Inspector-General of Police, C.I.D. (Crime and Railways) in order that he will be able to find out whether useful assistance is really being rendered.

(I.G. 's memo No. H/20/LBR/6349, dated 6th November 1971)

468. Power of Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways).-Whenever the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) considers that special enquiry is called for in any case although no request for the services of the Department has been received from the local authorities, he may institute enquiries and inform the District Magistrate and the Superintendent of Police concerned.

(G.L., H. D. No. RPM/1075/IJI/XI-C, dated 20th March, 1975)

469. Intimation to Local Officers.- When an officer of the Criminal Investigation Department (Crime) visits a district in the course of an investigation, intimation should always be given to the Superintendent of Police concerned either by the officer himself on arrival in the district or by letter direct from the office of the Deputy Inspector-General of Police, C.I.D. (Crime and Railways) Compliance with these orders is specially necessary, if any member or members of the Criminal Investigation staff find that they have to carry their investigation into districts beyond the jurisdiction of this State.

(G. R., J. D., No. 2818, dated 30th April, 1902)

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470. Assistance to the Criminal Investigation Branch.-In all investigations undertaken by the Criminal Investigation Branch, the local Police (including Commissionerate area) will render assistance as required by the Deputy Inspector-General, Criminal Investigation Department (Crime and Railways), in respect of cases or matters under investigation by the Criminal Investigation Department (Crime).

(G. R., J. D., No. 5950, dated 15th November, 1905)

471, Control of enquiries undertaken by the Criminal Investigation Department (Crime).-

(1) In cases taken up by the Criminal Investigation Department, of which the ramifications extend to two or more districts, the Deputy Inspector-General, Criminal Investigation Department (Crime and Railways) is the controlling officer, subject to the general control of the Inspector-General.

(2) In such cases as concern a single district, the Deputy Inspector-General, Criminal Investigation Department (Crime and Railways) has authority to exercise, through the Superintendent of Police concerned, a general control over the investigation and the Superintendent of Police shall not, except in an emergency or when, in his opinion, no other logical course can be followed, radically alter the normal course of the investigation without that officer's concurrence.

(3) In any case which has been taken up by the Criminal Investigation Department (Crime), should a Superintendent of Police consider that proceedings instituted in connection therewith before a Magistrate should be withdrawn, he should submit his recommendations to his District Magistrate through the Deputy Inspector-General, Criminal Investigation Department (Crime and Railways).

(G. R., H. D., No. 3859, dated 25th June, 1924)

471. Finger Print Bureau.-(1) The working of the Finger Print Bureau forms part of the activities of the Criminal Investigation Branch (Crime). Detailed orders regarding the working of the Bureau are published in the Finger Print Bureau Manual.

(2) The co-operation of the Bureau with Criminal Investigation Branch (Crime), especially with M.O.B., will be governed by instructions issued by the Deputy Inspector-; General, Criminal Investigation Department (Crime and Railways).

473. State Examiners of Questioned Documents.-State Examiners of Questioned Documents attached to the Criminal Investigation Department (Crime) undertake :-

(a) the examination of disputed documents, whether hand-written or type-written (vide Rules 167 and 168).

(b) the examination of articles under the ultra-violet lamp (vide Rule 165).

474. Photographic Bureau.-(I) The State Examiners of Questioned Documents conduct the photographic Bureau of the Criminal Investigation Department (Crime), which, besides taking photographs on the important ceremonial occasions and supplying photo graphs required for identity cards of Police Officers, supplies readable photographic copies of important documents very speedily by micro-filming process, in which the original documents can be returned immediately after taking exposures, and also supplies same size photographic copies of documents without the aid of a camera by reflex copying process with the help of a Rectophot machine.

(2) When in any district, it is considered necessary to photograph prisoners or criminals, the photographs should be obtained locally, the cost being met from the contract contingencies under that officer's control.

(3) As regards photographs required by M.O.B. and under Bombay Habitual Offenders Act, see Rule 167(18).

SECTION II.-MODUS OPERANDI BUREAU

475. Crime and method Index or the Modus Operandi system.-(1) Criminology is a science that deals with crime and criminals, whereas investigation is an endeavour to discover the truth by application of that science. The expression "Modus Operandi" means a plan of working or mode of operation. The Modus Operandi therefore is a method of investigation based on the study of various crime patterns and the methods adopted by different criminals in committing different crimes. It is a system which suggests to the investigator the name and description of probable criminal on the basis. of their past criminal activities.

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The object of the Modus Operandi system is, therefore to maintain records of known criminals on the basis of criminal's individual methods of operation and in a given case from a study of such records to fix the criminal's responsibility for committing the offence. The system is helpful as it narrows down field of investigation considerably and to that extent it helps the investigator in tracing the criminals.

(2) A pre-requisite to investigation of crime by modern and tried methods is that Police Stations, District/City Modus Operandi Bureau and the State Modus Operandi Bureau, should have information of the more important criminals operating in their charge properly arranged and indexed so as to be readily available to connect a crime with a criminal or vice versa. The main purpose of a Crime Index is to assist in the identification of criminals who have committed crimes which have come to the knowledge of the Police, by making use of systematically indexed particulars of known criminals or the crime committed by them. Most officers know the essentials of the Modus Operandi system which aims at identifying offenders by any peculiarity in the commission of the crime or particular story told or transport used, etc. This is based on the theory that criminals are accustomed to such particulars or peculiarities which persist in spite of a long lapse of time. Again, criminals specialize in particular forms and types of offences. A cheat, for instance, will repeat the same type of offence. He cannot take up to dacoity with violence. Though exceptions to the rule are known to exist, it is this peculiarity or similarity of method that usually gives the criminal a way. Even when making a deliberate departure from these patent methods, the criminal will usually not go far, but will make slight modifications in the pattern. If he wants to change his name for instance, he may keep his name but take up a surname which may have no resemblance in sound but may still have some similarity in detail as Kale, Gore, Shyama-varna, etc. In some cases, there may be similarity

in sound like Krishna, Krishnachandra, Raje, Rajamanya, Rajeshirke, etc. or there may be changes in the methods of writing like Krishna, Kisan, Laxman, Lakshya etc. These possibilities should also be borne in mind when making use of the index.

(I. G. 's C. M. No. 7209, dated 20th July, 1951.)

(3) With a view to making the system more effective and with a view to preventing crime and improving detection, some officers and men have been trained at the Modus Operandi Bureau of C.W. (Crime & Railways), Ahmedabad, in the maintenance and working of the Modus Operandi System. It must be remembered, however, that there is only one underlying principle in the system which is to have a proper index of criminals for ready reference and the difference lies only in details. Though conditions may vary slightly in the rural and urban areas, a uniform system is both feasible and necessary in the interest of easy working and co-operation between different units of the Police force.

476 Crime Index in all District, Towns and every Police Station in every City.---(I) Police Station is the base of Modus Operandi system and feeds the District/City and the State Modus Operandi Bureau.

(2) (a) The officer incharge of the Police Station will be responsible for preparing the Main Crime Record cards of all criminals, who have been convicted, acquitted, arrested but not sent up and strongly suspected in the commission of crime of the following categories: -

- (i) theft
- (ii) house-breaking with or without theft.
- (iii) robbery
- (iv) dacoity
- (v) receiving stolen property.
- (vi) cheating
- (vii) criminal breach of trust.
- (viii) counterfeiting coins and currency notes.
- (ix) professional poisoning.
- (x) arms smuggling. -
- (xi) international and inter-State smuggling.
- (xii) international and inter-State crooks engaged in trafficking of women and children.
- (xiii) persons against whom orders under Section 356, Criminal Procedure Code have been made.

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- (xiv) persons released under Section 432, Criminal Procedure Code.
- (xv) persons bound over under Sections 109, 110, Criminal Procedure Code.
- (xvi) approvers and others against whom watch is considered necessary.
- (xvii) surveillees.

Note:- The Main Crime Record cards are to be opened not only for specific offences but also for attempts thereof.

(b) As the Main Crime Record cards of criminals referred to above will be required to be maintained at a Police Station, District/City and State level, the Finger Print Bureau will keep finger print record of all these criminals in Form PM 61 eg. The Police Station concerned will therefore take six good finger print slips (search slips) as soon as the Main Crime Record card is opened and send the finger impression slips to the Finger Print Bureau marking on the top of the form in red ink "For Modus Operandi Bureau". The Finger Print Bureau will give classification of these slips and write previous convictions, if any, on the slips and return them to the Chief Operator who will send them to the Police Station concerned for attaching the same with the Main Crime Record card. The Police Station Officer will attach the finger impression slips with the Main Crime Record card, retain a copy

for the Police Station and send the remaining Main Crime Record cards along with the extra finger impression slips to the District / City Modus Operandi Bureau. The District/City Modus Operandi Bureau will retain a copy for their Bureau and send one copy duly prepared to the State Modus Operandi Bureau along with the extra finger impression slips duly numbered. The State Modus Operandi Bureau will retain the Main Crime Record card along with the finger impression slips for their record and write the number on the extra finger impression slips and send the same to the Finger Print Bureau for their record. Details are given in para No.3 of the Appendix referred to in sub-rule (12).

(3) The Main Crime Record cards should be opened by the Police Station Officer for all criminals of the categories shown above who are either residents of their Police Stations or concerned in the offences of the Police Stations. In the latter case (outsiders), the cards should be opened and sent to the respective Police Stations under intimation to the District Modus Operandi Bureau.

(4) (a) The Main Crime Record card will be of white colour and 32 x 20 cms in size in Form No. PM. 203 eg. It will have photographs of criminals wherever available in the middle, front and profile. Where photos are not available, the space will be left blank and reasons in brief should be stated therein.

(b) The Police Station Officer should prepare two copies of each Main Crime Record card, retain one for the Police Station and send the other to the District Modus Operandi Bureau for further action.

(5) The Main Crime Record cards will be numbered serially as they are prepared and maintained in that order, cards of surveillees and absconders being however kept in separate groups but in the order of serial number. Once a serial number is allotted to a particular criminal, it will be permanent and shall never be allotted to any other criminal in future.

(I.G. 's C.M. No. 7209, dated 20th July, 1951)

(6) Persons having technical convictions for any of the offences of the above categories should not find place in the record and if there is no overriding criminal intention in the commission of the crime like removing property in furtherance of the civil claim, Main Crime Record cards of such persons should not be opened.

(7) Travelling criminals who are active in the Police Stations should be included in the index.

(8) The Main Crime Record cards should be kept in three files, viz. (i) general file (ii) file of surveillees and (iii) file of absconders. As soon as an absconder / surveillee who is out of sight is traced, his card should be transferred to the appropriate place in the general file. Similarly, if any of the criminals from the general file absconds, his card should be transferred to the absconders file till he is traced.

(9) If any of the criminals leaves the Police Station but resides permanently at another place, his card should be transferred to the Police Station of his new place of residence under intimation to the District / City Modus Operandi Bureau.

(10) The responsibility for maintaining the Crime Index will rest entirely on the Police Station Officer and no orders of any superior officer will be necessary to enter or delete any names in the Index. The actual entries can be made by any Police Officer. Superior Police Officers are expected to take interest in the maintenance of the Index ensuring that they are

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properly maintained by a reference to the Crime Registers. They should however make no routine entries, on the crime records as at present like, "Requires watching," "Shows no improvement", etc. Actually, the system of surveillance, as it exists at present, is without legal authority and more grandiose than real and useful.

(11) The Police are in duty bound, and in the interest of efficient detection of crime, to keep their eyes on all anti-social elements and the classification 'surveillee' is only intended to mark out the more active of the criminals. The serial number and the District and C.I.D. L.C.B. number, if any, should be mentioned in the card and in the remarks column of the Police Station Conviction Register.

(12) In a nut-shell, the Main Crime Record cards should be maintained up-to-date so that as soon as the card is taken in hand, the latest position regarding the whereabouts and activities of the

persons can be known from the Main Crime Record card itself. Other details are given in Appendix XXXI.

(I. G. 's C. M. No. 7209, dated 20th July, 1951)

477. Registers and Forms to be maintained at the Police Stations.-(1) The Police station Officers will maintain Modus Operandi register in Form No. SPL. IGP. 122 ego All le Main Crime Record cards will be entered serially. The Main Crime Record cards will be given serial numbers according to the Modus Operandi register and as stated in the foregoing rules. Once serial number is allotted to a particular criminal, it will be permanent and shall never be allotted to any other criminal in future.

(2) All the Police Stations will also maintain the following registers and forms for the purpose of maintenance of Modus Operandi system:-

(a) *Registers:*

- (i) Jail release register for sub-jails (SPL. IGP. 123 eg)
- (ii) Register of smugglers (SPL. IGP. 124 eg)
- (iii) Forms of gang register (PM. 127 eg).
- (iv) History sheet register (PM. 225 eg).
- (v) Return of convicts cloused at P.R.T. (PM. 195 eg).
- (vi) Crime Directory (SPL. IGP. 128 eg)
- (vii) Modus Operandi Index Crime Directory (SPL. IGP. 129 eg)
- (viii) Crime Directory for railway Police Station (SPL. IGP. 128A eg).
- (ix) Modus Operandi Index to Crime Directory for Railway Police Station (SPL. IGP. 129A eg)
- (x) Register of property stolen and recovered (Replaces muddamal register PM 228 eg).
- (xi) Absconder register Part 'A' for absconders in cases registered in Home Police Station (SPL. IGP. 17C eg)
- (xii) Absconder register Part 'B' for absconders in cases registered in other Police Stations but residents of home Police Stations (SPL. IGP. 17D eg)
- (xiii) Deserter Register (SPL. IGP. 17E eg).
- (xiv) Register of Information sheet dispatched (SPL. IGP. 131 eg).
- (xv) Register of Information sheet received (SPL. IGP. 131A eg).
- (xvi) Statement of identifiable (a) stolen or lost or (b) recovered article (SPL. IGP. 132 eg).
- (xvii) Index to history sheets and personal files Parts I and II (SPL. IGOP. 125-A eg).
- (xviii) "A" Roll (PM. 102G eg).
- (xix) "B" Roll (PM. 102H eg).
- (xx) Village Crime Note Book Part I to VI.

(b) *Forms:*

- (i) Crime report/ "E" form (PM 218 eg).
- (ii) Descriptive roll (SPL. IGP. 46 eg).
- (iii) Form of communicating the information of motor vehicles used in commission of crime (SPL. IGP. 126 eg).

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- (iv) Incident report card (SPL. IGP. 126 eg).
- (v) Incident report card (SPL. IGP. 126A eg).
- (vi) Final report (PM 126 eg).
- (vii) Hue and cry notice (SPL. IGP. 134 eg).
- (viii) Look-out notice (SPL. IGP. 135 eg).
- (ix) Information sheets (SPL. IGP. 130 eg).

Details of Crime Report/"E" Form, Village Crime Note Books Parts I to VI, and Absconders register have been given separately in Rules 63 to 67. As regards the other registers and forms, detailed instructions for writing have been given in the registers and forms.

(G. L., H. D. No. PEQ-1067-4429-C, dated 4th May, 1973)

478. Absconders Register.-(1) The District/City (Commissionerate area) Modus Operandi Bureau will maintain absconders register in two parts, viz. Absconders Register Part: I in Form No. SPL. IGP. 17 ego for absconders in cases which have been registered in the District / City and Absconder Register Part II in Form No. SPL. IGP. 17 A eg for absconders in cases registered in other districts but residents of or likely to visit home district / city.

(2) Similarly this register will be maintained in two parts, viz. absconders register Part "A" in Form No. SPL. IGP. 17C eg for absconders in cases registered at the Police Station and Absconders register Part "B" in Form No. SPL. IGP. 17-d eg for absconders in cases registered in other Police Stations but residents of home Police Stations.

(G. L., H. D. No. PEQ-1067-4429-C, dated 4th May, 1973)

479. Crime Report known as "E" Form.-(1) (a) The primary unit to supply information for the building up of the system being a Police Station, the officer incharge shall supply information in Form "E" (P.M. 212 eg) to the District Modus Operandi Bureau and the State Modus Operandi Bureau, along with a copy of the First Information report immediately when a case of one of the crime index categories is registered, together with any additional clue that may be obtained about the accused and the property and the final result of the case. The investigating officer, while recording the First Information Report should record it eliciting and ascertaining information on the points required to be filled in "E" form when the person reporting the crime is not in a position to give details of ef1ch item of "E" form. The investigating officer on reaching the scene of offence will observe the scene of crime minutely and send supplementary report in respect of the remaining information for the District/ City / State Modus Operandi Bureau to enable them to give suggestions.

(b) Detailed instructions for writing crime report "E" Form are given in accompaniment Appendix XXXI.

(2) On receipt of the suggestions from the District/City State Modus Operandi Bureau, the investigating officer shall enquire about the whereabouts of the suspects on the day and time of the offence and, if found absent during that period, should take all legal steps and carry out thorough investigation after which the result of the enquiry should be reported to the Modus Operandi Bureau concerned. If the suspect be the resident of another Police Station limits, the Police Station Officer concerned should be requested to enquire as indicated above without loss of time and the latter shall intimate the result immediately. The idea is to eliminate the possibilities of various criminals and narrow down the line of investigation for a specific clue.

(G.L., H.D., No. PEQ-1067-4429-C, dated 4th May. 1973)

480. Rogues Gallery.-(1) The Photographic collection or Rogues' Gallery should be formed from duplicates of photographs attached to the Main Record Card and will be pasted in an album by the classification of offences and Modus Operandi. This will facilitate reference and identification by Police officers and witness.

If the resources of a Police Station permit. it is advisable to maintain the above Registers and Indexes of selected offences and persons to facilitate crime investigation. Section houses and out posts could also have such indexes and photographic albums. Wherever possible and if sufficient enthusiasm and energy is forthcoming in the staff. Exhibiting photographs of criminals on board does not serve the purpose of identification a the photographs will become faint and likely to be worn out. The photographs, therefore, should be grouped category-wise in the album.

(2) For detailed instructions for taking photographs etc., see the Bombay Identification of Prisoners Rules, 1936 framed under Section 8 of the Identification of Prisoners Act, 1920 and incorporated in rule 313 and its appendix.

(3) According to Section 3 of the Identification of Prisoners Act, 1920, every person who has been convicted for an offence punishable with rigorous imprisonment for a term of one year or more or any offence which would render him liable to enhanced punishment on subsequent conviction or ordered to give security for good behavior, under Section 117, Criminal Procedure Code, shall, if required, allow his measurements and photographs to be taken by a Police Officer in the prescribed manner. According to Section 4 of the Identification of Prisoners Act, any person who has been arrested in connection with an offence punishable with rigorous imprisonment for a term of one year or more shall, if required by a Police Officer, allow his measurements to be taken in the prescribed manner. Breach of Sections 3 and 4 is punishable under Section 186, Indian Penal Code, vide Section 6 of the Act.

(I. G. 's C. M. No. 7209, dated 20th July, 1951)

481. District/City (Commissionerate area) Modus Operandi Bureau.-(I) The Bureau will maintain Main Crime Record cards in the same manner and for the same categories of criminals for the area under the charge, like the Police Station as prescribed in rule 476. It follows from the foregoing rules that the District/City (Commissionerate area) Modus Operandi Bureau will receive from the Police Stations the duplicate of Main Crime Record cards maintained at the Police Stations with a view to tracing criminals by reference to the Modus Operandi, name or other peculiarities, etc. These Bureaus will, in addition, maintain the following indices and records:-

- (i) Index card (P. M. 205 eg).
- (ii) Alias card (P. M. 205 eg).
- (iii) Modus Operandi Index form (P. M. 206 eg).
- (iv) Style index card (P. M. 207 eg).
- (v) Trade Mark Index card (P. M. 208 eg).
- (vi) Descriptive, Deformity and Physical peculiarities card (P. M. 209 eg).
- (vii) Transport Index card (P. M. 223 eg).
- (viii) Wanted Index card (for absconders) (P. M. 210 eg).
- (ix) Wanted Index card (for abducted persons) (P. M. 210A eg).
- (x) Wanted Index card (for missing persons) (P. M. 210B eg).
- (xi) Wanted Index card (for dead bodies) (P.M. 210C eg).
- (xii) Property card lost/stolen (identifiable) (P. M. 211 eg).
- (xiii) Property card recovered (identifiable) (P. M. 211A eg).
- (xiv) Case Index card (P. M. 229 eg).

Registers: -

- (i) Modus Operandi Register (SPL. IGP. 122 eg).
- (ii) Day Book of undetected cases registered (SPL. IGP. 52 eg).-
- (iii) Jail Release Register (SPL. IGP. 123 eg).
- (iv) Register of smugglers (SPL. IGP. 124 eg).
- (v) Register of gangs (P.M. 127 eg).
- (vi) Register of deserters (SPL. IGP. 17B eg).

- (vii) Register of crime reports received (SPL. IGP. 127 eg).
- (viii) Absconders Register Part I (SPL. IGP. 17C eg).
- (ix) Absconders Register Part II (SPL. IGP. 17 A eg).
- (x) Register of property (stolen and recovered) (P. M. 221 eg)
- (xi) Return of convicts clausured at P. R. T. (P. M. 195 eg).
- (xii) Alphabetical Index to history sheets and personal files Part I (SPL. IGP. 125 eg)
- (xiii) Serial Index to history sheets and personal files, Part II (SPL. IGP. 1.25A eg)
- (xiv) Form to be used for communicating the information of motor vehicles used in the commission of crime. (SPL. IGP. 126 eg).
- (xv) Incidence Report card (SPL. IGP. 126A eg).
- (xvi) Final Report card (Form 'B') (SPL. IGP. 126B eg).
- (xvii) Final report (P.M. 126 eg).
- (xviii) Hue and Cry notice (SPL. IGP. 134 eg).
- (xix) Look-out Notice (SPL. IGP. 135 eg).
- (xx) Descriptive roll (SPL. IGP. 140 eg).
- (xxi) Information sheet (SPL. IGP. 130 eg).
- (xxii) Rogues Gallery.

(2) Instructions for writing absconders register and maintenance of rogues gallery are given in rules under this Section. As regards writing of other registers and forms, detailed instructions have been written in the registers and forms.

(3) On receipt of crime report ("E" form), the District/City (Commissionerate area) Modus Operandi Bureau will study the records maintained in their offices and send genuine suggestions with a view to enabling the investigating officers to detect the offences.

(G. M., H. D., No. PEQ-1067-4429-C, dated 4th May, 1973)

482. State Modus Operandi Bureau.-(1) The State Modus Operandi Bureau will maintain Main Crime Record cards of all criminals in the State in the same manner and for the same categories of criminals like the Police Stations and District/City (Commissionerate area) Modus Operandi Bureaus.

(2) It will maintain the Index Cards as maintained by the District/City Modus Operandi Bureaus.

(3) It will maintain all registers as maintained by the District/City Modus Operandi Bureaus, M.O.B.-wise.

(4) It will maintain all forms received from the Police Stations/District/City Modus Operandi Bureaus.

(5) It will maintain rogues gallery of all the criminals on the same lines as maintained, by the District/City Modus Operandi Bureau.

(6) Due to inception of Data Processing Machines at the State Modus Operandi Bureau it will prepare punch cards, code book and forms for coded information from the information received from the Police Stations and District/City Modus Operandi Bureau.

(7) On receipt of Crime Report/"E" Form, the State Modus Operandi Bureau will study the record maintained in the office and send genuine suggestion with a view to helping the Police Stations in the detection of undetected offences. .

(I. G. 's C. M., No. 7209, dated 20th July, 1951)

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483. Supervision of Modus Operandi system maintained at the Police Stations, District/City (Commissionerate area) and State Levels.-(1) The Commissioner of Police/Range Deputy Inspector-General of Police and the Deputy. Inspector-General of Police. C.I.D.. (Crime and Railways), Superintendents of Police, Sub-Divisional Police Officers and the Circle Police Inspectors, while inspecting Districts Police Stations Crime Branch. Should inspect the records of the Modus Operandi Bureau thoroughly and ensure that the Modus Operandi Bureau records are maintained properly and that the criminals who are active are closely watched by all concerned and that when the criminals have gone out of Sight, enquiries have been made and perused and that all out efforts have been made to trace such 'out-of-sight' criminals till they are finally located and should draw inspection notes and should also give instructions and guidance to the officers concerned in the maintenance of the Modus Operandi Bureau records ultimately resulting in the improvement of the Modus Operandi system.

(I. G. P. 's Cirs. No. 7209, dated 26th October, 1956 and No. G/1927, dated 8th June. 1972.)

(2) Sub-classification of Indexes are given in Appendix XXXII.

SECTION III.-GUJARAT STATE POLICE MOTOR TRANSPORT.

484. Object of the Police Motor Transport.-(1) In order to facilitate quick movements of the Police Force in the State and to make the force self-sufficient in the matter of transport required for the performance of duties, especially in times of emergencies such as riots, communal or other disturbances, strikes, etc; a certain number of motor road vehicles and watercrafts of different types have been provided for all districts (including the Railway) and State Reserve Police Force Groups. the distribution being based on the varying needs of each district or unit. The vehicles are ordinarily kept at district Headquarters. but are also in some cases allotted to important Police Stations in the districts. The water-crafts are posted at important points on the coast and in the interior.

(ii) *Main types of vehicles used.*—Mostly vehicles of the following types are used:-

Class	Types
5 to 7 tons (4 X 2)	... Personnel Carrier, Prison Van, Goods Truck.
1 ton to 5 tons	... Light Van, Personnel Carrier, Prison Van. Ambulance.
4 X 2, 4 X 4	... Station Wagon. Car.
0.25 ton, 4 X 2, 4 X 4.	... Jeep.
5.00 CC, 3.50 CC or less.	... Motor Cycle, Scooter, Moped etc.

(iii) Special types of vehicles.-These include-

- (a) Mobile Canteen;
- (b) Mobile Workshop Van;
- (c) Workshop Wrecker or recovery van;
- (d) Break-down Van;
- (e) Petrol tanker;
- (f) Water tanker;
- (g) Trailer; and
- (h) Ambulance.

Scales of vehicles are given in Appendix XXIII.

485. Organization of the Police Motor Transport.-(1) The Motor Transport Organization consists of (i) Motor Transport Section at Headquarters of each District/Unit and (ii) Motor Transport Workshops at Baroda and Rajkot.

(2) The Motor Transport Sections, which consist of motor vehicles as well as water crafts in some districts, are generally under the control of the Superintendent of Police of the District or the

Commandant of the State Reserve Police Force Groups, as the case may be. However, they are under the technical supervision of the Deputy Superintendent of Police, Motor Transport.

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(3) The Motor Transport Workshops are directly under the control of the Deputy Inspector-General of Police, Armed Units, who is assisted by a Deputy Superintendent of Police and a Police Inspector, Motor Transport. At the District Headquarters, the Headquarters Inspector/Sub-Inspector is generally responsible for looking after the Motor Transport Section, whereas at the Headquarters of the State Reserve Police Force Groups, this responsibility lies with the Sub-Inspector, Motor Transport. These officers are assisted by qualified Head Constable Supervisors to supervise the day-to-day work of the drivers, keep the stores and maintain Motor Transport records. In addition, there is a staff of driver mechanics of the grade of Head Constable I and II or civilian fitters for looking after the maintenance and running repairs of Police motor vehicles. The necessary number of Driver Head Constables/Constables for driving the vehicles are attached to the district or State Reserve Police Force groups concerned. In addition, Constables trained in driving and having, driving licenses are appointed as Emergency Drivers.

(4) The Police Motor Transport Workshops are in charge of Police Inspectors, Motor Transport (Foreman), who are assisted by Sub-Inspectors, Motor Transport and other technicians, including drivers and tradesmen. The workshops are equipped to carry out major repairs and reconditioning of motor vehicles.

(5) A Mobile Workshop Van fitted with equipment and manned by technicians is attached to each Range Workshop. This Mobile Workshop tours the various districts within the Range at frequent regular intervals and repairs vehicles on the site. Second line repairs are carried out by the Mobile Workshop.

(6) A Marine Mobile Crew is stationed at Baroda which tours the whole State wherever Police Water Crafts are stationed. Repairs to water-crafts are carried out at site by this Mobile Crew.

486. Driving Licence.-(1) Every driver constable must be in possession of a valid civil driving licence.

(2) Government vehicle drivers, who are certified as such by the Superintendent of Police, are exempted from paying testing and driving licence fee and renewal fee.

(Sec. 3 of M. V. Act, 1939 and Rule 24 (a) (i) of Bombay Motor Vehicles, Rules, 1959)

487. Duties of the Police Motor Transport Staff.-(1) *Duties of the Deputy Superintendent of Police, Motor Transport.*-(1) To advise the Inspector-General of Police on all matters regarding Motor Transport, especially in those cases where expert knowledge is called for.

(ii) To deal with such questions regarding Police Motor Transport as affect the whole State and to advise Superintendents of Police and Commandants of the State Reserve Police Force Groups on the technical side of the question of Motor Transport in their districts or groups.

(iii) To supervise and inspect the work of Police Inspectors, Workshops and Stores, Police Inspector, Launch Maintenance Officer etc.

(iv) To inspect Police Motor Transport Branches in the districts, Motor vehicles, Launches and boats in the State and to see that they are well maintained.

(v) To interview and test persons for being appointed to the posts of Technicians, Driver Mechanics, Fitters, Drivers, Tradesmen, etc. To arrange and conduct training of Motor Transport staff and to hold upgrading tests.

(vi) To conduct special inquiries in connection with-

(a) serious accidents to Police vehicles.

(b) unsatisfactory working of Motor Transport Section or any individual Motor Transport staff.

(c) disciplinary conduct of Motor Transport staff, departmental proceedings, etc.

(vii) He will supervise and conduct, if required, training courses for drivers, driver mechanics, Dinghy drivers, etc.

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(viii) He will attend to all other matters concerning Motor Transport, entrusted to him by the Deputy Inspector-General of Police, Armed Units, under whose direct control he will be working.

(2) *Duties of the Police Inspector, Motor Transport.*-The Police Inspector, Motor Transport will perform the following main duties amongst others: -

(i) Test candidates for appointment as driver constables; arrange and conduct training of drivers.

(ii) Inspect thoroughly Police Motor vehicles in the districts and issue defect memos where necessary.

(iii) See that the defects pointed out during inspection are remedied by those concerned.

(iv) Scrutinize estimates of repair work sent to him by the Superintendent of Police.

(v) Assist in the procurement of spare parts, etc. from wholesale dealers at concessional rates.

(vi) Supervise the work of drivers, mechanics, Motor Transport supervisors, fitter, etc. and guide them as and when necessary.

(vii) Maintain contact with the officer-in-charge of Motor Transport in each district or State Reserve Police Force Group, advise him on all technical matters when necessary and also to assist in running and maintaining the Motor Transport in the district as efficiently as possible.

(viii) Check the records in respect of Police Motor vehicles, stores, tools and petrol consumption and to point out irregularities etc., if any.

(ix) Carry out such other duties as the Deputy Superintendent of Police, Motor Transport, may from time to time assign to him.

(3) *Duties of Police Inspector (Technician), Police Sub-Inspector (Technician) and other Transport Officer in District or State Reserve Police Force Groups.*-(i) The Motor Transport Officer is directly in charge of the Motor Transport Section of a District or State Reserve Police Force Group to which he is posted.

(ii) He is under the control of the Superintendent of Police or Commandant concerned for administrative purposes and under the technical control of the Deputy Superintendent of Police, Motor Transport.

(iii) He is responsible to inspect thoroughly all vehicles in his charge periodically and to maintain them in tip-top roadworthy condition always as far as possible.

(iv) He will control and supervise the work of all branches in the Motor Transport Section under his charge, such as : -

(1) Traffic.

(2) Repairs and maintenance.

(3) Transactions of stores (P. O. L. and spares etc.)

(4) Maintenance of various Motor Transport records.

(5) Administration.

(v) He will make necessary arrangements for inspection of the Motor Transport Section in his charge by superior officers and keep all the stores, ledgers and other Motor Transport records up-to-date. He will also take necessary action and comply with instructions and inspection notes promptly.

(vi) He will ensure proper allocation of duties to his subordinate staff and maintain their efficiency and discipline.

(vii) He will bring to the notice of his controlling officer promptly any cases of irregularities, indiscipline, misuse of vehicles, accidents, etc.

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(viii) He will attend to all matters pertaining to Motor Transport Section, assigned to him by his superiors from time to time.

(4) Duties of Police Inspector, Foreman, Workshop.-(i) He will be the officer directly responsible as Manager and immediate executive of the workshop in his charge and will work under the control of the Deputy Superintendent of Police, Motor Transport.

(ii) He will supervise and control the work of all the branches in the workshop and maintain discipline and efficiency of the Police Central Motor Transport Workshop.

(iii) He will be responsible for repair estimates and final inspection of repaired vehicles and will test them, before delivery, to the complete satisfaction.

(iv) He will be responsible to maintain prescribed out-put of work of the workshop. He will take necessary action to ensure that progress of work is not hindered due to delay in supply of stores or labour and other avoidable difficulties.

(v) He will carry out personally periodical checks of spare parts, machines, stores, etc. and will ensure smooth and efficient working of store transactions and see that there are no irregularities.

(vi) He will promptly bring to the notice of the controlling officer cases of indiscipline, accidents, Irregularities etc. for necessary action.

(vii) He will see that all machinery tools and other workshop equipment in his charge are maintained in good condition.

(viii) In short, he will strive to maintain high efficiency in the workshop in his charge and will carry out such other duties pertaining to workshop, assigned to him by his superiors from time to time.

(5) Duties of Head Constable Driver Supervisor (Motor Transport).-(i) The Supervisor is in charge of the Drivers. He is responsible to allot duties to the Drivers in absence of the Motor Transport Officer (Technician). He will see that the Drivers carry out their duties satisfactorily, that they are well disciplined and attend parade at least twice a week and that they carry out the tasks laid down for them promptly and regularly.

(ii) He is in charge of the Motor Transport Stores, tools, account books, ledgers and Motor Transport records of his unit. He will see that these are properly and correctly maintained.

(iii) The Mechanics and Cleaners are not under him and as such he will cause the Motor Transport Officer to issue instructions or orders, if any, to them.

(iv) He will be responsible for the cleanliness and orderliness of the Motor Transport Unit in general and shall take care to maintain the same accordingly.

(v) He will be assisted by a Police Constable Writer, where provided, in his stores and records maintenance work.

(vi) He will bring to the notice of his Motor Transport Officer immediately any irregularities, cases of indiscipline, unauthorized use of vehicles, etc. and in general act in a manner so as to maintain a high standard of efficiency of his Motor Transport Unit.

(6) Duties of Head Constable Driver Mechanic.-(1) He is a technical hand and is directly responsible for the proper mechanical condition of the vehicles in his charge and as such will carry out regularly, promptly and expeditiously all servicing, maintenance and first line repair tasks. He will also act as a convoy leader whenever required specially in the case of State Reserve Police Force Groups (in charge of five vehicles or less) and be , entirely responsible for the proper servicing and maintenance of the vehicles, for the discipline of the drivers and for the internal economy of the vehicles in his charge.

(ii) He will be assisted in his work by cleaners, and the driver of the vehicle which is being attended to.

(iii) He will inspect the vehicles carefully and ensure that they are properly used and kept clean and tidy at all times.

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(iv) He will indent all his requirements viz. spare parts, materials, tools. etc. from the Unit Motor Transport Stores through the Motor Transport Officer and make necessary entries in Sections D and E respectively of the Log Book of the vehicles attended to.

(v) He will be responsible to keep and maintain all tools and equipment given in his charge in proper condition at all times.

(vi) He will give instructions to drivers and trainees in driving, cleaning and maintenance duties whenever required so that vehicles may be driven correctly and kept in tip-top condition.

(vii) He will write his daily work briefly in his diary which will be produced for Inspection of Inspecting Officers.

(viii) He will carry out his duties promptly at all times and see that every vehicle in his charge is in a roadworthy and running condition. When a vehicle is required to be attended by the Mobile Squad or by the Central Workshop, he will report to his Motor Transport officer for necessary action.

(7) Duties of the District Head Constable Mechanic or Motor Vehicle Fitter.-Every lead Constable Driver Mechanic or Motor vehicle fitter is responsible for keeping all the vehicles in his charge in sound mechanical condition and to carry out such duties as may from time to time be assigned to him.

(8) Duties of Police Driver Head Constable.-(i) He will perform duties similar to those of driver Police Constable enumerated in sub-rule (9).

(ii) He will assist the Head Constable Motor Transport Supervisor in general duties of Motor Transport.

(iii) He will supervise the daily, weekly and periodical maintenance of the vehicles and see that Police Constable drivers in charge of the vehicles carry out their duties/maintenance properly.

(iv) He will also check the Police Constable drivers in Motor Transport section for their good turn out and discipline.

(v) In case of V.I.P. duties, he will act as driver of V.I.P. vehicles, if necessary.

(I.G. P. 's Memo. No. MT/186/PM/105, dated 19th January, 1974)

(9) Duties of Police Driver Constables.-(i) Whenever he takes charge of any vehicle he will inspect it carefully and ensure that it is in good and road worthy condition. He will not drive it out if found defective unless the defects likely to give trouble on the way or to cause delay or accident are rectified by the Driver Mechanic or Motor vehicle fitter.

(ii) He must be properly dressed and must always carry with him his certificate of appointment and his valid driving licence; the latter should be got renewed whenever due, through the Superintendent of Police, or other superior under whom he is working.

(iii) Under no circumstances will he drive rashly or at a speed faster than the limits and speed restrictions laid down under rules. He will observe and act according to the Road Traffic Signs.

(iv) He should avoid driving faster and applying brakes violently, again taking off in lower gears. which action is unsafe and results in not only waste of petrol but also causes quick wear of gears, clutch and tires.

(v) He is responsible to present the vehicle Log Book to the user of the vehicle for making entries when the trip or journey is completed and to see that it is properly filled in at Part (B) and signed by the user

(vi) When he calls at the Petrol Pump for petrol and oils, he will make sure that he has received the correct quantity of petrol and oil and that an entry has been made and signed in the Log Book in Part (C) by the issuer and himself

(vii) On return from duty, he must give the "All's well" to the local officer in charge of Motor Transport and report to him any untoward incident, accident, delay or defect in the vehicle that might have occurred during his period of duty. In the latter case, he shall make the necessary entry in the driver's report book.

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(viii) He is responsible for keeping his vehicle clean and in good mechanical condition and for this purpose he will take necessary action and make sure that-

(a) his vehicle is cleaned frequently and serviced whenever it is due; that his vehicle receives necessary attention on the weekly maintenance day.

(b) sparking plugs and C.B. points are cleaned and their gaps adjusted to the manufacturer's specifications after every 800 Kms run,

(c) unnecessary idling of the engine is avoided and that the engine is switched off when the vehicle is not moving,

(d) tappets are adjusted after 1600 Kms. run.

(e) all tires are inspected nails and stones removed and cleaned every day, Inflated to correct pressure their position changed by rotation after every 4000 Kms. run and the new positions and dates paint-marked on them on the outer side,

(f) all the four wheels are frequently jacked up and tested to ensure that they are not binding or fouling and are revolving freely when gears are in neutral and a brakes released.

(g) while driving 4 x 4 vehicles, front axles are normally disengaged and the front wheel drive control lever is in the rear position. i.e. in neutral.

(h) the petrol system is in order and that it is not choked or leaky at any point especially at unions and bends; that the carburetor mixture is neither "rich" nor "lean"

(i) the engine is tuned up by the Mechanic or the Fitter at the time of monthly check up.

(j) that all other periodical tasks and repairs are carried out promptly.

(ix) He is responsible for the safe custody of the vehicle Log Book during his period of duty and will transfer it to his reliever or to the local officer in charge of the Motor Transport, as the case may be when his duty is finished.

(10) Duties of the Police Inspector, Launch Maintenance Officers.-(i) He is in direct charge of the staff meant for repairing the Police Water Craft in the State.

(ii) He will periodically inspect all the Water Crafts stationed at different places in the State and will supervise the working of Launch Repair Crew as well as the personnel working on different water crafts.

(iii) He will work under the direct control of Deputy Superintendent of Police, Motor Transport, and shall carry out any other special duties assigned by him from time to time.

(iv) He will also inspect the stores and the records of Water Crafts in the various districts and see that they are properly maintained.

(v) He will personally carry out periodical checks of all the stores and equipment in his charge and also stores, equipment, tools, etc. supplied to various water crafts and will advise the Superintendents of Police when required, regarding the same.

(vi) He will draw up the technical reports and condemnation proceedings in respect of condemned water craft and will be a member of the condemnation committee in place of Police Inspector, Motor Transport.

(vii) He will advise the District Officers regarding running and maintenance of the water craft if called upon to do so. He will promptly bring to the notice of the controlling officer concerned as well as the Deputy Superintendent of Police, Motor Transport, all cases indiscipline, accident and irregularities, for necessary action,

(viii) He will assist the District Police Officers, if required, in procuring spare and such other material required by them for their water craft.

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(ix) He will see that proper storage arrangements are made for the water craft during monsoon when they are not in commission. He will advise the concerned District Officers with a view to ensure that adequate sheltering arrangements are made in time in order to avoid any damage and deterioration of water craft.

(x) In short, he will strive to maintain high efficiency in the working of the various water crafts stationed at different places in the State.

(xi) He will assist the Deputy Superintendent of Police, Motor Transport, in recruiting, training and testing the various crew of the water craft.

(11) *Duties of the Police Sub-Inspector Assistant Launch Maintenance Officer.*- He will generally assist the Police Inspector Launch Maintenance Officer in various duties laid down above for Police Inspector Launch Maintenance Officer and act under his orders.

(12) *Duties of Launch and Dinghy Crew.*-(i) *On Launches.*-(1) *Driver in charge.*-To start and stop engine, manipulate gears as required by Sarang; he is responsible for the care and maintenance, servicing of the engine and all mechanical appliances and auxiliaries and shall maintain the log and other records. He shall also arrange to post the watch of one Head Constable and one Police Constable from the crew on board at all times.

(2) *Sarang.*-To steer and pilot the craft, and look after the daily cleaning and maintenance and painting of the craft and control the Khalasis. He shall be responsible for keeping all the accessories in good condition and storage. To anchor or tie up the launch satisfactorily in a safe place and see that all safety precautions are taken for the upkeep of the launch.

(3) *Second Driver*.- Shall assist the driver-in-charge and to officiate for him in his absence or relieve him whenever required.

(4) *Khalasi/Lascars*.-To carry out all the duties such as are lawfully assigned by the Sarang

(ii) On Dinghies.-(I) Driver.-Shall carry out the combined duties of driver-in-charge and Sarang in maintenance, running and storage, as specified for Launches above.

(2) Khalasi / Lascar .-Shall carry out all duties as assigned by the driver.

(13) *Duties of Civilian Tradesmen*.-(a) Electrician.-(i) The Electrician will carry out all the repairs to the electrical appliances, fittings, circuits, etc. of the motor vehicles. He will also carry out any internal lighting wiring if necessary.

(ii) He will maintain all his tools and instruments in good condition and will be responsible for the safe custody of the items issued to him.

(iii) He will test, charge and repair batteries as required.

(iv) He will maintain record of the battery charging log and present it for the inspection of the Inspecting Officers whenever called for.

(v) He will also maintain a diary of his day to day work and submit it for inspection by the Inspecting Officer.

(b) *Mechanics*.-(i) Mechanics, Painters, Fitters, Blacksmiths, Welders Upholsters and other tradesmen will carry out all the work pertaining to their trade in respect of the vehicles of their Unit, each according to his own trade.

(ii) They will maintain their tools correctly and in proper custody.

(iii) They will carry out all lawful orders relating to their work that may be issued by their superior officers promptly and willingly.

(iv) They will have their daily work recorded in the M. T. Job Book every evening.

(c) *Cleaners*.-(j) The Cleaners/Helpers will be attached to the various senior tradesmen to assist them in their work.

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(ii) They will carry out all orders that may be given to them by the senior tradesman and also try to improve their own knowledge by making use of opportunities offered by day to day work.

All the above tradesmen will abide with the Police discipline and maintain the efficiency of the department.

488. District arrangements for supervision over Police Motor Transport.- The following procedure will be observed by the Superintendent of Police in the administration of Police Motor Transport in his charge:-

(i) The Headquarters Inspector/Sub-Inspector will be the District Motor Transport Officer and will be responsible both for the allocation of vehicles and for the supervision over the work of the Motor Transport Section. He will be subject to the general control of the Home Inspector. In the case of large Motor Transport Sections, a Police Inspector or Police Sub-Inspector (Technician) is appointed as Motor Transport Officer.

(ii) The Motor Transport Officer will receive all requisitions for vehicles and will comply with them in accordance with the general instructions of the Superintendent of Police, referring any extraordinary demands to the Home Inspector. He will see that the Driver Mechanics /Fitter carries out the work ordered by the Police Inspector, Motor Transport, at his inspection and will make sure that all Head Constables and Police Constable Drivers are allotted duties regularly and are kept in good discipline; he should remain present when the Deputy Superintendent of Police, Motor

Transport or Police Inspector, Motor Transport, inspects the vehicles and should make notes of his directions and advice.

(iii) The executive staff of the Motor Transport Section should have adequate training in the use of Arms and in Police discipline, and as such the officer-in-charge of Motor Transport should personally see that they attend the parade twice a week.

(iv) There should be a Supervisor Head Constable to control all drivers (except the Driver Mechanic or Motor vehicle fitter), to distribute duties to them, to attend to daily routine under the supervision of the officer-in-charge of the Motor Transport and to carry out such orders as that officer may give. The Superintendent of Police should, if such a separate post is not provided, allocate a post of II Grade Head Constable from, the sanctioned strength and promote one of the educated and qualified senior drivers if possible to such post on efficiency basis. The person so selected should be sufficiently experienced and trained to carry out the duties mentioned in sub-rule (5) of rule 487

(v) The officer in-charge of the Motor Transport in the District should submit compliance reports to the Superintendents of Police or Commandants within 15 days of the completion of the inspection by the Deputy Superintendent of Police, Motor Transport, or by the Police Inspector, Motor Transport, and should simultaneously submit a copy of the compliance report to the Deputy Superintendent of Police/ Inspector, Motor Transport.

(I. G. P. 's No. 5831-IV, dated 17th October, 1948)

489. Purchase of Motor Vehicles for Police purposes.-When motor vehicles are to be purchased for the Police Department, the Inspector-General of Police will obtain the sanction of Government in the Home Department and make his own arrangements for the purchase of the vehicles through the Industries Commissioner and Central Stores Purchasing Officer. The Inspector General of Police may directly place orders for building bodies of Police vehicles after inviting tenders.

(G. R., H. D., No. 2585/5, dated 23rd August, 1948)

490. Types of Police vehicles and certain constructional requisites.- (I) (a) bodies of the Police motor vehicles should be constructed of approved types as per specifications and designs as suggested by the Deputy Superintendent of Police, Motor Transport. Detachable metal frame guards should be provided for the front windscreen, near portion and lamps of vehicles for protection from stone throwing.

(b) Closed bodies should not be built on the jeeps, which are supplied by manufacturers with removable flaps to close the side-openings and the back-openings.

(G. R., F. D., No. ५२५/1069/2980/ dated 19th September, 1969)

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(c) All irregular modifications like building a metal hood on a jeep, extending the chassis of a jeep to give extra space, etc. should not be done. If there is any, need for modification specific sanction of the Inspector-General should be obtained.

(I. G. 's Cir. No. MT/1124/RBM/72/537, dated 2nd November, 1972)

(2) (a) All Police motor vehicles should be given district serial numbers, which should be painted on the front bumper or other suitable place in the front and in the rear as prescribed by the Deputy Superintendent of Police, Motor Transport. No such signs and numbers should be painted on Criminal Investigation Department, State Traffic Branch vehicles and staff cars.

(I. G. 's No. 6229, dated 1st March, 1948)

(b) The Police numbers can be exhibited for administrative convenience, in lieu of the regular registration marks on motor vehicles provided that the usual registration marks are obtained at the time of registration so that when these vehicles cease to be the property of the Police Department, they will revert to their normal registration numbers.

(3) Petrol/Diesel tanks of Police vehicles must be provided with lock type caps or locking arrangements. The tanks must normally be kept locked and the keys hung on Key Board (sample given below) to be kept under the direct eye of the officer-in-charge of Motor Transport. Ignition keys must be hung in the respective places of the Key Board and taken out when a driver is ordered on duty. The driver must return the key to its place on the Board as soon as he returns from duty.

SAMPLE KEY BOARD

M. T. KEY BOARD

Vehicle No.	...	1.	2.	3.	4.	5.	6.
Petrol key	...						
Ignition key	...						

491. Supply of Petrol/Diesel, Lubricants etc.-(i) Petrol/Diesel and Lubricants may be purchased direct from the principal oil companies at bulk rates if a petrol pump is erected at the District Police Headquarters.

(ii) The local controlling officer (viz. Superintendent of Police, Commandant, etc.) of the petrol pumps at Police Headquarters will be responsible for the running of the pump, ordering the replenishment of supplies, maintaining the accounts, paying the bills for supplies to the Company properly, obtaining the licence for storing the petrol from the Inspector of Explosives, renewing the licence in time and for the safety of the installation.

(iii) A rental of Re. 1 per month will also be paid to the oil company on demand.

(iv) Where there is no petrol pump, the fuel oil is to be purchased from the nearest Agent's pump at the ruling rate.

(2) The Superintendents of Police and Commandants are empowered to write off losses of petrol on account of evaporation to the extent of 0.5 per cent of the total quantity of petrol dealt with in a year (i.e. the quantity of petrol in the tank at the beginning of the period plus the quantity of petrol purchased during the period which is also put in that tank) at all consumer pumps installed at the Police Headquarters.

(G. R., H. D., No. MTS-2258/18944-VI, dated 5th January, 1960)

(3) (a) Petrol/Diesel should be filled in, in Police vehicles from private petrol pumps other than Police petrol pumps either in the presence of Motor Transport Supervisor or the Day Officer, when the vehicle is at Headquarters or in the presence of the user of the vehicle when the vehicle is out of Headquarters. The persons in whose presence the petrol etc. is filled in should invariably sign column No.8 of form "C" of the Log Book.

(b) Whenever the driver hands over charge of the vehicle to another driver, the petrol tank should be checked by both the relieved and the relieving drivers, and entries showing the milometer reading and the approximate petrol in the tank should be made, duly signed by both the drivers in form "B" of the Log Book.

(I. G. 's Cir. No. MT/186/19/72/7380, dated 24th February, 1972)

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492. Maintenance of Police vehicles.-(1) The Superintendents or Police / Commandants should pay personal attention to the Motor Transport of their district/Units and see that all vehicles are maintained well in road-worthy conditions, periodically inspected according to rules, repairs carried out in time, excess expenditure avoided and measures taken for the efficient working of the Motor Transport.

(I. G. 's Cir. No. MT/1124/RBM/72/537, dated 2nd November, 1972)

(2) The maintenance charges per annum for the Police vehicles have been sanctioned at the following rates:-

(a) Motor vehicles:-

(i) Motor vehicles of 3 tonnes and 1 tone ... Rs. 4500/-

(ii) Jeeps, Station wagons, Land Rovers and cars ... Rs. 3500/-

(iii) Motor cycles	... Rs. 1200/-
(iv) State Traffic Branch cars	... Rs. 4500/-
(v) State Traffic Branch jeeps and station wagons	... Rs. 3500/-

(G. M., H. D., No. MTS-2761-76313-C, dated 18th August, 1972)

(b) *Water Crafts:-*

(i) Launches	... Rs. 5,000/-
(ii) Motorised Dinghy	... Rs. 2,000/-

(G.R.H. D. No. PEQ-5055/751/80-VI, dated 24th December, 1959)

(3) The annual running and maintenance charges mentioned above should in no case be exceeded. However, if for any special reasons, the expenditure exceeds the above limits, ex-post-facto sanction of the Government should invariably be obtained through the Deputy Inspector-General of Police concerned and the Inspector General of Police. All the reasons due to which the expenditure is likely to exceed or has exceeded, should be mentioned in details in the report asking for the sanction for the excess expenditure.

(G. L., H. D., No. MTS-1072-5347, dated 17th July, 1973 and I. G. P.'s Cir. No. MT/1123/R & M/73, dated 9th August, 1973)

(4) In order that the vehicles are properly maintained and their fitness, preserved, each driver should be assigned one vehicle which should not be changed unless necessitated due to the driver going on leave or for any such pressing reason. This will facilitate fixing up of the responsibility for any damage done to the vehicle due to mis-handling, negligence or any other reason. Moreover, the driver will have psychotically effect that it is his own vehicle and will always take pride in the good upkeep and maintenance of high efficiency of the vehicle.

(5) For the proper maintenance and cleaning of vehicles, provision of electrical installation of one 15 Ampere A.C. connection and three separate three-pm plugs, Air compressors and other electrical and allied equipments essential for proper servicing are necessary. The standard service ramp and washing platform with facility for water supply should also be provided.

493. Repairs and Spare Parts.-(I) the Superintendent of Police, will provided for the use of motor vehicles in his district as well as for his Motor Transport section the necessary repairs tools, servicing kit and other equipment as recommended by the Deputy: Superintendent of Police, Motor Transport.

(2) Districts which are served by the Range Police Central Motor Transport Workshop should normally get the necessary repairs carried out in that workshop. When in any exceptional circumstances that is not possible, repair work of Police vehicles may be entrusted to one of the authorized or reputed repairers after calling for quotation from any such 3 repairers. The vehicles so repaired should be got inspected by the Police Inspector. Motor Transport, who will certify if the repairs are carried out properly and satisfactorily.

(3) Repair estimates or quotations of Police motor vehicles received from out side repairers which exceed Rs. 500 should be forwarded by the Superintendents of Police of Commandants, to the Deputy Superintendent of Police, Motor Transport, through the Police Inspector, Motor Transport for scrutiny and advice before acceptance.

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(4) The following procedure should be followed for the purchase of Motor Transport pares and other material required by the various district Motor Transport Sections :-

(i) Where there is a local authorized dealer, District Motor transport Sections should buy from him at authorized rates.

(ii) Where there is no local authorized dealer, they should buy from the nearest authorized dealer.

(iii) It is only where they have some difficulty in securing spares that they should address the Deputy Superintendent of Police, Motor Transport, for such supplies.

(iv) As for allied stores like paint, etc., local purchases should be made as long as the need is in small quantities.

(v) As for the purchase of Motor Transport spares, those easily available locally should not be stored. In the bigger districts there is no need to store tires, batteries, etc. It is only in smaller district, where there is no authorized dealer that Some spates are necessary and here again it should be the minimum need.

(I. G. 's Cir. No. C/7460, dated 17th May, 1960)

(5) Tires, tubes and batteries are to be purchased direct from the various tire and battery manufacturers on rate-contract basis.

(6) For average normal life expectancy of various spare parts required for Police motor vehicles, see Appendix XXXIV.

(7) Whenever replacements are made, the Superintendents of Police/Commandants should personally scrutinize and satisfy themselves that the replacements were justified by fair wear and tear. It is also not necessary to condemn tires and tubes just because they have done the required mileage. A committee should be formed to examine the tires and tubes put up for condemnation and the committee should give detailed reasons for condemnation or for continuance or for rethreading. When the tires are condemned, not due to fair wear and tear, but due to the negligence of driver, action should be taken against the driver. Tires should be got rethreaded as far as possible.

(I. G. 's Cir. No. MT/1124/RBM/72/537 dated 2nd November, 1972)

(8) The information on following points should invariably be sent along with the examination and estimate reports, for repairs to the Police vehicles:-

(i) cost of the vehicle.

(ii) total expenditure incurred so far on repairs of the vehicle.

(iii) total mileage done.

(iv) date on which vehicle was taken in use in the Police Department.

(v) whether it would be economical to incur expenditure to the extent of a for repairs.

(vi) whether the expenditure will be met from the sanctioned grants of the vehicle.

(I. G.'s Cir. No. MT/186, dated 11th September, 1964)

(9) Whenever a vehicle is received in the Workshop for repairs, the Police Inspector, Foreman, should send a fortnightly progress report to the Superintendent of Police/Commandant concerned, by name, informing him of the progress made with regard to repair etc, of the vehicle and continue to do so till the vehicle is repaired and returned.

(I. G.' s. Cir. No. MT/186, dated 2nd May, 1964)

(10) Sanction for repairs to vehicle in the Police Central Motor Transport Workshop will be accorded by the Deputy Inspector-General of Police concerned. After receipt of the examination and estimate report, the Deputy Inspector-General of Police concerned should issue necessary orders maximum within a period of seven days.

(I. G. 's Cir. No. MT/1124/R & M/608, dated 24th November, 1972, No. MT/1124/R & M/72/546, dated 5th July, 1973 and No. MT/1124/E & E Report/73/776, dated 20th August. 1973.)

494. Hiring of Motor vehicles for Police purposes.-(I) (a) Except in cases of emergency, Superintendents of Police should submit their proposals retarding hiring of motor vehicles to the Range Deputy Inspector-General of Police, who will see whether the hiring of vehicles is really necessary, taking into account the number of Police vehicles available in the District. Even in cases of hiring of motor vehicles in emergencies, the action of the Superintendent of Police will be subject to the approval of the Range Deputy Inspector General of Police.

(I. G. 's Cir. Memo. No. 5012-III, dated 19th April, 1947)

(b) However, during Parliament or State Assembly elections, the Superintendent of Police may directly decide the number of vehicles that should be requisitioned for the election purposes instead of submitting their proposals to the Range Deputy Inspector-General of Police.

(G. M., H. D., No. MTS-1071-426-C, dated 21st January, 1972)

(2) Whenever an officer finds it necessary to hire private motor vehicles for official use, he should not do so without previously arriving at an agreement regarding rates of hire to be charged for them in consultation with the Director of Transport of the Regional Motor Transport Officer. When this is not possible, such an agreement should be arrived at immediately after the vehicles are hired.

(G. C., H. D., No. 4595/4, dated 7th May, 1947 and I. G. 's No. 5012-III, dated 3rd June, 1947)

(3) Once the vehicles are requisitioned after due sanction of the Deputy Inspector-General of Police as provided in sub-rule (1) (a) above, the payment of bills in respect of such requisitioned vehicles, at the prescribed rates, approved by the Deputy Inspector-General of Police, should be made by the Superintendent of Police concerned.

(G. M., H. D., No. MTS-1071-HLT-122-C, dated 23rd July, 1971)

495. Insurance of Police vehicles.-(1) All Police vehicles should be got insured against third party risks immediately before they are pressed into service, with the Life Insurance Corporation of India Limited directly by the officer concerned to whom the vehicles have been allotted.

(2) All records pertaining to the Police motor vehicles like the renewal of insurance policies, registration certificates, exemption certificates of motor vehicle tax, motor driving licenses etc. should be maintained regularly and renewed as per the provisions contained in the Motor Vehicles Act and Rules.

(G. C., F. D., No. INS-1065-803/Z, dated 28th April, 1965 and I. G. 's Cir. No. MT/186, dated 11th November, 1970)

496. Lending of Police Motor vehicles.-(1) (a) Whenever a Police vehicle is loaned to another District or Unit for a period exceeding one month, relevant records (Registration certificates, History Record Sheet, Log Book, Maintenance Service Log Sheet, M. T. 22 etc.) should always accompany the vehicle and the District or Unit taking over the vehicle should maintain these records for the period the vehicle is used in that District or Unit.

(b) S.R.P. vehicles being sent to various Districts and Units for emergency duties should invariably be returned to their Headquarters after the emergency is over and should not be retained on any pretext.

(I. G. 's Cir. No. MT/186-Vehicles, dated 9th October, 1970 and 11th November, 1970)

(2) Police motor vehicles may be lent to other Government Departments when they can be spared from Police work, at the following rates:-

S. No. , Type of Vehicles	Running charges	Over-head and waiting charges per hour	
		pet mile.	
		Rs.	Rs.
1. Big Cars(5Seaterover12H.P.).. . . .		00.37	2.00
2. Ambulances, Station Wagons, Jeeps, Light Vans, carrying upto 10passengers...		00.43	2.00
3. Medium trucks with normal seating capacity for over 10 persons and Military type Cwt.4 X 4 vehicles.		1.00	2.00
4. Motorized Dinghies or Boats.	(*)	1.00	2.00
5. Motor Launches-running charges per hour. . . .	(£)	18.00	6.00

(*) or Rs. 6 per running hour plus Rs. 2 with minimum charge of Rs. 10 for a journey.

(£) with a minimum of Rs. 48 per journey.

(G. R., H. D., No. 3006/5, dated 6th January, 1954 and I. G. 's Circular No. 1256-A-III, dated 30th March, 1954.)

Note .-(i) Charges will be levied for the entire period from the time a vehicle leaves Headquarters until it returns to Headquarters.

(ii) The total charges will be running mileage charges plus waiting and overhead charges.

(iii) Total time taken for the entire trip minus the actual time taken for the journey will be the period for which the waiting and overhead charges will be recovered.

(iv) The minimum charge for any single journey will be Rs. 2 in the case of road vehicles.

No arrangements of a standing nature should however be entered into. The charges collected should be credited to "055-Police".

(3) All Government vehicles under the control of the Inspector-General of Police, the Deputy Inspectors General of Police and the Superintendents of Police should be placed at the disposal of the Collector when required by him for locust operations.

(G. C., G. A. D., No. M1S-1060/22290-L, dated 15th October, 1960.)

(4) In villages and far flung areas where it is not possible to obtain any public vehicle on hire or any private vehicle the Police vehicle should be permitted for the use by private persons on emergency occasion for getting immediate medical assistance in cases of serious sickness accident. snake-bite etc. The officer to whom the vehicle is allotted should use his discretion in individual cases for giving the vehicle and should report to his immediate superior regarding the use of vehicle as above and obtain ex-post-facto sanction. The officer authorized to give such sanction will be decided by the Home Department. From time to time The Inspector-General of Police shall decide whether to recover the prescribed hiring charges for such use of vehicle by a private person depending on the circumstances under which the vehicle was used.

(G. R., G. A. D., No. ५२५/1072/822/3 dated 25th January, 1973)

(5) Police vehicles may be lent to Government servants for private work. This concession should be given very sparingly. The charges should be recovered from the Government servants at the following rates and should be credited to "055-Police."

Type of vehicles.	Rate
(1) Station wagon	75 paise per Km.
(2) Big cars of over 12 H. P.	75 paise per Km.
(3) Small car of 12 H. P. and below.	75 paise per Km.

The detention charges shall be as under:-

First hour	: No charge.
Next eight hours	: 50 paise per hour
Period exceeding nine hours.	: Re. 1 per hour.

(G. R., F. D., No. TRA-1464-III, dated 20th November, 1964, No. MSB-1071/2061-J, dated 21st April 1972, and MSB-1071/654-(i)/J, dated 14th February, 1974)

497. Use of Police Motor Vehicles.-(1) Where possible a requisition (in Form No. 27 in Appendix I) for Police Motor Transport should be made 24 hours ahead to enable the officer-in-charge of the Motor Transport to regulate and amalgamate the runs.

(I. G. 's No. 5662-Y, dated 3rd December, 1947)

(2) (a) Where a Government vehicle is provided it must be used for all permissible official work irrespective of the fact as to whether the allottee possesses a private car of his own or not. No claim for road mileage will be admissible when a Government vehicle is available for use. It is only when the Government vehicle goes out of order and as such is not readily available for use that an officer may use his private car with the prior permission of the Deputy Inspector-General of Police concerned. When there is no time to obtain such prior permission, the allottee may use his private car subject to ex-post-facto sanction of the Deputy Inspector-General of Police concerned. Such occasions should however, be rare as Government vehicles are expected to be kept in good state of repairs.

(I. G.'s Cir. No. MT/186 (319), dated 28th April, 1965.)

(b) In case a police vehicle is not available, for movement to perform duty, the officers must readily travel even in State Transport buses or trains in order to avoid delay in attending to their official work.

(I. G. 's Cir. No. MT/186, dated 2nd November, 1970)

(c) A Government vehicle is allotted to an officer for the purpose of official touring in the district only. Superintendents of Police should obtain prior sanction of the Range Deputy Inspector-General before they use the Government vehicle for other purposes, except

when they. (i) visit Range Headquarters at the desire of the Deputy Inspector-General or (ii) visit Ahmedabad if called by the Inspector-General or (iii) visit Gandhinagar if called by Government. In view of the need for economy they should as far as possible use the train services and not ask for permission to use a Government vehicle in a routine course. In case a Superintendent of Police visits a serious crime and if in the course of investigation a clue leads to a place in a neighboring district there is no objection to visit it informing the Range Deputy Inspector-General of the action. As regards Deputy Superintendents of Police, the Superintendents of Police should consult their Range Deputy Inspector-General and obtain their orders in the matter.

(I.G. 's Cir. No. M.T./1104/371/74/12/242, dated 26th July, 1972 and No. M.T./1104/371/74/72/377, dated 25th August, 1972.)

(3) (a) Attending office, parades, games, visiting hospitals and doing night rounds, etc. are part of the normal routine of a Police officer and they should not use Government vehicles for such purposes even though one might have been allotted to them. Any breach of these instructions would entail the officer concerned to pay the charges at the rates shown in rule No. 496(5).

(G. C. M., F. D., No. TRA-1063/6239/J, dated 19th January, 1963 and I. G. 's No. MT/186, dated 2nd May, 1964.)

(b) When an officer proceeds on tour, he has to equip himself for the tour for the efficient purpose of his journey by using the vehicle from office to the place of residence before he commences his tour. Since he has to tour for the day in question, such use of the vehicle is considered as official use.

(G. C., F. D., No. TRA-1065/2884-J, dated 6th September, 1965)

(4) A Police motor vehicle may be used by an officer when he is actually accompanied by an Armed party of more than three men in connection with any disturbance.

(I. G. 's No. 6153, dated 9th October, 1947)

(5) Whenever an officer has an occasion to use a Police motor vehicle, he should make a note to that effect in his diary, explaining why such use was necessary.

(I. G.'s No. 6153, dated 9th October, 1947)

(6) Officers in receipt of conveyance allowance will lose half day's conveyance allowance for the days they use the Government vehicle.

(G. C. M., F. D., No. TRA-1057/S-7, dated 9th January, 1958)

(7) Daily allowance of officers not in receipt of conveyance allowance is reduced by 20 per cent on the days on which they use a Government vehicle.

[Rules 585 (c) of the B. C. S. Rules, 1959]

(8) An officer who is permitted to use a Government vehicle while on tour on Government work may carry with him, free of charge, members of his family and his personal servants up-to the normal capacity of the vehicle subject to the officer certifying that because of his taking member/s of his family or servant/s with him, no other Government servant had to travel by other means i.e. in a Government vehicle or at Government cost. This certificate should be recorded in the travelling allowance bill preferred in connection with that particular journey. If no travelling allowance bill is required to be preferred, the necessary certificate should be recorded in the log book.

(G.R., F.D., No. MSB-2067/294-J, dated 16th June, 1967.)

(9) In districts to which Government motor vehicles have been supplied, free transport should be provided for armed men detailed for regular duties for distances greater than 3 K.Ms. from the Headquarters.

(10) Free transport at Government cost should be provided to sick police men unable to walk or members of their families similarly sick and unable to walk, in Police motor vehicles to hospital and back, for treatment.

(G. R., H. D., No. MTS/2862/9306-A, dated 6th December, 1966)

(11) Police vehicles may be used whenever required for sports purposes subject to the condition that the charges on account of petrol, oil, etc. are met from the sports Fund and that local buses are not available for hiring for the purpose.

(I.G. 's No. 6153-II, dated 28th May, 1953)

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(12) Police vehicles may be used for the conveyance of Police stores, wireless equipment, etc. from railway station to Headquarters and vice versa, whenever required.

(I. G. 's No. 6153, dated 30th July, 1949)

(13) (i) Big Police vehicle should not be used for local Tapal duties, For such duties a motor cycle should be used.

(ii) Police vehicle should not be made available for bringing canteen and ration articles, except on payment.

(I. G. 's No. 7551-II, dated 1st June, 1954)

(14) The Superintendents of Police should provide the transport in Police motor vehicles to the Western Railway Police, whenever required for legitimate duties e.g. trans- porting prisoners to and from the court, jail, Police station, hospital, etc.

(I. G.'s Cir. No. MT/186, dated 21st April, 1970)

(15) The Superintendents of Police should make available at short notice and without hesitation Police motor vehicles and Police parties to the officers of the Anti-corruption Branch. They should also place a staff car or a station wagon or a Jeep whichever is available, at the disposal of the Director. Anti-corruption Bureau, whenever the Director moves in the interior of the District in the State.

(I. G.'s Cirs. No. 6153-g, dated 25th November, 1953 and No. MT/186, dated 13th June, 1965)

(16) (i) Transport in Police motor vehicles should be provided to District and Assistant Commandants of Home Guards for official duty e.g., when called to duty at short notice or in emergencies or for attending parades or tours of inspection of detached units, provided the vehicles are not required for Police duties and no other means of transport are available. The concession is not admissible to those Commandants to whom conveyance allowance has been sanctioned.

(G.R., H.D., No. 4074/5, dated May, 1949)

(ii) Police vehicles should ordinarily be made available to Home Guards whenever they go on duty and are entitled to use them like Police officers.

(iii). The demands of the District Commandants for Police vehicles should not be underestimated. If Police vehicles are not available, vehicles should be hired with the District Magistrate's or Inspector-Generals sanction.

(I. G. 's No. 6153/13, dated 12th June, 1952 and No. 6153-II, dated 21st January, 1958.)

(17) (a) Police vehicles should be provided to the Jail Department for carrying sick prisoners from Jails to Hospitals and back. Likewise, transport should be provided to the Jail Department for carrying leprosy affected prisoners between Jails to Police Station and courts. No charges on account of cost of petrol, oil, lubricants, etc. incurred for such transport within the same district should be recovered from the Jail Department. However, charges should be recovered from the Jail Department when leper or other prisoners are transported from one district to another as in the case of any other department.

(b) When lepers or other persons suffering from contagious diseases are carried in any Police vehicle, the said vehicle should be thoroughly washed, cleaned and disinfected promptly before it is parked or used for other duties.

(I. G. 's No. 1256-A-II, dated 26th November, 1954)

498. Responsibilities of the user of a Police Motor Vehicle.-(1) The driver is entirely responsible for the vehicle and will drive it whenever required. No Police officer, except an authorized driver, will drive a Police vehicle. In special cases, the Inspector-General of Police may authorize a Police Officer to drive a Police vehicle, after obtaining a test report from the Deputy Superintendent of Police, Motor Transport. The officer, so authorized will be responsible for any accident or damage that may be caused to, the vehicle.

(2) Every time a trip is made, it will be entered in the Log Book correctly and signed by the user.

(3) In the case of vehicles allotted permanently to a Police Station or a Police officer, the entries in the Log Book will be checked and signed by the officer concerned at least weekly.

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(4) Police Motor Drivers should not be used for teaching driving unless special permission is obtained in advance from the Deputy Superintendent of Police, Motor Transport.

(5) Every vehicle should receive thorough preventive attention and servicing once a week. Every officer to whom a vehicle is allotted for permanent duty will send it for servicing on the required day or date and ensure that it has been serviced and that an entry to that effect has been made in the vehicle Log Book, in Form 'D'.

(6) Whenever a Police motor vehicle is requisitioned for miscellaneous duties it should not be delayed nor detained beyond the period of requirement.

499. Log Books (Standard Form No. P.M. 189).-(1) The Log Book is divided in five separate parts as under :-

(i) Form A contains instructions for the driver and the user of the vehicle.

(ii) Form B contains details of trips made by the vehicle to be entered into by the driver and the user of the vehicle and signed.

(iii) Form C mentions the issue of petrol, oil, lubricant, etc. together with the average shown by the vehicle in kilometers per liter of the petrol.

(iv) Form D is regarding the servicing and log showing the record of maintenance.

(v) Form E mentions replacement of spare parts, tyres, batteries, etc.

The log book should be stamped, pagged and certified at the last page by a gazetted Police officer of the district Headquarters.

(2) The details of each trip should be entered in the Log Book and attested by the user (or by the user and the Gazetted Officer superior to him respectively if the user is a non-gazetted servant).

(3) Entries in the vehicle Log Book-Part 'B' must state the specific duty for which the vehicle was used, e.g., "Conveyance of Police Party", and should not be worded vaguely e.g., "For Government or official duty", etc. the object of the Log Book being to provide a means for checking whether the Police motor vehicle is being used economically and for proper purpose.

(I.G.'s No. 5957, dated 18th March, 1957.)

(4) Police vehicles must not be overloaded. However, if in an emergency it becomes necessary to carry more than the number of men or load prescribed, the fact should be noted in the Log Book giving reasons.

(5) Superintendents of Police should personally check 25 per cent of the Drivers' Log Books of his District every week without fail to ensure that no unnecessary runs have been made. When a trip or journey has been made for confidential work, it should be verified from the weekly diary of the user.

(I. G. 's No. 5662-V, dated 3rd December, 1947 and I. G. 's Cir. No. MT/186, Log Book, dated 6th August, 1966.)

(6) When petrol is filled in, in Police vehicles from private petrol pumps, other than Police petrol pumps, it should be done either in the presence of Motor Transport Supervisor or the Day Officer, when the vehicle is at Headquarters or in the presence of the user of the vehicle, when the vehicle is out of Headquarters. The persons in whose presence the petrol is filled in, should also invariably sign column No.8 of Form 'C' of the Log Book.

(7) Whenever the driver hands-over the charge of the vehicle to another driver, the petrol tank should be checked by both the relieved and relieving drivers and entries showing the kilo-meter reading and the approximate petrol in tank should be made duly signed by both the drivers in Form 'B' of the Log Book.

(I.G.'s Cir. No. MT/186/19/72/7380, dated 24th February. 1972.)

500. Petrol Consumption.-(I) In order to give a clear picture of the District Motor Transport working and proper idea of expenditure, disposition of vehicles, staff etc. monthly statement in M.T. Form No. 3-A for road vehicles, and M.T. Form No. 3-B for water-craft, should be forwarded by the Superintendent of Police / Commandants, to Deputy Superintendent of Police, Motor Transport by the 10th of each month in respect of the preceding month and a copy of the same should be sent to the Police Inspector, Motor Transport. The form of the return requires that all road mileages performed by vehicle should fall into one of the three classifications given below :-

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Classification 'A' means regular duties such as trips from the Jail to the Court, or from Headquarters to places where guards have to be changed and trips which are to be performed periodically and for which no special requisition from any officer is necessary.

Classification 'B' includes sanctioned duties i.e. duties for which the Superintendent of Police in his standing orders has authorized the use of motor vehicles, e.g. investigation of crime, local intelligence branch work, anti-dacoity patrols, carriage of Muddemal, etc. These trips are to be made only on a written requisition made in advance in Form No. 27 of Appendix I, by an officer empowered by the Superintendent of Police to use a vehicle for the purpose specified. A separate file must be maintained for all such requisitions under the Police number of the vehicle sent, and mileage runs must be entered in the requisitions as soon as the vehicle returns from that particular duty.

Classification 'C' means special duties, i.e. trips made on Police Bandobast or on the special orders of the Superintendent of Police or an officer not lower in rank than the Home Inspector authorized by the Superintendent of Police. As requisitions for such special duties will often be urgent, they need not be sanctioned in advance but the officer ordering the special duty should subsequently confirm his orders by initialing on Form No. 27 Appendix I, a statement of the special duty, put up to him by the officer-in-charge of the Motor Transport.

(I. G. 's No. 5831-IV, dated 27th October, 1948).

(2) The main reason why some type of vehicles do not average same mileage over a period of six months is apparently that some vehicles are excessively used while some others are used very little or even kept idle. This should be avoided by rotating the allotment of vehicles for different purposes. Officers should not have favourite vehicles. This is one of the reasons for varying mileages in jeeps.

(3) The Superintendents of Police / Commandants should scrutinize the monthly petrol returns properly. These returns give a clear picture whether vehicles are giving standard average prescribed. Whenever they vary from the prescribed standard, special tests should be made and engine properly tuned, etc.

(I. G. 's Cir. No. MT.1124/RBM/72/537, dated 2nd November, 1972.)

(4) Average standard mileage per liter for different types of vehicles.-The standard average, number of kilometers per liter expected from different types of vehicles is given below :-

Type of Vehicles	Standard average kilo per liter.
	Kilometers.
Personnel carriers, Prison vans and Goods trucks (Petrol)	3.0
3. Personnel carriers, Prison vans and Goods trucks (Diesel)	5.0
3. Light vans	5.0
4. Station Wagons	5.0

5. Jeeps	6.5
6. High Powered Cars	5.0
7. Hindustan Ambassador Cars.	7.0
8. Motor cycles, 3.50 CC .	30.0
9. Motor cycles, 5.00 CC	24.5

The above figures are the minimum average to be expected. They make allowances for stops, slow movements, movement in gear, rough roads, etc.

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501. Maintenance of daily Log and record sheet.-In order to have a clear history of daily performance of each vehicle and to arrive at its operating cost monthly, a record of each vehicle must be maintained in M.T. Form No., P.M. 214. These forms must be produced at the time of inspection held by the Deputy Superintendent of Police, Motor Transport. and the Police Inspector, Motor Transport. and must be maintained in accordance with their instructions.

(I. G. 's Circular No. 5831-IV, dated 27th October, 1949.)

502. Vehicle history and repair record.- With a view to maintain complete operational and financial record of vehicles. Superintendents of Police and Commandants should maintain, in addition to the Log Book, a vehicle History and Repair Record in Form M.T. No.4, for each vehicle in their charge. This is intended to show relevant details regarding the history of vehicle. repairs record, annual performance etc. Entries therein should be attested by Police Motor Transport Officer every month.

(I. G. 's No. 6052-11, dated 11th May, 1946.)

503. Annual performance sheet.-With a view to see whether every vehicle has been used to the best advantage and to improve its condition if necessary, the annual performance sheet in Form No. 28 Appendix I should be drawn up for every vehicle on charge in a District or State Reserve Police Force Group. The Deputy Superintendent of Police, Motor Transport and the Police Inspector Motor Transport, should check these sheets during their inspections. The Deputy Inspectors General concerned should also, during their inspections of Districts/Units, ensure that the above orders are followed scrupulously.

(I. G. P. 's Cir. Memo. No.A/O-II/Rtns/7441, dated 25th February, 1972.)

504. Condemnation of Police Motor Vehicles.-(1) When a Police vehicle is, in the opinion of the Superintendent of Police / Commandant, fit for condemnation, he will arrange for it to be inspected by the Deputy Superintendent of Police, Motor Transport/Police Inspector, Motor Transport, who will carefully examine and test it and draw up a defect report, showing therein all the defects noted by him. He will also estimate the cost of repairing each defect. and enter the amount in the defect report against the various defects shown therein.

(2) A Committee will then be convened by the Superintendent of Police / Commandant, consisting of

(i) The Superintendent of Police / Commandant.

(ii) The Home Inspector of Police/ Adjutant or Assistant Commandant.

(iii) The Deputy Superintendent of Police, Motor Transport/Police Inspector, Motor Transport.

(iv) The Headquarters Police Inspector/Sub-Inspector/Police Sub-Inspector, Motor Transport.

(3) (a) A vehicle which is considered due for condemnation, should be placed before a condemnation Committee. The Committee should examine the vehicle, verify the defects enumerated in the defect report and decide whether it can be repaired and used economically. If it is beyond economical repairs, the Committee should record its opinion accordingly. It should also fix an up-set price subject to which the vehicle should be sold by public auction. Committee proceedings will be drawn up in M. T. Form No. 24 and submitted in quadruplicate, together with the defect report in M.T. Form No.9, also in quadruplicate, to the Inspector-General of Police through the Deputy Inspector-General of Police concerned, for final orders.

(b) The upset price should be treated as strictly confidential.

(c) The same procedure will be followed in the case of Police Water Craft but the Police Inspector, Launch Maintenance Officer, will substitute the police Inspector, Motor Transport in the Committee referred to in sub-rule (2) above.

(4) The Inspector-General of Police is the competent authority to condemn Police motor vehicles and to sell them by public auction after fixing their up-set prices, subject to the following conditions :-

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(i) No vehicle should be considered for condemnation and replacement unless it has covered the mileage and used for the period mentioned below: -

(a) Petrol vehicles other than Motor cycles.	1,60,000 kilometres or 8 years of service.
(b) Motor cycle.	48,000 kilometres and 5 years of service.

(ii) While condemning the vehicles, the Inspector-General of Police, should take into consideration the number of vehicles which would be purchased during the financial year in question,

(5) On receipt of the final orders from the Inspector-General of Police, the vehicle should be disposed of according to his orders.

(6) Condemned vehicles which have been replaced by new ones should under no circumstances be used unless such use is specifically authorized by Government in any particular case and no heavy expenditure should be incurred on its repairs.

(I G. 's Circular No. K/7460-XIII, dated 16th July, 1958, and G.R., H.D., No. MTS. 5858-VI, dated 13th March, 1959)

(7) The Inspector-General of Police should forward to Government, a statement (in duplicate) by the 15th April every year, containing the following information:-

- (1) District/Unit in respect of vehicle
- (2) Registration number of vehicle
- (3) Make of vehicle.
- (4) Date of purchase of vehicle.
- (5) Price of vehicle.
- (6) Mileage covered by vehicle.
- (7) Expenditure incurred on its repairs.
- (8) Up-set price fixed for its sale.
- (9) Make of new vehicle purchased to replace the condemned one.

(10) Date of purchase of new vehicle.

(11) Price of new vehicle.

505. Condemnation and disposal of unserviceable parts and materials.-(1) With a view to exercise proper check over the disposal of condemned spare parts etc. the following procedure should be adopted:-

(i) In the District Motor Transport Sections a Committee consisting of Superintendent of Police, Head Quarters Inspector/Sub-Inspector and the Deputy Superintendent of Police Motor Transport/Police Inspector Motor Transport, should inspect the spare parts and the scrap and should fix their upset price according to the condition of the parts. The Superintendent of Police should then arrange for their disposal by public auction subject to the upset price fixed by the committee. The upset price should be treated as strictly confidential.

(ii) In the case of Motor Transport Section of the State Reserve Police Force Group, the Committee should consist of the Commandant of the Group, Battalion Quarter Master, Police Inspector/Sub-Inspector, Motor Transport and the Deputy Superintendent of Police/Police Inspector, Motor Transport. The other procedure will be the same as at (i) above.

(iii) In the case of Range Police Central Motor Transport Workshop, the Committee should consist of the Deputy Superintendent of Police. Motor Transport, the Police Inspector Foreman of the Workshop and the Police Sub Inspector Mobile. The procedure for the disposal will be the same as at (i) above.

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(2) The condemned articles in the District and the State Reserve Police Force Groups should be disposed of once a year. So far as the Range Police Central Motor Transport Workshops are concerned, the Deputy Superintendent of Police, Motor Transport, should dispose of the spare parts etc. according to his convenience.

(I. G. 's No. 7270-11, dated 27th May, 1959.)

506. Accidents to Police Motor Vehicle.-(1) Accidents if any should be reported to the Deputy Superintendent of Police, Motor Transport, on M.T. Form No. 27 and a copy endorsed to the Superintendent of Police or the Commandant as the case may be, by the Motor Transport Officer in charge. Accidents should be classified as: -

(a) Major (Fatal) wherein loss of life has occurred.

(b) Serious, in which physical injuries have been caused to the persons involved or damage to the property or vehicle has occurred incurring a repair expenditure of Rs. 500 or more, and

(c) Minor, in which no injuries have been suffered by any person and the damage to property or vehicle is minor worth not more than Rs. 500.

Necessary action as may be called for in each case should be taken by the Superintendent or the Commandant concerned. Advice or help may be obtained from the Deputy Superintendent of Police. Motor Transport, if required.

(2) Negligence, lack of prudence and restraint on the part of the drivers many a times become the reasons for accident. The Motor Transport drivers are, therefore, expected to be correct in the discharge of their duties and should also set an example of careful driving to others. In all accidents involving Police vehicles, the drivers will be judged not by ordinary standard but on whether by exercise of prudence and caution, they could have prevented the mishap, otherwise they should be held guilty of negligence.

(I. G. 's Cir. No. G/34(29), dated, 20th October, 1960.)

(3) The Commissioner of Police / Superintendents of Police/Commandants should get their drivers in the Motor Transport Branch examined medically from the Civil Surgeon every year for any physical defect that may come in the way of their efficient performance of duties as Police drivers. Detailed examination of their eyesight should also be got done every six months because the power of eyesight sometimes deteriorates and fluctuates at short intervals. Such examination is essential in order to prevent accidents due to defective, eyesight or defective physique of the driver.

(I. G. 's Cir. No. MT/176, dated 7th June, 1970)

(4) When a Police vehicle is involved in an accident with any other vehicle, the procedure to recover compensation for the damage caused to the Police vehicle should be instituted without delay and within the stipulated time limit of six months from the date of the accident as laid down in Section 110A of the Motor Vehicles Act, 1939.

(I. G. 's Cir. No. MT/176/1465, dated 18th September, 1972)

507. Functions and tasks of.-

(1) Range Police Central Motor Transport Workshop:

- (a) All the tasks as are carried out in the first line and second line Police Workshops.
- (b) Complete engine overhaul including reboring, resleeving, valve seating, machining, remetalling, grinding.
- (c) Overhaul and repairs of chassis, springs, shock absorbers transmission, differentials axles etc.
- (d) Alignment of wheels.
- (e) All electrical work, rewiring, armature and field winding, repairs to cur-outs, switches, gauges, wipers, horns, lights, focussing of head lamps.
- (f) Battery repairs, reconditioning and charging.

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- (g) Vulcanizing; tire repairs.
 - (h) Major body repairs, renovating
 - (i) Painting
 - G) Upholstery work
 - (k) Reconditioning of old parts.
 - (1) Staff training-advanced and refresher; trade testing
- (2) Mobile Service Van:-
- (a) High pressure lubrication
 - (b) Spraying, cleaning and servicing.
 - (c) Engine tuning up
 - (d) Foundation, chassis and body inspection, tightening up of the bolts, nuts, etc
 - (e) Electrical repairs, battery servicing.
 - (f) Minor body repairs, and painting.
 - (g) Clutch and brake testing and adjustment
 - (h) Decarburizing, valve grinding, partial overhaul
 - (i) Overhaul of steering assembly, axles, king-pins, adjustment, wheel alignment.
 - (j) Minor radiator repairs

(3) *District Police Motor Transport Section.*- First line maintenance and repairs comprising:-

(a) General inspection and check up of fuel system; lubrication; cooling chassis; body fixtures; bolts; shackles, springs; fittings and hood.

(b) Bleeding and adjustment of Brakes.

(c) Washing and superficial cleaning of under carriage, springs, wheels body (to be done by cleaners under the supervision and help of drivers), external cleaning of engine (to be done by drivers under supervision of driver Mechanic or motor vehicle Fitter), oiling, greasing, lubrication by means of hand tools (to be done with the help of drivers and cleaners).

(d) Routine servicing and engine tuning-up

(e) Tires-interchanging and replacing, change Fan belt.

(f) Painting-minor and touching up

(g) Battery-terminals cleaning, washing, topping, terminal greasing connecting

(h) Minor electrical repairs

(i) Break-down Service

G) Road-side repairs

SECTION IV.-POLICE WIRELESS ORGANISATION.

508. Organization and staff.- The Gujarat State Police Wireless Grid consists of various types of communication net-works. The State Police Communication net-works consist of the following:-

(a) H. F. (High Frequency) or long distance communication net-work comprising of-

(i) Static or fixed stations

(ii) Mobile and / or transportable stations

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(b) V. H. F. (Very High Frequency) or short distance communication net-work comprising of-

(i) Static stations

(ii) Mobile stations

Staff.- The organization is under the control of a Superintendent of Police, designated as Superintendent of Police, Wireless, and is worked by two separate cadres of staff, viz:-

(a) Engineering or maintenance staff of the ranks of Deputy Superintendent of Police, Police Inspector, Sub-Inspector, Head Constable, and

(b) Operating or Traffic staff of the ranks of Sub-Inspector, and Head Constable.

I. High Frequency Net-work.

(1) *Static Stations.*-Static stations are opened at the Head-quarters of all Districts, S.R.P.F. Groups, a few other places of strategic importance and at Taluka Police Stations in certain districts in which normal telegraph and telephone facilities are very poor or do not exist.

(2) *Mobiles.*-Mobile wireless stations are provided at certain District Headquarters to facilitate quick communication between places of disturbances and district Headquarters, in times of emergency. The main use of the mobile stations is to provide means of quick: transmission and reception of urgent messages connected with law and order from and to disturbed areas where normal ready means of communication do not exist. Ordinarily these mobiles should be used only during times of emergency.

11. Very High Frequency Net-work.

(1) This system of communication has a limited range covering an area of a radius of about 32 kilometers depending upon the power and aerial system of a station. Such communication is immune to electric and other disturbances and therefore, this system is best suited to big cities and towns for the purpose of patrolling in the cities.

(2) Static stations are used mainly as control stations and are installed in important Police Offices from where generally all Police activities in the cities are controlled. Such stations may also be installed at other places if required.

(3) Mobile stations are provided in vehicles or launches used for patrolling and are in constant touch with their control.

(4) Control stations broadcast messages at scheduled hours or very important messages at any time, meant for all wireless mobile or static stations which are provided with trans-receivers for this purpose.

III. Central Monitoring Station

A Central Monitoring Station is established at Ahmedabad to monitor all the H.F. networks of the State to check whether stations work properly, follow the correct procedure, and maintain channel discipline, and to detect any misuse of the wireless system. For the purpose of investigating and detecting procedural irregularities, mutilations, misuse and delays to messages etc., the Traffic Record of all the H.F. stations is called and scrutinized at this office. Cases of default are reported for action to the Superintendent of Police, Wireless.

IV. Central Stores

There is a Central Stores established at Ahmedabad which is meant for procurement, storage and distribution of stores required for the entire organization.

V. Central Workshop

There is a Central Workshop set up at Ahmedabad for carrying out major repairs, assembling and installation jobs. Modifications designing and other experimental work is also done in this workshop.

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VI. Divisional set up of the Organization

(1) The State Wireless Organization is divided into the following

(i) Northern Zone

(ii) Southern Zone

(iii) Western Zone

(iv) Ahmedabad City

(v) State Reserve Police Force Groups, and each of the zones above is further divided into two sub-zones.

(2) A Police Wireless Inspector is in charge of a Zone and is responsible for all the stations in his zone. The units at each of the State Reserve Police Force Groups are under the charge of a Police Wireless Inspector. The Unit in Ahmedabad City is under the administrative control of the Commissioner of Police and those at the State Reserve Police Force Groups under Commandants. The Wireless staff of these units are responsible to the Superintendent of Police, Wireless, regarding their technical work.

(3) A Police Wireless Sub-Inspector is similarly in charge of a sub-zone and is responsible for all stations in sub-zone. He works under the general supervision of the Police Wireless Inspector of the zone. He is provided with a Workshop, Stores and necessary engineering staff to assist him.

(4) One Radio Mechanic is provided at each of the Headquarters of the districts in which taluka stations are opened. He is responsible for proper maintenance of stations in the district and stores held by him. .

509. Control over personnel of Police Wireless Organization.-(I) The engineering as well as the operating staff are, in the performance of their technical duties, under the direct control and supervision of the Superintendent of Police, Wireless, who will exercise such control and supervision, subject to the general control of the Inspector-General of Police.

(2) Police Wireless Inspectors, Police Wireless Sub-Inspectors (Engineering and Traffic), Radio Mechanics and Electricians, who are not posted for duty for any particular district, will be under the administrative control of the Superintendent of Police, Wireless who will maintain their service records and also deal with all questions: regarding their pay, traveling allowance, leave, etc. In the case of Head Wireless Operators' and operators, whether posted for duty to a District Wireless Station or to a Regional or Inter-State control the Superintendent of Police of the head-quarters of the station concerned will exercise control over them in all such matters. Applications for leave other than casual leave from Head Wireless Operators and Wireless Operators will however, be submitted through the Superintendent of Police, Wireless, to enable him to arrange for substitute etc.

(I. G. 's No. 6103, dated 13th January, 1948)

(3) (i) Head Wireless Operators and Operators (ranked as Police Head Constables) posted to District Wireless Stations shall be under the disciplinary control of the local Superintendent of Police and those posted to the State Reserve Police shall be under the control of the Commandant.

(ii) Head Wireless Operators, Wireless Operators, Radio Mechanics and Electricians (also ranked as Head Constables) posted to Inter-State and Regional Control Stations shall be under the disciplinary control of the Superintendent of Police of the head-quarters of the station concerned, and those at the Training Centre, and other Wireless Establishments at the head-quarters of the Wireless Grid, shall be under the disciplinary control of the Superintendent of Police, Wireless.

(iii) Police Wireless Inspectors and Sub-Inspectors (Engineering and Traffic) shall be under the disciplinary control of the Superintendent of Police, Wireless, and the Inspector-General of Police.

(iv) Normal default cases of Head Wireless Operators, Operators, Radio Mechanics and Electricians arising out of discipline should be inquired into and dealt with the finality by the Superintendent of Police concerned, the Commandant, State Reserve Police Force or the Superintendent of Police, Wireless, as the case may be.

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(v) Default cases of the personnel mentioned in clause (iv) above arising out of technical matters should be enquired into by the Superintendent of Police, Wireless and the papers forwarded by him with his recommendations for final disposal to the Superintendent of Police concerned or the Commandant, State Reserve Police Force, as the case may be.

(vi) Default cases of Police Wireless Inspectors and Sub-Inspectors (Engineering and Traffic) whether arising out of discipline or technical matters should be enquired into by the Superintendent of Police, Wireless, and the papers forwarded by him with his recommendation to the Inspector-General of Police for final orders.

(I. G. 's No. 6103, dated 2nd November, 1950)

510. Office Equipment for Police Wireless Establishment.-Every Superintendent of Police will be responsible for the supply of articles of stationery, forms and furniture's etc. to the wireless stations attached to his district, the stations being considered as an addition to the number of offices subordinate to him. However, the equipment and other articles of stationery, forms and furniture etc. required for the offices of the Police Wireless Inspectors and Police Wireless Sub-Inspectors will be supplied by the Superintendent of Police, Wireless.

(I. G. 's No. 6103, dated 13th January 1948)

511. Duties of the Wireless Staff.-(I) The Superintendent of Police, Wireless Is responsible for maintenance of the Police Wireless equipment and for wireless traffic carried over the Police Wireless Grid in the whole of the State He is assisted by the engineering staff in the work of maintenance and by the operating staff, so far as the traffic side is concerned.

(2) Subject to such additions or modifications as may, from time to time, be made by Superintendent of Police, Wireless, the following will be the main duties of the subordinate staff: -

(a) A Police Wireless Inspector will-

(i) be responsible for the installation and maintenance of wireless stations in the zone, from both engineering and traffic point of view, j

(ii) maintain separate history sheets for wireless equipment of different makes and types,

(iii) go round to all wireless stations and inspect them,

(iv) if required, impart necessary instructions to Head Wireless Operators regarding the proper maintenance of the station and check entries in the technical and traffic books maintained at the stations,

(v) report to the Superintendent of Police, Wireless, all cases of irregularities in the working of the stations or of delay in the transmission of messages in his zone, after due investigation, and

(vi) be responsible for maintaining the stores and the workshop at zone head quarters and, when stationed at Ahmedabad the Central Workshop, Central Stores at Ahmedabad.

(b) A Police Wireless Sub-Inspector (Engineering) will-

(i) be responsible for inspecting and maintaining all the wireless stations in his division, from both engineering and traffic point of view,

(ii) maintain the regional workshop and look after testing equipment,

(iii) keep the ledgers for receipt and issue of wireless stores up-to-date,

(iv) maintain a special file for defect reports received from wireless stations in his charge and submit to his Police Wireless Inspector at the end of every month, a consolidated statement of faulty equipment attended to. .

(v) check daily diaries of Radio Mechanics and Head Wireless Operators in his region and forward to his Police Wireless Inspector any information of special interest and

(vi) report to his Police Wireless Inspector all cases of irregularity in the working of stations or of delay in the transmission of message in his region after due investigation.

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(c) A radio Mechanic will-

(i) maintain a regular diary regarding the repairs and other work done and submit the same to his Police Wireless Sub-Inspector (Engineering),

(ii) maintain a history sheet of all wireless equipment, including a mention of repairs, done to different types and makes of equipment, and

(iii) attend to break-downs at any station in his charge as directed by his Police Wireless Sub-Inspector (Engineering).

(3) An Electrician will be responsible for-

(i) maintenance and repairs of all petrol engines and mains chargers and inspection of power wiring at all the wireless stations in his charge and for attending to any break-downs in these as directed by his Police Wireless Inspector or Sub-Inspector.

(ii) repairs to faulty batteries received for the purpose at the stores, and any other work, as directed by his Police Wireless Inspector and/or Sub-Inspector, .

(iii) maintaining a daily diary giving details of all work done, and submitting it every fortnight to his Police Wireless Inspector.

(e) A Police Wireless Sub-Inspector (Traffic) will-

(i) be responsible for seeing that all wireless traffic over the Police Wireless Grid is carried on smoothly and for checking transmissions occasionally,

(ii) check log books and other traffic records of wireless stations,

(iii) investigate causes of delay,

(iv) see that the standard wireless Police procedure is followed by every station,

(v) check daily diaries of Head Wireless Operators,

(vi) visit any stations, if so required, and submit a report on its working etc., the Superintendent of Police, Wireless, and

(vii) carry out such instructions as the Superintendent of Police, Wireless, may issue to him.

(f) A Head Wireless Operator will-

(i) maintain necessary records of the traffic and wireless equipment,

(ii) check log books,

(iii) report irregularities regarding traffic to his Police Wireless Sub-Inspector (Engineering),

(iv) maintain a daily diary,

(v) submit prescribed returns about inward and outward traffic to his Police Wireless Sub-Inspector (Traffic),

(vi) keep to himself all official matters communicated on the wireless system and not give out any such information to anybody, not even to another person belonging to the Police Department,

(vii) see that the standby set is in working order and for that purpose use the set for working the station, preferably on Sundays, -

(viii) prepare duty charts for his wireless operators,

(ix) run the station personally during the period Wireless Operators are in their Classification Examinations. and

(x) generally see that the efficiency and discipline of the wireless station is maintained.

(g) A Wireless Operator will-

(i) attend the wireless station according to the "duty chart",

(ii) be responsible for quick and correct transmission, reception and dispatch of wireless message, while on duty. .

(iii) carry out any technical duties, e.g. charging of batteries and noting supply voltages, allotted to him by his Head Wireless Operator,

(iv) adhere to the prescribed wireless procedure while operating,

(v) maintain all registers in a neat and legible hand,

(vi) report to his Head Wireless Operator immediately, when a fault in the equipment or any irregularity in the channel is noticed, and .

(vii) keep to himself all official matters communicated on the wireless system.

(I. G. 's No. 6113-A-IV, dated 9th/10th February, 1950)

(3) The personnel of the wireless grid should attend parades twice a week at their respective Police Head-Quarters. The parade should be restricted to Saluting Foot-drill and simple Squad Drill. Rigorous parade like Rifle Drill, Cane Drill and Physical Training should not be insisted upon.

(I. G. 's No. 6103, dated 27th February, 1948, and WL/25/649, dated 19th April, 1913)

512. Interference with wireless equipment.-(I) Batteries of Police motor vehicles may be charged at the wireless stations in cases of emergency only, without affecting the regular working of the wireless station, at places where there is no independent arrangement for the vehicles of the Police Motor transport. Wireless operators shall not charge private batteries at wireless station or allow the wireless equipment to be used for private purposes, even of any Police Officer.

(2) Wireless Operating staff will not unnecessarily take on themselves the responsibility of rectifying serious faults in the wireless equipment at their station. They should, whenever such faults are noticed, immediately intimate the break down to their Police Wireless Inspector by wireless and seek his assistance. Till the arrival of the wireless engineering staff, the work in the station should be carried on by using the standby set. A Head Wireless Operator is expected to attend to very minor and superficial faults, e.g., changing of fuses or valves and tightening of loose wire connections.

513.. Method of making communication by Police Wireless Grid.- The use of Police Wireless Grid is restricted to the transmission of messages connected with "maintenance of law and order." For detailed instructions, reference should be made to Rules 190 to 194 in Volume II.

514. Reciprocal arrangement with Military signals stations for dispatching wireless Messages in emergencies.-(I) The following procedure for use of Army wireless facilities by the Police will be followed, when Police wireless system breaks down or is not available

(a) This facility can be availed of at the places where Army Wireless Stations exist .

(b) Police messages must be written on the army message form reproduced as Form No. 29 in Appendix I. A stock of forms should be cyclostyled and kept ready for by officers likely to need them

(c) In using the Army form, the officer sending message must indicate the degree of priority in the space provided in the bottom left hand corner of the form. The following ranks of officers are authorized to use the degree of priority indicated against each, it being understood that each officer must always use the lowest degree of priority possible on every occasion, according to the needs of the situation.

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Superintendent of Police and higher officers	... Immediate
Assistant and Deputy Superintendent of Police	... Important
Police Station Officers and higher officers	... Ordinary

Officers (such as Home Inspectors) authorized to sign on behalf of an officer of higher rank may use the higher priority, when signing for that officer.

(d) messages will be handed in by a Policeman *in uniform carrying his Sanad at the Army Signals Office*.

(e) A Police officer receiving a message through an Army Signal Station is responsible for collecting it from the Signal Station. The procedure to be followed is that the Army Signal Station will ring up the office of the Superintendent of Police, if the message is received between 11 a.m. and 6 p.m. or the Police Head Quarters if received during other hours. It will then be the Police responsibility to send a man in uniform carrying his Sanad to collect the message from the signal office.

(2) The following procedure for use of Police wireless facilities by the Army will be followed when army facilities break down or are not available:

(a) Message will be accepted for any place at which a Police wireless station exists:-

(b) The following ranks of officers are authorized to use the degree of priority indicated against each:-

Lt. Col. and above	... Immediate Op
Major and above	... Important P
Other officers	... Ordinary

(c) Messages will be handed in by a soldier in uniform carrying identification documents and these must always be examined. The messages will be handed in at the office of the Superintendent of Police between 11 a.m. and 6 p.m. and at Police Head Quarters during other hours.

(d) Messages received over the Police Wireless Grid addressed to Army Officers or units will be sent immediately by the operator on duty to the Superintendent of Police or in his absence, to the Home Inspector or, in his absence to the Police Inspector or Sub-Inspector, Head-quarters. The officer receiving the messages will immediately ring up the military exchange at Ahmedabad, ask for the Assistant Duty Signals officer and inform him that a message has been received and should be collected by the Army. He will NOT attempt to pass the message by telephone. The message will be collected by a soldier in uniform carrying identification documents, which must be checked before handing over the message. At other places, it will be the duty of Military officers to call on the Superintendent of Police and inform him where messages addressed to them should be sent. It will then be the duty of the Superintendent of Police or, in his absence, the Home Inspector or, in his absence the Head-quarter Police Inspector or Sub-Inspector, to arrange speedy delivery of the message to the place arranged, by a Policeman in uniform carrying his Sanad.

(I. G. 's No. 6133/A-IV, dated 18th November 1948)

SECTION V-MOUNTED POLICE UNIT.

515. Object of the Mounted Police.-(I) Government horses have been supplied to certain districts according to the need of each district for-

- (a) organized operations against mobile gangs of criminals,
- (b) patrolling for the prevention of dacoities, highway robberies, crop thefts, damage to crops, etc.
- (c) control of crowds and the dispersal of disorderly mobs,
- (d) assistance to foot police in traffic control,

- (e) process serving, message carrying and escort duty where conditions are suitable, and
 - (f) Bandobast in Sawari and procession.
- (2) Not less than two mounted Policemen should be detailed for patrolling purposes.

(I. G.P. 's No. E/1621/Dholka, dated 21st September, 1970)

516. Organization of Mounted Police Unit.- The Mounted Police Unit consists of Risaldar Majors of the rank of Police Inspectors, Risaldars of the rank of Police Sub- Inspectors, Dafedars of the rank of Head Constables, Sawars of the rank of Police Constables, Sykes and Sweepers.

517. Duties of the personnel of Mounted Police Unit.-(I) *Duties of Risaldar Major (Inspector).*-(a) He will inspect the stable lines as often as possible and verify that the instructions are properly carried out.

(b) He will train the recruits and horses in remount training. He will also supervise training given by the instructors.

(c) He will at once report to his superior officers deliberate negligence of any of his subordinates and the non-compliance of the instructions.

(d) He will remain present at the time of watering and feeding of the animals and shall check the records in respect of feeding.

(2) *Duties of Risaldar P.S.I. and Dafedar.*-(a) He will see that the Sawars and Syces take proper care of the horses allotted to them.

(b) He will personally supervise grains and fodder given to the horses.

(c) He will see that urine, dung and other dirty matters are removed and stables are properly cleaned at regular intervals.

(d) He will see that the head-heel-ropes and shackles are properly tied.

(e) He will at once report the sick and ailing animals to the Salotri or Veterinary Officer and see that sick animal is immediately attended to

(f) He will allot duties to Sawars under him.

(g) He will see that the Sawars carry out the work allotted to them.

(h) He will see to the shoeing and medical aid but will not dabble with any of the two, but keep record of his finding and report them to the Veterinary Surgeon.

(i) He will remain present at the time of watering and feeding of the animals and shall check the records in respect of feeding.

(j) He will perform such other duties as may be allotted to him by his superiors.

(3) *Duties of Sawar.*-(a) He will keep proper attendance and will look after the horse allotted to him.

(b) He will feed the full quantity of grains and fodder to the animal.

(c) He will get the stable properly cleaned.

(d) He will tie the head-rope, heel-rope and shackles properly.

(e) He will arrange for proper care, attendance and medical treatment when the horse is unwell.

(f) He will properly carry out the instructions given by his superiors.

(4) *Duties of Syce.*-(a) He will do grooming of horses allotted to him.

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- (b) He will clean the stables
- (c) He will crush the grains given to the horses.
- (d) He will fix up nose bags with grains to the horses.
- (e) He will water the horses.
- (f) He will arrange bedding for the horses.
- (g) He will perform such other duties as may be allotted to him by his superiors.

518. Purchase of horses.-(1) The horses will be purchased by a committee consisting of (i) a Deputy Inspector-General of Police, (ii) Risaldar Major (Inspector) and (iii) a representative of the Director of Animal Husbandry but not below the rank of a Deputy Director. The horses shall be of the specifications and price as may be prescribed by the Government from time to time. The price of the horse / mare shall be arrived at looking to the merits of each horse/mare keeping in view the prevalent market rates.

(G. Rs., H. & C. S. D., No. MPU-1064/17348-C, dated 19th January, 1965 and No. MPU-1064/16285-C. dated 29th March, 1968)

(2) After the purchase of the horses, steps should be taken to prevent the mares in the Police Department from getting conceived. For this purpose, the horse should be got castrated as soon as the same is included in the Mounted Police Unit and before the horse gets mixed up with mares of the Unit. All other steps should be taken by the officer concerned in consultation with the local Veterinary Doctor in order to achieve this goal.

(G. R., H. D., No. MPU-1364/26347-C, dated 27th October, 1967)

519. History sheet of the horses.-History sheet shall be maintained for every horse colt or foal in Form No. 30 Appendix I.

520. Training.-(1) Training to recruits is imparted at Ahmedabad centre for a period of 37 weeks during which period they will be taught:-

- (a) to ride and handle their horses in a horseman like manner.
- (b) mounted squad drill,
- (c) to saddle, unsaddle and to groom a horse thoroughly,
- (d) stable management i.e. to keep their horses healthy and in good condition and the stable clean, and
- (e) to layout their stable gear properly for inspection.

(2) The remount training programme is as given in Appendix XXXV.

521. Feeding charges for horse.-(1) (a) The following items for feeding horses subject to the quantity shown against each, to the limit of Rs. 140/- p.m. have been sanctioned by the Government for each horse: -

Description of articles	Quantity per day	No. of days	Total quantity per month
Grams	2 K.Gs. 30		60 K.Gs.
Barley	1/2 K. G	30	15 "
Bran	1/2 "	30	15 "
Lacern grass/handlever ration and grass	5 "	30	150 "
Juwar Bata	7-1/2 "	30	225 "

(b) In case a female belonging to the Mounted Police Unit give birth to a colt or foal, the same will be included in the Mounted Police Unit and it will be necessary to give ration to such a colt or foal till it is sold away by public auction if it is not found useful. A ration to such a colt or foal shall be given at the following rates: -

(i) for colt or foal which is less than 1 / 4th of the ration sanctioned for a horse 3 months old.

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| (ii) for a colt or foal less than 6 months old. | 1/ 3rd of tile ration sanctioned for a horse. |
| (iii) for colt or foal which is more than 6 months old but less than one year old and which has been found not useful till it is sold away by a public auction. | Half the ration sanctioned for the horse. |
| (iv) for a colt or foal more than one year old till it is absorbed in the Mounted Police Unit. | 3/ 4th of the ration sanctioned for a horse. |

(2) (a) A Muster Roll of horses fed on each day shall be maintained and the same shall be signed by the Headquarters Police Inspector/Police Sub-Inspector/Mounted Police Inspector.

(b) Colts or foals shall be shown separately mentioning the date of birth of each in the muster roll, so that admissible rate of feeding charges remains in view.

(3) To workout expenditure per horse per month, every month and if actual expenditure exceeds the sanctioned expenditure, a report shall be sent to the Inspector General of Police giving reasons therefore. If the expenditure is within the sanctioned limit, a report on the feeding charges arrived at shall be sent from month to month.

(4) A report shall be prepared after a joint scrutiny of accounts by a committee consisting of Home Police Inspector, Head Clerk or Accountant and Headquarters Police Inspector / Police Sub-Inspector or Mounted Police Inspector / Police Sub-Inspector, as the case may be.

(5) Purchases shall be of two kinds, viz. (a) items which are bulk purchased and (b) items which are purchased daily. Bulk purchased items shall consist of items like grams, barley, bran etc. and items of daily purchases will be grass, fodder, etc. There shall be two accounts-one for bulk purchased items and the other for daily purchased items. In the bulk purchased items, whatever is purchased should be credited showing weight and cost Whatever is issued every day should be debited showing weight and cost and balance drawn, daily, as if in a cash book. In the accounts book of daily purchases, weight of things; purchased and their cost shall be shown Vouchers shall be prepared and dealt with according to the procedure.

(6) The monthly reports received in the officer of the Inspector-General of Police shall be entered in a register showing the charges per horse per district so that in case the charge; are going higher, the Government may be approached at once to sanction exeess expenditure.

(7) Large feedings should be avoided to prevent indigestion and stomach rupture of the horses.

(G. R., H.D., No. MPU-1364-26347-C, dated 27th October, 1967 and I. G. 's circular No. E/1621-798, dated 11th April, 1973)

522. Watering.-A horse should be watered at least four times a day. In hot weather horses should be watered more often. The following points should be noted :-

(i) Horses will seldom drink very cold water freely.

- (ii) Stagnant water should as far as possible be avoided.
- (iii) Great attention should be paid to the cleanliness of the source of supply.
- (iv) If possible, troughs should be provided for watering
- (v) Horses should be watered first and fed afterwards A heavy drink immediately after a feed impairs the digestion and may possibly cause colic.
- (vi) Do not put horses to fast work immediately after a drink. Horses should, be made to move faster than a walk for a quarter of an hour, after a full drink.
- (vii) Bits should always be removed and girths slackened before watering.

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- (viii) Water trough must be frequently emptied and cleaned.
- (ix) A horse with a discharge from nostrils must be watered in a separate bucket.
- (x) Buckets must never be filled by dipping them into the water trough.
- (xi) A man should not lead more than two horses to water. At the watering place he should stand between the two.
- (xii) On no account, horses heads be tied together while watering.
- (xiii) Horses should be formed up so as to allow one meter width to each horse at a trough.
- (xiv) No horse should be allowed to leave the trough until the last animal has finished drinking.
- (xv) A horse usually requires 5 to 6 minutes to water. It must not be thought that a horse has finished drinking merely because he lifts his head.

523. Treatment and disposal of unserviceable horses.- (1) If a horse is sick, he should at once be treated in the veterinary hospital.

(2) If the Veterinary Surgeon certifies that the horse is not fit for Police duties either on account of age, illness etc. he should be sent to the 'Panjrapol' after sending a certificate of the Veterinary Surgeon and after obtaining sanction of the Inspector-General of Police.

(3) If the Veterinary Surgeon certifies that the illness or the disease is incurable and the animal is not useful for Police duties. the certificate should be sent to the Inspector- General of Police along with a report and with his approval. the animal should be destroyed.

(4) if the colts or foals are not useful to the department, they should be sold by public auction on the following conditions:-

(i) colt or foal should be sold only after the committee formed by the Deputy Director of Animal Husbandry certifies that the same, is not useful for the Police department.

(ii) the upset price of colt or foal to be sold should be fixed by the committee which includes the Director of Animal Husbandry or his representative as one of its members.

(I. G. 's No. E/1621, dated 7th February, 1972, E/1621-7754, dated 28th February, 1972 and E/1621/22/940, dated 25th August, 1972)

524. Hiring of horses.-(I) The Police horses, are given on hire to private parties such as film producers, clubs, etc. on the following conditions :-

(i) Horses will be spared only if they are not required for law and order purposes. The decision of the Inspector-General of Police shall be final on the subject.

(ii) An amount of Rs. 100/ - per day per horse will be charged as hire charges and should be paid in advance.

(iii) Full insurance of the horses spared will be taken by the borrowers at their cost.

(iv) Full indemnity for injuries to horses immediately or for a year after the date of borrowing traceable to that or any damage it may cause to its rider or any other person or property during the days it is borrowed, will be furnished by the party borrowing.

(v) No policeman will ride the horse and appear as an actor in pictures if the borrowing party is a film producing company.

(vi) The riders will be borrower's own men and the Police Department will not be liable for any damage caused to them in the act of riding or traceable to the act of riding.

(vii) The permission for use of Police horses will be subject to revocation without notice by the Inspector General of Police and Government will not be responsible for any loss or damage to the borrowers as a consequence.

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(viii) Horses shall not be taken by the borrowers outside the territory of Gujarat State.

(ix) The cost of transporting horses from the place available to the place they are required by the borrower and back to the place from where they were moved within the territory of Gujarat shall be borne by the borrower. The insurance and indemnity conditions mentioned above shall apply to the transport of horses also both ways.

(x) The pay and allowances of the police men Sykes, sweepers that may need to accompany the horses shall be borne by the borrower and shall be paid in advance.

(xi) The borrower should deposit an amount equal to the cost of one horse irrespective of the number of horses hired.

(xii) If any injury is caused to a horse during the hiring period, suitable amount should be recovered from the deposit.

(xiii) If the horse is found unserviceable on return, full amount of the deposit should be forfeited and in case of any dispute, the decision of the Inspector General of Police in this respect shall be final.

(2) Horses should be allowed to be borrowed only after the borrowing party has accepted all the conditions in writing on a stamp paper of proper denomination to be provided by and executed by the borrowing party. The undertaking should be retained and preserved by the Commissioner of Police / Superintendents of Police concerned till at least one year from the date the horses are returned or till all disputes connected with the hiring are decided, whichever is later.

(G. C., H. D., No. MPU-1072-2491-C, dated 30th June 1972, and I.G. P. 's No. E/1621-17-1884, dated 15th November, 1972)

(3) The horses can also be given on hire to the amateur riding clubs for teaching riding to the members with the approval of and on the conditions prescribed by the Government.

(G. L., H. D., No. MPU-1070-7919-C, dated 2nd April. 1971)

525. Procedure for feeding Dogs and Camels.- The procedure laid down for feeding horses shall also apply to the extent possible to the dogs and camels. The only difference will be that in case of dogs, all feed will be fresh and the bulk purchase register will be redundant.

(I. G, 's No. E/1621-798, dated 4th April, 1973)

SECTION VI.-ADDITIONAL POLICE

526. Supply of guards or escorts to private individuals or bodies.-(I) (a) If Police are needed by private persons to guard their property or keep the peace, they may be supplied by Commissioner of Police or the Superintendent of Police, as the case may be, on the terms prescribed by Section 22 of the Bombay Police Act.

(b) When private parties or companies apply for a Police party to escort treasure, the strength should be determined by the officer applied to on a consideration of the amount of treasure and the danger that is apprehended.

(c) Furnishing private individuals, when proceeding on a pilgrimage or any other journey with a Police escort is objectionable.

(G. R., J. D., No. 3965, dated 11th July, 1874)

(2) It is only in very exceptional cases that a permanent escort is required for the custody of Public Works Department treasure for payments to workmen As a general rule, the Sub-Inspector of Police of the Police Station, through the limits of which the cashier passes, should be requested through the Mamlatdars to make the necessary arrangements for escort.

(G. R., P. W. D., No. 89-E-424, dated 12th March, 1887)

(3) Police protection should be given to the Bailiffs carrying cash and other valuables attached in the execution proceedings when the value of the property attached is Rs, 500 or more and whenever they apprehend danger and ask for protection. The number of Policemen required on such occasions, which would not be large should be provided from the existing strength of the Police Stations concerned.

(I. G. 's C.M. No. 7436, dated 2nd June, 1953)

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(4) (a) As a general rule, Police supplied to Municipalities private companies and others should be changed at regular intervals i.e. as far as possible every year. They should be trained men from the permanent force and recruits should be entertained in the lowest grades to fill up the temporary vacancies caused by the transfers of such permanent men. As soon as regular vacancies occur, the men holding the temporary appointments should be transferred to the permanent vacancies.

(b) Where however, as in the case of the guards supplied to the various branches of the State Bank of India. the arrangement is a permanent one the vacancies so caused should be filled up permanently by the enlistment of recruits.

(G. R., H. D., No. 9206, dated 9th January, 1926)

(c) When additional Police are required for employment by private companies etc. the Commissioner of Police or Superintendents. as the case may be should select men who will obtain some substantial pecuniary advantage from the deputation, which is necessary as a set off against the inconvenience and pecuniary loss involved in maintaining two separate establishments. Thus a senior constable should be detailed for a Head Constable's appointment in the additional Police and soon.

(5) The application for the supply of guards to private individuals or bodies should be inform No. 31 in Appendix I.

527. Duties of and Control over additional Police.-(1) Whenever additional Police are deputed under the preceding Rule. the Superintendent of Police may lay down. in such manner as he thinks fit, the extent to which additional Police employed at the charge of a municipality shall be subject to the orders of the Police Station Officer or other Police authorities in whose jurisdiction they are working. In such cases the Policemen. if not directly under the control of their regular Police officers tend to become so slack and untidy as to bring discredit on the regular force by their general appearance. They may also abuse their authority and indulge in petty exactions at the expense of the public or other forms of illegality, for which the nature of their employment, without the regular control of their departmental superiors may sometimes give special opportunities.

(2) The Commissioner of Police or the Superintendent of Police as the case may be is ultimately responsible for all such matters of discipline and control. He should therefore, consider in

every case where additional Police are deputed by him, whether at the charge of a municipality or otherwise what steps are necessary or desirable. in the direction indicated in Sub-Rule (1) above to enable him efficiently to discharge his responsibilities in regard to such additional Police. It will usually be necessary to lay down the nature of the duties to be performed by the additional Police, and, in the case of municipalities, to arrive at a clear understanding with the municipal authorities as to the limitations to be imposed on them. Such limitations should include forbidding them to take any more active part in removing encroachments or executing distress warrants than is entailed in accompanying municipal officers to see that they are not obstructed or that no breach of the peace occurs.

(I. G. 's No. 22, dated 29th May, 1928)

(3) While it is the duty of the Police to regulate traffic and maintain order at Panchayat and municipal elections. they should not be required to take charge of ballot boxes or to convey them from the polling stations to the Returning Officers. Accordingly, Police assistance for these purposes should not be given unless in the case of municipal elections, which are conducted by the municipalities, the local body concerned agrees to pay for the services of the Police and, in the case of panchayat elections, the Collector, who is responsible for the elections considers, that for any special reasons such assistance is necessary.

(G. R., H. D., No, 6364/3, dated 9th July, 1936)

528. Cost of Additional Police.-(I) The pay of Police Guards or escorts supplied to private companies or private individuals should be recovered in advance by Superintendents of Police and paid into the treasury. In addition to the pay, recoveries should be made :-

(a) (i) if the establishment has been sanctioned from a date prior to 1st April, 1931 on account of leave and pension contribution at 25 per cent of the average cost of different establishments;

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(ii) if the establishment has been sanctioned from a date after 1st April. 1931, on account of pension contribution with effect from 1st May, 1939 at the monthly rate of 9 1/2 per cent of the maximum monthly pay of all the sanctioned posts (Appendix VII -A of the Bombay Civil Services Rules) i.e. the maximum pay of the highest grade in cases where there are different grades and the maximum pay in the case of establishments on time-scales of pay; and on account of leave contribution at the monthly rate of 12 1/2 per cent of the total sanctioned cost or in the case of time scales of pay on the average cost of all the posts concerned;

(b) on account of supervision etc., at the rate of 6 per cent of the average total cost and not the actual cost.

Nate.-The total cost should include pay special pay, allowances which are termed as special pay. Dearness allowance, compensatory allowance and house rent allowance, if admissible while calculating pension and leave contributions and supervision charges under clauses (a) and (b) above.

(G. R. H.D. No. 1345/7, dated 25th May, 1953)

(c) On account of clothing at the rate of Rs. 15/- per man per annum;

(d) unless free quarters are provided by private companies or individuals concerned on account of house-rent at the rate sanctioned for the locality;

(e) on account of deputation allowance at the rate of Rs. 5/- per mensem when this is allowed.

(This allowance should be treated as' a compensatory allowance payable only when a change of station is involved and should cover the entire period. however extended, for which a Policeman may be lent to a private person.)

(G. R., H. D., No. 9348/2, dated 9th July, 1931 and 3rd December, 1931)

(f) on account of free passage concessions Rs. 1.81 per mensem per District Policeman and Rs. 3.76 per mensem per Railway Policeman.

(g) on account of "Daily Allowance" at the rate prevailing during the period.

(G. L., H. D., No. 6404/4, dated 23rd October, 1942 and G. R. H. D., No. BPM-1067-24059-C dated 9th October, 1969)

(2) The charges on account of the supply of police guards to private individuals should be recovered on daily basis.

(3) The pay of the additional Police supplied under sub-rule (1) should be drawn on the special form of pay bill prescribed for the purpose.

(4) Superintendents of Police should intimate to the Accountant-General their sanction of supplies of Police guards or escorts to private persons and companies whenever made giving full details about the number of men lent the rates of their pay and allowances and the period for which lent etc.

(I. G. 's No. 13, dated 26th April, 1939)

(5) No charge should be made to public departments for Police supplied to them.

(6) Any case in which a Police guard is desired by a Government Department shall specially submitted for the orders of Government by the officer desiring it.

(7) District Magistrates should not, save in urgent and exceptional circumstance which should be forthwith reported to Government, requisition guards which have not been authorized by Government. When additional guards are requisitioned by the District Magistrates, they should be furnished free of cost and the matter should be reported by the Superintendent of Police to the Inspector-General of Police.

(G. R., J. D., No. 6380, dated 29th November, 1906, and I. G. 's No. 13, dated 4th January, 1907.)

(8) When guards are supplied by the Police Department to a railway at the la own request, for the performance of duties which might be arranged for by the railway authorities and are not part of the ordinary functions of the Police their cost shall be charged to the railway in the same manner as laid down in Chapter V of Volume II.

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(9) The cost of the Police escort supplied to the Bailiffs of the Judicial Department should not be recovered.

(G. R., H. D., No. 3977/7-H, dated 30th October, 1956)

(10) When the Police guards are supplied to the parties in dispute in civil suits who apprehend danger and seek Police help through the court, the cost of the guard should be recovered from the parties to whom Police guards are supplied.

(G. L., H. D., No. CRD-2957/102273-VI, dated 16th December, 1957)

(11) Sports and festival cricket matches always attract a large number of people at he place and hence the maintenance of law and order becomes the primary duties of Government. Under the circumstances no charges are to be recovered from the concerned person or organization for Police bandobast either on roads or inside the sports stadium or grounds for festival cricket matches or sports.

(G. C., H. D., No. GRD-1072-584--C, dated 20th October, 1972, and G.L., H. D., of even number dated 28th December, 1972.)

529. Additional Police for disturbed areas.-(I) The following procedure should be followed by the District Magistrates while sending proposals to Government for employing additional Police under section 50 (1) of the Bombay Police Act: -

(a) If the District Magistrate agrees with the proposal of the Superintendent of Police for additional police he shall forward it directly to the Home Department with his endorsement.

(b) In case the District Magistrate does not agree with the proposal of the Superintendent of Police he shall forward it to Range Deputy Inspector General of Police giving his views. The Range Deputy Inspector General of Police shall record his recommendations and forward the proposal to the Inspector General of Police who will properly record his views and in case he agrees with the District Magistrate he shall file the papers under intimation to Deputy Inspector General of Police District Magistrate and Superintendent of Police. If he does not agree with the District Magistrate, the Inspector General of Police, will forward it to the Government giving his views and the Government will decide the proposal.

(Govt. HD (Spl). Circular No. SB.I/ADP-1072/7477, dated 2nd November, 1972)

(2) Whenever any proposal for the establishment of an additional Police post is submitted to Government for sanction it should be accompanied by information showing the population of the village in which and at the cost of which, it is proposed to establish the. Police post, and the average incidence of the taxation, which the maintenance of the post will necessitate.

(G. R., J. D., No. 5157, dated 8th August, 1901)

(3) (a) In all applications for additional Police etc.. the Superintendent should report to the District Magistrate how many men are intended to be armed and how many unarmed and also the number and the kind of arms accoutrements and articles of clothing required. They should be all carefully estimated after deducting the articles, which can be issued from stores.

(1. G.'s No. 120, dated 9th June, 1897)

(b) District Magistrates should address the Inspector-General of Police as regards the arms, accoutrements and clothing which may be required.

(4) Applications for the continued employment of additional Police previously sanctioned should be submitted at least two months before the expiry of the period sanctioned to enable Government to issue the requisite orders under Section 50 of the Bombay Police Act before the period expires.

(G. R., J. D. No. 2783, dated 17th April, 1896)

(5) It is not necessary to obtain Government orders to the cessation of a post of additional Police at the conclusion of the term for which it is sanctioned. Unless a continuation of the term is sanctioned, the temporary employment necessarily terminates at the end of the term.

(G. R., J. D., No. 4225, dated 2nd June, 1897)

530. Duties and cost of additional Police in disturbed areas.-(I) Section 50 of the Bombay Police Act empowers Government to sanction the employment of additional Police; in any local area which appears to them to be in a disturbed or dangerous state. or in which , the conduct of the inhabitants or of any particular section of the inhabitants renders it necessary temporarily to increase the strength of the Police. Such additional Police must, therefore, be employed only for the maintenance of peace *in the locality concerned*.

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Whenever additional Police are sanctioned under Section 50, suitable instructions should invariably be issued by Superintendents of Police with a view to prevent the utilization of the additional Police in an unauthorized manner.

(G. L., H. D., No. LCE-1739-D, dated 8th May, 1932 and No. 23, dated 4th June, 1952)

(2) The mode of assessment and collection of the cost of additional Police is laid down in Section 50 of the Bombay Police Act.

SECTION VII.-PLAGUE AND FAMINE POLICE

531. Application for and power to sanction the entertainment of plague and famine Police.-(1) All applications for sanction to the entertainment or retention of additional Police on account of plague should be submitted for orders by Superintendents of Police through the District Magistrates to the Deputy Inspector-General of Police of the Range concerned and by Railway Superintendent direct to the Deputy Inspector-General of Police Criminal Investigation Department (Crime & Railways) In submitting such applications Superintendents should state precisely the special reasons necessitating the entertainment or retention of the plague Police, the special duties for which they are required, the strength of the regular Police at the place, the number of vacancies in the district and the exact conditions calling for additional Police.

(2) Application for sanction to the entertainment of temporary Police for famine purposes in Districts and Railways should be addressed to the Range Deputy Inspector-General of Police.

(3) When applying for famine or plague Police, the description and the number of articles of clothing and accoutrements required should be stated. These should be carefully estimated after deducting such articles as can be issued from store. In the case of Famine Police, it should also be stated how many men are to be armed and how many unarmed, giving at the same time the number and description of arms required.

(4) The Deputy Inspectors-General of Police are empowered to sanction, within budget provision, the entertainment or retention of additional Police on account of plague.

(G. R., H. D., No. 2123, dated 13th May, 1925)

A copy of the Deputy Inspector-General's order sanctioning the entertainment or retention of the additional Police should, each time sanction is accorded, be forwarded to the Accountant-General and the District Magistrate concerned.

(I. G. 's No. 5-18470, dated 18th December, 1908)

(5) The Deputy Inspector-General of Police is empowered to sanction the entertainment of temporary Police for famine purposes, subject to confirmation by the Inspector General of Police.

(6) For duties and responsibilities of the Police in case of famines, reference should be made to paras 32(d), 39, 57, 58, 60, 61, 170 and 225 of the Gujarat Scarcity Manual.

532. Uniform and housing of plague and famine Police.-(I) (i) In the case of temporary Police, the capitation grant is the same, i.e., (Rs. 1.25 nP. per man per mensem) as in the case of the regular police; but as a rule, it will not be necessary to supply Police; men employed for a brief period in an emergency, with full uniform. This, however, is a matter that must be left to the discretion of the Superintendent of Police, who should settle it in accordance with the circumstances of each case.

(ii) The cost of capitation grant in the case of additional plague Police should be met from the grant at the disposal of the Range Deputy Inspector-General of Police.

(G. R., J. D., No. 3030, dated 1st May 1900, No. 3652, dated 8th June, 1901, G. R., H. D., No. 3072, dated 18th March, 1924 and G. R., H. D., No. 4249/3, dated 30th July, 1934)

(2) (i) For rules regulating the erection of huts for the accommodation of the Police in plague infected areas, reference should be made to Rule 224 in Volume I.

(ii) The Public Works Department will provide such accommodation as is necessary for Police guards on famine relief works.

(G. R., L. D., No. 2512, dated 9th April, 1900)

533. Cost of plague and famine Police.- The cost on account of the entertainment additional Police force for famine or plague duty should be debited to "255-Police-District" Executive Force-Other Police-Additional Police Establishment".

(G. R., R. D., No. 11245, dated 9th December, 1912)

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CHAPTER XI

AUXILIARY ORGANISATIONS

SECTION I- VILLAGE POLICE

534. Appointment and Control over Village Police.-(1) The Village Police Organization is constituted under the Bombay Village Police Act, VIII of 1867. The administration of the Village Police in each district is vested in the District Magistrate, who may delegate any portion of it to an Assistant or Deputy Collector, being a Magistrate of the First Class.

(2) The power to appoint village officers cannot be delegated to the Superintendent of Police. The only provisions authorizing transfer of authority are those in Section 4 of the Bombay Village Police Act and Section 46 of the Bombay Police Act, and in these provisions the authority capable of being delegated by the District Magistrate is limited to authority for "purposes of police" or "police purposes". The phrases must clearly be taken as meaning "for purposes of police work and

functions ", and the provisions as allowing delegation of control over the Village Police only in respect of the performance of their duties as such.

(G.R., H. D., No. 6804, dated 25th September, 1895)

(3) A Sub-Divisional Magistrate, before appointing a Police Patel for any village in which a vacancy has occurred or is expected shortly to occur, should notify the Police officer in charge of the sub-division of his intention and ask him to bring to his notice before a fixed date any facts concerning the persons eligible for the appointment which it is desirable from the Police point of view that he should know

(G. R., H. D., No. 6273-2, dated 20th September, 1930)

(4) District Magistrates will carefully protect and control the Patels. Charges of neglect of duty or other misconduct preferred against these officers should be investigated solely by them.

535. Training of village Police.- In addition to the annual courses of instruction required to be conducted by Deputy Collector of the Revenue Department, Superintendents of Police and Sub-Divisional Officers should call in Police Patels at the time of their inspection of the nearest Police Stations or Outposts and give them general instructions about their duties and particularly about crime and allied matters.

(G. R., H. D., No. 1040/4, dated 4th April, 1942 and I. Gs'. No. 12, dated 20th May, 1942)

536. Powers of a Police Patel in the matter of arrest.-(I) It is unnecessary to define serious offences for which Police Patels any arrest under Section 12 of the Bombay Village Police Act. Offences which are not ordinarily serious may become so at certain times and in certain localities.

(2) For the re-arrest by the District Police of a person sent under arrest by the village Police, reference should be made to Rule 183.

537. Duties of Police Patel.-(I) The duties and responsibilities of Police Patels are laid down in a booklet entitled "Instructions for the Guidance of Police Patels (1951)" and Sections 6 to 9 of Village Police Act.

(2) (a) It is also the duty of the Police Patel to assist any traveller whatever his race may be, who from sickness is unfit to continue his journey, and especially to allow the sick traveller to suffer from want of shelter, of food, or of attendance.

(b) On hearing of any such person having arrived at the village or being on the road or in the fields in a helpless state of sickness, the Police Patel should at once ascertain all the circumstances of the case.

(c) The sick, helpless traveller should be taken to a *dharmshala* or sarai or to other available shelter, and the Police Patel should ensure that he is supplied with necessary food and water, and such other aid as his sickness may require and can be given. He should protect the sick person's property from theft.

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(d) The Police Patel should at once send a messenger to inform the friends of the sick man of his condition, if they are in the same taluka, or in any villages not more distant than if they were so. Otherwise he should, without delay, report all the circumstances of the case to the Sub-Inspector or Mamlatdar, who will acquaint the friends with the traveller's state or, if necessary, will arrange for his removal to hospital or to his home.

(e) If the sickness of the traveller is cholera, he should be accommodated outside the village in a vacant building, if there is one procurable. If there is no such building, he should be sheltered as

well as possible with a pal, a tent or a booth under a tree, but not near a well or a tank. The Police Patel should arrange also that the sick person has an attendant and that all his wants are supplied.

(f) The *lota* of a person ill with cholera must not be used in drawing water for him from the well or tank. The water he requires must be drawn otherwise, and then poured into his own *lota* or cup.

(g) The surface earth of any floor on which a person sick with cholera has lain should be scrapped off and buried at a distance from water or houses, in a hole dug for the sick man's vomit or other discharges.

(h) In the absence of the Police Patel, the Revenue Patel should carry out these duties.

(i) The Patel should send to the Mamlatdar a memorandum of expenses incurred, which, if found correct and reasonable, should be paid in the event of there being no friends of the sick man able to defray the charges.

(3) The prompt relief of shipwrecked persons is considered to be part of the duty of Police Patels. They also have discretionary power to incur some small expenditure for the purpose, all the circumstances being at once reported to the nearest taluka officer.

(G. R., H. D., No. 2258, dated 2nd October, 1922)

(4) A Police Patel appointed under the Bombay Village Police Act, VIII of 1867, is a village Police officer in the State for the purposes of Sub-Section (1) of Section 40, Criminal Procedure Code.

(G. R., H. D., No. 7209-II, dated 11th April, 1927)

(5) It is not the duty of village watchmen to watch the camp of any officer by night or to serve as an escort to officers of the district Police when moving about. Such a withdrawal of the Village Police from their legitimate duties is prohibited, and the employment of men brought from other villages is an abuse.

(G. R., R. D., No. 7420/33, dated 13th September, 1938)

538. Emoluments of Village Police.-(1) When village watchmen are employed to watch the camp of any officer by night, except by the wish of the people themselves of a village where the custom of village responsibility is still kept up, they should be paid. Even in the latter case, more than a couple of men should rarely be necessary and any in excess of this number should be paid for.

(2) A diet allowance of 25 nP. per day should be paid to village Police Patels and inferior village servants, whenever they are deputed to guard railway lines on the occasion of the journey of the President of India the expenditure being debited to the grant for other charges under "Other items-" A" of Non-contract Contingencies-District Executive Force."

(G. R., H. D., No. 5152/4, dated 24th February, 1942)

(3) Village servants authorized by their Police Patels to travel by rail or passenger bus for the prompt communication of reports of murder, attempt at murder, culpable homicide, dacoity or any serious rioting to the Police Station should be reimbursed theft actual expenses for onward and return journeys, the expenditure being debited to the Superintendent's non-contract contingencies.

(G. R., H. D., No. 5941/4-D, dated 29th May, 1942)

(4) The cash chest on village famine works should be guarded by village Police employed on the A class wage.

(G. R., H. D., No. 8514, dated 10th September, 1912)

539. Enrolment of special Police.-Authority for the enrolment of Special Police Officers is contained in Section 21 of the Bombay Police Act for the districts in the State. Special Police Officers are to be enrolled only in emergencies. It is, therefore, necessary to give wide discretion as to their enrolment and employment to the officers authorized by law to appoint them and responsible for handling

them in the manner best calculated to deal with the emergencies. But this discretion is to be exercised in accordance with the following instructions:-

(1) (a) The Commissioner, the Superintendent, or any Magistrate specially empowered in this behalf by the State Government, may, at any time by a written order signed by himself and sealed with his own seal appoint any able-bodied male person between the age of 18 and 50, whom he considers fit to be a Special Police Officer to assist the Police force on any occasion, when he has reason to apprehend the occurrence of any riot or grave disturbance of the peace within the limits of his charge and he is of opinion that the ordinary Police Force is not sufficient for the protection of the inhabitants and for the security of property.

(b) The authorities concerned should prepare and maintain confidential lists of respectable persons throughout their districts who are likely to be both fit and willing to serve as Special Police Officers when called upon. The names of any individuals likely to prove of more use as informants should be excluded from these lists. Copies of the lists should be furnished to the Sub-Divisional Police Officers. The maintenance of these lists is designed to save time in emergencies, but is in no way to fetter the discretion of local officers, should it be desirable to call upon individuals, classes or communities who do not appear on them.

(2) Special Police Officers should be appointed by voluntary enrolment.

(3) Every person enrolled should receive a formal certificate of enrolment in the prescribed form and should be known as a Special Police Officer.

(G. R., H. D., No. 114, dated 3rd August, 1922 and G. L., H. D., No. 6518-II, dated 13th February, 1953.)

540. Equipment of special Police.-(1) Special Police Officers should be distinguished by a red brassard, four inches in width, conspicuously marked with the letters S. P. O. This badge should be worn on the left arm.

(2) Special Police officers should be armed with batons or lathis at the discretion of the Superintendent of Police; but responsible Special Police Officers may be provided with suitable firearms, when engaged on particularly responsible or dangerous duties.

(G. R., H. D., No. 114, dated 3rd August, 1922)

541. Allowance admissible to special Police.-Special Police Officers will ordinarily receive no remuneration for their services, but an allowance may be made for expenses actually incurred, provided that the amount can be met from the grants at the disposal of the Superintendent of Police. Rewards for special services may be granted under the rules regulating the grant of rewards to regular Police officers.

(G. R., H. D., No. 114, dated 3rd August, 1922)

542. Duties of special Police.-(1) The function of Special Police Officers is to assist the regular Police.

(2) Ordinarily the duties to be assigned to Special Police Officers should be-

(a) patrol and simple routine duties, and

(b) the collection and communication of information.

They should not, save in emergencies, be employed in direct contact with riotous mobs.

(3) Discipline must necessarily be strict in emergencies and should not be relaxed in the case of Special Police Officers; but care should be taken to employ them only on duties which they are capable of carrying out. Their employment on menial and other work calculated to offend their reasonable susceptibilities should be studiously avoided.

(4) They should attend lectures and parades only to the extent necessary to give them a proper understanding of their duties and the use of the weapons with which they are armed.

(G. R., H. D., No. 114, dated 3rd August, 1922)

(5) Every Special Police Officer so appointed shall on appointment have the same powers, privileges and immunities and be liable to the same duties and responsibilities and be subject to the same authorities as an ordinary Police officer.

(Section 21 (2) (b) of the Bombay Police Act, 1951)

SECTION III-HOME GUARDS

543. Organization, appointment and training of Home Guards.- (1) The Home Guards is a voluntary body organized under the Bombay Home Guards Act, III of 1947, as amended from time to time, and is intended to supplement the ordinary Police Force in different parts of the State in relation to the protection of persons, security of property and public safety, as may be assigned to them in accordance with the provisions of the Act and the rules made there under. It is essentially a civilian body, but is nevertheless bound by discipline of a standard almost equal to that of Police Department.

(2) The Home Guards consist of the Commandant General, the Commandants and several Subordinate officers in command of divisions, companies, platoons, sections, etc. The State Government shall appoint the Commandant General and a Commandant of each of the Home Guards Subject to the approval of the Commandant General, the Commandant may appoint as members of the Home Guards such number of persons who are fit and willing to serve, as may from time to time be determined by the State Government, and may appoint any such member to any office of command in the Home Guards.

(3) Notwithstanding anything contained in sub-rule (2) above, the Commandant General may, subject to the approval of the State Government, appoint any such member to any post under his immediate control.

(Section 3 of the Bombay Home Guards Act.)

(4) (a) A member of the Home Guards when called out under Section 4 of the Bombay Home Guards Act, 1947, shall have the same powers, privileges and protection as an officer of the Police appointed under any Act for the time being in force.

(b) No prosecution shall be instituted against a member of the Home Guards in respect of anything done or purporting to be done by him in the discharge of his, functions or duties as such member except with the previous sanction of the Commissioner of Police or the District Magistrate as the case may be.

(Section 5 of the Bombay Home Guards Act, 1947)

(5) A member of the Home Guards when called out under Section 4 of the Bombay Home Guards Act, 1947, in aid of the Police Force, shall be under the control of the officers of the Police Force in such manner and to such extent as may be prescribed by rules made under Section 8 of the Bombay Home Guards Act.

(Section 6 of the Bombay Home Guards Act, 1947)

(6) The arrangements for escorting arms and ammunition belonging to the Home Guards from one place to another should be made by the Home Guards themselves. In exceptional cases, however, where the Commandants feel that it is necessary that Police should escort arms and ammunition at a particular place due to peculiar circumstances, the District Commandant should always obtain the services of policemen to escort the arms and ammunition in consultation with the Superintendent of Police.

(I. G.'s No. M/6123, dated 20th February, 1959)

(7) Cash rewards are granted to all members of Home Guards Organization in recognition of conspicuously good work or work of outstanding nature.

(G. R., H. D., No. HGS-1068-669-M, dated 23rd June, 1969)

(8) The training to Home Guards as drivers, etc. should be given on vehicles belonging to Government Departments or Semi-Government Departments, at places where- necessary facilities are available.

(G. L., H. D., No. 8712/5-E, dated 20th June, 1956)

(9) No fees should be recovered from the Police Department or the Municipality for the issue or renewal of licenses or learner's licence in respect of such Home Guards as may be trained as drivers and conductors on the vehicles belonging to the Police Department or the Municipality. This facility is not extended in respect of vehicles belonging to other agencies.

(G. L., H. D., No. 8712/5-E dated 21st May, 1956)

(10) Home Guards may carry arms while carrying out prohibition raids or engaged in the detection of smuggling of liquor or illicit distillation, but they are not permitted to retain the arms when not on duty. The arms are to be drawn from the Police Armory by the Home Guards before proceeding on duty and returned to Armory immediately the duty is over.

(G. R., H. D., No. S 108/27168-H, dated 10th August, 1953)

SECTION IV-GRAM RAKSHAK DALs

544. Objects of Gram Rakshak Dals.- (1) Gram Rakshak Dals have been in existence in one shape or another since 1948. The Government in 1956 incorporated Section 63-B in the Bombay Police Act, prescribing the organization and functions of the Gram Rakshak Dal. In the year 1965, a new wing known as Sagar Rakshak Dal was raised in the coastal villages. Later, Mahila Gram Rakshak Dals were also raised.

(Govt., H. & C.S.D. D.O. letter No. VDP-(SRD)-3165-C, dated 9th September, 1965 and G. R., H. D., No. RNK/1165-M, dated 6th December, 1965)

(2) (a) Gram Rakshak Dals are an auxiliary to the Police, constituted under section 63-B of the Bombay Police Act, 1951, and are chiefly meant for the defense of the villages against depredations of dacoits and other types of criminals and protection of persons, the security of property and public safety in villages.

(G. R., H. D. No. 4047/5, dated 19th January, 1948, dated 21st June, 1948)

(b) The Sagar Rakshak Dals extend this activity into the Seas and help to maintain vigil on the long coastline of the State particularly during the outbreak of hostilities.

545. Organization of Gram Rakshak Dal.-(I) At State level, there will be a Superintendent of Police, Gram Rakshak Dal, of the rank of Superintendent of Police on the establishment of and directly under the Inspector-General of Police for coordinating training and activities of the Gram Rakshak Dal.

(G. R. H. & C.S.D., No. VDP-1065/1174-D, dated 8th June, 1965)

(2) There will be a Police Sub-Inspector at State level with his Headquarters at Veraval in Junagadh District on the establishment and under the supervision of the Superintendent of Police, Gram Rakshak Dal, for organization of the Sagar Rakshak Dal.

(G. R., H. & C.S.D., No. VDP-SRD-3165/3584-M, dated 2nd November, 1965)

(3) For each district, there will be a, Police Officer of the rank of Sub-Inspector for the organization and supervision of the Gram Rakshak Dals in the district. There will be a District Honorary Officer of the Gram Rakshak Dal at District level appointed by the Superintendent of Police of the district.

(G. R., H. & C.S.D., No. VDP-1065/7-C, dated 18th August, 1965 and I.G.P. 's No. GRD/1587/APP, dated 20th August, 1965)

(4) There will also be a District Honorary Mahila Gram Rakshak Dal Sangathak at district level appointed by the Superintendent of Police.

(G. R., H. D., No. GRD/2672-7968-M, dated 16th February, 1913)

(5) There will be a Head Constable for each Taluka for training and looking after the work of Gram Rakshak Dals.

(6) There will be Honorary Taluka Gram Rakshak Dal Officer at taluka level appointed by the Superintendent of Police of the district.

(G. R., H. & C. S., No. VDP-1065-C, dated 13th May, 1965, I. G. P. 's memo No. E/1587-VDP, dated 14th May, 1965 and G. L., H. D., No. 2373-6720, dated 12th December, 1973.)

(7) There will also be a Taluka Honorary Mahila Gram Rakshak Dal Sangathak at taluka level appointed by the Superintendent of Police of the district. The work of the Honorary Taluka Mahila Gram Rakshak Dal Sangathak is on voluntar basis. They are not entitled to any honorarium.

(8) Under each taluka officer, there will be Naik and Up-Naik for each village. The Naik and UP.-Naik will be appointed by the Superintendent of Police of the district on the recommendation of

the Taluka Honorary Gram Rakshak Dal Officer. The Naik, and in his absence Up-Naik, will be in charge of Gram Rakshak Dal in the village, who will enroll members in consultation with the officers. K-2533-73

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(9) (a) The Gram Rakshak Dals are formed generally in villages having population of less than 5000. Gram Rakshak Dal, if it already exists in a village having population of more than 5000, is to be continued. A village having population of more than 5000 or if it is a taluka Headquarters with population less than 5000, previous sanction of the Government is necessary to establish Gram Rakshak Dal in such village.

(G. R., H. D., No. HGS-1066/2783-M, dated 12th January, 1968, G.R., H. D., No. GRD-1069/7945-M, dated 5th March, 1970, I. G.P. s No. GRD-1587/70, dated 4th April, 1970 and G.L., H. D. No. 2373-6720. dated 12th December, 1973)

(b) Gram Rakshak Dals now in existence need not be wound up only because the population has increased but if the Home Guards desire to start a unit, they should do so, first preference should be given to qualified members of the Gram Rakshak Dal and Gram Rakshak Dal Unit then be wound up.

(c) In villages with more than 5,000 population, the Gram Rakshak Dals could be started if the Home Guards have no interest of starting a unit in the future.

(Govt., H. D., No. ૨૧૨૧ -1071-2297-M, dated 20th August, 1971)

546. Control over Gram Rakshak Dals.-(1) The whole Gram Rakshak Dal organization in the district will be subordinate to the Superintendent of Police who, in turn will be under the control of the District Magistrate.

(2) The Superintendent or any officer authorized by him in this behalf may at any time by order in writing remove any member or officer of a Gram Rakshak Dal if in his opinion the continuance of such member or officer is undesirable. When the Superintendent or the authorized officer makes, such order of removal, he shall record the reasons therefore and a note of the inquiry made and no such order shall be made, unless the person concerned is given an opportunity of being heard in his defense.

547. Supply of arms to Gram Rakshak Dals.-(1) In order to create confidence among the members of the Gram Rakshak Dals a few selected villagers will be given arms licenses and these men will be expected to arm themselves with such guns as they might be able to procure on their own or with the help of the Superintendent of Police.

(2) If the members of the Gram Rakshak Dal holding M. L. guns apply for the exchanging the M. L. guns with 12 bore guns, their requests should be considered favorably by the licensing authorities.

(I. G. 's C. M. No. 6102-A, dated 26th October, 1956)

548. Eligibility for appointment of members and officers of Gram Rakshak Dals.-

(1) (i) The Superintendent of Police, with the previous approval of the Government, is empowered to determine the terms and conditions of service for the members and officers of Gram Rakshak Dal in the District under sub-section (8) of Section 63-B of the Bombay Police Act. .

(ii) Every person between the age of 20 to 50 residing in a village having good character, antecedents and civic sense and educated up-to III standard vernacular is eligible for appointment as the member of Gram Rakshak Dal provided that the Superintendent of Police may relax the condition if he is of the opinion that the person is otherwise capable of understanding and carrying out the duties of a member.

(iii) Every Mahila between the age of 20 to 50 years is eligible for appointment as the member of Gram Rakshak Dal.

(G. R., H. D., No. ૨૧૬--1068-1370-M, dated 23rd August, 1968, and GRD-1073-4313-M, dated 11th July, 1974.)

(iv) A person of repute wielding social influence in the villages should be selected and appointed for the post of a Naik and Up-Naik by the Superintendent of Police on the recommendation of Taluka Gram Rakshak Dal Officer.

(2) Before a person is enlisted as member of the Gram Rakshak Dal, his character and antecedents should be verified.

(3) A person desirous of appointment as a member of the Gram Rakshak Dal shall make an application to the Superintendent of Police in form No. PM. 223.

(4) The Superintendent of Police of the District, as provided in Section 63-B of the Bombay Police Act, shall be the appointing authority for the members of the Gram Rakshak Dal. However, in making these appointments, the Superintendent of Police will be assisted by the Honorary Gram Rakshak Dal Officers.

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(5) Each member of the Gram Rakshak Dal will be issued with a certificate of appointment by the Superintendent of Police of the District as prescribed in sub-section (10) of Section 63-B of the Bombay Police Act.

(6) The Superintendent of Police will also consult the village Panchayat while selecting personnel for the Gram Rakshak Dal, as the village Panchayat being elected bodies, they will be able to infuse enthusiasm in the villagers.

(G. L., H. D., No. VDP-1059/9716-VII, dated 28th December, 1959, and I. G. P. 's C. M. No. M/6102-A-XII, dated 25th January, 1960)

549. Training.-(1) (a) After the required number of members in any village is enlisted and the character and antecedents of the members are verified, arrangements should be made to impart training to them at the village itself.

(b) Taluka Gram Rakshak Dal Head Constable, under the guidance and supervision of Gram Rakshak Dal Police Sub-Inspector, will impart training to the members.

(c) The training for the members of Gram Rakshak Dal at the village will be for a duration of 15 days and will include the following subjects ;-

- (i) Elementary Squad Drill
- (ii) Lathi Drill.
- (iii) Physical Training
- (iv) Arms Drill.
- (v) Organizing Naka Bandhi.
- (vi) Combating of dacoits and robbers. '
- (vii) Elementary knowledge of law and First-aid.

(d) The members of the women's wing shall be trained for a duration of 15 days in the following subjects ;-

- (i) Elementary Drill
- (ii) Use of rifle and cane
- (iii) Elementary knowledge of law and First-aid
- (iv) Home nursing.
- (v) Collection of intelligence about anti-social elements and how to help the harassed People.

After the principal training is over, the members of the women's wing shall also be trained in First-aid and Home-nursing through the Director of Public Health and the Rural Health Units in the second year of their service in the Gram Rakshak Dal,

(G. R., H.D., No. RNK-1165-M, dated 6th December, 1967)

(2) The training to Naiks and Up-Naiks will be imparted at taluka level for a duration of 15 days for the newly appointed Naiks and Up-Naiks and also a short refresher course for a duration of 7 days under the guidance and supervision of the Police Sub-Inspector, Gram Rakshak Dal with the assistance of Honorary Gram Rakshak Dal Officer.

(3) (a) Naiks and Up-Naiks should be trained at Police Headquarters in discipline and in mobilizing the villages in the eventuality of any calamity or danger like floods attack by dacoits, etc.

(b) The members of Gram Rakshak Dal should be given instructions for organizing patrolling and Naka Bandhi, etc. in the villages.

(4) (a) The training in fire-arms may be imparted at the various centers by sending the Police Instructors from the Police Stations or Headquarters with necessary fire-arms and equipment.

(b) The members of Gram Rakshak Dal residing within a radius of 8 kilometers may be given training at one centre and if there are more centers of this type, the training at the second centre may commence after completion of training at the first centre.

(c) A Police vehicle may be used to carry necessary arms and equipment.

(H. & C.S.D., No. RFC-1065/C, dated 21st May, 1965, H. D., No. CRT-2867/750-M, dated 8th June, 1968 and No. १८५१-1069-M-4934, M, dated 30th August, 1969 and P. & H. D. No. ५६६९-1068-203-१, dated 2nd April, 1968)

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(5) Every member of the Gram Rakshak Dal should be trained in firearms under the Civil Training Scheme (C. R. T. C.) on a subsidized rate (i. e. 50 %).

(6) The Gram Rakshak Dals would be more effective if they get prompt information of the commission of the offences or in other emergency. To this end, every village and Hamlet should be provided with drums so that in case of raid by dacoits or other emergency, the members of the Gram Rakshak Dal can be collected by beating the drum. No expenditure should be incurred on behalf of the Government.

(7) A small committee may be formed from the influential members of the Gram Rakshak Dals with a view to collect intelligence regarding notorious distillers, smugglers, boot-leggers, etc.

(I. G.P.'s No. 7487, dated 24th December, 1954)

(8) The basic training of the Sagar Rakshak Dal will be the same as that of the Gram Rakshak Dal and in addition signalling by Semaphore and Morse will also be taught.

[D. O. H. & C.S.D., No. VDP(SRD)-3165/C, dated 28th September, 1965]

550. Musketry training of Gram Rakshak Dals.-In order that there should be some men who can handle firearms in a serious emergency the Superintendent of Police should arrange to train in musketry a few men selected by the Gram Rakshak Dal Officer from each Gram Rakshak Dal. Each man selected will be expected to fire ten rounds of ammunition in the first year and five rounds every subsequent year.

551. The legal position of Gram Rakshak Dals.-(1) Every member of a Gram Rakshak Dal and every officer appointed under Section 63-B of the Bombay Police Act, 1951, when called out for duty, shall have the same powers and privileges and protection as a Police Officer appointed under the Bombay Police Act.

(2) The members of Gram Rakshak Dals, when summoned on duty by the Superintendent of Police, whenever necessary, are on active duty, as laid down in Section 63 (10) (b) of the Bombay Police Act and as such they are considered as public servants and consequently entitled to legal aid under rule 262 of the Police Manual, Volume I.

(G. L., H. D., No. १८२५./1871-2714-M, dated 4th May, 1971)

552. Warrant of Precedence.:-Official ceremonial functions in which the Gram Rakshak Dals participate, the warrant of precedence of the Superintendent of Police and the honorary officers of the Home Guards and Gram Rakshak Dals should be as follows :-

- (i) Superintendent of Police
- (ii) District Commandant, Home Guards
- (iii) Honorary District Mahila Gram Rakshak Dal organizer
- (iv) Honorary District Gram Rakshak Dal Officer.

(G. R., H. D., No. RNK-1068-1370-M, dated 4th May, 1969)

553. Monthly Note.- The Honorary District Taluka Gram Rakshak Dal Officers shall submit monthly note regarding the Gram Rakshak Dals work done by them in a memo to the Superintendent of Police of the District by 10th of the following month. The Superintendent of Police then shall forward it to the Superintendent of Police, Gram Raksh Dal by 15th, who in turn will forward it to the Government by 20th.

(G. Rs., H. D., No. VDP-1065-7286-M, dated 20th April, 1968 and 28th April, 1969)

554. Accounting of expenditure on account of Gram Rakshak Dal.- Expense on account of Gram Rakshak Dals should be met from the grant placed at the disposal of the Superintendent of Police of the district for the purpose and should be classified under the head "255 Police, District Police G. R. D."

555. Grant of credit marks for admission to Colleges.- Ten credit marks shall be given to a student for each academic year of service in the Gram Rakshak Dal for the purpose of admission to the Government Engineering and Medical colleges and State quota of seat at S. V. Regional College of Engineering and Technology, Surat. The student should produce certificate for one year's service in the Gram Rakshak Dal from the Superintendent of Police of the District and countersigned by the Inspector-General of Police.

(G. R., E. & L. D., No. GEC-3069-42769-GH, dated 14th July, 1969 and H. D. Letter No. GRD-1068- 22-M, dated 10th January 1972 and P. & H. D., No. MCG-1269-4639-N, dated 21st May, 1971)

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556. Grant of awards to Gram Rakshak Dal personnel.-(1) (a) With a view to infuse interest in the members of the Gram Rakshak Dals, the cash awards should be granted on the following basis:-

(i) for doing conspicuously good work requiring special courage, skill or initiative in saving life during floods, fires, earth-quakes, air-raids, and in protecting property;

(ii) for doing work of an outstanding nature requiring prompt and intelligent observance of an obedience to orders so as to be of material assistance in a life saving operation;

(iii) in exceptional cases for devotion to duty, fidelity, diligence and other purpose, which in the opinion of the authority competent to grant award, is calculated to promote the reputation and efficiency of the organization of the Gram Rakshak Dal;

(iv) for reimbursing the expenditure incurred by a member in connection with the work of extraordinary nature;

(v) for other purpose which furthers the aims and objectives of the Gram Rakshak Dal.

(b) For each award, a citation should be written and a copy thereof forwarded to the Home Department.

(2) Orders sanctioning the awards should indicate the reasons for which they are granted.

(3) The following officers are authorized to grant awards up-to the limits shown below:-

(i) In the district, the Superintendent of Police up-to Rs. 100 per case with annual limit of Rs. 1000.

(ii) In the district, the District Magistrate up-to Rs. 150 per case with annual limit of Rs. 1500.

(iii) In the State, the Inspector-General of Police, up-to Rs. 250 per case with annual limit of Rs. 2500.

(iv) In case where financial limit exceeds than what has been mentioned in (i) to (iii) the State Government should be approached for sanction of awards.

(4) The grant of award is subject to the following conditions :-

(i) No grant of award of a recurring nature involving any future commitments should be made.

(ii) Awards should not be sanctioned on requests.

(iii) No articles in lieu of the cash award should ordinarily be sanctioned.

(iv) Awards for successful detection of crime or apprehension of criminals should ordinarily be sanctioned only after the conviction of the offender, the lapse of any period during which a higher court is competent to take cognizance of the case, an appeal, a revision or the like or the disposal of such appeal, revision, etc., if taken up by a higher court.

(5) All members of Gram Rakshak Dal and those connected with Gram Rakshak Dal activities including paid staff but excluding Honorary District Gram Rakshak Dal officers male and female and Divisional Honorary Organizers are eligible for grant of awards.

(G. Rs., H. D., No. GRD-1068/669-M, dated 23rd July, 1970 and 28th April, 1971)

(6) General good work shall not be a ground for the grant of an award.

(7) Certificates for doing good work in the prescribed form can also be granted in lieu of or in addition to cash awards.

557. Honorarium and duty allowance.-(1) (a) The District Honorary Gram Rakshak Dal officer and the District Honorary Mahila Gram Rakshak Sangathak shall be paid honorarium of Rs. 150 per month and the Taluka Honorary Gram Rakshak Dal officer shall be paid honorarium of Rs. 75 per month, after obtaining their monthly notes.

(H. & C. S. D., No. VDP-1065-2174-C, dated 8th June, 1965 and VDP-1063-7286-C, dated 3rd December, 1965)

(b) The Honorary Taluka Mahila Gram Rakshak Dal officers work voluntarily in taluka and they do not get any honoraria.

(G. R., H. D., No. २१५-1068-1370-M, dated 23rd August, 1968)

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(2) If the Honorary Gram Rakshak Dal officer fails to submit his monthly note successively for three months, his honorarium should be suspended. The Superintendent of Police of the district, after obtaining the explanation of the Honorary Gram Rakshak Dal officer, should submit it to the Government through the Inspector-General of Police for further orders and if any Honorary Gram Rakshak Dal officer commits the same mistake more than twice in a calendar year, his honorarium should be stopped and his explanation should be obtained as to why his posting should not be cancelled and the proposal be submitted to the Government through the Inspector-General of Police, for further necessary orders.

(G. R., H. D., No. 1065-7286-M, dated 10th August, 1970)

(3) The Honorary District Gram Rakshak Dal officers and the Honorary Taluka Gram Rakshak Dal officers are entitled to draw travelling allowance/daily allowance under the Bombay Civil Services Rules, when they undertake journey in the discharge of their duties in relation to the work of the Gram Rakshak Dal outside their District/Taluka respectively and are graded grade I and grade II respectively for the purpose.

(G. Rs., H. D., No. २१२.२१.-1070-2845, dated 21st August, 1971, 23rd November, 1971 and No. २१५-1165-M, dated 30th May, 1968)

(4) The members of Gram Rakshak Dal, Naiks and Up-Naiks, when called out for duty or training outside their villages, are entitled to get duty allowance of Rs. 2.50 per day.

(G. R., H. D., No. GRD-1167-55446-M, dated 8th December, 1967)

558. Uniforms and equipment and their life.-(1) Every member of the Gram Rakshak Dal will be provided with uniform on completion of training and they shall wear uniform only when they are on duty.

(2) Uniform and equipment will be provided to the District and Taluka Honorary Gram Rakshak Dal Officers, Naiks, Up-Naiks and District Honorary Mahila Gram Rakshak Sangathak at the Government cost.

(3) Lathi, shoulder badges and whistle with cord will be provided at the Government cost to the members of the Gram Rakshak Dals and the remaining clothing articles will be provided to the members by the Panchayats. One-third of the cost of uniform for the members of the Gram Rakshak Dals will be borne by the Government as Grant-in-aid and the remaining two-third of the cost will be borne by the Panchayats and the Gram Rakshak Dal members.

(G. R., H. D., No. VDP-1065/7360-C, dated 12th November, 1965)

(4) Total cost of the uniforms for members of male and Mahila Gram Rakshak Dals is fixed at Rs. 46.45 paise and for Sagar Rakshak Dal at Rs. 30.

(G. R., H. D., No. VDP-1065-7360-C, dated 11th November, 1965)

(5) Uniforms of the District/Taluka Honorary Gram Rakshak Dal officers, District/Taluka Honorary Mahila Gram Rakshak Dal Sangathaks, Naiks, Up-Naiks and members of the Gram Rakshak Dal together with the minimum life are given in Appendix-XXXVI.

(G. Rs. and letters, H.D., No. VDP-1065-7360-C, dated 12th November, 1965, No.. VDP-1066-51266-M, dated 20th October, 1967 and 22nd December, 1967, No. GRD-1066-35294-M, dated 20th November 1968, No. २९६-1165-M, dated 30th May, 1968, No. २९६-1068-1370-M, dated 14th April, 1969, No. RN-1165-M, dated 10th October, 1968, No. GRD-2169-1556-M, dated 26th April, 1971 and I. G. P.'s No. GRD-1587 Mahila Uniform, dated 24th February, 1969.)

(6) Mahila Gram Rakshak Dal members can wear Khadi uniforms if they do not desire to wear the uniforms of mill cloth.

(7) (a) The Gram Rakshak Dal personnel will be responsible to preserve all articles in good condition. Police Sub-Inspector, Gram Rakshak Dal, Head Constable Gram Rakshak Dal and District/Taluka Honorary Gram Rakshak Dal officers will ensure that the articles supplied are preserved.

(b) If any article becomes unfit for wear in less than the prescribed period, it should be replaced.

(I. G. P. 's No. F/1707-GRD-66, dated 22nd March, 1966 and G.L., H.D., No. GRD-1169-1556-M dated 26th April, 1971)

(c) The member will be called to explain if any article of the uniform is lost torn by his carelessness before the prescribed, duration and will have to pay for loss or torn articles if the explanation is not satisfactory.

(d) The life of the uniforms will start from the date of issue.

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(e) New articles are to be issued after their prescribed duration if the they are un-serviceable else they are to be continued in use.

(8) A member shall return all articles of uniform and equipment if he ceases to be a member either by resignation or otherwise and shall have to pay the cost of the lost articles, if any.

(9) As the uniforms to the members of Gram Rakshak dal are supplied by the Panchayats, its account will be kept by the Panchayats. Taluka Honorary Gram Rakshak Dal officers will assist in issuing the uniform articles.

(G. R., H. D., No. VDP-1067-943-M, dated 25th October, 1968)

559. Disposal and condemnation of uniforms and equipment.-(I) The power of condemnation and disposal of all time-expired and unserviceable articles of uniform and equipment issued to the Gram Rakshak Dal officers and personnel has been delegated to the Superintendent of Police of the District. The condemned uniforms are to be disposed of by public auction and shares of the Government and the Panchayats should be paid on the following basis :--

(i) As uniforms to Naiks and Up-Naiks are supplied by the Government, the income , that may accrue on account of disposal should be credited to the Government treasury.

(ii) As the lathis, whistles, badges, etc. are supplied to members of the Gram Rakshak Dals by the Government, the Income accrued on account of disposal of these articles should be credited to the Government treasury.

(iii) The amount accrued from the disposa1 of uniform articles (except those mentioned in (ii) above), supplied to the members of Gram Rakshak Dal should be shared by the Panchayat and the Government to the extent of two-third and one-third respectively.

(iv) The expenditure that may be incurred in connection with auction proceedings for disposal of the uniform articles should however first be deducted from the income derived and thereafter, two-third share of Panchayats should be granted.

(v) In case where the expenditure of collecting and disposing of the condemned Articles of the Naiks, Up-naiks and members of Gram Rakshilk Dals is likely to exceed the amount that may be expected of their auction, such articles should not be collected from such members.

(G. R., H. D., No. VDP-1070-3019-M, dated 22nd June, 1971)

560. Issue of Identity Cards.-(I) Identity cards to the Honorary Gram Rakshak Dal Officers and the Taluka Gram Rakshak Dal Officers should be issued.

(2) If the identity card issued is lost, a new one will be supplied on payment of Re. 1. If the identity card is spoiled or torn within five years after issue, a new one will be issued after charging 50 paise but if the same is spoiled or torn after five years, the same will be supplied at Government cost.

(3) Honorary Gram Rakshak Dal officers will have to supply photographs at their cost for affixing the same on the identity cards. The identity cards will bear seal and signature of the Superintendent of Police of the District concerned.

(4) If the services of the Honorary Gram Rakshak Dal officer are terminated for any reasons, the identity card shall have to be returned.

(G. R., H. D., No. ၁၃၃၂-1070-2845-M, dated 1st January, 1971)

561. Facilities to Government Servants.-Employees of Government, Panchayats, Semi- Government organizations and Corporation bodies who are enrolled as regular and active members of Gram Rakshak Dals, when called out for training or duty in connection with Gram Rakshak Dal activities, should be considered as on duty.

(G. Rs., H. & C. S. D., No. VDP-1065/206-s, dated 14th September, 1965 and 20th October, 1967)

562. Concession of free medical attendance and treatment.- The members of the Gram Rakshak Dal including Mahila and Sagar Rakshak Dal are entitled to free medical treatment in General Wards at all Government medical institutions and those medical institutions transferred to Panchayats.

(G. Rs., P. & H. D., Nos. MAG-1068-10720-CHH, dated 1st January, 1969 and MAG-1968-8536-CHH, dated 1st January, 1971)

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563. Gram Rakshak Dal-Award of shield for best work.-For promoting healthy competition, the Gram Rakshak Dal Unit which is selected in each district for its outstanding performance during the year should be awarded a rotating silver shield. The shield is permanent and is allotted to the winner every year. The procedure, conditions etc. for the award of shield are mentioned in Appendix-XXXVII.

SECTION V-POLICE WATCHMEN

564. Working of the Police Watchman System.-(I) The Commissioner/Superintendents of Police are authorized to establish, with the previous sanction of the Inspector-General of Police, the system of the Police supply of watchmen, wherever a demand for such watchmen by private individuals shows itself as likely to exist.

(2) The system is to be worked on the following lines:-

(a) Private persons requiring the services of a Police Watchman apply to the Commissioner/Superintendent of Police.

(b) The Commissioner/Superintendent of Police supplies one, if he can and if he thinks fit.

(c) The men selected by the Commissioner/Superintendent of Police are men of whom the Police know something, often pensioners; in fact, the selection by the Police of a man for service as a Police Watchman is a guarantee of his character, respectability and reliability.

(d) The amount on account of pay, etc. of the Watchman and an additional amount of Rs. 10/- is recovered per month in advance from the employer. The employer is required to credit this sum to the Watchman Fund on receipt of advance bill from the office of the Commissioner/Superintendent of Police.

(G.M., H.D., No. ADR-1068-5156, dated 26th June, 1971)

(e) Out of the amount recovered from the employer in accordance with clause (d), Rs. 2.50 paise on account of cost of clothing supplied and the additional amount of Rs. 10/- should be deducted and credited in the watchman's Fund and the remaining balance paid to the watchman as his actual pay.

The Inspector-General of Police is authorized to vary the rate of clothing charges recoverable, subject to the maximum of Rs. 30/- per annum.

(f) The advantages to the employer are that he gets a night watchman of approved character and antecedents and as the man is under the orders of the Commissioner/ Superintendent of Police, his work is supervised by the subordinate Police, particularly at night by night patrols who know where Police Watchmen are employed and look them up to see if they are alert.

(g) The advantages to the Police are that for practical purposes they are assisted by an auxiliary body of men who help the Police to some extent in the duties of watch and ward at night.

(h) The men go on duty at 6 p.m. and come off at 6 a.m. and are mustered for duty in the Police section in which their employers' bungalows are situated.

(i) They are paid by the Commissioner/Superintendent of Police direct like ordinary Police. They are entirely under the departmental control and orders of the Commissioner /Superintendent of Police and he alone can fine or punish them. The employers are not authorized to do so.

(j) The difficulty under the system is that of collecting pay. With some employers great difficulty is experienced. in recovering the watchman's pay punctually, In supplying watchmen, therefore, the Commissioner/Superintendent of Police has to be greatly influenced by the consideration as to whether the employer is a person likely to be punctual in his payments and to pay without having to be dunned and correspond with.

(k) An employer is required to give a fortnight's notice in the event of ,his being desirous of dispensing with the services of a Police Watchman supplied to him, Credits on account of pay of Watchman are made to the Watchmen Fund.

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(3) The system is essentially a private one. Under the system, Commissioner / Superintendent of Police is the agent through whom such watchmen are employed, and is vested with such powers only as vested in a master over his servant, taking this special duty ,on himself in the interests of the public safety, which it is his duty to secure.

(G.R., J. D., No. 5157, dated 13th July, 1917, G.R.,J.D., No. 3746, dated 12th June, 1901, G. R H. D., No. 2901, dated 6th January, 1923 and I. G. 's No. 135, dated 29th September, 1926)

(4) The accounts of clothing and all other matters in connection with the watchmen should be kept quite distinct.

(5) The watchmen's fund accounts should be got audited every year through Chartered Accountant.

(I.G. 's Cir. No. D/1327/PLA, dated 16th January, 1971)

565. Uniform etc. of Police Watchmen.-(I) The uniform of Police Watchmen should consist of the following articles which are designed to differentiate, as much as possible, between the Watchman and the regular Policeman :-

- (a) Great coat made of black cloth to last five years.
- (b) Jersey, same as for a Policeman to last three years
- (c) Khaki-suits-blouse and shorts two at a time and to last two years.
- (d) One ordinary folding cap of Khaki drill-to last two years
- (e) Two pairs of blue putties-to last two years.
- (f) One pair of chappals or boots at the discretion of the Commissioner of police/ Superintendent of Police-to last one year
- (g) One whistle-to last indefinitely or till it is lost or becomes unserviceable.
- (h) One lathi-to last indefinitely or till it is lost or becomes unserviceable.

- (i) One belt-to last ten years
- (j) ,One haversack of blue dungri cloth-to last five years.
- (k) Dark bone buttons-to last five years. Police buttons should not be supplied to Watchmen.

(I. G .s No. 27, dated 22nd April, 1927 and 894, dated 12th November, 1941)

(2) Till sufficient funds accumulate to provide clothing, the watchmen must at first fork without uniform and as funds allow, one or two articles at a time can be supplied.

(3) As funds accumulate, postage, stationery, and even the pay of a clerk to keep all accounts under the Police Accountant are met from the watchmen Fund.

566. Subsidiary instructions in connection with Police Watchman System.- (I) Forms Nos. 32 to 37 in Appendix I should be used in the working of the system. The use of each form is self-apparent. Form No. 32 is a form of notice accompanying the first pay bill or each watchman supplied. On the receipt of an application from anyone for the services of a Police watchman, if the Commissioner / Superintendent decides of supplying one, the applicant will be required to credit with the Police Accountant a month's wages in advance. When the Police Accountant reports the credit, a watchman is supplied.

(2) On the 15th of each month, a pay bill Form No. 35 for the wages of each watchman for the next month, in advance. is sent by post by the Police Accountant to each employer.

(3) If by the 28th of the same month or any date the Commissioner / Superintendent likes to fix before the 1st of the next month, the wages in advance have not been credited with the Police Accountant by any particular employer, a warning letter, form No. 33 is sent by post to him, and if, in spite of this, the wages are still not credited by the 1st of the next month, the watchman is withdrawn and discharged without further notice.

(4) It is most important to enforce the responsibility of employers for paying their dues punctually. The Commissioner / Superintendent should undertake no responsibility in this direction all he and his Police Accountant are responsible for is to see that bills and warning letters go out in time. In proportion as the Commissioner / Superintendent is particular in this matter and in withdrawing watchman whose pay is not advanced will he find employers are punctual and observe the rules.

(5) If any information is required on any particular point not touched on above, the Inspector-General of Police will supply it on special reference.

(I. G. 's No. 6198, dated 6th July 1901)

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567. Supply of Watchmen to Government Departments.- (I) Government Departments should ordinarily engage watchmen through the agency of the Commissioner / Superintendent of Police. These watchmen are not be enrolled as members of the Police Force, nor will they have the powers of Police officers. They will be under the control of the Commissioner / Superintendent of Police, but their pay should be billed for by each office or department employing them.

(2) The bills should indicate separately the amounts to be disbursed to the watchmen and the amounts to be credited to the Watchman Fund. On receipt of the bills at the treasury, the Treasury Officer will pay the amounts to be credited to the Watchman Fund by transfer credit to that fund and disburse the balance to the preferring officers.

(3) The officers and departments concerned should make the necessary provision on account of these charges in their own budgets.

(G. R., J. D., No. 5157, dated 13th August, 1917 and G. R., H. D., No. 6451, dated 18th August, 1927.)

(4) The intervention of Police authorities in the matter of employment of night watch-men to guard Government buildings is mainly with a view to selecting suitable men and keeping proper control over them, and proposals, if any, for an increase or decrease in the pay of these watchmen should emanate from the Departments which pay for their services.

(G. O., F. D., No. 3455. dated 5th September, 1918)

568. Supply of Watchmen to private organizations like Banks etc.-Subject to such modifications relating to clothing, hours of work, etc., the watchmen will be supplied to such organizations. But

the disciplinary control and other rights will be according to any laws, rules and awards that may be in force relating to such trade, industry or organization.

(G. L., H. & C. S. D., No. MIS-2359/95995-C, dated 3rd January, 1964.)

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CHAPTER-XII

INSPECTION

569. Inspection of offices of Heads of Departments by Secretaries of Departments.- The Secretaries of Departments should inspect the offices of Heads of Departments under their respective control. The inspection of two or three district offices should also be done the Secretariat Department in a year. The inspection programme of the Head of the Department and Administrative Department should be formulated in consultation with each other so that the district office inspected by Secretariat Department may not be inspected again by the Head of the Department in the same year.

(G.R.,P. & S.D. No. MIS-1059 (O&M) B, dated 6th February, 1959 and G.C.,G.A.D. No. 6-1-70 AES, dated 10th September, 1970.)

570. Inspection of the offices of the superior Inspecting officers.- The office of the Inspector General of Police will be inspected by the Inspector-General of Police himself, and the offices of the Deputy Inspectors-General will likewise be inspected by themselves as also the Inspector-General of Police periodically and in any case at least once a year.

571. Inspection of a District or Railway Charge or State Reserve Police Force Group by the Inspector-General of Police.-(I) All officers and men present must be in uniform during inspection by the Inspector-General of Police.

(I. G.'s No. 10331-B, dated 27th August, 1919)

(2) The inspection should extend to as many branches of Police work, including accounts, time would permit, with special importance given to the welfare activities running in the strict and Police buildings (administrative and residential) together with details of major marks in progress in the district.

(3) On arrival of the Inspector-General of Police, the following information shall be given:-

(a) Information regarding crime should be supplied in Form Nos. 38 to 44 in Appendix-I.

(b) In the case of Railway Police, under the head thefts, details of running train thefts, yard thefts, goods shed thefts, platform and parcel thefts, thefts by pick-pockets, and other thefts should be furnished.

(c) Statement showing sanctioned strength, its distribution, number of quarters, as per Form No. 38 in Appendix-I.

(d) A note on the welfare activities run in the district together with a statement in Form No. 43 in Appendix-I.

(e) Statement showing information regarding Gram Rakshak Dals as per Form No. 44 in Appendix-I

(I. G.'s C. M. Nos. 2219-II, dated 2nd November, 1955 and 4th May, 1956)

(4) Similar statements should also be available at all times with the Police Station officer for his Police Station, with the Inspector for all Police Stations in his charge, with the Sub-Divisional Police Officer for all Police Stations in his Sub-Division, with the Superintendent of Police for the whole District or Railway charge, as the case may be, with the Range Deputy Inspector-General of Police for his range and the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) for the whole State, District by district. The Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railways) should prepare statement for the whole State for the year and furnish them to the Inspector-General of Police early in January each year. The statement should be renewed every year. Figures relating to the current year, which should be entered in the statements in pencil should be brought up-to-date at the end of every month.

(I. G.'s No.1, dated 5th January, 1948, 13 of 2nd April, 1948 and 10, dated 5th March, 1948)

(5) If time permits, the Inspector-General of Police may see the Police at a ceremonial parade. The parade should be arranged on a convenient day so that maximum number of officers and men are present at this parade.

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(6) As far as possible, the Superintendent of Police must command the ceremonial parade. If he is unable to do so, he may depute someone else to command the parade in which case he should receive the Reviewing Officer as he arrives at the parade ground.

(7) (a) After the ceremonial parade is over, the officers and men may be tested in the following items

I. Close Order Drill :-

(i) Rifle Exercises

(ii) Squad Drill.

II. Training Items :-

(i) Physical Training

(ii) Obstacle Course

(iii) Boxing

(iv) Ju-jit-su and Unarmed Combat.

- (v) Bayonet fighting.
- (vi) Assault Course.

III. Special Items:-

- (i) Use of lathi.
- (ii) Musketry
- (iii) Guard and Escort duties
- (iv) Mob Control
- (v) Dacoit Operations
- (vi) Elementary Field Craft
- (vii) Recruit Training
- (viii) Awkward Squad

All accessories required for the above items such as Physical Training Kit, Obstacle Course, Boxing Kit, Mattresses, Dummies, Lathis, Bayonet Training Kit, Musketry Training Kit, etc. should be kept ready on the parade ground for the use of the various squads who will be tested in parade. It is best to break up the officers and men present on the parade ground into suitable squads. The Reviewing Officer will then allot to each of such squad or squads such item from the above list as he thinks fit.

(b) In addition to the items mentioned above, if a Headquarter trains men in other items such as Gymnastics, Horse-work, Malkhamb, wrestling and other organized games, both Indian and foreign, this feature should be considered an additional qualification and given fullest advice, help and encouragement. The Reviewing or the Inspecting Officer may inspect all or any of these items. Unless instructions to the contrary are given, all these items should invariably be kept ready at the time of inspection.

(8) In respect of the State Reserve Police Force Groups, all items excluding Squad Drill would be inspected. A higher standard would, however, be expected of the State Reserve Police Force men in items such as Bayonet Fighting, Assault Course, Obstacle Course, Musketry, Mob Control and Dacoit Operation. In addition, the following items would also be inspected in case of the State Reserve Police Force Groups:-

- (i) Use of To M. C./Sten Gun and Bren Gun (L. M. G.)
- (ii) Tactics in attack and defense
- (iii) Night Operations
- (iv) Field Craft

(9) While inspecting the officers and men in various items of Close Order Drill including ceremonial drill the Reviewing Officer will naturally given due weight to precision of movement, timing and bearing of the squad collectively. In inspecting men at items referred to in sub- rules (7) (a) (iii) and (7) (b) above he would see that tendency to regimentation is minimized and that each individual of the squad has attained individual proficiency. The tendency to perform these exercises as a form of collective drill would be put down very strongly and emphasis laid in development of individual capacity and prowess.

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(10) All officers of and above the rank of Sub-Inspectors including officiating Sub Inspectors of the District or Railway under inspection and officers of similar rank stationed at the place of inspection, of the Criminal Investigation Department (Crime and Intelligence) and the Anti-Corruption Bureau should be called in to see the Inspector-General. The service and confidential records of all officers called for interview should be produced before the Inspector-General. When the Inspector-General holds an Orderly Room, the service sheet of each man making a complaint and any papers relating to the complaint should be produced.

(11) Leading citizens should be called to see the Inspector-General of Police. A list showing their names with short notes about each should be furnished to the Inspector-General before their interviews.

(12) Superintendents of Police should also fix up a day in the afternoon for as many Police Pensioners as he could collect to meet the Inspector-General of Police.

(I. G. 's SOC No. 68, dated 13th October, 1954)

(13) The Inspector-General of Police will also inspect the offices of the Deputy Superintendent of Police, Motor Transport and the Superintendent of Police, Wireless.

(I. G. 's No. 670-III, dated 28th February, 1959)

(14) The inspection notes of the Inspector-General will be sent to the Superintendent concerned direct for guidance, explanation or action, as the case may be.

572. Inspection of a District or a Sub-Division by the Range Deputy Inspector-General of Police.-(1)

(a) Range Deputy Inspectors-General are expected to inspect thoroughly the lead quarters of all the districts in their Ranges once a year. Every sub-division should be inspected once in two years, with special regard to the work of the Sub-Divisional Officers and Circle Inspectors. The Deputy Inspectors-General of Police should pay a second visit to the Headquarters of every district in their Ranges during the year for a general check-up.

(b) The inspection of a district should cover that of the Headquarters, the office of the Superintendent of Police, the town or City Police Station and one other Police Station in the district which the Deputy Inspector-General considers as important.

(c) Apart from the regular inspection, the Deputy Inspector-General of Police should carry out surprise inspections of some half a dozen Police Stations and other offices in a year.

(G. R., H. D., No. 4827, dated 17th May, 1921 and I. G. 's S.O. C. No. 86-3421-II-D, dated 10th April, 1958.)

(2) In order to secure that the touring of the Range Deputy Inspectors-General may be systematic and regular and to ensure the strictest economy in expenditure on traveling allowance and contingencies, the sub-division should be inspected along with the inspection of the district. The Range Deputy Inspectors-General should draw up their tour programmes and send copies thereof well in advance to the Superintendents of Police in their respective ranges and also to the Inspector-General of Police. They should also draw up a local programme of inspection giving timings and details of work in consultation with the Superintendent of Police and furnish a copy thereof to him on the eve of the inspection and adhere to it as far as practicable. They should also draw up their inspection programmes in such a manner so that they may not have to return to Headquarters for attending meetings or some such other work which may have been decided earlier or which is a regular feature.

(I. G. P. 's memo No. R/433/72-971, dated 7th January, 1972 and No. E/329-2870, dated 3rd November, 1973)

(3) The inspection of the Correspondence Branch and the Accounts Branch of the Superintendent of Police's office and that of the Headquarters is properly the work of the Deputy Inspector-General's clerical staff, who, when inspecting the Superintendent's accounts office, should use the monthly statements of receipts from sources other than Government, received from the Superintendent of Police, for the purpose of checking Day Book entries with those statements. The staff should make notes of inspection and put them up for verification and adoption by the Deputy Inspector-General.

(4) In other matters which demand the personal attention of the Deputy Inspector-General, the inspection should be directed towards discovering errors in the broad features of administration of the district as a whole and giving instruction and guidance to the Superintendents of Police on matters on which the same are found on inspection to be necessary, the discovery and correction of petty clerical errors or omissions being left to be done by inspecting officers at lower levels.

(5) The inspection should be conducted in the following manner, particular attention being paid to the items in clauses (a) to (g):-

(a) *Training of officers and men.*-(i) The first item of inspection should be a Ceremonial Parade, where it is possible. The parade should then be broken up in small units and a particular unit directed to perform a particular work. The Deputy Inspector-General should pay particular attention to the standard maintained regarding P. T., bayonet fighting, assault course; obstacle course, work with lathi and baton, guards and escort of prisoners, mob control, unarmed combat, weapon training, field craft and toughening up exercises. For testing the standard achieved at the

headquarters in the above items, it is desirable for the Deputy Inspector-General himself to select a squad from amongst the personnel on the parade rather than see a ready-made squad put up by the Headquarter Inspector or Sub-Inspector. Particular attention should also be paid to the calibre of the Head Constables who are the junior commanders, the amount of knowledge they have assimilated, their ability to command the men under them and to impart instructions. The turn out of the men and the condition of kit as revealed by inspecting the kit of a few men should also be noted. The Deputy Inspector-General should comment on all the above mentioned items in his inspection note.

(ii) During inspection of the State Reserve Police Force Groups and Police Training Schools, the Deputy Inspectors-General of Police, Armed Units, and Planning and Training should pay particular attention to see whether the recruits are of proper type and whether their training, both indoor and outdoor, is being carried out on correct lines. It should be seen whether, the training of the recruits is imparted in as realistic a manner as possible. The correct method of training as mentioned in the Drill Manual should be strictly followed.

(iii) Senior Police Officers should be tested for their ability to take parade, impart instructions and command the men under them. Whilst officers of the rank of Superintendents Assistant Superintendents and directly recruited Deputy Superintendents of Police are expected to have knowledge of all forms of drill to a fairly good extent, Musketry, etc. are not expected of a Deputy Superintendent of Police or a Police Inspector (but not Home Police Inspector or Headquarter Police Inspector) and they need not be tested in these items. The same principles would apply to Sub-Inspectors from the Unarmed Branch. The following principles are laid down in this connection :-

Rank	Items in which proficiency is expected
(1) Superintendent of Police, Assistant. Superintendent of Police and Deputy Superintendent of Police (direct)	Ceremonial Drill, Musketry, dacoit operation, riot drill, methods of training, guards and escorts and all other important forms of drill.
(2) Deputy Superintendents of Police (promoted), Police Inspectors and Sub-Inspectors.	Methods of training, squad drill, Fire control, principles of dacoit operations, riot drill, etc.
(3) Home Police Inspector, Headquarter Police Inspector/Sub-Inspector.	Same as in case of No.1 except that the knowledge may be less thorough.

(b) *Prevention and detection of crime.*-(i) For the inspection of crime, Statements similar to those prescribed by sub-rule (3) of rule 571 should be submitted by the Superintendent of Police to the Deputy Inspector-General of Police, who should for his information get more detailed figures regarding-

- (1) Dacoities and robberies in which the property stolen is Rs. 1,000 or more
- (2) House breakings and thefts in which the property stolen is Rs. 5,000 or more.
- (3) Theft in which the property stolen is Rs. 300 or more, and
- (4) Riots, their causes and the reasons why they could not be prevented.

A map of the District or Sub-Division or Police Station as the case may be, showing jurisdiction of Police Stations, beats, etc. should also be made available for reference. The Deputy Inspector-General should concentrate on the crime of the district as a whole and discuss it with the Superintendent of Police. He should comment on the crime figures mentioned above, especially with reference to the cases which are not detected

(ii) The following items should also be seen :-

- (1) Crime Registers
- (2) Absconders' Register, with special reference to Sections 82, 83 and 299 Criminal Procedure Code
- (3) Modus Operandi Bureau.

- (5) Village Crime Note Book, Part V.
- (6) How crime was supervised by Sub-Divisional Officers or Superintendents of Police.
- (7) Index to History Sheets and Personal files.

Superintendents, Sub-Divisional Officers and Readers will be expected to know the details of every undetected case during discussion with the Deputy Inspector-General who should try to find out why the offences were not detected and should make his remarks thereon. A general picture of the previous ten years should be available, with greater details for the previous two or three years. The writing up of crime registers by the Sub-Divisional Police Officers personally should receive proper attention. It should also be seen whether intelligent notes concerning crime are made and details about previous convictions, names of investigating officer, etc. are intelligently made.

(iii) Prohibition crime should be thoroughly examined and the effect of prohibition on the general welfare of the public and on crime in particular should be commented on. The working of the Gram Rakshak Dals in relation to the number of villages, the progress of the Modus Operandi Bureau and the adequacy or otherwise of the telephones, wireless sets and similar means of communication in the district should be fully examined and comments made thereon. Establishment of the Gram Rakshak Dals should be encouraged and enquiries made if these are not established at villages where dacoities are reported. Free issue of licences to members of Gram Rakshak Dals should be encouraged and cancellation of licences at places where members of Gram Rakshak Dals fail to use their weapons should be resorted to.

(iv) The Deputy Inspector-General should carry out a detailed scrutiny of enquiry papers in Chapter proceedings with a view to seeing whether the Chapter proceedings are launched judiciously and, if so, what is the percentage of infructuous cases. This should be commented upon in the inspection note.

(v)(i) During the inspection of the local town or Taluka Police Station, crime in general and that under Classes I to V under Indian Penal Code in particular should be gone into and compared with that of the previous year, and it should be ascertained as to whether registration and detection is on proper lines.

(2) Five cases registered should be gone into thoroughly. All the case papers and entries in the various registers connected with those cases should be checked. It should be ascertained from the papers whether the Sub-Divisional Officers and the Superintendents of Police concerned initial all the statements and panchnamas recorded and also initial case diaries received.

(3) (a) In the case of a taluka Police Station, it should be seen whether the system of patrolling and village visitation laid down in rule 82, is being properly implemented by the Superintendent of Police and properly carried out by Sub-Inspectors and Policemen.

(b) It should also be seen whether the patrol books and note books of the men are being regularly checked by the Sub-Inspector or Inspector incharge of the Police Station.

(4) In cases of riots, it should be seen whether Part V of the Village Crime Note Book of the village concerned was properly written up or not, and what action was taken to prevent apprehended riots.

(5) The inspection of a mofussil Police Station at a short distance from the police Headquarters should be carried out on more or less the same lines as that of town or City Police Station. The Deputy Inspector-General should particularly look to the reasons for not complying with the instructions regarding the visitation of into the reasons for not complying with the instruction regarding the visitation of scenes of crime by Police Station Officers and satisfy himself that the Sub-Inspector as not deputed subordinates to pay such visits without valid reasons.

(c) *Maintenance of Discipline.*—The Deputy Inspector-General should pay particular attention to this feature. Awarding of proper punishments, quick disposal of departmental proceedings, the Superintendent of Police's personal interest in rewarding expeditiously those who have done good work are some of the points which should be looked into thoroughly. Perusal of Orderly Room Register and punishment and rewards given as noted down in the sheets would reveal to a great extent the manner in which the officers of the district carry out their duty in this connection.

(d) *Maintenance of Record.*-(i) Proper and intelligent maintenance of record is very essential and this matter should not be left alone to be seen by the Inspecting staff. The Deputy Inspector-General should himself, exercise a percentage check of all important documents such as crime registers, service sheets, orderly room registers, copies of judgments, etc.

(ii) A few sheets of the recruits should be gone into to find out whether recruit, rolls are kept with the sheets, whether warnings and punishments are separately entered and whether all entries have been properly initialed.

(iii) Ten service sheets of Policemen should also be gone through very minutely from all points of view and with all the relevant records in support of the entries made, including entries regarding leave, rewards, punishments, etc.

(iv) Personal Files of Police officers should be examined with a view to see that all papers right from the recruitment of the person are filed together.

(e) *Buildings: Administrative and Residential.*-(i) For the well being and morale of the Police Force, it is necessary to create a congenial atmosphere for their working as well as living. The Deputy Inspector-General should pay particular attention to this aspect while carrying out inspection of the lines, the lands to be acquired or buildings to be leased, etc. In recommending construction of new buildings and additions and alterations to existing buildings, the primary needs should be borne in mind. It should be seen that the funds are utilised to the best of advantage and on no account money should be frittered away in planning or constructing show pieces.

(ii) The Deputy Inspector-General having toured most of the districts in his charge and having looked personally into the needs of each district, should be in a good position to exercise his discretion as to what is needed most and he should base his recommendations from the utilitarian point of view. He should also see that the Superintendents of Police follow the same policy as far as buildings in their charges are concerned.

(f) *Welfare activities.*-The resources of the Police Families Welfare Fund are limited. It is, therefore, necessary that utmost care is exercised in utilizing the fund. Construction of spectacular and monumental structures, when under the existing conditions their utility is very limited, leads to sheer waste of money. The Deputy Inspector-General should inspect the school for Policemen's children, the mess and canteen and other amenities provided for the welfare of the men and their families, keeping in view the above points. He should give suitable directions in this connection and also see personally that the funds put at the disposal of the officers in the districts are not misused in any manner.

(g) *Relations with the public.*-(i) Proper relations with the public is one of the most important aspects of the Police work. The Deputy Inspector-General should pay particular attention to this and see what arrangements have been made in the district for the prompt receipt by the Police of information or complaints made by the public and also for organizing a detective branch in the district.

(ii) He should interview some of the important persons of the town and in addition should contact senior officers of the district from other Departments with a view forming an opinion as to how the Police administration is run in the district.

(h) *Miscellaneous.*- The following items should also receive attention of the Deputy Inspector-General:-

- (i) Examination of the stores
- (ii) The Armourer's shop.
- (iii) Police Motor vehicles and garages
- (iv) Musketry practices.
- (v) Inspection of the Sub-Jail and Police Lock-ups
- (vi) Reorganization of the Police Force.
- (vii) Method of recruitment and promotions

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(viii) Whether armed and unarmed branches are regularly examined by the Superintendents of Police and the tests set intelligently with a view to improve their standard

(ix) Timely submission of travelling allowance and contingent bills by the Police Stations and their prompt disposal by the Superintendent of Police's office

(i) *Conference of Police Officers and writing of confidential sheets.*—(i) All officers of the districts should be gathered together at the headquarters, almost invariably at the time of the Deputy Inspector-General's inspection, provided none of them is required elsewhere for extremely important duties. The Deputy Inspector-General should address these officers collectively. It is desirable to hold the conference towards the end of the inspection. This would facilitate him to give directions on matters in which faults or shortcomings were brought to his notice during the inspection. He should also take up any particular aspect of the Police work which he considers important and give them a short talk on that subject.

(ii) The Deputy Inspector-General should also interview each officer, Head Clerks and Senior Clerks individually.

(6) Instructions in sub-rules (1) and (2) and (5) to (12) of rule 571 should also, with the necessary changes, be observed, in so far as they may be applicable" in the cases of an inspection, by the Deputy Inspector-General of Police.

[I.G.'s Cir. No. 40 (3431-II-D), dated 18th March, 1952, No. 52 (3431-II-D), dated 26th November, 1953 and No. G/2994, dated 6th April, 1959, No. K/3431, dated 11th December, 1950 and No. K/3431, dated 27th January, 1961, G. C., H.D., No. LAQ-0158/3283-VIII, dated 19th April, 1958 and D. O. letter of even number dated 2nd September, 1958.]

573. Inspection of a Police Station or an outpost by a District Magistrate or a Sub- Divisional Magistrate.—(I) It should be the duty of District Magistrates and Sub-Divisional Magistrates to examine the record of Police Stations and Outposts. Such examination shall be confined to a general examination by the inspecting officer himself of such records as relate to the regulation of crime and bad characters, the issue of summaries, the recovery of fines and the registration of property passing through the hands of the Police. The primary object of such examination is that the inspecting officer should gain an insight into the state of crime in the limits of the Police Station, satisfy himself that cases are being promptly disposed of both by the Police and by the Magistrates and generally ascertain whether the administration of the Police Station is satisfactory.

(2) It is open to the District Magistrate to carry out a detailed inspection of the Sub-Inspector's office and records, but this should not be done except for special reasons.

(3) The books kept at Police Out-posts, and the Police visit book with the Patels of villages, should form the subject of inspection by Sub-Divisional Magistrates.

(G. R., H. D. No. 3689, dated 8th May, 1923)

574. Inspection of District and Divisional Offices by the Collector.—The Collectors are authorized to pay co-ordination visits to other offices in their districts (except the Deputy Inspector-General of Police office) and are nominated as representatives of the Inspection and Organization on and Methods Section.

(G. C., No. CDR-1055-D, dated 27th August, 1955)

575. Inspection of Subordinate Police Offices by Superintendents of Police and Sub-Divisional Police Officer.—(I) Superintendents and Sub-Divisional Police officers should on joining a new district call for, and carefully read over, the Inspector-General's and Deputy Inspector-General's inspection notes immediately on receiving charge of the office and see that the instructions therein given are being duly attended to.

(I. G. 's No. 1378, dated 15th February, 1901)

(2) Superintendents of Police should inspect the offices of their Sub-Divisional Police Officers once in a year, and Superintendents of Police and Sub-Divisional Police officers will inspect Police Stations and Out-posts in their respective charges at least once a year.

(3) (a) The Superintendents of Police and. the Sub-Divisional Police officers should draw up the Inspection programme for a particular year by December of the preceding year and submit the same to the Range Deputy Inspector-General for approval.

(b) In drawing up tour programme, it should be ensured that the same, Police Station or Outpost is not Inspected both by the Superintendent of Police and the Sub- Divisional Police Officer In close succession and that, as far as possible there is an interval of six months between any such two inspections.

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(c) The Range Deputy Inspectors-General should check the programmes, amend them if necessary, and return them to the Superintendents of Police. He should also send a copy of the finalised programme to the Inspector-General of Police.

(I. G. 's No. A/326, dated 11th December, 1963)

(4) (a) As a rule. out-posts under a Police Station should be inspected along with the inspection of the Police Stations. Long Journeys should not be undertaken solely for the purpose of inspecting an out-post unless there are some special reasons. The office of the Circle Police Inspector should also be inspected along with the inspection of the Police station where the Headquarters of the Circle Police Inspector is located.

(b) The inspection work should be taken up early in the year so that most of the inspection work is completed by the time rainy season sets in. During the rainy season inspection of those units which do not require outdoor work, e.g. Offices of the Sub- Divisional Police Officers, Assistant Public Prosecutors, Headquarter Police Stations Local Intelligence Branch, Local Crime Branch, Motor Transport Section, etc., may be taken up. Thus the number of units remaining un inspected by the end of the monsoon will be small he inspection of these units should, therefore, be taken up as early as possible thereafter.

(c) The Superintendents of Police need not inspect the Police Stations in detail, as detailed inspections are to be carried out by the Sub-Divisional Police Officer. In such cases they should pay more close attention to the disposal of Crime, training of men, relations with the public, buildings and such other important matters. It is the responsibility of inspecting officers to finish their Inspection before the end of the year and this can be one if the above directions are carried out and a last minute rush avoided.

(d) (i) The Range Deputy Inspector-General should see that the inspections are carried out regularly and in time, by referring to the crime reviews and inspection forecasts.

(ii) The Superintendents of Police should exercise proper supervision and control over the movements of the Sub-Divisional Police Officers and see that the inspection work is carried out as per inspection forecasts.

(I. G. 's No. 3431, dated 13th March, 1948, 19 of 3rd May, 1934, 36 of 30th, March, 1948, 3431, dated 5th April, 1948 I. G. 's S. O. C., No. 65, dated 18th September, 1954, I. G. s No. G/642, dated 23rd February, 1967, 29th June, 1971 and No. G/1927/72/1317, dated 4th September, 1972)

(5) (a) In the case of Police Stations at the district headquarters towns which are in charge of a Sub-Divisional officer, it is unnecessary for the Superintendent of Police to conduct a detailed inspection every year. It will be sufficient If the Superintendent of Police confines himself to certain items of inspection, regarding which it is necessary that he should keep himself fully informed. He should for instance look into any important aspects of crime which may require particular attention. Buildings should be Inspected and notes made and kit inspection, parade and orderly room should also be held, unless this has already been done by the Superintendent of Police as a routine matter at intervals throughout he year. As regards sheet inspection, it is important that the Superintendent of Police should personally write up the sheets of the Policemen.

(I. G.'s No. 3431, dated 23rd/25th August, 1941)

(b) A detailed inspection should be carried .out by the Sub-Divisional Officer. The Superintendent's Inspection need not be very detailed. What is required for the Superintendents of Police is to ascertain how crime is managed at a Police Station, and how it is controlled by the Police Inspector and Sub-Divisional Police Officers A few cases should be, looked into by the Superintendents of Police to find out-

(i) if prompt information of offence was given to the Police Patel.

- (ii) if the Police Patel promptly sent the information in the form prescribed.
- (iii) if the Police Station officer registered the offence at once and proceeded to the scene of offence early.
- (iv) were case diaries written from time to time.
- (v) were case diaries sent promptly.
- (vi) was previous conviction verified, and other matters relating to investigation.
- (vii) if the above procedure was not complied with, did the Sub-Divisional police Officer take steps against those concerned.

(I. G.'s Cir, No. 3431-II, dated 7th February, 1951)

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(6) Superintendents of Police and Sub-Divisional Police Officers should see that the books and registers prescribed for the different offices have been properly and carefully maintained and that the officers concerned have attended to their duties. The commencement, continuation and conclusion of the inspection should be noted by the Superintendents Police in their monthly crime reviews and by the Sub-Divisional Officers in their weekly diaries in accordance with rule 580 (2).

(G. M., J. D., No. 4993, dated 18th September, 1903 and G. R., H. D., No. 6169, dated 5th May, 1925)

(7) The following number of days should be spent for inspection of Police Stations including out-posts by the Superintendents of Police and the Sub-Divisional Police Officers:-

Sanctioned strength of the Police Station (inclusive of Out-post strength.)	Prescribed number of days for inspection
Up-to 50	5 days
50 to 100	6 days
Above 100	7 days

(G. L., H. D., No. BPM-I074-4523-C, dated 11th October, 1974)

(8) The Superintendents of Police/Sub-Divisional Police Officers should not be required to spend a night at the out-post unless spending night might be necessary for some other work which is also to be done along with the inspection but all out-posts must be inspected by the Superintendents of Police/Sub-Divisional Police officers along with the inspection of Police Stations. -

(G.L., H.D., BPM-I067-2717-C, dated 20th July, 1971)

(9) For the inspection of explosives and licensed poison shops, a reference is invited to rules 300 and 325 respectively.

(10) The Superintendents of Police may take their Stenographers in addition to one Clerk along with them on inspection tours for dictating Crime Reviews, etc., if they so desire; they should take care to keep their tour expenditure as low as possible.

(I. G. 's Cir. Memo. No. F/3431-II, dated 30th January, 1958)

576. Object and frequency of inspection of Police Stations and Outposts.-(1) The object of inspection is not merely criticism or the correction of faults. It should be treated as an opportunity of ascertaining what is wrong and giving instruction as to better methods. In the first place the inspecting officer is responsible for the administration of his charge and he can obtain good results only by organization and by making the best possible use of the material at his disposal. Inspection is a means to this end and should not be looked upon as a routine or the satisfying of a statistical test for the purpose of his annual report.

(2) No officer can administer his charge properly until he knows his men and the conditions under which they live and work. Therefore, the sooner he inspects both the better. It is not possible to lay down any rule as to the number of times any Police Station or Outpost should be inspected in a year, or how long should be taken over each inspection. A Superintendent of Police may not be able to inspect in detail every Police Station and Outpost in his charge once a year, but a Sub-Divisional Officer should inspect in detail each Police Station and Outpost in his charge at least once

a year. It is advisable that in his first year a Superintendent of Police should inspect, though not necessarily in detail, his whole district as soon as possible, to get a general idea of local conditions. After that he can go more slowly and concentrate on the weak spots. The maintenance of law and order, and the prevention and detection of crimes depend largely on the efficiency, of the subordinate ranks,' and consequently it is necessary to see that, as far as possible every man is in the right place. An officer is dependent for his success upon his subordinates and he cannot run allover the district attending to every individual case himself. So, except for personal investigation of really important cases, he should spend the touring season in inspection viz., correction, instruction and stimulation. The more personal the inspection is, the greater the benefit to all concerned, and much of the inspection can be personal.

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577. Instructions as to the method of inspecting Police Stations and Out-posts.-(I) The following are ordinarily, the items for inspection at a Police Station:-

(A) Crime

1. General Statistics-

- (a) Detected cases
- (b) Undetected cases,
- (c) Excluded cases
- (d) Pending cases

2. Special crime

3. Preventive action

(B) Personnel

- 1. Distribution and organization
- 2. Drill, musketry and kit inspection
- 3. Patrolling
- 4. Catechism
- 5. Orderly room
- 6. Health, rewards etc.

(C) Records

(D) Buildings

(2) The following suggestions may be followed with advantage in carrying out inspections:-

(A) Crime

(i) It is useful for all officers who keep Crime Registers to enter on the inside of the ' front cover a record of the usual crime statistics of their charges collected from Crime Registers or annual reports for the previous five or mote years. In the case of Sub- Divisional Officers, the figures given would be for each Police Station, while Sub-Inspector could show figures for Outposts as well. The statistics generally useful for inspection and reference purposes could be decided by the Superintendent of Police The figures will always be useful not only for the testing of a subordinates work, but as a basis on which general reorganization requirements can be determined. An intelligent scrutiny of cases should reveal who did good work, who is responsible for failures or wrong registration, and whether activity or slackness was displayed and what methods of investigation were employed bi the Sub-Inspector and his subordinates. Particular attention should be paid to delay in visiting scenes of offences and to ascertaining whether the Sub-Inspector went himself or sent a Head Constable and whether he was justified in so doing. A perusal of the case papers should show how far detection depended upon confessions, in how many cases; property was recovered by searches, how house-breakings were committed and how the ' different methods can be classified and consequently who was responsible for them, The general effect on cases by delay in Police investigations or on the part of Magistrates requires looking into When examining cases sent for trial, particular attention should be paid to the reasons for cases ending m acquittal or discharge; a perusal of the judgment will often be found helpful. The Inspecting officer should see whether sufficient attention is being paid to the preparation of sketches of scenes of offences and the use of photography.

(ii) Epidemics of special forms of crime, such as dacoities and robberies (highways) or otherwise, house-breaking, riots, etc., require organised efforts directed by the Superintendent of Police or the Sub-Divisional Officer. House-breaking is a common and objectionable form of crime which specially requires collective treatment.

(iii) Preventive action is most important and in this connection, special attention and efforts must be directed towards resident criminals, wandering gangs, professional criminals and receivers of stolen property. The attention paid to preventive action will be revealed by the thoroughness with which the Sub-Inspector has written up his village crime records, the uses he has made of the provisions of Chapter VIII, Criminal Procedure Code his knowledge of the movements of notorious criminals after their release from jail and the efforts he has made to arrest absconding offenders, all of which should be tested. All inspecting officers (including Circle Police Inspectors) should personally go through registers on criminal matters at least, once a year and leave their personal remarks, especially on History Sheets, registers maintained under the Habitual Offenders Act, Notes on Crime in the Village, Absconders' Register etc. In the case of absconders, action should have been taken under Section 82, Criminal Procedure Code, within a month, under Section 83, within two months

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and under Section 299, within three months from the date the person is shown as absconding in the charge sheet or final report, as the case may be. The Absconders' Register should show whether this has been done. Sub-Divisional Police Officers, Superintendents of Police and also the Range Deputy Inspectors-General should take personal interest in this matter and see that Sub-Inspectors and Head Constables are up-to-date in their own information about the absconders and known criminals in their charge.

(I. G. 's No. 33, dated 23rd October, 1948)

(B) Personnel

(i) The distribution of the Police and the number of villages under the Police Station and Outpost should be considered in the light of the current crime statistics. As times change, there is nearly always scope for local adjustments, and unless this matter is constantly borne in mind, the Superintendent of Police will not be able to supply the Inspector-General with sound advice for the drawing up of a reorganization scheme.

(ii) (a) Drill, musketry and kit inspection are tests of general discipline and supervision

(b) Inspecting officers should pay attention to testing the knowledge of the Sub-Inspectors and Head Constables of the drill laid down, including fire control, physical lining and the use of the lathi, before writing their sheets.

(c) Particular attention should be paid to the condition of all fire-arms

(d) The men should be required to produce at inspections the articles mentioned in appendix IV to Vol. II, including those they are wearing at the time of inspection.

(e) At kit inspection, in addition to replacing immediate requirements, the inspecting officer should make a note of the general condition of the clothing and accoutrements, with a view to the preparation of an economical indent for the district.

(iii) The system of patrols in existence in each Police Station and in big towns should be examined in detail and modified where necessary. In connection with the patrolling inspecting officers should make a point of seeing as many Police Patels as possible.

(iv) Catechism by means of question and answer from the book is particularly valueless, especially if the men are examined as a class. Each man should be examined in conjunction with his patrol book, with a view to estimating his efficiency and fitness for promotion.

(v) Orderly room should be held at all Police Stations and Outposts, and all applications, reports and complaints dealt with on the spot. The service records of all men present should be carefully checked and written up after the men have been personally examined. General work, law and efficiency by a written test of an informal nature.

(vi) Matters relating to health, comfort, local allowances, etc. should be gone into at each Police Station and Out-post.

(vii) (a) As a man's promotion depends largely upon remarks made in his sheet, it is absolutely essential that a Superintendent of Police should see every man in his district once a year, and if circumstances and time do not permit of a regular inspection of any Police Station or Outpost, every man from such Police Stations and outposts should be specially called to headquarters or other convenient place for the purposes of sheet inspection once a year and remarks made in his sheet after a proper drill test, indicating the man's personal smartness, ability to perform drill smartly and to command a squad in the parade ground.

(b) The Deputy Inspectors-General of Police should during their inspections see, on a check of the travelling allowance bills, diaries and statements of movements etc., and of 10 per cent of the service sheets, that these orders are being carried out.

(c) For Inspecting Officers it would be interesting to question men who have earned rewards as to the actual work performed in earning them. Similarly the rewards statements, submitted by the Sub-Inspectors require examination in conjunction with the case diaries to determine whether the right persons have been rewarded. Sub-Inspectors have a tendency of submitting vague recommendations for rewards and this tendency can best be checked at inspection.

(viii) (a) The Sub-Inspector should be carefully questioned as regards his knowledge comprehension and observance of standing orders.

(b) Superintendents should make it a point either themselves to see or to ask their Sub-Divisional Officers to see, during their inspections whether the officers who draw conveyance allowance actually maintain the particular kind of conveyance which is certified by them to have been kept and take suitable action in cases of default.

(I. G. 's No. 2219, dated 31st March, 1948, 3431, dated 5th April, 1948 and I. G. 's No. 53, dated 2nd October, 1937)

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(C) Records

(i) In addition to the usual inspection of registers maintained at a Police Station, inspecting officers can best pay particular attention to the following:-

(a) Registers relating to crime-

1. First Information Book
2. Cognizable Crime Register
3. Non-Cognizable Crime Register
4. Case diaries
5. Station diaries
6. Village crime records
7. Other confidential records

(b) Books of account-

1. Day book
2. Stock Account-
 - (i) Arms, ammunition and accoutrements
 - (ii) Clothing articles
 - (iii) Dead Stock Register
3. Ammunition Deposit Register

(ii) It should be seen that registers at Nos. 1, 2, 4 and 5 mentioned under (a) have been written up by the Sub-Inspector himself in every case or, in his absence, by the senior officer present.

(iii) Property in the hands of the Police should be checked personally. It is necessary to see that property in the possession of the Police is the same as that referred to in the case papers and that there has been no diminution in number, weight, measurement etc.

(iv) Particular attention should be paid to regular and prompt disbursement of pay and allowances and to the punctual submission and return of travelling allowance bills.

(v) A few travelling allowance bills should be checked with the entries in patrol books, Stress should be laid on the necessity of neatness and system in keeping accounts, filing papers and keeping dead stock.

(vi) The Day Book should be examined and checked carefully. The balance of the permanent advance in hand should be noted and, as regards sums to be recouped, it should be ascertained when the expenditure was incurred and whether bills have been punctually preferred. In the case of undue delay in the payment of bills, steps should be taken to expedite payment.

(vii) Arms, ammunition, articles of dead stock, strychnine powders (which should be under lock and seal), service stamps and the library register should be checked personally. (viii) The shops of licensed vendors under the Arms Act and the Explosives Act must be inspected, and their stocks and accounts checked.

(ix) Pending correspondence should be disposed of; records due for destruction destroyed; the stock of stationery and forms examined with a view to economy and the registers signed.

(I. G. 's No.2, dated 18th January, 1930)

(D) Buildings

(i) The register of buildings maintained by the Superintendent of Police and the Sub-Divisional Officer should be checked at inspection and written up with a view to future requirements. Besides inspecting quarters whilst on tour, it is as well to ascertain who are actually living in the Police lines, to prevent over-crowding and for the eviction of undesirable visitors. Lock-ups should be examined with respect to faulty construction facilitating escape or suicide. It should be seen whether money sanctioned for construction and repairs has been laid out to the best advantage. All new works in the course of construction should be inspected not only as regards materials and progress but also as regards method, A whole block of rooms will sometimes be kept hung up for months merely because some small detail is missing. The result is waste of house rent allowance.

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Inspection

(ii) In order that he may be in a position to dispose of references in connection with the provision of new buildings or alternations to old ones, every Superintendent of Police should maintain a set of ground plans of the land in the possession of the Police at all Police Stations and Outposts showing the layout of the buildings. These plans should be consulted at inspection.

(iii) When the clerks have drawn up their rough notes, the inspecting officer should go through them and eliminate as much as possible after explanations have been made on the spot. The final result should be as inspection note containing a summary of really important errors and a few general instructions for guidance. The inspection notes should be brought up again at the next inspection

(I. G. 's No. 14521-B, dated 16th December, 1920)

578. Periodical audit of Headquarters Accounts.- The Police Accountant should invariably visit the Headquarters office every month and check the Day Book and make a 10 per cent audit of the Headquarters accounts. This audit should invariably include a check over the correctness of the composites forming the actual balance on the day of inspection.

579. Statistics as an index of efficiency.- (1) Although statistics are essential to the maintenance of due control and supervision over Police work, they should be used with judgment and discrimination, not as a standard to be worked up to but as a test for indicating where defect in work is to be looked for, their chief purpose being to direct attention to particular points of working and to indicate where further enquiry is necessary. Police work should be judged not by statistical results but upon the facts elicited by these enquiries. A relatively high rate of criminality or a low rate of detection does indicate that something is wrong; but it does not in itself justify the conclusion that there is undoubted administrative failure on the part of the Police. Police officers must not put pressure on their subordinates by injunctions to detect particular cases or cases generally.

(2) Inspecting officers should particularly eschew any action and avoid the use of any language, which may give the impression that the work of their subordinates will be judged by an arithmetical standard and not according to merit.

(3) Officers in charge of Police Stations should also be made clearly to understand that neither pecuniary rewards nor promotion will be given in consideration of high percentages of conviction and that merit will be judged solely with reference to actual work performed by them in particular cases.

(J. D., Letter No. 3377, dated 1st May. 1912)

580. Place of camp of inspecting officers during inspection.-(1) All inspecting officers should camp within eight Kilometers of the place of inspection. Inspections of Police Station and Outpost records by Readers and Clerks, while the Superintendent of Police or Sub- Divisional Officer is camping elsewhere, are undesirable as likely to lead to abuses.

(2) Superintendents of Police should refer to their inspections in their monthly reviews, and Sub-Divisional Officers in their weekly diaries, on the lines of the following sample entries:-

Commencement	..	Commenced inspection of the office and records of(here state Police Station, Outpost or Inspector's office, as the case may be).
Continuation	..	Inspection continued.
Completion	..	Inspection concluded.

581. Inspection of Assistant Public Prosecutors' offices.-(1) Inspections of the offices of Assistant Public Prosecutors should be carried out periodically e. g., when the Police Stations at places at which such Prosecutors have their headquarters are being inspected.

(2) The inspection should cover the Day Book, Stamp Account, Dead Stock Register, monthly Return of Cases conducted, Library Register, weekly diary, Inward and Outward Registers, circular order and Police Gazette files, office records, and travelling allowance bill files. The object of the inspection should be to see that the office is being properly run and that the maximum of efficiency combined with economy is being attained.

582. Inspection by Circle Police Inspectors.-Circle Police Inspectors will inspect every Police Station in his circle once in each quarter, halt there for two nights and will specially pay attention to the following items:-

- (i) Interrogate history sheeters and write history sheets.
- (ii) Scrutinize village crime note books and see that they are maintained properly.
- (iii) Case diaries of all undetected offences reported since the previous inspection should be studied with a view to see whether the investigation has been done on proper lines.

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Chapter XII

(iv) As for prevention of offences, he should personally study the application register non-cognizable offence reported since last visit, entries in the village crime note books, the extract from the patrol book of beat and out-post Head Constable who visit beats, villages, offences reported since previous inspection and decide- whether preventive action should be taken or whether any villages should be watched with a view to take such action. He shall also scrutinize the papers of chapter cases already made out since his previous visit to see whether proper evidence on the relevant ingredients had been collected and whether the chapter cases have been made out against proper persons. In order to check up whether watch had been kept on the movements of suspects and receivers of stolen property, he should tally such entries made in the case diaries with weekly diaries, Patrol books and note books of Police officers detailed for the same, to see whether such watch has really been kept and take appropriate action, if any wrong entries are made or lapses are noticed. At the end of each quarterly inspection, after scrutiny of all crime records, he should give list of specific names of persons against whom preventive action is called for along with brief note of the antecedents, complaints, section of law for taking action and then pursue the matter every month and check up during his next inspection that the instructions have been complied.

(v) He shall see whether inspection notes of the Superintendent of Police Sub-Divisional Police Officer have been complied and whether instructions given therein are implemented.

(vi) He shall check work sheets of Head Constables and give suitable instructions.

(vii) He shall inspect the Crime register, muddamal register, tapal book and other allied records and see whether the charge sheets and muddamal have actually reached the courts concerned.

(viii) He shall see the muddamal and compare it with muddamal register and see whether all muddamal is forthcoming.

(ix) He shall see that all M.O.B. records are maintained up-to-date and contain latest information about each crime and criminal concerned.

(x) He shall see that the men are working properly, that surveillance register, etc. are properly kept, that the Police are acquainted with bad characters, their places of abode and the manner of living, and that crime is being properly reported, registered and investigated.

(xi) He shall educate his subordinates to realise that old, time-worn methods in preventive and detective work will not, in these days of fast transport and improved communications, suffice in dealing with Crime and that no amount of surveillance over local bad characters, however effective, will make up for failure to cope with criminals from outside the Police Station limits, ranging from bad characters from the limits of neighboring Police Station to criminals from other States moving about in disguise or under false pretences.

(xii) He shall inspect arms, ammunition, explosive and poison shops.

(xiii) He shall send copies of his inspection notes to the Superintendent of Police Sub-Divisional Police Officer within one week without fail.

[I.G.P's S.O No. 22 (G/1909/CPI/3218), dated 6th September, 1974]

583. Inspection of Outposts by Sub-Inspectors.- (1) Sub-Inspectors should visit the Outposts within their charge from time to time, inspect kit, dead stock, etc., and after carefully examining the men and comparing and verifying the registers of the Outpost, point out irregularities to the officer in charge and record the result of their inspection in the Inspection Book (Standard Form No. P. M. 99) kept for the purpose at the Outpost. The entries in this book enable the Superintendent not only to learn how often and with what thoroughness these officers examine and test the work of their subordinates, but also to see how far the men have corrected the shortcomings found in their work.

(2) All serious irregularities coming to light in the course of a Sub-inspector's inspection should be reported at once to the Superintendent or the Sub-Divisional Officer, so that the officer in question may take such notice of them as may appear to him to be necessary.

(I. G. 's No. 10681, dated 23rd October, 1899)

(3) For the inspection of explosives and licensed poison shops, reference is invited to Rules 300 and 325 respectively.

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APPENDIX I

FORM No.1

Rule 47 (1)

Form of submission of Reports regarding Strikes and Lock-outs

1. Name and full address of undertaking:
2. Nature of Product which is manufactured or nature of industry
3. Total number of workers employed:
4. Date of occurrence of Strike/Lock-out:

5. Number of workers involved :
6. Daily loss in wages to the workers due to the Strike or Lock-out:
7. Names of the Trade Unions, in the undertaking if any, the strength of each union:
8. Name of the Trade Union organizing the Strike and its affiliation:
9. The general and immediate cause of the Strike/Lock-out with brief description:
10. Name of the employees' organization to which the employee declaring the Lock-out is attached, if it is a lock-out:
11. If the notice of strike has been given, the date of such notice and the date on which it expires :
12. Action taken either to official and non-official and results :
13. Opinion of the Officer submitting the report on the matters of interest to Government (such as part played by trade union leaders and Political Party members in the Strike/ Lock-out, whenever possible)
14. Law and order situation at the place of the Strike/Lock-out:
15. Specified demands of the Strikers: -
16. Any evidence of outside interference or influences behind such activities, acts of sabotage etc.
17. General attitude of Strikers, non-Strikers and employers:
18. Any other item of special interest or importance:

Place :
Date:

Signature
Name:
Designation:

Quarterly return of the communal incidents

[illegible]

Appendix I
FORM NO.3
Rule 57(2)
Form of Requisition of troops

To
The General Officer CommandingDistrict.....

or

The Officer Commanding.....Station.....

The services of troops are required in aid of civil power to assist in quelling a riot (or preventing an anticipated riot) in the town of (or other place specified.)

They should be at.....(here state the place) by
O'clock (a.m. or p.m) on the instant, when a Magistrate (here state the class and name, if possible) will indicate the object to be effected. The probable duration of the duty will be (here state time.)

.....
.

Note.- If possible the requisitioning officer should state the approximate length of streets that may need patrolling.

Appendix I

FORM No. 4

Rule No. 60 (4)

1. Date of firing. ..
2. Place of firing. ..
3. Number of rounds fired and the type of weapons used
by the Police. ..
4. Firing ordered by ..
5. Number of public casualties ..
 - (a) Number of persons killed ..
 - (b) Number of persons injured ..
6. Strength of crowd ..
7. Cause of trouble. ..
8. Strength of Police at the spot. ..
- 8-A. Whether Police Force was adequate to deal with crowd,
if not, date and time of request made for reinforcement.
9. Number of Police casualties:-
 - (a) Number of police men killed. ..
 - (b) Number of policemen injured. ..
10. Whether warning was given before the firing was resorted to
11. Whether tear-smoke was used or cane charge made by the
Police before the firing was resorted to.
12. If so, the result of tear-smoke or cane charge. . .
13. Effect of the Police firing on the crowd. . .
14. Brief account of the incident and the circumstances in
which the firing was considered necessary. .
15. Whether Judicial or Magisterial enquiry was ordered. If
so, the result of the enquiry. ..
16. In case no Judicial/Magisterial enquiry is ordered, please
state the reasons. ..

Appendix I

FORM No. 4

Rule 78

Paragraph 2 of Appendix VI

Form of instructions to be given to person ordered to notify his residence

To

Whereas an order has been made by the Court of/Magistrate under Section 356 (1) of the Code of Criminal Procedure, at the time of passing sentence on you, that you shall notify your residence and any change of or absence from such residence for a term of from date of your release, and whereas you have notified your desire to reside in the village of/town Police Station district, you are hereby directed to observe the following instructions :-

1. Within 48 hours of your arrival at your residence you must report yourself with this form to the officer-in-charge of the Police Station within whose jurisdiction your village is situated, viz. Police Station. The said Police officer will endorse on this form that you have given the requisite notification about taking up your residence.

2. You shall not absent yourself from your place of residence for a period longer than 24 consecutive hours without previously notifying the fact to the officer-in-charge of the said Police Station in the manner provided in the following paragraph.

3. If you desire to remain absent from your residence for a period longer than 24 consecutive hours you must report yourself with this form to the officer-in-charge of the said Police Station and notify to him the place or places you will visit, and the period for which you will be absent. The said Police officer will endorse on this form that you have notified, as required your intention to be absent You must not remain absent beyond the period you have notified, and, on your return, you must again report yourself within 48 hours to the officer-in-charge of the said Police Station and obtain his endorsement on this Form.

Note.-When the period of absence does not exceed one week, the Village Police Patel is authorized to perform the functions of the officer-in-charge of the Police Station under this rule.

4. Whenever you are absent from your place of residence for a period exceeding 24 consecutive hours, you must take this form with you and you must produce it for inspection on demand by any Police officer.

5. If you desire to change your residence permanently, you must appear with this form before the officer-in-charge of the Police Station within whose jurisdiction you reside and notify to him within a reasonable time before your departure to your new place of intended residence, and the date and time of your departure. The said Police officer will make the necessary endorsement on this form to show that you have given due notice of your change of permanent residence.

6. On arrival at your new place of residence, you must report yourself to the officer-in-charge of the Police Station within whose jurisdiction your new residence is situated within 48 hours of your arrival, and present to him this form for his inspection and endorsement.

7. You shall be subject to the above rules for a period of years.

8. For any omission on your part to comply with the above rules you will be liable to simple Imprisonment for a term which may extend to six months or to fine which may extend to Rs. 1000 or with both.

Read over and explained to the convict.

(Signed).....

Magistrate.

Thumb impression of ex-convict.

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*Appendix I**(Reverse of Form No.5)*

Name of ex-convict ordered under Section 356(1) of the Code of Criminal
 Procedure, to notify his residence for a period of years from 197

Place of residence	Police Station and District	Time and date on which the ex-convict reported his arrival at the Police Station and signature of the officer-in-charge of the Police Station	Period of notified temporary absence and places to be visited, and signature of the officer-in-charge of the Police Station	Date and time of ex-convict's report after return from temporary absence and signature of the officer-in-charge of the Police Station	Signature and designation of Police officer to whom the ex-convict reports himself at any place during his temporary absence together with the date and time	Permanent charge of residence, date and time of departure, and signature of the officer in charge of the Police Station	Re- marks
1	2	3	4	5	6	7	8

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Appendix I

FORM NO.6

Rule 82(7)

VILLAGE PATROLLING-STATEMENTS TO BE MAINTAINED BY THE PATROLLING POLICEMAN

(1) Class "A" Villages

Name and No. of Patrol Head Constable	Names of villages in beat	Police Patel's name	Police Patel's signature	Population of each village	Name of men under surveillance
1	2	3	4	5	6
	1. 2. 3. 4. etc.				

(2) Class "B" Villages

Name and No. of Patrol Head Constable	Names of villages in beat	Police Patel's name	Police Patel's signature	Population of each village	Name of men under surveillance
1	2	3	4	5	6
	1. 2. 3. 4. etc.				

(3) Statement of undetected crime for the past two year (excluding current year)

Crime No.	Complainant	Village	Section I.P.C.	Property stolen	Property recovered	Remarks
1	2	3	4	5	6	7
	1. 2. 3. 4. etc.					

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Appendix I

FORM NO.7

Rule 96(4)

FORM OF DOSSIER

- | | | |
|-----|--|----|
| 1. | S.No. | .. |
| 2. | Name with aliases | .. |
| 3. | Parentage | .. |
| 4. | Caste | .. |
| 5. | (a) Date of birth or approximate age | .. |
| | (b) Place of birth | .. |
| 6. | (a) Place of permanent residence | .. |
| | (b) Present residential address | .. |
| 7. | Occupation | .. |
| 8. | Descriptive roll including marks of peculiarities | .. |
| 9. | Education, special qualifications | .. |
| 10. | Relatives | .. |
| 11. | Associates or friends | .. |
| 12. | Convictions, if any, together with Finger Print classification | |
| 13. | Sphere of activities | .. |
| 14. | Photographs | .. |
| 15. | Antecedents and activities | .. |

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Appendix I
FORM No.8
Rule 104 (1)

Statement showing the number of cases of corruption which occurred in the Police establishment of the District during the six month ending 19

Serial No.	Defaulter's name and rank	District	Charge	Result of enquiry and punishment	Remarks
1	2	3	4	5	6

Appendix I

FORM No.9

Rule 135 (6)

*Statement showing information regarding number of cases taken up for personal investigation
by during the quarter ending*

S.No.	Name of the A.S.P/Dy. S.P	District	Charge held	Service in District		
				From	To	Period of duty
1	2	3	4	5	6	7

No. of offences taken up for personal investigation during the quarter	Total No. of offences taken up for personal investigation from the beginning of the year	Result of the cases investigation		Remarks
		Section	Result	
8	9	10	11	12

Appendix I

FORM No.10

Rule 135 (6)

Cases investigation by directly recruited Assistant and Deputy Superintendent of Police in

District

Serial No.	Name of Assistant Superintendent or Deputy Superintendent of Police in the District during the year ending 31st December 19	Charge held	The dates from and to which the charge was held	Number of important cases investigated	Nature of each offence	Result	Remarks
1	2	3	4	5	6	7	8

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Appendix I

FORM No. 11

Rule No. 184 (1)

FORM OF COMMUNICATION REGARDING ARREST, DETENTION, CONVICTION OR RELEASE, AS THE CASE MAY BE, OF A MEMBER OF LEGISLATIVE ASSEMBLY (See Rules 247 and 248 of the Gujarat Legislative Assembly Rules)

Place.....

Date.....

To
The Speaker,
Gujarat Legislative Assembly,
Gandhinagar
Dear Sir,

A

I have the honour to inform you that I have found it my duty, in the exercise of my powers under Section.....of the..... (Act), to direct that Shri..... Member of the *(Gujarat Legislative Assembly) be arrested/detained for(reason for the arrest or detention as the case may be.)

Shri.Member of Legislative Assembly, was accordingly arrested/taken into custody at..... (time) on..... (date) and is at present lodged in the Jail.....(Place).

B

I have the honour to inform you that ShriMember of the *(Gujarat Legislative Assembly) was tried at the..... Court before me on a charge (or charges) of. (reasons for the conviction).

On..... (date) after a trial lasting for..... days, I found him guilty ofand sentenced him to imprisonment for..... (period)

(His application for leave to appeal to +..... is pending consideration.)
+ Name of the Court.

C

I have the honour to inform you that Shri..... Member of the *(Gujarat Legislative Assembly) who was arrested and/or detained/convicted on..... (date) for..... (reasons for arrest) imprisoned for(period) for(reasons for conviction.) was

- £ released on bail pending trial,
- £ released on bail pending appeal,
- £ released on the sentence being set aside on appeal,
- £ released on completion of his term of imprisonment,
- £ discharged by the Court,
- £ acquitted by the Court,

On.....(date)

Yours faithfully,

(Judge, Magistrate or Executive

* Vide G. L. S. Notification No. 274, dated 2nd June, 1960.
£Strike whichever is not applicable.

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Appendix I
FORM No. 12
Rule No. 185 (2)

FORM OF COMMUNICATION REGARDING ARREST, DETENTION, CONVICTION OR RELEASE
AS THE CASE MAY BE, OF A MEMBER OF LOK SABHA/RAJYA SABHA.

(See Rules 229 and 230 of Lok Sabha Rules, III Schedule.)

Place.
Date.....

To

The Speaker/Chairman,
Lok Sabha/Rajya Sabha,
New Delhi.

Dear Mr. Speaker/Chairman,

A

I have the honour to inform you that I have found it my duty, in the exercise of my powers under Section.....of the.....(Act), to direct that Shri..... Member of the Lok Sabha/Rajya Sabha be arrested/detained for..... (Reasons for the arrest or detention, as the case may be.)

Shri..... M.P., was accordingly arrested/taken into custody at(time) on.....(date) and is at present lodged in the..... jail..... (place)

B

I have the honour to inform you that Shri....., Member of the Lok Sabha/Rajya Sabha, was tried at the. Court before me on a charge (or charges) of (reasons for the conviction.)

On..... (date) after a trial lasting for..... days, I found him guilty ofand sentenced him to imprisonment for.....(period.)

(His application for leave to appeal to*.....is pending consideration.)

*Name of the Court.

C

I have the honour to inform you that Shri...../ Member of the Lok Sabha/Rajya Sabha, who was arrested/detained/convicted on(date) for..... (reasons for arrest/detention/conviction), was released on..... (date) on..... (grounds for release).

Yours faithfully,

(Judge, Magistrate or executive authority)

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Appendix I

FORM No. 13
Rule 210 (8)

IAFD 910

Certificate in accordance with Section 142 (6) of the Army Act

I certify that the person whose description is given below was apprehended by (or surrendered to)
*me at (place) at (hour) on the day of 19

Regimental particulars of officer or soldier referred to
above.

No
Rank.
Name
Father's name.....
Unit
Age.....

Description and other particulars

Height
Complexion
Identification Marks.....
Marks.
Religion
Home Address
Village
Post Office
Police Station
Tehsil
District

At the time of his apprehension (or *surrender) the person referred to above was dressed in
uniform/civilian clothes.

Signature of Officer of Police-*in-charge* of
Police Station where the above named
person

was taken, placed in custody, or
apprehension
or surrender.

In-Charge of.....
Police Station

*Strike out whichever is inapplicable.

It is essential that this form should be actually signed by the Police Officer-in-charge of the Police Station otherwise it will not be admissible in evidence.

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Appendix I

FORM No. 14

Rule 223 (10) (b)

Permit for Transport of dead body.

Permission is hereby granted to Shri/Shrimati _____ of
taluka _____ to remove the dead body of his/her _____ Shri/Shrimati
who died in _____ on _____ 19 _____ at _____ to
subject to the following conditions:-

(1) That the dead body is properly covered and disinfected before it is placed in the motor lorry or any other conveyance in which it is to be carried.

(2) That no passengers except the near relatives of the deceased and such other persons as may be authorized by the Officer granting the permit are allowed to sit in the conveyance.

(3) That the said conveyance shall be properly disinfected immediately after the dead body is removed.

(4) That certificate of the cause of death is obtained from the Municipality or the Police Patel/Local Medical Officer.

(Signature of the officer)

(Designation)

(Place)

District

To

Copy forwarded to:-

The District Magistrate,
The Superintendent of Police,
The Civil Surgeon,
The President, _____ Municipality

Police Patel/Local Medical Officer

FORM NO.15
Rule 249(1)
Crime Chart

Year 1	19 2	19 3	19 4	19 5	19 6
Total No of offence reported Classes 1 to V Class VI					
Total					

[illegible]

[illegible]

[illegible]

Appendix I

FORM No. 16

Rule 251 (4) (b)

Sanction other under Section 6 (c) of the Prevention of Corruption Act, 1947

Prosecution of
Shri.....

Order

Whereas in Shri..... held the post of
at.....and as such was a public servant removable from his office by.....
(here insert the correct designation of the officer.)

And whereas, on or about....., the said Shri..... is alleged to
have accepted for himself from one Shri..... Rs..... as illegal gratification,
other than legal remuneration, as a motive or reward for.....

And whereas, it appears to the (insert here the same designation as above)
that the said Shri has thereby committed an offence punishable under Section
161 of the Indian Penal Code-, 1860.

Now, therefore, in exercise of the powers conferred by clause (c) of Section 6 of the Prevention of
Corruption Act, II of 1947, the.....(insert here the same designation as above) grants
sanction for the prosecution of the said. for the said offence.

(Signature)

(Designation) as above.

FORM No. 17
Rule 262 (4), (7), (8) .1
Summoning of documents
IN THE COURT OF
Suit No..... of 19

I, Head of Department, do hereby solemnly affirm and state as
follows :-

A summons bearing No..... dated..... issued by the Court ofin
suit No..... of 19 (..... versus.....)has been received
in theDepartment,
on.....19
requiring production in the said Court on19 of documents stated below. I, as the
Head
of theDepartment, am in control of, and in charge of, its records. I have carefully considered
the relevant documents and have come to the conclusion that they are unpublished official records relating
to affairs of State and their disclosure will be prejudicial to public interest for the following reasons :-

List of documents summoned

I do not, therefore, give permission to anyone under section 123 of the Indian Evidence Act, 1872, to
produce the said documents or to give any evidence derived there from.

Solemnly affirmed at this day of 19 .
Head of Department
Sworn before me

Appendix I

FORM No. 18

Rule 262 (7) (9)

Summoning of documents

IN THE COURT OF

Suit No..... of 19

I, (Here insert the name, designation and address of the person making the affidavit),
 do hereby solemnly affirm and state as follows :-

A summons bearing No..... dated.....issued by the Court of.....in
suit No..... of 19.....(.....versus..... has been
served on me on..... 19 , requiring production in the said Court on
.....19 of the documents stated below. I have carefully considered them and have come to
the conclusion that they contain communications made in official confidence and I consider that the public
interest would suffer by their disclosure for the following reasons :-

List of documents summoned

I therefore, claim privilege under section 124 of the Indian Evidence Act, 1872. Solemnly affirmed at
.....this..... day of19.....

Head of Department.

Sworn before me.

FORM NO.19

Rule 315(2)

List of payment over Rs.250 made by (Disbursing Officer) in the quarter ending/month of

Serial No.	Name of payee and full address (if known)	On what account payment made	Date of payment	Treasury	Amount
1	2	3	4	5	6
					Rs.

Appendix I

FORM No. 20

Rule 334 (5)

Statement showing of telephone wires for the month of in District

S. No.	Place of occurrence	Date and time of occurrence	Date on which the incident was reported to the police	Property stolen	Property recovered	Persons arrested	Final disposal of the case
1	2	3	4	5	6	7	8

--	--	--	--	--	--	--	--

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Appendix I

FORM No. 21

Rule 335 (6)

Register regarding complaints of harassment to Harijans.

Name of Police Station :

S. No.	Date on which harassment was caused	Date and time of giving complaint	Name, father's name, age, village taluka of the complainant	Brief facts regarding the allegations and full name, caste village of persons against whom complaint is made	C.R. and Sections of the offence, if registered	Action taken by the Police
1	2	3	4	5	6	7

FORM No. 22

Rule 335 (6)

Register regarding complaints of harassment to Harijans.

S. No.	Name of the Police Station	Date of harassment	Date and time of complaint	Name of the complainant age village taluka	Allegations in brief, name of the persons against whom complaint has been made	C.R.No. and Section, if offence is registered	Action taken by the Police
1	2	3	4	5	6	7	8

--	--	--	--	--	--	--	--

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Appendix I
FORM No. 23
Rule 373 (16)
Prohibition offences

1. Place and district of offence:
2. Date of offence:
3. Date of detection:
4. Date of registration (if the offence has been registered):
- S. C. R. No. and Police Station registering the offence:
6. Class of offence:
7. Section of law under which punishable:
8. Name of the accused person or persons, with
aliases, age, caste, occupation, address and
whether arrested or not:
9. Corpus delicti
(Substance of the offence):
10. Brief facts of the case:

S. No.	Kind	Quantity	Value

--	--	--	--

Note.- The quantities in column 9, above should be shown as under:-

- (i) Wash : Kilograms and Liters
- (ii) Liquor : Liters and drams
- (iii) Toddy : Liters and drams
- (iv) Hemp drugs : Kilograms and grams
- (v) Foreign liquor : Bottles.

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Appendix I

FORM No. 24

Rule 389 (1)

Accompaniment to the Furlough application of Prisoner

NameNo..... Prison.....

PART I

Furlough Nominal Roll

- | | | |
|---|----|----|
| 1. No. and name of the Prisoner | .. | |
| 2. Present age | .. | |
| 3. Health | .. | |
| 4. Religion | .. | |
| 5. Residence:- | .. | |
| (a) Village | .. | |
| (b) Taluka | .. | |
| (c) District. | .. | |
| (d) Full address in cities, towns or big villages. | .. | .. |
| 6. (a) Offence for which convicted | .. | |
| (b) Place of offence i. e. village, taluka and district. | .. | |
| (c) Crime Register Number | .. | |
| 7. Sentencing court. | .. | |
| 8. Date of sentence | .. | |
| 9. Sentence. | .. | |
| 10. Sentence actually undergone till the date of application | | |
| 11. Conduct in Jail | .. | |
| 12. Jail punishment, if any | .. | |
| 13. Whether admitted under reciprocal arrangement. | .. | |
| 14. Whether desiring to spend furlough outside the State. | | |
| 15. Due date for release on furlough. | .. | |
| 16. Name of relative with whom the prisoner intends to stay and furnish required surety; relation between the two | .. | |

17. Proposed surety ..
18. (a) Details and result of previous furlough and parole applications, if any. ..
- (b) Details of previous furlough and parole release with dates and period. Whether he was adversely reported on any occasion and whether he had fulfilled the condition of the release. . .
19. Name of surety and who accommodated and the name of village where he stayed during previous furlough..
20. Name of co-accused of the prisoner and where he is confined
21. Whether co-accused of prisoner has submitted furlough application
22. Expected journey expenses.
23. Balance of his cash :- .. Wages Rs. P. P. C. Rs.
24. Whether willing to go at his cost ..
25. Opinion of the Superintendent of the Prison about release on furlough.

Date :

Superintendent,

Place :

.....Prison.

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Appendix I

PART II

Information to be supplied by the Police authority

26. Relation between the prisoner and the person with whom he has to stay.
27. Whether he is willing to keep him while on furlough
28. Whether he is willing to enter into a personal bond for surely purpose.
29. Opinion of the Superintendent of Police about release on furlough
30. Detailed justifying reasons, if the furlough is not recommended.

(Signature)

Superintendent of Police,

.....District.

Date :

Place :

Commissioner of Police,

..... City,

PART III

Opinion of the District Magistrates

31. Opinion about release on furlough
32. Detailed justifying reasons if the furlough is not recommended.

(Signature)

District Magistrate

.....District.

Date :

Place :

PART IV
Orders of the Inspector-General of Prison

Date :

Place :

(Signature)
Inspector-General Of Prisons,
State of Gujarat.

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Appendix I
FORM No.25
Rule 389(1)

Accompaniment to the parole application of prisoner.

Name : No.....of Prison

PART I

Parole Nominal Roll

- | | | |
|-----|--|----|
| 1. | Name of the applicant. | .. |
| 2. | Applicant's relationship with the prisoner. | .. |
| 3. | Name of the Prison where confined. | .. |
| 4. | Register No. and name of the prisoner. | .. |
| 5. | Religion of the Prisoner. | .. |
| 6. | Residence:- | |
| | (a) Village. | .. |
| | (b) Taluka. | .. |
| | (c) District. | .. |
| | (d) Full address in cities, towns or big village | .. |
| 7. | (a) Offence for which sentenced | |
| | (b) Place of offence i.e. village, taluka and district | |
| | (c) Crime Register Number. | .. |
| 8. | Sentencing court. | |
| 9. | Date of sentence. | |
| 10. | Sentence. | |
| 11. | Sentence actually undergone till the date of the application. | |
| 12. | Reasons for parole request. | |
| 13. | Period for which parole is asked for. | |
| 14. | Place where prisoner wants to stay during release on parole. | |
| 15. | Name and address of the surety. | |
| 16. | Proposed surety. | |
| 17. | (a) Details and result of previous furlough and parole applications, if any. | |
| | (b) Details of previous furlough and parole release with dates and period. Whether he was adversely reported | |

- on any occasion and whether he had fulfilled the condition of the release.
18. Punishments in Jail
19. Conduct

Superintendent
.....Prison

PART II

Information to be supplied by the Police authorities

1. Whether grounds stated by the applicant are genuine
2. Whether the surety is willing to keep the prisoner while on parole and enter into surety bond
3. Opinion of the Supdt. of Police whether parole is recommended.
4. Whether any special condition is proposed before release.
5. Detailed justifying reasons if parole is not recommended.

Superintendent of Police,
.....District
.....
.....City

PART III

Order of the Inspector-General of Prisons/District Magistrate

Inspector-General of Prisons,
Gujarat State.

Date :
Place :

.....
District Magistrate,
.....District.

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Appendix I

FORM No.26

Rule 442(11)(a)

*Monthly return regarding use of handcuffs by the Police under Police Station/Head Quarters
in the month of 19*

Date	Name of person handcuffed	Name and designation of Police officer using handcuffs	Reasons for believing that the person would have escaped from custody, if not hand-cuffed	Remarks
1	2	3	4	5

FORM No.27

Rule 497(1)

Gujarat State District Police Motor Transport Requisition for a Police vehicle

S. No.

.....District

Type of Vehicle required :

*Personal Carrier

Prison Van
Truck
Light Van
Station Wagon/Jeep/Car

Date and Time of requirement :

Place where Vehicle should report :

to whom :

Approximate duration of requirement : hours.

Purpose of Journey :

For whom required :

From (Place) to (Place)

Date 19

(Signature and Designation of
requisitioning Officer)

.....

The above allotment of vehicle and mileage run of Kilometers is hereby sanctioned.

Remarks :

(orders regarding
charges, if any)

Date 19

(Signature)
Superintendent of Police.

(*Strike off whichever is not applicable)

Year.....

[illegible]

Appendix I
FORM No.29
Rule 514(1)(b)
Army Message Form

(Modified for India)
ARMY FORM C 2136
(Small) (Pads of 100.)

Reg. No.(8)

Message Form

IN					
OUT					
ABOVE THIS LINE FOR SIGNALS USE ONLY					
FROM			Date-Time of Origin		
TO					
INFO					
THIS LINE FOR		Message Instruction		Group Count	
SIGNALS USE ONLY					
Security Classification (See NOTE below)					
Degree(s) of Priority and/or Originator's Instructions	Originator's Signature (With rank)	Date-Time of Origin			
			Time	Circuit	Operator
		IN			
		OUT			

Note:- This message will not be accepted unless a Security Classification (or"Unclassified") has been inserted in the appropriate space.

FORM No.30

Rule 519

History Sheet of the Horse, Colt or Foal

- | | | |
|------|--------------------------------|----|
| (1) | Number of horse | .. |
| (2) | Name of horse | .. |
| (3) | Age | .. |
| (4) | Sex | .. |
| (5) | Height | .. |
| (6) | Colour | .. |
| (7) | (a) Breed | |
| | (b) Girts | |
| | (c) Nullee (Commonnee) | |
| | (d) Fur | .. |
| (8) | Marks of identification | .. |
| (9) | Condition of the horse | .. |
| (10) | Date of purchase | .. |
| (11) | Cost of purchase | .. |
| (12) | Signature of officer in-charge | .. |

FORM No.31

Rule 526 (5)

Form of application for the supply of a police guard or escort

Name of applicant :

Date of application :

Nature of guard or escort required :

Armed or unarmed :

Whether permanent or temporary :

Where to be stationed :

Duty to be performed :

Period for which required (if temporary) :

The guard or escort will be used for Police duty only

Opinion of the Superintendent or Sub-Divisional Officer

Whether the purpose is purely a Police purpose :

Strength necessary :

Cost which will be incurred :

Whether policemen are available for the guard or escort :

Objection, if any :

Final opinion whether the guard or escort should be given :

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Appendix 1

FORM No. 32

Rule 566 (1)

Notice

Employers of Police Watchmen are requested to note that a sum of. Rs. of their watchmen is due monthly in advance and should be paid into the office of the Commissioner/Superintendent of Police punctually on the last day of each month for the following month.

Failure to credit the above amount of watchmen on the appointed day will necessarily entail the withdrawal of the watchmen without notice.

It is further requested that a fortnight's notice be given by employers, if they desire to dispense with the services of their Police Watchmen.

Observance of the above rules will conduce greatly to the convenience of all concerned.

.....

.....19

Commissioner of Police
Superintendent of Police

FORM No. 33.

Rule 566 (I) (3)

Notice to Employer of watchmen

No.....of 19

Office of the

.....

Dated..... 19

Shri/Shrimati,

I invite your attention to the fact that cost on account of the Police Watchman/Watchmen supplied to you for the month of. and due in advance has not been received in this office.

I, therefore, write to draw your attention to the notice below this letter and to intimate that unless the cost is credited in this office by the. it will be necessary to withdraw your Watchman/Watchmen on the morning of.....

Yours faithfully,

Commissioner of Police,
Superintendent of Police,

.....

Notice

Employers of Police Watchmen are requested to note that the cost on account of their watchmen is due monthly in advance, and should be paid into the office of the Commissioner/Superintendent of Police punctually on the last day of each month for the following month.

Failure to credit the amount on the appointed day will necessarily entail the withdrawal of the watch man without notice.

It is further requested that a fortnight's notice be given by employers, if they desire dispense with the services of their Police Watchmen. .

Observance of the above rules will conduce greatly to the convenience of all concerned.

Commissioner of Police
Superintendent of Police

.....
.....19

.....

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Appendix I
FORM No.34
Rule 566(1)

Muster roll for Police Watchmen for the month of 19

[illegible]

Appendix I
FORM No.35
Rule 566(1)(2)

Pay abstract of Police Watchmen of the District for the month of 19

[illegible]

[illegible]

Rule 566 (1)
(Payable strictly in advance)
Watchmen Fund

Office of the

Bill No.....

Dated.....19

Rs.....

.....Dr.

To pay the following charge for Watchmen in advance :-

Pay at Rs.....per month for19

Dearness allowance Rs.....per month for19

Clothing charges at Rsper month for19

Additional amount Rs.....per month for19

Arrears as per bill No.....dated.....

Total

(In words) Rs.

for Commissioner of Police
Superintendent of Police
.....

N.B.- 1.The whole amount of this bill should be paid into the officer of the Commissioner/ Superintendent of Police and to no other person

2. The amount should be paid before the end of this month. Otherwise the watchman will be withdrawn.

3. It is requested that a fortnight's notice be given by the employer, if he desires to dispense with the service of his watchman.

in cash

Received onRs

by cheque No.

Police Accountant.....

Appendix I

FORM No.37

Rule 566(1)

Account of clothing of Police Watchmen

Serial No.	Details
1	Great coat
2	Jersey
3	Khaki blouse
4	Khaki shorts
5	Ordinary folding cap of Khaki drills
6	Pair of putties
7	Pair of chappals or boots
8	Whistle
9	Lathi
10	Belt
11	Haversack
12	Dark bone buttons
13	Remarks
14	
15	

[illegible]

Grand Total									
Sub-Division									
Sub-Division									

Note:- Excise Sub Inspector should be shown against Police Stations.

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Appendix I
FORM No.38-contd.

Superintendent of Police
Asstt. Supdt. of Police
Dy. Supdt. of Police

Police Inspector

Circle Police Inspector
Home Police Inspector
City Police Inspector
L.I.B
H.Q

Task Force.

Sub-Inspector
Head Constables
Police Constable

Sub-Inspectors

Sub-Division
Sub-Division
Headquarters
L.I.B.
L.C.B
Traffic
Readers
Reserve

Assistant Public Prosecutors

.....City
.....
.....

Information of Motor Vehicles

Buses
Trucks
Staff car/Jeeps
Ambulance car

Motor Transport

Armed Head Constable

Armed Head Constable

Wireless

Head Wireless Operator
Wireless Operators
Radio Mechanics

Armed Strength

Permanent
Temporary

Unarmend Strength

Permanent
Temporary

.....
Grand Total

Appendix I
FORM No.39.
Rule 571(3)

District

Crime figures for the previous five years and the current year upto

Serial No.	Nature of crime	19	19	19	19	19	19 up to
1	2	3	4	5	6	7	8
	CLASS I to V.						
1.	Murders including attempt to murder and culpable homicide.						
2.	Dacoity.						
3.	Robbery-						
	(a) Highway robberies.						
	(b) Other robberies.						
4.	Housebreaking be day						
5.	Housebreaking by night						
6.	Cycle thefts						
7.	Cattle thefts						
8.	Theft of telegraph and telephone wires						
9.	Theft of machine spare parts						
10.	Theft from person						
11.	Theft by pickpockets						
12.	Theft by servants						
13.	Other theft under Section 379 IPC						
14.	Other theft under Section 380 IPC						
15.	Receiving stolen property						
16.	Cheating						
17.	Criminal breach of trust						
18.	Mischief						
19.	Rioting						
20.	Hurt cases						
21.	Kidnapping						
22.	Other offences						
	Total						
	CLASS IV						
1.	I. P. C Class VI						
2.	Gambling Act.						
3.	Prohibition Act.						

	(a) Distillation of illicit liquor (b) Possession of illicit liquor (c) Transport of illicit liquor (d) Sale of illicit liquor (e) Drunkenness (f) Other cases						
4	Essential Commodities Act, 1955.						
5	M.V. Act.						
6	Miscellaneous						
	Total						
	Grand Total						

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Appendix I

FORM No.40

Rule 571(3)

District

Statement showing offences (i) reported (ii) sent up, (iii) convicted (iv) percentage of conviction to cases decided for the last five years, and the current year up-to

Serial No.	Nature of crime	19	19	19	19	19	19 up to
1	2	3	4	5	6	7	8
	CLASS I to V.						
1.	Murders including attempt to murder and culpable homicide.						
2.	Dacoity.						
3.	Robberies						
4.	House-breaking and thefts						
5.	Thefts-						
	(a) Cycle thefts						
	(b) Cattle thefts						
	(c) Thefts of telegraph and telephone wires						
	(d) Thefts from person						
	(e) Thefts by pickpockets						
	(f) Thefts by sercants						
	(g) Thefts of machine spare parts						
	(h) Other thefts u/s 379 IPC						
	(i) Other thefts u/s 380 IPC						
6.	Class VI.						
7.	Prohibition Act.						
8.	Gambling Act.						

FORM No.41

Rule 571(3)

District

Disposal of preventive action cases for the previous two year and the current year up-to

Serial No.	Nature of crime	19		19		19	
1	2	No. of cases	Dis-Posal	No. of cases	Dis-Posal	No. of cases	Dis-Posal
1.	Criminal Procedure Code-107						
2.	Criminal Procedure Code-109						
3.	Criminal Procedure Code-110						
4.	Bombay Police Act. 55 to 57						
5.	Bombay Police Act. 122						
6.	Bombay Police Act. 124						
7.	Bombay Habitual Offenders Act. 1959						
8.	Maintenance of Internal Security Act.						
9.	Bombay Prohibition Act Section 93						
	TOTAL						

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Appendix I

FORM No.42

Rule 571(3)

District

Disposal of offences under the Penal Code.

Serial No.	Offences	19		19	
		Total No.	Disposal	Tatal No.	Disposal
1.	Murder		Con Acq. A.F C.F P.T N.C Trans B.F With 157(b) Disch Comp. P.I		Con Acq. A.F C.F P.T N.C Trans B.F With 157(b) Disch Comp. P.I
	Dacoity Robbery H.B and theft Theft- (a) Cycle thefts (b) Thefts of telegraph and telephone wires (c) Cattle thefts (d) Thefts by pickpockets (e) Theft of machine spare parts (f) Thefts from persons (g) Thefts by servants (h) Other thefts. Riots				

	Hurts Other offences Total of Classes I to V Gambling Act (a) Street gambling (b) Worli Matka (c) House gambling Prohibition Act (a) Prosession (b) Transport (c) Sale (d) Distillation (e) Drunkenness (f) Miscellaneous Sections 122, 124, 131, 131-A and 142 of Bombay Police Act. Cases under Section 56 and 57 of the Bombay Police Total		
--	---	--	--

Note :- While showing the disposal of cases in the above statement the classification. Acquittal or Discharge should be amplified by the letters 'AT', or 'CT' as the case may be in order to give an idea as to whether the case is true, false or otherwise; for example '2 Acq. AT' ('T' means after trial). Supervising officer should take suitable action against investigation officers, if cases are classed 'B' or 'C' after trial. Action taken against investigation officers in cases which are classified 'B' or 'C' should be shown. If action is not taken, reasons should be given.

Statement regarding the welfare activities for the last two yea (19 and 19) and current year up-to

[illegible]

[illegible]

Appendix I

FORM No.44

Rule 571(3)

District

Information regarding Gram Rakshak Dals

1. Number of village in the district
2. Number of beats
3. Number of villages where Gram Rakshak
Dals have been formed
4. Number of members enrolled in the Gram
Rakshak Dals
5. Remarks

APPENDIX II

Rule No.1(3)

Execution of a Warrant of fine issued by a Court

A warrant for the levy of a fine issued under clause (a) of sub-section (1) of Section 421 of the Criminal Procedure Code, shall be directed to a Police officer.

2. The authority issuing the warrant shall specify a time for the sale of the attached property and for the return of the warrant. The time specified for the sale shall not be less than two months from the date of the issue of the warrant.

3. The attachment of moveable property belonging to the offender shall be made by seizure:

Provided that, where, in addition to or in lieu of seizure the Police officer considers that the attachment should be effected by the appointment of a receiver or by an order in writing prohibiting the delivery of the property to the offender or his representative or by both these methods, he shall obtain an order to that effect from the Court issuing the warrant.

4. Where the property to be attached consists of the share or interest of the offender in moveable property belonging to him and another as co-owners, the attachment shall be made, after obtaining an order to that effect from the Court issuing the warrant, by a notice to the offender prohibiting him from transferring the share or interest or charging it any way.

5. Before making the attachment, the Police officer shall deliver or tender a copy of the warrant to the offender or, in his absence, to any adult member of his family. If the offender is in jail, a copy of the warrant shall also be sent to the offender through the Jailor. If a copy cannot be so delivered or tendered. the Police officer shall affix a copy of the warrant at some conspicuous place where the property to be attached is found and, if the property is situated in a village, the fact of attachment should be proclaimed by beat of drum. After making the attachment. the Police officer shall, in like manner, deliver, tender or affix, as the case may be, an inventory of the property attached.

6. If no claim is preferred to any property attached, within one month from the date of the attachment, by any person other than the offender, the Police officer executing the warrant shall have power to sell, within the time mentioned in the warrant and without previous reference to the Court issuing the warrant, the property or such portion thereof as may be sufficient to satisfy the amount to be levied:

Provided that, if the property attached consists of livestock or is subject to speedy and natural decay, or if in the interest of the owner. the Court issuing the warrant orders its immediate sale, the Police officer may sell it at once, but the proceeds of the sale shall not be appropriated towards the fine until the expiration of one month from the date of attachment or until any claim preferred has been disposed of, whichever is later:

Provided further that where any property is attached under paragraph 4, it shall not be sold without obtaining an order to that effect from the Court issuing the warrant; and where two or more persons, of whom one is a co-owner, respectively offer the same sum for such property, it shall be deemed to be the bid of the Co-owner.

7. If any claim is preferred to any property attached, it will be adjudicated upon by the Court.

8. The Police officer executing the warrant shall, as soon as possible after the sale, produce the sale proceeds before the Court issuing the warrant or if the property was sold under a warrant endorsed by a District Magistrate under Section 422 of the Code, in the Court of such Magistrate.

9. The Police officer empowered to execute the warrant shall not be inferior in rank to a Head-Constable, when the estimated value of the property to be attached exceeds Rs.100.

APPENDIX III

Rule 13 (1)

Duties of the Police in cases of Fire

1. In cases of fire, the Police officer on the spot should-(a) apprise the inmates of the house and also the inmates of the adjoining houses about the fire, (b) send immediate information to the Police Station lend help and (c) also send information to the fire brigade station (if there be any) or the municipality send the fire brigade or fire fighter and until the arrival of the assistance, endeavour with the assistance persons in the locality to extinguish the fire, rescue persons in danger and prevent loss of property,

2. On receipt of information of fire, the officer in charge of "the Police Station should forthwith collect men by sending an alarm signal, He should then divide the available men into the following parties:-

(a) Engine or Hose Party.-To take charge of the engine or the hose and try to extinguish the fire.

(b) Street Clearing Party,-To divert the traffic from the street and keep the street clear of crowds.

(c) Working Party,-To be supplied with pick-axes, spades, baskets etc, in order to bring earth from the neighboring lands and use it for extinguishing the fire and to disconnect the property on fire from adjoining property.

(d) Bucket Party,-To be supplied with pots, buckets, etc. to fetch water from neighboring wells or reservoirs and use it for putting out the fire,

(e) Guarding Party.-To keep a watch over the property salvaged from the house on fire and also to take steps to prevent pick-pocketing; and

(f) Ambulance Party.-To be supplied with a stretcher and other materials required to give first aid to take charge of persons injured, render them first aid and then without delay to send or take them to the hospital for treatment,

3. Having thus divided his men into a number of parties, suited to the situation, the officer in charge of the Police Station should place each party in charge of a Head Constable or senior Constable and instruct the men in each party regarding the duties to be performed by them, The men need not wear full uniform but should put on a belt and a cap. The parties should then be marched off to the place of fire and do the work assigned to each and put out the fire.

4, It shall be the duty of all Police Officers to aid the fire brigade in the execution of its duties such Police Officers may close any street in or near which a fire is burning and remove any persons who interfere by their presence with the operations of the fire brigade.

(S. 225 of the Gujarat Municipalities Act, 1963; and, S.267 of the Bombay Provincial Municipal Corporation Act, 1949)

5. Investigations of Fires.-Reports of outbreak of fires causing enormous loss of property and physical injury to many persons are, read from time to time, These are frequently attributed to spontaneous combustion without proper evidence and sometimes even where such an origin is chemically impossible. A thorough investigation is, therefore, necessary in which spontaneous combustion or suspected incendiarism may be the origin.

Examination, in cases of fire frequently fall to Police officers even when the fire brigade has also attended. It is important to remember, that the investigation of fire is very difficult since it is not always possible to determine the cause and origin of ,fire, The main reasons are that the police are not the first person to examine the scene, most of the vital evidence is destroyed by fire and the fire investigator, in many instances, has to determine the nature and cause of fire from the charred remains or-burned out buildings.

Moreover, motive, for an incendiary fire is sometimes obscure and all the evidence is circumstantial. But certain lines of investigation are to be followed and scientific examination can often provide valuable assistance to the fire investigator, even when the fire damage is very severe.

The Investigating officer before commencing his enquiry should consult the fire-brigade officer who have had considerable experience in the examination , and the Investigating officers should always listen to the suggestions of senior fire-fighting officers as they are very experienced men and are specially trained to perceive anything unusual or suspicious. It must be emphasized here that unless perfect Co-operation exists between the two services success is impossible. When making examination at the scene of any fire the Investigating Officer

should keep an open mind from the start and no preconceived idea should be maintained and should never form a definite conclusion as to the origin of the fire however obvious the cause may appear in the early steps of the enquiry, until he has finished his search, carefully examined and checked up all the data he has obtained.

In the investigation of fires it is always required to discover how and where the fire was started as without this evidence it is very difficult for the investigating officers to proceed any further with the investigation.

Enquiries should, therefore, be made on the following points:

(i) Seat of fire where

(ii) Time of fire

(iii) Cause of fire

(iv) If the above enquiries rule out the possibility of a natural cause for the fire the Investigating officer should then proceed to detect any unusual or suspicious circumstances which may indicate that the fire was caused by criminal design.

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(v) If the enquiry at this stage suggests that the fire was of criminal origin, the Investigating Officers must look for the motive for such an action, the establishment of which will greatly strengthen other evidences.

(vi) Person responsible etc.

At this stage the Investigation Officers should consider the possibility of direct or indirect responsibility of an individual for the fire.

Seat of fire:- On arrival at the scene of fire, the Investigation Officers should try to find out the exact spot where the fire started. The finding of the source is essential in identifying the cause of the outbreak since it is the most likely point to search for any apparatus or device which may have been used to start the fire.

Valuable help in locating the seat of fire can be obtained by the following means :-

(a) The first person who saw the fire :-The first person who saw the fire, or raised an alarm may give the Investigating Officer valuable information regarding the point of ignition by locating the place where he first saw the flames or smokes coming out. But at the same time the Investigating Officer should remember that the first informer may be the fire-raiser himself who may intentionally give false information regarding the seat of fire for his own benefit. The Investigating Officer should, therefore check the person's story to his satisfaction. '

(b) A detailed account of the progress of the fire, the spot where the fire was confined or most fierce when the members of the fire brigade arrived should be obtained from any fireman in attendance. This information may help the Investigating Officer in locating the seat of fire.

(c) The distribution of inflammable material in the premises should be ascertained as the presence of more inflammable material in one part of the room or building may suggest the seat of fire.

(d) A detailed examination of the structural damage of the room or the building should be made since more extensively burnt part may suggest that the fire was of longer duration or more fierce at that part and hence may indicate a probable point of ignition.

(e) During the search it may be necessary to move a large amount of debris before the seat of the fire can be located. When the debris are moved, search should be made for any foreign materials or evidence left by the fire raiser as the position of the material may not only locate the point of ignition but also may be the solution to the cause of the fire.

(f) result of the search for the point of ignition often reveals the presence of more than one source of fire and this finding is prima facie evidence of an intentional fire. **Time of Ignition.**-For various reasons it is important to ascertain the time of fire. The following are the major reasons :-

(a) To secure proof of the presence of a person at the time of fire or to check alibis.

(b) To check the actions of any person who would be present at the time of the fire.

(c) To determine whether the nature and quantity of materials destroyed was burnt by the normal progress of fire or whether the fire was so fierce at the beginning as to suggest that it was willfully assisted by some highly inflammable substance namely, petrol, kerosene etc. When the fire is not seen in its early stages an idea of the time of ignition can be obtained by noting the following points :-

(i) The time the premises were last seen or vacated.

(ii) Failure of electric lights, wall clocks, etc

(iii) The volumes of fire when first observed.

(iv) The progress of fire and the amount of material burnt.

(v) The report of any explosion heard by the neighbors

(vi) Cries of distress of live stock which are susceptible' to smoke giving warning of fires.

Other factors such as the weather conditions, the type of industry carried out at the premises, the quantity, conditions and inflammability of the material stores etc., should be taken in-to consideration when calculating the time of ignition.

Cause of Ignition.-In order to be in a position to make this examination, it is necessary for the Investigating Officer first to know what are the common causes of the fire. It is imperative that the examination

for natural causes of the fire should be exhaustive so that the process of elimination can be applied in some degree to the investigation of arson cases In a similar manner as In the investigation of other Crimes.

Common causes of fires and type of natural fire.-(a) Spontaneous combustion.-Certain conditions must be present for spontaneous combustion to be possible. Some process involving the slow decomposition. putrefaction or decay of carbonaceous matter must occur In the first place.

This process may be set up by bacterial, atmospheric or .chemical action; thus, coal or certain ores in the presence of air and moisture are liable to react slowly with the generation of heat: certain oils, such as drying oils' used in paints also can react slowly with the oxygen of the air form the „ skin" which forms on paint, again with the generation of heat.

The first essential therefore in the occurrence of spontaneous combustion is some slow decay or decomposition process which goes on with the evolution of heat.

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The second essential is the surrounding of the seat of the above process with material which is a bad conductor of heat. Such materials are generally rich in carbon and, therefore, inflammable, e. g. paper, straw, hay, grain, cotton, etc.

The effect of the presence of this heat insulating layer is to prevent the escape of heat from the slow decay or decomposition process.

The heat thus accumulates and the temperature in the centre of the mass rises. This in turn affects the original decay process; it may be taken as general rule that a rise of 10 digress in temperature roughly doubles or trebles the rate at which a chemical reaction occurs.

The effect of this rise in temperature is thus to speed up the original decay process, which in, turn gene-rates still more heat to further speed up the decay; the net result is, therefore, that the speed of the decay becomes increasingly great until sufficient heat has raised the temperature to the point that actual inflammation occurs with the production of flame; when this happens the whole mass will ignite. When ignition occurs the fire usually spreads rapidly because the heat that has been slowly generated will probably have caused the production of inflammable gases from the bulk of the matter.

Conditions similar to the above are found in heaps on fine coal, bales of cotton, stakes of certain ores, particularly those containing sulphur compounds, stacks of grain, hay and straw, especially when these have been stacked while damp, in germinating grain, in heaps of oily waste, in piles of sacks or bags have contained matter liable to decay or chemical change, e.g. chemical fertilizers

(b) *Fires due to the defects of the electric or gas services.*-The condition and position of the electrical installations should be examined since partial short circuits when the insulation deteriorates through old age or chaffing, the presence of over-sue or in correct substitutes may point out electrical defects. Fires due to the electric services are much more common while gas services are not very common sources of fire. When fires occur due to defects in gas services, there is always evidence of an explosion due to a leakage of gas causing explosive mixture which ignites when it comes into contact with some accidental flame.

A thorough examination of electric installation, gas taps and fittings, oil stoves and lamps should be made to find the seat of fire. Where necessary, experts from gas and electricity undertakings may be asked to make these examinations or failing them local electricians or plumbers.

(c) Spark.-Under this heading there are commonly three types of sparks:

(i) Sparks from an engine from nearby railway: Such sparks are small fragments of incandescent combustible material and can ignite material such as jute, straw, etc., if they fall on them. Enquiry should, therefore, be made whether the engine was there near the material lor a building about the time it was fired.

(ii) Sparks caused by the impact of two hard substances, for example, the contact of the steel parts of breaking, grinding or crushing machinery with a stone in the material being treated, may cause a spark. These sparks have no heating value but are liable to initiate explosions in explosive mixtures such as cotton or Jute dust.

(iii) Frictional sparks may be produced by machines ordinarily involving no electrical power. For example, leather belts running on wood and paper or cloth passing over rollers, are a. source of static electricity and such machines will set up a charge to some extent. These charges build up until the voltage is sufficiently great to jump the smallest gap, when commercial operations may ignite fine dusts, e. g. jute, cotton, fibres, flour, petrol and inflammable vapours. In most works where the likelihood of fires through these sources exists, the machinery is earthed to prevent the accumulation of frictional electricity to the extent that might cause a spark. The investigating officer should not, overlook the possibility that the earthing system may have been intentionally disconnected in the hope that at some future time a spark will be produced and cause a fire.

(d) *Concentrated sun's rays.*-Concentration of the rays of the sun by lenses, broken fragments of glass and bottle may cause fires. Even drops of dew on dry grass have been regarded as focussing the sun's rays and starting grass fires. To casue a fire in this manner a person may willfully place pieces of paper or other inflammable material against a window etc., so as to receive the full force of the sun's rays. It is, therefore, advisable to ascertain as routine the position of the sun at the time of the commencement of fire.

(e) *Cigarette ends, matche,' etc.*-It has been seen in many cases that when lighted match and the cigarette ends hurriedly and carelessly thrown down they continue to burn after being dropped on the ground and ignite material such as

paper and cotton fibre if they fall on them. Although these common sources of fire leave little evidence behind, the investigating officer should search for some distance from the scene of fire before ruling out the possibility of this type of natural fire.

(f) *Chemical action* :-Many fires have been caused by chemical action which evolves heat sufficient to ignite combustible materials. Special attention should, therefore, be paid to the presence of such things as quick-lime, strong acids, especially nitric acid, fertilizers, phosphorous etc. The sudden shaking of quicklime produces considerable heat and under suitable conditions this heat may be great enough to ignite wood or paper. Nitric acid, if strong, will quickly ignite any highly carbonaceous matter with which it comes into contact, provided conditions are suitable. Many fertilizers contain nitrates, which provide a rich source of oxygen and are easily ignited. Certain phosphorous compounds which are used in rat poison are spontaneously inflammable under certain conditions. Many oils, especially drying oils such as linseed oil used extensively in paints, react, particularly in thin layers, with oxygen from the air to form a hard solid product. The oxidation of the oils produces heat and if the heat cannot escape it may give rise to fire e. g. in heaps of oily rags, i.e. cotton rags soaked in linseed oil since the heat produced cannot escape from the centre of the heap or pile. There are also a number of chemicals when mixed burst into flames, for example turpentine and nitric acid, potassium permanganate and strong sulphuric acid, sodium peroxide (used as a bleaching agent in laundry work) and water generate much heat and oxygen. This type of fire is very dangerous on board ship, when containers of such substances may be broken as a result of the movement of the ship and can then cause the dangerous fire. The investigating officer should therefore, look out for the presence of such materials at the scene of fire and if such can be found he should preserve them for submission to the laboratory.

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(g) *Bacterial action*.-Fires may also be started by the bacterial action which results in the evolution of sufficient heat to produce inflammation. The typical example of bacterial action producing heat is the streaming manure heap which can be seen in any stable yard. Other examples of bacterial combustion are fires in straw-stacks which are due to the straw being stacked whilst in too moist a condition stimulating bacterial action. The heat which is produced at the centre of the stack due to decay or putrefaction of the straw by bacterial action cannot escape since straw is a bad conductor of heat and consequently it rises to ignition temperature.

It must be noted that spontaneous combustion by bacterial action will not occur in well ventilated straw stack and will never occur in the first fourteen days after stacking, a period required for the slow putrefaction of straw and generation of sufficient heat for ignition. The most common period for stack fires is from five to ten weeks after stacking and they seldom occur after this period.

The Investigating Officer should, therefore, note all the circumstances, appearances at the scene and endeavour to find the seat of fire in order to determine whether the stacks had been burnt from outside, inwards or vice versa.

If a stack is not completely destroyed the expert can distinguish between spontaneous combustion and deliberate or accidental firing by chemical analysis of samples from the side and centre of a stack which has been on fire.

(h) *Explosions*.-The common type of explosion is produced when a flame or spark is brought into an explosive mixture of gas or of dusts. Thus when illuminating gas or fumes of petrol, ether, benzene or other inflammable gas or vapour is mixed with air in proper proportion, the mixture may be ignited by a match, a spark or any other local high temperature. Coal dust in mines, sugar dust, cotton dust, oil cake dust in factories are all examples of such dusts which have caused serious damage. Unless the material involved in the explosion is highly inflammable there may not be any fire at all but the effects of the explosion may be recognized by interrogating the eye witnesses whether they have heard

the noise of an explosion and also by the appearance at the scene. Whenever an explosion has occurred all surrounding surfaces will be covered with a thin layer of finely divided carbon or soot, which appears as a blackish dust even though the explosion is so small that no damage has been caused. Another general characteristic of the scene where explosion has occurred is the erratic nature of the damage, i.e. objects blown in erratic directions and not in a definite and simple pattern.

(i) *Suspected arson*:- After all the commoner possibilities have been checked or tested and eliminated the enquiry becomes more difficult and there is a strong suspicion of arson. To determine whether or not the cause of the fire was malicious the investigating officer should take following facts into consideration. Of course, it would be impossible to include all the circumstances which raise doubts regarding the causes of fires, the following are some of the circumstances which would arouse suspicion;

- (1) When there is no possibility of spontaneous combustion and the fire risk is low.
- (2) When unusual objects or foreign materials found at the seat of fire or leading to it, such as containers, long fuse, trailer and other devices.
- (3) The finding of highly inflammable material such as paraffin, petrol, benzene, kerosene, etc.,- particularly if these are not normally stored in the building.
- (4) An unauthorized person taking a keen interest in a police investigation and the same person

present at more than one fire, giving the alarm on different occasions.

(5) Fires starting in more than one part of the building at more or less the same time without any apparent natural reason.

(6) Sometimes suspicious circumstances may arise if it is found on examination that the unburnt stock and burnt debris do not represent the quantity and quality of goods alleged to have been destroyed by the fire.

(7) Re-arrangement of goods previous to the fire without any genuine purpose.

(8) Removal before the fire of valuable furniture stock or merchandise and the absence of the owner or his family from the premises on a visit to a neighboring place during the time of the fire may be a vital point in the investigation of suspicious circumstances.

(9) Destruction of confidential or valuable documents or books required for audit. Frequently account books are sought to be destroyed containing fraudulent financial statements.

(10) From the ferocity of fire in its early stages and the direction of its spread it can be reasonably ascertained whether or not the fire was assisted by some inflammable material such as petrol, kerosene etc.

(11) *Smoke and Smell*:-The colour and density of smoke and the smell from a fire may indicate the basic substance being consumed and may create suspicion if they do not agree with those from the material or goods burnt. For example, heavy black smoke comes from burning oil or other products having a petroleum base. Unusual black smoke marks and badly charred surface may indicate petroleum product as the burning agent. Rubber also gives off black smoke when burned. White smoke is produced by burning straw or other vegetable compounds. Yellow smoke is produced by films and other products having a nitrocellulose base. These facts may indicate the substance or material used to start the fire and may assist the investigation.

(12) The investigating officer should not lose sight of the fact that unscrupulous owner who purposely fires his own property for insurance coverage or other purpose may give directions to the fireman.

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Motives:-If the investigation at this stage suggests that the fire was started as a result of a willful act by some person then the investigating officer must look for the motive for such an action. Some of the more common motives are listed below :-

(1) Revenge for some real or imaginary grievance against a person or a management by disgruntled workman.

(2) Economic gain attained either by defrauding an insurance company or eliminating a keen business competitor.

(3) Jealousy against a particular person

(4) Destruction of books and records which would otherwise disclose defalcation of the accounts.

(5) Financial embarrassment, depression in trade or depreciation of stock

(6) Destruction of evidence of a more serious crime such as murder

(7) Fire craze :- The perpetrator is a weak minded person or pyromaniac who commits arson for no reason and with no motive to injure any particular person or property but to create excitement. He uses simple methods i.e. matches, candles, burning charcoal etc. This type of person is very dangerous and difficult to detect, as he may travel from one place to another firing different classes of property particular in unoccupied or isolated building. If a number of fires have been started by the same method or similar types of industry, it is safe to conclude that a pyromaniac is operating.

(8) To incite terrorism or to air a grievance, fires may be maliciously started by political organizations.

(9) Sabotage by enemy agents:- Person responsible etc :-In establishing responsibility for a fire it is not necessary for the investigating officer to show that the suspect set a fire with his own hand nor that the suspect was present. It is sufficient to show that he procured another to commit the crime or otherwise aided or abetted in the commission of the act. To establish the corpus delicti. The investigating officer may seek out collateral issues such as the possibility of any of the motives or suspicious circumstances detailed above or any unusual circumstances not mentioned interviewing witnesses, checking their statements, etc.

Whilst making this enquiry no detail, however small, must be over-looked.

Searching for materials and collection of evidence :- (1) The investigating officer should record the conditions found at the scene and provide for all necessary photographs and sketches of the scene before the samples are collected and the scene is cleaned up and restored. Since such details as the time at which the electric clock stopped, what articles were on the table and what was under the Stairs may be of great importance at the later stage of the enquiry.

(2) Any search for material should be both thorough and systematic. Samples to be searched in connection with cases of suspected arson may be of three types.

(a) *Samples connecting the suspect with scene of fire*:-A general search should be made for physical evidence which may connect with the activities or identity of the arsonist. These include evidence from a point of entry such as

finger print, foot print, tyre marks (if approach to the instrument mark, fibres hair, blood from cut wound, any foreign matter etc. and from any other point that may have 'a connection with the movements of anyone setting in fire). The investigating officer should remember the importance of the above mentioned contacts when he is interviewing the suspect or searching his clothing.

Suspect's clothing and footwear, if recovered. should, therefore, be examined for any paint, wood splinter glass particles from the point of entry oily stains, splashes of incendiary liquids, wax from a candle, grease soil, dusts from materials stored on the premises, straw etc.

Adequate control samples of the materials at the scene should be carefully selected and each type of material placed, in a separate envelop of cellophane or similar material. The suspect's clothing and footwear are to be separately wrapped for submission to the laboratory.

(b) *Samples for solid debris* :-The region of origin of fire should be thoroughly searched for any trace of ignitor preserving any partly burned matches, wires or other questioned objects and any burned objects which by their shape and appearance suggest that they are foreign to the; .environment and may have served in some manner as ignitor. These may Include fire-work composition, safety fuse, burnt paper or other materials.

It may be mentioned here that analysis of ashes can play a very important part in determining the cause of a fire, Microscopic and laboratory tests of the ash debris may indicate the use of inflammable material not ordinarily used upon the burned premises. The ashes may also show the contents of the building in the event it is suspected that a claim is being made for articles not believed to have been consumed by fire.

Such materials should be collected in envelope if small and rigid or in boxes if friable. Great care must be taken with burnt documents as these are very fragile. The fragments must be carefully lifted on a piece of hard cardboard and gently transferred to a box with minimum movement and taken by hand to the laboratory

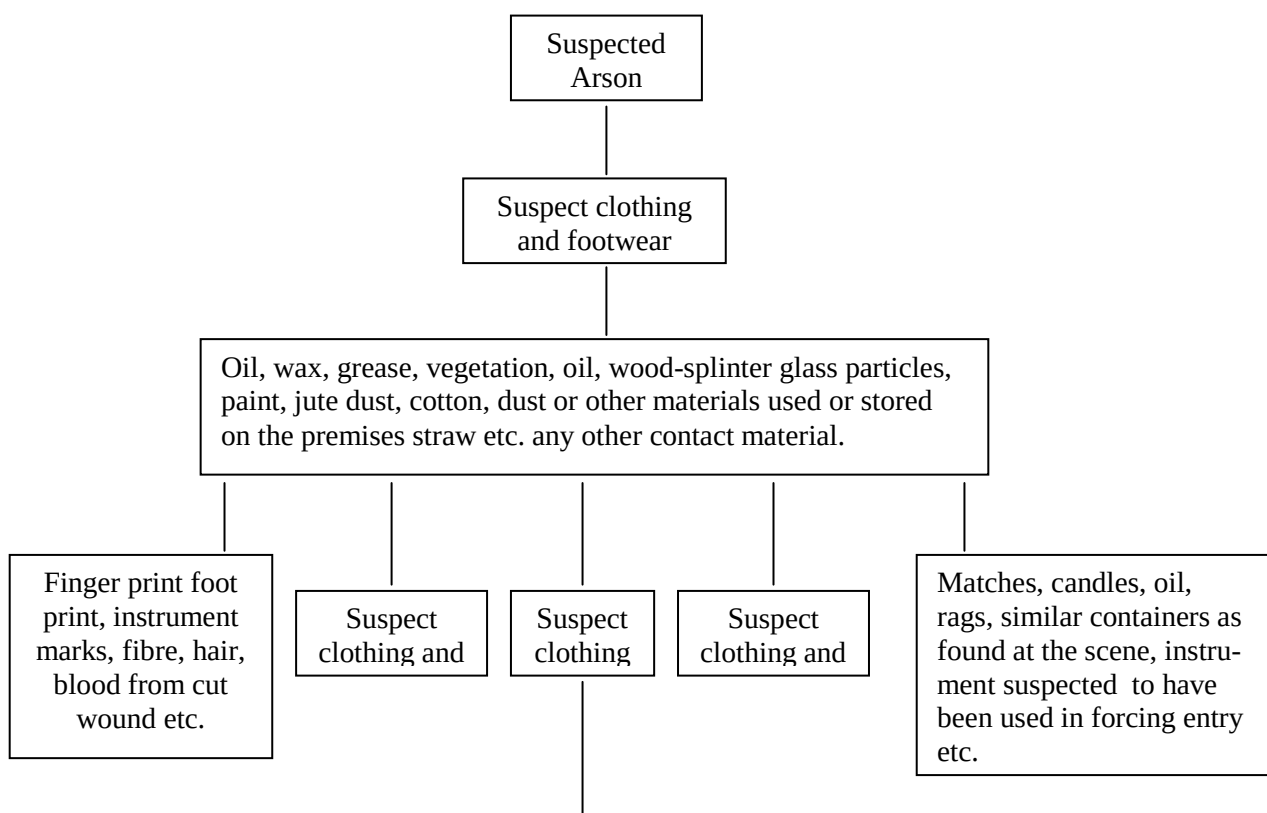
(c) *Inflammable fluids*:-Combustible liquids such as petrol, kerosene, etc. may survive heat of a fire if they are absorbed in a non-conducting solids such as search,. debris etc. If the use of combustible liquids is suspected, search should be made near the region of origin for and trace of such samples.

If any material is found which is suspected of having been soaked in petrol, benzene paraffin, etc., it should be put at once into a wide-mouthed bottle or a jar with a tightly fitting cork or lid. Containers suitable for such samples are large clean glass jars or biscuit tins. If this is done it may be possible to collect by distillation the inflammable matter and identify it by laboratory tests since recognition merely by sense of smell is inadequate. If the precaution of bottling up such an exhibit is not taken, the matter may have volatiles away by the time the exhibit comes to be examined In the laboratory.

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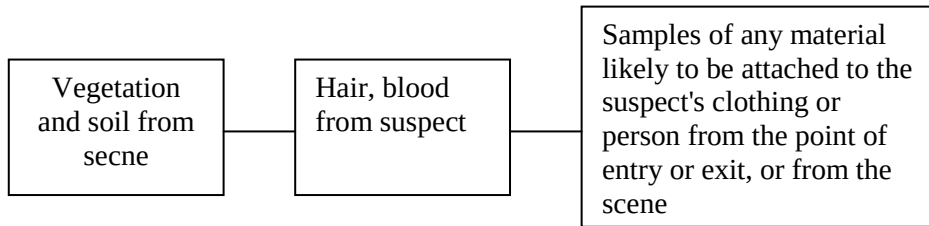
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A chart indicating the type of material to be sought has been designed to assist the Investigating Officer in the collected of physical evidences in suspected arson cases:-



Matches, candles, oil soaked earth, wood, oily rags or other goods, tin bottle or other containers, charred paper, any foreign material, long-fuse, trailable fireworks, etc, sample of unburnt or partial burnt materials, chemicals, cigarette or bidi ends in the debris and residues.

Controls :



Why necessary : If the person suspected to have committed arson has injured himself during the process of entry it is likely that some hair and blood belonging to the suspect may be found at the scene. If controls are collected from the suspect and compared with the hair and blood found at the scene, it may be possible to apply in cases where the premises is partially burn and not completely gutted.

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APPENDIX IV

RULE 14 (3)

Control of Traffic

" Traffic" means passing of foot passengers and conveyances along a public thoroughfare. One of the important civil duties which a Police Officer is called upon to perform is to control the traffic in the streets. The object of this is to prevent harm to the lives and property of the public caused by accidents in the streets. The power to control traffic in the streets is vested in the Police Officers in this State by section 67 (a) of the Bombay Police Act, 1951.

The traffic in the streets can be divided into three classes. (1) Vehicular traffic, (2) Pedestrian traffic and (3) Horse or animal traffic. The vehicular traffic may be sub-divided into (1) slow moving and (2) fast traffic. The former includes bullock carts, handcarts, etc., and the latter, motors, push bikes, etc.

In order to control the traffic efficiently it is necessary to know the "Rule of the Road." It must be remembered that the first and the foremost right to use the road is that of pedestrians. The Police officer on traffic control duty should, therefore, see that the; drivers of vehicles and riders on horses do not go. At an excessive speed to endanger the safety of the pedestrians and in the case of accidents the burden of proving that he was not in error or that he was not guilty of a contributory negligence falls on the driver of a vehicle or a rider of a horse. The rule of the road is briefly as under

(1) For pedestrians going by the side-walk, pavements, etc., the rule is that they should keep to their left and overtake the pedestrians going the same direction by the right. On roads, they should go by their right and overtake by their left.

(2) For vehicular traffic:-

(a) Drive by the left or the near side of the road.

- (b) Vehicles to meet with driver's right arm to driver's right arm.
- (c) Overtake a vehicle going in the same direction by the right or off side.
- (d) A vehicle is said to be under town control, when it can be stopped in about 30 feet ahead and under close control if it can be stopped in ten feet ahead of it.
- (e) While going down the hill, they should go under town control.
- (f) When turning to the right, they should take a wide curve and while turning to the left they should take a turn close to the road. In both these cases, the vehicle should be in close control. Whenever the driver's view is limited his control of the vehicle should be so complete that he can pull it up within half the distance that he can see ahead of him. While overtaking he should give proper warning and then overtake without undue delay. Vehicles wishing to return must always turn round to the right. Vehicles stopping for any purpose must do so at the side of the road facing the same direction as the traffic and must move as quickly as possible.

As regards horse or animal traffic, when riding one horse and leading another should usually be on the left or the near side so that when meeting or being overtaken by traffic the rider by keeping on the left of the road will have the ridden horse between the led horse and the traffic. The following are the traffic hand signals to be used by policeman on traffic control duty :-

(1) *To Stop*-When the traffic in front is to be stopped raise the right arm vertically at full length and to stop the traffic from behind, raise the left arm horizontal.

(2) *To release*-To release the traffic in front, bend the right arm, palm pointing behind and for releasing the traffic in the rear, bring the left arm to the front with a sweeping movement. When the traffic is heavy the following signals by light are used :-

- (i) To stop the traffic-red light.
 - (ii) To release the traffic-green light and
 - (iii) To prepare to start-amber light
- The following are the signals to be used by drivers of all vehicles:-

- (1) Halt-Hold and right fore-arm vertically, out of the vehicle.
- (2) Turning to the right.-Right arm horizontal, palm pointing to the front
- (3) Turning to the left.-Right arm horizontal, and swept to the left
- (4) Slow-down.-Right arm horizontal, palm down-wards and hand move up and down
- (5) Pass.-Right arm waved low from the rear to the front

The following are some of the points to be borne in mind by a Policeman on traffic duty:-

- (1) Traffic should not be allowed to be rowded but should be moved on as quickly as possible.
- (2) Should not smoke or indulge in conversation with others.
- (3) Should not salute, but come to attention for half a second, if traffic permits and pay the usual compliment and then go on with duty.

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(4) Should not leave the post of duty without orders of superior or except, when accident occurs or in very urgent cases.

(5) See that the slow moving traffic keeps close to the side of the road to allow speedy moving vehicles to pass on.

The following are the duties of a constable on bazar or street duty:-

- (1) He should assist the public and answer respectfully questions put to him.
- (2) Should not lose temper.
- (3) Should acquaint himself with the names and situations of various roads public places such as Railway stations, post and telegraph offices, churches, temples, residences of principal officers, etc.
- (4) Should be smartly dressed and should not carry cane. When not controlling the traffic should move up and down. Should not smoke or sit down or enter into conversation with the public or each other.
- (5) Be able to read and write English numerals and be provided with a note book and a pencil
- (6) See that the rule of the road is properly followed. ';
- (7) Pedestrians and perambulators should be persuaded to go by the side walks or pavements.
- (8) Render assistance to ladies, children, old and feeble pedestrians wishing to cross the road.
- (9) Should not catch hold of bridles of horses either to stop or back them except to prevent accident and stop all vehicles on one side of the road to avoid obstruction to the traffic.

In cases of any accident the constable on duty should note:-

- (a) The name and addresses of the by-standers who witnessed it.
- (b) The side of the road on which the driver was travelling prior to the accident and the direction "" which he was going.
- (c) The width of the road and the condition of the surface, etc.
- (d) What sign the driver gave of his approach by horn, bell or voice, etc.
- (e) If the accident happened after dark, whether the driver was carrying lamps in accordance regulations.
- (f) Whether the other party was on the proper side of the road and what light or lights he w" showing.
- (g) Identifying numbers and description of vehicles with names and addresses of drivers.
- (h) If the accident is attended with injury, the constable should take care that the crowd does not press on the sufferer, so as to exclude air, should see that he does not lose the property, and should render First Aid if he holds a certificate, and at once arrange to send the injured person to the hospital for treatment if serious injuries have been caused.

When inquiries are made by the senior officer regarding the accident on the spot a detailed map of he scene should invariably be prepared giving full particulars of the necessary facts showing how accident took place.

Parking.-for proper control of traffic, parking of vehicles is necessary. The object of this system is keep the vehicles together so as to ensure their being readily obtainable when wanted. Another object is to keep the flow of traffic as far as possible in one regular course, so as to minimise the risk of a block, and allow any carriage to be taken out of the park without causing confusion. This is to be carried out according to requirements and the ground is available. The following are the general principles to be followed in the allotment of space for the vehicles and other parking arrangements:-

- (1) The space to be allowed is 6.5 meters between the ranks, 9 meters road way for entrance and exist and 2.75 meters broad and seven meters long space for each carriage.
- (2) If the street is narrow, vehicles should be parked in one line and if the street be broad, in two or more lines.
- (3) One officer should be posted to look after 100 cars.
- (4) The drivers should come by the entrance and leave by the exit with the permission of the officer.

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APPENDIX V

RULE 65 (2)

List of offences to be entered in the Village Crime Register and the Village Conviction Register

A

(Offences to which Section 75, I. P. C. applies)

Indian Penal Code

Chapter XII-

All offences, except those punishable under Sections 241, 254 and 262.

Chapter XVII-

Sections 379 to 382-Theft of all kinds.

Sections 384, 386 to 389-Extortion of all kinds, except that under Section 385

Sections 392 to 394, 397 and 398-Robbery of all kinds

Sections 395, 396, 399, 402-Dacoity of all kinds

Sections 400 and 401-Belonging to a gang of thieves or dacoits

Section 404-Dishonest misappropriation of property belonging to a deceased person

Sections 406 to 408-Criminal breach of trust

Section 409-Criminal breach of trust by public servant

Sections 411 to 414-Receiving stolen property

Sections 418 to 420-Cheating of all kinds, except that under Section 417

Sections 429 to 433, 435 to 440-Serious mischief

Sections 449 to 452-House-trespass in order to commit an offence

Sections 454 to 458-Lurking house-trespass or house -breaking, except that under Section 453

Sections 459, 460-Grievous hurt or death caused in house-breaking

Section 462-Fraudulently opening a closed receptacle held in trust

B

(Other offences)

Indian Penal Code

Sections 143 to 153, 157 to 159-Rioting and unlawful assembly

Section 311-Being a Thug

Sections 363 to 369-Kidnapping

Sections 376 & 377-Sex offences

Section 461-Dishonestly breaking open a closed receptacle

Sections 489-A to 489 D-Forgery of currency notes and bank notes

Prevention of Gambling Act, IV of 1887

Sections 4 and 5-Keeping, and being found gaming in, a common gaming-house.

Indian Railways Act, IX of 1890.

Sections 126, 127 and 128-Maliciously wrecking, or attempting to wreck, a train; maliciously hurting or attempting to hurt, person travelling by railway; endangering safety of persons travelling by railway by willful act or omission.

Bombay Prohibition Act, XXV of 1949.

Section 65-Illegal import etc. of intoxicant or hemp

Section 66-Illegal cultivation and collection of hemp and other matters

Section 67-Alteration or attempting to alter denatured spirit

Section 68-Opening etc. of common drinking house

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Appendix V

Section 69-Illegal import etc. of mhowra flowers

Section 70-Illegal import etc. of Molasses

Section 71-Selling molasses at price exceeding fixed price

Section 72-Failure etc. of warehousing opium

Section 75-Inciting or encouraging certain acts frustrating provisions of the Act.

Section 81-Attempts or abetment of the above

Section 83-Conspiracy to commit any of the above mentioned offences under

Section 84-Being found drunk in any drinking house.

Section 85-Being drunk and of disorderly behavior

C
(Criminal conspiracy)

Indian Penal Code.

Section 120B (I)-Criminal conspiracy to commit any of the offences mentioned in A, B and C above

D
(Security proceedings)

Criminal Procedure Code

Sections 109 and 110-Bad livelihood

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APPENDIX VI

Rule 78

Rules under Section 856(5), Criminal Procedure Code in respect of persons ordered to notify their residence.

When a Court or Magistrate makes an order under Section 356 (1) of the Criminal Procedure Code that the sentenced person's residence and any change of or absence from such residence after his release shall be notified, such Court or Magistrate shall inform the Superintendent of the Prison in which the

convict is or is to be confined, by attaching a copy of such order to the warrant issued under Section 418 (1) of the Code. The Superintendent of Police of the district wherein the offence for which the offender is convicted was committed shall also be informed of the order passed by such Court or Magistrate.

2. On the release of the convict in accordance with the rules for release of prisoners made by the State Government under clause (t) of Section 60 of the Indian Prisons Act, 1894, the convict shall be taken by a Police Officer authorized in this behalf by the Commissioner of Police/Superintendent of Police to the officer-in-charge of the Police Station at the headquarters of the district. The officer-in-charge of that Police Station shall thereupon produce the convict before a Magistrate authorized by the District Magistrate or the Sessions Judge as the case may be in this behalf. The Magistrate shall question the convict regarding his intended place of residence and explain to the convict the instructions which the said convict is bound to observe as well as the penalties attached to any infringement thereof. After satisfying himself that the convict understands the instructions, the Magistrate shall give the convict a copy of the instructions in Form No.5 in Appendix I, duly filled in obtain the convict's signature or thumb impression to a duplicate copy thereof and deliver the duplicate copy to the said Police Officer. The convict shall then be at liberty to proceed to his intended place of residence.

3. The duplicate copy of the instructions shall be at once forwarded by the officer-in-charge of the Police Station at headquarters to the officer-in-charge of the Police Station within whose jurisdiction the convict on release has notified his intention to reside, with an intimation of the time and date of the convict's release

4. The Officer-in-charge of the Police Station within whose jurisdiction the ex-convict takes up his residence shall note, on the duplicate form as well as on the ex-convict's copy of the form, the time and date on which the ex-convict reports his arrival at the Police Station. The duplicate form shall be retained on the record of the Police Station and thereafter the officer-in-charge of the Police Station within whose jurisdiction the ex-convict resides shall enter in the form both in his own copy and that in the possession of the ex-convict, all temporary periods of absence notified by the ex-convict before the latter's departure on such journeys.

5. Every person against whom an order has been made under Section 356 of the Code, shall report his residence and any change of or absence for a period longer than 24 consecutive hours from such residence after his release to the authorities in the manner and within the time prescribed in the instructions contained in the form.

6. If the ex-convict notifies a permanent change of residence, the officer-in-charge of the Police Station shall enter on the form in the possession of the ex-convict as well as on the duplicate copy on his own record the time and date of the ex-convict's departure as notified by him and shall then forward the duplicate form to the officer-in-charge of the Police Station within whose jurisdiction the ex-convict has notified his intention to take up his new residence

7. In the Commissionerate area, the Deputy Commissioner of Police, will perform the duties which under paragraphs 1 to 6 above devolve upon the "Superintendent of Police of the district" and the officer-in-charge of the Police Station of the head quarters of the district.

(A) Counterfeiting of Coins

(1) For a layman to understand counterfeiting in coins, knowledge of coins that have been minted and are in circulation is necessary, but for the authorities who are to deal with counterfeiting they should have a fair knowledge of the provisions of the Indian Coinage Act and the rules framed there under.

(a) "Coin" is token money stamped and issued by the authority. Each denomination is composed of a metal or alloy of definite shape, size and weight, bearing certain inscriptions or designs on its two faces.

(b) "Money" on the other hand refers to coins or promissory documents representing coins, e.g. bank notes and are accepted as a medium of exchange.

(c) "Counterfeit". Anything made to resemble a coin intending thereby to practice deception is termed "counterfeiting". Even if the imitation is not exact but deception is possible, a coin is said to be counterfeit. For the counterfeit there must be some resemblance to a genuine coin to cause deception. Even if a more superior metal/alloy issued in the manufacture of the counterfeit, the coin so made is still a counterfeit, e. g. a 25 paise bit if made of silver is a counterfeit as it infringes the Coinage Act.

(d) "Legal tender". Rupee coin is a legal tender to any extent. Half-rupee or 50 paises upto Rs.10 and other denominations up-to one rupee, provided the coin has not been defaced and in the case of silver coins they maintain the prescribed weight, i. e. 2 per cent for rupee and half-rupee and 12 1/2 per cent below standard weight for quarter and 1/10th rupee. In the case of Cupronickel, bronze or copper coin, even if the weight is decreased they are legal tender provided they bear traces of Government mintage.

(2) (a) Adoption of Pure Nickel in itself is a safeguard against counterfeiting. One of the chief advantage lies in the difficulties of production. Pure Nickel cannot readily be used for the making of small sand castings having a good surface finish. As the chief method of the Counterfeiter is to cast individual coins in sand or metal moulds, he must employ some alternative medium which can readily be detected. A distinctive feature of nickel is that it is magnetic, and no other metal which might conceivably be considered suitable for coinage has this property. Therefore, a magnet can be used as a test of the genuineness of Pure Nickel coins. Furthermore Pure Nickel is particularly free from tarnishing, any dirt or finger marks can be wiped clean with a dry rag.

(b) The only disadvantage of pure nickel coins is that they have no ring, and for centuries Indians have been accustomed to judge the genuineness of the silver coins by listening for the clear ring of him touch silver coins. There is no doubt that the ringing test diminished in importance when quaternary alloy coins with 50 per cent silver were introduced. These coins give a much higher and sharper ring than their high touch predecessors. The cumbness of pure nickel coins, however is compensated for by their magnetic properties and any small boy equipped with a cheap magnet can easily distinguish a counterfeit from a genuine coin.

(3) (i) Type of Counterfeit Coins.-(a) Cast and struck.-A cast counterfeit coin is prepared by pouring molten metal into a mould which has been previously prepared, taking the coinage impressions from - genuine coins.

(b) A struck counterfeit coin is a coin which has been manufactured with the help of dies.

(c) In addition we also meet with cast and struck counterfeit coins and plated coins

(ii) Cast counterfeits are the most easily made, and, therefore, are more usually found. The mould into which the molten metal is poured, may be made of sand, clay, powdered burnt brick, plaster of Paris or similar material and the impression on the mould is taken from a genuine coin, The mould has a small, hole or " gate " cut in the rim, through which the molten metal is poured. The metal which fills this hole and solidifies with the rest of the casting, forms a projection on the rim of the cast coin, which must be cut off to enable the rim at this point to be finished and milled by hand the security groove put in. Signs, of this hand finishing can usually be detected on the rim of cast counterfeits.

(iii) Struck counterfeits are made by striking or pressing blanks between dies of hard metal, the designs of which are engraved by hand or from dies of softer metal on which the Impressions can be transferred from a genuine coin. The blanks, thus struck, may have been first cast or cut from sheet metal.

(iv) Implements and tools employed by counterfeiters:-

(a) Small furnace with blower

(b) Rolling machines

(c) Improvised cutting presses

(d) Screw-Press Stamping Machines

(e) Instruments (improvised) for electroplating, grooving, milling, security edging and

(f) Instruments for die engraving, besides hammers, chisels, dividers, compass scales, various kinds of files, tongs, etc. .

(v) Characteristics and methods of detection:-

(i) Appearance

(ii) By touch

(iii) By checking the weight

(iv) Other methods such as ringing, magnetic, test, etc.

(4) Tests conducted by the Mint in the detection of counterfeit coins:-

- (a) Visual test;
- (b) By testing the weight of the coin;
- (c) Specific gravity;
- (d) Magnetic test;
- (e) Chemical test;
- (f) The Ringing Note;
- (g) The method of manufacture;
- (h) General execution

(B) Forging of Currency Notes:-

(1) The forgery of notes is dealt with under Sections 489A to 489D, Indian Penal Code. From time to time patterns have been changed and multi-colours introduced to render forgery difficult.

(2) *Classification of Forged Notes :-*

(a) Hand made-i. e. made by hand; involves considerable labour and the imitation cannot be good; only a few could do it.

(b) Process made-many methods of production. such as (i) Engraved Blocks; (ii) Lithography; (iii) Photography and (iv) a combination of both Lithography and Photography.

(3) *Methods of Manufacture :-*

(i) Blocks.-Common form; generally three for the obverse and two for the reverse sides of the notes. Prepared by photographic half-tone process.

(ii) Paper .-Cut to the size of notes-Quality of paper and size both differ in forged notes.

(iii) Printing Machine.-Generally, printing machines such as "Treadle" or similar ones used in Printing Presses are used for this purposes. Those who cannot afford them, use wood or similar such improvised for the job. Type figures used in Presses are used for the Series and the Number of these notes.

(iv) Water-mark.-Imitated by embossing and giving it a greasy appearance. In genuine notes this is made at the time of manufacture of paper. Any satisfactory imitation impossible.

(v) Security thread.-This is also given at the time of the manufacture of the paper. In forged notes pencil lines or ordinary threads are inserted in imitation.

(4) *Material used in forging notes :-*

- (i) Blocks for obverse and reverse sides
- (ii) Inks of different colours
- (iii) Paper similar in texture and thickness to genuine ones
- (iv) Printing Machine
- (v) Type figures for numbering
- (vi) pumice powder and washing soda for cleansing and polishing the blocks.
- (vii) Plaster of Paris
- (viii) Glass slabs
- (ix) Wooden blocks
- (x) Wax candles
- (xi) Sand papers, brush, scales, knives, scissors, screw-drivers, etc.

(5) Photographic camera and negatives etc. from which the blocks have been made including the genuine note which was actually photographed for the purpose. This can be identified by the defect in the note if any, which may have been reproduced on the negative, positives and the blocks.

(6) Detection of forged notes :-

- (i) Paper,-(a) Size;
- (b) Thickness;
- (c) Quality (crackle);
- (ii) Design.- (a) Size of printed design-no difference in genuine but a counterfeit will differ from the genuine.
- (b) Defect in design.
- (iii) Colour.-Unless prominently different, it is difficult to judge for a layman.
- (iv) Water Mark.-It is a sure test of a forged note. Often vary clear in Ultra-violet light.
- (v) Quality of Printing:-A single defect or break in lines etc. is not a sure sign of forgery; but multiple breaks may be a definite sign of forgery.

APPENDIX VIII

Rule 138(i)(vii)

Maps of the Scenes of offences

(1) The Investigating Officer is required get the map of the scene of offence prepared through the local Circle Inspector where the circumstance of the case so require. The following instructions are, therefore, issued for his guidance.

(2) Accuracy of measurements may be laid down as a first and general inviolable rule. No one should attempt to make a drawing partly from measurements and partly from distances guessed at sight. The distances marked on the map by guess work can neither be accurate nor correct and are likely to be determined before starting the drawing. A convenient scale between the paper and the ground should be found.

(3) Before actually starting the work, a general impression of the place to be sketched should be obtained. This is very often neglected and the negligence is made apparent by the very first glance at the sketch. The work of drawing should commence in a corner and continue until the whole plan is prepared. The space should be determined before starting the drawing. A convenient scale between the paper and the ground should be found.

(4) It is necessary to ascertain the precise moment at which the sketch should be made. It should not be made till the investigating Officer is in possession of sufficient information but it should be done soon after the visit of the officer to the scene.

(5) Investigating Officers some times leave the work of measuring distances to their subordinates. This should never be done. They should measure distances personally preferably by the measuring tape supplied to them.

(6) It should be remembered that the scene of offence should not be left before drawing the plan because it is difficult to remember details later and if one tries to complete the plan from memory, his memory fails and he draws the plan incorrectly.

(7) Nothing superfluous should be set down as it will only produce confusion and difficulty. The following points should be shown on the sketch:-

- (i) The place of offence itself
- (ii) The direction from which the guilty persons came
- (iii) The direction in which the guilty persons went away after committing the offence
- (iv) The exact place of entry
- (v) The place of exit or the passage by which the criminals left the scene
- (vi) The spots from where the witnesses have seen or could have seen the occurrence
- (vii) If the culprits were arrested on the spot, the places where they were arrested
- (viii) All points where traces of the crime were found i.e. any articles or weapons left behind by culprits stolen property discarded by them, foot prints, finger impressions, traces of blood, marks of struggle and marks of transport used by the culprits.

(ix) Reference should not be shown on the sketch itself but should be shown on a separate sheet of paper which should be attached to the sketch.

(8) The sketch of details of the scene of a crime is generally carried out by what is known as cross-projection method. In this method walls and ceilings are shown as if on the same plane as the floor. The cross-projection method gives an especially clear impression of the scene in cases where blood stains or bullet holes are found on walls or on the ceilings. Card boards may be used in cross-projection method. Light cuts are made along the junctions of walls, floor and ceilings, so that the card-board may be bent. The folding of the card-board will in proper relation to one another reproduces a model of the Interior of the room. One of the walls is left hanging to permit looking into the room.

(9) An accurate as well drawn sketch of the scene of crime can be used in the following manner:-

- (i) It shortens the Case Diary.
- (ii) It affords a better understanding of the fact in issue.
- (iii) It facilitates in tracing a complicated case.
- (iv) To draw a correct map means a correct securitization of the scene of the case
- (v) It helps the Judges in properly visualizing and understanding the case

- (vi) It helps in discriminating between true and false witnesses.
- (vii) It prevents the Counsels from indulging in lengthy, irrelevant and useless examination.
- (viii) It teaches neatness, promptness, relevancy, clarity and solidarity to the Investigating Officer.
- (ix) It assists the Investigating Officer while giving evidence in Courts.

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Appendix VIII

(10) (a) Sketches of offences drawn by investigating Police officers would become inadmissible as evidence in view of the provisions of Section 162 of the Criminal Procedure Code. As such, such sketches and maps of the scenes of offences should be got prepared through the Circle Inspector.

(b) All the necessary material which would be required for the preparation of the sketches of the scenes of offences should be supplied by the investigating officer to the Circle Inspector.

(c) As the cadre of Circle Inspector is divided between the Collector's establishment and the establishment of district Taluka Panchayats, it would be for the investigating officer concerned to requisition the services of the available Circle Inspector either from the Collectors or the District Development Officers, as the case may be. It would, therefore be necessary for the investigating officer concerned to ascertain either from the Taluka Development Officer or the Mamlatdar, as the case may be, who will make available the Circle Inspector for the purpose in question.

(d) The expenditure on account of travelling allowance and daily allowance to the Circle Inspectors should be borne by the department to which he belongs.

(e) Under Government Circular, Revenue Department, No.CTS-1568/88517-H, dated 4-6-1969, all the Collectors and the District Development Officers have been Instructed to ensure that the above instructions are scrupulously followed and facilities for preparation of sketches of scenes of the offences should be rendered to the Police Department as and when required.

(f) On the map, a separate sheet of paper should be attached noting therein the particulars derived from various witnesses. The exact spots on the map can be marked by words A,B,C, etc. This would enable witnesses to give their evidence with the help of the map. The Circle Inspector who prepares the map can mention the necessary particulars on the map itself by mentioning the witnesses from whom the information was derived.

(g) If practicable, the map may be drawn in the presence of the witnesses themselves so that it would enable the witnesses to explain the incidents more conveniently.

(h) When superior Police Officers visit scenes of serious offences, they should see that the plans of the scenes of offences are drawn as mentioned above correctly. They should verify the plans by rechecking the important measurements and landscapes and important points of maps.

(B. P. G. Part II Crime, dated 11-11-1953-pages 168-182, and G.C.,R.D., No. CTS-1568/88517-H, dated 4-6-1969)

APPENDIX X.

Rule No. 138 (1) (B)(ix)

Inspection of the scene of offence

INVESTIGATION

Direct Evidence

Circumstantial Evidence.

Documentary Evidence

Examination of Scene

Fibres and Fibrous	Stains	Documents	Dust	Marks	Fire-Arms	Poisons
Material 1. Textiles (i.e. traces of clothing, including individual fibres) 2. Human Hair 3. Hair-animal 4. Hairs-furs 5. Feathers etc. 6. Wood splinters asbestos fibres and fragments of various materials, packing of safes, paper	1. Blood 2. Semen stains 3. Urine sputum etc. 4. Chemical substances 5. Paint. 6. Oil, Grease etc.	1. Specimens of hand writing 2. Impressions 3. Type written documents	1. Any form of dust animal or vegetable material (e.g.) Grass, Seeds, sticking to clothes etc. 2. Portions of metals or filling in clothing 3. Glass	1. Finger Prints 2. Foot Prints 3. Tool Marks 4. Teeth Marks 5. Tyre Marks 6. Mould Marks on counterfeit coins 7. Articles cut 8. Marks indicating struggle 9. Filed out Nos 10. Blotting paper carbon etc.	1. Fire-Arms 2. Cartridge cases. 3. Bullets. 4. Wads 5. Stray pellets 6. Bullet marks 7. Sign of burning on victim and marks on clothing 8. Sign of burning of powder on hands or sleeves of suspect.	1. Vomitting 2. Purging 3. Food remnants 4. Empty phials 5. Drinking glass 6. Chemical 7. Seeds, powder etc.

APPENDIX X.

Rule No. 139 (4).

*List of permanent exhibits available in the Central Forensic Institute, Calcutta.
Central Forensic Science Laboratory, Calcutta-*

- (i) Some plant sources of blood grouping reagents.
- (ii) The skull reveals the identity of deceased.
- (iii) Histology of hair as an aid to the identification of a murderer
- (iv) Morphological features of hair.
- (v) Photographic superimposition of skull
- (vi) Did he die of snake bite ?
- (vii) Infrared photography for detecting smuggling
- (viii) Nothing is insignificant in crime detection.
- (ix) Chromatography as an aid for identification of ink
- (x) Is this transaction fair or foul ?
- (xi) Has the lady died of suicide? A piece of cloth of a 'Sari' answers 'Homicide.
- (xii) Is there any way to read the trade mark of the break linings behind the black coating? 'Yes'.
apply a little 'acetone'.
- (xiii) Even a piece of a broken bangle was found significant to detect the murder of a lady.
- (xiv) Cartridge speaks
- (xv) Homicide, suicide or accident ?
- (xvi) Did the suspect fire a gun ?
- (xvii) Infra-red reveals the charring/blackening on dark backgrounds.

Central Finger Print Bureau, Calcutta-

- (i) Scotland Yard photographing criminal in 1872
 - (ii) Use of photographs in aid of Finger Print
 - (iii) Photographs showing intricate comparisons made at the Central Finger Print Bureau.
- Government Examiner of Questioned Documents, Calcutta-*

(i) Signature Q2 is a skilful free hand imitation whereas the signature Q3 is a genuine signature of the person who wrote 57 to 514.

(ii) The ultra violet examination of Q1 reveals that the original figures of the year 1920 was altered to the existing figures 1925.

The original figure '0' was chemically erased and the existing figures 5 was written after erasure.

(iii) Signature Q6/1, Q9/1. Q11/1 and Q14/1 are traced forgeries showing damaging similarity when compared inter se. S22 is a group of 5 standard signatures of the person whose signature was limited.

(iv) D3 is a genuine signature over a revenue stamp which has been lifted from his original position and pasted in his existing place. The addition of strokes at the beginning and at the end of the signature outside the stamps and the presence of remnants of original paper fibre and other evidence clearly demonstrate this fact.

(v) Q5 is a receipt which has been fabricated over and already existing genuine signature.

(vi) All the questioned signatures on the four right hand columns are traced forgeries from some genuine model of the person whose standard signatures are appearing on the extreme left hand column.

(vii) On a reference from Allahabad High Court, Lucknow Bench the existing writing in court fee stamp was examined and found, to have been written after chemically erasing original writings, the remnants of which appeared in ultra violet rays photography mounted on the top. The existing writing was written by the writer of the standard writing marked S2

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Appendix X

Serologist -

(i) New method of grouping from blood stains.

Central Forensic Science Laboratory (Hyderabad).

I. Animal Hair	Wild & Domesticated;
(a) Wild animals	Longitudinal mounts
(b) -do-	Cross sections.
(c) Domesticated animals	Longitudinal mounts.
(d) -do-	Cross section
20 photos in total.	

II. Distribution of Diatoms in Hussain Sagar (Hyderabad)

(a) Navicula	(b) Melosira	(c) Gyrosigna,
(d) Gomphonema	(e) Cyclotella	(f) Surirella.

6 Photos in total.

III. Diatoms in cases of drowning:

44 species of diatoms 6 photos in total.

IV. Thin layer Chromatography- common inks

Spots of different colours obtained on chromatographing common royal blue, black and red fountain pen inks and red ball pen inks are shown.

V & VI. Common Vegetable poisons

Poison samples, symptoms developed after eating fatal dose and fatal period are shown

VII & VIII X-Ray Diffraction (Transmission) Pattern

- (a) Change of pattern with grain-size.
- (b) Change of pattern with stretching.
- (c) Change of pattern with temperature.
- (d) Change of pattern with deep-drawing

- IX. (a) Density gradient analysis of different soils.
- (b) Oblique illumination source for extended surfaces

(I. G. 's Cir. No. G/1927/IB/71 dated, 9-6-71)

APPENDIX XI
Rule 140(8)

Requisition of Police Dogs

1. In making requisitions for the services of a Police Dog, the following points must be borne in mind:-

(a) Requisition must be restricted to only grave and important cases where no clues are available particularly cases of murder dacoity armed/highway robbery, H.B Theft over Rs.5,000

(b) Requisitions' must be made on top priority messages whether by WIT, telegram or telephone and should be made only when there are reasonable chances of a Police Dog reaching the Scene of crime within forty eight hours of the occurrence. This is a very liberal limit fixed so that needless requisitions are not made when the dogs cannot reach within that time-limit; it must be realized that after a lapse of 6 to 8 hours, the scent starts fading off, and the chances of success in tracking become less.

(c) Requisitions should not be made when the scene of crime has been disturbed by neighbors or witnesses unless there are specific material objects handled by or belonging to the accused, which have not been handled by others, and which are likely to be a reliable source of scent for the dog to work from. It must be realized that dog's taking scent and pointing out an innocent person will prejudice the investigation and also bring the Dog Squad into disrepute.

(d) A crime that is local in character, offers better chances of successful use of the dogs than a crime when a non-local has committed the crime and gone far away, particularly by a vehicle. In a localized crime even if the accused is absconding, the dog will be able to point out his house and thereby give a clue.

(e) Scene of crime must be closely preserved, steps being taken for this as quickly as possible.

(f) The onset of heavy rains will wash out the scent, and in such cases, there is no point in calling for the Police Dogs.

(2) On arrival, the Police Dog party must be taken by the investigating officer immediately to the scene of crime, and this officer must be present throughout the dog's performance. Considerable imagination is required to think out and pursue all possible avenues along which the dog can be fully and effectively utilised

The following are some useful hints :-

(a) If the tracking takes the dog over several miles the original article from which scent was taken can be taken along in a paper wrapping, so that the dog can periodically be reminded of the scent.

(b) If the dog comes to a halt at a bus-stop or a river bank the possibility of continuing the track from each of the next set of bus-stops, or from the opposite bank of the river can be examined.

(c) The track revealed by a dog may indicate not only the route which the offender took from the scene, but also the route he took to the scene, in other words the dog may back-track and hence tracking results must be properly interpreted.

(d) If a dog points out a suspect, confirmation of the suspicion may be had by using of another dog on the same object from which the first dog took scent, or by using the same dog to take scent from another article known to have been handled by the suspect, and then seeing whether the same suspect is pointed out again.

(e) During the dog's work, the local police should keep crowds away to ensure that the scent is not disturbed, and also that the dog is not excited or distracted by the presence of crowds.

(f) Tracking may be avoided during the hot part of the day. Tracking should always be done on the lead in the orthodox manner lest the dog should go of its course due to other distractions. A wind blowing from the direction of the accused is likely to help the dog in quickly locating him. When the dog looks puzzled during tracking he should be encouraged. When going to scenes of crime the exposure of the dogs to fumes, cigarette smoke, etc. should be avoided so that its sense of smell is not affected.

(g) Among articles abandoned or handled at the scene of crime by an offender, polished object may carry finger prints, but not scent of the offender. In sufficiently strong measure, while objects like clothes, fabrics, etc. may not contain finger print but will carry strong scent. Hence where the service of both the finger print expert and a Police Dog are obtained the Investigating Officer must so utilise their services as to avoid mutual interference and loss of time. Where only one article is available bearing the scent and the finger prints of the offender, the work of the dog must be finished first, because the finger print will have to be developed later with powers that may destroy the offender's scent or provide a misleading scent.

3. The Investigating Officer who takes the assistance of the police dogs must realise that the work done by the dogs cannot be the subject of evidence in Court. There are no means of physically verifying that the scent on an incriminating object is identical with the scent of the criminal. The results of use of the Police Dogs must be treated by the Investigating Officer just like information of an informant on the basis of which he collects independent admissible evidence. The dog's work should not be let in even as corroborative evidence.

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4. The offer of a suspect to have his innocence established by showing himself to the dog taking scent from the scene of crime and showing that he was not pointed out by the dog, should not be entertained. The claim of innocence by a suspect on the ground that he was not pointed out by the dog should also not be accepted straightway. It is quite possible that the suspect's scent had been obliterated by the scent of others, and the dog was not able to pick up the suspect's scent, and hence did not point him out. The innocence of a suspect of his guilt must be determined by independent evidence.

5. The Dog Squad party must return to Head Quarters immediately work on a case is over. The officer in charge of the party should obtain a special report on the clues obtained by the use of the dog from the Investigation Officer. On return to Head Quarters the Dog Squad Sub-Inspector should enter the details of a call in the register, and submit a call report with the Investigation Officer's special report for the perusal of the Deputy Inspector General of Police, C.I.D Crime and Railways. The Performa for the call report and call register are shown in para 7 below.

6. The investigating Officer should report the final disposal of the case in which the dog was used to the Deputy Inspector General of Police, C. I. D. Crime and Railways.

7. The Call register showing all calls made chronologically for the use of the Police dogs should be in the following Performa ;-

- (1) Call number
- (2) Station, Crime Number and Section
- (3) Name of complainant
- (4) Date and time of the offence
- (5) Date and time of report 'C'

- (6) Date and time of call for the dog
 - (7) Date and time of dog's departure
 - (8) Date and time of dog's arrival at scene
 - (9) Property lost.
 - (10) Property recovered
 - (11) Name of dog used
 - (12) Brief report of the action taken and part played by the dog in getting useful results.
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APPENDIX XII

Rule 147 (3)

(1) *Blood*.- Traces of blood are found on weapons, instruments as well as on the the clothing of both injured person and assailant. It is also found on grounds, walls, furniture etc. Blood evidence may be extremely important in establishing the possibility of guilt or innocence of a person held in connection with a crime. Investigating Officer should search for blood stains near the crime scenes and on particular objects such as table tops and corners, sinks, carpets wall, mud, weapons, persons of victims and suspects, clothes on victims and suspects. In cases, where blood clots, drops of blood or splashes of blood droplets etc. are found, they should first be observed for their (a) colour, (b) conglutination and (c) shapes. Usually blood when fresh looks bright-red and when dried looks brown. It may assume any colour of the surface on which it falls.

A definite opinion can be given from the minutest quantity of blood. The Expert may on examination furnish the following information:-

- (i) whether the stain is that of blood or any other thing like paint, locted juice, etc.
- (ii) If it is blood, whether it is animal blood or human blood, or avian blood.
- (iii) In case of human blood-whether it is arterial or venous.
- (iv) Age of the blood.
- (v) From what part of the body it has come i. e. whether it ii nasal, menstrual, mouth male generative organ etc. This can be said from the presence of extraneous matters such as saliva, mucus, hair peithelial and endermal cells, sperms, pus etc. in blood.
- (vi) What is its group and sub-group ? (The groups being O. A. B. and AB and a number a sub-groups).
- (vii) The direction of flow

(viii) Determination of non-paternity

The result of blood grouping and its forensic aspects are given below :-

(a) If a suspect has got blood stains on his clothes purporting to be the blood of the victim of a murder case and if the group of it is the same as the group of blood of the victim, it is corroborative evidence of guilt.

(b) But the evidentiary value decreases much and becomes almost nothing if the blood of the victim and the suspect belong to the same group.

(c) In the determination of paternity of the group of the child, the mother and the suspected father are all exactly known, it is possible to state that the suspected father could have been the actual father. Thus, it is never possible to state that he is the father but it is some times possible to state definitely that he is not,

(d) The following precautions should be taken when sending blood for examination.

(i) Each specimen should be sent separately and all articles should not be put in one box

(ii) Blood should not be sent on glass slides as the serum is not absorbed and preserved for the origin. Clean cloth or good blotting paper may be used for the purpose.

(iii) When blood is found on leather articles, only the superficial layer should be taken with care otherwise the blood will not give proper reaction.

(2) Semen.- Stains of semen may occur in rape, sex murders, sex offences of other kinds (sodomy and bestiality). The seizures of clothes must be made immediately because subsequently washing whether knowingly or unknowingly may destroy evidence. The most common parts of wearing apparel carrying such stains are under-wears, night gowns, chemises, pyjamas, saris, dhoties, salwars, kurtas, blouses, slipers, shirts, trousers, stockings, petty coats, handkerchiefs etc. Besides wearing apparel search should be made for it in bed sheet bed covers, floor carpets, towels, wash sinks, etc. The genitals of victims and assailants should be examined by doctors with their consent.

Forensic value of semen.-(a) The detection of even one entire spermatozoa is quite sufficient to prove that a stain is semen.

(b) Even semen without sperms can also be tested in the laboratory by applying different tests.

The Investigation Officer should take the following additional precautions in packing and transport of semen stained exhibits.

(i) Thoroughly dry the garment or other material containing semen.

(ii) Do not fold or twist the cloth on the stain portions as otherwise, the stains being brittle the spermatozoa will lose their shapes.

(3) *Saliva*.-Human saliva is an important factor at times in the investigation of a crime. Experiment has shown that nearly 50 per cent of the population have in their natural secretions including the saliva substances similar to which are known as "A and B" in the blood groups. If in a murder case some burnt ends of cigarettes are found at the scene of the offence, the saliva may be examined in the laboratory and if the blood groups present in the saliva tally with the blood groups present in the blood of the assailant he can be connected with the crime.

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(4) Urine and perspiration also plays an important part in the crime detection and its laboratory examinations serve a good clue for connecting the crime with the criminal. Whenever possible the stains may be preserved for the examination.

(a) Examination of Urine.-

(i) Search under U. V. light.

(ii) Observe for yellow fluorescence colour in the U. V. light.

(iii) No 'starched' feel

(iv) Remove a little thread and brush it over flame and typical smell of the fumes may be had.

(b) *Examination of perspiration.*-

(i) Observe for the stains over a rather large area on garments around (1) Armpits; (2) Torso (3) Fly fronts of trousers; (4) collars etc.

(ii) Under U. V. light observe for a rather weak fluorescence.

(iii) Their positions on the garments are quite indicative of their origin. The best test is to remove a few threads of the cloth from the stained portion and heat it; the fumes will strongly give out the odour which is quite distinctive.

(5) *Paints*.-Paint chips are found in motor car accidents e.g. when the painted metal surface of the automobile comes in contact with either inanimate or animate objects like lamp-posts, other moving stationery

vehicles against animals and human beings etc. These should be carefully collected in order to make possible a future microscopic and spectrographic comparison by an expert for colour, sequence of the layers, constituent elements of flake of paint at the scene with the control samples of the suspected vehicle. The paint flake found on the road should be preserved intact since it may be possible latter to show that the flake fit accurately with others still adhering to the vehicle or to the outlines of the area of the bare metal surface. Traces of paint on tools that have been used in forcing open doors, windows or safes may be helpful in connecting the crime with a person in whose possession the tools have been found.

(6) Similarly chemical characteristics of chemical substances, oil, grease which may be found on the scene or on the clothing may be determined to indicate connection with a particular spot.

(7) Dust, Ashes, Soil, Animal and Vegetable material i. e., roots, leaves, grass, seed etc.-There are different kinds of dusts at different places and so from an analysis of the elements forming the composition of dust during investigation, it is possible to find out the trade and occupation and locality of the person who might have left it there. Similarly if the same kind of dust as is found at the scene of offence is found the garments, his visit to that place and presence there can be deduced. Thus any apparel left by the culprit at the scene of offence may provide useful clue to its owner and eventual detection of the case. Dust and dirt which are in or on the suspects apparel, shoes, hair, under the nails or in fissures or on weapons or tools may give some clue as to where the suspect has previously been or what he has done. The possibilities of dust analysis should be sufficiently exploited by the Investigating Officers. Microscopic examination of ashes, soil, seeds etc. also provides an useful data in the detection of crime. The presence of pollen grains from a certain plant may furnish corroborative proof that a person has been in a certain vicinity.

(8) *Hair*-(i) Hair is so important as physical evidence that whenever and wherever possible efforts should be made to collect it. After collecting and observing the legal formalities, it should be sent to the laboratory for examination.

(2) Resistance offered by victims in violent crimes always bring out certain clues like hair clutched by victims, pubic hairs found matted with semen on the genitals of the assailants and victims in rape cases, wd hairs clotted and matted with blood on cutting, biting, types of weapons, etc. are frequently found at the scene of crime.

(3) The following precautions should be taken for collection, preservation and transport of hair found as clues.

(a) if hair is found clutched by the victims in murder cases-(i) describe the position of hair where- found i. e. between the individuals fingers etc. and remove it in the presence of the witnesses; (ii) it should be then put in a clean bottle free of moisture and other foreign contents, label the bottle, seal it and send to the Forensic Laboratory

(b) In cases of rapes, bestiality, sodomy, etc. (i) the foreign hair found on the genitals of the victims and the suspects should be removed by the medical officer examining them (with their consent) and then sent to the laboratory; (ii) Hair found struck with blood or semen or other greasy and sticky substances should never be removed by forceps. If they are on moveable and transportable articles, the articles themselves should be packed and sent to the laboratory. If, however, they are on immovable surfaces, they should be removed with great care so as to effect perfect protection against breaking them. (iii) Hair and fibres lying loosely on the surroundings of the scenes of crime can be removed by means of a vacuum cleaner; (iv) In order to obtain significant results from the Expert, the Investigating Officer should not clean the hair as the adhering duct may indicate the unknown persons vocation.

(4) The-Wallowing deductions may be drawn by the Expert from the deformations of hairs under microscopic examination.

(a) If the head of a person has been hit only once with a hatchet or an axe there are seldom deformation is on the shaft of the hair In the long direction but It can very often be broken In the -

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(b) The presence of Sharp bend or breaks in the middle of the hair indicate the use of blunt weapon.

(c) If both ends of hair are cut, it implies the use of sharp cutting weapon.

(d) From the length of hair, the probable part of the body may be determined if the hair is straight and of uniform diameter, it could be said that it comes from body hair.

(e) Thus deformation caused by shooting, burning and scalding may be determined in the laboratory and some times very interesting conclusions 'can' be drawn from the results.

(9) *Tooth impressions*.-Marks made by the teeth may be found on the skin of the victim in rape and sex murder cases. In other crime evidence of tooth marks may be found in food and miscellaneous articles. Traces caused by teeth, i. e. wounds caused by biting, tooth, marks on pens, pencils, cigarette ends, pipes, etc. prove of great help at times in criminal investigation. A direct plaster cast of the marks may be made by dipping the object in film plaster of parts solution and allowing it to remain there until the plaster hardens. In perishable articles of food the drying process may obliterate or distort tooth impressions. This may be prevented by keeping the substance in a 1/2 per cent

solution of formalin until a cement cast be made. A knocked out tooth provides a corroboration to the evidence against a car lifter when it fitted the gap in his lower jaw according to medical opinion.

(10) Tool Marks.-The identification of tool marks is useful in burglary cases and the technique for bringing out microscopic evidence in such cases represents one of the most valuable aids to the Police science. The most commonly used casting method consists of pressing a piece of plastering against the trace. Before its application the plastelina should be kneaded in the hand until it becomes soft. In order to prevent plastelina from sticking to the trace it is generally moistened with water, although quart powder is recommended for this purpose.

(11) Scientific aspects of cases of accidents involving vehicles.-(a) The Police are now-a-days called upon to deal with an increasing number of automobile accidents. Science plays an important part in hit and run" cases of accidents. A serious view of these offences is rightly being taken by the Court but there are some times considerable difficulties in proving the case owing to the fact that the onus of proof is on the Police to disprove any statement the defendant may make that some one else has committed the offence. Either a missing link is supplied or a weak link is strengthened by laboratory examination of clues in accident cases.

(b) The following types of traces should particularly sought.-

(i) Skid-marks.-These marks are due to a thin layer of rubber deposited on the path by the heat of friction between tyre and roadway, when brakes of a moving car are forcibly applied. These lines will give an indication of the point at which the brakes were applied and they are also indicative of the speed at which the vehicle was travelling. The length of each skid mark should be measured and the distance recorded. The scene must always be sketched as it throws light on the length of skid marks and many other important facts such as the position of the vehicles at the time of collision, their dimensions, etc. -

(ii) Tyre impressions.-Tyre marks in mud, dirt, on wet roadway and on the surface of a tarred road on a hot day may give very valuable information such as the make or brand of the tyre, condition of the tyre, the size of the track of the car, the direction of approach and/or departure of a vehicle from the scene. If the tyre marks show evidence of unusual wear, defects or cuts which correspond with the condition of the traced vehicle they will contribute very valuable evidence. Tyre marks on the roadway should be protected against rain, traffic or pedestrians until casts can be made.

(iii) Fragment of glass.-Pieces of glass from the damaged head lamp, side mirror, windows or wind. screen are very often detached from the automobile by the force of impact and even in quite minor accidents the glasses of side lamps are smashed. Fragments of glass from the " scene" should be collected and carefully preserved. A note should be made of the exact spot where they are found. This information may suggest the speed and position on the road of a vehicle when the accident occurred. Every piece must be collected to enable an Expert to determine the type and make of the glass by piecing together of the fragments as in a jig-saw puzzle. In the case of fragments of glass from a head lamp, it may be possible to determine from this glass the type of lense and from this fact the year and the type of cars involved in the accident.

Fragments of glass found at the scene may have to be compared with glass remaining in the windows'] wind-screen or lamps of a vehicle suspected of having been involved in the accident. Such comparison; some times involve the examination of the fracture; if fracture has occurred across some characteristic' marking and fragments found at the scene befitted against portion still present in the suspected vehicle a strong link between the vehicle and the accident is obtained. But more often in such cases it is a matter of determining by means of physical and chemical examinations whether the fragments in question could have come from a suspected source.

All fragments of glass should be removed from the scene of accident, if necessary by sweeping, to prevent any confusion if another accident occurs at the same spot.

(iv) Blood, Hair and Tissue.-The presence of these substances at the as pieces of metal from a broken bumper bar, door handle, radiator emblem which have been detached from a damaged vehicle in collision. The reconstruction of the equipment may be possible by the careful collection of all pieces. It may thus provide a strong evidence to connect the suspected vehicle with the scene.

(v) Fabrics.-When a person has been actually run over by a vehicle, small fragments of cloth or fibres from the material of his garments which have been torn away by the weight of the heavy wheels of the vehicle are likely to be found in the roadway usually in the path of ' the skid marks. These traces should be collected for comparison with the similar material if found on the tyres in subsequent examination of the suspected car.

(vi) Blood, Hair and Tissue.-The pressure of these substances at the scene may indicate what evidence is to be expected in the future examination of a suspected vehicle.

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(vii) Grease and Oil.-It is gathered from the body of the victim and under part of the suspected vehicle to be compared in the laboratory.

(viii) Dirt and debris from impact.-Their agreement fixes vehicle at scene

(ix) Paint.-Paint samples may be taken and compared under microscope

(x) Cloth marks.-Much valuable evidence is some times obtained through the markings of the pattern of the fabric of the victim's clothing at the area of the impact. These impressions should be photographed against a ruler in oblique lighting to produce the necessary contrast. A comparison of the photograph with that

or a sample or cloth taken from the victim's clothing may establish a strong link between the vehicle and the accident.

(xi) Dents and scratches-Impressions such as dents, scratches etc., made on the body work or the vehicle as a result of the collision often yield valuable evidence in linking up the vehicle with the accident. These impressions should be photographed. In cases in which cyclists have been run down by cars, impressions of different parts of the bicycles on wings of the automobile are often well defined. A careful examination should be made for scratch mark made by the handle bar, pedal, nuts or other parts of the bicycle. Some indication may be obtained about the part of the bicycle which has caused the mark by placing the bicycle against the vehicle. The recency of scratches or dents, which is very difficult to establish, may be approximately determined by noting the extent of accumulation of dust and rust with relation to the weather condition to which the vehicle has been exposed.

The position of the dent is as important as its nature. Thus a damage to the head lamps and radiator grill may be caused by colliding with rear of a truck but a dent on the front of fender between the head lamps and the radiator is not easily explained if there is no accompanying damage of the head lamp and radiator at the same level.

(xii) Vegetation and soil.-Very useful evidence can be obtained from the examination of traces of these types.

(xiii) Under structure of the vehicle.-The under carriage of the vehicle should be examined for any sign of contact with the body. Thus when the vehicle passes over the victim there may be a disturbance in the grease on the under structure, caused by the contact with the victim's body and the metal portions become bright due to rubbing of the grease. This may be an evidence of such contact.

(xiv) Mechanical Examination.-If defective brakes, failure to apply brake in time or excessive speed are suggested as the cause of accident the services of an expert mechanic should always be sought for mechanical examination. It is advisable that there should be joint consultation between the expert before final reports are submitted.

(xv) Finger Prints.-The vehicle should be examined for finger prints before any other examination if its driver is unknown.

(xvi) Examination of the injured person.-Details of the nature, position and extent of injuries should be obtained from a medical officer, and the following measures should be adopted :-

(a) Any foreign matter in the wound should be preserved for the expert examination;
(b) Whenever possible attending doctor should be asked to take a sample of blood and in the case of an adult a sample of urine of the injured or deceased person.

(c) A sample of hair from the hair of the deceased person should always be taken for comparison with that found on suspected vehicle or on the clothes or the victim.

(d) If clothing which has been moist by rain or water from the burst radiator should be allowed to dry naturally and not dried by using heat before it is packed.

(12) Application of scientific aids in cases under sections 376 and 377 Indian Penal Code.-Clues that scientific aids can gather are available from :-

A. SCENE

- (1) Outdoor-Marks or disturbance in soil and vegetation
- (2) Indoor-Marks or struggle on the floor or/and bed.
- (a) Take photograph of the scene and the marks of struggle.
- (b) Prepare rough sketch map of the scene.
- (c) Collect control sample of the soil for comparison later with soil on the person or wearing apparel of the accused.
- (d) Collect semen or blood if found.
- (e) Collect cigarette or bidi ends, matches that may be attributed to the accused

B. VICTIM

- (a) Garments of victim may contain semen, blood, pubic hair, etc. and also due to must be seized and examined.
- (b) Look for scratches on the victim and exchange of hair both head and pubic.
- (c) Examine the nails for traces of blood, hair, etc.
- (d) Arrange for taking swab from the vagina or the victim and its examination in the Laboratory.
- (e) Ask doctor to examine if there is any rupture of hymen particularly if the victim is a virgin.

- (a) Scratches on his body
- (b) Tear in clothes.
- (c) Exchange of hair and pubic hair.
- (d) Presence of seminal and blood stains, dust and vegetation from the scene.
- (e) Presence or absence of smegma.

(13) *Breaking and entering cases.* -Look for the following things at the scene of crime :-

(1) Foot prints, Finger prints, Hairs, Fibres, Blood stains, used Matches Cigarette or Bidi ends Kerchiefs, Cap, Piece of paper and excrement where nuisance is committed and any other foreign material.

(2) Also determine line of approach and line of departure. Look for following things along those lines. Tyre marks, Foot prints, Fibres, Hairs, Buttons, Bidi or Cigarette ends Remnants of food and discarded booty, etc.

(3) Again fix up point of entry and point of exit and Look for following things at these points :-
Finger prints, Foot prints, Fibres, Hairs, Blood stains, Tool marks, etc.

(4) Examine suspected person's clothing and foot wear for the following :-
Soil, Brick, dust, Mortar, Seeds, Plant fragments, Carpet fibres, Paint pulty, wood splinters glass particles, traces of stolen property, animal hairs from the scene. Also examine his body for probable injury etc.

(5) Examine the suspected vehicle for: -Traces of stolen property, soil, vegetation, etc.

(6) Examine suspected tool or breaking implement for :- Paint, Wood, Brick dust, Metal particles, etc., from the scene.

(7) Control samples of any material likely to be transferred from the scene to the accused or vice versa should be collected.

(14) Places which should be examined on person and clothinr for possible clues.-Cap, Nose, Ears, Nails, Collar, Sleeves, Buttons, Pockets, Pant-folds, Shoe laces, Shoe rim, Sole of Shoe, Heaps of pant and Button folds of pant.

(15) *Fire-arms and Science of Ballistics.*-(I) The term Fire-Arms may include not only the familiar hand weapons which includes the revolver, pistol (self loading and automatic) rifle and shot gun but also (machine gun and a whole large variety of military artillery.

(2) Important features of fire-arms (Rifled arms) from the point of view of criminal investigation :-

- (a) The nature of any fouling left in the barrel
- (b) The condition of the weapon and its caliber
- (c) The riaing of rifled arms.
- (d) Any irregularities or imperfections in the interior of the barrel, particularly near the muzzle end.
- (e) The shape of the end of the striker, firing pin or hammer, with any irregularities on it caused either during manufacture or due to subsequent accident or wear. ,
- (f) Any file marks, machine marks, or other marks (cleansing marks) on the face of the breach block (bolt head) against which the b1se of cartridge is forced by the gas pressure developed on firing.
- (g) The extractor, if any
- (h) The ejector, if any

(3) The important features of shot guns from the point of view of Criminal Investigation: (Smooth barreled)

- (a) Fouling in the barrel
- (b) The con1ition of the weapon, its bore and irregularities and marks of damage (cleansing) in the chamber of the barrel where the cartridge rests

(c) Types of cartridges-Nos, weight and nature of shots that were used in such a gun

(d) Type of barrel-whether cylindrical or choked-Length of the barrel

(e) Shapes of extractors and their marks on the cartridge cases

(f) Shapes of hammer heads-whether hammerless" or hammer.

(4) Fundamentals of fire-arm examination :-

(a) Bullets

(b) Cartridge cases

(c) Injuries-entrance and exit wounds type or injuries, tattoing, scorching, singeing of hair etc.

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(a) Bullets:-

Questions on it

(a) Did a particular fire-arm fire the crime bullet ?

Comparing the striation marks to be similar or not and these are photographed (photomicrography) in juxtaposition.

(b) What was the nature of fire-arm that fired the crime bullet ?

This is actually the class of weapons. This is solved by looking into the characteristic marks on the bullet. These are:-

- (i) The number and dimensions of the lands and grooves
- (ii) The caliber use of caliber venire
- (iii) The direction of the pitch or rifling
- (iv) The shape, weight, length, jacketed or soft lead etc., of the bullet and referring to the details, supplied by manufacturers.

(v) Marks on the base of the bullet

(b) Cartridge Case

Questions on it

(a) Did a particular fire-arm fire the evidentiary empty ?

The striation marks of the breach face (bolt heads) and the firing pin marks on the cap of the case are compared with a test cartridge fired from the suspected weapon and photomicrographs are taken of those marks through the comparison microscope. If they tally when viewed in juxtaposition, it is certain that the suspected weapon was the Crime Weapon.

(b) What was the nature of fire-arm that fired the empty case?

This is solved by looking into the marks on the case as follows :-

- (i) Length, caliber, and the composition of the metal (card-board, metal etc.)
- (ii) Different types of extractor marks on the inside rim of the case
- (iii) Different types of ejector marks on the head of the case
- (iv) Whether the case has slightly raised rim or no raised rim (pistols) and groove at the base.
- (v) Whether the case has raised rim (revolver) and no groove at the base. Bore and Caliber distinguished.-In smooth bore weapons the bore indicates a conventional measurement which indicates the number of spherical balls of lead each exactly fitting the bore (from the muzzle end) that would weigh one pound. Thus 12 bore (guage) means that 12 lead balls each one fittings in the barrel would weigh one pound. 16 bore, means each shot weighing 1 oz. exactly fits the barrel and 15 of them weigh one lb. Thus, 4, 8 bored weapons are heavy shot guns, whereas, 20 bore/16 bore weapons are light weapons meant for ladies. Caliber measurement is an exact measurement indicated for all types or rifled arms which is the diameter of the hole of the barrel before it was rifled, or what is the same thing, the diameter of the barrel across the lands. The portions of the original barrel surface between the grooves are termed 'lands' and the grooves made (spiral) are called grooves. These are equal in number. There is, however, one exception-a musket is known as .410 bore, After removing the lands of a .303 rifle, the smooth bore diameter measure .410. But as smooth bore weapons are conventionally expressed by the term bore or gauge, such a measurement though caliber in nature is conveniently expressed as .410 bore.

(c) Injuries-(medico-legal problems and their solutions in shooting cases).

Entrance wound.-(i) Lacerated

(ii) Usually smaller in diameter than the projectile, rounded when striking at right angles when striking the body obliquely

(iii) Edges are invested and ecchymosed

(iv) Less bleeding than the exit wound.

{v) Surrounding scorched, tattooed and hair singed if fired at close proximity.

Exit wound.-(i) Edges everted. .

(ii) Bleeding more profuse than the entrance wound.

(iii) Free from scorching, tattooing or singeing.

(iv) May have more openings made by bone chips.

In all such cases the Medical Officer who examined the injured or deceased should be consulted for correct study and description of these injuries.

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(5) Distance from which shot was fired

(a) From an examination of wounds and their surroundings:-

Scorching, blackening (tattooing), singeing of hair prove close proximity. Approximately the distance can be judged as follows:-

(i) Scorching, blackening, tattooing, singeing and one single injury known as "rat hole" are seen in case of shot guns, when the distance is from near contact to about 4 feet.

(ii) Scorching, blackening, tattooing, singeing in case of pistols and rifles when the distance is from near contact to about 9 feet.

(iii) Absence of tattooing, singeing, etc. but several small pellet holes in case of shot patterns when distance is about 4 feet to 30 feet.

The distance also may be determined from the cone of dispersion.

(b) The District Medical Officer the Forensic Experts and the Firearms Expert will be able to give valuable advice regarding the distance from which the gun was fired and whether a particular cartridge was fired from a particular weapon. Their help should always be sought for.

(6) Case of weapon and ammunition when seized on suspicion-duties of Investigating Officers

(a) Do not touch any flat, smooth surface with bare hands-to save latent Finger Prints.

(b) Use a wire and tie it with trigger guard or corrugated grip and carry it hanging or prepare a box where it can be kept with least contact points.

(c) Note whether there is any smell at the muzzle-its intensity and nature.

(d) Do not introduce your finger either in the breech or in the muzzle.

(e) See if there is fouling (metallic or residual powders) inside the barrel and note it down in the diary.

(f) In the case of a revolver, note the condition of the chambers in the cylinder as well as the condition of the barrel.

(g) If there be a dead body with shot marks, bullet holes, etc. note also the position of the weapon in relation to the body.

(6) Restoration of filed off numbers.-(1) It is now-a-days experienced that most of the professional criminals file the numbers off the machinery, cycles, firearm³, etc. in order to keep their origin from being traced. The filed off numbers can be restored by rubbing with fine sand or emery paper and then treating the smoothed surface with one of etching fluids. The process involves three operations:-

(i) Cleaning.-The area of the number should be carefully cleaned

(ii) Polishing.-The time required for polishing depends on the nature of the surface of the number. The portion should be so polished so as to have a mirror like surface.

(iii) Etching.-For all iron and steel articles the following etching agent may be used :-

Hydrochloric Acid	80 cc
Distilled Water	60 cc
Ethyl alcohol	50 cc
Copper chloride	10 gram

The solution should be rubbed continuously until the original number appears. The process may take several hours.

(2) Due to improvements in the technique of photography, the filed off numbers can easily be deciphered by the Experts and hence if required the assistance of the Experts may be obtained.

(B. P. G., Part II, dated 11th September 1958 pages 168-182)

APPENDIX XIII

RULE 148 (3)

Items of work undertaken by the Forensic Science Laboratory

The Forensic Science Laboratory undertakes the work as mentioned below:-

(1) Physical Examination-

- (i) Car headlights;
- (ii) Broken windows;
- (iii) Electrical appliances;
- (iv) Locks and Keys;
- (v) Hair;
- (vi) Microscopic examinations;
- (vii) Orthe-stereoscopic examinations;
- (viii) Physical tests-specific gravity; refractive index, hardness, etc
- (ix) Rope, wire, textile, fabrics and fibre;
- (x) Tool and tyre impressions;
- (xi) Ultra-violet light;
- (xii) X-Ray examinations-(fluoroscopic and radiographic) ;
- (xiii) Etching deleted numbers.

(2) Personal markings for identification-

- (i) Finger Prints;
- (ii) Foot and shoe impressions-casting methods;
- (iii) Laundry and dry-cleaning marks;
- (iv) Teeth.

(3) Documentary examinations-

- (i) Questioned handwritings;
- (ii) Obliterated writings;
- (iii) Paper, ink and pencil problems

(4) Ballistics-

- (i) Comparison microscope;
- (ii) Powder residue tests

(5) Photography-

- (i) Indented writings;
- (ii) Infra-red Photography;
- (iii) Ultra-violet Photography;
- (iv) Photomicrography;
- (v) Copying and enlarging;
- (vi) Scenes of serious offences and accidents.

(6) Chemical Examinations-

- (i) Poisons;
- (ii) Liquors;
- (iii) Blood;

- (iv) Semen and other strains;
- (v) Explosives;
- (vi) Spectrographic analysis;
- (vii) Unknown specimens general chemical analysis.

(I. G. 's No. 6162-II, dated 17th August, 1955)

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APPENDIX XIV

RULE 150 (2)

Handling, Labeling and Packing of Materials found at the scene of Crime

(1) Introduction.- In order to obtain successful results from the Police Laboratory, it is essential that all Investigation Officers should know the correct methods of handling, labeling and packing of materials which they come across at the scene of crime. If this is not done, valuable clues would be lost with the result that the Investigating Officer would not be in a position either to strengthen a weak link in the chain of evidence or supply a missing link that would go a long way to bring the culprit to book.

(2) Handling.-(a) The knowledge of correct method of handling precedes the art of packing of exhibits. If handling is careless packing become useless. The general rule in handling on article is to do so as little as possible and to do it in such a way as to leave the article as nearly as possible in its original conditions As article may bear finger-prints, dust, hair etc. or may contain something which will be upset or displaced due to careless handling. Besides certain other matters like the presence of a hair or dust on a garment which ate of importance when found on the article, will be of no value if found elsewhere. A weapon like a gun handling of such an article would result in the obliteration of these finger impressions. The above principles apply equally to moveable as well as immovable objects.

(b) The temptation of picking up an article immediately on seeing it at the scene of crime should be avoided. The article should be carefully examined before touching it and it should be decided as to how best to handle it. It should be borne in mind that handling should not disturb or obliterate any trace which may subsequently prove to be of great importance:-

(c) After the preliminary examination (before moving the article) and making a record in writing of the exact spot where it was found, the article should be handling should in one of the following ways, so as to preserve finger prints or other traces thereon:-

General Rule.-Hold the article only by such parts as are unlikely to have been touched by the previous user whose finger prints may be on them

Example.-(I) A tumbler should be lifted with one finger on the rim and the thumb under the base.

(2) A piece of broken glass should be held only by the edges.

(3) A bottle should be lifted with one hand on the rim of the neck and the other hand under the base.

(4) A knife or a fire-arm should be lifted with the fingers at the end of the blade and the handle.

(5) Pieces of paper should be lifted with forceps etc. The above are some of the items that an Investigating Officer would ordinarily come across. The handling of articles would largely depend upon the circumstances of each case. Each article should be given a distinctive mark by attaching a label. This mark should never be made on the article itself.

(3) Labeling.-Each article or sample must be securely labeled so that it could be identified immediately. The label should contain particulars of date and time of seizure, Crime Number and section of the, case and the initials or name of the officer making the seizure. These labels are attached irrespective of the seizure list which require the attestation of witnesses present during the time of seizure. The label is the history sheet that helps in establishing the continuity of evidence. In addition, precautions should be taken to tie the labels in such a way as not to interfere with the examination of the exhibit in the laboratory.

(4) Packing.-(A) The Investigating Officer should ask himself whether the method he had chosen to pack an article would prevent :-

- (i) Loss during transit;
- (ii) Contamination from packing or outside sources ;
- (iii) Mechanical damage due to jolting or crushing and
- (iv) Risk of damage due to leakage, explosion, ignition etc. Each article should be packed separately and not allowed to come into contact with other articles. A responsible Police officer should be deputed to carry it to the laboratory and he should be examined in the Court as a witness to prove the continuity of evidence. If sent by post, it should always be sent by 'Registered Post' and the receipt preserved for production in the Court when required.

(B) Other precautions.-Special care should be taken to avoid the following faults :-

- (i) The use of wet or dirty containers, or those with distinctive smells or those having dirty or unsuitable stoppers.

- (ii) Insufficient protection of glass bottles or fragile containers during transit.

- (iii) The use of thin card-board boxes which cannot be securely closed and which are liable to be crushed in transit.

- (iv) The use of ordinary envelopes for powders.

- (v) The packing of several articles insecurely in one package

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Appendix XIV

- (vi) The lavish use of sealing Wax

- (vii) Contamination of one article by contact with another

The integrity of exhibits and control samples must be safeguarded from the moment of seizure up to the completion of examination in the laboratory. This is best done by immediately packing, sealing and labeling and to prove the continuity of the integrity of the samples, the messenger or bearer will have to testify in Court that what he had received was sealed and delivered in the same condition in the laboratory. The laboratory must certify that they have compared the seals and found them to be correct. Articles should always be kept apart from one another after packing them separately and contact should be scrupulously avoided in transport also.

(C) Here are some suggestions regarding suitable types of packing for typical articles:-

- (i) For clothing (with blood, semen, dust etc.).-If moist, they should be allowed to dry in natural heat under shade before packing. A note should be made at fluid stage or after clotting. Then the garments should be folded so as to place the stains as flat as possible and then wrapped in sheets of paper each garment separately. The rule is that the Expert should receive the article as nearly as possible in the original state in which it was found.

- (ii) For liquids.-Clean, dry glass bottles with narrow necks and glass stoppers should be used,

- (iii) For materials from poisoning cases.-It is the duty of the Investigating Officer to request the Medical Officer conducting the Post-Mortem examination to put each organ separately in clean wide-mouthed glass containers provided with ground glass stoppers. Metal containers or lids should never be used. No disinfectant must ever be added to the organ. The stoppers must be securely sealed by the Medical Officer. In cases of suspected arsenic poisoning, cuttings from nails and hairs should be forwarded. From the scene of Crime any stains on floors or fluid in open receptacles such as tumblers should be preserved for laboratory examination. For larger samples of dry material, clean wide-mouthed bottles with good stoppers should be used.

- (iv) For small sample of dry material.-Clean envelopes could be used provided they could be completely sealed to prevent leakage of contents, Clean test tubes with rubber stoppers are quite useful for packing powders, dust, etc., provided proper care is taken to prevent damage during transit. For larger samples of dry material, clean wide-mouthed bottles with good stoppers should be used.

- (v) For documents,- They should be enclosed between sheets of board or similar stiff material which will prevent folding. If the opinion as regards the writing on burnt paper is required, it should be collected very carefully. The burnt paper should be removed in the following manner. A glass sheet should be held in the left hand, keeping the sheet as near the paper as possible and the burnt paper should be gently blown over to the glass sheet. The burnt paper should be then moistened with fixative such as glycerin. Then with utmost precaution the burnt paper should be flattened and another glass sheet placed on the top, so that the burnt paper is pressed between the two sheets, and the whole should be placed in a wooden frame and sent to the Expert.

(vi) Sometimes the Investigating Officer may come across putrefied dead bodies or parts of a human body that may have to be transported over long distances for a Post-Mortem examination. Sprinkling common salt freely underneath and all over the body and not exposing the body to the sun may help preventing further rapid putrefaction and decomposition. Another method is to put sufficient quantity of powdered charcoal next to it and a sheet wound round it. In the case of parts of human bodies keeping them immersed in spirit, if available, would help to preserve them for a long time. Clean containers with air-tight lids should be used in such cases.

In line, it should be remembered that when special containers or packing materials are available at the scene of Crime, the Investigating Officer should bear in mind the general principles explained above and use other suitable devices, readily available. Every container should show on its outside, particular such as case No., Section and the source and all knots and fastenings should be sealed with distinctive seals.

(D) Identification letters.-Each article or batch of articles for examination should be accompanied by an identification letter in a separate envelope which may be taken by the messenger himself or sent by post. This "envelope should bear on the outside, some means of connecting it with the identifying marks on the parcel containing the article to which it relates. This will facilitate work in the laboratory. The identification letter should set out the name of the Police Station, No. and Sections of the Case, sample seals used in packing, with a brief description of the case, the circumstances under which the recoveries were made and the reasons for sending the same for examination in the laboratory. This will again save much of the valuable time of the persons working in the laboratory.

(C. D. T. S. Notes)

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APPENDIX XV

Rule 152(3)

Instructions for sending material to the Director, Forensic Science Laboratory, Ahmedabad

It is necessary to follow uniform and proper procedure in submitting medico legal material to the Director, Forensic Laboratory and the Chemical Analyzer to Government, so as to avoid confusion and duplication of work and the delay in testing and reporting the cases sent there. The following instructions should be invariably followed:-

- (1) The forwarding officers should give proper and full postal address with the District on all their correspondence
- (2) A separate forwarding letter should invariably be sent for each separate case if a separate certificate in each case is required, otherwise only one certificate will be issued.
- (3) All communications addressed to the Forensic Science Laboratory should be in English.
- (4) The forwarding letter should contain full description of the articles sent including Crime number and I. P. C. Sections.
- (5) Every exhibit should be properly labeled showing clearly the outward number of the forwarding letter and the Crime number so as to tally with the description given in the letter.
- (6) All exhibits should be properly sealed with sealing wax and impressed with official device and not with a coin, buttons, keys and other similar common device. Exhibits bearing only paper seals with or without Panchas signatures on them and those which do not bear proper device on their seals will not be considered as sealed samples. In addition to the Panchas paper seals, if any, there must be official seals with sealing wax.
- (7) A copy of the seal used in sealing the exhibit should invariably be sent with each forwarding letter
- (8) Viscera, vomit, urine, blood and slides which are collected by Medical Officers themselves should be sent by them to the Forensic Science Laboratory with a Police Constable of the Police Station concerned.
- (9) Charas, Bhang, Ganja, Opium, Liquor, Wash, Blood-stained and semen stained articles should be sent to the Forensic Science Laboratory direct by the Police Sub-Inspectors under their own seals and forwarding letters. It is not necessary to send them through the Medical Officers, Civil Surgeons, Superintendents of Police or the Magistrates.
- (10) Full history of the patient should be given in all poison cases as no tests can be done in poison, cases without such information.
- (11) Printed form No. C. M. 24 e. II should be used for sending urine, vomit, blood, etc. and No. C. M. 23 e. I for sending viscera only.

(12) Constables deputed to the Forensic Science Laboratory should be instructed to appear there in uniform and with proper identity. They should be given detailed instructions as to the number and nature of articles they are required to bring back with them.

(13) The Constable who brings to the Forensic Science Laboratory a Standard Viscera Box should be instructed to take it back with him. When such boxes are sent by Railway parcel the nearest Railway Station to which they are to be sent back should be stated.

(14) Exhibits are returned only when the Constable brings with him a letter of authority in which, this office certificate number and date is clearly mentioned otherwise it is impossible to search out the samples. Exhibits are returned only after certificates are issued.

(15) Such exhibits as viscera, vomits, blood, urine, etc. are used up in analysis and are never returned. Other exhibits should be removed from the Forensic Science Laboratory within 15 days from the date of issue of the certificates otherwise they are destroyed: There are no facilities at the disposal of the Forensic Science Laboratory to return exhibits either by Post or Railway Parcels.

(16) Railway parcels meant for the Forensic Science Laboratory should always be sent Home Delivery Paid ".

(17) All blood-stained articles pertaining to a particular case should be sent together at one time and not in installments or piecemeal. This is necessary not only to avoid confusion and duplication of work but also to avoid unnecessary extra payment by Government as the Serologist at Calcutta has to be paid again the sum of Rs. 25 for the left over articles.

(18) Receipts of letters and articles sent to the Forensic Science Laboratory are acknowledged only if the Constables bring with them receipts in the following form. No other receipts are issued.

Date of Letter Outward No. of Letter. To No. of P. C. Signature.

(G. C., H. D., No. FSL - 1458/63052- V, dated 1st July 1958)

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APPENDIX XVI

Rule 161 (4)

Examination of foot-prints.

The art of identifying foot-prints is not so highly developed as to render identification a conclusive proof in Courts of Law, except where the papillary ridges are clearly marked and can be photographed and examined in the same manner as finger impressions. Nevertheless, as a practical aid in the tracing and identification of criminals, much use can frequently be made of properly recorded foot-prints.

(2) There are four methods of recording sunken foot-prints in common use:-

(1) in plaster; (2) in wax; (3) by tracing on glass; and (4) by photography. Decision as to which method to employ will depend on the following conditions:-

(1) Plaster is expensive, is the hardest to use with success, but produces a permanent record.

(2) Plaster and wax can be used only if the print is on a substance soft enough to leave a sunk impression of the foot.

(3) Wax is cheap and easy to use, and the same wax can be employed again, when the need for the record is past. Wax, however, can be used only where the weather is cool enough to allow it to harden, and it must be preserved in a cool atmosphere.

(4) Tracing through glass is comparatively simple, but needs much care; if the tracing is made with the proper technique, it is of considerable value.

(5) It is desirable that all foot-prints should be photographed before attempting to make casts. The photography has a distinctive advantage over the preparation of casts, that the risk of accident is not present. The photographs of the foot-prints are taken with a camera in a vertical position above the foot print, supported by a reversible tripod. A scale graduated in centimeters and stained black should be placed before the foot-print and in the same level if possible. Due to the advancement in photography and the improvement of the miniature camera, foot-prints are accurately photographed on film of motion pictures size and subsequently enlarged on natural size.

(3) *Plaster* :-Plaster of Paris is the best medium for making casts of foot-prints. Plaster of 'finest grade' should be used. The Plaster is readily affected by the atmospheric conditions and as such the tins containing the Plaster should be kept airtight. A good reproduction is obtained when the impression is clear as in damp clay, dust, etc. The following procedure should be followed in making the casts:-

(a) The impression should be surrounded by a narrow wooden or metal frame. The frame should be big enough to cover the whole foot-print, leaving some space on all sides. The wooden frame can be fixed with hinges and hooks, while the metal one with jem clips. The metal frame is much preferable than the wooden one. However, clay or mud may be used for the purpose of preparing a contrivance for casting the foot-print in the absence of the frame.

After having selected the proper frame, the same should be placed over the foot-print and properly adjusted. Then it should be pressed gently inside the surface. This serves as a precaution in not allowing the plaster to flow out through the sides.

(b) It is always preferable to prepare the surface of the foot-print before the Plaster cast is made. Now, if the foot-print is in mud or snow, a thin layer of Shellac solution should be spread over by means of a sprayer. Care should be taken to keep the sprayer at a distance of about 90 cms., so as not to disturb the surface. The Shellac dries within a few minutes. After this a thin layer of talcum powder should be shaken over the foot print by means of a thin cloth like handkerchief etc. The process should be repeated alternatively until a surface becomes sufficiently hard enough to receive the Plaster without disturbing the originality of the foot-print. If the foot-print is in dust, fine sand or other similar soft material, a thin coat of shellac solution should only be used, by spraying the same for about two minutes.

(c) After the surface of the foot-print is prepared as mentioned in paragraph (b) above, the mixture of Plaster of Paris should be prepared. About 20 Oz. of Plaster is generally required for one foot-print. One pint of water should be taken in a trough and the Plaster should be sprinkled over the water with a big spoon or any other convenient article. The Plaster should be allowed to settle at the bottom spontaneously. Enough quantity of Plaster should be added until the water is unable to absorb any more and a delta is formed in the centre. Then the mixture should be stirred thoroughly so as to form a uniform mixture of the Plaster. Care should be taken not to make the mixture too dilute or too thick. Then the mixture should be at once poured very gently on the surface, starting from one corner with the aid of the spoon. When a layer about 8 m. ms. thick has been formed, the portions of twine, sticks, twines wiregauge or similar material should be put for reinforcement. The reinforcement material should be put very carefully and without pressure so as not to obliterate the bottom of the print. If the sunken print is filled with water the plaster powder should be directly sprinkled over the surface without preparing the solution. No stirring should be effected in this case. It should be remembered that one should be quick during the process as the Plaster hardens very quickly. A sure sign of hardening of Plaster is that it gets warm to touch and then it is fit for lifting.

If rapid hardening is required a teaspoonful of salt should be added while preparing the mixture of the Plaster and when slow hardening is required a teaspoonful of sugar should be added at the time of mixing Plaster with water. It should be borne in mind that piecemeal preparation of the mixture of Plaster with water frustrates the object.

(d) At this stage, Crime No., Section of the offence, the date and place of the cast prepared, whether right or left foot, the Initials or the signatures of the panchas and the Investigating officer the direction etc. should be written on the cast either by a copying pencil or with a pointed material. Then the cast print should be lifted carefully and should be cleaned under a gentle flow of water. The cast then will be ready for examination and comparison.

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(4) Wax.-The impression is first covered with a thin sprinkling of French Chalk (which, if it cannot be locally purchased, can be obtained from any motorist) and along the outline of the impression a thin line of red "Kunku" or any other colored powder should then be sprinkled. (This last is not essential, but it will stick to the plaster and show the exact outline of the impression, which may not be quite clear in the cast.) The wax is then melted either into a tin or directly into the impression, and poured into the impression gently and with great care so as not to disturb the dust or mud on which it falls, but quickly enough to let it take the exact shape before it solidifies. The whole impression should be filled, and the cast should be at least one-fourth inch thick at its thinnest. To secure this, it may be necessary (and especially if the impression is on a slope) to build a little wall of brick or wood or other smooth substance round the impression to prevent the overflow from running off downhill. The impression can be surrounded by a tin frame as mentioned under " plaster cases " above.

When the wax has hardened, it should be removed and washed. Great care is to be taken not to alter the shape of the cast in removing it. It should be removed with the surrounding earth which is then carefully washed away from it. The cast should not be removed till the wax is quite cold and hard. Ordinarily, tallow candles may be used, two being enough for the ordinary Impression by holding the flames of one under the other in turn. .

To enable the wax to harden, it should be shaded from the sun and, if the weather is very hot it may be necessary to cover the impression and postpone the recording of it till night. When the cast is taken it should be kept in cold water, If the weather is hot; otherwise It will lose its shape. When the necessity of the cast is over, the wax should be prepared for use again. .

(5) Tracing through glass.-To make comparable impression (illustration appended) it is essential to fix a base line and a perpendicular to guide the untrained eye. The true axis of the foot makes the most convenient base line, and this axis is marked by a line which passes through the centers of both the "big and the "heel". This base line should, therefore, whenever possible, be taken; In Imperfect Impressions may not always be possible. On this line a perpendicular has to be dropped. The best is the one which, first touches the lowest edge of the "little toe".

It is further help to the eye, if the impression, when drawn, is shown on sectional paper; this paper, having heavy lines to delineate the centimeters, and faint lines the fraction of centimeter, shows up the characteristic with very marked distinctness.

The impression to be traced should be covered with a glass slab in thin frames with low legs at the four corners so arranged as to raise the under face of the glass about 1 Centimeter above the surface of the ground. Two lines should first be painted on the underside of the glass to represent the base line and the perpendicular. In fixing the glass over the impression and before starting to sketch the impression the base line should be placed in correct position, i. e. so as to run from the middle of the big toe to the middle of the heel and the vertical line should run so as just to touch the lower edge of the little-toe impression.

The sketching in of the profile of the foot is best done with a water color brush (No.5 convenient size) and some dark water color. Great care has to be taken to have the eye directly over that portion of the impression that is being painted; otherwise, refraction comes in and an inaccurate impression is made. The only difficulty is to watch the point of the brush whilst the eye is on the impression. The following plan has been found satisfactory for a right-handed man:- Let him keep his eye on the edge of the impression he is painting and place the brush in a sloping position, point inclined to the left, on the slate, and move it along so that the left edge of the line he makes runs directly over the edge of the impression he is tracing. When this method is adopted, it will not matter how broad the line is made, for only the left edge of it will have to be taken into account.

Having sketched the whole profile, the next thing is to paint in all creases, cracks etc. and this should be done with all the accuracy possible, once again taking care to have the eye directly over the crease that is being traced.

When the copy is complete, the slate should be kept in a vertical position and the painting traced off on the tracing paper, which can subsequently be pasted on to sectional paper, as lines painted on glasses with water color can be easily washed off with water. This tracing, having been signed by two respectable witnesses, who should have been present throughout the operation, and by the drawer, can be sent into the headquarters office so that no question of the bona fides of the investigating officers can be subsequently raised.

As regards comparing the impression, when two impressions are being compared with each other with the object of finding out if both have been made by the same foot, one thing must be clearly understood. They are impressions of the same foot, they will agree in all essential points and there will be no points of disagreement. If there are points of disagreement, and these have not obviously been caused by some peculiarity or irregularity of the ground or by some accident, it should at once be admitted that the impressions are those of different feet. If the soil is soft and the walk is energetic the probabilities are that the impression will appear slightly shorter (as well as broader) than the foot which made it, because the heel, after having dug in deep will rise while the toes dig in deep, and the sole will present, as it were, a concave surface to the soil. The impression caused by the foot of a man standing can never look just like that of a man walking, and this is an important point to remember when the foot-print of a criminal walking towards or away from the scene of the crime has been found. If he is subsequently traced, and it is wished to compare his foot-print with that found on the scene, he must be made to walk unconsciously in much the same manner, over much the same kind of ground, which must be in the same condition. The word "unconsciously" is specially emphasized, as a man can materially change the look of his track, if he is thinking of what he is doing.

It is quite useless to try and identify a track as the impression of any particular person's foot by measuring its length. The only practical way is to compare the impression supposed to have been made by him with one known to have been so made.

(6) Photography.-This is dealt with in paragraph 2(5) above. Dusty feet leave excellent impression on any smooth surface, such as polished wood, and so photographic aid is sometimes of value in crimes in well-furnished houses.

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A good photograph, which shows up ridges, clearly is as valuable as finger-impressions. It is more useful to prove identity than actually to indicate a clue.

(7) *Recording of Surface Foot-Prints.*-Surface footprints are of two types. One made with dust, ash, charcoal powder, etc., on the hard, smooth surface and the other made by removing a thin layer or collected on floor, furniture, etc.

These foot-prints can be recorded by (1) tracing on glass sheets, (2) photography, and (3) by lifting on sensitized surface of photo-films or photo printing paper.

As regards (1) and (2) above, the process given for the same for sunken foot-prints should be followed.

Lifting on photo printing paper-Bromide paper utilised for photo printing should be used for the purpose. White paper will be required for black or colored prints and black paper for whitish prints. Bromide paper available in the market is generally white. It should be developed without exposure to light for getting white paper, and for getting black paper it should be first exposed to light and then developed in the developer. This can be done by any photographer. These developed papers should be preserved for use in appropriate cases.

When a surface foot-print is found at the scene of offence the above said developed paper of appropriate color should be taken. It should be immersed into clean cold water, to which few drops of liquor ammonia is added for five minutes. If liquor ammonia is not available, a spoonful of Borax powder and about 8 to 10 drops of glycerin should be added to clean cold water taken into a tray of appropriate size. If this is also not available mere clean cold water will also serve the purpose. This process makes the

bromide paper more sticky. Take the paper out of water after five minutes and remove the extra moisture 'y fine blotting or by hanging it with a clip. Rough blotting should not be used as its fibres stick to the paper. After removing the extra moisture put that paper very gently on the print keeping sticky surface down. Roll with a rubber roller over it in uniform movements and pressure for some time. Then raise me comer of the paper and lift it smoothly in one motion. Allow it to dry and then write C. R. No. Section, Date, .Place, distance from fixed object, right or left, foot, etc., on it and make initials of panchas nd the Investigating Officer, on the other side of the paper.

The whole print comes up on the paper and it will be a mirror image showing right foot as left and left as right. Use of transparent photo film can give the same image when viewed from the other side.

This process will be useful only on smooth surfaces, rexin, oil cloth or oil painted surfaces. It will be Successful when there is contrast between print and surface on which it is made

(8) The following general principles are to be noted:-

It is a waste of time to record impressions by any method unless the record is going to be of some practical use for purposes of identifying or definitely eliminating suspects.

Care is to be taken that all records are made in the presence of witnesses. It is no use having a pfect record, if its genuineness is going to be successfully contested m Court.

In comparing the impression of a suspect with that taken at the scene of offence, it is better to take it the same way. For instance, if the original is taken in wax, the suspect's also must be taken in wax. taking great care that it is taken on exactly the same sort of ground as was the original and with the same distribution of weight on It, for example, If the Impression at the scene of offence was that of a man running on his toes, it is useless to compare the cast of it with one standing flat-footed.

Photography, however, provides an exception to this rule. An ink impression of ridges taken on paper be properly, compared with a photograph which shows up ridges clearly.

Taking specimen .of suspects.-(I) Take specimen foot-prints under similar conditions as those of the evidentiary foot-prints discovered.

(II) Take also inked specimen of suspects.

(i) of both feet (where necessary).

(ii) in standing position.

(iii) while walking and

(iv) both (ii) and (iii) with pressures on outer edges and inner edges.

(III) Observe all legal formalities.

(IV) Do not take specimens at the places or near about the places where the involved foot-prints were discovered.

(9) *Comparison of shoe prints:-* .

(a) By measurement test

(b) From wear and tear marks of soles

(c) From standard commercially available soles

(d) From the number and position of nails, their absence, wear and tear of nails, and repairs made if any.

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(10) The walking picture.-By this expression is meant the whole ensemble of foot-prints left by the walker. The principle features are the step length, the walking line, the direction line, the angle of step, the step breadth and the foot line. By drawing the walking picture of a subject from a series of foot- prints (bare foot-prints and shoe-prints), the investigating officer can approximately deduce an unknown person.

(a) Height

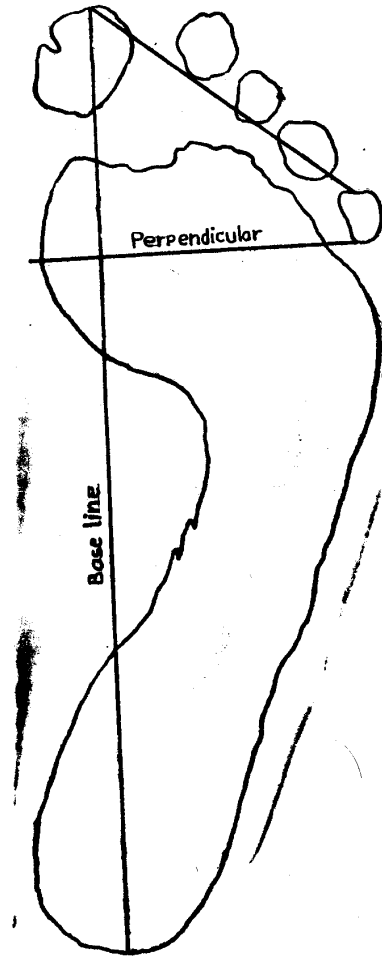
(b) Lameness

(c) Whether walking or running

(d) Whether carrying weight or not.

(11) In some districts there is a class of professional foot-print trackers and the use of them is made in tracking the foot-prints of the criminal especially in rural areas, in the detection of crime.

(12) In making use of impression of any type i. e., whether finger-impressions or foot-impressions, it must also be clearly understood that proof is necessary to show the impossibility of the impression being caused prior to or subsequent to the offence.



Accordingly, the utmost care should be exercised to preserve impressions, found near the scene of offence from being obliterated or tampered with, or with other impressions before examination.

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APPENDIX XVII

Rule 165

Use of Rays in Crime Detection

(1) Use of ultra violet rays in crime detection.-(1) The ultra violet rays are the invisible rays beyond the violet end of the visible spectrum and possesses the power of exciting a glow in many substances when exposed to them. This glow shows an individuality in intensity and color. Substances when exposed in the path of the ultra violet rays become visible and colored. This phenomenon is known as fluorescence. A large number of substances are fluorescent and the same can be rapidly tested under ultra violet rays.

(2) The ultra violet lamp eliminates many of the disadvantages of other methods. Unlike the chemical test, examination under the ultra violet lamp does not involve any risk or damage to the articles examined. The other advantage is the rapidity and ease with which the examination is carried out.

(3) Ultra violet lamps have been installed in the offices of the Criminal Investigation Department. (Crime) Ahmedabad and Rajkot. It is so suspended that the burner can be tilted to any required angle, The lamp works on any kind of electric supply for AC/DC circuits, provided a pressure of 200 volts or over is available. It can be adjusted to an electric supply ranging from 200 to 250 volts by simply moving one milled screw. The lamp is portable and can be carried to courts for demonstration purposes.

(4) The Deputy Inspector General of Police, Criminal Investigation Department, (Crime and Railways) may be referred to for an examination-which is carried out by the State Examiners of Documents of various articles under the ultra violet lamp in Police cases on points like the following

(a) Prisoners' correspondence or secret writings.-Prisoners send secret messages by incorporating in ordinary letters lines written with urine, saliva, milk, soap suds or fruit or vegetable juices. All these become visible in a few seconds under the lamp. In contrast to other unreliable methods of rendering secret writing visible, the lamp leaves no trace which might put the recipient on his guard.

(b) Inks.-All the various colored inks which appear on bank notes. etc., have characteristic appearances in ultra violet light and this is of great assistance in the detection of forgeries. Every chemical ink eradicator leaves a mark visible in the light. Many types of invisible ink become visible under the ultra violet light and photography can record results in such a form that they may be produced for reference at a moment's notice. Most red inks fluoresce and it is frequently possible to use ultra violet light to read writing which has been transferred to a piece of blotting paper by the blotting process, even if the paper has been used a great deal and is red in color.

(c) Finger prints.-Fingers contain small traces of organic matter, such as oils and fats and these fluoresce in ultra violet light. Records of finger prints on multi colored backgrounds which are visible under the light are developed by the use of zinc sulphide or anthracene and photographed on panchromatic plates.

(d) Erasures and alterations.-The disturbance of the surface fibres of paper is clearly visible in ultra violet light. In fact a safety paper has been prepared, impregnated with quinine or its salts. Uranium salts etc., on which erasures show up as dark patches under the light. If alterations are by a different ink, 'say in a case of falsification of accounts, though the falsification appears perfect to the naked eye, it is often possible to see quite plainly the subsequent superimposition of writing under the light.

(e) Forgeries.- Many large banking concerns in England, especially the Bank of England, are using an ultra violet lamp to examine cheques, securities, bank Notes etc. for detecting forgeries. The paper in a forged bank draft may appear similar to be genuine one to the naked eye; but it may show different fluorescence under the lamp, if the paper base is different.

(f) Mail thefts.-
(i) Adhesives.-Various adhesives show under the lamp fluorescence, which differ widely in color. Dextrin's fluorescence; but gum arabic is practically devoid of fluorescence, while the gum or mucilage used for postage stamps shows a strong bluish fluorescence. Vegetable glue appears golden yellow, while casein glue appears bluish white.

(ii) Sealing Waxes.- There is generally no difficulty in distinguishing different sealing waxes when their natural colors are distinct. But sealing waxes, apparently similar in color to the naked eye, may exhibit distinct fluorescence under the light. When seal has been tampered with, the tiny particles of the substances used to make the original seal can often be detected by variations in color or the intensity of the fluorescence under the lamp.

The lamp can be used to show that stamps have been fraudulently removed from an insurance card or to detect eradicated cancellation marks.

(g) Examination of valuables.-Genuine diamonds fluoresce brilliantly but the most cunning imitations are quite "dead " under the lamp. Japanese "culture" pearls differ distinctly in fluorescence from genuine pearls.

(h) Identification of glass pieces.-Glass pieces appearing similar to the naked eye have characteristic fluorescence's. Thus, for example, optical glasses of the same type but from different manufacturers show unmistakable differences ranging over a series of colors from pale yellow to violet, blue and vivid white; in particular "protective" glasses of the Crooks type are characterized by a bright blue white color. The fluorescence of glass is also affected by the various ingredients like manganese, and selenium entering into its composition. If similar glass pieces are found on the scene of offence and on the person of the suspect, a valuable clue is many times obtained.

(i) Adulteration in flour.-Wheat flours display a bluish fluorescence whereas barley and potato flours do not show any fluorescence.

(j) Determining whether a corpse was buried or burnt.-Bones from a burnt corpse do not fluoresce

(k) Clues for the detection of crime.-
(i) Stains not visible to the naked eye or chance finger prints which cannot be seen on multicolored grounds become visible under the ultra violet lamp.

(ii) Match sticks from boxes of different make show different fluorescence's, when seen under the lamp. Match sticks found at the scene of offence and those found with the suspect may appear alike and thus provide a useful clue.

(iii) Similarity as regards dirt, material, seams, tears, etc., between a piece of cloth found on the scene of offence and another found in the possession of the suspect, if established with the help of the lamp, may help to establish his guilt.

(2) Use of Infra-Red Rays.-(i) The importance of the Infra-red rays lies in the fact that it includes the wave lengths which are invisible to the eye but which affect photographic plates. The appearance of an object under Infra-red radiation may be quite different from its normal aspects e. g., two pieces of cloth of the same materials may appear similar in ordinary photography, yet through infra-red photography, they reveal distinct difference in tone.

(ii) Infra-red rays are useful in the following cases:-

(a) Cloth.-Some fibres (wool ect.) may be found stuck on the head lamp, bumper, tyre, body of cars involved in accidents with human body. These fibres are often from the clothing of the victims. An Infra-red photograph of the fibres found on the car and a sample of the fibres of the victim's clothing's should be made (in addition to other tests for fibres ect.) for comparison.

(b) Paints.-Most colors of paints photograph white in the Intra-red. However, the types of paint (constituents) may be decided from such examination.

(c) Stains.-With Infra-red radiation certain stains which may not fluorescence under ultra-violet rays may show their marks in contrast if the dye used in the cloth is not too opaque to Infra-red. Gun powder stains, for example, do not fluorescence. Thus, when it is suspected that this type of stain is present on dark clothing, its pattern may be clearly revealed, if the dye of the clothing is not opaque to Infra-red photography. The photograph will give the needful contrast to the gun-powder stains because the carbon and other compositions present are opaque to these rays.

(d) Inks.-In the examination of documents while determining (i) Superimposition; (ii) Interpolation and (iii) sequence of strokes, Infra-red photography helps.

(e) Erasures.-When some mechanical abrasives are used (knife, rubber, etc.) faint and very slightly visible marks or the ink or pencil may be left behind. If these traces are present in sufficient quantity to form an outline, an Infra-red photograph can render the writing visible.

(f) Burnt documents.-Charred documents on which the writing has been invisible because of the burning, may some times be made legible in an Infra-red photograph.

(g) Unopened letters.-It is some times necessary during investigation, to decipher, the contents part of it in a sealed envelope without opening it. Infra-red photography may some times reveal the contents.

(3) Use of X-Rays.-(a) Examination of suspicious boxes and parcels supposed to contain explosives, arms, ammunition, secret constructions, etc.

(b) True and counterfeit coins can be readily distinguished particularly when lead is used in the counterfeit since a radiograph will reveal the greater absorption by this metal.

(c) Clothes and Fabrics.-It is possible to compare two samples of cloth or fabric material by studying their respective weaves and detecting the presence and absence of weighing materials such as tin or lead.

(d) Paper.-Papers may be compared for similarities or differences in filter impurities and in the fibre structure of the paper. Hand made papers may be shown to differ from machine made.

(e) Leather.-It is possible to compare and distinguish between artificial and natural leather, and thereby in certain cases make comparisons of the clue materials of this type.

(f) Gun shot wounds .-An interesting application of these rays involves their use in the study of the - distribution or lead fouling and (molten) lead particles about the entrance of a bullet hole in clothing. As the clothing will be transparent to X rays, the capacity of lead around the gun shot holes on the clothing their distribution along with other data may enable the laboratory ballisticians to estimate the muzzle- body distance at the time the gun was fired.

(g) Fractures.-All varieties of human bones can be seen through X-rays and photographs taken not only to demonstrate the nature of injury inflicted or received but also for the purpose of intricate surgery etc.

(h) Audio-Visual Aids.- Sample X-ray photographs, showing fracture of skull, ulna and radial bone of the hand, femur, sheen bone etc.

Simple X-ray photographs of simple, compound and complex fractures.

X-ray photographs of hidden objects, and bullets lodged inside the body.

(4) Use of Microscopy.-(a) One of the great advantage of microscopical examination over chemical analysis is that there is no destruction of the evidence. In chemical analysis the expert has to adduce evidence from noted observations and from memory whereas, in case of microscopical examination, actual photo- graphs can be produced before Courts.

(b) Microscopical examination may be made for the following types of common clues found at the scenes of offences:-

(i) Documents, (ii) Hairs, (iii) fibres (iv) Dusts and dirt; (v) striation marks on fired bullets, cartridge cases and firing pin-dentations; (vi) Blood testing; (vii) Semen testing; (viii) In conjunction with spectroscope for viewing very minute clues like paint, debris and other organic and inorganic substances; (ix) In conjunction with a camera it helps in recording enlarged photos; (x) Comparing scratch marks by tools on wood, metal and other surfaces along with the cutting or serrated edges of the suspected tools; (xi) Suspected counterfeit coins and forged notes.

(c) The Investigating Officer should keep as far as possible an ordinary lens or a hand magnifier, with him during the course of investigation of case, where preliminary examination of clues like blood; semen, hair dust etc., are involved

APPENDIX XVIII

Rule No. 166(3)

Instructions for the guidance of Investigating Officers while dealing with cases involving Documents which form Subject Matter of Examination by the Government Examiner of Questioned Document, Government of India, Simla

I. Care of Documents.-From the moment an Investigating Officer takes possession of document the genuineness of which is either questioned or the authorship of which is to be determined, they should be handled and cared for in a manner that will not impair in the slightest degree its value as evidence. The following negative directions are necessary and should be scrupulously adhered to ; -

(a) Documents should not be subject to frequent careless handling and should from the very beginning be properly protected either by placing between the sheets of blank papers or preferably between thin, transparent sheets of celluloid.

(b) Documents should not be cut, torn or trimmed or in any manner mutilated in the slightest degree

(c) Documents should not be exposed to moisture of any kind or to strong sunlight and should never be carried in the pocket where they are likely to be affected by bodily heat or moisture or become worn, wrinkled or soiled.

(d) Documents should not be folded or unfolded unnecessarily and a new fold should never be introduced.

(e) Documents should not be touched with an eraser of any kind nor should adhesive labels be applied.

(f) Documents should not be punched or pinned but paper clips should be used where necessary.

(g) No additions, such as underlying features thought to be significant, should ever be made in the documents. The identification marks should be applied with colored pencils where they are least likely to interfere with the writing and should be as limited as practicable and clearly recognized as such.

(h) Tracings of documents should never be resorted to. For purposes of record, photography is the advisable and safe method.

II. Submission of Documents.-(a) Documents intended for laboratory examination should be sent by registered post after being properly packed and sealed in STOUT COVERS or packing to avoid damage during transit. While it is generally not possible to assess the value of documents, it is advisable that documents sent by registered post should also be insured for a nominal value of Rs. 100. This procedure will ensure extra precautions on the part of the Post Offices.

(b) Documents submitted for examination should be accompanied by a forwarding letter which should clearly indicate as to which of the writings are "Questioned " and which of the writings are "Standards" The questioned writings should be clearly encircled with a colored pencil without touching or crossing any part of the questioned writings. Identifying marks such as Q 1, Q 2, Q 3, Q 4, Q 5, etc., should be put for each of the questioned items. In case a questioned item consists of a body-writing followed by a signature which is alleged to be of one person, it is advisable that separate identifying marks be put for the body writing and the signature. The Standard writings should also be similarly enclosed in a colored pencil and identifying marks such as S1, S2, S3, S4, S5, etc., put. In the case of the standard writings it is not, however, necessary that separate identifying marks be put for the body-writing and the signature on the analogy of markings done to the questioned items. It will facilitate comparison if the standards writings of one person are allotted identifying marks in seriate i. e., the standard writings of a person 'A' may be marked S1 to S20 and the standard writings of another person 'B' be marked as S21 to S40 and so on.

(c) The specific points on which an opinion is sought should be clearly indicated in the forwarding letter.

(d) It is worthwhile keeping in view the fact that once II writing- or a signature is treated as a questioned item, it can never be used again by the Govt. Examiner of Questioned Documents as a standard writing for comparison with other questioned items. Inter se examination of two questioned items does not generally yield any fruitful result and questions relating to such inter se examination should be avoided as far as possible.

(e) The history of the case should never be narrated in the forwarding letter.

III Standards for Comparison.-(a) The quality of the standard writings submitted for comparison has a great influence on the result of, examination; without suitable standards the Examiner is unable to express and certify any worthwhile opinion as to the authorship of questioned writing. As to what constitutes the most satisfactory standard, the answer is very simple. In every case the aim should be to provide an opportunity for the Examiner to compare "LIKE WITH LIKE." for example the best standard, when the signature of the person is in dispute, consists of his admittedly genuine signature ,written before the date of the disputed signature on similar document. With regard to the amount of standard writings to be submitted, it must be borne in mind that while no document examination has ever been prejudiced by too much standard materials, the reverse has of tern been the vase. The majority of the failures on the part of the Examiner to furnish definite opinions are due to the standards being either too scanty or unsuitable for the purpose. With an abundance of standard materials the Examiner is able to make the most effective comparison with the questioned writings. .

(b) As a general procedure the Investigating Officers should submit two types of standard writings as

detailed below :-

(i) Request writings i. e. writings of signatures written to dictation by the suspect for the purpose of comparison with the questioned writings.

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(ii) previous writings i.e. admittedly genuine writings or signatures written on ordinary course of business by the suspect when he had no knowledge that these writings and signatures will be used for comparison with the questioned writings. The writing produced in ordinary course of business is generally an unconscious act. Request writing produces consciousness in the writer which tend to make the writing formal. Request writings may also be deliberately disguised and distorted by the writer. Such request writings are, therefore, not always suitable for comparison with the questioned writing executed in ordinary course of business. The importance and necessity of obtaining previous writings for comparison with the Questioned writings can thus be well realized. The previous writings are found to be useful writings of the suspect without any attempt at disguise or formal execution. as the writer had no knowledge that these writings will ever be used as standards for comparison. It is of utmost importance that such writings should be capable of being proved in a Court of Law as the standard it purports to be. The usual method of proving the previous handwriting of an accused is by the evidence of a person who is well acquainted with his writings and can identify them. The previous writings of those persons who are to appear as witnesses in the case can be proved by their own admissions in the court.

(c) If the suspect is willing to give specimens of his handwriting, the following procedure should be adopted:-

(i) Examine the document and note whether it is written in cursive (i.e. freely written having connected small letters) or pen-printing or block lettering style or is a mixture of all. Make It clear to the suspect which style of handwriting you desire him to use but never show him the questioned writings.

(ii) Obtain paper similar to that of the questioned document and try to match the paper especially with respect to size and filling if any. "Never allow a large sheet of paper if the questioned document is small or plan if the questioned document is lined and vice-versa. If the questioned document is an envelope, supply envelopes for the dictation to be written on; if an endorsement on cheque supply blank cheques and ask them to be endorsed leaving it to the suspect as to where and how he does It. If the questioned document is in the nature of an official form, the most strenuous efforts should be made to obtain similar blank forms on which the suspect should be invited to write. If blank forms cannot be obtained, endeavour to duplicate them on a typewriter taking care to keep the dimensions the same.

(iii) Provide the suspect with writing instrument similar to that used for writing questioned document. Where ink-writing is concerned try to match the nilo width. The ink used need not be matched as this has very little influence on the writing.

(iv) Dictate the questioned writing to the suspect at a reasonable speed. This will allow the suspect, if he so attempts and opportunity to disguise his handwriting, which will tend to make him much slower than usual. The time taken should be carefully noted.

(v) When the first dictation has been completed, the writing should be removed from the sight of the suspect who should be persuaded to give a second specimen. The second dictation should be given as fast as the suspect will allow., because if the speed is kept up and he has disguised his first specimen, he will have difficulty in remembering the details of the disguise previously used.

(vi) The procedure detailed in aforesaid paragraphs (iv) and (v) should be repeated with two different pens on two different dates. In this way, specimens of the writing of the suspect on six different sheets are to be obtained;

(vii) The age of the writer, his name and any of his physical conditions (such as extreme illness infirmity or injury to his hand or fingers, etc. likely to affect the writing should be endorsed in each sheet by the officer obtaining the request writings who should also sign such sheet in token thereof.

(d) In obtaining previous writings also the guiding principle "LIKE TO BE COMPARED WITH LIKE" should be borne in mind. For example:-

(i). In case of questioned signatures on cheques, admittedly genuine signatures of the same type on previous cheques, Issued on the same bank and of the same period, should be obtained.

(ii) In case of questioned endorsement on Money Order vouchers, admittedly genuine endorsements on similar money order vouchers or acknowledgements of the same period should be obtained.

(iii) In case of questioned writings in receipts or other official forms, efforts should be made to obtain admittedly genuine writings of the suspect or similar receipts or official forms.

(iv) Only the papers bearing the previous writings should be sent to the Examiner and not the whole lot of connected papers.

(e) Finally it deserves emphasis that investigations rarely conform to exact pattern.. The instructions given here are in regard to general principle only; they must be intelligently applied to the special consideration of the case

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Rule 167(5) (iv), (6) (a), (b), (8) (10).

List of Documents sent for opinion

Schedule 'A'

List of Documents submitted for opinion in Police Station C.R.No. of.....u/s

QUESTIONED DOCUMENT

Exs. Description of the document

Handwriting and/or signatures (encircle in red) on

.....
.....

Do.

Do.

Proveable document

Specimen Handwriting and/or signatures of

..... before Panchas/Court.

Do.

Do.

ADMITTED DOCUMENTS

Natural admitted handwriting/signatures of

.....

..... on * in

.....

Do.

Do.

QUESTIONNAIRE

Whether red encircled handwritings and for signatures on Exs. (Questioned Documents) are written and/or signed by Exs.(Proveable Documents) and Exs. (Admitted Documents)

*Here mentioned the probable date if the exact one is not known.

*Here mention the type of document such as Register, Kird-Book, Leave application, other correspondence, etc.

Note.-The particular portions to be used for comparison form the Proveable and Admitted documents should be preferably encircled in blue pencil.

Schedule "B"

(a) Charges for supplying photographs of documents:-

Size	1st Copy Rs.Ps.	2nd Copy Rs. Ps.
18.4 × 11.4 CM.	1.25	1.00
25.4 × 15.2 CM.	1.75	1.50
30.5 × 12.7 CM.	1.75	1.50
30.5 × 19.1 CM.	2.00	1.75
34.3 × 21.6 CM.	2.25	2.00

30.5 × 25.4 CM.	2.50	2.25	
40.6 × 25.4 CM.	3.00	2.75	
50.8 × 20.3 CM.	3.00	2.75	
30.5 × 38.1 CM.	3.50	3.25	
50.8 × 40.6 CM.	7.00	6.75	
5.7 × 5.7 CM.	0.50	0.40	
8.9 × 6.4 CM.	0.75	0.60	
16.5 × 21.6 CM.	1.50	1.25	

(b) Charges for taking Positive Films:-
2.5 × 3.8 CM.

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(c) Charges for supply of specialized photographs:-

	Type	Size	1st Copy	2nd Copy
1.	Photomicrographs and transmitted light photographs.	21.6×16.5 CM	20.00	6.00
2.	Photo-Micrographs and transmitted light photographs.	25.4×30.5 CM	25.00	7.50
3.	One Print from ultra read ex-posure.	21.4×16.5 CM	20.00	3.00
4.	-do-	25.4×30.5 CM	25.00	4.00
5.	Print under ultra Violet light	21.6×16.5 CM.	20.00	3.00
6.	-do-	25.4×30.5 CM	25.00	4.00
(d)	Photograph and Photoprints.			

	Type	Size	1st Copy	2nd Copy
1.	Photostat copies	21.6×6.5 CM	4.00	3.00
2.	-do-	25.4×30.5 CM	4.00	3.00
3.	Photoprints	14.0×18.4 CM	2.00	1.25
4.	-do-	18.4×24.1 CM	3.00	1.75
5.	-do-	25.4×30.5 CM	4.00	2.50
6.	-do-	30.5×38.1 CM	5.50	3.50
7.	Photographs done after special Process	19.1×24.1 CM	15.00	4.00
8.	-do-	25.4×30.5 CM	12.00	5.00

(e) Positive on transparencies

	Type	Rate
1.	One Small Size.	Rs. 2.00 each copy.
2.	One enlargement	Rs. 5.00 each copy.

Schedule "C"

Sr.No.	Particulars.	Rate.
1.	Opinion Fees.	Rs.100.00
2.	Photographic Charges	Rs.50 to be guaranteed in the first instance, as the charges vary according to nature of the case and the number of document.

Actual

3.	Attendance and Travelling fees, in case Examiner is required to give evidence.	amount is informed along with the opinion. (a) Rs. 80/- per calender day spent either for giving evidence or in journey.
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- (b) Full fees, i.e. Rs.80/- to be charged if the Examiner has spent four hours in travelling
 - (c) Half fees i.e. Rs.40/- to be charged if the Examiner has spent less than four hours in travelling
 - (d) No travelling fees to be charged for the day for which attendance fees are recovered
4. Travelling Allowance As per B.C.S. Rules

Note:-The opinion fees and photographic charges are either to be remitted to the office of the Deputy Inspector General of Police Criminal Investigation Department (Crime & Railways) along with the submission of the case or are to be guaranteed by the court or the public Body concerned and paid immediately on receipt of the Bill. The necessary fees for evidence (item Nos. 3 & 4 above) are to be deposited in the court before the date of evidence and paid to the Examiner after his evidence with a Court Attendance certificate mentioning the said payment

(G. R. H. D. No. HP. B. 1068-4849-C, dated 1st December, 1971 and Corrigendum of even No.dated 2nd September 1972),

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APPENDIX XX

Rule 205 (3)

Descriptive roll

1. First the prisoner should be looked over and any deformities, deficiencies or peculiarities, such as missing eyes, ears, nose, fingers, toes, hands, feet, arms, legs, squint, harelip, excess of fingers or toes etc., should be noted. In the case of hands, feet, arms and legs, distinction should be made between hands and arms, and between feet and legs.

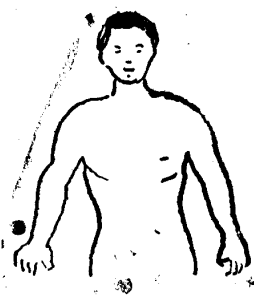
2. (a) Secondly, three permanent bodily marks, if they exist, should be described. Moles and warts are not usually suitable for inclusion among the marks, as they often change in size and shape with advancing years. If possible, the marks should be on the easily visible parts of the body, face hands and legs. This is particularly desirable in the case of females. The exact size (in cms) and shape of scars and permanent bodily marks should be given.

(b) The position of the marks on the face or body should be indicated in the following manner:-

The feature (eye, nose, mouth, ear, etc) nearest the mark to be described should be taken as the centre of the face of a clock. The direction, from that feature, in which the mark or scar is to be found should then be indicated by giving the hour occupying a similar position in relation to the centre of a clock. Example.-In the illustration in the margin, the outer of the right eye is taken as the centre of



the clock. The scar is then said to be at 7 o'clock, and the description and position of the mark would be noted as follows:-



" A scar .50 Cms wide, 6 Cms long1 at 7 o'clock, 6 Cms from outer corner of right eye"

When such marks are on the body, the distance and the direction from either the naval or right or left

nipple, or the nape of the neck, or right or left buttock
should be given. In the illustration in the margin
the description will be:-

(i) A scar 1.25 Cms wide, 7.50 Cms. long at 12 o'clock,
9 Cms, from left nipple

(ii) A scar 2 Cms wide, 3 Cms long at 1 o'clock
10 Cms from naval,

(c) When giving such bearings, the centre of the mark or scar should be considered, not either end.

(d) When the mark or scar is on the arm or leg, its distance above or below elbow or knee, and
whether on front or back, inside or outside, should be stated. .

(e) Marks or scars on the hands or feet present no difficulty.

(j) The size of scars and marks and their distance from features should be carefully measured
before entering them on the form.

3. Three such deformities, deficiencies or marks should be given, wherever possible. If a man has
two deformities or deficiencies, one other mark must be given. If he has several, the fact should be briefly
mentioned

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APPENDIX XXI

Rule 210 (7)

*Regimental Centers/Units to whom deserters/absentees apprehended by or surrendered to the Civil Police
are to be handed over*

Armed Corps Centre and School, AHMEDNAGAR

Arty Center, DEOLALI.

Madras Engr. Gp., BANGALORE

Bengal Engr. Gp., ROORKEE.

Bombay Engr. Gp., KIRKEE.

Sig Trg. Centre, JUBBULPORE.

Punjab Regt. Centre, MEERUT.

Madras Regt. Centre, WELLINGTON.

Grenadiers Regt. Centre, NASIRABAD.

Maratha Regt. Centre, BELGAUM.

Raj Rif. Regt. Centre, DELHI CANTT.

Rajput Regt. Centre, FATEHGARH.

Jat Regt. Centre, BAREILLY.

Sikh Regt. Centre, MEERUT.

Dogra Regt. Centre, MEERUT.

Garh Rif. Regt. Centre, LANDSDOWNE.

Kumaon Regt. Centre, RANIKHET.

Assam Regt. Centre, SHILLONG.
 Bihar Regt. Centre, DINAPORE.
 Mahar Regt. Centre, SAUGOR.
 11 Gorkha Rif. Regt. Centre, Glement Town, DEHRADUN.
 14 Gorkha Training Centre, CHAKRATA.
 39 GJrkha Training Centre, DEHRADUN.
 58 Gorkha Training Centre, DEHRADUN.
 ASC Centre (South), BANGALORE
 ASC Centre (North), MEERUT
 RV and FC Centre and School, MEERUT.
 AMC Centre (South), POONA
 AMC Centre (North), LUCKNOW
 EME Centre, SECUNDERABAD (DN)
 AOC Centre, SECUNDERABAD (DN)
 Central Ordnance Depot, AGRA
 INT Trg. School and Depot, POONA
 CMP Centre and School, FAIZABAD
 PNR Corps Centre and Records OFFICE NAINITAL
 MDSC Centre, OLD DELHI
 ABC CENTRE and School, PACHMARHI.
 4th Bn. the ASSAM Rifles.
 Army Physical Training Corps and School, POONA.
 HQ and Records General Service Corps, BELGAUM.

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Appendix XXI

Boys Bn. (South), BANGLORE
 Boys Bn. (Nourth) LANDSDOWNE
 ADM Commdt. MHOW
 SSO, JAMNAGAR
 SSO, KAMPTEE
 STA HQ AHMEDABAD
 Trg. Center Border Scouts, PALANPUR

For deserters apprehended in

KANGAR VALLEY

88 Comm Z Pro Unit.

51 Lt. Armed Regt. (TA)

For deserters apprehended in

PUNJAB and PEPSU

213 Transit Camp, PATEAKOT

For deserters apprehended in J and K

i.e. JAMMU and KASHMIR

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APPENDIX XXII

Rule 240 (8)

Model Case Diary

D. A. Patel P.S.I. ,Thasra.

CASE DIARY

Police Station: Thasra

District: Kaira

First Information Book No. 70 of 1973 Case Diary No. 70/1.

Date and Place of occurrence:-1st October 1973 at 3 a. m. in Angadi village-8 KMS east of the Police Station.

Offence under section 457, 396, 395, 397, Indian Penal Code and of Indian Arms Act 25 (a).

P. S. Rs. 6,800-00 gold ornaments and currency notes. P. R., Rs. 2,000-00 ornaments.

Date (with hour) on which action was taken:
1st October 1973 at 5-30 a. m.

Record of Investigation:

(a) Time at which the investigating Officer received information of the offence:

(1) Complainant:-Ambalal Mohanlal Patel
Angadi

-Do.-

(b) Time at which he began and concluded investigation
5-40 a. m. to 10-00 p. m.

(2) Accused:- (1) Shankar Tukaram Bhi1
and (2) Sampat Tukaram Bhil both of
Sondheli arrested on 1st October 1973

(c) Places visited by him:
Angadi and Piprala.

and five others not arrested.
(3) M. O. Breaking door.

At 5-30 a.m., while in my quarters, received report No.8 in the prescribed form sent by the Police Patel of Angadi Village through village servant Rambhaji Sonya to the effect that seven or eight dacoits armed with a gun an axe, and sticks raided the house of complainant Ambalal Mohanlal Patel of Angadi and removed property worth Rs. 6,800-00 consisting of gold ornaments and currency notes from his safe and from the persons of the ladies in the house and that Jayant, the brotier of the complainant, was killed, while the complainant, his son Ramchandra and nephew Govind ,received injuries In the encounter with the dacoits.

On receipt of the above information, immediately proceeded to the Police Station, entered the information in the First Information Report book and registered tie offence In the Cognisable Crime Register (Section 154 Criminal Procedure Code). Also sent First Information Report to the Judicial Magistrate, First Class, Thasra (Section 157, Criminal Procedure Code).

This being a serious offence gave information to S. P. Kaira, S.D.P.O. and C.P.I. Anand on telephone and sent special express reports to the:-

- (1) Sub-Divisional Police Officer, Anand Division.
- (2) Circle Police Inspector, Anand Division.
- (3) Superintendent of Police, Kaira.
- (4) District Magistrate, Kaira.

As I am proceeding to Angadi to hold an inquest over the dead body of deceased Jayant Mohanlal Patel, sent intimation to the Executive Magistrate, Thasra (Section 174, Criminal Prcedure Code).

Studied facts of the case and the Modus operandi, consulted Crime Records at the Police Station and took relevant extracts.

Took necessary apparatus and materials required for the investigation.

Also sent a report to Finger Print and Photographs attached to the Local Crime Branch to come to the scene immediately.

Left Thasra with the necessary staff of Policemen at 6.30 a. m. and reached Angadi at 8 a. m. Distance by road 8 K. Ms.

Visited the scene of offence, removed all superflous persons and posted guards to protect scene of offence. Questioned Ambalal Mohanlal Patel of Angadi and recorded his statement. He stated that him-self, his brother Jayant, son Ramchandra, nephew Govind, wife Salubw and Jayant's wife Sonubai slept in the house on the night of 30th September 1973 after chaining the front and the rear doors from inside. At about 3 a. m. they were awakened by the barking of dogs, a. he and his family heard re- ports of two--gun-shots. They immediately suspected some foul play. In the mean time they heard sounds of stones being hurled against the front door and hence he, his brother Jayant, son Ramchandra and nephew Govind got ready to face the dacoits who were threatening them from outside and also trying to force the front door open. After a while the hinges of the front door gave way and five culprits armed with an axe and with sticks entered the house, while one stood in front of the house and another continued to fire shots from his gun. A fight ensued between them and the dacoits, during which he (the complainant) hit one of the culprits with a stick on his shoulder, while his brother Jayant dealt a stick blow on the head of one of the dacoits. The culprit, who was carrying an axe, dealt a severe blow

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with it on the head of Jayant, who immediately fell down and expired within a short time. One of the dacoit took the key of the safe from him (complainant), opened the safe and removed eight Government currency notes of Rs. 100 each, while two of them removed two gold necklaces weighing forty gram, worth Rs. 2000 and four gold bangles weighing eighty gram worth Rs.4,000 from the person of his wife and Jayant's wife. The culprits then decamped in the direction of Piprala village. He also gave description of the ornaments and the accused persons. The complainant did not know the numbers of the notes; but himself, his son, nephew, the ladies of the house and Ramesh Anand Soni of Angadi would be able to identify the ornaments. One canvas shoe, a blood stained axe and a pugree were left on the scene by the culprits. The axe was the one with which one of the dacoits killed his brother. Two culprits had received injuries in the encolunter and the complainant would be able to identify at least three of them, stating that there was ample Light at the time of incident. After the dacoits departed, the Police Patel and neighbors went there to find out what had happened and he (complainant) narrated the facts to them. The Police Patel therefore, sent a report to the Police Station. The complainant prayed that action might be taken according to law.

Deputed Policemen, village servants and others for tracing the foot prints of dacoits and getting information about them.

Held an inquest over the dead body of the deceased in the presence of the panch. The deceased was a male aged about 40 years lying was lying face upwards, in the front room of the complainant's house. He had a deep incised wound 8 cms. long and 2 Cms. broad on his head 10 Cms. above the left ear. He was lying in a pool of blood and the shirt and dhotee on his person were soaked in blood. He was identified by the complainant and other inmates of the house to be Jayant Mohanlal Patel, the brother of the complainant. He appeared to have met his death due to the

injury on his head. Attached some blood-soaked earth from the scene and a blood stained shirt and a dhotee from the person of the deceased for further investigation. Also collected control sample of the clean earth from near the blood stained earth. Drew up an inquest Panchnama.

In order to ascertain the exact cause of death, sent the body of the deceased to the Civil Surgeon, Kaira for post mortem examination with Head Constable Shankar Govind B. No. 465, with a memo., a copy of the inquest panchnama etc. Also requested the Civil Surgeon to take samples of hair and blood of the deceased which may be required for comparison at a later stage. Questioned Ramchandra, son of Ambalal and Govind son of Jayant, both of Angadi and recorded their statements. Both of them corroborated the complainant in material particulars (Section 161, Criminal Procedure Code).

As complainant Ambalal Mohanlal Patel, his son Ramchandra and nephew Govind had sustained injuries, examined their bodies in the presence of the panch. Ambalal had a contused wound on his head, his son Ramchandra had a wheel mark, on his left shoulder and another on his right leg, while his nephew Govind had a wheel mark on his back. Drew up a panchnama of the injuries and sent all the three with a memo, to the Civil Surgeon, Kaira for medical treatment.

Examined the scene of offence in the presence of the panch, and one of the inmates. Arranged to take necessary photographs and noted the time, lighting condition, camera position, and the name of the Photographer etc. The complainant's house consisted of three rooms, the rear room being used as a Kitchen, middle room as a store room, and the front one as a sitting room in which a safe of Godrej make was kept in the north-west corner. There was a pool of blood in the centre of the front room. The safe was open and empty and the key was still in the key-hole. No finger impressions were noticed on the safe. A canvas shoe worth Rs. 5-00 a blood stained axe worth Rs. 8.00 with a wooden handle and with the name Sonya inscribed on it and an old torn red purgree 6 meters long, worth Re. 15-0 were lying in the front room. Besides, two bamboo sticks worth Rs. 2-0 were also found lying in the room. Some hairs were found sticking to the blood stained axe and to one of the bamboo stick and the purgree which were collected separately and put in clean, neat and dry test tubes and sealed. No foot prints were visible outside the house as the ground was hard. Five empty cartridge cases and five weds were found lying outside the house and so noted their descriptions and collected them. The hinges of the front door had come out from the frame and the door was broken. Attached the above articles under a panchnama.

Made arrangements to draw a map of the scene of offence.

The Sub-Divisional Police Officer, Anand Division and the Circle Police Inspector, Anand Division arrived and visited the scene. Explained to them the facts of the case and the progress of the investigation.

The Policeman, village servants etc. deputed for tracing foot prints of culprits returned and reported that indistinct foot prints of seven or eight persons could be traced upto Ambav. They could not be traced further owing to the hard surface of the ground.

In the mean-while, cultivator Mahadu Nana Patel of Angadi brought information that he had notice : a male person lying in nallah by the side of his field, about one KM away. The person was groaning and Mahadu noticed that he had an injury on his head. Hence received Mahadu statement. J Immediately went to the nallah and saw the injured person. He was in a conscious state and gave out his name as Shankar Tukaram Bhil of Sondheli. On interrogation, he disclosed that himself, his brother Sampat and Gangaram and other Bhils from Ozaralat had committed the offence and added that Sampat; was injured and that all culprits including Sampat had gone to the house of a relative at Piprala village.

Arrested Sankar Tukaram Bhil at 11 a. m. in the limits of Angadi village Examined his body in the presence of the panch. There was a contused wound 5 Cms x 2 Cms. on his head at the centre with a coating of thick blood and with swelling around it. He stated that he had received the injury while committing the offence. He had: no complaint of ill-treatment against the Police Drew up a panchnama accordingly. Sent arrest card (Section 58 Criminal Procedure Code).

Sent accused Shankar Tukaram Bhil of Sondheli under proper Police escort with Head Constable Kashinath Narayan to the Civil Surgeon, Kaira for medical treatment. Instructed Head Constable Kashinath Narayan to produce him before the Judicial Magistrate, First Class, Thasra after he was treated As the remaining accused persons were yet to be arrested and as all the stolen property was to be recovered from them, the presence of accused Shankar was necessary in Police custody. Hence sent a report to the Judicial First Class Magistrate, Thasra requesting him to grant seven days' r

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Police custody in the case of accused Shanker. Remand report with a copy of the case diary was sent with Head constable Kashinath Narayan to the Judicial First Class Magistrate, Thasra (Section 167, Criminal Procedure Code.)

As accused Shankar Tukaram and his two brothers, Sampat and Gangaram, are residents of Sondheli, it was necessary to search their houses for incriminating property. Recorded the grounds etc., for searching their house and sent a copy of the same to the Judicial First Class Magistrate, Thasra and deputed Head Constable Deshpande with a written order to Sondheli for conducting the search (section 165, Criminal Procedure Code) and for making enquiries about the accused.

Also deputed Head Constable Rathod Ozaralal at for tracing the whereabouts of the Culprits.

Arrived at Piprala with the Sub-Divisional Police Officer, Anand Dn. and the Circle Police Inspector Anand Division, at 2 p. m. and made enquiries about the relations of accused Sampat Tukarm Bhil and

other through Head Constable Kalumiya Siddimiya of the beat. It was ascertained that Vishram Satwa Bhil was a relation of Sampat. Immediately went to Vishram's house and questioned him about the culprits. As he denied knowledge about them, decided to search his house. Recorded the grounds for the search and sent a copy of the same to the Judicial Magistrate, First Class, Thasra, searched the house am Satwa Bhil in the presence of the panch, but nothing incriminating was found. A panchnama was accordingly drawn up.

Continued further enquiries in Piparala village through Head Constable Kalumiya Siddimiya and and informants. Learnt that a person had arrived at Piparala in the course of the day and that he was stopping in a hut in the field of Vishram. At once went to the hut, where a person who gave his name Sampat Tukaram Bhil of Sondheli, was found.

Arrested Sampat Tukaram Bhil at 7 p.m. at Piparala and searched his person in the presence of the panch. He had a constused wound 5 Cms X 2 Cms. on his right shoulder which, he stated, he had received in the commission of the dacoity. He had no allegations to make against the Police for ill-treatment. Drew up panchnama accordingly. Sent an arrest card.

On being questioned, accused Sampat Tukaram admitted his complicity in the commission of the offence and offered to point out the stolen property given to him as his share. In the presence of the panch he showed in the field about 50 meters away from the hut. He dug a small hole and took out two gold necklaces witch had been buried there. A gold smith panch weighed the necklaces and it was found that they weighed ram and were worth Rs. 2,000. Attached them under a panchanama.

Accused Sampat futher disclosed that four culprits had gone to Bhima Bhil at Ozarala.

Sent accused Sampat Tukaram Bhil under proper escort with a memo to the Civil Surgeon Kaira for medical treatment. As the remaining accused were still to be traced and stolen property was to be recovered the presence of accused Sampat Tukaram Bhil was necessary in Police custody. Hence sent a report to the Judicial First Class Magistrate, Thasra, wi1h a copy of the case diary wi1h Head Constable Kalumiya Siddiliya requesting that the accused be remanded to Police custody for seven days. Head Constable Kaluliya, was instructed to produce the accused before the Judicial First Class Magistrate Thasra after he was medically treated.

Also made arrangements to make entries in the Arrest Register and Muddamal Register.

As it is late at night, proceeding to Ozarala early tomorrow morning. Investigation in progress

Copies submitted to the Sub-Divisional Police Officer, Anand Division, and Circle Police Inspector Anand Division, on 2nd October 1973. Copies submitted to the S. P. Kaira. .

CAMP Piparala.		(Sd.) P.S.I.,Thasra.
2nd October 1973		70/2
(b) 6 a. m. to 10 P. m.	(1) Complainant :-Ambalal Mohanlal Patel Angadi.	Rs. nP.
(c) Piparala, Thasra, Angadi,	(2) Property stolen	6,800-00
	(3) Property recovered attached on 1-10-73,	2,000-00
	attached to day	<u>4,800-00</u>
	Total	6,800-00
(4) Accused :-(1) Shankar Tukaram Bhil, and		
(2) Sampat Tukaram Bhil, both of Sondheli on remand in Police custody for seven days from 2-10-73		
(3) Bhikya Gendya Bhil	}	All of Ozaralala arrested on 2-10-73 at Ozarala
(4) Somya Gendya Bhil		
(5) Nanya Chendya Bhil and		
(6) Deoji Chendya Bhil.		

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Left Piparala village with the Sub-Divisional Police Officer, Anand Division, and Circle Police Inspector. Anand Division, and arrived at Ozarala at 6 a. m. Immediately raided the house of BhimYa Lahnya Bhil of Ozarala with the aid of the panch. Accused Bhikya Gendya, Somya Gendya, Nanya Chendya and Devji Cheudya, all Bhils of Ozaralalat were found there. On being questioned, all of them admitted having committed the offence and each of them produced in the presence of the panch one gold bangle and two Government currency Notes of Rs. 100 each from the clothes which they were wearing. All the bangles were weighed by a goldsmith panch and the weight tallied with the original figure quoted by the complainant, vix, eighty gram. Four gold bangles worth Rs.. 4,000 and eight Government Currency

Notes worth Rs. 800 were attached from the possession of all the four accused in the presence of the panch and a panchnama was drawn up.

Arrested accused (1) Bhikya Gendya, (2) Somya Gendya, (3) Nanya Chendya and (4) Devji Chendya, all Bhils of Ozaralatat at Ozarala at 7 a. m. and sent arrest cards.

Also made arrangements to make entries in the Arrest Register and Muddamal Register.

Searched the persons of all the four accused in the presence of the panch. No marks of violence were found on their bodies and they had no complaint of ill-treatment against the Police. Drew up a panchanama accordingly

Collected samples of hairs of all the accused persons, with their consent in presence of panch and packed them separately in clean, neat and dry test tubes and sealed them. Drew up a panchanama accordingly.

Questioned Bhimya Lahanya Bhil of Ozarala. He stated that accused Bhikya, Somya, Nanya and Deovji came to his hut on 1st October. 1973 at about 10 a.m. They disclosed to him the details of the offence and promised to give him some share of the looted property provided he allowed them to hide themselves at his place for a few days. He therefore, arranged to give them food, etc. and kept them in his hut. Accordingly recorded his statement.

It is evident that Bhimya Lahanya Bhil of Ozarala had harboured dacoits and action against him will be considered after the decision of this case. It is likely that he may turn hostile and hence decided to get his statement record under Section 164, Criminal Procedure Code. Sent Bhimya Lahanya Bhil with a memo to the Judicial First Class Magistrate, Thasra, requesting him to record his statement as a witness under Section 164, Criminal procedure Code.

Arrived at Thasra at 11 a. m. with the four arrested accused. Head Constable Kashinath Narayan produced accused Shankar Tukaram Bhil with an order of seven days' remand in Police custody granted by the Judicial First Class Magistrate, Thasra. Accused Sampat Tukaram Bhil was also produced by the Head Constable Kalumiya Siddimiya with an order of remand to Police custody for seven days, granted by the Judicial First Class Magistrate, Thasra Both accused (1) Shankar and (2) Sampat had been treated by the Civil Surgeon, Kaira.

Head Constable Deshpande, who returned from Sondheli, produced investigation papers with his report including search panchnamas, to the effect that the houses of accused Shankar Tukaram, Sampat Tukaram and Gangaram Tukaram were searched by him on 1st October 1973 but nothing incriminating was found and that all the three accused had left Sondheli on the evening of 30th September 1973 and never returned back. Accused Gangaram was reported to have in his possession one D.B.B. L. gun without a licence. He is still absconding.

Head Constable Rathod returned from Ozaralalat and submitted a report to the effect that accused Bhikya Gendya, Somya Gendya, Nanya Chendya and Devji. Chendya, all Bhils were absent from Ozaralalat since the evening of 30th September 1973.

Sent a memo to the Executive Magistrate Thasra with a request to hold the identification parade. Also made arrangements for keeping the complainant and witnesses present for identifying the accused.

An identification parade in the case of all the arrested accused was held by the Magistrate in the presence of panch. Complainant Ambalal Mohanlal Patel identified accused Shankar Tukaram Bhil, Sampat Tukaram Bhil and Devji Chendya Bhil, saying that they were amongst persons who raided and looted his house. Complainant's son Ramchandra and nephew Govind could not identify any of the accused. Received a copy of a panchnama accordingly.

Accused Gangaram Tukaram Bhil is yet to be arrested. The arrested accused are to be con-fronted with each other and the gun used for the commission of the offence is to be recovered. For these reasons, the presence of the accused Bhikya Gendya, Somya. Gendya, Nanya Chendya and Devji Chendya, is necessary. Hence sent them under proper escort within 24 hours of arrest to the Judicial First Class Magistrate, Thasra with a report along with a copy of the case diary, for remand of the accused to Police custody for seven days from 2nd October 1973.

Arrived at Angadi at 7 p.m. The attached property (gold ornaments, Government Currency Notes, etc.) was shown to the complainant, his son Ramchandra, nephew Govind, Salubal w/o Ambalal, Sonubai w/o Jayant and goldsmith Ramesh Anand Soni. All of them identified the ornaments as belonging to the complainant.

Recorded supplementary statements of complainant Ambalal Mohanlal Patel his, son Ramchandra and nephew Govind as regards the identification of the accused and the property. All of them identified the property and stated that the two bamboo sticks attached from their house belonged to them.

Recorded statements of Salubai w/o Ambalal, Sonubai w/o. Jayant and Ramesh Anand Soni. All of them corroborated the complainant in material particulars Ramesh Anand Soni identified the gold ornaments as made by him and as belonging to the complainant.

Recorded statements of Raghoji Anaji, Police Patel of Angadi, Arjun Nana Patel, Pundlik Baburao Patel and Eknath Devji Patel, all of Angadi They reported the story given out to them by the complainant rater the culprits had departed.

Questioned Rambhaji Sanya, a village servant of Angadi and recorded his statement. He corroborated the Police Patel of Angadi in his statement and stated that the report of the offence which

was given to him by the Police Patel was handed over by him to the Police Sub-Inspector at 5.30 a. m. on 1st October 1973.

Sent requisite crime forms duly filled in to Modus Operandi Bureau.

Operandi Bureau.

Head Constable Shankar Govind, B. No. 465, returned from the Civil Hospital with the post-mortem notes, certificates of injuries sustained by the complainant, his son Ramchandra, nephew Govind and accused Shankar and Sampat, and with the control samples of hairs collected from the deceased. The injuries in the certificates tallied with the injuries mentioned in the panchname concerned. In the post-mortem notes the Civil Surgeon, Kaira had opined that the death of deceased Jayant was "due to haemorrhage and a fracture of the skull as a result of an injury on the head."

Obtained sanction from the Sub-Divisional Police officer, Anand Division, for sending the blood-stained articles and cloths to the chemical Analyser, Junagadh and hairs and cartridge cases to the Forensic Science Laboratory, Ahmedabad for examination.

Received an order from the Judicial First Class Magistrate, Thasra granting seven days' remand in Police custody in the case of accused Bhikya Gendya and three others, who had been sent to him.

In all property worth Rs. 6,800-00 has been recovered, including the two arrested on 1st October 1973. So far six accused have been arrested, including the two arrested on 1st October 1973. One culprit named Gangaram Tukaram Bhil is still to be arrested.

Investigation in progress.

Copies submitted to the S.P.Kaira the Sub-Divisional Police Officer, Anand Division, and Circle Police Inspector, Anand Division, on 3rd October 1973.

CAMP:ANGADI

(Sd.)

P. S. I. Thasra.

3rd October 1973.

(b) 6 a.m to 6 p.m Angadi Ozaralalat
(c) Piparala, Ozarala, Thasra

(1) Complainant:-Ambalal Mohanlal Patel of Angadi.
(2) P. S. Rs. 8,600-00 gold ornaments and C.N. P.R.
Rs. 6,800-00 gold ornaments and currency Notes.
(3) Accused:- Shankar Tukaram, Bhil and five others
on 7 day's remand in Police custody from 2nd October

1973

Closely questioned accused (1) Shankar Tukaram Bhil, (2) Sampat Tukaram Bhil, (3) Bhikya Gendya Bhil, (4) Sonya Gendya Bhil, (5) Nanya Chendya Bhil and (6) Devji Chendya Bhil and confront them with one another. All of them admitted having committed the offence along with Gangaram Tukaram Bhil of Sondheli, who was absconding with a D.B.B.L. gun. They stated that his whereabouts were not known to them. Shankar Tukaram Bhil further disclosed that the canvas shoe and pugree found on the scene belonged to him. He offered to point out the other canvas shoe which was buried by him in the nallah adjoining Mahadu Nanji Patel's field. Recorded the statements of all the accused.

In the presence of the panch. Shankar Tukaram Bhil showed a place in nallah adjoining Mahadu Nanji Patel's field and took out one canvas shoe which was buried by him in the sand. It was found to be one of a pair with the canvas shoe attached from the scene of offence. The canvas shoe worth Rs.5-00 produced by Shanker was, therefore, attached under a panchnama.

Deputed Policemen in search of absconding accused Gangaram Tukaram Bhil to Sondheli and surrounding village.

Sent all the arrested accused under proper escort to the Police Station and went to Ozaralalat with the attached pair of canvas shoes, the pugree and the blood-stained axe.

Showed the attached property to Rasiklal Tulshiram, Police Patel of Ozaralalat and village servant Pundlik Maruti Koli of Ozaralalat. Both of them identified the blood-stained axe as belonging to accused Somya Gendya Bhil and stated that it was made by ironsmith Bhika Ganpat Luhar, who identified it as belonging to accused Somya Gendya Bhil of Ozaralalat and stated that the same was made by him, two years back at Somya's instance. Accordingly recorded statement of (1) Rasiklal Tulshiram, Police Patel, (2) Pundlik Maruti Koli and (3) Bhika Ganpat Luhar all of Ozaralalat.

As there was a likelihood of finding the D. B. B. L. gun used in the commission of the offence in one of the houses of the accused Bhikya Gendya, Somya Gendya, Nanya Chendya and Devji Chendya, Bhils of Ozaralalat recorded the grounds for searched the houses of the above four accused in the presence of the panch, but nothing incriminating was found. Drew up panchnamas accordingly.

Immediately proceeded to Sondheli and continued inquiries about the absconding accused Gangaram Tukaram Bhil of Sondheli. He was, however, not traced in Sondheli. Obtained his description.

In the inquiries it transpired that accused Shankar Tukaram Bhil was working as a servant with one Ramanlal Maganlal Patel of Sodheli. Hence called Ramanlal Maganlal Patel and showed him the attached pair of canvas shoes and the pugree. He identified both the articles as belonging to his servant Shankar Tukaram Bhil and stated that he had disappeared from the village on the evening of 30th September 1973. Recorded his statement.

Arrived at Thasra and arranged to take finger impression slips of all the arrested accused. As all of them are willing to make confessions about the commission of the offence, sent them to the Judicial First Class Magistrate, Thasra, with a report requesting him to record their confessions (Section 164, Criminal Procedure Code).

Sent letters to the Police Sub-Inspectors of neighboring Police Stations for tracing the absconding accused Gangaram Tukaram Bhil of Sondheli.

Investigation in progress.

Copies submitted to the So P. Kaira Sub-Divisional Police Officer, Anand Division, and Circle Police Inspector, Anand Division, on 4th October 1973.

CAMP THASRA

Sd.

P. S. I. Thasra.

6th October 19'13.

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(b) 8 a. m. to 11. a. m.

(1) Complainant: Ambalal Mohanlal Patel of angadi.

(c) Thasra.

(2) P.S.: Rs. 6,800-00 gold ornaments and Currency Notes.

P.R.: Rs. 6,800-00 gold ornaments and currency Notes.

(3) Shankar Tukaram Bhil and five others on seven days' remand in Police custody from 2nd October 1973 and returned to Magisterial custody from 3rd October 1973.

The Policemen deputed to Sondheli and surrounding villages returned and reported that absconding accused Gangaram Tukaram Bhil of Sondheli was not traced and that his whereabouts were not known.

It was learnt that all the six accused who had been forwarded to the Judicial First Class Magistrate, Thasra on 3rd October 1973 had made their confessions on 5th October 1973. Obtained copies of confessions.

As there was sufficient evidence against accused (1) Shankar Tukaram Bhil, (2) Sampat Tukaram Bhil, (3) Bhikya Gendya Bhil, (4) Somya Gendya Bhil, (5) Nanya Gendya Bhil and (6) Devji Gendya Bhil sent a charge-sheet against them to the Judicial First Class Magistrate, Thasra, within the remand period (Section 170, Criminal Procedure Code). Descriptive rolls of the accused persons were attached to the charge-sheet

Gave intimation to the complainant in the prescribed form about the disposal of the case (Section 173(1) (b), Criminal Procedure Code)

Made arrangements to send the blood-stained clothes and articles to the Chemical Analyser, Junagadh and hairs and cartridge cases to the Forensic Science Laboratory, Ahmedabad, for examination.

Accused Gangaram Tukaram Bhil of Sondheli has been shown as absconding in the charge-sheet. Enquiries to trace him are being continued vigorously. A supplementary charge-sheet will be sent against him in case he is traced.

Submitted a report to the Superintendent of Police, Kaira, with a request to make arrangements for publishing the description of absconding accused Gangaram Tukaram Bhil of Sondheli in the Gujarat Police Gazette and the District Police Gazette. The absconder's name has been noted in the Police Station Absconders' Register. A note has been taken for taking action against him under Sections 82 to 83 and 299, Criminal Procedure Code, in case he is not traced.

Head Constable Kalumiya Siddimiya of the beat, has done good work in the investigation of the case. Copies submitted to the S. P. Kaira, Sub-Divisional Police Officer, Anand Division and Circle Police Inspector, Anand Division, on 7th October 1973.

CAMP : Thasara.

(sd.)
P.S.I. Thasara.
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20th October 1973.

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(a) 4 to 5 p. m.

(1) Complainant: Ambalal Mohanlal Patel of Angadi

(b) Thasra.

(2) P. S. : Rs. 6,800-0 gold ornaments and Currency Notes.

P. R. : Rs. 6,800-0 gold ornaments and currency Notes.

(3) Accused : Shankar Tukaram Bhil and five others already sent up on 6th October 1973.

Received a certificate from the Chemical Analyzer Junagadh with the report of the Serologist, in connection with the blood-stained articles sent to him for examination, to the effect that human blood was detected on the dhoti, the shirt, the axe and the earth, and that the blood on all the articles belonged to the same group as that of the deceased

Also received certificate from the Forensic Science Laboratory in connection with hairs to the effect that the hairs attached from the axe tallied with those attached from the deceased and the hairs attached from the bamboo sticks and the pugree tallied with those attached from accused Shankar Tukaram, and that the cartridge cases were fired from a 12 bore D. B. B. L. gun.

The articles sent to the Chemical Analyzer Junagadh and Forensic Science Laboratory, Ahmedabad, have been received back.

Inquiries about the absconding accused Gangaram Tukaram Bhil of Sondheli were continued through subordinates Policemen and the Police Sub-Inspectors of neighboring Police Stations but to no effect. Inquiries about him through informants are in progress.

Copies submitted to the S. P. Kaira, Sub-Divisional Police Officer, Anand Division, and Circle Police Inspector, Anand Division, on 21st October 1973.

CAMP : THASRA

(Sd.)
P. S. I Thasra.

APPENDIX XXIII

Rule 273(2)

Advisory Board to revise the sentences of long-term prisoners

Introductory

The Indian Jails Committee, in paragraphs 452 to 454 in Chapter XVI of their report, made proposals for the introduction of a system of periodical revision of long-term sentences. Both the Government of India and the State Government accepted the proposals. The principle underlying the proposals was that whilst a serious offence must call for a severe sentence, the trying Courts have insufficient means at their command for nicely judging the import of their own sentences. The real severity of a sentence must largely depend upon the idiosyncrasy of a prisoner or his nature and antecedents. The ultimate effect of the sentence is a matter only to be judged by experience. Modern penology recognizes that imprisonment should be not merely an instrument for exacting the retribution demanded by society, but should also be used for the reformation of the convict, and this reformatory element may manifest itself in some cases more speedily and plainly than in others. Here there is scope for an Advisory Committee who on the records of the man's behavior in jail and, if necessary, on his demeanor before them, supplemented by the record of the crime for which he has been imprisoned and by such enquiries as may be necessary into his antecedents before his conviction, can assess the actual severity of the sentence and judge how far it has a salutary and reformatory influence. The convict's old age, infirmity or any serious ailment can also be taken into consideration by the Advisory Committee.

Constitution of Advisory Committees

2. An Advisory Committee is set up at the headquarters of every district in which long-term convicts are imprisoned. It consists of the District Magistrate, Sessions Judge, Superintendent of Police and two nominated local members, subject to the proviso that when either the Deputy Inspector-General of Police of the Range or the Deputy Inspector-General of Police, Criminal Investigation Department (Crime and Railway), can arrange to attend, he shall be a member of the Committee instead of the Superintendent of Police. The appointments of the two nominated local members shall be made for a period not exceeding three years. The President shall be the District Magistrate or the Sessions Judge, according to seniority.

3. In Commissionerate area, the Advisory Committee consists of the Chief Metropolitan Magistrate as President, the Commissioner of Police and two nominated local members whose appointments shall be made for a period not exceeding three years, and in addition 2 M. L. As.

Arrangements for the revision of sentences

4. The Advisory Committee will meet every six months to review the sentences of all convicts. The cases of all non-habitual prisoners should be brought before the Committee on completion of half of their sentences (i.e., after 7½ years in case of life convicts instead of 10 years) including remission, and in no case later than five years. The cases of habitual criminals should come up for review before the Committee when they have undergone two-thirds of their sentences including remission. If the Committee recommends the premature release of a prisoner, the case of the prisoner shall be submitted by the Inspector-General of Prisons for the orders of Government. If it decides not to make a recommendation for the immediate release of a prisoner, it shall order that the case of the prisoner should be submitted to it for consideration after an appropriate period, which must not exceed three years.

Working and procedure of the Advisory Committee

5. In order that the necessary information may be laid before the Advisory Committee, the following procedure should be adopted. On the 15th February and the 14th August, the Superintendent of the prison should make out a statement of all convicts whose sentences have fallen due for review according to the instructions contained in paragraph 4 above, since the last meeting of the Committee. The Advisory Committee will assemble as soon as possible after the 28th February and 31st August, so that the meetings shall be held regularly in March and September. The Committee will consider with regard to each convict except in the case of habitual prisoners, the information laid before them. The period of imprisonment undergone should include jail remissions actually earned by the convict for work, conduct or special services, and the sentences should also include those in lieu of payment of fine.

6. In the case of habitual prisoners, a different procedure should be adopted. Nominal rolls of such prisoners should be placed before the Advisory Committee at the meeting before their cases are due for review and the Committee should decide which cases they find suitable for consideration. The papers in such cases should be

prepared for the following meeting and these cases reviewed in the ordinary course. The rejected cases should not be reviewed again for premature release, but should be treated under the ordinary rules.

7. At the time of admission to jail of a convict, excluding juvenile females confined in the Ahmedabad Central Prison whose case will be eligible for review, the Superintendent should obtain a statement of his character and antecedents from the District Superintendent of Police concerned or in the case of Commissionerate area from the Commissioner of Police, and a copy of the judgment or heads of charge to the jury from the convicting Court. When neither judgments nor heads of charge have been recorded in the case of convicts tried before the High Court Sessions, Ahmedabad copies, of the depositions in the Committing Magistrate's Court should be called for from the Clerk of the Court as soon as the sentence becomes ripe for revision.

8. When the sentence is ready for review, the Superintendent of the Prison should obtain a definite recommendation for or against the release of the convict from the Commissioner of Police in the case of Commissionerate area or from the District Magistrate of the district of which, the convict is a native, as well as from the District Magistrate of the district in which he was convicted. Special reasons should be furnished by the Committee if it recommends the release (a) of a convict in opposition to the opinion of the District Magistrate or of the Commissioner of Police, or (b) of a habitual convict. The recommendations of the Committee together with the documents of the prisoners recommended for release should be submitted to Government through the Inspector-General of Prisons.

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9. The Committee should not, as a rule, interview the prisoners, unless they have special reasons for wishing to see them (e. g., when release is proposed on the grounds of age or infirmity), or to ask them questions. The meeting of the Committee should be held in the Superintendent's office, and not in one of the jail barracks, and prisoners need not be informed, until the orders of Government are received, that their cases have been under consideration.

10. To enable the Criminal Investigation Department (Crime and Railway) to supplement by means of their record and through the Finger Print Bureau the information contained in the reports furnished by the District Magistrates of convicts to be placed before the Advisory Committee, a duplicate copy of the statement referred to in paragraph 7 above should be furnished to the Chief Operator attached to the jail as early as possible before the date the Committee assembles.

11. The date of each meeting of the Advisory Committee when fixed should be intimated by the Superintendent of the Jail to the Inspector-General of Prisons, the Inspector-General of Police the Deputy Inspector General of Police, Criminal Investigation Department (Crime and Railway) the Superintendent of Police of the district and the Deputy Inspector-General of Police, Range in which the jail is situated. In the case of jails in Commissionerate area the intimation should be sent to the Inspector-General of Prisons only.

12. While making references to the Police regarding the character and antecedents of long-term prisoners to be placed before the Advisory Committee, copies of finger impressions should invariably be furnished to the Police in all cases in which convicts are not sentenced under Chapter XII or XVII of the Indian Penal Code or for any of the offences for which finger impressions are usually taken.

Instructions to officers and Advisory Committee

13. In order to avoid a lack of uniformity in their recommendations, Government officers and members of Advisory Committees should study carefully the underlying principles of the system of premature release, embodied in the introductory remarks in paragraph 1 above.

14. The Advisory Committee and the District Magistrate supplying the information will recognize that action under these rules must be in no sense mechanical and that they must treat the question of release with the same seriousness with which they would treat the question of imposing a sentence. They must look to the nature of the original offence and to the propensities of the convict as displayed by it, to see whether even exemplary conduct in jail is a sufficient guarantee of continued good conduct outside of it. Offences which displayed cold-blooded deliberation and convictions imposed after a long career of crime will prima facie induce in the minds of the Committee a greater degree of caution than offences committed without premeditation or first convictions. While it is recognized that there is no class of crime in which it is impossible to distinguish degree of heinousness, it is not intended to exclude any particular crimes from the review of the Advisory Committee, but it will require a very strong case to induce Government to consider the release of persons convicted of systematic or organized crime or specially serious offences. The Committee will also be expected to consider whether, looking to the nature of the offence, the public conscience is likely to be shocked by any display of clemency in any particular case. Generally they will endeavour to strike a just balance between the proper demand of the public conscience for the punishment of the guilty and the undesirability of keeping truly repentant criminals who may on release be useful citizens a day in jail after that proper demand has been satisfied. In making the recommendations, the

Committee will state whether in their opinion the release should be unconditional and, if not what conditions they would recommend in each particular case.

15. The District Magistrates and Superintendents of Police concerned are in a position to advise the Committee as to whether the release of any particular convict is objectionable from the district point of view. The details of the offence, the previous character of the convict and conditions in his home are before them and they can estimate whether his premature release is likely to be dangerous to the community, or to shock the public conscience. It must be emphasized, however, that after the lapse of several years, local impressions gathered by subordinate officials from a new generation of men or from old enemies may not be an important and reliable guide. District officials must, therefore, investigate carefully the grounds on which they form their opinions and set them out fully. The Advisory Committees should carefully consider the opinions of the district officers and the grounds on which they are based.

16. But even if there is no local objection, it remains for the Committee to consider the idiosyncrasy of the convict, the nature and circumstances of his offence, the conduct of the convict while in prison, the reformatory influence of jail life on him and his age or physical condition and the reasonable probability or the reverse of the convict's becoming a peaceful and law-abiding citizen. In particular, the Committee will also take special note of those circumstances which were not within the knowledge of the Court when the sentence was awarded. While considering all these factors, the Committee should also bear in mind that Government will be reluctant to sanction the premature release of persons convicted of systematic or organized crime or specially serious offences.

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APPENDIX XXIV

Rule 273(3)

Submission to Government of cases of life convicts and convicts sentenced to 15 year or more.

The sentence of a life convict is considered to be 15 years' actual imprisonment.

2. All life convicts and all convicts who have been given a total sentence of 15 years or more are released on completion of 15 years actual imprisonment except in the following cases:-

(a) Cases of prisoners whose conduct in Jail is considered as unsatisfactory for having committed serious assaults on fellow prisoners or prison official, etc.

(b) Cases of prisoners who have been prosecuted and convicted for an offence committed after admission to Jail under the Prisons Act or under the sections enumerated in Rule 781, Bombay Jail Manual. .

(c) Cases of prisoners who are sentenced by Military Courts or by Courts outside the State or Gujarat.

Cases of convicts referred to in (a), (b) and (c) not having been previously released on the recommendation, of Advisory Committees, are referred direct to Government by the Inspector-General of Prisons at least 3 1/2 months before the completion of 15 years.

3. The principles followed by Government in ordering the release of life convicts are as follows:-

A convict who has served for 15 years should normally be regarded as having expiated his offence and should be entitled to release. There are, however, two factors which must influence the final decision:-

(a) Release must not be prejudicial to the safety or welfare of the public or individuals.

(b) Release must not be such as to impair jail discipline.

It will be noted that the nature or details of the offence are not per se relevant. After the convict has spent 15 years in jail, strong reasons must exist why the convict should not be released even conditionally, i.e. on a bond of good behavior, with or without sureties. The criterion is whether any danger to the public which may arise from the convict's release is so serious as to warrant his detention beyond the full normal period. In assessing this issue, local officers will be guided in making their recommendations by any special local circumstances which may have attended the crime and which may suggest a possibility or further serious crime, if the convict is released. If such a possibility exists, the suitability of conditional release should be considered, when conditions are suggested, they should not be prohibitive so as to make it impossible for the convict to fulfill them. It is enough if they are calculated to deter the convict from committing any further crime.

4. When a local officer is opposed to release or recommends conditional release, a clear and concise statement of the facts should be submitted. In the main, conduct in jail will be relevant only in so far as it provides an index to the conduct of a convict on release. Misconduct in jail is punished under the

jail rules and release will not be withheld on this account, unless the jail conduct of a prisoner is (a) so outrageous as to render any sympathetic consideration out of the question in the interests of jail discipline, or (b) such as to indicate that the convict on release will be a danger to the public

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APPENDIX XXV

Rule 274

Rules under Section 15 of the Ancient Monuments Preservation Act, VII of 1904, for admission to the Protected Archaeological Monuments

(1) No conferences, meetings, receptions, poetical symposia and other functions of a like nature are allowed within the protected area except with the written permission of the Government of India.

(2) No articles of food or drink are permitted to be brought inside the protected area except where certain portions have been earmarked for purposes of picnic.

(3) The cooking of meals within any part of the protected area is prohibited.

(4) Throwing cigarette and bidi ends, papers, leavings or any other rubbish in any part of the protected area, except in dustbins, is prohibited.

(5) Fire-arms should not be discharged within the protected area.

(6) Music and Unseemly and noisy behavior within the protected area are prohibited.

(7) Plucking of flowers and spitting within the projected area are strictly prohibited.

(8) Dogs or any other animals are not allowed within the protected area.

(9) Trade of any description, save under licence and touting on behalf of shops or firms are prohibited within the protected area. The display of advertisement in any form is also prohibited.

(10) Writing, carving, coloring, discoloring, disfiguring and writing or inscribing on any part of the monuments are strictly prohibited.

(11) Motor-Cars and other vehicles including cycles are not allowed to enter within the protected area, except in portions reserved for the purpose.

(12) The staff on duty are paid servants of the Government and are responsible for the due observance of these rules. These are prohibited from demanding or taking any fee or gratuity from visitors.

(13) The Government of India, may, by special notification in the Gazette of India, impose fees for the entry within the protected areas and regulate the hours of the opening and closing thereof.

(14) Any person breaking these rules will be liable to punishment under the provisions of the Ancient Monuments Preservation Act, VII of 1904.

APPENDIX XXVI

Rule 275(1)(a).

Extract from the Indian Aircraft Rules, 1937.

(1) General conditions of flying :-(a) According to rule 4, no person shall use or operate or assist in using or operating an aircraft, save in accordance with the Indian Aircraft Rules, 1937.

(b) According to rule 5, subject to the provisions of rule 33, no person shall fly or assist in flying in aircraft unless:-

(i) It has been registered, and

(ii) It bears its nationality and registration records and the name and residence of the owner affixed or painted thereon in accordance with rule 37 or in the case of aircraft registered elsewhere than in India, in accordance with the regulations of the State in which it is registered

Provided that the prohibition imposed by above rule shall not apply to aircrafts flying in accordance with the special permission in writing of the Central Government.

(2) Prohibited flight :-According to rule 5(a), except under and in accordance with the terms and conditions of a permit Issued by the Director-General of Civil Aviations :-

(a) No aircraft registered in India shall leave India for the purpose of a fly to a place outside India.

(b) No aircraft shall undertake a fly to any territory which the Central Government by a notification in the official gazette declare to be a prohibited territory.

(3) Prohibition of carriage of persons without passport :-No person incharge of an aircraft shall allow such aircraft to enter India from a place outside India unless all persons on board in the aircraft are in possession of valid passport, as required by rules under the Indian Passport Act, 1920.

(4) Carriage of arms, explosive or dangerous Goods etc :-According to rule 8, save as otherwise provide in the rule, no person shall carry or cause or permit to be carried in any aircraft to, from within or over India any munitions of war, implements of war, explosives, articles of a highly inflammable nature, arms, ammunition, military stores, oxidizing material, corrosive substance, compressed gas, tear gas, radioactive materials, poisonous substance or other dangerous goods except and in accordance with the conditions shown in sub-rules (2), (3), (4), (5), (6), (7) of rule 8 of the Indian Aircraft Rules

(5) Mails :-According to rule 10, no person shall carry mails or allow mails to be carried in any aircraft except with the consent in writing of the Director General of Posts & Telegraphs.

(6) Prohibited areas.-No person shall fly or assist in flying in aircraft over any of the areas specified in Schedule I of the Indian Aircraft Rules, save in accordance with the conditions specified in that schedule.

(7) Photographs at Aerodromes or from aircraft in flight.-According to rule 13, no person shall take or cause or permit to be taken at a Government aerodrome or from an aircraft in flight any photograph except in accordance and subject to the terms and conditions of a permission in writing granted by the Director-General, a Director of Information and Regulations or a Controller of Aerodromes of the Civil Aviation Department; provided that the Director-General may direct that these restrictions shall not apply to photography at any Government Aerodrome or within such limits of Government Aerodrome as may be specified in the order.

(8) Carriage of photography apparatus in aircraft.-According to rule 13 (a), no camera or other apparatus for recording photography shall be carried in any aircraft, except where-

(a) Permission specified in rule 13 has been granted or the camera or such apparatus or the bag containing camera or such apparatus is kept in custody of person in charge of the aircraft.

(9) Dangerous flying.-According to rule 21, no person shall fly in aircraft in such circumstances as by reason of low altitude or proximity to persons or dwellings or for other reason to cause unnecessary danger to any person or property.

(10) Carriage of persons suffering from mental disorder or epilepsy.-According to rule 24 (a), no person shall knowingly carry or permit to be carried or connive at the carriage of a person suffering from mental disorder or epilepsy in any aircraft. Exception has been given under the provision (a), (b) and (c) of the rule.

(11) Carriage of prisoners in aircraft.-According to rule 24 (b), no prisoner shall be taken abroad or carried on in an aircraft except under and in accordance with the permission issued by the Director-General.

(12) Carriage of animals, birds, reptiles in aircraft.-According to rule 24 (c), no animal, bird or reptile shall be taken abroad or carried on in an aircraft to, from and within India, except under a permit issued by the Director-General.

(13) Dropping of articles and descents by parachutes.- According to rule 26, no person shall drop or project or cause or permit to be dropped or projected from an aircraft in motion any thing except ballast in the form of fine sand or water; provided that nothing in the rule shall be construed as providing dropping of liquid fuel in an emergency or under conditions shown in (a), (b), (c), (d) and (e) of rule 26.

(14) Investigation of accidents.-Notification of accidents, report of accidents removal and preservation of damaged aircrafts appointment of Inspectors for investigation, Committee of Enquiry and the Court and their powers are given under rules 68 to 77 (a) of the Indian Air Craft Rules, 1937.

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Appendix XXVI

(15) Prohibition of entry into movement areas of an aerodrome.-According to rule 81 (a), no person shall without permission in writing by general or special order of the Director-General or officer authorized in this behalf (a) enter or remain or cause any other person to enter or remain in the movement area, (b) leave or throw or cause to be thrown any animal, bird or property or object of any nature whatsoever in the movement area, (c) permit any animal under his possession or under his control or otherwise to stray in the movement area, (d) operate any vehicle in the movement area, except-

(i) persons authorized under rule 18 (a) of the rules

(ii) bonafide passengers and crew members and their baggage, freight during the process of embarkation and dis-embarkation in the movement area.

(16) General Power to exempt.-According to rule 160, the Central Government may by general or special order in writing exempt any aircraft or class of aircraft or any person or class of persons from the operation of India Aircraft Rules, 1937, either wholly or partially, subject to such conditions, if any, as may be specified in such order.

APPENDIX XXVII

Rule 313(1)

Rules under Section 8 of the Identification of Prisoners Act, XXXIII of 1920

- (1) Short title.-These rules may be called the Bombay Identification of Prisoners Rules, 1936.
- (2) Definitions.-In these rules, unless there be anything repugnant in the subject or context:
 - (a) "Act" means the Identification of Prisoners Act, 1920.
 - (b) "Section" means a section of the Act, and
 - (c) words and expressions defined in the Act shall have the meaning assigned to them in the Act.
- (3) Taking of photographs or measurements.-Every person required to allow his photograph or measurements to be taken under Section 3 or Section 4, shall allow them to be taken under the directions of a Police officer.
- (4) Place at which measurements and photographs can be taken.-
 - (i) Measurements and photographs may be taken.-
 - (a) in Jail, if the person whose photograph or measurements are to be taken is in jail;
 - (b) at a Police Station or at any other place at which the Police officer may direct the taking of the measurements or photograph, if the person whose photograph or measurements are to be taken is in Police custody.

(ii) If the person whose photograph or measurements are to be taken has been released from jail before his measurements or photographs have or has been taken or is not in Police custody, he shall, on receipt of an order in writing from an officer-in-charge of a Police Station, attend at such place as may be specified in such order, on the date and at the time stated therein, for the purpose of having his measurements or photograph taken.

(5) Restriction on the taking of photographs.-(i) The taking of photographs under Section 3 shall ordinarily be restricted to persons having at least two convictions for an offence of the nature referred to in clause (a) of Section 3; but a person convicted of counterfeiting coins or currency notes, or of cheating robbery or dacoity, or a person who has exhibited considered preparation or unusual skill in the commission of his first offence may be photographed after the first conviction.

(ii) Photographs under clauses (b), (c) and (d) of Section 4 shall ordinarily be taken only with the permission of the Commissioner of Police/the Superintendent of Police.

(6) Restrictions on the service of an order under Rule 4 for taking measurements and photographs again.- No person whose photograph or measurements have been once taken under section 3 or 4 shall be required under Sub-Rule (2) of Rule 4 to attend at a Police Station or other place, to have such photograph or measurements taken again, unless such person again becomes liable under Section 3 or 4 to have his photograph or measurements taken again, unless such the photograph or measurements last taken are, in the opinion of the Deputy Inspector-General of Police Criminal Investigation Department, (Crime & Railways) the Commissioner of Police, the officer in charge of the Finger Print Bureau, or of any other local Police Officer, defective

(7) Measurements how to be taken.-(i) Measurements of the whole or of any part of the body may be taken

(ii) The measurements of a woman shall be taken by another woman with strict regard to decency

(8) Method of taking measurements and photographs and their copies.-(i) As many copies of finger print impressions may be taken as are required in accordance with the departmental rules or the time being in force and as many copies of foot-print Impressions may be taken as may, in the opinion of the Police officer taking them, be necessary for the identification of the person concerned.

(ii) Finger impressions shall be taken by applying printer's ink to the palmer surfaces of the fingers and thumbs above the first joint and then applying the surfaces so inked to a paper form prepared so as to show the impressions of each finger or thumb in the space provided for it.

(iii) Foot-print impressions shall ordinarily be taken by applying printer's ink to the sole of the foot and then applying the inked surface to a sheet of paper and/or by tracing the outline of the foot with or without shoes or boots, on a sheet of paper.

(iv) Photographs may be taken full face, side face, head, bust or full length.

(v) The person to photographed, shall, when he is not in jail, be first identified by two reliable witnesses. .He shall wear his ordinary clothes and shall be bare-headed or shall wear head gear, as required by the Police officer under whose direction the photograph is being taken such person may also be required to allow himself to be photographed wearing any other kind of clothes, If there is reason to suspect that he has worn such clothes for the commission of any offence.

(9) Custody and disposal of photographs and/or measurements taken under Section 5.-When a Magistrate of the First Class or a Metropolitan Magistrate directs under Section 5 that any person shall allow his measurements or photograph to be taken, the measurements or photograph together with the negative and all copies thereof shall be handed over to the Magistrate giving such direction and all remain the property of the Court to be filed with the records of the Court or otherwise used as the Court may deem fit and shall, subject to the provisions of Section 7, be disposed of finally as the Court may order.

(10) Custody and disposal of photographs and/or measurements taken under Section 3.-Photographs and measurements taken under Section 3, together with negatives and all copies thereof, shall be recorded and kept in safe custody by the Commissioner of Police/the Deputy Inspector-General of Police Criminal Investigation Departments, (Crime & Railways).

Spare copies of such measurements or photographs may be supplied to any Superintendent of Police or his subordinates within whose jurisdiction there is reason to believe that the person to whom the said measurements or photographs relate has committed an offence.

(11) Custody and disposal of other photographs and/or measurements.-(i) Photographs and measurements taken under Section 4, together with all negatives and Copies thereof, shall remain in the custody of the Police until the completion of the investigation or until the case is finally decided and thereafter shall, subject to the provisions of Section 7, be disposed of as prescribed in sub-rule (ii)

(ii) The photographs and measurements.-

(a) may if the person to whom they relate is subsequently convicted, be retained by any of the following officers, namely, the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime & Railways) the

Commissioner of Police, the Superintendent of Police or any of his subordinates within whose jurisdiction the person was either convicted or arrested, or is suspected to have committed an offence;

(b) shall be retained by any of the officers mentioned in clause (a), if proceedings of the nature mentioned in clause (a) and (b) of Section 4 have been taken against the person to whom they relate or if such person has been arrested under Section 41 of the Criminal Procedure Code or in connection with any offence specified in the schedule annexed to these rules and if the trying Court or, where the person is released without trial, the Commissioner of Police or the District Magistrate so direct, for reasons recorded in writing ;

(c) shall, if they are not retained under clause (a) or clause (b), be destroyed.

(12) Reproduction of photographs and measurements in "Police Gazette", etc.-The Deputy-Inspector General of Police, Criminal Investigation Department, (Crime & Railways) or the Commissioner of Police, may in his discretion, order the reproduction in the Police Gazette of photographs or measurements taken under these rules. All photographs and blocks prepared in connection with such publication shall remain in charge of the Deputy Inspector-General of Police, Criminal Investigation Department, (Crime & Railways).

(13) (a) A clerk in each Magistrate's Court should carefully take on a finger print slip a clear rolled thumb-impression of all persons convicted of offences under the Sections of the Indian Penal Code and other Acts mentioned in the Schedule and sentenced to Imprisonment. The slip should show in a clear legible hand-writing the exact details of conviction, date, Court, etc., and it should be duly attested by the Magistrate himself or a responsible officer of the Court. The slip should be then securely attached to the committal warrant and sent along with it to the Jail. The Jail authorities should enter the Jail admission number on the slip and hand it over to the Chief Operator on his visit to the Jail.

(b) The Chief Operator should check the entry in the jail Register with it and, after taking the convict impressions as at present, attach the slip to the finger Impressions slip and send both to the Finger Print Bureau where the thumb-impression and details of conviction on the Magistrate's slip will be tallied with those on the Chief Operator's slip to see that no error has occurred.

PART-I

Schedule of finger print Bureau Sections.

Two Finger Impression slips for record should be prepared. One for Central Finger Print Bureau, Calcutta, and the other for Finger Print Bureau, Ahmedabad .for the sections mentioned below :-

1 *Indian Penal Code*

CHAPTER VI

Sections.-121 , 121-A, 122, 123, 124, 124-A, 125, 126, 127, 128, 129 and 130.

CHAPTER IX

Section.-170

CHAPTER XII

Sections.-231, 232,233, 234,235, 236,237, 238,239,240, 241, 242,243,244,245,246,247,248,249, 250, 251, 252, 253, 254. (regarding currency) 255, 256, 257, 258, 259, 260, 261, 262 and 263. (regarding stamps)

CHAPTER XVI

Sections.-302, 304, 307, 308, 311, 325, 326, 327, 328, 329, 331, 333, 338, 363, 364, 365, 366, 366-A, 366-B, 367,368,369,370,371,372 and 373

CHAPTER XVII.

Sections 379, 380, 381, 382, 384, 385, 386, 387, 388, 389, 392, 393, 393, 394, 395, 396, 397, 398, 399, 400,401, 402, 403, 404, 406, 407, 408, 409, 411, 412, 413, 414, 417, 418, 419, 420, 421, 422, 423, 424, 427, 428,429, 430,431,432,433,434, 435,436,437,438,...439.440, 448,449,450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, and 462.

CHAPTER XVIII

Sections.-465, 466, 467, 468, 469,471, 472, 473, 474, 475,476, 477, 477-A, 489-A, 489-B, 489-C and 489-D. All approvers in gang, dacoity and criminal conspiracy cases.

Sections.-120-B, 395 and 401,

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Appendix XXVII

All persons convicted for attempt or abetment and criminal conspiracy for offences mentioned in this Schedule.

Sections.-109, 114, 120-B and 511

2. Criminal Procedure Code

Sections.-109 and 110 (for offences against property only)

3. Bombay Police Act. 1951.

Sections.-55, 56 and 57 (regarding externment)

4. Indian Railways Act (Act IX of 1890)

Sections.-101, 126 and 128

5. Telegraph Wires (Unlawful Possession) Act. LXXIV of 1960

Section.-5

6. Railway Property (Unlawful Possession) Act, 1966 (No. 29 of 1966)

Sections.-3 and 4

7. Identification of Prisoners Act (Act XXXIII of 1920)

(A) All persons suspected of being professional itinerant Criminals and persons of notoriously criminal reputation, who habitually absent themselves from their homes and are believed to travel to other States for the purpose of committing crime and who have been arrested by Police and whose Finger Prints have been taken even if they are acquitted provided that in case of acquittal permission for record for Finger Prints is obtained from the court under Section 7 of Act XXXIII of 1920.

(B) Any other person whose Finger Prints are ordered to be maintained by the Government of India from time to time, subject to the provisions of the Identification of Prisoners Act (Act XXXIII of 1920).

8. The Foreign Exchange Regulation Act VII of 1947

Section.-23

9. Foreigners Act XXXI of 1946

Section.-14

10. Explosives Substances Act VI of 1908

Sections.-3, 4 and 5

11. Official Secrets Act XIX of 1923.

Section.-10

12. Indian Arms Act, 1959

Sections.-25 and 26

13. All persons convicted under the Arms, Opium and State Excise Acts, who are suspected to be smugglers in arms, opium or dangerous drugs as defined in the Dangerous Drugs Act (Act 11 of 1930)

14. All Indian Nationals convicted outside India of any offence for which Finger Prints have been received at the State Bureau from those countries

15. All International Criminals and Absconders whose Finger Prints are sent to the State Bureau from countries outside India..

PART-II

One Finger Impression slip should be prepared for Finger Print Bureau. Ahmedabad for the sections mentioned below :-

1. Indian Penal Code

CHAPTER VIII

Sections.-147 and 153-A

CHAPTER XI

Section.-212

CHAPTER XVI

Sections.-324, 342, 343, 344, 345, 346, 347, 348, 353, 356, 357, 376 and 377

CHAPTER XXII

Section.-505

Sections.-41 (for search only) and 108

3. Bombay Police Act, 1951

Sections.-122, 135 (i), 135 (ii) and 142

4. Bombay Prohibition Act, 1949

Sections.-55, 65, 67, 68, 69, 72, 83, 85, 93, 95, 96 and 97

5. Bombay Prevention of Gambling Act V of 1926

Sections.-4, 5, and 12 (if the offences consist of the wagering or betting)

6. Bombay Habitual Offenders Restriction Act LI of 1947.

Sections.-7, 8, 12, 18, 19 and 20

Finger Impression slips of all members restricted under this Act should be sent to the Finger Print Bureau for record.

7. Bombay Beggers Act XXIII of 1945.

Sections.-4 (for search only) 5 (5), 6, 9 and 23.

8. Suppression of Immoral Traffic in Women and Girls Act LV of 1956.

Section.-3, 4, 5, 6, 8 and 9

9. Removal of Untouchability (Offences) Act, 1955.

Sections.-7 and 8

10. Regulation Act XII of 1827.

Section.-27

11. Foreigners Act of 1946.

Section.-14

12. Dangerous Drugs Act II of 1930

Sectionf.-10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20 and 21 (abetment)

13. Rule 6 of the Rules made under the Passport Entry into India Act, 1920.

Note.-In addition to the number of Finger Impression slips to be prepared as per schedule of sections mentioned in Parts I and II, additional Finger Impression slips of the offender should be prepared if he is a resident of other State, if he has previous conviction of other State and if his search slip is traced in the Finger Print Bureau of other State as per requirements

(Govt. letter, H. D. No. HPB-1067-28166-C, dated 23rd June, 1970)

APPENDIX XXVIII**Rule 321 (22)**

(See section 71)

The Eighth Schedule-Limits of Speed for motor vehicles

Class of Vehicle	Maximum speed per hour in Kilometers
(1) If all the wheels of the vehicle are fitted with pneumatic tyres and the vehicle is not drawing a trailer :-	
(a) if the vehicle is a light motor vehicle or motor cycle.	no limit
(b) if the vehicle is a medium or heavy passenger motor vehicle	60
(c) if the vehicle is a medium, or heavy goods motor vehicle	60
(2) If the vehicle is an articulated vehicle (all the wheels of which are fitted with Pneumatic tyres) which is a heavy motor vehicle.	50
(3) If the vehicle is drawing not more than one trailer (or in the case of artillery equipment, not more than two trailers) and all the wheels of that vehicle and the trailer are fitted with pneumatic tyres:-	
(a) if the vehicle is a light motor vehicle and the trailer being two-wheeled has a laden weight not exceeding 800 kgs	60
(b) if the vehicle is a light motor vehicle and the trailer has more than two wheels or a laden weight exceeding 800 kgs.	50
(c) if the vehicle is a medium motor vehicle	50
(d) if the vehicle is a heavy motor vehicle	40
(e) if the vehicle is a heavy motor vehicle used by the fire brigade.	50
Any case not covered by entry (1), (2) or (3)	30

COMMON TRAFFIC OFFENCES

Under Motor Vehicle Act, 1939 and Bombay Motor Vehicle Rules 1959.

Nature of offence	Section of the Act or Rules applicable.
(1) Overloading	
(a) Overloading of goods trucks	Section 72 (3) and/or Section 74/124. M. V. Act
(b) Carriage of excess passengers than specified in the permit in a contract carriage i. e. taxis.	Rule 26 (20) /Section 112.
(c) Carriage of excess passengers than the seating and standing capacity in public service vehicles i.e. passenger bus.	Rule 36 (viii)/Section 112 .
(2) Speeding	
(a) Exceeding the maximum speed limit provided in the Eighth Schedule for motor vehicles	Section 71 (1)/115 of M.V. Act.
(b) Exceeding the speed limit imposed by the District Magistrate Act and the Commissioner of Police.	Section 71 (2)/115 of M. V.
(3) Motor Driving Licenses.	
(a) Without motor driving licence or with expired motor driving licence or without a licence applicable to the vehicle.	Section 3/112 of M. V. Act.
(b) Driving with expired temporary authorization	Rule 14 (2) {Section 112.
(c) Non-production of motor driving licence for examination by any police officer in uniform.	Section 86 (1)/112 of M.V. Act.
(d) Allowing a licence to be used by another person.	Section 6 (2)/112 of M. V. Act.
(e) Driving when disqualified.	Section 18/114 of the M. V. Act
(4) Insurance and Fitness Certificate	
(a) Without insurance certificate or with expired insurance certificate	Section 94/125 of M. V. Act.

- (b) Non-production of insurance certificate on being so required by a police officer in uniform.
- (c) Without certificate of fitness of transport vehicles

Section 106/112 of M. V. Act.
Section 38/112 of M. V. Act

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Appendix XXVIII

(5) Registration Certificate

- (a) Driving an unregistered vehicle
- (b) Non-production of certificate of registration on demand by police officer in uniform.

Section 22/123 of M. V. Act
Section 86/(2)/112 of M. V

6) Permits

- (a) Without a permit authorizing the use of a motor vehicle (transport vehicle) in any public place.
- (b) Driving a vehicle in contravention of the conditions of permit
- (c) Carrying fare-paying passengers in a private motor vehicle without a permit.
- (d) Carrying excess unauthorized persons in goods vehicles than permitted.
- (e) Carrying more animals than prescribed in a goods vehicle (0.19 square meter for each goat, sheep, deer or pig and 2m x 1m meter per head of cattle and speed 24 Kms per hour)

Section 42/123 of M. V. Act

Section 42/123 of M.V. Act.
Section 42/123 of M.V. Act

Rule 118 (1) /Section 11
M. V. Act.
Rule 91/Section 112 of M.V. Act

(7) Defects in construction, equipment of a motor vehicle

- (a) Using a vehicle in unsafe condition in any public place
- (b) Using defective vehicle in any public place.
- (c) Driving a vehicle without proper lights in front and the rear as prescribed during night time.
- (d) x. motor vehicle not fitted with proper brakes as prescribed.
- (e) A motor vehicle, other than a motor cycle without power of reversing.
- (f) Driving a motor vehicle without a horn as prescribed
- (g) Fitted with a horn giving an unduly harsh and shrill noise
- (h) Without a bulb horn for a transport vehicle
- (i) Driving a motor vehicle with noisy silencer
- (j) A private motor vehicle without a mirror fitted internally or externally.
- (k) A transport Vehicle without a mirror fitted externally
- (l) Undue noise caused by a transport vehicle, when in motion.
- (m) Glasses of the front windscreen side and rear windows not clear.
- (n) Windscreen wiper not clear
- (o) Pneumatic tyres of a vehicle not in good and sound condition
- (p) No partition by the side of the driver's seat for goods vehicles and public service vehicles.
- (q) Damaged body of the goods vehicle
- (r) Without wooden chocks for goods vehicles
- (s) Non-exhibition of particulars, on a transport vehicle, as prescribed
- (t) Non-exhibition of registration mark i.e. number plate, clearly and legibly.
- (8) Other breaches of Regulations.
- (a) acting as a conductor of a stage carriage without a conductor's licence. I
- (b) refusal by the driver of a goods vehicle to take the vehicle on a weigh bridge.
- (c) wrong parking of motor vehicles in any public place.

Section 121 of M. V. Act.
Rule 145/Section 112 or 121 of
M.V. Act.
Rule 146/Section 112

Rule 147/Section 112
Rule 148/Section 112

Rule 149 (1) Section 112
Rule 149 (2)/Section 112
Rule 149 (4)/Section 112
Rule 150/Section 112
Rule 151/Section 112

Rule 151/Section 112.
Rule 153/Section 112.
Rule 155/Section 112

Rule 156/Section 112
Rule 158/Section 112
Rule 211 (1) /Section 112
Rule 183 (2)/Section 112
respectively
Rule 209/Section 112
Rule 210/Section 112
Rule 49/Section 112

Rule 47(2)/Section 112.

Section 21-A/Section 112.

Section 73/Section 112.

Section 76/Section 112

- | | |
|--|-------------------------|
| (d) not driving in conformity with "mandatory traffic signs" included in part A of the Tenth Schedule of the M.V. Act. | Section 78/Section 112. |
| (e) committing breach of "Driving regulations" set forth in the Tenth Schedule of the M. V. Act. | Section 78/Section 112 |

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Appendix XXVIII

Some of the common offences are as below:

- | | |
|--|--|
| (i) Driving through the centre of the road and not keeping to the left, | |
| (ii) Overtaking a vehicle in front in a dangerous manner, causing danger to other traffic. | |
| (jjj) Overtaking a vehicle in front on a curve or Corner or on a hill or at road junctions, | |
| (iv) Increasing the speed of vehicles when being overtaken by another vehicle and thereby preventing to be overtaken and causing danger to other traffic, | |
| (v) Not decreasing the speed of the vehicle at road inter-sections road junctions or road corners thereby causing danger to the other traffic, | |
| (yi) Not giving way to traffic on right on approaching road inter-section or if the road entered upon is a main road, not giving way to all traffic thereon. | |
| (f) Not showing proper and correct signals set forth in the Eleventh Schedule of the M.V. Act. | Section 79/
Section 112. |
| (g) Any motor vehicle with left hand steering control not equipped with mechanical or electrical device. | Section 80/
Section 112. |
| (h) Leaving a vehicle in a dangerous position on any road. | Section 81/Section 112. |
| (j) Riding on running board of a vehicle. | Section 82/Section 112. |
| {j} Stationary vehicles in any public place without an attendant. | Section 84/Section 112. |
| {k} Carrying a person on the petrol tank of a two-wheeled motor cycle or carrying more than one pillion person. | Section 85/Section 112. |
| {l} Refusing or failing to stop the vehicle and remain stationary when required to do so by the police officer in uniform. | Section 81/Section 112. |
| OR | |
| when required to do so by any person in charge of an animal if such person apprehends that the animal is or being alarmed by the vehicle, | Section 87/Section 112. |
| OR | |
| When involved in an accident to a person, animal, vehicle or a property, etc. | Section 81 (1) (c)/
Section 118--A. |
| (m) Not securing medical attention or not giving information to the police in case of accidents. | Section 89/Section 118-A |
| (n) Obtaining or applying for a license without giving particulars of endorsements. | Section 114. |
| (O) Driving at excessive speed. | Section 115. |
| (P) Driving vehicles under the influence of drink or drugs. | Section 111 (Cognizable) |
| (q) Driving when mentally or physically unfit to drive | Section 118. |
| (r) Taking part in unauthorized race or trial of speed. | Section 120. |
| (.r) Taking away vehicle without authority. | Section 126 (Cogni.) |
| (I) Carrying person in goods vehicles upon the goods at a height Exceeding three meters from the surface upon which the vehicle rests. | Rule 118 (4)/Section 112. |
| (u) More than one person by the side of the driver's seat in public service vehicle/goods vehicle. | Rule 183(4) or 211/Section 112 |
| {y} Dangerous projection of load in any goods vehicle exceeding 125 centimeters beyond the rearmost part of the vehicle. In case | Rule 266/Section 112. |

- of poles, 1 .85 meters height exceeding 3 .8 meters from the Surface upon the which the vehicle rests.
- (w) Excessive sounding of horns or other device fitted to a motor vehicle. Rule 268 (1)/Section 112.
- (x) Causing danger or inconvenience due to dazzling light of the motor vehicle. Rule 272/Section 112.

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APPENDIX XXIX

Rule 374 (1)

Model provisional notification under the Public Conveyances Act

A (1) No..... Whereas it is proposed to extend the provisions of the Bombay Public Conveyances Act, VII of 1920, to.....

And whereas it is proposed to appoint the Superintendent of Police,....., to perform the duties by the said Act assigned to the Commissioner of Police;

Now, therefore, the following draft of certain tables of fares list of stands and subsidiary rules made by the Superintendent of Police, , is published for the information of persons likely to be affected thereby and notice is hereby given that the draft will be taken into consideration on or after the----- day of-----19.

Table of Fares by distance

Table of Fares by time

List of Stands

Subsidiary Rules

1. In these rules-
 - (a) "Public Conveyance" means ; and
 - (b) "Day" means the period from sunrise to sunset.
2. No pony shall be used in a licensed conveyance, if below 12.2 hands in height.
3. The number of passengers excluding the driver and the weight of the luggage allowed to be carried in addition to the full number of passengers shall not exceed the limit laid down below

Description of vehicles	Number of passengers excluding the driver	Weight of luggage allowed to be carried in addition to the full number of passengers	Remarks

In reckoning the maximum number of passengers, children in arms shall not be counted. Two children, not being children in arms but each being under the age of 12, shall count as one passenger.

4. The fares shown in the table are for the use if the conveyance, whether the full number of passengers is carried or not.

5. The fares shown in the table are for the single journey. For a return journey, provided that the period of detention at the end of the outward journey does not exceed half an hour. If it exceeds half an hour, the driver shall be entitled to charge paisa-extra for every hour or part of an hour of detention, in addition to the half fare for the return journey.
6. If a public conveyance engaged for the day be retained after sunset, the rates per hour for every hour of such retention shall be payable in addition to the rate for the day.
7. In any case in which the public conveyance is called from a stand of the owner's stable to any place distant more than half a mile from such stand or stable, the driver shall be entitled to charge paisa-in addition to the prescribed fare. The driver is also entitled, in addition of the prescribed fare to a fare of paisa for each quarter of an hour of detention by the hirer at the commencement or end of a journey beyond the time necessary for the journey.

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Appendix XXIX

8. The driver is not bound to carry in his conveyance any goods other than personal luggage.
9. The horses or ponies used in a licensed conveyance shall be changed at each of the stages specified below:-
10. An interval of at least four hours shall be allowed to elapse before horses or ponies which have been driven one stage are used again.
11. All tolls shall be payable by
12. All conveyances shall be supplied with two clear burning lights during the period between half an hour after sunset and half an hour before sunrise.
13. Licensees of public conveyances shall, when the yearly licenses and numbers are renewed, bring their conveyances and horses or ponies to the office of the Superintendent of Police or to anyone authorized by him in this behalf for inspection, and shall satisfy him that the conveyances, horses, ponies and harness are in all respects in sufficiently good order and otherwise fit for the purpose intended, and that the drivers are clean. Steady and capable.
14. Every driver shall, when engaged in his occupation, be cleanly and decently clothed.

B (1) No.....Whereas it is proposed to extend the provisions of the Bombay Public Conveyances Act, VII of 1920, to.....

Now, therefore, the following draft of a revised table of fees for licenses under the said Act in.....in published for the information of persons likely to be affected thereby, and notice is hereby given that the draft will be taken into consideration or after the day of 19.

Table of fees for licenses to be issued under act VII of 1920

Kind of conveyance

Rate of fee

Rs, np

APPENDIX XXX

Rule 441(5)

List of railway police station where lock-up are provided.

1. Bulsar
- 2 Surat
3. Baroda
4. Anand
5. Godhra
6. Ahmedabad
7. Sabarkantha
8. Mehsana
9. Viramgam
10. Palanpur
- 11 Radhanpur
- 12 Gandhidham
- 13 Srendranagar
- 14 Rajkot
- 15 Junagadh
- 16 Dhola
- 17 Jetalsar

APPENDIX XXXI

Rule 476 (12)

Working of the Modus Operandi System in Ahmedabad City Police Stations and Town Police stations of District headquarters

- (1) Reports to be submitted to the M. O. B. in detected and undetected cases.
 - (a) Whenever a case (detected) of the types referred to in para 2 of rule 476 is registered, the following should be sent to the M. O. B./District, City, and State, without any delay :
 - (i) A copy of the First Crime Report.
 - (ii) A copy of First Information.
 - (iii) Copies of descriptive rolls of the arrested persons and circumstances of arrest.
 - (b) The First Crime Report should contain the fullest possible information in respect of the various headings in the form. When the case is finally closed, a Final report (in the prescribed form) should be sent to the M. O. B. giving all further particulars obtained since sending the copy of the First Crime Report. In cases in which the accused is convicted, a copy of his statement should be sent with the final report. The report should contain information about circumstance's under which the accused took to crime. Similar procedure should be followed when a closed case is reopened. SP. office attention, should be paid to the method adopted by each accused in the commission of the Crime, and to the following points:-
 - (i) Method adopted by each accused in the disposal of stolen property.
 - (ii) The information on which each accused, his associate or receiver was arrested and stolen property recovered.
 - (iii) The disposal of every person arrested. If any such person is extended, deported, dealt with under Chapter VIII, Criminal Procedure Code or is concerned in any other case, this should be mentioned.
- Note:-** If any individual charged with a certain type of offence (i.e., House breaking and theft), is convicted for a different offence (i. e. receiving stolen property), or is acquitted or discharged for want of evidence, but the Officer in charge of the Police Station has reason to believe that the individual did commit the offence referred to in the original charge, this should be mentioned in the report. (For details of information required see the accompaniment to this appendix).
- (c) Whenever a case (undetected) of M.O.B. types are referred, a copy of the First Crime Report with the copy of the First Information should be sent to the Officer in charge of the District / City and State M. O. B., without delay. If any case has been detected or reopened subsequent to the sending of the First

Information and Crime Reports to M.O.B i.e, the culprit or the culprits have been arrested or the stolen property has been recovered, Immediate Information should be furnished to the M.O.B. with all the detailed particulars, such as :-

- (i) Descriptive roll of the accused, associates, receivers etc.
- (ii) Circumstances of arrest, particulars regarding disposal of the property by each accused recovered thereof.
- (iii) Means employed or implements used in the commission of offence and part played by each accused in the commission of the offence.
- (d) A monthly statement of cases finally closed and classified as 'A', 'B' and 'C' should be sent to M.O.B. before the 15th of the following month with information and disposal of person or persons arrested, if any, on suspicion etc., and particulars of property recovered and its disposal subsequent to sending of the First Information and First Crime Report to M. O. B.

Note:- When a 'transfer' case of the types referred to in para 2 of rule 476 is registered by any Police Station, three copies of the First Information would be required, one for the Police Station Investigating the case, one for the Police Station actually having jurisdiction, and the third for the M. O. B. In such cases, the ORIGINAL First Information should be retained by the Investigating Officer (the duplicate sent to the Police Station having the jurisdiction) and a copy (typed on cyclostyled forms) should be sent together with a duplicate of the First Crime Report to the M. O.B. for record. This would be exclusive of the copy now being sent to the Magistrate.

- (2) Persons to be sent to M. O. B.-(a) All persons except juveniles, arrested or strongly suspected for M. O. type offences should be sent to the M. O. B. with copy of the previous conviction slip statement, and Finger Prints (within one week).
- (b) In case of persons having no previous convictions it should be clearly stated whether a Conviction is a certainty. .
- (3) How persons are to be sent to the M. O. B.-(a) While sending the persons to the M. O. B., copies of their P. C. slips, statements and Finger Print Slip should be invariably sent to the M. O. B.
- (b) Persons sent to M. O. B. for registration, for being photographed, should, as far as possible, be sent in the same dress and appearance as they were found at the time of the commission of the offence Under no circumstances, criminals with beard obviously grown while in the Police lock-up should be sent to the M.O.B. Office.

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(4) Co-ordination between M. O. B. and F. P. B.-(a) every person registered in the M. O. B. will be given a serial number (such as M. O. B. No. 13) and this number will be communicated by the Bureau to the Finger Print Bureau, Ahmedabad who will note the number on the record slip of the individual and furnish the M. O. B. with his F. P. classification. The F. P. B. Ahmedabad should inform the M.O.B. in concerned of every subsequent trace of any of the registries, either on account of his arrest, conviction otherwise. The F. P. B. will also notify to the M. O. B. any changes made in the sentences on the re-cord slips, or the elimination of any slip etc. This will also apply to all M. O. B. type criminals registered in Districts.

(b) Whenever chance prints are developed at scenes of offences in M. O. type offences a copy of the report hitherto sent by F. P. B. to Police Station concerned regarding result of comparison of the prints shall also be supplied to the Officer in charge of M. O. B.

(c) In case of unidentified chance prints it should be specifically stated whether the prints are of finger palm or foot or of juveniles.

(5) The officer in charge of M.O.B., may use his discretion in registering criminals in M.O.B. taking into consideration the potentiality of the criminals and likely of their records for subsequent detection or prevention of crime and not merely to satisfy the condition detailed in the foregoing paragraphs.

(6) Complainants or identifying witnesses should be sent along with a police constable and a man giving therein brief facts of the case with special reference to modus operandi and particulars such as name, N/P and description of the wanted accused, if any.

(7) **Records and Registers.**-Crime records indices, crime reports and registers should be maintained and destroyed as detailed below:-

1. Histories, name and other indices, photographs in albums
Crime record should be destroyed on death of the criminal or on his/her reaching 70 years of age or condition of health incapacitating further criminal activities or as under.
A. class - important and dangerous 30 years

after last tract .

- B. Class- Confirmed and adopting a particular type crime and humane-15 years after last trace.
- C. Class- Petty criminals having no specific modus operandi-10 years after last trace

2. Working papers

Two(2) years.

Crime Records

1. Undetected

'S' class short duration-unimportant-One year., 'M' class-medium important-Five years.
'L' class-Long duration-important-Ten years.

Vote :- Destruction of indices of wanted person and of identifiable stolen property should be on the same-principle.

2. Detected

- (i) Culprits, convicted and on M. O. B. record--Ten years.
- (ii) Acquitted and discharged but culprits not in M. O. B. record-Two years.

Register

- 1. M. O. B. Registers 60 years.
- 2. Crime Report Registers. 10 years.
- 3. Day Book of undetected case 10 years.
- 4. Jail Release Date Registers. 2 years after last use.

(T. G., C. M. No. 7209. dated 20-7-1951) -

Accompaniment.

The classification of each information in the M. O. B. depends upon the point given in the First Crime Report. It is, therefore, absolutely necessary that in compiling this information the officer i/c of the case should understand what points are required, and in making his enquiry should satisfy him-self by exhaustive tests that no possible details are omitted.

The following notes will be useful in filling in the First Crime Report 'E' form for the MOB.

1. Class of person or property attacked.-Particular criminals generally operating attack only particular types of persons or properties and this type should be given in detail. General types are not sufficient. For instance, 'stolen from a person', 'house' or 'shop' does not convey what kind of person, house or shop was

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attacked. But, a 'beggar woman', 'Parsi bungalow detached, 'goldsmith's shop' are more evident terms of identity. In the case of receivers, the class of property attacked will be gold, silver, jewellery, precious stones, motor accessories etc.; in the case of counterfeiters the class of property attacked will be ten rupee note, ten naye paise nickel coin etc.

2, Entry.-In the case of attacks on buildings the actual point of entry into the property e. g., concealment in the loft of the kitchen, from adjoining vacant premises, door (front, rear, kitchen etc.) fan-light, roof, window, etc. In the case of attacks on persons the place where the offence is committed (e. g. secluded spot in public garden race course ticket window, Hindu Restaurant etc.); in the case of receivers, receiving on road or in pawn-shop etc.; and in the case of counterfeiters and utterers, location of place where uttered etc.

3. Means.-How property was approached (e. g., pipe climbing, slipping latch of window through space in ventilator, ventilator shutter, bar bending, breaking hasp of front door). How the person was approached, (e. g., accosted with a request for matches, followed or attacked from behind, enticement by a bogus message etc.). Nature of violence or force used, description of weapon used also to be given (e. g., jimmy 1/2" thick, attacked with an ordinary bamboo stick 4 feet long and 2 inches thick, grasping throat, tripping and pick-pocketing, snatching from behind etc.). How the victim was induced to part with property e. g., forged cheque, bogus employment etc. In the case of receivers, how received and from whom received etc. In the case of counterfeiters, dies moulds, alterations process, transfer etc.

4. Object.-The stolen property or whatever was the motive. The property stolen should be clearly sub-divided into that which can be identified by reader of the information and that which can be identified by the loser of the property only. Receiving stolen property, counterfeiting and uttering are also objects.

5. Time.-This must not be limited to the period of time which elapsed between the property being last seen and the time it was missed, but should also be expressed in conjunction with the opportunity given for or taken by the culprit to act. (Away on long leave, Sunday Church time, Wages day etc.)

6. Style.-It is either the actual or pretended occupation of the criminal at the time of or immediately prior to the commission of the offence, and does not refer to the method of committing crime It must not be confused with the trade or calling adopted by the criminal before he engaged in the crime. Some-times, the style and actual

occupation may be identical, such as a labour cart driver absconding with property entrusted with him. Sometimes a criminal when accosted by a third person or when disposing of stolen property to a dealer, pawn-broker or casual acquaintance will state his alleged particular trade or profession in order to inspire confidence and allay suspicion. This is always to be regarded as Style, even though he was not seen at the time the offence was committed, as in the case of house-breaking etc. In the cases of theft and offences against persons or by received or utterers, what the criminal represents himself as (e.g, glassware-hawker, building contractor) is to be regarded as style.

7. Tale.-The statement made by the criminal, often prepared beforehand, to cover up his tricks, to meet or avoid suspicion and to endeavor to impress people with his bonafides etc., generally supports his style as the most important part or his make-up for the purpose of committing the offence. It is very important that the tale should be obtained from the persons victimized or persons from the neighborhood and no part or the tale should be considered too insignificant to be recorded.

8. Pal.-Some criminals invariably work alone, others with companions. Confederates frequently cover the movements of a pick-pocket and receive the stolen property immediately it has been taken from the victim. Full investigation will frequently reveal the activities of accomplices and this point is an important factor in the subsequent detection of offenders who work in company and may narrow down the search.

9. Transport.-Every endeavor should be made to ascertain how the thief reached and left the scene of crime. Seek for traces of vehicles in the neighborhood of the property which was broken into, as bicycles, victorias, motor cars etc., may have been used leaving marks. Enquiry may reveal no ordinary reason for their presence.

10 Trade Mark.-Expert criminals are frequently known to commit certain extraordinary acts not associated with the objects of crime, such as disturbing beds by resting in them, consuming food, committing nuisance, poisoning dogs etc.

1. Description wanted or arrested persons.-So much depends on a 'good' description that no pains should be spared to get all details, especially regarding size, shape and position of visible marks, marked peculiarities of figures, facial expression, general appearance, gait, manner speech deformities, detailed description of dress etc. and to test it by the version of two or more persons if possible. Similar attention should be paid to general description such as caste, birth place, residence occupation, last employment, associates-not necessary in crime, relatives, resorts etc., as on this information the success of tracing him again, if wanted, will depend. Officers, beyond merely copying down the particulars furnished by the complainant or arrested persons, should make every endeavor to ascertain the true particular. Many officers may remember valuable information regarding criminals and may know where and how to look out for them etc., but, as the object of the Bureau is to keep on record all such information disclosed in the course of their investigation, even the minutest details be furnished in the form submitted to the Bureau. The following details of description which are recorded in the M. O. B. will give an idea as to the nature of information required in respect of such persons :-

Age:-

Height:-

Built :-Thin, stout, erect, stooping, broad etc., .

Hair :-color, bald, cut, curly, style etc.

eyebrows :-thick, thin, arched, straight, meeting.

Forehead :-high, low, upright, sloping, broad, narrow.

Eyes :-large, small, wide-set, close-set, color of iris, squint old-eyed cats-eye, defects etc.

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Sight:-long, short, wearing glasses, e

Nose:-large, small, hooked, snub, thick, thin, broad, inclined right or left, etc.

Cheek:-prominent cheek bones etc.

Mouth:-close, shut, large, small, showing teeth etc.

Lips:-thick, thin, protruding, hare-lip, long or short upper lip, etc.

Teeth:-Small, large, protruding, discolored, irregular, gaps, missing, false, filled, etc.

Fingers:-long, short, stub, pointed, deformed.

Chin:-receding, protruding, square, pointed, long, short, lobbed, double etc.

Jaw:-square etc.

Ears:-large, small, protruding, long lobes, pierced upper or lower, set high set low, deaf etc.

Face:-long, round, smiling, scowling, wrinkled, etc.

Complexion:-fair, wheat, sallow, brown, black.

Beard:-color, long short, style etc.

Moustaches:-color, long, clipped, turned up, drooping etc., .,

Scars, pock-marks, moles, warts, brands, tattoos, , birth marks, tumors, pimples, scars etc. on head, fore head, temples, eyebrows, eyelids, cheeks, nose, ears, lips, chin, Adams apple, neck, lower arms, wrists, palms, hands, fingers, feet etc., missing or deformed portion of the body such as maimed, hunch-back, bow-legged, knock-kneed, diseases such as lucoderma, leprosy, elephantitis, varicose veins, paralysis; peculiarities of speech such as nasal accent, stammer, soft, harsh, fast, slow, loud or dumb; peculiarities of manner such as gesticulation, twitching of eyebrows, mouth etc.; left handed etc.; peculiarities of gait such as upright, stopping, slovenly, fast, slow, limping etc.; accomplishments and literacy, habits and miscellaneous such as female traits, eunuchs, rings, taviz, etc. etc., Places of residence and period, haunts, relatives and friends, associates, those he is likely to visit, how arrested, methods of disposing of stolen property and the receivers, by whom harbored, description of stolen property etc.,

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APPENDIX XXXII

I Sub-Classification of Indexes

Rule 482

THEFTS

Banks (from)

Bicycles and Bicycle accessories (of)

Birds (of)

Building under construction and unattended premises (from)

Carts (from)

Cattle's (of)

Cheques (of)

Children (from)
 Copper wires (of) Telephone
 Clothes-dhobi(s) (of)
 Drugging
 Dwelling houses (from)
 Fairs (from)
 Goods unattended (of)
 Hardware, paints, etc. (of)
 Hostels, Hotels, Boarding and Houses (from)
 Clubs and Rest houses
 Musical Instruments (of)
 Offices (from)
 Passengers' luggage (dock Thieves).
 Photographic goods (of)
 Pickpockets, ordinary
 Pickpockets, cutting
 Pickpockets, fairs
 Pickpockets, places of worship
 Pickpockets, Trains and Buses
 Pickpockets, Race Course
 Pickpockets, Places of amusement
 Pickpockets, Railway
 Place of worship (from)
 Post Office including pillar boxes (from)
 Prostitute's houses (from)
 Schools (from)
 Servants (by) Hindu Dwelling Houses
 Servants (by) Muslim Dwelling Houses
 Servants (by) Christian, European, Parsi Dwelling Houses.
 Servants (by) Hotel, Tea Shops
 Servants (by) Shops
 Servants (by) Miscellaneous
 Shops, Jewellery (from)
 Shops Ordinary (from)

Appendix XXXII

Sleeping person (from)
 Snatching (by)
 Telephone Apparatus (of)
 Tiffin Carriers (of)
 Tools (of)
 Trick (by)
 Typewrites-other office appliance (of)
 Unwieldy articles, trunks
 Unwieldy articles, clocks
 Unwieldy articles, Miscellaneous

Washing places and bathing ghats (from)
Ware houses, shed, and godown (from)
Window inserting hand or stick (by)
Vessels (of)
Miscellaneous

STYLE INDEX TYPES

Note.-(1) Cards should be kept according to year of birth and height with those of younger the front, (2) Any additions on approval by Manager, (3) Female cards should be each heading, (4) Styles in brackets are not to be indexed.

Acquaintance	Bidi maker
Actor	Bill collector
Agent	Black-smith
Alchemist	Boarder
Applicant for job	Brahmin
Army man	Bridegroom
Army Officer	Broker (with sub-headings)
Air Force man	Bully
Air Force Officer	Businessman
Architect	Butler
{Artisan) See Workman.	Canvasser
Aryasamajist	Cameraman (see Photographer)
Astrologer (See also palmist)	Captain (see Army Officer).
Auditor	Carpenter
Aviator	Champiwalla (see Massager)
Ayah	Cart driver.
Bakeryman	Cashier
Banker	C. I. D. Officer
Barber	Cinema Operator
Bearer	Clerk
Beggar	Clearing agent
Benevolent person	Cobbler
Bereaved	Commission agent
Bhagat	Compositor
Bicycle repairer	Compo under

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Appendix XXXII

STYLE INDEX TYPE;-count.

Contractor	Gold caddy
Convert (from-to-)	Guest (see also weeding guest and visitor)
Cook	Guide
Coolie	Hat maker
Co-villager	Haj pilgrim

Co-worker
 Cameraman (see workman)
 Customer (bogus)
 Customs Officer
 Customs Peon
 Deaf and Dumb
 Dealer in (see also merchant.)
 Dentist
 Destitute
 Devotee
 Disciple
 Dock Labourer (see workman)
 Doctor
 Drunken person
 Dyer
 Ear-cleaner
 Electrician
 Educationalist
 Embroiderer
 Engineer
 Evacuee
 Excise employee
 Ex-servant
 Fakir
 Family man
 Fiance'-ee'
 Film Employee
 Film extra
 Food Inspector
 Foreman
 Fountain pen repairer
 Friend (of)
 Fund collector
 Gambler
 Gardner.
 Glazier
 Goldsmith
 Government servant (see public servant)

Hawker
 Hotel-keeper
 Income-Tax Officer.
 Influential person
 Informant
 Inspector
 Inspector-Civil-Supplies
 Inspector-Educational
 Insane
 Ironer
 Jaripuranwalla
 Jeweler
 Jeweler polisher.
 Jobber-Mills
 Journalist
 Lamp lighter
 Land-lord
 Liftman
 Liquor seller
 Locksmith
 Lunatic (see insane)
 Magician
 Major (see Army Officer)
 Manager
 Manager-Hotel
 Maker
 Mason
 Massager
 Mastan
 Mechanic (with sub-headings)
 Members (of)
 Merchant
 Mesmerist 1
 Messenger
 Military Officer (vide Army Officer)
 Milkman
 Mill-hand
 Mill-owner.

Moneylender	Professor
Motor cleaner	Prostitute
Motor driver	Prostitute goer
Municipal employee.	Proprietor
Musician	Publicservant (see alsoGovemDlentservant)
Mysteryman	Publisher
Naval Officer	Race Book seller
Nawab	Race goer
Neighbor	Radio mechanic(seealsomechanic)
Newspaper vendor	Railway servant
Nurse	Railway Passenger
Orphan	Rana(of)
Owner(of room)	Redeemer of pledged articles (see pladger)
Packer	Referee
Palmist(see also Astrologer)	Refugee.
Paramour	Relation (of),
Passenger (Victoria)	Rent collector
Passenger Agent	Repairer
Patient	Representative
Patroit.	Resident (of)
Pensioner	Rice grinder
Peon	Riding boy
Petitioner	Room mate
Photographer	Recruiter-Military (see Military Officer)
Physical Instructor	Sadhu
Pimp	Salesman (see canvasser)
Play mate	Satta forecaster.
Pleader	School-board member
Plumber	Scout
Poet	Seaman.
Policeman	Secretary
Police Officer	Seller (of) (See also dealer in)
Polisher (Furniture)	Servant (domestic)
Porter	Servant (Rajasaheb)
Port Trust Peon	Service securing agent
Postal employee	Sewing machine repairer
Postman	Shoe-black
Priest	Shoe-maker
Printer	Shoe-keeper
Prisoner	(Shroff) (See money-lender)

STZLE INDEX TYPES-concl'd.

Silver-smith	Tutor
Sodomist	Typist
Student	Umbrella-repairer
Supervisor (Schools)	Upholsterer
Sweeper, Syce	Unemployed
Stable boy	Vector
Tailor	Victoria Driver
Teacher	Visitor (see guest)
Tea planter	Volunteer.
Telephone Co.'s representative	Washerman
Tiffin carrier	Watchman
Tindel	Watch repairer.
Tm-smith(Kalaiwalla Tinner)	Wealthy person
Tipster, Title holder	Wedding guest (see also guest).
Trustee	Workman
Tramway-employee	Yogi

PHYSICAL PECULIARITY INDEXES

Note.-Cards should be kept according to year of birth and height with those of younger and shorter in the front. Additions on approval by Manager. Female cards should be kept last under each headings.

Arm.	Epileptic.
Beard	Ears- burned (big or upper)
Bald head	(Left or right).
Birth mark. cheek.	Elbow
Chin.	Elephantiasis.
forehead.	Eunuch (see also Prostitute).
Neck.	Eyes left or right.
Bow legged.	1. Squint, 2. Cataract, 3. Blind, 4. Odd.
Build-stooping.	5. Miscellaneous (see also Cat's eyes).
Very stout	Eyebrows.
Very thin	Eyelids.
Bully.	Face.
Cat's eyes (chest-nut also	Features-Chinese. Negroid.
Cheeks.	Female Trains see also Eunuch.
Cheek bones.	Fingers left or right
	(See also thumb.
Chain	Foot.
Complexion-black very.	Forearm.
Convert.	Forehead.
Deaf.	Gait.
Dumb.	Gesture (Gesticulates.

Appendix XXXII

PHYSICUL PECULARITY INDEX -concl'd.

Habits.
 Hair-tuft.
 Hairy-chest-stomach
 Hands-left or right.
 Hare lip.
 Head.
 Height-dwarf-tall (very)
 Hernia.
 Hunch back.
 Hydrocele.
 Insane
 Itches.
 Jaw.
 Knee.
 Lamé.
 Leprosy.
 Leg-deformity.
 Leucoderma.
 Lips.
 Mannersim.
 Mole-molewar.
 (big)Adam's apple.
 Cheek-left and right.
 Chin.
 Eyebrows.
 Forehead.
 Jaw-left or right.
 Nose.
 Temple-left or right.
 Moustaches.
 Moth.
 Neck.
 Nose.
 Paralysis.
 Pimpled face.
 Picpricked face.
 Scar cheeks.
 Eyebrows.

Forearm.
 Forehead.
 Hand.
 Lips..
 Neck (including scrofula),
 Nose.
 Temple-left or right.
 Shoulders.
 Speech.
 Stammerer.
 Tattoo-cheeks.
 Chest.
 Chain.
 Forearm
 Forehead.
 Hands-left or right.
 Palms-left and right.
 Shoulder-left and right.
 Thumbs-left and right.
 Upper arms.
 Teeth.

 Thumb (see also fingers).
 Toes-left and right.
 Tumour.
 C Varicose veins.
 Voice.
 Wart-see mole.
 Wears-beads.
 disguise.
 car-rings.
 Glasses.
 glasses.
 sadhu dress.
 taviz.
 turban.
 Whickers.
 Wrist.

Appendix XXXII

HOUSB-BREAKING

Adjoining premises entry including partition walls.
Bar bending or removing.
Crawling under or between doors.
Cutting (including bar cutting, filling and sawing.)
Door breaking (back).
Door breaking (front).
Dwelling Houses.
False key.
Garage (from).

Gimlet hole in doors, or window panels.
Glass breaking.
Go-down, shed, warehouses (from).
Hasp or staple broken (front door).
Hasp or staple broken (back door).
Hostels.
Mills.
officers Schools & public buildings, clubs.

Lock broken (front door).
Lock broken (back door).
Pipe climbing and other climbings.
Roof hole rafters.
Roof hole tiles.
Safe breaking-ordinary.
Safe breaking-Chemicals
Scaffolding.
Shop including dispensaries,
jewellery and marwari.
Slipping inner latch or bolt.
Through servant.
Ventilator or skylight entry.
Wall hold (brick removing.)
Unweildy articles, trunks. ..)
Unweildy articles, clocks.
Unweildy articles, miscellaneous.
Miscellaneous

CHETING

Bogus C. I. D. or Police officer of other
Public servant.
Bogus concerns.
Bogus Bearers.
Bogus claimants (Including ex-employees.
Bogus employment.
Bogus find of unclaimed valuables.
Bogus High personage.
Bogus purchase.
Bogus security..

Borrowing

Confidence Trick.

Forgery cheques.
Forgery Hundi.
Forgery money orders.
Forgery Railway Tickets.
Forgery Race course Tickets.
Forgery Miscellaneous.
Spurious jewellery
Miscellaneous, goods not
delivered. goods as not represented.
Miscellaneous.

CRIMINAL BREACH OF TRUST

Coolie.
Labour car drivers and lorry drivers.

Cycles (in respect of)

.....
ROBBRY

Robbery from brothels.
Robbery from children.
Robbery by enticement.

Robbery by knives.
Robbery from money changers.
Robbery with motor car.

Robbery firearms.
 Robbery by gagging.
 Robbery on Highway.

Robbery from Sea shore.
 Robbery from women.
 Robbery Miscellaneous.

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Appendix XXXII

Dacoity with arms.
 Dacoity Highway.

Dacoity
 Dacoity miscellaneous.

COUNTERFENING

Counterfeit coins-Dies.

Counterfeit notes Photo
 zinco-process.

Counterfeit coins Moulds.
 Counterfeit coins Uttering.
 Counterfeit coins Miscellaneous.
 Counterfeit notes-Alteration.
 Counterfeit notes-Hand.

Counterfeit notes-Printing.
 Counterfeit notes-Transfer.
 Counterfeit notes-Wood block.
 Counterfeit notes-Uttering.
 Counterfeit notes-Miscellaneous.

RECEIVERS

Receivers shop.

Receivers precious stones and
 valuables, etc.
 Miscellaneous.

Receivers street.

TRANSPORT

Note.-Cards should be kept according to Modus Operandi. Any additions on approval by Manager.
 Female cards should be kept last under each heading.

Basket.
 Boat.
 Bicycle.
 Bus.
 Cart (Bullock, Hand, Labour).
 Cloth bag.
 Coolie-basket.
 Gunny bag.

Hand bag.
 Motos car (Taxi, lorry, jeep).
 Motor cycle.
 Pillow case. ,
 Railway.
 Tram.
 Tonga.
 Victoria.

TRADE MARK INDEX (INCLUDING PECULIARITIES).

Note.-Cards should be kept according to year of birth and height with those of younger and shorter in the front. Any additions on approval by MInager. Female cards should be kept last under each heading.

Acid (throwing).

Giving particulars (name and
 address etc. to create
 confidence).

Accomplice-boy or women or both.
 Articles-disturbed.
 Articles-not disturbed.
 Badge-Brass (showing).
 Bolted inside.
 Blood (trick).
 Burnt (candle etc.)
 Child carrying. Changed clothes. Nak
 Changed shoes or chappals.
 Changed tyres.

Hockey stick (moving with).
 Itching powder (throwing).
 Knife (showing).
 Left (behind).
 Lights put off.
 Lights put on.
 Lock smith engaged).
 uisance committed.
 Obstacles (bolting neighbour's doors
 or working under
 obstacle put for cover).
 Offering.
 Over-hearing.

Chit (producing).
 Chilli powder (throwing).
 Clock tampered with for time.

Concealing (in out of way places, jemmy stolen purse, etc.)
Consumed food etc.
Diyerting attention.
(Pushing hat off etc.)
Dog silenced.

Dropping coins.
Drugging.
Eaves dropping.
(See over-hearing).
Electric Current (Tampering).
Enquiry-person job, etc.
Firearm-used.
Gagging.
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Relocked (new lock or lock replaced).
Sari using as string.
Sending an errand.
Snuff (throwing in eyes).
Sounding.
Speaks of (Purse left behind
Ancestral property, etc.)
Swallowing.
Taviz (offering).
Telephoning.
Violence displayed.
Visiting Card (presenting).
Watch (keeping).
Wears (mask, etc.)

Appendix XXXII

II-Identifiable Stolen Property

INDBX- TYPES

Note.-Only those articles which are readily identifiable i. e. bear distinguishing features such as marks, inscriptions, numbers, colour, shape, etc. are indexed.

The following are the main general articles that are usually subject to theft or loss:-

Bicycles.-Number, make, kind of brakes, saddle.

Books.-Name of the book, subject-matter, religious, historical, scientific.

Cheques.-Name of the bank, number of the cheques, person who issued the cheque and name of the drawee.

Clothes.-Initials or other marks, such as dhobi marks nature of the clothing, material style, size, color maker's name, value, Fur, name of the articles, colour, kind, size.

Currency.-Coins, foreign-notes, foreign, Indian of higher denominations: Hundred and over, number. (Valuable) Bonds, shares, share certificates, etc.

Electrical Accessories:-Name of the article, maker's name and number.

Fire-arms.-Nature of the fire-arm, i.e. gun, pistol, revolver, etc., maker's name and number and bore.

Fountain pens and pencils.-Maker's name, inscriptions, of owner, pattern, colour, value, etc.

Jewellery.- (I) Chains: kind of metal, lady's or gent's length, weight, kind of link, style, value.

(2) Ear-rings, kind of metal, style, number, kind, size and studs, size of stones, value.

(3) Rings: Kind of metal, lady's or gent's style, setting, kind and number of stones, weight, initials, and value.

(4) Miscellaneous: Nature of article, kind of metal (gold, silver, platinum) design, initials, inscriptions or monograms and value

Musical instruments.-Nature of the article, number, description, value

Motor vehicles.-Make, year of models, kind of body, whether rebuilt body, number or trademarks, motor number factory number color, Horse power, steering wheel, right or left side.

Motor cycles.-Make, year of model, manufacturer's number, with side car or without side car, colour, horse power.

Photographic goods.-Cameras, ordinary or cinematographic maker's name and number

Radios.-Manufacturer's name and number, model number of values.

Sewing machines.-Make and number.

Silver articles.

Sporting goods.

Typewriters.-Kind: Portable or ordinary, maker's name, serial number and model number. Vessels.- Kind of vessel, kind of metal, name.

Watches.-Pocket: Make number, metal.

Wrist: Gentlemen's or lady's make number, monograms, or inscription, kind of metal, description of case, hunting case or open case.

Wall clocks and clocks.

Time-pieces.

Name Index.- Miscellaneous articles not included in the above headings bearing names be indexed.
Number Index.-Miscellaneous articles not included in the above headings bearing numbers may be indexed.

Miscellaneous articles.- Not bearing neither name or number such as Badges, bag glasses, purses, surgical Instruments, etc.

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APPENDIX XXXIII

RULE 484.

Scale for Police Motor vehicles required in the District and State Reserve Police for District

The actual personnel strength of a District is taken as the basis for fixing the scale for vehicles. Accordingly the minimum present requirement of vehicles is based on the yard stick-1 vehicle per every 60 men armed and unarmed, of a District strength.

The special requirements for example, Mobile wireless vans, state criminal investigation department state traffic, state prohibition and Excise vehicles and staff cars, etc. would be extra depending upon the special requirements of District.

Additional requirements of vehicles at range headquarters

At each range headquarters, the following additional vehicles are required to be provided for piloting escort, protective duties etc. for V.I.Ps. and M.Cs. for piloting and outriders. These will be stationed at headquarters of the range and attached to the District Motor transport section for garaging and maintenance. These will be used throughout the range whenever required.

(1)	High Powered Cars]	2
(2)	High Powered Station Wagon	1
(3)	Motor Cycles	4

II- For state reserve police force Groups

In the case of state reserve police force Groups, however, the required number of vehicles for full mobility would be obtained on the basis of-

- (a) 1 vehicle for every unit of 25 men for transporting men;
- (b) Half the total number of such vehicles (a) for carrying goods and equipment;
- (c) An equal number required for goods and equipment i. e. (b) would be needed for work and as Reserves
- (d) Two vehicles for the Motor Transport Mobile Workshop.

APPENDIX XXXIV

RULB 493(6)

Average normal life expectancy of motor spare parts, etc.

(1)	Battery	11/2 to 2 years.
(2)	Tyres new	40,000 Kms
	Tyres retreated	28,000 Kms
(3)	Spark plugs	16,000 kms.
(4)	C. B. Points	12,800 Kms.
(5)	Condensor	12,800Kms. depending on resistence to moisture.
(6)	Distributor Cap	16,000 to 19,200 Km
(7)	Rotor	16,000 Kms.
(8)	Oil-filter Cartridge	Change after 8.000 Kms.
(9)	Fanbelt	8,000 Kms.
(10)	Tie rod ends	16,000 Kms.
(11)	King pins	16000 kms.
(12)	Brake linings	24,000 Kms
	Brake Hoses	32,000 Kms.
(13)	Master cylinder and Wheel cylinder Kits	16,000 Kms.
(14)	A. C. Pump diaphragm kit	8,400 Kms.
(15)	Carburettor repair kit	16,000 Kms;
(16)	Needle pin assembly	16,000 Kms.
(17)	Petrol flexible pipe	24,000 Kms.
(18)	Water Pump repair kit	24,000 Kms. depending on condition of water.
(19)	Water Hosepipes	16,000 Kms.
(20)	Universal Joint bearings	40,000 Kms.
(21)	Cylinder Head Gasket	16,000 Kms.
(22)	Piston Ring Set O/S	40,000 Kms.
(23)	Connecting Rod bearings	40,000 Kms.
(24)	Engine Valves	40,000 Kms.
(25)	Brake Lining Set	24,000 Kms.

(26)	Wheel Cylinder Repair Kit Front.	16.000 Kms.
(27)	Wheel Cylinder repair Kit Rear	16.000 Kms.
(28)	Master Cylinder Repair Kit	16,000 Kms.
(29)	Sealed Beam Units	2 Years.
(30)	Brake Hoses front and rear	16,000 Kms.
(31)	Wheel Bearing Front	40,000 Kms.
(32)	Wheel Bearing Rear	40,000 Kms.
(33)	Wheel Oil Seal Front	16,000 Kms.
(34)	Wheel Oil Seal rear	16,000 Kms
(35)	Tail Lights	3 years.
(36)	Trafficators and Windscreen Wipers	3 years.
(37)	Horns Electric	3 years.
(38)	Horn Bulb Rubber	2 years.

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Appendix XXXIV

PAINTS

(39)	Body paint complete	2 years.
(40)	Body paint touch up	6 months.
(41)	Chassis and Wheel rim paint	6 months.
(42)	Body Wooden or Woodnetal (Trucks and Vans).	8 years.
(43)	Upholstery	3 years.
(44)	Curtains	2 years.

LUBRICANTS

Engine Oil (complete change)	3200 Kms. to 4000 Kms.
Gear Box Oil	16000 Kms. Drain (Flush, clean filter and refill). Top up if required, at monthly inspection.
Differential	24,000 Kms. Drain (Flush, filter refill).
Brake Fluid	As required for topping or bleeding, every weekly inspection.
Bulbs-Lighting	1000 lighting hours.
Horn Bulf	1 year or as rewuiired.

Note : - The above spans cannot be strictly laid-down as their replacements also depend upon factors like road conditions, moisture in air, dust, exposure to Sun and rain, etc. Broken parts will have to be replaced as required.

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APPENDIX XXXV

Rule 520 (2)

Remounts Training Programme -37 Weeks.

Week	Details	Remarks
1	Lead equally on both sides show strange objects and make use of sense of touch Have an assistant but use only when required. Avoid using whip till the horse has confidence in his trainer. Use voice and insist immediate reward. Handling picking up the feet	To be carried out by the trainer himself if fit snaffles yourself (Instructor) . One whole high in mouth than correct fitting. Tell so war to watch for first sing of rough over bit. Use four words of command with different tone.
2	First stage of lingering i.e. with assistat make horses to stand quire, lift his legs beging to teach him obedience to the trainers voice.	Choose a longeing ground carefully. Change them every day. Do not forget the importance of leading well. while loneing make sure the horse's head is bent from the pole to the direction of his move, that his hind feet follow the fore.
3	Second stage of longeing assistant by the side introduces saddling without girth and stirrups rolling pads on saddle blanket-stand quite by mounting block. Do not allow to let loose during longing stages.	Instructor should see each horse's saddle longing should not be in small circle-word of command by the trainer himself-assistant not to speak.
4	Final stage of longeing without assistat longeing in a saddle with stirrup-commence saddling without girth and stirrup. Riders weight across saddle start four stags of long reining with and without saddle cross tress, o not make use of assistant	-----

5	Back without forward move with assistant-mounting and dismounting with stirrups long reining continue.	Leading over jump in close school, old horse to lead, assistant behind. Before mounting ensure the horse goes smoothly at all paces with snaffle absolutely to the voice-select a quite place for mount and dismount.
6	Forward movements in straight line-assistant ahead, shout period of walk and trot leading over jumps dismounted in long reining turning and reining back may be commenced.	If horses refuse to go forward keep assistant behind change direction in long wide circle remount must be absolutely obedient to words of command. so wars must not turn horses sharply
7	Long reining-turning about reining back. Free - forward movement at the walk and trot. Begin to keep assistant behind according to progress.	-----
8	Final stages of long reining in perfection Forward movements assistant as required. Leave horse in baby lane lead by old ones-two assistants at each jump.	Snaffle without rein must be left in the mouth for grazing and feeding with snaffle
9	Free forward movements-assistant behind, Lane -jump in pairs.	-----
10	Free forward movements-assistant behind. Large - turns and circles in walk and trot. Increase and decrease in walk and trot. Passing through the ranks. Dismounted bending lessons. Single free Lane jumping.	-----
11	Horses going free forward move-commence mounted head carriage for short time-watch corner of lips. Head carriage only when walking towards home.	-----
12	First cantering lesson in straight line leading and passing through the ranks.	Concentrate on balancing exercise in a straight line. Allow horses to lead by whichever leg it pleases.
13	2nd cantering lesson-striking of the named leg in Be a large circle. Bending lesson mounted continued with the assistant.	.contented with a few step of lateral movements
14	Balanced turns and circles. Canter on named leg one large circle. Commence mounted jumping at trot.	Use strong supporting rein during turns and circle. The horse can be bitted at this stage to make the remount more obedient.
15	Dispense with the assistant in bending lesson according to programme. Concentrate on loose rein	Loose rein while going home and bending lesson alternately.

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Appendix XXXV

16	Carter from trot and trot out and turn and circle Rein back dismounted.	Do not make efforts to raise the head too much as this will tend to shorten the stride and free forward move
17	Commence change canter with pace at trot and by stages rein back mounted with assistant dismounted.	-----
18	Begin to dispense with assistant in rein back as per progress	If a horse is sluggish for forward and rein back make the best use of assistant.
19	Revision of previous week, gradual progress in jumping bending lessons i.e. half pass etc.	-----
20	Revision of previous work. Turns and circles walk, trot and canter.	Concentrate on open ride work.
21	Increase and decrease of paces walk and trot head carriage and loose rein work at walk and trot.	-----
22	Balanced turns and circles at trot.	-----

23	Large turns and circles at trot.	-----
24	Progressive canter rein back from the walk and changing the leg at the canter.	-----
25	Loose rein riding in all paces.	Concentrate on difficult movements for short periods.
26	Much of loose reins lessons on flexion and collection half pass at walk and trot.	-----
27	Use scabbard start bending lesson at the canter.	-----
28	Sword in scabbard mounted jump.	Bending lessons may be commenced at extended
29	Zig Zag half pass at walk and trot. Drawing and returning sword at the walk mounted jumping at the canter, sword exercises.	Assistant may be used ahead of the horse during bending lessons (Zig Zag half pass)
30	Reins in one hand. Single dummy at walk.	Spurs may be used if the horses are sluggish. Section drill.
31	slow gallop. Training at haunches at halt and walk lead horses on both sides.	Changing paces from canter to extended canter walk. Lead horses on both sides. in straight line may be practiced.
32	Rein back at all paces, troop drill at trot . Ceremonial parade practice with all the three weapons	Horses may be practiced in entering deep water and swimming.
33	Revision of previous work and	-----
34	Perfection of all movements	-----
35	Cross country ride.	Horses may be practiced streets both during day and night.
36	Cross country ride and preparation for test.	-----
37	Test.	-----

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APPENDIX XXXVI

Rule 558 (5)

*List of articles of clothing and accoutrements supplied to Gram Rakshak Dal personnel
Sr. Name of article No. of articles Life of the No. to be issued article*

Sr.No.	Name of article	No. of articles to be issued	Life if the article
1.	Badges shoulder, white metal with Gujarati letter ગુ.ર.દ	1 pair	According to
2.	Badge, chest, white metal with Gujarati letter શલયક for naiks	1	-do-
3.	Badge chest white metal with Gujarati letters ઉપ શલયક for Up naik	1	-do-
4.	Badge shoulder, white metal for Hon. District G.R.D. officer.	1	-do-
5.	Badge, shoulder, white metal for Taluka G. R. D. officer	1	- do-
6.	Belt Web Canvas Khaki	1	Five years

7. Beret Cap Woolen Khaki, with cloth monogram of G.R.D. with Gujarati letters.	1	Two years,
8. Boots Darktan{ForDistrictfTalukaHon.G.R.D.O.)	1 pair	Three years
9. Bush-coat khaki (for District Hon. G.R.D.O.)	1	Two years
10. Lathi	1	According to wear
11. Peak-cap, woolen Khaki with G.R.D. monogram of white metal.	1	-do-
12. Shirt, half-sleeves khaki for Taluka Hon. G.R.D.O., Naiks, Up- Naik and member.	1	Two years.
13. Shoes black for Naiks, Up-Naiks and members	1 pair	Three years
14. Slacks khaki	1	Two years
15. Socks cotton khaki	1 pair	Two years
16. Whistle Thundered	1	According to:- wear.
17. Whistle cord khaki.	1	Three years

For Sagar Rakshak Dal personnel

1. Badges chest, cloth round with Gujarati letters સાગર	1	According to wear.
2. Badge shoulder cloth knitted therein the letters સાગર and round 1 'flower for Up-naiks.	1	-do-
3. Badge shoulder cloth, knitted therein the letters. and two 1 round flowers for Naiks.	1	--do--
4. Belt web canvas white	1	Five years
5. Beret cap, woolen blue (with cloth monogram સાગર)	1	Five years
6. Shirt, Full sleeves, Blue cloth	1	Two years
7. Shoes, canvas white.	1 pair	One year
8. Shorts, blue cloth.	1	Two years
9. Socks, cotton white.	1 pair	One year
10. Whistle cord blue.	1	Three years

For Mahila Rakshak Dal .

1. Badge chest, metal with Gujarati letter મ.ગ્રા.ર.દ. for member	1	According to wear.
2. Badge shoulder, metal with Gujarati letters ઉપ નાયક/મ.ગ્રા.ર.દ	1	-- do--

Appendix XXXVI

Sr. No	Name of article	No. of articles to be issued	Life of the article
3	Badge, shoulder metal in Gujarat letters નાયક/ મ.ગ્રા.ર.દ for Naik	1	According to wear.
4	Badge chest metal for distt. Hon. G.R.D. sangathak	1	-do-
5	Badge chest metal for Taluka Hon. G.R.D. sangathak	1	-do-
6	Belt, cloth green, size 5 cms. breadth 92 C.M.s length with white metal buckle.	1	One year
7	Blouse Green (for member, Naik and Upnaik)	1	One year

8	. Blouse white (for Hon.Dist. Taluka G.R.D.O.)	1	One year
9	Dupatta Green - " -	1	One year
10	Kurta white -"-	1	One year
11	Pyjama white -"-	1	One year
12	saree, white with 20 C.Ms. green border	1	One year
13	Shoes P.T. white	1 pair	One year
14	Socks, cotton white	1 pair	One year
15	Whistle	1	According to wear
16	Whistle cord, khaki	1	Three years

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APPENDIX XXXVII

Rule 563

Procedure for the award of shields to gram Rakshak Dal

The following two committees should be formed at Taluka level and District level for taking decision to award the shield

Taluka Committee:-

- (1) Taluka Mamlatdar (Chairman).
- (2) Member of Legislative Assembly of the Taluka (if available).
- (3) President of Taluka Panchayat.
- (4) Police Sub-Inspector of the Taluka.
- (5) Taluka Development Officer.
- (6) Taluka Honorary Gram Rakshak-Dal Officer.
- (7& 8) Two respectable members from the public to be selected by Taluka Mamlatdar.
- (9) Taluka Gram Rakshak Dal Officer, member-secretary (Police Head Constable).

District Committee:-

- (1) District Magistrate (Chairman). ,
- (2) Superintendent of Police.
- (3) Member/members of the Parliament (if available).
- (4) President of District Panchayat.
- (5) District Development Officer.
- (6) Honorary District Gram Rakshak Dal Officer.
- (7) District commandant, Home Guards.
- (8 & 9) Two respectable members from the Public (to be selected by the District Magistrate).
- (10) District Gram Rakshak Dal Officer-Member-Secretary (Police Sub-Inspector).

The Taluka Committee should take into consideration the following items to adjudge the suitability of the Gram Rakshak Dal for the award of the shield and should allot marks according to performance from the maximum marks shown against each item :-

S. No.	Item	Maximum marks
1.	Prevention of damage of crops by cattle (Bhelan) and theft of crop (sim-chori)	15
2.	Maintenance of law and order in the village	10
3.	Extinguishing fire and prevention of epidemic.. . . .	10
4.	To give information and to assist Police in investigation	10
5.	To give direct assistance or to give information to Police for preventing anti-	10
6.	To give direct assistance or to give information to police for preventing anti social activities i.e. anti-prohibition activities, gambling etc.	10
7.	Patrolling	10
8.	Drill and marching..	<u>25</u>
		<u>100</u>

The marks on item No. 1 to 7 will be assessed by the Taluka Gram Rakshak-Dal officer (viz. Police Head Constable in charge of the Gram Rakshak-Dal) and the Taluka Honorary Gram Rakshak-Dal Officer on the strength of performance put up by the Gram Rakshak-Dal of competing village during the year (quoting the number of Instances for each item on the record of the villages concerned) and on No.8, by seeing the work personally. The mark-sheet will then be submitted to the Taluka committee along with a detailed report. To select the best village in the Taluka, the Taluka Committee will take into consideration the mark-sheet and the detailed report sent by Gram Rakshak Dal Officer (Police Head Constable) and Honorary officer on items No.1 to 8 and will check up the performance on item No.8 of the good parties (Gram Rakshak-Dal) at a central place if felt necessary. This may be done by the Taluka Committee going round as a body or by deputing one or two members, VIZ., Police Sub-Inspector of the Taluka and Honorary Taluka Gram Rakshak-Dal officer for the purpose. No expenditure on this account will be borne by the Government.

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The Taluka Committee will then select the name of the best village which secures the highest marks for the work done for the year ending 31st December and send its recommendation and mark-sheet

together with a detailed report for its selection to the District Committee in the first week of January every year.

The District Committee will then consolidate all such reports from the Taluka Committee by the 7th January and in order to select the best village for the District for award of the shield, it will take similar action in respect of the Gram Rakshak Dal parties of the competing Taluka. The District Committee will take into consideration the marks given in respect of all items by the Taluka Committee. If felt necessary, the District Committee may at a central place inspect the performance with reference to item No.8. No expenditure on this account will be borne by the Government.

The District Committee will then decide the best village which secures the highest marks for the award of the shield for the year and will accordingly declare the name of the village by the 15th January. The decision of the District Committee for the year will be final and it will accordingly arrange for the award of the shield to the selected village on the 26th January every year at a public function, after engraving its name and year of selection in one of the respective replica.

The District Magistrate will have power to make necessary amendment in the above procedure to suit the local situation, after consulting the District Committee in the matter.

(H.& C.S.D.,G.R.No. VDP. 1863/4472/7-D, dated 23rd october, 1965 and H.D.G.R. No. VDP-1863/44727-M, dated 1st August, 1969)

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